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PUBLIC INTERNATIONAL LAW

Second Edition

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To
My Parents

PREFACE TO THE SECOND EDITION

International law is an evolving subject. It has gained lot of importance in the contemporary times. The political, social, economic, cultural, scientific and technological developments have forced States to join together to discuss and negotiate a legal regime to meet new challenges in those areas. The role played by International Law Commission (ILC) on the codification and progressive development of international law is commendable. The ILC is trying to fill the voids in international law by working continuously in those areas.

The jurisprudence of international law is fast emerging with new developments such as judgements and awards of the International Court of Justice and International Tribunals and new treaties and conventions which are being adopted from time to time on various aspects of international law. The uses of fast changing technology is also to be regulated by adopting new treaties. The areas such as environment, health, intellectual property rights, international trade, humanitarian law, human rights, nuclear disarmament, terrorism, State responsibility, etc. are witnessing new developments. The impact of these developments can now be realized by individuals very soon than before.

The subject of international law is very wide to be covered in just one volume. However, an attempt has been made to cover all the important aspects of public international law in this book. All Chapters have been dealt with in a comprehensive manner. An independent chapter is also added on International Criminal Law. The book is written in a simple language, easy to understand. It will help the readers to grasp the concepts and analyse the law. As far as possible, a large number of international treaties, decisions of International courts and tribunals, and reports have been referred in the book. The latest developments, such as the *Kulbhushan Jadhav* case and *Italian Marine* case have been incorporated in the Book. Further the Treaty on the Prohibition of Nuclear Weapons, 2017 and the Convention on the Elimination of Violence and Harassment in the World of Work, 2019 have also been discussed in detail to make the Book most updated.

I am thankful to all my Professors of Jawaharlal Nehru University and University of Delhi, who taught me international law and made me what I am today. I am also thankful to my daughter Parthvi Ahuja for providing research inputs and assisting me in the revision of this Book. I am also thankful to all my friends for motivating me at all the times. My special thanks are due to my father, my wife Shalini, and her parents and my son Lakshya for their motivation and unending support and cooperation in the revision of this book. I always felt blessings of my mother during the revision of this book who left us for her heavenly abode. I am also thankful to the library staff of Faculty of Law and Law Centre-II for assisting me in the revision of this book.

I am grateful to publishers LexisNexis, especially Ms. Saumya Chitranshi and Ms. Priyanka Bhutani from their team for extending all the help and support throughout.

New Delhi
January 2021

Professor (Dr.) V.K. Ahuja
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PREFACE TO THE FIRST EDITION

The importance of international law has increased manifold in the contemporary period in view of social, political and economic development worldwide. International law is no more confined to the relationship of the States alone. It deals with certain activities of the *inter alia* international institutions, individuals, private non-governmental organisations, national liberation movements, transnational corporations, insurgents and belligerents, and non-state entities.

The technological developments have posed enormous challenges to the international community and forced States to adopt new laws to meet those challenges. As the world has become a global village and technology knows no barriers, States are adopting multilateral law making treaties to keep pace with technological developments. In addition, States have adopted multilateral treaties in various areas such as international trade, intellectual property rights, environment, terrorism, human rights, humanitarian law, etc. These treaties may confer certain rights on the States and also impose certain duties on them. Certain rights may also be conferred on individuals by these treaties and corresponding duties on the States. To attain these rights or to enforce these duties, it is essential that international law should be implemented by States in their municipal spheres.

Public International Law is a well-researched work on international law. Since international law is taught almost in all the States of the world, an effort has been made, following in-depth research, to incorporate all important aspects of international law in this Book. As the subject of international law is very wide, it is next to impossible to deal with all its aspects in just one volume. Nevertheless, an attempt has been made to cover all the important aspects of international law in this book. There are 19 Chapters in the Book dealing with all important aspects of international law.

The text is written keeping in mind the course on Public International Law, prescribed by the Bar Council of India for BA.LLB and LLB students. It will also be a useful reference for LLM and PhD students. Further, this text will also be extremely useful for the Post-Graduate Diploma and Certificate Courses on International Law, particularly International Human Rights, International Humanitarian Law, and Refugee Law. The Book shall be useful *inter alia* for academicians, students, researchers, and libraries.

Key Features

- Contains a plethora of cases of ICJ, PCIJ, regional courts, such as the European Court of Human Rights, ad hoc tribunals, and domestic courts of various States
- Refers to a large number of international treaties and reports
- Includes Chapters on three important parts of International Law - law of peace, law of war, and international institutions
- Incorporates the most recent developments in international law such as *Report of the OHCHR Investigation on Sri Lanka (OISL)* adopted on 16 September 2015
- Covers different papers of international law prescribed in the curriculum of BA.LLB and LLB.

All Chapters have been dealt with in a comprehensive manner. [Chapter 1](#) of this book, entitled *Introduction*, discusses the definition and meaning of international law. It traces the evolution and developments and also discusses the codification of international law. The 3 theories, *i.e.*, positive or consensual theory, law of nature theory and Grotian or eclectics theory, as to the juridical basis of international law in the eighteenth century are covered comprehensively.

[Chapter 2](#), entitled *Sources of International Law*, discusses the two sources of international law – Traditional sources and so called, Modern sources. It covers all the elements within these sources in details.

[Chapter 3](#), entitled *Subjects of International Law*, contains the subjects of international law such as State, International Organizations, Individuals, National Liberation Movements and the Rights of self-determination, the Holy See and the Vatican City and various other subjects of international law.

[Chapter 4](#), entitled *Relationship between International law and municipal law*, gives a detailed account of the same. It covers the theories on relationship, theories concerning the application of international law within the municipal sphere, State practice on implementation of international law, conflict of laws: rule of interpretation.

[Chapter 5](#), entitled *Recognition*, deals with different aspects of Recognition, such as, theories of recognition, its types, recognition of Government, the legal consequences of recognition and recognition of other entities.

[Chapter 6](#) deals with *State Jurisdiction*. This chapter covers in details topics such as, Jurisdiction of national courts covering, territorial principle, nationality principle, protective principle and universality principle, Extradition, Immunity, etc.

[Chapter 7](#), entitled *State Responsibility*, discusses the various aspects of State responsibility, such as the theories on State responsibility, primary and secondary rules of State responsibility, attribution of conduct to a State, countermeasures not to affect certain obligations of State and exhaustion of local remedies rule.

[Chapter 8](#) deals with *Law and Practice of treaties*. It discusses all the aspects of treaties, such as, its definition, conclusion of treaties, reservations, legal effects of reservations, interpretation of treaties, amendment and modification of treaties, termination and suspension of the operation of treaties, registration of treaties and treaties between States and International Organizations.

[Chapter 9](#), entitled *Diplomatic and consular relations*, deals with the areas of diplomatic relations, the functions of a diplomatic mission, consular relations, laws relating to special or ad hoc missions, immunities of international organizations, prevention and punishment of crimes against internationally protected persons.

[Chapter 10](#) of the book which deals with *Air and Space Law*, contains the detailed discussions on Airspace law while covering topics like, sovereignty of States on airspace, conventional law on airspace, and customary and conventional law on outer space.

[Chapter 11](#), entitled *Law of the Sea*, covers the U.N. Convention on Law of the Sea, 1982, the 1994 Agreement relating to Implementation of Part XI of the 1982 Convention, internal waters, territorial waters, contiguous zone, exclusive economic zone, continental shelf, high seas, sea bed mining, prohibition on placement of nuclear weapons on seabed, settlement of disputes.

[Chapter 12](#), entitled *International Institutions*, discusses the Private and Public International Unions, Specialized Agencies, League of Nations, United Nations, conflicts between UN charter and other treaties.

Chapter 13 deals with the *International Court of Justice*, its organization, the appointment of judges, their rights and duties, term of office, seat of the court, ad hoc chambers, competence of the court, its jurisdiction, contentious cases, India's declaration accepting the compulsory jurisdiction, procedure of the court, provisional measures, finality and revision of the judgement, enforcement of the judgement, etc.

Chapter 14, entitled *Settlement of disputes by peaceful means*, covers legal and political disputes, the settlement of International disputes, the methods of dispute settlement, the settlement of disputes under regional arrangements.

Chapter 15, entitled *Use of force*, discusses in details, the Coercive methods, Prohibition of use of force, actions under Chapter VII of the UN Charter, uniting for peace resolution, right of self-defence, regional arrangements, etc.

Chapter 16, entitled *International Humanitarian Law*, deals with its origin and its development, Martens Clause, Geneva Conventions and Additional Protocols, prohibition on the use of certain weapons, international criminal tribunals, international human rights law and humanitarian law, applicability of international humanitarian law to UN forces, law on the safety of UN and associated personnel.

Chapter 17, entitled *International Criminal Court* deals with the jurisdiction of the court, the applicable law, the general principles of criminal law, defences and grounds for excluding criminal responsibility, composition and administration of the court, investigation and prosecution, the trial, penalties, appeal and revision, international cooperation and judicial assistance, assembly of States parties, reservation and withdrawal.

Chapter 18, entitled *Protection of refugees*, covers the historical background of refugee law, its meaning, the provisional measures for national security, the judicial status, the rights and duties of refugees under 1951 convention, welfare measures for refugees, administrative measures for the benefit of refugees, extradition of refugees, the role of UNHCR. It discusses the relation between refugee law and other laws such as humanitarian law and human rights law. Lastly, this chapter discussed about refugee protection in India.

Chapter 19 deals with *Protection of Human Rights*. This chapter covers the three generation human rights, human rights under the UN Charter and UDHR, promotion and protection of human rights under various conventions, such as ICCPR, ICESCR, CEDAW, Convention against Torture, Convention on Rights of Child, Convention on the Rights of Persons with Disabilities, and many others with their enforcement mechanism, Human Rights Council and regional human rights law.

I am thankful to all my Professors of Jawaharlal Nehru University and University of Delhi, who taught me international law and made me what I am today. I am also thankful to all my friends for motivating me at all the times. My special thanks are due to my parents, my wife Shalini, and her parents for their motivation and unending support and cooperation in the preparation of this book. The moral support extended by my loving children Parthvi and Lakshya is worth appreciating. I am also thankful to the library staff of Faculty of Law and Law Centre-II for assisting me in the preparation of this book.

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V. K. Ahuja

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CHAPTER 1

INTRODUCTION

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The writers of earlier times used the term “law of nations.” It was considered synonymous to the term “international law”. The term “law of nations” is derived from the Latin term *jus gentium*. It is, however, noteworthy that it used to refer to private rather than public law, and in no sense could be regarded as equivalent to present day international law. The term “international law” was first used by Jeremy Bentham in 1780. It is translation of the phrase *juris inter gentes* which was first used by Richard Zouche in 1650.¹

1.1 Definition and Meaning of International Law

According to L Oppenheim, “law of nations or international law is the name for the body of customary and conventional rules which are considered legally binding by civilised States in their intercourse with each other”.

Oppenheim and other writers such as J L Brierly and Kelsen used the terms “international Law” and “law of nations” synonymously and considered States as the only subject of international law. According to J L Brierly, “The Law of Nations, or International Law, may be defined as the body of rules and principles of action which are binding upon civilised States in their relations with one another”.²

The term law of nations is not an appropriate term as the international law is not applicable only to States but also to individuals, international organisations, non-State entities and others. Further, Oppenheim considered “customary and conventional rules” as the sources of international law. This is also incorrect as there are other sources of international law also such as general principles of law recognised by civilised nations, judicial decisions delivered by international court and tribunals and juristic writings.

According to William E Hall:

International law consists in certain rules of conduct which modern civilized States regard as being binding on them in their relations with one another with a force comparable

1. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 68.
2. See J L Brierly, *Law of Nations*, 1949, p 1.

in nature and degree to that binding the conscientious person to obey the laws of his country, and which they also regard as being enforceable by appropriate means in case of infringement.³

The definitions of international law given by the earlier writers did not define international law in true sense. These definitions were mainly defective on the source and subjects of international law. The definition of Oppenheim was modified by Sir Robert Jennings and Sir Arthur Watts, who edited his work in 1996. According to them, “international law is the body of rules which are legally binding on States in their intercourse with each other. These rules are primarily those which govern the relations of States, but States are not the only subjects of international law. International organisations and, to some extent, also individuals may be subjects of rights conferred and duties imposed by international law.”⁴

J G Starke defined international law:

as that body of law which is composed for its greater part of the principles and rules of conduct which States feel themselves bound to observe, and therefore, do commonly observe in their relations with each other, and which includes also:

- (a) the rules of law relating to the functioning of international institutions or organisations, their relations with each other, and their relations with States and individuals; and
- (b) certain rules of law relating to individuals and non-States entities so far as the rights or duties of such individuals and non-state entities are the concern of the international community.⁵

Starke tried to define international law comprehensively. International law is an evolving subject. The primary subjects of international law are States, but it is also applicable on other subjects in certain cases.

Today, international law may be defined as “*a body of law which consists of legal principles recognised as binding primarily on States; rules relating to international organisations; and certain rules of law binding on other subjects where their rights and duties are the concern of international community*”.

1.2 Evolution and Development of International Law

The international law was evolved much before the dawn of Christianity. For example, in ancient India, where there used to be many independent States, international law was observed to regulate their conduct. The two great epics of *Hindus* in India, *Ramayana* and *Mahabharata* refer lot of incidents where international law was followed. These epics are related to two major wars of that time. Rules of treaties, diplomatic immunity, international humanitarian law particularly non-execution of prisoners of war, certain practices of war, etc. can be deduced from these epics. Some of the rules and practices of that time find a place in the modern international law which is said to have evolved during the 16th and 17th centuries in Europe.

The Roman law has also influenced international law.⁶ The Romans had conventional treaties with the Jews, Syrians, and Spartans. In addition to this, they also recognised a form of unwritten international law which was intended to be applied to foreign nationals.⁷ According to Mark W Janis, “the Romans knew of a *jus gentium*, a law of nations, which Gaius, in the

3. William E Hall, *International Law*, 1924, p 1.

4. *Oppenheim's International Law*, Sir Robert Jennings and Sir Arthur Watts (Edns), vol 1, 1st Indian Reprint, 2003, p 4.

5. J G Starke, *Introduction to International Law*, 1st Indian Reprint, 1994, p 3.

6. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 67.

7. Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 9.

second century, saw as a law ‘common to all men,’ a universal law that could be applied by Roman courts to foreigners when the specific law of their own nation was unknown and when Roman law was inapposite”.⁸

The jurists have played an important role in the development of international law. An earlier jurist, Hugo Grotius, who was a poet, philosopher, mathematician, theologian, jurist, and diplomat, wrote *Mare Liberum* (Freedom of the Sea) and *De Jure Belli ac Pacis* (The Law of War and Peace) which were published in the year 1609 and 1625 respectively. On the basis of his later work, he was also described by some as “Father of Law of Nations”, the title which was disputed by many others. Grotius considered law of nature as an independent source of international law, apart from customs and treaties.

International law was first extended beyond Europe at the end of the 18th century and at the beginning of the 19th century to the States that succeeded the rebel European colonies of North and South America respectively.⁹ There was remarkable development in the international law during the 19th century. This was due to war, modernisation of world transport, new inventions, increase in adjudications by international arbitral tribunals among other things. A very large number of treaties were adopted since the middle of the 19th century. According to Hudson, 257 such instruments were concluded between 1864–1914.¹⁰

In the 20th century, many international organisations were established. The Permanent Court of Arbitration was established by the Hague Conference of 1899 and 1907. In 1919, the League of Nations was established. In 1921, an international judicial body, Permanent Court of Justice (PCIJ) was set up. The establishment of United Nations Organisation (UNO) in 1945 was one of the greatest events the world has ever seen. The PCIJ was succeeded by International Court of Justice (ICJ) in 1946. The International Labour Organisation, the International Civil Aviation Organisation amongst others were also established.

The International Law Commission (ILC) was created in 1947 which started the work of codification of international law. The ILC played a very significant role in the codification and progressive development of international law. It assisted the international community in the codification of international law in several areas. It is working continuously since its creation and we can find efforts made by ILC in certain areas which are still pending before the international community, such as ILC Draft Articles on Responsibility of States for Internationally Wrongful Acts of 2001.

The present day international law consists primarily of law-making treaties and international customs. The law-making treaties have been adopted in diverse fields, such as international humanitarian law, human rights, labour, nuclear testing, sea, intellectual property rights, space activities, international criminal law, international trade law, treaties and diplomatic and consular practice. The growth of international criminal law in the 20th and 21st centuries was exponential. The working of International Criminal Court (ICC) has proved beyond doubt that any individual, whether head of State or political party, military head, bureaucrat or any other person, who commits war crimes, genocide or crimes against humanity will be prosecuted and punished if found convicted.

The human rights and environment were the other areas where several treaties were adopted by the international community. The international law in these areas developed at a faster pace. The present day international law regulates the conduct of States in many fields. Where there is a void, efforts are made to fill such gap.

8. Mark W Janis, *An Introduction to International Law*, 1993, p 1.

9. D J Harris, *Cases and Materials on International Law*, 6th ed, 2004, p 12.

10. Hudson, *International Legislation*, 1931, vol 1, pp xix quoted in J G Starke, *Introduction to International Law*, 1st Indian Reprint, 1994, p 42.

1.3 Codification and Progressive Development of International Law

Codification of international law started since second half of the 19th century when several law-making treaties were adopted by States. Codification is defined to mean “the more precise formulation and systematisation of rules of international law in fields where there already has been extensive State practice, precedent and doctrine.”¹¹ The law on war and neutrality was codified to some extent by the Hague Conventions of 1899 and 1907. A codification conference was sponsored by the League of Nations in 1930 to examine the law on nationality, territorial waters and State responsibility. The conference failed to codify the law as there was no agreement amongst States on all aspects of the aforesaid subjects.

The codification of international law was done at a faster pace after the establishment of the UNO. Article 13(1)(a) of the UN Charter States that the General Assembly shall initiate studies and make recommendations for the purpose of promoting international co-operation in the political field and encouraging the progressive development of international law and its codification. With a view to promote the progressive development and codification of international law the General Assembly established International Law Commission (ILC) in 1947. Article 15 of Statute of the ILC defines “progressive development” to mean “the preparation of draft conventions on the subjects which have not yet been regulated by international law or in regard to which the law has not yet been sufficiently developed in the practice of States”.¹²

The ILC met for the first time in 1949. The ILC carried out its mandate of “progressive development of international law and its codification” over the years and dealt with a wide variety of subjects. Although the ILC Statute clearly distinguishes between codification and progressive development, the general observation is that it has never actually followed that distinction in its practice.¹³

The ILC dealt *inter alia*, with nationality, statelessness, law of treaties, non-navigational uses of international watercourses, high seas, basic rights and duties of States, succession of States and governments. It has been successful in achieving the object for which it was created. Some of the important instruments resulted from the work of ILC include, four Geneva Conventions on the Law of the Sea of 1958; Vienna Convention on Diplomatic Relations of 1961; Vienna Convention on the Law of Treaties of 1969; and Statute of International Criminal Court of 1998. Apart from that, ILC prepared draft articles on several subjects. One of the most important of them is Draft Articles on the Responsibility of States for Internationally Wrongful Acts of 2001.

The four Geneva Conventions on Law of the Sea of 1958 are the best example of codification and progressive development of international law. The Geneva Convention on High Seas is a codification of international law, whereas the other three conventions represent progressive development and improvement of pre-existing law.¹⁴

All works prepared by ILC do not result into treaties. But it does not mean that the efforts made by the ILC go waste. Its works may have normative power. Such work may fall in

11. United Nations, “Codification and Progressive Development of International Law”, available at <https://legal.un.org/cod/#:-:text=In%20contrast%2C%20the%20codification%20of,State%20practice%2C%20precedent%20and%20doctrine> (last accessed in January, 2021).

12. United Nations, “Codification and Progressive Development of International Law”, available at <https://legal.un.org/cod/#:-:text=In%20contrast%2C%20the%20codification%20of,State%20practice%2C%20precedent%20and%20doctrine> (last accessed in January, 2021).

13. See R Y Jennings, “Recent Developments in the International Law Commission: Its Relation to the Source of International Law”, in *International Law and Comparative Law Quarterly*, vol 13, 1964, pp 385, 386.

14. See also Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, pp 54–55.

Article 38(1)(d) of the Statute of International Court of Justice as the writings of the “most highly qualified publicists” and may be considered as subsidiary means for the determination of rules of law. The international tribunals as well as arbitral tribunals may also refer to the work of ILC in their judgements.¹⁵

Apart from ILC, the United Nations Commission on Human Rights; the Committee on Outer Space; and third United Nations Conference on Law of the Sea (UNCLOS III) have also contributed to the codification of international law in their respective fields by adopting several law-making treaties.¹⁶

1.4 The Juridical Basis of International Law

The juridical origin of international law has been a matter of controversies amongst the jurists. Some jurists considered international law as law while others challenged its existence. The following discussion will touch upon the issue as to whether international law is law? The various theories as to the juridical basis of international law will also find a place in the discussion.

1.4.1 Is International Law “Law”?

Some jurists have questioned the true legal character of international law. John Austin, an English jurist did not consider international law as law. He defined law as the command of a sovereign.¹⁷ Sovereign, according to him was a person who received the habitual obedience of the members of an independent society and who, in turn, did not owe such obedience to any other person.

Austin put positive law, where there was a command of sovereign, as discussed above in the category of “laws properly so-called” and international law in the category of “laws improperly so-called” as they lacked such command. Austin deduced that because international law had no sovereign capable of sanctioning the violation of its rules, it could not be true law but only “positive international morality”.¹⁸ According to him, international law was basically rules set and enforced by mere opinion or sentiments. International law regarded the conduct of sovereigns as related to one another and therefore, it was not positive law. The duties, which international law imposed were enforced by moral sanctions: by fear on the part of nations, or by fear on the part of sovereigns, of provoking general hostility, and incurring its probable evils. Apart from Austin, Bentham, Hobbs and Pufendorf also challenged the legal character of international law.

The positivists, such as Austin and the realists hold the view that there can be no international law until such time as the power to coerce States is concentrated in the hands of a single authority.¹⁹

The views of Austin and the aforesaid jurists about international law are incorrect. According to Sir Frederick, Pollock, the only essential condition for the existence of law are the existence

15. In *Immunity from Legal Process* case (1999) ICJ Rep 62, p 87, the ICJ and in *M/V Saiga (No.2)* case, (1999) 38 ILM 1323, paras 98, 133, 171, the International Tribunal on the Law of the Sea referred the Draft Articles on Responsibility of States for Internationally Wrongful Acts of 2001. See also *Enrica Lexie* case (*The Italian Republic v The Republic of India* concerning the *Enrica Lexie Incident*), PCA Award of 21 May 2020, PCA Case No. 2015-28, in which Permanent Court of Arbitration also referred to the Draft Articles on Responsibility of States for Internationally Wrongful Acts of 2001.

16. D J Harris, *Cases and Materials on International Law*, 6th Edn, 2004, p 65.

17. See John Austin, *The Province of Jurisprudence Determined*, 1832.

18. Charles Leben, *The Advancement of International Law*, 2010, p 166.

19. Raymond Aron, *Guerre et paix entre les nations*, 1962, pp 704–12.

of a political community, and the recognition by its members of settled rules binding upon them in that capacity, international law seems on the whole to satisfy these conditions.²⁰ Kelsen claimed that international law was law in its own right.

Further, the historical school of law shows that in many communities without a formal legislative authority, a system of law was in force. Such law was as good as made by a legislative authority in any State and had the same binding force. According to M D A Freeman, in the general consciousness of people lives positive law and hence we have to call it people's law (*volksrecht*).²¹ According to Savigny, the nature of any particular system of law was a reflection of the spirit of the people who evolved it. Law is a matter of unconscious growth. Brierly expressed his views on the existence of international law in the following words:

The best evidence for the existence of international law is that every actual State recognises that it does exist and that it is itself under obligation to observe it. States may often violate international law, just as individuals often violate municipal law, but no more than individuals do States defend their violations by claiming that they are above the law.²²

The foreign officers conducting international business treat questions of international law as legal questions before courts, whether national or international. In diplomatic controversies and in judicial or arbitral proceedings, the States use legal forms and methods and refer to precedents and authorities. In no way, they consider international law as a code of conduct of moral force and base their arguments on law and not on morality. Sir Frederick Pollock has rightly written in this regard that “the framers of State papers ... appeal not to the general feeling of moral rightness, but to precedents, to treaties, and to opinions of specialists”.²³

Article 38(1) of the Statute of International Court of Justice also provides that the function of the Court is “to decide in accordance with international law such disputes as are submitted to it”.

The rules of international law normally have the consent of States whether express or implied. The law making treaties are having same binding force on State parties as the State legislations have on the nationals of that State. Further, the great majority of the rules of international law are generally observed by all nations without actual compulsion, for it is generally in the interest of all nations concerned to honour their obligations under international law.²⁴

International law is also considered as part of the law of the land in certain States. In India, international customary law is considered as part of the law of the land.²⁵ In Britain also, customary international law was deemed automatically to be part of the common law as per “Blackstonian” doctrine, which is now applicable with certain qualifications and exceptions. In United States, according to Article VI(2) of the Constitution, treaties are considered as the supreme law of land. In the *Paquete Habana* case,²⁶ Gray J observed that “international law is part of our law, and must be ascertained and administered by the Courts of Justice of appropriate jurisdiction, as often as questions of right depending upon it are duly presented for their determination”.

1.5 Theories as to the Juridical Basis of International Law

There were three theories as to the juridical basis of international law in the 18th century — (i) positive or consensual theory; (ii) law of nature theory; and (iii) Grotian or eclectics theory.

20. Quoted in Brierly, *The Law of Nations*, 6th Edn, 1963; see D J Harris, *Cases and Materials on International Law*, 6th ed, 2004, p 3.

21. M D A Freeman, *Lloyd's Introduction to Jurisprudence*, 7th ed, 2001, p 921.

22. Brierly, *The Outlook for International Law*, 1944, p 5.

23. Frederick Pollock, *Pollock Oxford Lectures*, 1890, p 18.

24. Morgenthau, *Politics Among Nations*, 6th Edn, 1985, p 312.

25. *Vellore Citizens' Welfare Forum v UOI*, (1996) 5 SCC 647.

26. *Paquete Habana*, (1900) 175 US 677, p 700.

1.5.1 Positive or Consensual Theory

According to positivism or consensual theory, the binding force of international law flows from the consent of States. Positivist lawyers generally insist on the positive consent of States to establish understanding.²⁷ International law is formed from the realities of international life rather than its desirabilities. The positivists maintain that customs and treaties constitute the primary source of international law. They consider international law equivalent to a positive law which can be found in a State.

Gentilis (1552–1608) was perhaps the first of the early writers to clearly separate international law from ethics and theology and to treat this subject as a branch of jurisprudence. His writings show a marked departure from the doctrine of the law of nature and nations. He has also been considered as the founder of the positivist school.²⁸

In the 17th century the positivists were of minor importance, but in the 18th century leading exponents of this doctrine such as Bynkershoek, Moser and Martens strongly advocated the theory of positivism. Bynkershoek was of the opinion that the basis of international law was custom and treaties commonly consented to by the various States. He pointed out that as customs change, so the law of nations changes. Moser also stated that law of nations was to be found in custom and treaties — not in the law of nature but in the experience of men and nations.²⁹

The extremist positivists denied the very existence of law of nature so far as international law is concerned. However, the moderate positivists would admit the existence of the law of nature as an element of international law but would contend that this is a very minor element and that the great body of the law derives from the subjective will of the State, as manifested in well-established custom and law-making treaties.

Charles G Fenwick, a positivist, while criticising the binding force of law of nature stated that:

it is evident that a system of international law into which the law of nature enters as the chief constituent element cannot stand the test of critical analysis. ... If [Grotius and Vattel] assume to pronounce authoritatively that certain rules deduced from what they considered the law of nature were binding upon nations independently of their consent, we must rather be grateful to them for their boldness and high-mindedness than critical of their unscientific spirit.³⁰

The consent may be expressed in treaties or implied or tacit in customs. According to positivists, States consider international law binding by a process of voluntary self-restriction. Difficulty arises in case of new States as their consent cannot be found in pre-existing customary law. It has been suggested that consent for new States is implied, either specifically by their “first act” of State practice under an existing rule, or generally by acceptance of membership of the international community as the international community look to the new State to comply with the whole body of established international law.³¹

Another difficulty with this theory is to find consent of third parties where a law-making treaty creates some international obligations for them, eg Article 2(6) of UN Charter which provides that United Nations shall ensure that non-Member States act in accordance with the principles of UN Charter so far as may be necessary for the maintenance of international peace and security. This theory, in spite of having some weaknesses is based on a realistic and practical approach.

27. Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 10.

28. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 73.

29. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 77.

30. Charles G Fenwick, “The Authority of Vattel” in *American Political Science Review*, vol 7, 1913, p 395–405.

31. See Martin Dixon, *International Law*, 1st Indian Reprint, 2001, pp 15–16.

1.5.2 Law of Nature Theory

The theory of law of nature is in contrast to the theory of positivism. Naturalists are of the opinion that certain rules “are bound to exist regardless of state consent and that, beyond general principles of law, there are other sorts of non-consensual rules of international law.”³² The law of nature signifies the idealistic law based on the nature of man as a reasonable being. It is that body of rules which nature dictates to human reason. According to Grotius, the law of nations has two components: the *jus natural* or natural law of nations, which is a secularised law of nature, and the *jus gentium* or voluntary law of nations. The natural law of nations is based on reason; the voluntary law is based on will, i.e., the consent of States.³³ Grotius maintained that there was an essential morality and divine justice in the nature of things, and that nations as well as men ought to be governed by this universal principle.³⁴

Pufendorf denied that custom and treaties could ever be sources of international law. In his opinion no war could be considered justified unless all means to a peaceful settlement had first been exhausted. Christian Thomasius distinguished between the science of law and morals and between natural and positive law. He separated the natural rights of man from the legal rights acquired through man-made laws.³⁵ Thus, naturalist deny the existence of positive international law as the outcome of custom or treaties and maintain that international law is only part of the law of nature.

Different meanings were ascribed to law of nature, viz equity, justice, reasonableness, utility, general interests of community, necessity, or religious dictates.³⁶ The influence of the theory of law of nature may be found on human rights treaties, ILC Draft Articles on the Rights and Duties of States 1949 and in punishing the war criminals. The major weakness of this theory is that it is based on objectively correct moral principles and is not concerned with practical realities.

1.5.3 Grotian or Eclectics Theory

The supporters of this theory followed a middle position between the naturalist and the positivists. They treated natural law and the positive law of custom and treaties equally. Christian Wolff and Emmerich de Vattel were the chief exponents of this theory. According to Vattel, there were two kinds of law, the voluntary and the necessary law, both found in the law of nations. The first is that part of international law which consists of custom and treaties, while the second part constitutes natural law. Vattel based his theory of the equality of States on the idea of natural law. He was of the opinion that since States were made up of men and all men were by nature free and equal, it would follow that sovereign States should be regarded as free persons living together in a state of nature.³⁷

According to Vattel, nations manifest their intentions, based on their unquestionable judgement, so that other nations know how to behave and, most importantly, how the natural law of nations applies to their conduct.³⁸ He explained with the help of an example:

When the sovereign or ruler of the state declares war against another sovereign, it is understood that the whole nation declares war against another nation: for the sovereign

32. Mark W Janis, *An Introduction to International Law*, 1993, p 6.

33. R Bryant, *A World Rule of Law, A Way to Peace*, 1977, p 38.

34. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 74.

35. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 76.

36. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 74.

37. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 78.

38. Francesca Iurlaro, “Vattel’s Doctrine of the Customary Law of Nations between Sovereign Interests and the Principles of Natural Law” in *The Law of Nations and Natural Law*, 2019, p 292.

represents the nation, and acts in the name of the whole society [...]; and it is only in a body, and in her national character, that one nation has to do with another. Hence, these two nations are enemies, and all the subjects of the one are enemies to all the subjects of the other. In this particular, custom and principles are in accord.³⁹

According to Vattel, positive law must be distinguished, but not treated separately from, natural law: the two often overlap, but sometimes they do not. While positive law should not be confused with natural law, the latter has nevertheless to remain the guiding principle. By so doing, it assures the normative character of the law of nations as a whole.⁴⁰

Vattel wrote in his *Essay on the Foundation of Natural Law*, that natural law cannot be indifferent. “[N]atural law is universal. Since it requires us to do all that is most suited to our nature, there is no situation in which it can let us down; for in every situation in which there is a better option to take, we are ordered to take it and if it were possible to find a case of perfect indifference, no law would be of any use in resolving the matter”.⁴¹

1.6 Sanctions Under International Law

Enforceability is considered as a necessary characteristic of any system of law. Law may be observed without any compulsion. The requirement of sanction may not be necessary in all the cases. The great majority of the rules of international law are generally observed by all nations without actual compulsion, for it is generally in the interest of all nations concerned to honour their obligation under international law. The voluntary compliance of obligations by States under international law prevents the problem of enforcement from arising altogether. In some cases, however, enforcement mechanism may be required.⁴²

L Oppenheim defined law as “a body of rules for human conduction within a community which by common consent of this community shall be enforced by external power”.⁴³ Kelsen also was of the opinion that “law is a coercive order. It provides for socially organised sanctions”.⁴⁴ According to him, in international society, enforcement of the law is accomplished through the application of the principle of self-help. The legal order leaves the enforcement function to the individuals injured by a delict or illegality. He considered international law as true law because it provided sanctions, such as the adoption of reprisals, war, and the use of force generally. The employment of these sanctions was lawful as a counter-measure against a legal wrong but unlawful in all other cases. Kelsen stated:

These sanctions like the sanctions of national law consist in the forcible deprivation of life, liberty, and other goods, notably economic values. In a war human beings are killed, maimed, imprisoned and national or private property is confiscated and other legal rights are infringed.⁴⁵

The sanctions as envisaged by Kelsen were criticised and considered of primitive nature which could be used in a “decentralised” legal order. It is true that sanctions are available in international law but the unilateral use of armed force is limited by Article 2(4) of the UN

39. Vattel, *The Law of Nations*, p 509.

40. Francesca Iurlaro, “Vattel’s Doctrine of the Customary Law of Nations between Sovereign Interests and the Principles of Natural Law” in *The Law of Nations and Natural Law*, 2019, p 288.

41. Francesca Iurlaro, “Vattel’s Doctrine of the Customary Law of Nations between Sovereign Interests and the Principles of Natural Law” in *The Law of Nations and Natural Law*, 2019, p 295.

42. Morgenthau, *Politics Among Nations*, 1985, pp 312–13.

43. Quoted by Fitzmaurice, in “The Foundation of the Authority of International Law and the Problem of Enforcement”, 1956, *Modern Law Review*, vol 19, No 1.

44. Kelsen, *Principles of International Law*, 1952, p 5.

45. H Kelsen, “The Essence of International Law” in *The Relevance of International Law: Essays in Honor of Leo Gross*, K W Deutsch and S Hoffmann (Eds), 1968, p 87.

Charter which obligates Member States to refrain from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations. Further, the right of self-defence of States, which is their inherent right is available to them only when an armed attack occurs against them. The UN Charter, therefore, has restricted the liberty of States which they used to enjoy earlier by resorting to forcible measures, such as retorsion, reprisals, or war.

The Security Council of the United Nations may take enforcement action against a Member under Chapter VII of the UN Charter in case it make a threat to the peace, breaches peace or commits an act of aggression. Under Article 41, the Security Council may take actions which do not involve use of armed force such as complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations. Where action taken by Security Council under Article 41 proves to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security.

Although Article 51 entitles Member States to take action by military forces in self-defence, it certainly does not constitute a sanction. The State while exercising self-defence against an attacker, merely defends itself. It has no authority to enforce the law or to punish the attacker.⁴⁶

Sanctions are effective deterrent against continued violation of international law. According to Woodrow Wilson Centre:

Sanctions generally serve three diplomatic functions. They send a signal of international concern to an offending State, seek to modify the unacceptable behavior of a State toward other States or against its own citizens, and warn of stronger actions to follow – including the use of force.⁴⁷

There is also a mechanism in the UN Charter to enforce the judgements of the International Court of Justice. Article 94(2) provides that if any party to a case fails to perform the obligations incumbent upon it under a judgement rendered by the Court, the other party may have recourse to the Security Council. The Security Council may make recommendations or decide upon the measures to be taken to give effect to the judgement. This is the only situation where the Security Council may take executive sanction.⁴⁸

Article 6 makes provision for the expulsion of a Member from the United Nations. It provides that a Member of the United Nations which has persistently violated the Principles of Charter may be expelled from the organisation by the General Assembly upon the recommendations of the Security Council.

Apart from the sanctions available under UN Charter, references may also be made to other sanctions. The members of certain international organisations may be denied benefits if they fail to comply the provisions of constituent instruments of those organisations. The World Bank has the power to withhold development funds in certain circumstances. Similarly, benefits may be denied in the International Monetary Fund in case a member of the Fund fails to comply with its obligations. According to Friedmann, “if a borrowing State were to confiscate without compensation and in a discriminatory manner, the property of foreign

46. Josef L Kunz, “Sanctions in International Law” in *American Journal of International Law*, vol 54, 1960, pp 324–47, p 332.

47. Woodrow Wilson Centre, “Sharpening International Sanctions: Executive Summary”, in *Human Rights and Humanitarian Law: Developments in Indian and International Law*, South Asia Human Rights Documentation Centre (SAHRDC), 2008, p 78.

48. Josef L Kunz, “Sanctions in International Law”, *American Journal of International Law*, vol 54, 1960, pp 324–47, p 331.

investors ... it would find itself excluded from participation in further development aid.”⁴⁹ When international community exerts pressure on a State to comply with its international obligations, it may also be considered as sanction in its broader terms.

In international law, sanctions are also available against individuals. Pirates are liable to be apprehended and prosecuted by States wherever they are found.⁵⁰ Individuals were prosecuted and punished by Nuremberg Tribunal and Tokyo Tribunal after the Second World War for war crimes, crimes against peace and crimes and humanity. Ad hoc Tribunals were constituted by Security Council for former Yugoslavia (for ethnic cleansing and war crimes) and Rwanda (for the crime of genocide) to punish individuals. Individuals are being prosecuted by International Criminal Court (ICC) for crimes of genocide, war crimes and crimes against humanity. In addition, hijacking is punishable by Contracting Parties under the Hague Convention for the Suppression of Unlawful Seizure of Aircraft of 1970.

It is clear from the above discussion that sanctions are available in international law for States as well as individuals. Like municipal law, international law is also binding and enforceable.

49. Friedmann, *The Changing Structure of International Law*, 1964, p 91.

50. Articles 19, 21, Geneva Convention on the High Seas, 1958; Article 101–107, United Nations Charter on Law of the Sea, 1982.

CHAPTER 2

SOURCES OF INTERNATIONAL LAW

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Unlike international law, it is easy to ascertain and apply law in the municipal legal systems. The laws in the form of statutes or codes are available in the States and in case of any doubt on any specific issue, the courts are there to determine law while exercising compulsory jurisdiction on the parties. This is not so in the case of international law. Making international law is not as easy as is seen in the domestic sphere as there is no single body like legislature to make laws for all. It may sometimes take decades for a law to be made and brought into force on a specific subject matter at international level. Nevertheless, international law exists and the courts and tribunals are there to ascertain it and apply it to given cases.

As far as sources of international law are concerned, the same may be put in two categories: traditional sources and so called “modern sources”. The traditional sources are referred in Article 38(1) of the Statute of International Court of Justice (ICJ). These sources are (i) international conventions; (ii) international custom; (iii) the general principles of law recognised by civilised nations; (iv) judicial decisions; and (v) teachings of the most highly qualified publicists. The first three sources are primary sources, whereas the last two sources are secondary sources. In addition to the aforesaid sources, the Court may decide a case *ex aequo et bono*. The modern sources include the resolutions of General Assembly and Security Council. It is appropriate to reproduce Article 38 of the Statute of International Court of Justice:

- 1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:
 - a. International conventions, whether general or particular, establishing rules expressly recognised by the contesting States;

- b. International custom, as evidence of a general practice accepted as law;
 - c. The general principles of law recognised by civilised nations;
 - d. Subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.
2. This provision shall not prejudice the power of the Court to decide a case *ex aequo et bono*, if the parties agree thereto.¹

2.1 International Treaties

International treaties are important source of international law. Article 38(1) of the Statute of International Court of Justice puts international conventions on the first place. The ICJ, while deciding a case, shall apply international convention(s) on the disputing parties, provided they are also parties to such convention(s). The international convention or treaty may be bilateral or multilateral. The treaties give rise to rights and obligations for both the parties and are legally binding on them. A treaty may be “particular” or have “general” character.

A treaty normally lays down rules for the parties only. However, sometimes a multilateral treaty lays down rules for the entire international community. For example Article 2(6) of the UN Charter provides that “the Organisation shall ensure that States which are not Members of the United Nations act in accordance with these principles so far as may be necessary for the maintenance of international peace and security.” Thus, the non-Member States have been obligated to follow the principles laid down by Article 2 of the UN Charter.

A treaty may codify the existing customary law or create new rules. Where a treaty codifies customary law, the treaty and customs exist side by side. The rule will be applicable to States either as customary rule or conventional rule. In *Nicaragua v United States*,² the ICJ made the following observations:

[E]ven if the customary norm and the treaty norm were to have exactly the same content, this would not be a reason for the Court to hold that the incorporation of the customary norm into treaty law must deprive the customary norm of its applicability as distinct from that of the treaty norm. The existence of identical rules in international treaty law and customary law has been clearly recognized by the Court in the *North Sea Continental Shelf* cases. ... More generally, there are no grounds for holding that when customary international law is comprised of rules identical to those of treaty law, the latter “supervenes” the former, so that the customary international law has no further existence of its own.

The Court further stated that:

principles such as those of the non-use of force, non-intervention, respect for the independence and territorial integrity of States, and the freedom of navigation, continue to be binding as part of customary international law, despite the operation of provisions of conventional law in which they have been incorporated.³

2.2 International Customs

Customary international law is derived from widespread similar State practices over a period of time. Before proceeding further, it is pertinent to discuss the meaning of State practice.

1. Article 38 of the Statute of International Court of Justice is based on Article 38 of the Statute of Permanent Court of International Justice.

2. *Nicaragua v United States*, (1986) ICJ Rep 14, pp 94–95.

3. *Nicaragua v United States*, (1986) ICJ Rep 14, para 174.

2.2.1 Meaning of State Practice

State practice is defined by Akehurst as “any act or statement by a State from which views about customary law can be inferred; it includes physical acts, claims, declarations *in abstracto* (such as General Assembly resolutions), national laws, national judgments and omissions”.⁴

The State practice is not confined only to the external conduct of States with each other, such as bilateral or multilateral treaties, diplomatic correspondence, but also includes certain internal matters of States such as their domestic legislation, judicial decisions, policy statements, internal government memoranda, and ministerial statements in Parliaments and elsewhere.⁵ The International Law Commission (ILC) included the following in a non-exhaustive list of the forms that State practice may take: treaties, decisions of international and national courts, national legislation, diplomatic correspondence, opinions of national legal advisers and the practice of international organisations.⁶ According to Brownlie, evidence of custom may be found from “diplomatic correspondence, policy statements, press releases, the opinions of official legal advisers, officials manuals on legal questions, eg manuals of military law, executive decisions and practices, orders to naval forces etc., comments by governments on drafts produced by the International Law Commission, State legislation, international and national judicial decisions, recitals in treaties and other international instruments, a pattern of treaties in the same form, the practice of international organs and resolutions relating to legal questions in the United Nations General Assembly”.⁷ Sometimes, United Nations General Assembly resolutions and other non-binding statements and resolutions by multilateral bodies are also being viewed as evidence of customary international law.⁸

2.2.2 Elements of Customary law

There should be following elements in a practice before it is recognized as a customary law:

2.2.2.1 Antiquity

Ordinarily, a practice which has been followed consistently for quite long may become a custom. It is, however, not a general rule. A practice which has been followed by States in a constant and uniform manner as an obligation may become customary law in a short span of time. For example, rules relating to airspace and the continental shelf have emerged from fairly quick maturing of practice.⁹

Thus, the element of time is important but not indispensable in the formation of a custom. Ordinarily, a practice takes lot of time to become a custom as it is relatively a slow process. It is difficult to find *opino juris* immediately as it takes time to develop. However, sometimes State practices become customary law in comparative short span of time. There are examples of “instant” customs. For example, the President Truman’s Proclamation of 1945 by which he claimed that continental shelves adjacent to United States coastline up to a distance of 200 nautical miles and its resources would vest in the United States. Within a very short span of time, many other States made similar claims. Soon, a new customary law was in place. The Truman’s proclamation also found a place in the UN Convention on Law of the Sea in 1982.¹⁰

4. See Sloan, *United Nations General Assembly Resolutions in Our Changing World*, 1991, pp 71–75.

5. *Oppenheim’s International Law*, Robert Jennings and Arthur Watts, (Eds), 1996, p 26.

6. *Year Book of the International Law Commission*, vol II, 1950, pp 368–72.

7. Ian Brownlie, *Principles of Public International Law*, 2008, p 6.

8. Jack L Goldsmith and Eric A Posner, *The Limits of International Law*, 2005, p 23.

9. Ian Brownlie, *Principles of Public International Law*, 2008, p 7.

10. Conway W Henderson, *Understanding International Law*, 2010, pp 61–62.

In *North Sea Continental Shelf* cases,¹¹ denying the customary nature of Article 6 of the Geneva Convention on Continental Shelf of 1958, the ICJ observed:

Although the passage of only a short period of time is not necessarily, or of itself, a bar to the formation of a new rule of customary international law on the basis of what was originally a purely conventional rule, an indispensable requirement would be that within the period in question, short though it might be, State practice, including that of States whose interests are specifically affected, should have been both extensive and virtually uniform in the sense of the provision invoked; and should moreover have occurred in such a way as to show a general recognition that a rule of law or legal obligation is involved.¹²

It is difficult to ascertain the time frame in which a practice ripen into customary law, but the longer the period of time, the better the chances of establishing the legitimacy of a custom.

2.2.2.2 Uniformity of State Practice

The practice should be followed in a uniform manner. In other words, if the State practice is not followed uniformly and becomes divergent, then such a practice may not become customary international law. It is, however, noteworthy that complete uniformity is not required. A practice, if it is substantially uniform, may become a custom.

2.2.2.3 Consistent State Practice

The practice should have been followed by States consistently. If the practice is such which is discontinued or followed intermittently, then it may not be called as a custom.

2.2.2.4 *opinio juris sive necessitatis* (“an opinion of law”)

The practice should be followed by States as an obligation. If the States do not feel that they are required to follow a particular practice and adopt it only when it suits their interest, then such practice cannot be recognized as an international custom. Customary law, therefore emerges from State practice where actions “create justifiable expectations of future observance”.¹³

The aforesaid three essential elements of custom have been dealt with in detail below. In order to become customary international law, the practice should be such which is followed by a significant number of States without a major diversion. This is also evident from Article 38(1) of the Statute of International Court of Justice, which provides that “international custom, as evidence of a general practice accepted as law” is to be applied by the ICJ in deciding a case. Thus, the practice should be a general practice and not the one which is followed only by few States. At the same time, it is also not necessary that a practice should be observed by each and every State. It is however, important that the practice should not be modified time and again in a major way. Thus a practice should be followed by States repeatedly in a uniform manner under an obligation and over a period of time.

As already stated, the State practices should be consistent and should not be conflicting. The States should follow a particular practice not as a matter of convenience but as an obligation. This is called as *opinio juris sive necessitates*. In other words, it refers to sense of legal obligation on the part of States. *Opinio juris* is also described as the *psychological* component of customary international law because it refers to an attitude that States have towards a behavioural regularity. According to Rosenne, customary international law “consists of rules of law derived

11. *North Sea Continental Shelf*, (1969) ICJ Rep 3.

12. *North Sea Continental Shelf*, (1969) ICJ Rep 3, para 74.

13. Mark W Janis, *An Introduction to International Law*, 1993, p 5.

from the consistent conduct of States acting out of the belief that the law required them to act that way.”¹⁴ In *Lotus* case,¹⁵ the Permanent Court of International Justice observed:

Even if the rarity of the judicial decisions to be found ... were sufficient to prove ... the circumstances alleged ..., it would merely show that States had often, in practice, abstained from instituting criminal proceedings, and not that they recognized themselves as being obliged to do so; for only if such abstention were based on their being conscious of having a duty to abstain would it be possible to speak of an international custom. The alleged fact does not allow one to infer that States have been conscious of having such a duty; on the other hand, ... there are other circumstances calculated to show that the contrary is true.

In *North Sea Continental Shelf* cases,¹⁶ the ICJ stated that “not only must the acts concerned amount to a settled practice, but they must also be such, or be carried out in such a way, as to be evidence of a belief that this practice is rendered obligatory by the existence of a rule of law requiring it”.¹⁷ In *Continental Shelf Case (Libya v Malta)*,¹⁸ the ICJ observed:

It is of course axiomatic that the material of customary international law is to be looked for primarily in the actual practice and *opinio juris* of States, even though multilateral conventions may have an important role to play in recording and defining rules deriving from custom, or indeed in developing them.¹⁹

In order to deduce the existence of customary rules, the conduct of States should, in general, be consistent with such rules. Instances of State conduct inconsistent with a given rule should generally be treated as breaches of that rule, and not as indications of the recognition of a new rule.²⁰ In *Nicaragua* case,²¹ the ICJ observed that for a new customary rule to be formed, not only must the acts concerned amount to a settled practice, but they must be accompanied by the *opinio juris sive necessitatis*. Either the States taking such action or other States in a position to react to it, must have behaved so that their conduct is “evidence of a belief that this practice is rendered obligatory by the existence of a rule of law requiring it. The need for such a belief, i.e., the existence of a subjective element, is implicit in the very notion of the *opinio juris sive necessitates*”.²²

In *Nicaragua v United States*,²³ the ICJ in considering whether the Charter obligation to refrain from the threat or use of force was also a principle of customary international law, observed:

The court has however, to be satisfied that there exists in customary international law an *opinio juris* as to the binding character of such abstention. This *opinio juris* may, though with all due caution, be deduced from, *inter alia*, the attitude of the Parties and the attitude of States towards certain General Assembly resolution and particularly resolution 2625 (XXV). ... The effect of consent to the text of such resolutions cannot be understood as merely that of a “reiteration or elucidation” of the treaty commitment undertaken in the Charter. On the contrary, it must be understood as an acceptance of the validity of the rule or set of rules declared by the resolutions by themselves.

Criticising the *Jurisdictional Immunities of the State* case,²⁴ Alexander wrote that in general, the Court’s treatment of State practice was inconsistent. Although the need to identify “settled

14. Rosenne, *Practice and Methods of International Law*, 1984, p 55.

15. *S Lotus (France v Turkey)*, (1927) PCIJ Rep Series A No 10, p 28.

16. *North Sea Continental Shelf*, (1969) ICJ Rep 3.

17. *North Sea Continental Shelf*, (1969) ICJ Rep 3, para 77.

18. *Continental Shelf Case (Libya v Malta)*, (1985) ICJ Rep 13.

19. *Continental Shelf Case (Libya v Malta)*, (1985) ICJ Rep 13, pp 29–30, para 27.

20. *Nicaragua v United States*, (1986) ICJ Rep 14, p 98.

21. *Nicaragua v United States*, (1986) ICJ Rep 14, para 207.

22. *North Sea Continental Shelf*, (1969) ICJ Rep 3, p 44, para 77.

23. *Nicaragua v United States*, (1986) ICJ Rep 14, p 99, para 188.

24. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, International Court of Justice, dated 3 February 2012 available at <https://www.icj-cij.org/public/files/case-related/143/143-20120203-JUD-01-00-EN.pdf> (last accessed in January, 2021).

practice” was properly noted, to qualify as customary rules embodying the general agreement of States, such practice must be consistent, general, uniform, and durable. The small number of domestic decisions referred to by the Court, focusing on various separate aspects of sovereign immunity, is insufficient to represent a consistent and uniform practice demonstrating the general agreement of States through the expression of their legal conviction to that effect (*opinio juris*).²⁵

It is noteworthy that where a State opposes a particular rule of customary international law right from the beginning, when it is in its formative stage, it may not become binding at least on that State. In *Anglo-Norwegian Fisheries Case*,²⁶ the ICJ stated that Norway’s persistent opposition to any alleged 10-mile rule for bays (if at all it existed) could not be applied against it.

In Advisory Opinion on *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*,²⁷ the Court stated that the nature and scope of the right to self-determination of peoples, including respect for “the national unity and territorial integrity of a State or country”, were reiterated in the Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations. This Declaration was annexed to General Assembly resolution 2625 (XXV) of 24 October 1970 which was adopted by consensus. By recognizing the right to self-determination as one of the “basic principles of international law”, the Declaration confirmed its normative character under customary international law. The Court further stated that both State practice and *opinio juris* at the relevant time confirm the customary law character of the right to territorial integrity of a non-self-governing territory as a corollary of the right to self-determination.²⁸

2.2.3 Difference Between “custom” and “usage”

The terms “custom” and “usage” are not interchangeable. They carry different meanings in law. “Usage” means a habit of doing certain actions. Usages are not obligatory in character. They may be conflicting. On the other hand, a “custom” is a clear and continuous habit of doing certain actions. They are not conflicting. They are obligatory and binding in nature. Thus, custom in international law is different from mere usage, however well established, and it is also distinct from the rules which, however well observed, are recognized by States as being demanded by courtesy rather than by law.²⁹

2.2.4 Leading Cases

After discussing the essential elements of customary international law in detail, it will be appropriate to discuss the case law. In *Anglo-Norwegian Fisheries Case*,³⁰ the coast line of Norway was deeply indented by *fjords* and *sunds* (sound) and was fronted by a fringe of islands and rocks (the *skjaergaard*) which was close to mainland. Norway measured its territorial sea by drawing a straight baseline linking the outermost points of land along it. United Kingdom

25. Alexander Orakhelashvili, Jurisdictional Immunities of the State (Germany v. Italy; Greece Intervening) in “International Decisions”, *American Journal of International Law*, David P Stewart (Ed), vol 106, 2012, pp 609–616, p 614.

26. *Anglo-Norwegian Fisheries Case (United Kingdom v Norway)*, (1951) ICJ Rep 116, p131.

27. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, (2019) ICJ Rep 95, Advisory Opinion of 25 February 2019.

28. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, (2019) ICJ Rep 95, paras 155, 160.

29. See also IH Ph Diederiks-Verschoor and V Kopal, *An Introduction to Space Law*, 2008, p 10.

30. *Anglo-Norwegian Fisheries Case (United Kingdom v Norway)*, (1951) ICJ Rep 116.

challenged the legality of Norway's straight baseline system as Norway enclosed waters within its territorial sea that would have been high seas.

The Court concluded that the method of straight lines, established in the Norwegian system, was imposed by the peculiar geography of the Norwegian coast; that even before the dispute arose, this method had been consolidated by a constant and sufficiently long practice, in the face of which the attitude of Governments bears witness to the facts that they did not consider it to be contrary to international law. The Court considered that historical data produced lend some weight to the idea of the survival of traditional rights reserved to the inhabitants of the Kingdom over fishing grounds included in the 1935 delimitation. Such rights, founded on the vital needs of the population and attested by ancient and peaceful uses, may legitimately be taken into account in drawing a line which, moreover, appears to the Court to have been kept within the bounds of what is moderate and reasonable.

The Court finally held that the method employed by Norway to delimit its territorial waters was not contrary to international law. The principle of straight baseline was subsequently adopted in Geneva Convention on Territorial Waters and Contiguous Zone of 1958 and U.N. Convention on Law of the Sea, 1982.

In *North Sea Continental Shelf* cases,³¹ the dispute was related to the delimitation of the continental shelf between the Federal Republic of Germany and Denmark on the one hand and between the Federal Republic of Germany and Netherlands on the other. Both Denmark and Netherlands argued that delimitation of continental shelf should be done on the basis of "equidistance-special circumstances principle" as laid down in Article 6(2) of the Geneva Convention of Continental Shelf of 1958. Both of them were parties to Geneva Convention whereas Germany signed the Convention but never ratified it. Germany argued that delimitation should be done in such a way that every State gets a "just and equitable share" of the available continental shelf in proportion to the length of its sea frontage. Alternatively, the Germany claimed that if equidistance method were held applicable, the configuration of the German North Sea coast constituted special circumstances such as to justify a departure from that method of delimitation in this particular case.

Denmark and Netherlands argued that even if there was at the date of the Geneva Convention no rule of customary international law in favour of the equidistance principle, and no such rule was crystallised in Article 6 of the Convention, nevertheless such a rule has come into being since the Convention, partially because of its own impact, partially on the basis of subsequent State practice, and that this rule, being now a rule of customary international law binding on all States, including Germany, should be declared applicable to the delimitation of the boundaries between the parties' respective continental shelf areas in the North Sea.

The Court observed that not only must the acts concerned amount to a settled practice, but they must also be such, or be carried out in such a way as to be evidence of a belief that this practice is rendered obligatory by the existence of a rule of law requiring it. The need for such a belief, i.e. the existence of a subjective element, is implicit in the very notion of the *opinio juris sive necessitatis*. The States concerned must therefore feel that they are conforming to what amounts to a legal obligation. The frequency, or even habitual character of the acts is not in itself enough. There are many international acts, eg in the field of ceremonial and protocol, which are performed almost invariably, but which are motivated only by considerations of courtesy, convenience or tradition, and not by any sense of legal duty.

The States concerned agreed to draw or did draw the boundaries concerned according to the principle of equidistance. There is no evidence that they so acted because they felt legally

31. *North Sea Continental Shelf*, (1969) ICJ Rep 3.

compelled to draw them in this way by reason of a rule of customary law obliging them to do so — especially considering that they might have been motivated by other obvious factors. The Court accordingly concluded that if the Geneva Convention was not in its origins or inception declaratory of a mandatory rule of customary international law enjoining the use of the equidistance principle for the delimitation of continental shelf areas between adjacent States, neither has its subsequent effect been constitutive of such rule; and that State practice up-to-date has equally been insufficient for the purpose.

In the present case, the number of ratifications and accessions so far was hardly sufficient. As regards the time element, all the passage of only a short period of time was not necessarily a bar to the formation of a new rule of customary international law on the basis of what was originally a purely conventional rule, it was indispensable that State practice during that period including that of States whose interests were specially affected, should have been both extensive and virtually uniform in the sense of the provision invoked and should have occurred in such a way as to show a general recognition that a rule of law was involved. Some 15 cases had been cited in which the States concerned had agreed to draw or had drawn the boundaries concerned according to the principle of equidistance, but there was no evidence that they had so acted because they had felt legally compelled to draw them in that way by reason of a rule of customary law. The cases cited were in inconclusive and insufficient evidence of a settled practice.

The Court consequently concluded that the Geneva Convention was not in its origins or inception declaratory of a mandatory rule of customary international law enjoining the use of equidistance principle, its subsequent effect had not been constitutive of such a rule, and State practice up to date had equally been insufficient for the purpose.

A custom may be global, regional or local. A custom which is global binds all the nations. A regional custom binds only those States which are located in a particular region of the world, whereas a local custom binds only those States between which the custom has been established on the basis of aforesaid criteria. A particular practice between two States may constitute customary international law between them, even if it departs from a generally applicable rule.

It is noteworthy that regional rules are not necessarily subordinate to general rules of international law but may be in a sense “complementary” or “correlated” thereto. An international tribunal must, as between States in the particular region concerned, give effect to such regional rules as are duly proved to the satisfaction of the tribunal.³²

The *Asylum Case*³³ deals with regional custom. In this case, after a military rebellion broke out in Peru, the Colombian Ambassador in Lima granted asylum to M Victor Raul Haya de la Torre, head of American People's Revolutionary Alliance who was denounced as being responsible. The Colombian Ambassador informed the Peruvian Government that he had been qualified as a political refugee and asked for a safe conduct to enable him to leave the country. The Peruvian Government disputed this qualification and refused to grant a safe conduct following which the case was submitted to ICJ by both the States.

Colombia argued that on the basis of Bolivarian Agreement of 1911 on Extradition, the Havana Convention of 1928 on Asylum, the Montevideo Convention of 1933 on Political Asylum and according to American international law, she was entitled to qualify the nature of the offence for the purposes of the asylum. The Colombia claimed the right of unilateral and definitive qualification binding upon Peru.

32. *Asylum case (Columbia v Peru)*, (1950) ICJ Rep 266. See also JG Starke, *Introduction to International Law*, 1st Indian reprint, 1994, p 6.

33. *Columbia v Peru*, (1950) ICJ Rep 266.

The Court observed that Bolivarian Agreement, which was a treaty on extradition, recognised the institution of asylum in accordance with the principles of international law. But these principles did not entail the right of unilateral qualification. Further, it was not possible to deduce from them conclusions concerning diplomatic asylum as the treaty was on extradition.

The Havana convention on Asylum did not recognise the right of unilateral qualification either explicitly or implicitly. The Montevideo Convention on Political Asylum had not been ratified by Peru and could not be invoked against it. On alleged regional or local custom to Latin American States, the Court observed:

The Party which relies on a custom of this kind must prove that this custom is established in such a manner that it has become binding on the other Party. The Colombian Government must prove that the rule invoked by it is in accordance with a constant and uniform usage practised by the States in question, and that this usage is the expression of a right appertaining to the State granting asylum and a duty incumbent on the territorial State. This follows from Article 38 of the Statute of the court, which refers to international custom “as evidence of a general practice accepted as law.”

Colombia had failed to prove the existence, either regionally or locally, of a constant and uniform practice of unilateral qualification as a right of the State of refuge and an obligation upon the territorial State. The facts submitted to the Court disclosed too much contradiction and fluctuation to make it possible to discern therein a usage peculiar to Latin America and accepted as law.

It therefore followed that Colombia as the State granting asylum, was not competent to qualify the nature of the offence by a unilateral and definitive decision binding on Peru.

The *Right of Passage Over Indian Territory (Merits)*³⁴ case, deals with local custom between India and Portugal. Portugal claimed the right of passage with respect to two of its enclaves Dadra and Nagar-Aveli which were surrounded by territory of India and the coastal district of Daman. It was stated by Portugal that Government of India prevents it from exercising that right of passage due to which it became impossible for it to exercise its rights of sovereignty over the enclaves.

Portugal relied on the treaty of Poona of 1779 and on *Sanads* (decrees) issued by the Maratha ruler in 1783 and 1785, as having conferred on Portugal sovereignty over the enclaves with the right of passage to them. The Court was enabled to conclude from the Treaty of 1779 that the language employed therein was intended to transfer sovereignty. Further, it was found by Court that only a revenue tenure called a *jagir* or *saranjan* was granted to Portugal and not the sovereignty. There was, therefore, no question of any right of passage for the purpose of exercising sovereignty over enclaves.

However, the Court found that British recognized Portuguese sovereignty over the villages and subsequently it was tacitly recognized by India. As a consequence, the villages acquired the character of Portuguese enclaves and there developed a practice of right of passage. India objected to this practice and argued that no local custom could be established between only two States.

The Court observed that a local custom might be established between two States on the basis of long practice. The Court found it a common ground between the Parties that during the British and post-British periods, the passage of private persons and civil officials have not been subject to any restrictions beyond routine control. Merchandise other than arms and ammunition had also passed freely subject only at certain times, to customs regulations and

34. *Portugal v India*, (1960) ICJ Rep 6.

such regulation and control as were necessitated by consideration of securities or revenue. The Court therefore, concluded that with regard to private persons, civil officials and goods in general there had existed a constant and uniform practice allowing free passage between Daman and the enclaves, it was, in view of all the circumstances of the case, satisfied that that practice had been accepted as law by the Parties and had given rise to a right and a correlative obligation.

The requirement of a formal request before passage of armed forces could take place and had been repeated in an agreement of 1913. With regard to armed police, the Treaty of 1878 and the Agreement of 1913 had regulated passage on the basis of reciprocity, and an Agreement of 1920 had provided that armed police below a certain rank should not enter the territory of the other party without consent previously obtained; finally, an agreement of 1940 concerning passage of Portuguese armed police over the road from Daman to Nagar-Aveli had provided that, if the party did not exceed ten in number, intimation of its passage should be given to the British authorities within 24 hours, but in other cases, “the existing practice should be followed and concurrence of the British authorities should be obtained by prior notice as heretofore”.

The Court was, therefore, of the view that no right of passage in favour of Portugal involving a correlative obligation on India had been established in respect of armed forces, armed police and arms and ammunition.

The international customs are not only being applied by international courts and tribunals but also by national courts. In *Paquette Habana* case,³⁵ two coastal fishing boats under Spanish flag were operating near the Cuban coast during the Spanish-American war in 1898. They were intercepted and taken away as prizes of war by a United States naval squadron. The United States Supreme Court while reversing the orders of lower court which had upheld the seizure of vessels as a legal act of war, directed to return them to their owners. The Court while referring to various State practices regarding the status of fishing boats going back to the policy of Henry IV of England in the early 15th century, treaties, writings of publicists evidencing usage and decisions of courts, found that they uniformly proved the existence of a valid customary rule giving immunity to small fishing vessels from belligerent capture in time of war.

Customary international law is considered as universal because it binds all the States. It is, however, not binding on those States that have persistently objected to it during its development. Thus, customary international law is usually broader in scope than conventional law. Customary international law normally applies on all States whereas law contained in treaties or conventions is applicable to State parties only.

In comparison to treaty law, customary international law is less precise. However, such a lack of precision constitutes an amount of flexibility which lacks in treaty laws. Customary international law, therefore, may be responsive to new factual developments more easily and quickly. The ILC codifies customary international law in treaties. After codification, customary law and treaty law continue to exist side by-side. Thus, similar set of rules become applicable to States Parties of a treaty as well as to non-States Parties. However, as already stated, the customary international law may change with the passage of time, whereas the treaty rules remain unchanged unless the treaty is amended, which of course is not an easy task. For example, lot of debate is taking place with respect to the interpretation of the right of self-defence. The courts and tribunals are not free to interpret the treaty provisions in an unrestricted manner. However, customary law may keep on evolving and respond to a particular situation where the treaty provisions might have failed. Customary international law may also be useful as a dynamic source of law in emerging areas, which have not yet been addressed by treaties. However, greater care is to be exercised in establishing *opinion juris*.³⁶

35. *Paquette Habana*, (1900) 175 US 677.

36. *Human Rights and Humanitarian Law: Developments in Indian and International Law*, South Asia Human Rights Documentation Centre (SAHRDC), 2008, pp 52–53.

2.3 General Principles of Law Recognized by Civilized Nations

General principles of law recognized by civilized nations are the third primary source of international law. This source basically refers to the common municipal practice of sovereign States. In cases where there is near universal opinion on a legal issue within the borders of States, “it may be presumed that these rules are so fundamental as to be more or less automatically a part of international law.”³⁷ The rationale behind the incorporation of this source in Article 38(1) of the Statute of International Court of Justice is to provide a “safety net” in a situation where there is no custom or treaty on a particular issue. The established principles found in many national legal systems such as good faith, *res judicata*, estoppel, no one must be a judge of its own case, prescription, *lex posterior derogat priori* (a later statute takes away the effect of a prior one),³⁸ etc. should be applied by ICJ to resolve disputes in absence of customs or treaties. Thus, general principles of law as a source of international law was adopted to plug the gap and to avoid a situation in which international law could be undermined. General principles of law, in a way retained the “consensual basis” through the mechanism of acceptance of principles by States in their own legal systems.

In *Barcelona Traction Case*,³⁹ the ICJ observed that:

it is to rules generally accepted by municipal legal systems ..., and not to the municipal law of a particular State, that international law refers.

The phrase “civilised nations” has become out dated now. “The intention in using it, clearly, was to leave out of account undeveloped legal systems so that a general principle present in the principal legal systems of the world would not be disqualified from application in international law merely by reason or its absence from, for example, the tribal law of a backward people”.⁴⁰

The exact meaning of the term “general principles of law recognised by civilised nations” is not very clear and there have been certain questions with respect to its meaning, eg it is not very clear whether the term encompasses a compilation of rules common to national legal systems or whether it means a category of international rules to which all right-thinking States would subscribe. Further, it is also not very clear how many States would need to recognise a rule for it to qualify as a general principle.⁴¹

Oscar Schachter discerned five conceptions of general principles “invoked and applied in international law discourse and cases”:

- (i) The principles of municipal law “recognised by civilised nations”.
- (ii) General principles of law “derived from the specific nature of the international community”.
- (iii) Principles “intrinsic to the idea of law and basic to all legal systems”.
- (iv) Principles “valid through all kinds of societies in relationships of hierarchy and co-ordination.”
- (v) Principles of justice founded on “the very nature of man as a rational and social being.”⁴²

37. Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 10; see also Mark W Janis, *An Introduction to International Law*, 1993, p 5.

38. Roman A Kolodkin, “An Ad Hoc International Tribunal for the Prosecution of Serious Violations of International Humanitarian Law in the Former Yugoslavia”, *Criminal Law Forum*, vol 5, 1994, pp 381–99, p 398.

39. *Barcelona Traction, Light and Power Company Case (Second Phase)*, (1970) ICJ Rep 3, p 37.

40. Waldock, “General Course on Public International Law”, *Hague Recueil*, vol 106, 1962, p 54.

41. Hilary Charlesworth, “Law Making and Sources” in *The Cambridge Companion to International Law*, James Crawford and Martti Koskeniemi (Eds), 2012, pp 195–96.

42. Oscar Schachter, *International Law in Theory and Practice*, 1991, p 50 cited in Robert D Sloane, “On the Use and Abuse of Necessity in the Law of State Responsibility”, *American Journal of International Law*, vol 106, 2012, pp 447–508, p 470.

The principle that a party cannot take advantage of its own wrong, was described by the Permanent Court in the *Chorzow Factory* case⁴³ as a principle “generally accepted in the jurisprudence of international arbitration, as well as by municipal courts.” It is a general conception of law that every violation of an engagement involves an obligation to make reparation. Referring to circumstantial evidence, the ICJ in *Corfu Channel* case⁴⁴ stated that “this indirect evidence is admitted in all systems of law, and its use is recognised by international decisions”.

In Advisory Opinion on *Effect of Awards of Compensation made by the United Nations Administrative Tribunal*,⁴⁵ certain members of United Nations Secretariat were discharged by Secretary General from the services of United Nations without their assent. The UN Administrative Tribunal gave a number of awards in favour of these employees. The General Assembly submitted this matter to ICJ for advisory opinion to know whether “Having regard to the Statute of the United Nations Administrative Tribunal and to any other relevant instruments and to the relevant records, has the General Assembly the right on any grounds to refuse to give effect to an award of compensation made by that Tribunal in favour of a staff member of the United Nations whose contract of service has been terminated without his assent?”

The Court examined certain provisions of the Statute of UN Administrative Tribunal to know its character. Article 2(1) of the Statute provided that it “shall be competent to hear and pass judgment upon applications alleging non-observance of contract of employment of staff members of the Secretariat of the United Nations or of the terms of appointment of such staff member.” Article 2(3) prescribes that “in the event of a dispute as to whether the Tribunal has competence, the matter shall be settled by the decision of the Tribunal”. It is further prescribed that “the judgment shall be final and without appeal”, “the judgment shall state the reasons on which they are based.”

The Court stated that the examination of the relevant provisions of the statute shows that the Tribunal is established, not as an advisory organ or a mere subordinate committee of the General Assembly, but as an independent and judicial body pronouncing final judgments without appeal within the limited field of its functions. According to a well-established and generally recognised principle of law, a judgment rendered by such a judicial body is *res judicata* and has binding force between the parties to the dispute.

The parties to the dispute before the tribunal were the staff members and United Nations Organisation. The judgment, according to Article 10 of the Tribunal Statute was final and without appeal. The Statute provided no kind of review. The Court held that the obligatory character of these awards had been established by the authority of *res judicata* and the binding effect of the judgments of this Tribunal upon the United Nations Organisation.

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁴⁶ the ICJ stated that the fundamental character of the principle of *res judicata* appears from the terms of the Statute of the Court and the Charter of the United Nations. The principle of *res judicata* signifies that “the decisions of the Court are not only binding on the parties, but are final, in the sense that they cannot be reopened by the parties as regards the issues that have been determined, save by procedures, of an exceptional nature, specially laid down for that purpose”.⁴⁷ The Court further stated that

43. *Case Concerning the Factory at Chorzow Factory (Germany v Poland)*, (1927) PCIJ Series A No 9, p 31.

44. *Corfu Channel case*, (1949) ICJ Rep 4 p 18.

45. *Effect of Awards of Compensation made by the United Nations Administrative Tribunal*, (1954) *International Law Reports*, 310.

46. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.

47. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 115.

Article 59 of the Statute of the Court, notwithstanding its negative wording, has at its core the positive statement that the parties are bound by the decision of the Court in respect of the particular case. Article 60 of the Statute provides that the judgment is final and without appeal. Apart from that, Article 61 places close limits of time and substance on the ability of the parties to seek the revision of the judgment.⁴⁸

The Court cited two purposes of the principle of *res judicata*:

First, the stability of legal relations requires that litigation come to an end. The Court's function, according to Article 38 of its Statute, is to "decide", that is, to bring to an end, "such disputes as are submitted to it". Secondly, it is in the interest of each party that an issue which has already been adjudicated in favour of that party be not argued again. Article 60 of the Statute articulates this finality of judgments. Depriving a litigant of the benefit of a judgment it has already obtained must in general be seen as a breach of the principles governing the legal settlement of disputes.⁴⁹

It is noteworthy that the principle of *res judicata* does not preclude the ICJ from rendering an advisory opinion. When answering a question submitted for an opinion, the Court will consider any relevant judicial or arbitral decision.⁵⁰

In *Temple of Preah Vihear (Merits)* case,⁵¹ the subject of dispute was sovereignty over the region of the Temple of Preah Vihear. The boundary between Cambodia (then a protectorate of France) and Thailand (then Siam) in the area of Preah Vihear was to be determined by a Treaty between France and Siam of 13 February 1904. The treaty stated that it was to follow the watershed line and provided for the details to be worked out by a Mixed Franco-Siamese Commission. Survey was conducted by the Commission. The Siamese Government requested that French officers should map the frontier region. These maps were completed by a team of French officers, some of whom had been members of the Mixed Commission. The maps were never approved by the Commission which did not meet again after the map had been prepared. In the map, the area of Preah Vihear was shown on Cambodian side. The Siamese far from protesting at the error thanked the French and requested a further 15 copies. Cambodia principally relied on this map in support of her claim to sovereignty over the temple. Thailand, on the other hand contended that the map, not being the work of the mixed Commission, had no binding character. The map had never been accepted by Thailand. Alternatively, that if Thailand had accepted it, she had done so only because of a mistaken belief that the frontier indicated corresponded with the watershed line.

The Court concluded that in its inception, it had no binding character. It was clear from the record, however, that the maps were communicated to the Siamese Government as proposing to represent the outcome of the work of delimitation, since there was no reaction on the part of the Siamese authorities, either then or for many years, they must be held to have acquiesced. The Court held:

It is an established rule of law that the plea of error cannot be allowed as an element vitiating consent if the party advancing it contributed by its own conduct to the error, or could have avoided it, or if the circumstances were such as to put that party on notice of a possible error. The Court considers that the character and qualifications of the persons who saw the Annex I map on the Siamese side would alone make it difficult for Thailand

48. The Court stressed those limits in the Application made by Serbia and Montenegro for revision of the 1996 Judgment in the *Application for Revision case*, and found them inadmissible ((2003) ICJ Rep 12, para, 17).

49. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 116.

50. See *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, (2019) ICJ Rep 95, para 81.

51. *Cambodia v Thailand*, (1962) ICJ Rep 6.

to plead error in law. These persons include the members of the very Commission of Delimitation within whose competence this sector of the frontier had lain.⁵²

Furthermore, in 1930, Siamese Prince Damrong visited that disputed area and was officially received thereby the French resident at a ceremony at which the French flag was flown and Siamese failed to react. The Court concluded that Thailand had accepted the map and was precluded by her conduct from asserting that she did not accept it.

In *Island of Palmas* case,⁵³ Spain ceded Philippines to the United States by the Treaty of Paris of 1898 as a result of the Spanish-American War. In 1906, United States found that Dutch flag was flying at the Island. Netherlands claimed sovereignty over that. The matter was referred to arbitration.

The title alleged by the United States as constituting the immediate foundation of its claim was that of cession, brought about by the Treaty of Paris, which cession transferred all rights of sovereignty which Spain may have possessed concerning the Island of Palmas (or Miangas). The Arbitrator stated that Spain could not transfer more rights than what she herself possessed. The Netherlands found their claims to sovereignty essentially on the title of peaceful and continuous display of State authority over the Island. After examining the evidences, the Arbitrator upheld the Netherlands title of sovereignty which was acquired by continuous and peaceful display of State authority during the long period of time probably going back beyond the year 1700. The Arbitrator decided that the Island of Palmas forms in its entirety a part of Netherlands territory.

In addition to above discussed general principles of law, sovereign equality of States, precautionary principle and polluter pays principle may also be included in this source of international law. The principles underlying Genocide Convention of 1948 were also considered as general principles of law recognised by civilised nations. The Preamble to the Genocide Convention referred to the General Assembly Declaration on Genocide that genocide is a crime under international law, contrary to the spirit and aims of the United Nations and condemned by the civilised world.

In *Reservations to the Convention on Genocide, Advisory Opinion*,⁵⁴ the ICJ stated that:

the principles underlying the [Genocide] Convention are principles which are recognized by civilized nations as binding on States, even without any conventional obligation.

2.4 Judicial Decisions

This is a subsidiary source of international law. The decisions of international, regional, and national courts and tribunals may fall in this category. Apart from that, arbitral awards may also be considered.⁵⁵ These decisions and awards, though not binding as treaties and customs, may have a significant impact on the development of international law.

In comparison to the judgments of national courts of final authority, which have binding effect in the States concerned, the decisions of ICJ have been put at a lower level. This is evident from the wordings of Article 59 of the Statute of International Court of Justice which provides that "... the decision of the court has no binding force except between the parties and in respect of that particular case." Thus, the decisions of the ICJ do not operate as precedent. As per Article 59, their scope is limited as they are binding only on the parties to the case and

52. *Cambodia v Thailand*, (1962) ICJ Rep 6, p 26.

53. *Netherlands v United States*, (1928) 2 RIAA 829.

54. *Reservations to the Convention on Genocide*, (1951) ICJ Rep15, p 23.

55. The decisions of international commissions of inquiry, prize courts, mixed tribunals, etc. may also be taken into account under the category of "judicial decisions". See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 67.

with respect to that case only. Perhaps, the reason to give restrictive meaning to Article 59 was to prevent judges of ICJ from regarding themselves as quasi-legislators. In practice, however, the ICJ refers to its previous decisions and the international lawyers also give due importance to the decisions of ICJ. It is to be noted at the same time that international courts and tribunals, particularly ICJ refer to their previous judgments not because of the reason that they feel bound to do so, but because they feel it a matter of convenience. It is also noteworthy that national and international judicial decisions are scrutinised and used in all international law-making for a to a much greater degree. These decisions may also lead directly to the growth of customary rules of international law.

In *Asylum* case,⁵⁶ Judge Azevedo observed that “the decision in a particular case has deep repercussions, particularly in international law, because views which have been confirmed by that decision acquire quasi-legislative value, in spite of the legal principle to the effect that the decision has no binding force except between the parties and in respect of that particular case.”

The importance, however, given to judicial opinions is affected by factors such as the status and independence of the court, the availability of the written and oral pleadings and the quality and detail of the judicial reasoning.⁵⁷

The function of ICJ is to apply law, and not to make law. However, it has delivered a number of judgments and advisory opinions which have contributed to the development of international law, eg *Reparation Case*⁵⁸ (legal personality of the United Nations); the *Nottebohm Case*⁵⁹ (genuine link between individual and claimant State); *Anglo-Norwegian Fisheries Case*⁶⁰ (Straight baseline method for delimiting the territorial waters); and the *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons*.⁶¹ The same is true about the arbitral awards, such as *Alabama Arbitration Awards*⁶² (duties of a neutral State); *Island of Palmas Case*⁶³ (evidence of territorial sovereignty), etc.⁶⁴

2.5 Writings of the Jurists

Writing of the jurists is also a subsidiary source of international law. According to Article 38(1) of the Statute of International Court of Justice, the Court shall take into account teachings of the most qualified publicists of the various nations as a subsidiary means for the determination of rules of law.

The writers have played an important role in the development of international law. The earlier writers such as Suarez, Gentilis and Hugo Grotius influenced the early development of international law.⁶⁵ The writers have been making contribution in identifying and highlighting areas where international regulation should be introduced. Not only this, they have also been suggesting what the law ought to be in those areas by their writings. In doing so, they have referred to *inter alia*, Roman law, law of the Church, cannon law, law of the nature, and the State practice they could find.⁶⁶ The contribution of earlier writers was more important as the

56. *Asylum* case, (1950) ICJ Rep 332.

57. See A Boyle and C Chinkin, *The Making of International Law*, 2007, p 302–10.

58. Advisory Opinion on *Reparation for Injuries Suffered in the Service of the United Nations*, (1949) ICJ Rep 174.

59. *Nottebohm Case*, (1955) ICJ Rep 4.

60. *Anglo-Norwegian Fisheries Case (United Kingdom v Norway)*, (1951) ICJ Rep 116.

61. *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons*, (1996) 35 ILM 809.

62. *Alabama Claims Arbitration*, (1872) 1 Moore Intl Arbitrations 495.

63. *Island of Palmas Case*, (1928) 2 RIAA 829.

64. Rebecca MM Wallace, *International Law*, 1997, pp 25–26.

65. The other writers, *inter alia*, were Victoria, Zouche, Pufendorf, Bynkershoek, Moser, Martens and Vattel.

66. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 71.

international law was in its formative stage. Scholarly legal texts have been consulted by courts in the proceedings of cases.

In the *Paquete Habana and The Lola* case,⁶⁷ Justice Gray of the US Supreme Court stated that where there was no treaty, and no controlling executive or legislative act or judicial decision, recourse must be had to the works of jurists and commentators, who by years of labour, research and experience, have made themselves peculiarly well acquainted with the subjects of which they treat. Such works were resorted to by judicial tribunals, not for the speculations of their authors concerning what the law ought to be, but for trustworthy evidence of what the law really was.

The contesting parties refer to the writings of the jurists in their arguments. The ICJ, however, is very cautious in endorsing the views of particular jurists as their opinion may be biased towards their States or they may follow a particular ideology or belong to a particular school of law. Their views may not be impartial.

The academic work of publicists may happen as a result of individual efforts, or it may be the product of a body of scholars, which are well-known academies in different States. As the international law of 21st century has developed to a great extent due to the adoption of a large number of treaties in different areas and the ILC has been doing a commendable job for the codification of international law, the importance of this source is diminishing. The writings are being utilised not as a source of law, but as a means of ascertaining what the law actually is on a given subject.

2.6 Equity

Article 38(1) of the Statute of International Court of Justice does not refer to equity as a source of international law. Principles of equity in the sense of fairness, justice and reasonableness are akin to general principles. Equity reflects values, which may profoundly affect the application of the law. Equity in itself cannot be a source of law as it does not contribute to substantive law, but it can, nevertheless, affect the way substantive law is administered and applied. Equity plays a subsidiary role in supplementing existing rules.⁶⁸

Those who look to equity as a source of international law often appeal to natural law in order to strengthen their arguments and to escape accusations of subjectivism. Thus, the three terms — equity, justice and natural law tend to merge into one another.⁶⁹

In *Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*,⁷⁰ the ICJ made following observations with respect to equity:

Equity as a legal concept is a direct emanation of the idea of justice. The Court whose task is by definition to administer justice is bound to apply it. In the course of the history of legal systems the term “equity” has been used to define various legal concepts. It was often contrasted with the rigid rules of positive law, the severity of which had to be mitigated in order to do justice. In general, this contrast has no parallel in the development of international law; the legal concept of equity is a general principle directly applicable as law. Moreover, when applying positive international law, a court may choose among several possible interpretations of the law the one which appears, in the light of the circumstances of the case, to be closest to the requirements of justice.⁷¹

67. *Paquete Habana and The Lola*, (1900) 175 US 677.

68. Rebecca MM Wallace, *International Law*, 1997, p 24.

69. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 55.

70. *Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*, (1982) ICJ Rep 18.

71. *Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*, (1982) ICJ Rep 18, para 71.

In *North Sea Continental Shelf* cases,⁷² the ICJ stated that:

equity does not necessarily imply equality. There can never be any question of completely refashioning nature, and equity does not require that a State without access to the sea should be allotted an area of continental shelf, any more than there could be a question of rendering the situation of a State with an extensive coastline similar to that of a State with a restricted coastline. Equity is to be reckoned within the same plane, and it is not such natural inequalities as these that equity could remedy.

2.7 *Ex Aequo Et Bono*

According to Article 38(2), the Court has the power to decide a case *ex aequo et bono*, if the parties to the dispute agree thereto. Thus, the power of the Court to decide a case *ex aequo et bono*, that is to say, to ignore rules which are the product of any of the above three law-creating agencies (under Article 38(1)) and to substitute itself as a law-creating agency, depends on agreement of the parties to a dispute.⁷³

In *Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*,⁷⁴ the ICJ stated that “application of equitable principles is to be distinguished from a decision *ex aequo et bono*”. The Court can take such a decision only on condition that the Parties agree (Article 38, para 2, of the Statute), and the Court is then freed from the strict application of legal rules in order to bring about an appropriate settlement”.

2.8 Modern Sources of International Law

Apart from the sources as provided in Article 38(1) of the Statute of International Court of Justice, there are other sources of international law. These sources may not have the binding nature of *opinio juris* as found in customary law, nonetheless these may be respected by the States in their intercourse with each other. These may include, *inter alia* soft law, which is sometimes referred to as *lex ferenda* (law in the making or law as it should be). Soft law may consist of resolutions or declarations by a body of States. These resolutions and declarations are less than binding law but more than mere political statements. Soft law is also known in the sense of guidelines of conduct (such as those formulated by the United Nations concerning the operations of transnational companies) which are neither strictly binding norms of law, nor completely irrelevant political maxims, and operate in a grey zone between law and politics.⁷⁵ They may have considerable moral weight and may call for bold policy changes. The soft law may have an impact on international relations and that may later on convert into customary law or become the basis of treaties.⁷⁶ For example, the Universal Declaration of Human Rights was soft law when it was adopted in 1948. But now many provisions of it have been converted into customary international law.

2.8.1 Resolutions of General Assembly

The resolutions adopted by United Nations General Assembly are recommendations and statements on a given issue. Certain General Assembly resolutions such as Declaration on the

72. *North Sea Continental Shelf*, (1969) ICJ Rep 3, para 91.

73. Schwarzenberger, *International Law*, 1957, pp 26–27.

74. *Continental Shelf (Tunisia/Libyan Arab Jamahiriya)*, (1982) ICJ Rep 18, para 71.

75. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 54.

76. According to Seidl-Hohenveldern, the main value of international “soft law”, which is very important in the field of international economic law, is as a device “to overcome a deadlock in relations between States pursuing conflicting ideological and/ or economic aims”; see DJ Harris, *Cases and Materials on International Law*, 2004, p 62.

Granting of Independence to Colonial Countries and Peoples,⁷⁷ and Declaration on Principles of International Law Concerning Friendly Relations and Co-operation Amongst States in Accordance with the Charter of the United Nations,⁷⁸ though carry no legal obligation, do have considerable moral force.

The General Assembly resolutions may also have norm making value. General Assembly resolutions may also contribute to the formation of custom as a kind of “collective” State practice.⁷⁹ This fact has also been recognised by the International Court of Justice in its *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons*.⁸⁰ The Court observed:

General Assembly resolutions, even if they are not binding, may sometimes have normative value. They can, in certain circumstances, provide evidence important for establishing the existence of a rule or the emergence of an *opinio juris*. To establish whether this is true of a given General Assembly resolution, it is necessary to look at its content and the conditions of its adoption. It is also necessary to see whether an *opinio juris* exists as to its normative character. Or a series of resolutions may show the gradual evolution of the *opinio juris* required for the establishment of a new rule.

The Court further observed that:

the General Assembly resolution put before the Court declare that the use of nuclear weapons would be “a direct violation of the Charter of the United Nations”; and in certain formulations that such use “should be prohibited”. The focus of these resolutions has sometimes shifted to diverse related matters; however, several of the resolutions under consideration in the present case have been adopted with substantial numbers of negative votes and abstentions; thus, although those resolutions are a clear sign of deep concern regarding the problem of nuclear weapons, they still fall short of establishing the existence of an *opinio juris* on the illegality of the use of such weapons.⁸¹

It is noteworthy that not all resolutions of General Assembly have norm making value. To find out *opinio juris* in a resolution, as stated by ICJ in the aforesaid Advisory Opinion, it is necessary to look at its content and the conditions of its adoption. In *Texaco Overseas Petroleum Co and California Asiatic Oil Co v Libya*,⁸² the tribunal made following observation on the binding force of General Assembly Resolution on Permanent Sovereignty over Natural Resources of 1962:⁸³

On the basis of the circumstances of adoption ... and by expressing an *opinion juris communis* Resolution 1803 (XVII) seems to this Tribunal to reflect the State of customary law existing in this field. ... The consensus by a majority of States belonging to the various representative groups indicates without the slightest doubt universal recognition of the rules therein incorporated, i.e. with respect to nationalisation and compensation the use of the rules in force in the nationalising State, but all this in conformity with international law.⁸⁴

The Tribunal further stated that while Resolution 1803 (XVII) appeared to a large extent as the expression of a real general will, this was not at all the case with respect to the other resolutions. In particular, as regards the Charter of Economic Rights and Duties of States of 1974,⁸⁵ several factors contribute to denying legal value to those provisions of the document.

77. UNGA Res 1514 (XV) 14 December 1960.

78. UNGA Res 2625 (XXV) 24 October 1970.

79. See David Harris, *Cases and Materials on International Law*, 2010, p 54.

80. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 70.

81. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 71.

82. *Texaco Overseas Petroleum Co and California Asiatic Oil Co v Libya*, (1979) 53 International Law Review 389 : (1978) 17 ILM 1.

83. UNGA Res 1803 (XVII) (14 December 1962).

84. *Texaco Overseas Petroleum Co and California Asiatic Oil Co v Libya*, (1978) 17 ILM 1, para 87.

85. UNGA Res 3281 (XXIX) (12 December 1974).

The United Nations General Assembly has also adopted a good number of declarations in different policy areas. There may be policy agendas for States to follow that emerges from multilateral conferences. Agenda 21 for promoting the health of the planet that stemmed from the 1992 Earth Summit, is a good example. Further, code of conduct encouraged by United Nations may also be considered as soft law. One such example may be Code of Conduct for Transnational Corporations, which lays down ethical guidelines for them.

According to Prof. Louis Henkin, when States want to change the rules quickly, they may press for a resolution from the United Nations General Assembly in the form of a declaration, rather than going for the lengthy treaty making process. Such a declaration may result in creating new norms. The declaration which usually carry moral weight may finally open the doors for a new convention.⁸⁶

The legal force of a General Assembly resolution or declaration remains the same according to the UN Charter and there is no dispute about its legal strength whether it is adopted by majority vote or consensus. However, “declarations adopted by consensus are more persuasive and stand a better chance of being respected in practice because the States, having been involved in their negotiation, identify with them”.⁸⁷ The repeated General Assembly resolutions adopted by consensus or unanimously may be considered State practice, thus paving way for the establishment of new customary international law. Sometimes, General Assembly resolutions start a process which may eventually leads to the adoption of an international treaty.

2.8.2 Resolutions of Security Council

The resolutions of Security Council may also have binding effect and may be considered as source of international law. Within the legal framework of the United Nations Charter, notably on the basis of Articles 24, 25 and Chapter VII thereof, the Security Council may adopt resolutions imposing obligations under international law. The Court has had the occasion to interpret and apply such Security Council resolutions on a number of occasions and has consistently treated them as part of the framework of obligations under international law.⁸⁸ The ICJ stated:

The language of a resolution of the Security Council should be carefully analyzed before a conclusion can be made as to its binding effect. In view of the nature of the powers under Article 25, the question whether they have been in fact exercised is to be determined in each case, having regard to the terms of the resolution to be interpreted, the discussions leading to it, the Charter provisions invoked and, in general, all circumstances that might assist in determining the legal consequences of the resolution of the Security Council.⁸⁹

When interpreting Security Council resolutions, the Court must establish, on a case-by-case basis, considering all relevant circumstances, for whom the Security Council intended to create binding legal obligations. The language used by the resolution may serve as an important indicator in this regard.⁹⁰

86. Conway W Henderson, *Understanding International Law*, 2010, p 62.

87. D P Verma, “Legal Development, Law-Making, and Consensus as a Decision-Making Technique in the United Nations” in *U.N. for a Better World*, JN Saxena, Gurdip Singh, AK Koul (Eds), 1986, p 283.

88. See Advisory Opinion of ICJ on *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276 (1970)*, (1971) ICJ Rep 16; *Questions of Interpretation and Application of the 1971 Montreal Convention arising from the Aerial Incident at Lockerbie (Libyan Arab Jamahiriya v. United Kingdom)*, Provisional Measures, Order of 14 April 1992, (1992) ICJ Rep 3, paras 39–41; *Questions of Interpretation and Application of the 1971 Montreal Convention arising from the Aerial Incident at Lockerbie (Libyan Arab Jamahiriya v United States of America)*, Provisional Measures, Order of 14 April 1992, (1992) ICJ Rep 114, paras 42–44. See also Advisory Opinion of ICJ on *Accordance with International Law of the Unilateral Declaration of Independence in Respect of KOSOVO*, (2010) ICJ Rep 403, para 85, dated 22 July 2010.

89. Advisory Opinion of ICJ on *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Resolution 276 (1970)*, (1971) ICJ Rep 16, para 114.

90. Advisory Opinion of ICJ on *Accordance with International Law of the Unilateral Declaration of Independence in Respect of KOSOVO*, (2010) ICJ Rep 403, para 117, dated 22 July 2010.

2.8.3 Unilateral Acts/ Statements of States

Unilateral acts/statements by a State may also serve as binding law against that State. The unilateral acts include making claims or renouncing them (eg to territory), acts of recognition (eg of governments) or protest (eg against humanitarian intervention in another State) and the ratification of treaties.⁹¹ A State may accept a legal obligation by a public unilateral act made, either orally or in writing. In *Legal Status of Eastern Greenland (Denmark v Norway)*,⁹² the PCIJ stated that “as a result of the undertaking involved in the Ihlen declaration of July 22, 1919, Norway is under an obligation to refrain from contesting Danish sovereignty over Greenland as a whole, and a *fortiori* to refrain from occupying a part of Greenland.”

The announcement made by France that it would not conduct nuclear test after the 1974 test was regarded as binding on France by ICJ in *Nuclear Test Cases*⁹³ in 1974. The Court observed that:

[D]eclarations made by way of unilateral acts, concerning legal or factual situations, may have the effect of creating legal obligations. Declarations of this kind may be, and often are, very specific. When it is the intention of the State making the declaration that it should become bound according to its terms, that intention confers on the declaration the character of a legal undertaking, the State being thenceforth legally required to follow a course of conduct consistent with the declaration. An undertaking of this kind, if given publicly, and with an intent to be bound, even though not made within the context of international negotiations, is binding. In these circumstances, nothing in the nature of a *quid pro quo* nor any subsequent acceptance of the declaration, nor even any reply or reaction from other States, is required for the declaration to take effect, since such a requirement would be inconsistent with the strictly unilateral nature of the juridical act by which the pronouncement by the State was made.⁹⁴

It is noteworthy that not all unilateral statements imply obligations. In the *Frontier Dispute Case (Burkina Faso v Mali)*,⁹⁵ the Court stated that unilateral statements could only bind a State where it was apparent that the State intended to be bound by them.

In 2006, the ILC adopted Guiding Principles Applicable to Unilateral Declaration of States Capable of Creating Legal Obligations.⁹⁶ The Principles stated that “declarations publicly made and manifesting the will to be bound may have the effect of creating legal obligations. ... [T]he binding character of such declarations is based on good faith; States concerned may then take them into consideration and rely on them; such States are entitled to require that such obligations be respected.” The Principles further state that “a unilateral declaration entails obligations for the formulating State only if it is stated in clear and specific terms. In the case of doubt as to the scope of the obligations resulting from such a declaration, such obligations must be interpreted in a restrictive manner. In interpreting the content of such obligations, weight shall be given first and foremost to the text of the declaration, together with the context and the circumstances in which it was formulated”. Unilateral declarations, which may be formulated orally or in writing, should not conflict with a peremptory norm of general international law.

91. David Harris, *Cases and Materials on International Law*, 2010, p 45.

92. *Legal Status of Eastern Greenland (Denmark v Norway)*, (1933) PCIJ Rep Series A/B No 53.

93. *Nuclear Test Cases*, (1974) ICJ Rep 253.

94. *Nuclear Test Cases*, (1974) ICJ Rep 253, para 43.

95. *Frontier Dispute Case (Burkina Faso v Mali)*, (1986) ICJ Rep 554.

96. UN Doc A/61/10 p 367.

2.8.4 Memoranda of Understanding

The other sources under this category may include memoranda of understanding, which are usually technical rules produced by two States bureaucracies to handle common interests regarding commodity trades, antitrust laws, or such concerns as environmental damages and health issues.⁹⁷

2.9 Limitation on the Powers of Courts/Tribunal to Apply International Law

The statute of international courts and tribunals sometimes specify the sources of international law that may be used by such courts/tribunals in case a dispute is referred to them by the parties. It is possible that the courts/tribunals may not have the competence to invoke international law in its entirety. They may have powers to apply a few sources of international law, not all. Article 293 of the United Nations Convention on Law of the Sea is one such example. Article 293(1) provides that “a court or tribunal having jurisdiction ... shall apply this Convention and other rules of international law not incompatible with this Convention”. Article 293(2), however does not prejudice the power of such court or tribunal to decide a case *ex aequo et bono*, if the parties so agree. Thus, freedom of such court/tribunal to apply international law in totality has been curtailed by Article 293(1).

97. Conway W Henderson, *Understanding International Law*, 2010, pp 77–78.

CHAPTER 3

SYNOPSIS

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An entity which possesses international personality is an international person or a subject of international law. International personality means the “capacity to be a bearer of rights and duties under international law”.¹ In *Reparations for Injuries Suffered in the Service of the United Nations*,² the International Court of Justice (ICJ) stated that an entity was considered as subject of international law only when it was “capable of possessing international rights and duties, and has the capacity to maintain its rights by bringing international claims”.

States were earlier considered as the only subjects of international law. It was considered that international law was primarily concerned with the rights, duties and interests of the States; and governed the relations between them. But as the international law developed over the period of time, new entities also appeared at the international front. The new entities, which appeared, were capable of possessing international rights and duties and the procedural capacity to bring international claims. According to Brownlie, the principal formal contexts in which the question of personality has arisen have been: capacity to make claims in respect of breaches of international law, capacity to make treaties and agreements valid on the international plane, and the enjoyment of privileges and immunities from national jurisdictions.³

3.1 State

The State as a person of international law should possess the following qualifications:

- (i) Permanent population;
- (ii) A defined territory;
- (iii) Government; and
- (iv) Capacity to enter into relations with other States.⁴

The aforesaid qualifications of State as provided under Article 1 of the Montevideo Convention is commonly accepted as reflecting the requirements of statehood at customary international law. According to Schwarzenberger, "the state in quest of recognition must have a stable

1. Georg Schwarzenberger, *A Manual of International Law*, 1967, p 53.

2. *Reparations for Injuries Suffered in the Service of the United Nations*, (1949) ICI Rep 174.

3. Ian Brownlie, *Principles of Public International Law*, 2008, p 57.

4. Article 1, Montevideo Convention on Rights and Duties of States, 1933.

government, which does not recognise any outside superior authority; it must rule supreme within a territory — with more or less settled frontiers — and it must exercise control over a certain number of people.”⁵ The degree of governmental stability, extent of territory and size of population may vary considerably.

According to Harris, the requirements which are concerned solely with the effectiveness of the entity claiming the rights and duties of a State, have recently been supplemented by another requirement, i.e. independence is achieved by such entity in accordance with the principle of self-determination and not in the pursuance of racist policies of a political or moral character.⁶

A State should have permanent population irrespective of its size, as no lower limit can be prescribed. For example Nauru had around 9,000 inhabitants and Vatican City also has very few permanent residents. Similarly, there is no bar on the size of the territory of a State. Nauru is only 8 square miles in area and Vatican City has less than 100 acres of land.

As already stated, it is not necessary that a State should have exactly defined or undisputed boundaries. There were boundary disputes between several States, but it did not affect their statehood. Even today, we see such cases, eg the borders of Israel have not been settled, but it is still a State. In 1929, the German-Polish Mixed Arbitral Tribunal observed that “in order to say that a State exists and can be recognised as such ... it is enough that ... [its] territory has a sufficient consistency, even though its boundaries have not yet been accurately delimited.”⁷

Apart from the independent States, the dependent States, whether they are protectorates or colonial States that are on path from dependence to independence are also subjects of international law. This was the position in the post 1919 period when India became an original member of the League of Nations.⁸ The trust territories under the United Nations Trusteeship Council are also subjects of international law.

3.2 International Organisations

A significant number of international organisations have been established since 19th century. Organisations vary considerably in their objectives, importance and membership. There may be organizations which are limited to a particular region, such as European Economic Community, and organisation having almost universal membership such as United Nations Organization (UNO). In order to accomplish their tasks, it is *sine qua non* for the international organisations to possess international personality. These organisations may own, acquire and transfer property. They also have the capacity to enter into contractual and international agreements with States and other international organisations. The privileges, immunities, rights, duties and procedural capacity of international organisations vary from organisation to organization according to the terms of their constitutions or the constituent treaties.

In the *Reparations for Injuries Suffered in the Service of the United Nations*,⁹ the ICJ stated that whereas a State possesses the totality of international rights and duties recognised by international law, the rights and duties of an entity such as the UNO must depend upon its purposes and functions as specified or implied in its constituent documents and developed in practice. The Court further stated that the United Nations was exercising and enjoying functions and rights which could only be explained on the basis of the possession of a large measure of international personality and the capacity to operate upon an international plane. It was supreme type of international organisation and it could not carry out the intentions of

5. Georg Schwarzenberger, *A Manual of International Law*, 1967, p 55.

6. David Harris, *Cases and Materials on International Law*, 2010, p 92.

7. *Deutsche Continental Gas-Gesellschaft v Polish State*, (1929) 5 AD 11, p 15.

8. See Georg Schwarzenberger, *A Manual of International Law*, 1967, pp 60–61.

9. *Reparations for Injuries Suffered in the Service of the United Nations*, (1949) ICJ Rep 174.

its founders if it was devoid of international personality. While emphasizing that the United Nations was an international person, the Court stated:

That is not the same thing as saying that it is a State, which it certainly is not, or that its legal personality and rights and duties are the same as those of a State ... What it does mean is that it is a subject of international law capable of possessing international rights and duties, and that it has the capacity to maintain its rights by bringing international claims.¹⁰

The aforesaid ruling of ICJ in *Reparations* case demonstrated that the powers of international organisations extend beyond those expressly conferred by their constitutions or establishing treaties; further powers and duties may be implied as are necessary for the efficient performance of an organisation's functions.¹¹

In another case, the ICJ has also drawn attention to the responsibility of the United Nations for the conduct of its organs or agents.¹² The United Nations may be responsible in customary international law for human rights violations by the UN personnel.¹³ The notion of responsibility for wrongful conduct is a basic element in the possession of international legal personality.

In Advisory Opinion on the *Applicability of Article VI, of the Convention on the Privileges and Immunities of the United Nations*,¹⁴ the immunity of an officer of the United Nations was confirmed, even in respect of action taken against him by his own government.

In addition to United Nations, its specialised agencies; regional organisations, such as European Union, Organisation of African Unity, and Organisation of American States also possess international personality. Most of the specialised agencies of the United Nations are entitled to seek advisory opinions on the legal issues falling within their competence, from the ICJ.

The Treaty establishing the European Community (EC) provides for the EC to have “legal personality”.¹⁵ This legal personality has been interpreted to mean international personality.¹⁶ The EC is empowered to enter into agreements with non-Member States and organisations which can be classified as treaties in international law in a number of particular subject areas.

3.3 Individuals

Earlier, individuals were not considered as “subjects” of international law by certain authorities. They were only considered as “objects”. The rules which first developed in this regard imposed duties on States which were designed to prevent piracy and slave trade, and to protect the diplomatic representatives. Thus, the rights conferred on individuals under international law were basically considered duties for the States which were put under obligation to protect the rights of individuals. For example, the right of slave to become free was considered a duty for States to set them free. Pirates were considered as enemy of mankind and were liable to be arrested and prosecuted by States according to their national laws, as piracy is a crime of universal jurisdiction. It was maintained that the liability to punishment of pirates and the right of slaves to their freedom comes from municipal law, and not from international law.

10. *Reparations for Injuries Suffered in the Service of the United Nations*, (1949) ICJ Rep 174, p 179.

11. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 94.

12. *Difference relating to Immunity from Legal Process of a Special Rapporteur of the Commission on Human Rights*, (1999) ICJ Rep 62, pp 88–89.

13. See *Verdirame*, “Compliance with Human Rights in UN Operations” in *Human Rights Law Review*, vol 2, 2002, p 265.

14. *Applicability of Article VI, Section 22, of the Convention on the Privileges and Immunities of the United Nations*, (1989) ICJ Rep 177.

15. Treaty Establishing the European Community, Article 281.

16. *Commission v Council*, [1971] ECR 263, case 22/70.

No rule of international law can operate directly or indirectly upon individuals without some municipal legislative implementation of the rule.

In this regard, Kelsen has rightly pointed out that “the fact that the specification of the punishment is left to national law, and the trial of the pirate to national courts, does not deprive the delict and the sanction of their international character.”

Further, Kelsen was of the opinion that individuals alone were the subjects of international law. According to him, the concept of the State was used to express in technical language legal situations in which individuals alone were bound to do certain acts or receive certain benefits in the name of the collectivity of human beings to which they belong. Further, there is no real distinction between State law and international law. Both systems bind individuals, although international law as a matter of technique does so only mediately and through the concept of State.¹⁷

The theory of considering individuals as “objects” of international law did not get much support as individuals were subsequently, granted rights directly or indirectly enforceable against foreign States under certain treaties after the First World War. For example, the Upper Silesian Convention provided that “the question of whether or to what extent an indemnity for the abolition or diminution of vested rights must be paid by the state will be settled by the Arbitral Tribunal on the complaint of the person enjoying the right.”¹⁸

The individuals were provided with the rights under treaties to prosecute a claim against a foreign State in proceedings before municipal tribunals. In *Steiner and Gross v Polish State*,¹⁹ a national of Poland brought an action against his own country before the Arbitral Tribunal of Upper Silesia in 1928. The tribunal was established under the Upper Silesia Convention of 1922. The Convention provided that the tribunal was competent to adjudicate on questions of indemnity in respect of a justified claim. Poland disputed the jurisdiction of tribunal to entertain a claim of Polish national. Rejecting the contention of Poland, the tribunal held that the Convention “conferred in unequivocal terms jurisdiction upon the Tribunal irrespective of the nationality of the claimants, and, the terms of the Convention being clear, it was unnecessary to add to it a limitation which did not appear from its wording.” The Polish national, therefore had a right of action before the tribunal where the national could invoke his rights pursuant to the Upper Silesia Convention of 1922.²⁰

In the *Jurisdiction of the Courts of Danzig Case*,²¹ the Permanent Court of International Justice held that certain Danzig railway officials could bring an action before the Danzig courts against the Polish State Railways for the recovery of compensation payable under an international agreement binding on Poland and Danzig. The Court made significant observation in this regard:

It may be readily admitted that, according to a well established principle of international law, the Beamtenabkommen, being an international agreement, cannot, as such, create direct rights and obligations for private individuals. But it cannot be disputed that the very object of an international agreement, according to the intention of the contracting Parties, may be the adoption by the Parties of some definite rules creating individual rights and obligations and enforceable by the national courts.²²

The Treaty of 1907 between five Central American States establishing the Central American Court of Justice provided for individuals to bring cases directly before the Court.²³ Apart from

17. J G Starke, *Introduction to International Law*, 1989, pp 59, 60.

18. Upper Silesian Convention, Article 5. See also D W Greig, *International Law*, 1976, p 116.

19. *Steiner and Gross v Polish State*, (1928) 4 AD 291.

20. *Steiner and Gross v Poland*, (1928) 4 AD 291, p 292; see also Ole Spiermann, “Twentieth Century Internationalism in Law”, *European Journal of International Law*, vol 18, 2007, pp 785–814, 796–97.

21. *Jurisdiction of the Courts of Danzig Case*, (1928) PCIJ Rep Series B No 15.

22. *Jurisdiction of the Courts of Danzig Case*, (1928) PCIJ Rep Series B No 15, pp 17–18.

23. Malcolm N Shaw, *International Law*, 2008, p 259.

that, the Iran-United States Claims Tribunal had jurisdiction to hear claims brought directly by Iranian nationals against the United States and the vice versa.²⁴

The international human rights granted international personality on individuals in the form of rights. In 1948, Universal Declaration of Human Rights (UDHR) was adopted. The UDHR is not a binding treaty and is considered as a code of moral conduct. The provisions of UDHR may now be considered as customary rules of international law. In 1966, International Covenant on Civil and Political Rights as well as International Covenant on Economic, Social and Cultural Rights were adopted. The First Optional Protocol of International Covenant on Civil and Political Rights provides procedural capacity to individual to petition before Human Rights Committee directly if its State is also a party to the Protocol. The Human Rights Committee, is thus competent to receive and consider communications from individuals claiming to be victims of violations of any of the rights set forth in the Covenant.²⁵ Under European Convention on Human Rights, 1950 also, the individuals of State parties have been given the rights to petition before European Court of Human Justice.

In case concerning *Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, Preliminary Objections, Judgment²⁶, the ICJ made following important observations about individuals:

Owing to the substantive development of international law over recent decades in respect of the rights it accords to individuals, the scope *ratione materiae* of diplomatic protection, originally limited to alleged violations of the minimum standard of treatment of aliens, has subsequently widened to include, inter alia, internationally guaranteed human rights.²⁷

Another case of individuals possessing rights under international law is that of the astronauts. Certain rights have been conferred on astronauts under the 1968 Agreement on the Rescue of Astronauts, the Return of Astronauts, and the Return of Objects Launched into Outer Space.

In *La Grand (Germany v United States of America)*,²⁸ the ICJ concluded that Article 36(1) of Vienna Convention on Consular Relations of 1963 creates individual rights, which, by virtue of Article 1 of the Optional Protocol, may be invoked in this Court by the national State of the detained person.

In *Rights of Minorities in Upper Silesia (Minority Schools)*,²⁹ the Permanent Court of International Justice pronounced that a person belonging to a minority “is entitled to claim the advantages arising under the provisions which the Treaty comprises with regard to the protection of minorities”. This case involved provisions on minority protection as contained in the German–Polish Convention concerning Upper Silesia of 1922.

In addition, the individuals can have direct access to international courts and tribunals under the Inter-American Convention on Human Rights, 1969; the International Convention for the Elimination of All Forms of Racial Discrimination, 1965 and the Convention on the Settlement of Investment Disputes, 1965.

The international law also imposes personal responsibility on individuals. The Convention on the Prevention and Punishment of the Crime of Genocide of 1948 provides that genocide is punishable as a crime irrespective of whether those committing it “are constitutionally responsible rulers, public officials or private individuals.”³⁰

24. D J Harris, *Cases and Materials on International Law*, 2004, p 141.

25. See also Article 14 of the International Convention on the Elimination of All Forms of Racial Discrimination of 1966.

26. *Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, (2007) ICJ Rep 582.

27. *Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, (2007) ICJ Rep 582, para 39.

28. *LaGrand (Germany v United States of America)*, (2001) ICJ Rep 466, para 77.

29. *Rights of Minorities in Upper Silesia (Minority Schools)*, (1928) PCIJ Series A No 15, p 32.

30. The Convention on the Prevention and Punishment of the Crime of Genocide of 1948, Article 4.

Apart from that, after the conclusion of Second World War, the Nuremberg Tribunal and Tokyo Tribunal recognised individual responsibility for breach of international law. The Nuremberg Tribunal held:

That international law imposes duties and liabilities upon individuals as well as upon States has long been recognized. ... Crimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced.³¹

The aforesaid position was reaffirmed in the resolution of the General Assembly resolution of 11 December 1946.³² In addition to the Nuremberg Tribunal and Tokyo Tribunal, which were established to prosecute the alleged offenders of crime against peace and war crimes, the two *ad hoc* tribunals — International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia (1993) and International Tribunal for Rwanda for Genocide (1994) also established the personal responsibility of individuals who committed war crimes and genocide.

The most significant development in international law to fix personal responsibility of individuals took place in 1998 when Statute of International Criminal Court was adopted at Rome in 1998. The International Criminal Court (ICC) was established to prosecute alleged offenders of most serious crimes, including crime against peace, war crimes and crimes against humanity such as genocide. The ICC, being a permanent court, exercises criminal jurisdiction over individuals.

Certain law-making conventions in the field of international criminal law have empowered the States to take punitive actions against certain individuals who have committed certain international offences or crimes. These conventions include Geneva Convention Dealing with the Suppression of Counterfeiting Currency of 1929; the Geneva Convention Dealing with the Suppression of the International Drug Traffic of 1936; the Single Narcotic Drugs Convention of 1961; the Tokyo Convention on Offences and Other Acts Committed on Board Aircraft of 1963; the Hague Convention for the Suppression of the Unlawful Seizure of Aircraft of 1970; and the Montreal Convention for the Suppression of Unlawful Acts Against the Safety of Civil Aviation of 1971.³³

To conclude, it can easily be stated that individuals are subjects of international law as they have been accorded certain rights and also have been put under certain duties under international law. Further, they also possess procedural capacity under international law.

3.4 National Liberation Movements and the Right of Self-determination

The national liberation movements have the attributes of becoming subject of international law. The status of these movements has increased during the period of decolonisation. The issue of whether these movements should be considered subjects of international law or not, is bound up with the development of the law relating to non-self governing territories and the principle of self-determination.³⁴ For example, the Palestine Liberation Organisation (PLO) and its successor the Palestinian Authority enjoyed the status of permanent observer at the United Nations. The United Nations Security Council permitted the PLO to participate in its debate with the same rights of participation as conferred upon a Member State of the UN.

The national liberation movements have certain legal rights and duties. For example, these movements are accorded the capacity to conclude binding international agreements with other

31. *Nuremberg Judgment*, (1946) 41 AJIL 172.

32. UNGA Res 95(1), GAOR 1st Sess Pt II, 188.

33. J G Starke, *Introduction to International Law*, 1989, p 67.

34. Malcolm N Shaw, *International Law*, 2008, p 245.

international legal persons. Further, rights and obligations are set for them by international humanitarian law, most particularly by 1977 First Additional Protocol to Geneva Conventions of 1949. As already stated, these movements have also been accorded the observer status at the United Nations.³⁵

The right of peoples to self-determination did not find a place in the Covenant of League of Nations. It was, however, included in the Principles of the United Nations Charter as provided in Article 1. Article 1(2) of the UN Charter mentions one of the purposes of the United Nations as “to develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples...”.³⁶ It is also noteworthy that Chapter XI (Declaration regarding Non-Self-Governing Territories) and Chapter XII (International Trusteeship System) of the UN Charter may be considered relevant in the context of the development and definition of the right to self-determination.³⁷

In addition, the Declaration on the Granting of Independence to Colonial Countries and Peoples of 1960 also asserted that “all peoples have the right to self-determination; by virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.” The same language has also been used in International Covenant on Civil and Political Rights and International Covenant on Economic, Social and Cultural Rights of 1966. Apart from that, the States Parties, including those having responsibility for the administration of Non-Self-Governing and Trust Territories, have been put under obligation to promote the realisation of the right of self-determination.³⁸ The Declaration on Principles of International Law Concerning Friendly Relations, adopted in 1970 also reiterates the same position.

The ICJ has regarded the principle of self-determination as a legal one in context of non-self-governing territories and the territories after decolonisation.³⁹ In the *East Timor (Portugal v Australia)* case also, the ICJ stated that the right of peoples to self-determination was “one of the essential principles of contemporary international law”.⁴⁰

3.5 The Holy See and the Vatican City

The Vatican City has no permanent population and exists only to support the work of the Holy See. Italy carries out a substantial number of administrative functions with regard to the Vatican City. It is a party to many international treaties and is also a member of the Universal Postal Union and the International Telecommunications Union. There had been some doubts about the statehood of Vatican City, but it appears that by virtue of recognition and acquiescence in the context of its claim, it exists as a State. The Vatican City is closely linked with the Holy See and they are essentially part of the same construct.⁴¹

The Holy See is the central organisational authority of the Catholic Church. It is headed by the Pope and is an entity which has also be considered as a subject of international law. The Holy See has been a signatory to many international treaties and enjoys diplomatic relations with a large number of States. It has also been admitted to as a full member to specialised

35. Ian Brownlie, *Principles of Public International Law*, 2008, pp 62–63.

36. Article 55 of the UN Charter also reiterates “self-determination of peoples” in Chapter IX on International Economic and Social Co-operation.

37. Malcolm N Shaw, *International Law*, 2008, p 252.

38. Article 1 of both the Covenants.

39. Advisory Opinion of ICJ on *Namibia*, (1971) ICJ Rep 16 and Advisory Opinion of ICJ on *Western Sahara*, (1975) ICJ Rep 12.

40. *East Timor (Portugal v Australia)*, (1995) ICJ Rep 90, p 102.

41. Malcolm N Shaw, *International Law*, 2008, p 244.

agencies of the United Nations, such as the World Health Organisation and the International Labour Organisation.

With respect to the Holy See and the Vatican City, Graham has nicely written:

The view seems to be dominant today ... that the Holy See does, in fact, enjoy international personality. Furthermore, this personality of the Holy See is distinct from the personality of the State of Vatican City. One is a non-territorial institution, and the other a state. The papacy as a religious organ is a subject of international law and capable of international rights and duties.

[T]he fact that the Holy See is a non-territorial institution is no longer regarded as a reason for denying it international personality. The papacy can act in its own name in the international community. It can enter into legally binding conventions known as concordats. In the world of diplomacy the Pope enjoys the rights of active and passive legation. He can send and receive representatives who are public ministers in the sense of international law.⁴²

3.6 Other Subjects of International Law

Apart from the aforesaid subjects of international law, international public companies, which are characterised in general by an international agreement providing for co-operation between governmental and private enterprises may also be considered as subjects of international law. For example, INTELSAT, an intergovernmental structure for a global commercial telecommunications satellite system which was established in 1973; Bank of International Settlement (BIS); and Eurofima, which was established in 1955 by 14 European States in order to lease equipment to their railway administration, may be considered as subjects of international law.⁴³

Some private entities may also be subject of international law. For example, the International Committee of the Red Cross (ICRC), which is a private non-governmental organisation and is subject to Swiss law. The ICRC which was established in 1863 as a private Swiss association for fulfilling humanitarian tasks in times of war, was granted special functions under the four Geneva Red Cross Conventions of 1949. It can enter into international agreements with international persons. It has, in fact, already entered into international treaties with a number of States and international organisations. ICRC was also granted Observer status by the UN General Assembly “in consideration of the special role and mandates conferred upon it by the Geneva Conventions of 12 August 1949”.⁴⁴

A debatable category of international subjects is non-governmental organisations (NGOs) which is playing influential role at the international platforms. The increasing intensity of their activities shows that they have become “an integral part of the procedures and structures of global governance”.⁴⁵ NGOs work in a large variety of areas such as human rights, environment, humanitarian aid, peace, education, disarmament, trade unions, finances, transport, narcotics, refugees, minority rights, women and children, etc. to name a few. There are some well-known organisations such as Amnesty International, WWF, CARE, which have a large membership or supporters from all over the world. Their activities are very well recognised and they claim good reputation globally.

42. Graham, *Vatican Diplomacy: A Study of Church and State on the International Plane*, 1959, pp 186, 201 cited in D J Harris, *Cases and Materials on International Law*, 2004, pp 143–44.

43. Malcolm N Shaw, *International Law*, 2008, p 249.

44. UNGA Res 45/6 dated 16 October 1990; see also <https://www.icrc.org/en/doc/resources/documents/article/other/57jnuwj.htm> (last accessed in January, 2021).

45. Kerstin Martens, “Examining the (Non-)Status of NGOs in International Law”, *Indiana Journal of Global Legal Studies*, vol 10, Summer 2003, p 1.

The Secretary General of the United Nations Mr. Kofi A. Annan while emphasizing on the relationship between United Nations and private actors, stated in his Report that “we must spare no effort to make the United Nations a more effective instrument in the hands of the world’s peoples ... Let us resolve therefore ... [T]o give full opportunities to non-governmental organisations and other non-state actors to make their indispensable contribution to the Organisation’s work”.⁴⁶ It is noteworthy that “consultative status” has been conferred on many NGOs in the United Nations.

NGOs have also been acknowledged in the UN Charter. Article 71 provides that “the Economic and Social Council may make suitable arrangements for consultation with non-governmental organisations which are concerned with matters within its competence ...”. Despite the fact that there is a clear mention of NGOs in the Charter, it, however does not confer any legal personality on the NGOs.

At present, though the issue of legal personality of NGOs is unsettled, it is, however noteworthy that they are increasingly being recognised as relevant actors on the international platforms. Their influence and status have become more important. Looking at the growing role of the NGOs in the law making and other activities at the global level, it can be observed that some sort of restricted legal personality may be granted to them in due course of time.

In addition, with the increasing activities of multinational or transnational corporations worldwide, they may also fall in the category of subjects of international law. There activities affect individuals and environment across international boundaries. The arbitration facilities are also available to companies generally, whether transnational or not under the Convention for Settlement of Investment Disputes between States and Nationals of Other States, 1965. It is, however, noteworthy that they have not been accorded substantive international legal personality under international law.⁴⁷ Further, private persons on whom duties have been imposed by an international treaty, such as the International Convention on Civil Liability for Oil Pollution Damage of 1969, are also to be considered as subject of international law. This Convention imposes strict liability for oil pollution on the ship’s owner, which is usually a company.

The insurgents and belligerents,⁴⁸ subdivision of States, component States of certain States,⁴⁹ dependencies, protectorates, and certain non-State entities, such as the International Tin Council (ITC), the Organisation of Petroleum Exporting Countries (OPEC), etc. are also subjects of the international law. The International Centre for Settlement of Investment Disputes (ICSID) has full international legal personality. The legal capacity of the Centre includes the capacity (a) to contract; (b) to acquire and dispose of movable and immovable property; and (c) to institute legal proceedings.⁵⁰

To conclude, though the States are still the primary subjects of international law, they are no more the exclusive subjects. Other entities, as discussed above have also been recognised as subjects of international law.

46. Kofi A Annan, *We the Peoples: The Role of the United Nations in the 21st Century*, 2000, p 80, available at https://www.un.org/en/events/pastevents/pdfs/We_The_Peoples.pdf (last accessed in January, 2021).

47. D J Harris, *Cases and Materials on International Law*, 2004, p 142.

48. A belligerent community often represents a political movement aiming at independence and secession. See Ian Brownlie, *Principles of Public International Law*, 2008, p 63.

49. For example, the Constitutions of Switzerland and the Germany entitle component States to exercise certain of the capacities of independent States, including the power to make treaties. See also the Constitution of United States which enables the States of the Union to enter into agreements with other States of the Union or with foreign States with the consent of congress. See also Ian Brownlie, *Principles of Public International Law*, 2008, pp 58–59.

50. Article 18, ICSID Convention.

CHAPTER 4

RELATIONSHIP BETWEEN
INTERNATIONAL LAW AND
MUNICIPAL LAW

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4.1 Introduction

The issue how international law is implemented in the States becomes extremely important. The decisions of the courts vary from State to State. The constitutional provisions of States for the implementation of international law are also different. It may be possible for the municipal courts of a State to ignore international law until the same has been incorporated into the municipal law. But it is not possible for the State to ignore its obligations under international law before the international tribunals. The international tribunals give effect to international law even if the international law is in conflict with the municipal laws of the parties to the case. Even the Constitution of the parties will not be considered if the same is in conflict with their treaty obligations.

It is not out of place to refer *Encyclopaedia Britannica*,¹ which reads under the heading “Relationship with the Internal Law of States” as under:

To understand international law it is necessary to appreciate its close relationship to the ... municipal laws of States, for it is increasingly penetrating that sphere. Even traditional

1. Hugh Chisholm, *Encyclopaedia Britannica*, vol 12, Forgotten Books, 3 August 2018, p 424.

international law, at a time when it was supposed to be a law only between States, had many rules which required the co-operation of municipal courts for their realisation; for example the rules whereby foreign sovereigns and their diplomatic representatives enjoy certain immunities from the municipal jurisdiction. But a very large part of modern international law is directly concerned with the activities of individuals which come before municipal courts. So that it is in the municipal courts that a large and increasing part of international law is enforced.

4.2 Theories on Relationship

There are, broadly, two different methods by which precepts of international law are applied in the domestic courts of a State. By the first method it is accepted that international law is a part of the law of the land and that the domestic court therefore, in an appropriate case, applied international law, directly. According to the second method a domestic court can only apply and enforce its own municipal law, and the international law rule is binding only on the State itself, which must by legislation transform the precept into one of domestic law. The first method is employed in those countries (eg the Republic of Ireland, France and the German Federal Republic) where it is by the constitution provided that international law is part of the law of the land.²

There are two principal theories on the relationship of international law and municipal law. These theories are — monism and dualism.

4.2.1 Monism Theory

Monism theory recognises one system only — law in general. According to monism, international law and municipal law are concomitant aspects of one system i.e. law in general. Monism regards all law as a single unity composed of binding legal rules, irrespective of the fact whether those rules are obligatory on States, on individuals, or on entities other than States. The followers of this theory are of the view that international law and municipal law are both part of a universal body of legal rules binding all human beings collectively or singly. In other words, it is the individuals who really lie at the root of the unity of all law.

Kelsen's monistic theory is founded on a philosophic approach towards knowledge in general. According to Kelsen, the unity of the science of law is a necessary deduction from human cognition and its unity. He was of the opinion that there was no real distinction between State law and international law as both systems bound individuals, although international law did so only mediately and national law did so immediately. Apart from Kelsen, the theory of monism is also supported by Lauterpacht, Fitzmaurice and Starke. They support the view that since the behaviour of States is reducible to the behaviour of individuals representing the State, the alleged difference in subject matter between the two systems cannot be considered a difference. Consequently, there is no dichotomy between international law and municipal law and they operate without any conflict in their assigned spheres of action.³

4.2.2 Dualism Theory

According to dualism theory, international law and municipal law represent two entirely distinct legal systems. International law has an intrinsically different character from that of municipal law. The chief protagonists of dualism theory are positivist writers, Triepel and Anzilotti.

2. Hugh Chisholm, *Encyclopedia Britannica*, vol 12, Forgotten Books, 3 August 2018, p 424.

3. S K Verma, *An Introduction to Public International Law*, 1998, p 49.

Triepel makes two fundamental differences between the international law and municipal law. These differences are basically on subjects and juridical origin. According to Triepel, the subjects of municipal law are individuals, while the subjects of international law are States solely and exclusively. This view of Triepel does not seem to be reasonable as it is beyond doubt that the subject of international law includes individuals, international organisations, non-State entities, belligerents etc.

As far as juridical origins of international law and municipal law are concerned, they are different. The source of municipal law is the will of the State itself, whereas the source of international law is the common will of States which is known as *Gemeinwille*. This statement seems to be misleading and cannot escape criticism. It begs the question to say that the alleged *Gemeinwille* is a source of international law, because the really important question is under what circumstances an expression of the *Gemeinwille* can become decisive. The natural inference is that over and above the *Gemeinwille* there are fundamental principles of international law, superior to it and indeed regulating its exercise or expression.

The approach of Anzilotti was different from that of Triepel. He was of the view that there was a distinction between international law and State law according to the fundamental principles by which each system was conditioned. According to him, State law was conditioned by the fundamental principle or norm that State legislation was to be obeyed, while international law was conditioned by the principle *pacta sunt servanda*, which means agreements between States are to be respected. In view of Anzilotti, not only treaties but also rules of customary international law were binding by virtue of an implied pact or agreement between States.⁴

Anzilotti went to the extent of saying that the two systems were so different that there was no possibility of any conflict between them. The criticism of the Anzilotti's view lies in the fact that *pacta sunt servanda* does not represent the entire international law. It is just an underlying norm of international law and only a part of the much wider principle lying at the root of international law.

The theory of dualism also found support from some non-positivist writers and jurists on the basis that international law consists for the most part of customary and treaty rules, whereas municipal law consists mainly of judge-made law and of statutes passed by municipal legislatures.

4.3 Theories Concerning the Application of International Law Within the Municipal Sphere

After referring to the principal theories on the relationship of international law and municipal law, it becomes necessary to discuss the theories which are related to the application of international law within the municipal sphere.

4.3.1 Specific Adoption or Specific Incorporation Theory

The positivists are of the view that customary international law cannot directly and *ex proprio vigore* be applied within the municipal sphere by State courts or otherwise. In order to apply customary international law within the municipal sphere, it is necessary that such law must undergo a process of specific adoption by, or specific incorporation into municipal law. Since international law and municipal law constitute two strictly separate and structurally different systems, the former cannot impinge upon State law unless the latter, a logically complete system, allows its constitutional machinery to be used for that purpose.

4. See South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 48.

4.3.2 Transformation Theory

As far as international law consisting of treaties is concerned, there must be a transformation of the treaty provisions into municipal law. The transformation of treaty provisions into municipal law is not merely a formal requirement. It is a substantive requirement. The municipal law may be amended to incorporate the treaty provisions or the legislature of the Member States may enact enabling statute to give effect to treaty within their municipal spheres. It is only after the transformation of treaty law into municipal law that the provisions of the treaty may be extended to individuals in a State and not otherwise.

4.3.3 Delegation Theory

The critics of transformation theory put forward a theory of their own — the delegation theory. According to delegation theory, there is delegated to each State constitution by constitutional rules of international law, the right to determine when the provisions of a treaty are to come into force and manner in which they are to be embodied in municipal law. The procedure and methods to be adopted for this purpose by the State are a continuation of the process begun with the conclusion of the treaty. There is no transformation, there is no fresh creation of rules or municipal law, but merely a prolongation of one single act of creation. The constitutional requirements of State law are thus merely part of a unitary mechanism for the creation of law.⁵

4.4 State Practice on Implementation of International Law

4.4.1 British Practice

The position before English courts is something of a compromise between the two methods (monism and dualism).

4.4.1.1 Implementation of International Custom

In Britain, initially, the international customary law was considered to be part of the municipal law of Britain. The British courts used to apply international customs as such being part of the municipal law.

According to *Encyclopaedia Britannica*,⁶ there can be no doubt that the British courts regard customary international law as part of the law of the land, for they take “judicial notice” of it; that is to say they assume that the court knows the law and does not require it to be proved by calling expert evidence, as in cases involving foreign and external systems of law. The courts regard any relevant rule of customary international law as being incorporated into the domestic law.

4.4.1.1.1 Blackstonian/ Incorporation Doctrine

The Blackstonian doctrine was developed in Britain in 18th century.⁷ This rule is also known as incorporation doctrine, which provides that customary international law is deemed automatically to be part of the common law. According to the Blackstonian doctrine, “the law of nations, wherever any question arises which is properly the object of its jurisdiction is here adopted in its full extent by the common law, and it is held to be a part of the law of the land”.

5. J G Starke, *Introduction to International Law*, 1994, pp 76–77.

6. Hugh Chisholm, *Encyclopedia Britannica*, vol 12, Forgotten Books, 3 August 2018, p 424.

7. It was named after Sir William Blackstone (1723–1780) who affirmed it.

The doctrine was applied in several cases in 18th and 19th centuries.⁸ Subsequently, in 19th century itself, the applicability of international customs was made subject to two qualifications — firstly, that the international customs were not inconsistent with British statutes, whether the statute was enacted earlier or later in date than the particular customary rule. Secondly, international customs shall not be applicable where a British court of final authority has determined the scope of such customs. In such a case, all British courts shall be bound by those determinations, even though a divergent international customary rule has emerged at a later stage.

The reason for adopting these two qualifications, according to J G Starke was two developments in 19th century — (i) the crystallisation after 1830 of a rigid doctrine of the binding character of British judicial precedents, and (ii) the growth of the modern doctrine of parliamentary sovereignty in Great Britain.⁹

In *Chung Chi Cheung v R*,¹⁰ Lord Atkin observed:

The Courts acknowledge the existence of a body of rules which nations accept among themselves. On any judicial issue they seek to ascertain what the relevant rule is, and, having found it, they will treat it as incorporated into the domestic law, so far as it is not inconsistent with rules enacted by statutes or finally declared by their tribunals.

In *Compania Naviera Vascongado v Cristina SS*,¹¹ Lord MacMillan observed that:

it is a recognised prerequisite of the adoption in our municipal law of a doctrine of public international law that it shall have attained the position of general acceptance by civilized nations as a rule of international conduct, evidenced by international treaties and conventions, authoritative textbooks, practice, and judicial decisions.

The rule of automatic applicability of customary international law by British municipal courts is also subject to two exceptions apart from the aforesaid two qualifications. These exceptions are:

- (i) Acts of State by the executive, for example a declaration of war, or an annexation of territory, may not be questioned by British municipal courts, notwithstanding that a breach of international law may have been involved.
- (ii) British municipal courts regard themselves as bound by a certificate or authoritative statement on behalf of the executive (the Crown) in regard to certain matters falling peculiarly within the Crown's prerogative powers, such as the *de jure* or *de facto* recognition of States, the sovereign nature of governments, and the diplomatic status of persons claiming jurisdictional immunity on the grounds of diplomatic privilege, although such certificate or statement may be difficult to reconcile with existing rules of international law.¹²

In Britain, there is a presumption that Parliament did not intend to commit a breach of international law. Acts of Parliament and statutory instruments are to be interpreted so as not to conflict with international law.¹³ But this rule of construction is not applicable if the statute is otherwise clear and unambiguous, in which case it must be applied.

8. See *Buvot v Barbuitt* (*Barbuitt's case*), (1737) Cas temp Talb 281; *Triquet v Bath*, (1764) 3 Burr 1478; *Heathfield v Chilton*, (1767) 4 Burr 2015; *Dolder v Huntingfield*, (1805) 11 Ves 283; *Wolff v Oxholm*, (1817) 6 M & S 92, 100–06; *Novello v Toogood*, (1823) 1 B & C 554; *De Wutz v Hendricks*, (1824) 2 Bing 314; and *Emperor of Austria v Day and Kossith*, (1861) 30 LJ Ch 690, p 700.

9. J G Starke, *Introduction to International Law*, 1994, p 78.

10. *Chung Chi Cheung v R*, (1939) AC 160, p 168.

11. *Compania Naviera Vascongado v Cristina SS*, (1938) AC 485, p 497.

12. J G Starke, *Introduction to International Law*, 1994, p 80.

13. *The Le Louis*, (1817) 2 Dods 210, p 251; *Corocraft Ltd v Pan American Airways Inc*, (1969) 1 QB 616; *R v Chief Immigration Officer, Heathrow Airport, ex p Bibi*, (1976) 3 All ER 843, 847; *Vervaeke v Smith*, (1981) Fam 77.

4.4.1.2 Implementation of International Treaties

In Britain, while it is possible to regard customary international law as part of English law, a similar principle does not apply to treaties or the obligations created there under. A treaty, even though binding upon the United Kingdom internationally, will not be applied as such by the British courts. If the implementation of the treaty requires a change in the law it is for Parliament to make that change by statute. The reason for this rule is said to be that, since a treaty-making power is a prerogative power, it would, if the treaty were binding directly on the courts, amount to a power to legislate without Parliament.¹⁴

The British practice as to treaties is conditioned primarily by the constitutional principles governing the relations between the executive (Crown) and Parliament. It is the prerogative powers of the Crown to negotiate, sign, and ratify a treaty. But this does not mean that all treaties entered into by Crown on behalf of Britain become automatically applicable there. According to D W Greig:

While it is possible to regard customary international law as part of English law, a similar principle does not apply to treaty rules. Although a treaty duly ratified by the Crown will be binding under international law, if the treaty is to have internal effect in the sense of changing legal rights, it will require, enabling legislation by Parliament.¹⁵

The State practice relating to applicability of treaties in Great Britain may be categorised in the manner discussed below.

For certain specific classes of treaties, such as treaties modifying the belligerent rights of the Crown when engaged in maritime warfare, no legislation is required to give effect to such treaties. These kinds of treaties, however, should not increase the rights of the Crown in that connection.¹⁶ Such treaty should not involve major intrusion on the legislative domain of the Parliament and should not involve any alteration of municipal law.

Parliamentary approval is required for all those treaties which have been made subject to the approval of Parliament. For giving effect to these kinds of treaties, normally, statutes are adopted. Parliamentary approval in the form of statutes is mandatory for the treaties which involve the cession of British territory.

Parliamentary assent in the form of an enabling Act or legislation is also required to give effect to the treaties which — (i) affect the private rights of the British subjects; (ii) involve any modification of the common or statutory law; (iii) require the vesting of additional powers in the Crown; or (iv) impose additional financial obligations, direct or contingent, upon the Government of Great Britain.¹⁷

In *Attorney-General for Canada v Appellant*,¹⁸ the court made detailed observations regarding formation of treaty and its implementation. The court was of the opinion that it would be essential to keep in mind the distinction between (1) the formation, and (2) the performance, of the obligations constituted by a treaty, using that word as comprising any agreement between two or more sovereign States. Within the British Empire there is a well-established rule that the making of a treaty is an executive act, while the performance of its obligations, if they entail alteration of the existing domestic law, requires legislative action. Unlike some

14. Hugh Chisholm, *Encyclopedia Britannica*, vol 12, Forgotten Books, 3 August 2018, p 424.

15. D W Greig, *International Law*, 1976, p 60.

16. See *The Zamora*, (1916) 2 AC 77.

17. *Walker v Baird*, (1892) AC 491, p 497; *The Parlement Belge*, (1879) 4 PD 129; *A-G for Canada v A-G for Ontario*, (1937) AC 326, p 347; *Blackburn v A-G*, (1971) 2 All ER 1380; *Laker Airways Ltd v Dept of Trade*, (1977) QB 643; *Simsek v McPhee*, (1982) 56 ALJR 277, 280; See also J G Starke, *Introduction to International Law*, 1st Indian Reprint, 1994, p 82.

18. *Attorney-General for Canada v Appellant*, [1937] 1 AC 326.

other countries, the stipulations of a treaty duly ratified do not within the Empire, by virtue of the treaty alone, have the force of law. If the national executive, the government of the day, decide to incur the obligations of a treaty which involve alteration of law they have to run the risk of obtaining the assent of Parliament to the necessary statute or statutes. To make themselves as secure as possible they will often in such cases before final ratification seek to obtain from Parliament an expression of approval. But it has never been suggested, and it is not the law, that such an expression of approval operates as law, or that in law it precludes the assenting Parliament, or any subsequent Parliament, from refusing to give its sanction to any legislative proposals that may subsequently be brought before it. Parliament, no doubt, has a constitutional control over the executive. But it cannot be disputed that the creation of the obligations undertaken in treaties and the assent to their form and quality are the function of the executive alone. Once they are created, while they bind the State as against the other contracting parties, Parliament may refuse to perform them and so leave the State in default. In a unitary State whose Legislature possesses unlimited powers the problem is simple. Parliament will either fulfill or not treaty obligations imposed upon the State by its executive. The nature of the obligations does not affect the complete authority of the Legislature to make them law if it so chooses. But in a State where the Legislature does not possess absolute authority, in a federal State where legislative authority is limited by a constitutional document, or is divided up between different Legislatures in accordance with the classes of subject-matter submitted for legislation, the problem is complex. The obligations imposed by treaty may have to be performed, if at all, by several Legislatures; and the executive have the task of obtaining the legislative assent not of the one Parliament to whom they may be responsible, but possibly of several Parliaments to whom they stand in no direct relation. The question is not how the obligation is formed, that is the function of the executive; but how is the obligation to be performed, and that depends upon the authority of the competent Legislature or Legislatures.

As far as applicability of treaty provisions are concerned, where a statute contains provisions which are unambiguously inconsistent with those of an earlier treaty, a British municipal court must apply the statute in preference to the treaty. However, where the statute is ambiguous, and its provision have been conditioned by a previously concluded treaty, the court may look at the treaty for the purpose of interpreting the ambiguous statutory language, notwithstanding that the statute does not specifically incorporate or refer to the treaty. Where a treaty has been duly implemented by legislation, this enactment will prevail over conflicting earlier “unilateral” legislation.¹⁹

Lord Denning observed in *Corocraft Ltd v Pan American Airways Inc.*²⁰

The Warsaw Convention is an international convention which is binding in international law on all the countries who have ratified it: and it is the duty of these courts to construe our legislation so as to be in conformity with international law and not in conflict with it.

It is noteworthy that the rules relating to the British practice as to the applicability of treaties are subject to the special exception of the European Convention on Human Rights and Fundamental Freedoms of 1950²¹ as well as of the European Communities Treaties.

4.4.2 Practice of United States

The practice of United States in implementing customary rules of international law and treaty law in its municipal courts are different.

19. *Ostime v Australian Mutual Provident Society*, (1959) 3 All ER 245, p 248.

20. *Corocraft Ltd v Pan American Airways Inc.*, (1969) 1 All ER 80.

21. *Malone v United Kingdom*, (1984) ECHR 10 (Application no. 8691/79).

4.4.2.1 Implementation of International Custom

In United States, the customary rules of international law are normally administered as part of the law of the land.²² In *The Paquete Habana*, Gray J observed:

International law is part of our law, and must be ascertained and administered by the Courts of Justice of appropriate jurisdiction. ... For this purpose, where there is no treaty and no controlling executive or legislative act or judicial decision, resort must be had to the customs and usages of civilized nations.

The Supreme Court of the United States while exempting the two small fishing boats from capture as prize of war by applying the customary rule of international law, observed:

This rule of international law is one which Prize Courts, administering the law of nations, are bound to take judicial notice of, and to give effect to, in the absence of any treaty or other public act of their own government in relation to the matter.²³

It was also observed that an American court was entitled to ascertain the rules of international law on a particular point by referring to textbooks, State practice, and other sources.

In the *Interhandel* case,²⁴ the United States asserted in argument that international law was applied and administered by domestic courts as part of the law of the land. Further, in *United States v Montgomery*,²⁵ the Court of Appeals for the 11th Circuit acknowledged that in a proper case a defendant could justify a violation of domestic law on the ground that it was inconsistent with international law. In *Amerada Hess Shipping Corp v Argentine Republic*,²⁶ a US Court of Appeals held that, for the purposes of the case with which it was dealing, international law was to be applied as it had evolved rather than as it had been at the date the statute in question was enacted. This judgment, however, was reversed by the Supreme Court on other grounds.²⁷

The universal jurisdiction in respect of certain grave crimes of an international character accepted in customary international law is recognised and applied by the courts of United States.²⁸

In applying customary international law, the courts may be guided, or even bound, by suggestions or statements made to them by the executive branch of government on certain matters affecting the conduct of foreign relations. By the Aliens Tort Claims Act, federal courts have jurisdiction in any civil action by an alien for a tort “committed in violation of the law of nations or a treaty of the United States”.²⁹

In *Pauling v McElroy*,³⁰ however, a federal court refused to give effect to the principle of the freedom of the high seas in a suit brought by individuals to restrain the government from detonating nuclear weapons in the Marshall Islands. Moreover, customary rules of international law not accepted or disputed by the United States, will not be applied in the courts of United States.³¹

22. *The Paquete Habana*, (1900) 175 US 677, p 700. See also *The Nereide*, (1815) 9 Cranch 388; *United States v Smith*, (1820) 5 Wheaton 153; *The Scotia*, (1871) 14 Wallace 170; *Respublica v De Longchamps*, (1784) 1 Dall 111; and *United States v Melekh*, (1960) 190 F Supp 67.

23. *The Paquete Habana*, (1900) 175 US 677, p 708.

24. *Interhandel* case (*Switzerland v United States*), (1959) ICJ Rep 6.

25. *United States v Montgomery*, (1986) 80 AJIL 346.

26. *Amerada Hess Shipping Corp v Argentine Republic*, (1987) 79 ILR 1, p 11.

27. *Amerada Hess Shipping Corp v Argentine Republic*, 81 ILR 658.

28. *Denjanjuk v Petrovsky*, (1985) 776 F.2d 571 : (1985) 79 ILR 397, pp 401–03.

29. 28 USC § 1350 (originally enacted in 1789). See also Sir Robert Jennings and Sir Arthur Watts, *Oppenheim's International Law*, vol I, 1996, p 75.

30. *Pauling v McElroy*, (1958) 164 F. Supp 390.

31. See Buergethal and Maier, *Public International Law*, (1985), p 204.

The Acts of the United States Congress are construed so as not to conflict therewith.³² However, a later clear statute will prevail over earlier customary international law.³³ In *Banco Nacional de Cuba v Sabbatino*,³⁴ it was observed that an American federal statute would not be treated as superseded by customary international law. Further, in *Tag v Rogers*,³⁵ it was observed that the courts would not give effect to a rule of international law which conflicted with the United States Constitution.

In *Committee of United States Citizens Living in Nicaragua v Reagan*,³⁶ the United States Court of Appeals held that the statute would prevail because subsequently enacted statutes supersede existing customary international law. The court acknowledged that the Supreme Court had never directly addressed this issue, but said that dictum in cases dating back to *The Paquete Habana* supported this principle. The court also relied on its earlier decision in *Tag v Rogers*, which suggested that customary international law was subordinate to all statutes whenever enacted. Acknowledging that the rule could be different in other nations that gave primacy to international law over the domestic legal order, the court added, “nonetheless, the law in this court remains clear: no enactment of Congress can be challenged on the ground that it violates customary international law”.

Deference is, however, paid to the views of the executive, to the extent that American courts normally regard themselves bound by the certificates or “suggestions” of the executive regarding such matters as the recognition of foreign States, the territorial limits of a foreign country, and the immunity of governments, persons, corporations, or vessels from jurisdiction. In *Spacil v Crowe*,³⁷ a Circuit Court of Appeals declined to treat, as open to judicial review, a Department of State “suggestion” allowing the immunity of a Cuban vessel from arrest or attachment, and held that the judiciary was bound by the executive’s decision.

4.4.2.2 Implementation of International Treaties

As far as the practice of United States on the implementation of international treaties in the municipal sphere is concerned, it depends upon the provisions of Article VI of the United States Constitution, which provides:

This Constitution, and the Laws of the United States which shall be made in pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, anything in the Constitution or Laws of any State to the Contrary notwithstanding.

Such treaties are binding on the judges in every State. In *Arbitration between Great Britain and Costa Rica*,³⁸ Taft CJ observed:

[T]he Constitution of the United States makes the Constitution, laws passed in pursuance thereof, and treaties of the United States the supreme law of the land. Under that provision, a treaty may repeal a statute, and a statute may repeal a treaty.

In *Head Money* cases (*Edye v Robertson*),³⁹ the United States Supreme Court observed that a treaty was a law of the land as an Act of Congress was, whenever its provisions prescribed a rule by which the rights of the private citizen or subject could be determined. When such rights

32. *Murray v The Schooner Charming Betsy*, (1804) 2 Cranch 64, p 118.

33. *The Over the Top*, (1925) 5 F.2d 838, p 842.

34. *Banco Nacional de Cuba v Sabbatino*, (1964) 376 US 398, p 423.

35. *Tag v Rogers*, (1959) 267 F.2d 664.

36. *Committee of United States Citizens Living in Nicaragua v Reagan*, (1988) 859 F.2d 929. The judgment was delivered by US Court of Appeals, D C Cir on 14 October 1988.

37. *Spacil v Crowe*, (1974) 489 F.2d 614, pp 619–20.

38. *Arbitration between Great Britain and Costa Rica*, (1924) 18 AJIL 147.

39. *Head Money* cases (*Edye v Robertson*), (1884) 112 US 580.

were of a nature to be enforced in a court of justice, that court resorted to the treaty for a rule of decision for the case before it, as it would to a statute.

In *US v Palestine Liberation Organisation*,⁴⁰ the federal district court held that statutes and treaties were the supreme law of the land and conflict between them must be reconciled whenever possible. Where it could not be resolved, the statute took precedence (which is later to the treaty) if the court could discern “the clearest of expressions on the part of Congress to override the treaty obligation”. The court was also of the opinion that the Congress had not meant to supersede the United States’ international obligations under the Headquarters Agreement, as there was always a presumption that Congress did not intend to override its treaty obligations.

Article VI must, however, be regarded as enacting a general principle; for although treaties become “the supreme law of the Land”, some treaties require legislative action before they can receive effect in American courts. Thus, a distinction has been drawn by American courts between “self-executing” treaties and “non-self-executing” treaties.⁴¹ A self-executing treaty is one which does not in the view of American courts expressly or by its nature require legislation to make it operative within the municipal field, and that is to be determined by regard to the intention of the signatory parties and to the surrounding circumstances. These treaties will be treated by American courts as a part of American law and as having the status of a federal statute, so that they are replaced by later contradictory federal legislation.⁴² The non-self-executing treaties become applicable only after the consent of the Congress through its adoption by a specific statute. The treaties, which are usually followed by legislation are, eg, those which require an appropriation of funds; those involving changes in the revenue laws; those effecting the acquisition or cession of territory, etc.⁴³

In *Sei Fujii v The State of California*,⁴⁴ the Supreme Court of California observed:

A treaty ... does not automatically supersede local laws which are inconsistent with it unless the treaty provisions are self-executing In determining whether a treaty is self-executing, courts look to the intent of the signatory parties as manifested by the language of the instrument, and if the instrument is uncertain, recourse may be had to the circumstances surrounding its execution

In this case, the issue was to what extent certain provisions of the United Nations Charter were self-executing. It was held that the human rights provisions of the Charter (Articles 55–56) were not self-executing, but that, preamble, the provisions relative to the privileges and immunities of the United Nations (Articles 104–05) were.

In order for a treaty provision to be operative without the aid of implementing legislation and to have the force and effect of a statute, it must appear that the framers of the treaty intended to prescribe a rule that, standing alone, would be enforceable in the courts.⁴⁵

In *Pauling v McElroy*,⁴⁶ it was held that the Charter, and the Trusteeship Agreement for the Trust Territory of the Pacific Islands were not self-executing treaties. However, in *People of Saipan ex rel Guerrero v United States Dept of Interior*,⁴⁷ Goodwin J, on the one hand, held that the Trusteeship Agreement created judicially enforceable rights, for which relief could be obtained in the Trust Territory Local Court, while, on the other hand, Trask J was of the

40. *US v Palestine Liberation Organisation*, (1988) 695 F. Supp. 1456, p 1468.

41. See *Foster v Neilson*, (1829) 27 US (2 Pet) 253, p 314, and *Dreyfus v Von Finck*, (1976) 534 F.2d 24.

42. See *Breard v Greene*, (1998) 523 US 371.

43. McNair, *The Law of Treaties*, 1961, p 80.

44. *Sei Fujii v The State of California*, (1952) 38 Cal 2d 718 (Cal Sup Ct).

45. *Head Money cases (Edye v Robertson)*, (1884) 112 US 580.

46. *Pauling v McElroy*, (1958) 164 F. Supp. 390.

47. *People of Saipan ex rel Guerrero v United States Dept of Interior*, (1974) 502 F.2d 90.

opinion that the Agreement was not self-executing, but had been sufficiently implemented by legislation.

If a treaty is within the terms of the Constitution and is self-executing, then under the Constitution it is deemed to be operative as part of the law of the United States,⁴⁸ and will prevail, also over a customary rule of international law.⁴⁹ In *Clark v Allen*,⁵⁰ it was held that a self-executing treaty would prevail also over the contrary law of an American State. Self-executing treaties or conventions ratified by the United States, are binding on American courts, even if in conflict with previous American statutes,⁵¹ provided that there is no conflict with the United States Constitution.⁵² In *Bank Voor Handel En Scheepvaart NV v Kennedy*,⁵³ it was held that a treaty would prevail over an earlier statute only if it contained a substantive inconsistency with the statute.

Non-self-executing treaties are not binding upon American courts until the necessary legislation is enacted. Legislation giving effect to a treaty may impose stricter requirements than those prescribed in the treaty where that is consistent with the treaty's objectives.⁵⁴

Where the relevant treaty purports to deal with a particular subject matter in respect of which the United States Congress has exclusive legislative powers, the treaty will be considered as *prima facie* non-self-executing irrespective of what the intention of the parties is claimed to be. The distinction between the two kinds of treaties involves some anomalies. In 1952, Senator Bricker's proposed amendment to the Constitution included a provision to make all treaties, in effect, non-self-executing.⁵⁵ The amendment, however, could not be made.

In *Asakura v City of Seattle*,⁵⁶ in which a conflict was alleged between a 1911 treaty and a 1921 city ordinance, the US Supreme Court stated: "The rule established by it (the Treaty) cannot be rendered nugatory in any part of the United States by municipal ordinances or state laws".

In *Johnson v Browne*,⁵⁷ the US Supreme Court, in holding that certain federal statutory provisions had not been repealed by treaty stated: "Repeals by implication are never favoured, and a later treaty will not be regarded as repealing an earlier statute by implication unless the two were absolutely incompatible and the statute cannot be enforced without antagonizing the treaty". However, in *Cook v US*,⁵⁸ the US Supreme Court noted that "a treaty will not be abrogated or modified by a later (federal) statute unless such purpose on the part of the Congress has been clearly expressed".

If legislation conflicts with a treaty, the resolution of the conflict depends on whether it is federal or state legislation which is involved. State legislation does not prevail over a prior or subsequent treaty (including executive agreements) in conflict with it. However, a federal statute is binding on the courts even if it is in conflict with previous customary international law or treaty. The statute will give way to a subsequent self-executing treaty. It is however, noteworthy

48. *Foster v Nielson*, (1829) 27 U.S. (2 Pet) 253, p 314; *Fujii v California*, (1952) 19 ILR 312; *Milliken v State of Florida*, (1961) 32 ILR 342; *USA v Mason*, (1965) 42 ILR 232; *Spiess v C Itoh & Co (America)*, (1981) 75 AJIL 972; *Frolova v USSR*, (1985) 79 AJIL 1057; and *Handel v Artukovic*, (1985) 79 ILR 397, pp 399–401.

49. *Tag v Rogers*, (1959) 267 F.2d 664.

50. *Clark v Allen*, (1947) 331 US 503.

51. *Whitney v Robertson*, (1888) 124 US 190, p 194.

52. *Cherokee Tobacco Co v United States*, (1870) 11 Wall 616.

53. *Bank Voor Handel En Scheepvaart NV v Kennedy*, (1961) 288 F.2d 375.

54. *Deutsche Luft Hansa AG v Civil Aeronautics Board*, (1973) 61 ILR 625.

55. JG Starke, *Introduction to International Law*, 1994 p 85.

56. *Asakura v City of Seattle*, (1924) 265 US 332, p 341.

57. *Johnson v Browne*, (1907) 205 US 309, p 321.

58. *Cook v US*, (1933) 288 US 102, p 120.

that neither a treaty nor an executive agreement may derogate from the Constitution.⁵⁹ In *Reid v Covert*,⁶⁰ the Supreme Court held the provisions of certain treaties unconstitutional.⁶¹ A statute passed by Congress overrules previous treaties that have become the law of the land.⁶²

In *Aerovías Interamericanas De Panama v Dade Commissioners*,⁶³ it was held that a treaty requiring the appropriation of money for its enforcement would not be internally effective without enabling legislation.

In *Committee of United States Citizens Living in Nicaragua v Reagan*,⁶⁴ the US Court of Appeals considered the alleged conflict between the act appropriating military aid to the contras and the treaty obligations of the United States under Article 94 of the United Nations Charter, which requires compliance with the decisions of the International Court of Justice. The court held that “treaties and statutes enjoy equal status [in domestic law] and therefore ... inconsistencies between the two must be resolved in favour of the *lex posterior*”.

The decision that statutes supersede earlier treaties or customary rules of international law follows the basic principle of the new Restatement (Third) of Foreign Relations Law of the United States § 115 (1987). The *Restatement* also instructs the court to give effect to the statute only if the intent of Congress to supersede the treaty or customary rule is clear and the two cannot be harmonised.⁶⁵

4.4.2.2.1 Implementation of the Executive Agreements

A constitutional distinction has been made out in the United States between “treaties” and “executive agreements” made by the President of the United States. Treaties are concluded by the President, acting with the advice and consent of the Senate (Article II, section 2(2) of the Constitution). The executive agreements are not subject to the requirement of concurrence of two-thirds of the Senate under Article II, section 2 of the Constitution. The executive agreements are endowed with all the attributes of formal treaties and bind the United States internationally. Constitutionally also, they have been treated at par with treaties or conventions by the courts. In other words, they are also considered law of the land.⁶⁶

In *US v Pink*,⁶⁷ the Supreme Court stated:

A treaty is a law of the land under the supremacy clause (Art. VI, cl. 2) of the Constitution. Such international compacts and agreements as the Litvinoff Assignment (an executive agreement) have a similar dignity.

The subsequent federal legislation will override an executive agreement, it is not clear whether an executive agreement will supersede prior federal legislation.⁶⁸

59. Sir Robert Jennings and Sir Arthur Watts, *Oppenheim's International Law*, vol I, 1996, p 77.

60. *Reid v Covert*, (1957) 24 ILR 549.

61. See also *Burdell v Canadian Pacific Airlines Ltd*, (1969) 63 AJIL 339; *Seery v US*, (1955) 22 ILR 398, p 403; *Geisser v United States*, (1975–77) 61 ILR 443.

62. *Tag v Rogers*, (1959) 267 F.2d 664; and *Mercado v Feliciano*, (1958) 260 F.2d 500.

63. *Aerovías Interamericanas De Panama v Dade Commissioners*, (1961) 197 F. Supp. 230.

64. *Committee of United States Citizens Living in Nicaragua v Reagan*, (1988) 859 F.2d 929. The judgement was delivered by US Court of Appeals, D C Cir on 14 October 1988.

65. Restatement (Third) of Foreign Relations Law of the United States §§ 114, 115. See also Martin Wald, “Committee of United States Citizens Living in Nicaragua v. Reagan, 859 F.2d 929”, *American Journal of International Law*, vol 83, pp 380–84.

66. *US v Pink*, (1942) 315 US 203; *US v Belmont*, (1937) 301 US 324.

67. *US v Pink*, (1942) 315 US 203, p 230.

68. *Maria Jeritza Seery v US*, (1955) 127 F. Supp. 601; *US v Guy W Capps Inc*, (1953) 204 F.2d 655 (U.S. Court of Appeals, 4th Cir).

Further, an executive agreement will not be binding on American courts, if it conflicts with a substantive federal enactment.⁶⁹ The *US v Capps*,⁷⁰ and *Seery v US*,⁷¹ support the proposition that an executive agreement cannot alter a prior inconsistent statutory provision. But in *Territory of Hawaii v HO*,⁷² the Supreme Court of the Territory of Hawaii held that an executive agreement overrode a subsequent inconsistent law of the territory.

4.4.3 Korean Practice

Article 6(1) of the Constitution of Republic of Korea provides, “Treaties duly concluded and promulgated under the Constitution and generally recognised rules of international law shall have the same force and effect of law as domestic law of the Republic of Korea”. Thus, treaties, once ratified, do not require additional legislation for domestic application.⁷³ In one of the cases, it was recognised that the Warsaw Convention for the Unification of Certain Rules Relating to international Carriage by Air, “as amended by the Hague Protocol, has the same effect as domestic laws; and in relation to civil law, it is *lex specialis*”.⁷⁴ In another case, it was stated that the Korea-Japan Fisheries Agreement, as a treaty concluded and promulgated under the Constitution has the same force and effect of law as domestic laws.⁷⁵

4.4.4 Indian Practice

The Indian practice of implementing international law was similar to the British practice prior to 26 January 1950, the date on which Constitution of India came into force. Since then, the Indian practice on relationship of international law and Indian law has been governed by the constitutional provisions. Article 51 of the Constitution is the most relevant and guiding provision on the subject. Article 51 reads as follows:

The State shall endeavour to – (a) promote international peace and security; (b) maintain just and honourable relations between nations; (c) *foster respect for international law and treaty obligations in the dealings of organized peoples with one another*; and (d) encourage settlement of international disputes by arbitration.

Article 51(c) uses the expression “international law” and “treaty obligations”. This means that “international law” has been used to denote international customary law, different from treaty law. Article 51 is contained in Part IV of the Constitution which lays down the “Directive Principles of State Policy”. The provisions contained in Part IV are not enforceable by any court. The principles laid down in that Part are nevertheless fundamental in the governance of the country. It shall be the duty of the State to apply these principles in making laws.⁷⁶

Directive principles are therefore, in the nature of guidelines, instructions or directives to State authorities. In case of non-compliance or disregard of the directives by the State, a citizen cannot seek remedy through the courts, and (b) judiciary cannot compel the State to implement a directive. It is, however, noteworthy that directive principles are not mere pious wishes or platitudes but are meant to be “fundamental” in the governance of the country. It is

69. *Seery v United States*, (1955) 127 F. Supp. 601.

70. *US v Capps*, (1953) 204 F.2d 655.

71. *Seery v US*, (1955) 127 F. Supp. 601.

72. *Territory of Hawaii v HO*, (1957) 41 Hawaii 565.

73. *Republic of Korea v Araye*, (2012) 106 AJIL 630, No. 2011 Do 12927, (S Ct).

74. 82 Da-Ka 1372, 22 July 1986 (S Ct).

75. Constitutional Court [Const. Ct.], 99 Hun-Ma 139, 142, 156, 160 (Consol.) 21 March 2001. See also Seokwoo Lee, Young Kil Part, “*Republic of Korea v. Araye*”, No. 2011 Do 12927, *American Journal of International Law*, vol 106, 2012, pp 630–36, p 634.

76. Article 37, Constitution of India, 1950.

obligatory for the State to implement these directives through executive action, legislation and judicial interpretation.⁷⁷

Article 51, though a directive principle and a non-justiciable provision, has been given due recognition by the judiciary.

4.4.4.1 Implementation of International Customs

As far as the implementation of international customs in India is concerned, it is necessary to look into Article 372(1) of the Constitution, which provides:

Notwithstanding the repeal by this Constitution of the enactments referred to in Article 395 but subject to other provisions of the Constitution all the laws in force in the territory of India immediately before the commencement of this Constitution shall continue in force therein until altered or repealed or amended by a competent legislature or other competent authority.

The expressions “laws in force in the territory of India immediately before the commencement of this Constitution” includes, *inter alia*, the rules of the English common law, eg customary law. This means that the law including the common law or customary law which was applicable in India prior to the adoption of Constitution would continue to be so applicable unless altered, repealed or amended. The enforceability of international customary law in India is also evident from various judgments of the courts.

In *Annakumar Pillai v Muthupayal*,⁷⁸ a lessee of the chank fisheries from the *Rajah* of Ramanathapuram complained that the accused had fished chanks in the area leased to him and had thereby committed theft. The point for decision was whether the *Rajah* could lay any claim to fisheries beyond the territorial waters. Subrahmania Ayyar Offg. CJ after remarking that the limits of territorial waters were not settled in international law, referred to the principle enunciated in *Direct United States Cable Co v the Anglo-American Telegraph Co*, (1877) 2 AC 394 (U) that the occupation of a bay for a long time by one State and the acquiescence therein by other States, were sufficient to support the title of that State to the Bay.

After referring to the continuous occupation of the pearl fisheries and chank fisheries by successive sovereigns of the country from the earliest times, the learned Judge concluded with the following observations:

To say the least, the parts of the sea falling between the respective coasts and the lines opposite each connecting the extreme points seawards of the limits of the fisheries in question, are British territorial waters.

Russell J differed and the matter was heard by another Bench which agreed with Subrahmania Ayyar Offg. CJ and observed: “We do not think that Palk’s Bay can be regarded as being in any sense the open sea and therefore outside the territorial jurisdiction of His Majesty. We regard it rather as an integral part of His Majesty’s dominions, the portions adjacent to India being within the jurisdiction of the authorities of that place”.

The chanks which were the subject of theft “were taken, not from the bed of the high seas, but from an arm of the sea which is part of the territory of British India which has been in possession of the Crown from, time immemorial”.

In *A M S S v M & Co v The State of Madras*,⁷⁹ the lease of chank fisheries off the coast of Ramanathapuram granted by the *Rajah* of Ramanathapuram to A.M.S.S.V.M. & Co. was cancelled by State of Madras. It was argued that the impugned Act so far as it relates to the

77. See also Subhash C Kashyap, *Constitutional Law of India*, vol 1, 2008, pp 850–51.

78. *Annakumar Pillai v Muthupayal*, (1904) 14 Mad LJ 248 : 27 Mad 551 (V).

79. *A M S S v M & Co v The State of Madras*, (1953) 2 Mad LJ 587.

fisheries in the seas is extraterritorial in character and beyond the legislative jurisdiction of the State and that it is, therefore, void to that extent or at least void as regards fisheries beyond territorial waters. It was contended on behalf of State that the State has power to legislate on fishing and fisheries within the territorial waters and that the fishing areas in question in this application have come to be recognised by reason of long possession and international recognition as part of the territorial waters. The court after referring to the law of territorial waters and fisheries and various authorities and supporting the judgment of *Annakumar Pillai v Muthupayal*, held that the fishing areas involved in that petition were within the territorial waters of the State.

In *Vellore Citizens' Welfare Forum v UOI*,⁸⁰ after referring to various constitutional and statutory provisions, the Supreme Court held:

[T]he Precautionary Principle and the Polluter Pays Principle are part of the environmental law of the country.

Even otherwise once these principles are accepted as part of the Customary International Law there would be no difficulty in accepting them as part of the domestic law. It is almost an accepted proposition of law that the rules of Customary International Law which are not contrary to the municipal law shall be deemed to have been incorporated in the domestic law and shall be followed by the courts of law. To support we may refer to Justice H.R. Khanna's opinion in *A.D.M. v. Shivakant Shukla*, AIR 1976 SC 1207; *Jolly George Varghese* case, AIR 1980 SC 470 and *Gramophone Co.* case, AIR 1984 SC 667.

The aforesaid observations of the Supreme Court are worth appreciating. The court has observed in very clear terms that once the precautionary principle and polluter pays principle are accepted as part of the customary international law there would be no difficulty in accepting them as part of the domestic law. Further, the customary international law which is not contrary to the municipal law shall be deemed to have been incorporated in the domestic law and shall be followed by the courts in India.

Human rights jurisprudence based on the Universal Declaration of Human Rights, 1948, has the international recognition as the "Moral Code of Conduct". In *Chairman, Rly Board v Chandrima Das*,⁸¹ the Supreme Court held:

The International Covenants and Declarations as adopted by the United Nations have to be respected by all signatory States and the meaning given to the above words in those Declarations and Covenants have to be such as would help in effective implementation of those rights. The applicability of the Universal Declaration of Human Rights and the principles thereof may have to be read, if need be, into the domestic jurisprudence.

The court referred to *Salomon v Commissioner. of Customs and Excise*,⁸² where Lord Diplock said that there is a *prima facie* presumption that Parliament does not intend to act in breach of international law, including specific treaty obligations. The court also stated that the domestic application of international human rights and norms was considered by the Judicial Colloquia (Judges and Lawyers) at Bangalore in 1988. It was later affirmed by the Colloquia that it was the vital duty of an independent judiciary to interpret and apply national Constitutions in the light of those principles.

The court observed that since "life" is also recognised as a basic human right in the Universal Declaration of Human Rights, 1948, it has to have the same meaning and interpretation as has been placed on that word by this court in its various decisions relating to Article 21 of the Constitution. The meaning of the word "life" cannot be narrowed down. According to the

80. *Vellore Citizens' Welfare Forum v UOI*, (1996) 5 SCC 647.

81. *Chairman, Rly Board v Chandrima Das*, (2000) 2 SCC 465.

82. *Salomon v Commissioner of Customs and Excise*, (1996) 3 All ER 871.

tenor of the language used in Article 21, it will be available not only to every citizen of this country, but also to a “person” who may not be a citizen of the country.

The aforesaid judgments show the positive attitude of judiciary in applying international customary law in India, provided they are not contrary to municipal law.

4.4.4.2 *Making of International Treaties: Constitutional Approach*

It is one of the attributes of State sovereignty to enter into treaties and agreements with foreign States. It is just not possible for a State to isolate itself from the rest of the world whether it is in the matter of foreign relations, trade, commerce, economy, communications, environment or ecology. The advances made in the areas of information technology and communication have blurred the national boundaries. The world has become global village and the independent States have become more inter-dependent.

In India, Article 53 of the Constitution vests the executive powers of the Union in the President of India.⁸³ By Article 73, the executive power of the Union shall extend to the matters with respect to which Parliament has power to make laws. The Constitution envisaged the enactment of a parliamentary law to regulate the executive power of entering into treaties and their implementation in India.⁸⁴ The subject-matter covered under Entry 13 of the Union List (List I) is “Participation in international conferences, associations and other bodies and implementing of decisions made thereat”.

Entry 14 empowers the Parliament to enact a law on the following subject matter:

Entering into treaties and agreements with foreign countries and implementing of treaties, agreements and conventions with foreign countries.

Article 253 of the Constitution is a very important provision on the subject. It reads as under:

Legislation for giving effect to international agreements. – Notwithstanding anything in the foregoing provisions of this Chapter, Parliament has power to make any law for the whole or any part of the territory of India for implementing any treaty, agreement or convention with any other country or countries or any decision made at any international conference, association or other body.

According to Entry 14 of the Union List (List I), it is in the competence of the Parliament to enact a law on “entering into treaties and agreements with foreign countries”. But no law has been made by the Parliament for entering into treaties and agreements with foreign countries. This will not affect the powers of the Executive to enter into a treaty with foreign countries. Thus, until the Parliament makes a law on the subject, the President’s power to enter into treaties remains unfettered by any internal constitutional restrictions.

However, for implementing a treaty in India, an enabling statute may be required, without which the courts in India may not give effect to such treaty provisions. On treaty making, the Calcutta High Court in *UOI v Manmull Jain*, held:

Making a treaty is an executive act and not a legislative act. Legislation may be and is often required to give effect to the terms of a treaty. Thus if a treaty, say, provides for payment of a sum of money to a foreign power, legislation may be necessary before the money can be spent; but the treaty is complete without the legislation.⁸⁵

83. Article 53(1) reads: “The Executive power of the union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.”

84. Article 253 read with entry 14 of List I of Sch VII of the Constitution.

85. *UOI v Manmull Jain*, AIR 1954 Cal 615. See also *Civil Rights Vigilance Committee, SLSRC College of Law, Bangalore v UOI*, AIR 1983 Kant 85, where the court held that Article 245(1) read with Entry 14 in List I of Schedule VII to the Constitution and Article 253 empower the Parliament to make laws for implementing treaties entered into by the Government of India with foreign countries.

The Calcutta High Court in *UOI v Manmull Jain*,⁸⁶ held that undoubtedly, this provides for all legislation in connection with entering into treaties. This cannot, however, justify the conclusion that the makers of the Constitution intended that no treaty should be entered into unless the Parliament has legislated on the matter. The power of legislation on this matter of entering into treaties leaves untouched the executive power of entering into treaties. There is no justification in principle or authority for the view that making a treaty requires legislation for its validity. The President makes a treaty in exercise of his executive power and no court of law in India can question its validity.

When the President, in whom Article 53 of the Constitution vests all the executive power of the Union, has entered into a treaty, the municipal courts cannot question the validity of the treaty.

The power of entering into a treaty is an inherent part of the sovereign power of the State. By Article 73, subject to the provisions of the Constitution, the executive power of the Union extends to the matters with respect to which Parliament has power to make laws. The Constitution makes no provision making legislation a condition for the entry into an international treaty in times either of war or peace. The executive power of the Union is vested in the President and is exercisable in accordance with the Constitution. The executive is competent to represent the State in all international matters and may by agreement, convention or treaty incur obligations which in international law are binding upon the State. But the obligations arising under the agreement or treaties are not by their own force binding upon Indian nationals. The power to legislate in respect of treaties lies with Parliament under Entries 10 and 14 of List I of the Seventh Schedule. But making of law under that authority is necessary when the treaty or agreement operates to restrict the rights of citizens or others or modifies the law of the State. If the rights of the citizens or others which are justiciable are not affected, no legislative measure is needed to give effect to the agreement or treaty.

A treaty really concerns the political rather than the judicial wing of the State. When a treaty or an award after arbitration comes into existence, it has to be implemented and this can be done only if all the three branches of Government, i.e. the Legislature, the Executive and the Judiciary, or any of them, possess the power to implement it. If there is any deficiency in the constitutional system it has to be removed and the State must equip itself with the necessary power. In some jurisdictions, the treaty or the compromise read with the award acquires full effect automatically in the municipal law, the other body of municipal law notwithstanding. Such treaties and awards are “self-executing”. Legislation may nevertheless be passed in aid of implementation but is usually not necessary.⁸⁷

Article 253 is of great importance as it gives power to Parliament to make any law for the whole or any part of the territory of India implementing any treaty, agreement or convention with any other country or countries or any decision made at any international Conference, association or other body. This article is in conformity with the directive principles laid down in Article 51 of the Constitution which lays down that the State shall endeavour to foster respect for international law and treaty obligations in the dealings of organised peoples with one another and encourage settlement of international dispute by arbitration.⁸⁸

Article 51 is not enforceable by any court and if Parliament does not enact any law for implementing the obligations under a treaty entered into by the Government of India with foreign countries, courts cannot compel Parliament to make such law. In the absence of such

86. *UOI v Manmull Jain*, AIR 1954 Cal 615.

87. *Maganbhai Ishwarbhai Patel v UOI*, AIR 1969 SC 783.

88. *Nirmal Bose v UOI*, AIR 1959 Cal 506.

law, court cannot also enforce obedience of the Government of India to its treaty obligations with foreign countries.⁸⁹

The Supreme Court in *People's Union for Civil Liberties v UOI*,⁹⁰ held that the ratification of international conventions and covenants is done by the Executive acting alone and the prerogative of making the law is that of the Parliament alone. Unless the Parliament legislates, no law can come into existence. It is not clear whether the Parliament has approved the action of the Government of India ratifying the 1966 Covenant of Civil and Political rights. Assuming that it has, the question may yet arise whether such approval can be equated to legislation and invests the covenant with the sanctity of a law made by Parliament. As pointed out by Supreme Court in *S R Bommai v UOI*,⁹¹ every action of Parliament cannot be equated to legislation. Legislation is no doubt the main function of the Parliament but it also performs many other functions all of which do not amount to legislation. It would suffice to state that the provisions of the covenant, which elucidate and go to effectuate the fundamental rights guaranteed by our Constitution, can certainly be relied upon by courts as facets of those fundamental rights and hence, enforceable as such.

4.4.4.3 Implementation of Treaties: Judicial Approach

4.4.4.3.1 Treaties Concerning Transfer of Territory

Constitutional amendment is required to implement a treaty which seeks to transfer a part of Indian territory in favour of a foreign country. *Re Berubari Union (I)*,⁹² a reference was made by the President of India under Article 143 (1) of the Constitution of India on the implementation of the Indo-Pakistan Agreement relating to Berubari Union and Exchange of Enclaves. The Agreement provided for the division of Berubari Union No. 12 in such a way that half of it would go to Pakistan and the other half adjacent to India would be retained by it. Apart from that, the Agreement also provided for the exchange of old Cooch-Bihar Enclaves in Pakistan and Pakistan Enclaves in India without claim to compensation for extra area going to Pakistan, as agreed.

The Supreme Court was of the view that the agreement amounted to cession or alienation of a part of Indian territory and was not a mere ascertainment or determination of the boundary. To implement the aforesaid agreement, the Court held:

[T]he Agreement amounts to a cession of a part of the territory of India in favour of Pakistan; and so its implementation would naturally involve the alteration of the content of and the consequent amendment of Article 1 and of the relevant part of the First Schedule to the Constitution, because such implementation would necessarily lead to the diminution of the territory of the Union of India. Such an amendment can be made under Article 368. ... acting under Article 368 Parliament may make a law to give effect to, and implement, the agreement in question covering the cession of a part of Berubari Union 12 as well as some of the Cooch-Bihar Enclaves which by exchange are given to Pakistan. Parliament may, however, if it so chooses, pass a law amending Article 3 of the Constitution so as to cover cases of cession of the territory of India in favour of a foreign State. If such a law is passed then Parliament may be competent to make a law under the amended Article 3 to implement the agreement in question. On the other hand, if the necessary law is passed under Article 368 itself that alone would be sufficient to implement the agreement.

Where on the occasion of partition, a part of Pakistani's territory was not delivered to it as per the Radcliff Award due to some mistake, transferring it back to Pakistan by India did not

89. *Civil Rights Vigilance Committee, SLSC College of Law, Bangalore v UOI*, AIR 1983 Kant 85.

90. *People's Union for Civil Liberties v UOI*, AIR 1997 SC 1203.

91. *S R Bommai v UOI*, (1994) 3 SCC 1.

92. *Re Berubari Union (I)*, Special Reference No 1 of 1959, (1960) 3 SCR 250.

require any amendment in the Constitution as it was not a cession of Indian territory in favour of Pakistan.⁹³

Further, no amendment in the Constitution is required where a part of Indian territory is transferred on the lease to a foreign country, as it does not amount to abandonment of sovereignty.

In *UOI v Sukumar Sengupta*,⁹⁴ the Government of India leased “Teen Bigha” land in perpetuity to Bangladesh to connect Dahagram with Mouza Panbari for the purpose of exercising her sovereignty over those areas. As per the Agreement, sovereignty over the leased area would continue to vest in India. The rent for the leased area was Bangladesh Re 1 per annum which was also waived. Bangladesh was to have undisturbed possession and use of the area. On that area, there would be free movement of Bangladesh citizens including police, para-military and military with their arms, ammunition, and equipment. There would also be free movement of Indian citizens including police, para-military and military with their arms, ammunition equipment. Both India and Bangladesh had to exercise various rights on the leased territory. On the issue whether Constitution was required to be amended, the Supreme Court held that since there was no abandonment of sovereignty, therefore, no constitutional amendment was required.

An adjustment of boundaries might involve either cession of territory or acquisition thereof. Such an adjustment will require the sanction of Parliament. On the other hand, if the adjustment of boundaries be a mere determination of what was given under the “Radcliffe Award” and in terms thereof, then it is an adjustment simpliciter, and no question of either cession or acquisition of territory arises. In such a case, no sanction is necessary.⁹⁵

The precedents of this court are clear only on one point, namely, that no cession of Indian territory can take place without a constitutional amendment. Must a boundary dispute and its settlement by an arbitral tribunal be put on the same footing? An agreement to refer the dispute regarding boundary involves the ascertainment and representation on the surface of the earth a boundary line dividing two neighbouring countries and the very fact of referring such a dispute implies that the executive may do such acts as are necessary for permanently fixing the boundary. A settlement of a boundary dispute cannot, therefore, be held to be a cession of territory. It contemplates a line of demarcation on the surface of the earth. It only seeks to reproduce a line, a statutable boundary, and it is so fixed. The case is one in which each contending State *ex facie* is uncertain of its own rights and therefore consents to the appointment of an arbitral machinery. Such a case is plainly distinguishable from a case of cession of territory known to be home territory. The argument that if power to settle boundaries be conceded to the Executive, it might cede some vital part of India is to take an extreme view of things. The same may even be said of Parliament itself but it is hardly to be imagined that such gross abuse of power is ever likely. Ordinarily an adjustment of a boundary which international law regards as valid between two nations, should be recognised by the courts and the implementation thereof can always be with the Executive unless a clear case of cession is involved when Parliamentary intercession can be expected and should be had. This has been the custom of nations whose Constitutions are not sufficiently elaborate on this subject.⁹⁶

In *Shiv Kumar Sharma v UOI*,⁹⁷ the Delhi High Court held that in India treaties do not have the force of law and consequently obligations arising there from will not be enforceable

93. *Ram Kishore Sen v UOI*, (1966) 1 SCR 430.

94. *UOI v Sukumar Sengupta*, (1990) Supp SCC 545.

95. *Nirmal Bose v UOI*, AIR 1959 Cal 506.

96. *Maganbhai Ishwarbhai Patel v UOI*, AIR 1969 SC 783.

97. *Shiv Kumar Sharma v UOI*, AIR 1969 Del 64.

in municipal courts unless backed by legislation. The court, however, made it clear that implementation of every treaty does not require legislative aid. The court further held:

[I]f a treaty either requires alteration of or addition to existing law, or affects the rights of the subjects, or are treaties on the basis of which obligations between the treaty-making State and its subjects have to be made enforceable in municipal Courts, or which, involves raising or expending of money or conferring new powers on the Government recognizable by the municipal Courts, a legislation will be necessary. Of course, if it involves cession of territory then so far as India is concerned constitutional amendment may also be necessary. It is not possible to prepare an exhaustive list as to which treaties can be implemented by legislation where the implementation of a treaty merely involves the ascertainment of the disputed boundaries with a foreign State, no legislation would be necessary.

4.4.4.3.2 Extradition Treaties

To have a binding effect upon the citizens of India, the extradition treaties need to be transformed into the municipal law. In *Birma v State*,⁹⁸ the court held that the treaties which are part of the international law do not form part of the law of the land unless expressly made so by the legislative authority. In the present case, the treaty remained a treaty only and no action was taken to incorporate it into a law. That treaty cannot, therefore, be regarded as a part of the municipal law of the then Dholpur State, and the practice of surrendering fugitive criminals, which was being followed by the former Dholpur State cannot be deemed to be a law that could be continued. Article 21 of the Constitution of India provides that no person shall be deprived of his life or personal liberty except according to procedure established by law.

When the extradition treaty of the Dholpur State is held not to possess the force of law, the liberty of a citizen of India cannot be taken away under it. The detention of the petitioner under the provisions of this treaty cannot, therefore, be held valid, because it cannot be said to be according to procedure established by law.

In another case, *Nanka v Govt of Rajasthan*,⁹⁹ the court held that entering into an extradition treaty by Maharaja Rana of Dholpur with British India was an executive act. To have a binding effect upon a subject, the treaty had to be incorporated into a municipal law. Of course, the Maharaja Rana could have himself done it, but he never did so.

As no person can be deprived of his personal liberty except according to procedure established by law, the court held that in absence of a municipal law, the appellant was not to be extradited and he was entitled to be released unconditionally.

4.4.4.3.3 Double Taxation Avoidance Agreements

The Andhra Pradesh High Court in *CIT v Visakhapatnam Port Trust*,¹⁰⁰ held that provisions of sections 4 (Charge of income tax) and 5 (Scope of total income) of the Income Tax Act, 1961 are expressly made "subject to the provisions of the Act" which means that they are subject to the provisions of section 90 (Agreement with foreign countries). By necessary implication, they are subject to the terms of the Double Taxation Avoidance Agreement, if any, entered into by the Government of India. Therefore, the total income specified in sections 4 and 5 chargeable to income tax is also subject to the provisions of the agreement to the contrary, if any.

98. *Birma v State*, AIR 1951 Raj 127.

99. *Nanka v Govt of Rajasthan*, AIR 1951 Raj 153.

100. *CIT v Visakhapatnam Port Trust*, (1983) 144 ITR 146 (AP).

In *CIT v Davy Ashmore India Ltd.*¹⁰¹ it was held that in case of inconsistency between the terms of the Agreement and the taxation statute, the Agreement alone would prevail. The Calcutta High Court expressly approved the correctness of CBDT Circular No. 333 dated 2 April 1982 which provided:

The correct legal position is that where a specific provision is made in the Double Taxation Avoidance Agreement, that provision will prevail over the general provisions contained in the Income Tax Act, 1961. In fact the Double Taxation Avoidance Agreements which have been entered into by the Central Government under Section 90 of the Income Tax Act, 1961, also provide that the laws in force in either country will continue to govern the assessment and taxation of income in the respective country except where provisions to the contrary have been made in the Agreement.

Thus, where a Double Taxation Avoidance Agreement provided for a particular mode of computation of income, the same should be followed, irrespective of the provisions in the Income Tax Act. Where there is no specific provision in the Agreement, it is the basic law i.e. the Income Tax Act, that will govern the taxation of income.

The Calcutta High Court held that the circular reflected the correct legal position inasmuch as the Convention or Agreement is arrived at by the two contracting States “in deviation from the general principles of taxation applicable to the Contracting States”. Otherwise, the Double Taxation Avoidance Agreement will have no meaning at all.¹⁰²

In *CIT v R M Muthaiah*,¹⁰³ the Karnataka High Court was concerned with DTAA between the Government of India and the Government of Malaysia. The court held that under the terms of the Agreement, if there was a recognition of the power of taxation with the Malaysian Government, by implication it takes away the corresponding power of the Indian Government. The Agreement was thus held to operate as a bar on the power of the Indian Government to tax and that the bar would operate on sections 4 and 5 of the Income Tax Act, 1961, and take away the power of the Indian Government to levy tax on the income in respect of certain categories as referred to in certain articles of the Agreement. The court summed up the situation by observing:

The effect of an ‘agreement’ entered into by virtue of Section 90 of the Act would be: (i) if no tax liability is imposed under this Act, the question of resorting to the agreement would not arise. No provision of the agreement can possibly fasten a tax liability where the liability is not imposed by this Act; (ii) if a tax liability is imposed by this Act, the agreement may be resorted to for negating or reducing it; (iii) in case of difference between the provisions of the Act and of the agreement, the provisions of the agreement prevail over the provisions of this Act and can be enforced by the Appellate Authorities and the court.¹⁰⁴

In *CIT v P v A L Kulandagan Chettiar*,¹⁰⁵ the question before Supreme Court for adjudication was whether the Malaysian income cannot be subjected to tax in India on the basis of the Agreement of Avoidance of Double Taxation entered into between the Government of India and the Government of Malaysia?

The Agreement between the Government of India and the Government of Malaysia for the avoidance of double taxation and the prevention of fiscal evasion with respect to taxes on income was entered into on 1 April 1977. This Agreement is applicable to persons who are resident of one or both of the contracting States.

101. *CIT v Davy Ashmore India Ltd.*, (1991) 190 ITR 626 (Cal).

102. See also in this connection *Leonhardt Andra Und Partner, GmbH v CIT*, (2001) 249 ITR 418 (Cal).

103. *CIT v R M Muthaiah*, (1993) 202 ITR 508 (Kant).

104. *CIT v R M Muthaiah*, (1993) 202 ITR 508, 512–13 (Kant).

105. *CIT v P v A L Kulandagan Chettiar*, (2004) 6 SCC 235.

The Supreme Court held that liability to income tax arises under the local enactment, i.e. Income Tax Act, 1961 (provisions of sections 4 and 5). The Act provides that taxation of global income of an assessee chargeable to tax there under is subject to the provisions of an Agreement entered into between the Central Government and the Government of a foreign country for avoidance of double taxation as envisaged under section 90. The court held that such an Agreement will act as an exception to or modification of sections 4 and 5 of the Income Tax Act. Where tax liability is imposed by the Act, the Agreement may be resorted to either for reducing the tax liability or altogether avoiding the tax liability. In case of any conflict between the provisions of the Agreement and the Act, the provisions of the Agreement would prevail over the provisions of the Act, as is clear from the provisions of section 90(2) of the Act. Section 90(2) makes it clear that:

[W]here the Central Government has entered into an agreement with the Government of any country outside India for granting relief of tax, or for avoidance of double taxation, then, in relation to the assessee to whom such agreement applies, the provisions of this Act shall apply to the extent they are more beneficial to that assessee.

This means that the Act gets modified in regard to the assessee insofar as the Agreement is concerned, if it falls within the category stated therein. The court further held:

Reading the Treaty in question as a whole when it is intended that even though it is possible for a resident in India to be taxed in terms of sections 4 and 5, if he is deemed to be a resident of a contracting State where his personal and economic relations are closer, then his residence in India will become irrelevant. The Treaty will have to be interpreted as such and prevails over sections 4 and 5 of the Act.

In *UOI v Azadi Bachao Andolan*,¹⁰⁶ the Supreme Court held that since in India a fiscal treaty dealing with double taxation avoidance would have to be translated into an Act of Parliament, a procedure which would be time-consuming and cumbersome, a special procedure was evolved by enacting section 90 of the Act.¹⁰⁷ The court held:

[T]he judicial consensus in India has been that Section 90 is specifically intended to enable and empower the Central Government to issue a notification for implementation of the terms of a Double Taxation Avoidance Agreement. When that happens, the provisions of such an agreement, with respect to cases to which they apply, would operate even if inconsistent with the provisions of the Income Tax Act If it was not the intention of the legislature to make a departure from the general principle of chargeability to tax under Section 4 and the general principle of ascertainment of total income under Section 5 of the Act, then there was no purpose in making those sections "subject to the provisions of the Act". The very object of grafting the said two sections with the said clause is to enable the Central Government to issue a notification under Section 90 towards implementation of the terms of DTACs which would automatically override the provisions of the Income Tax Act in the matter of ascertainment of chargeability to income tax and ascertainment of total income, to the extent of inconsistency with the terms of DTAC.

4.4.4.3.4 Treaties Concerning Human Rights

In *Jolly George Varghese v Bank of Cochín*,¹⁰⁸ the question was whether the personal freedom of the judgment-debtors can be held in ransom until repayment of the debt, and if section 51 read

106. *UOI v Azadi Bachao Andolan*, (2004) 10 SCC 1, p 17.

107. Section 90 empowers the Central Government to enter into an agreement with the Government of any other country outside India for the purposes enumerated in clauses (a) to (d) of sub-section (1). While clause (a) talks of granting relief in respect of income on which income tax has been paid in India as well as in the foreign country, clause (b) is wider and deals with "avoidance of double taxation of income" under the Act and under the corresponding law in force in the foreign country.

108. *Jolly George Varghese v Bank of Cochín*, (1980) 2 SCC 360.

with O XXI rule 37 of the Civil Procedure Code (CPC) does warrant such a step, whether the provision of law is constitutional, tested on the touchstone of fair procedure under Article 21 and in conformity with the inherent dignity of the human person in the light of Article 11 of the International Covenant on Civil and Political Rights.

The Supreme Court in this case concurred with the Law Commission of India in its construction of section 51 of the CPC in the following words:

However, if he once had the means but now has not, or if he has money now on which there are other pressing claims, it is violative of the spirit of Article 11 to arrest and confine him in jail so as to coerce him into payment.

The court stated that it follows that quondam affluence and current indigence without intervening dishonesty or bad faith in liquidating his liability can be consistent with Article 11 of the Covenant, because then no detention is permissible under section 51 CPC. The court further stated that to be poor is no crime and to recover debts by the procedure of putting one in prison is too flagrantly violative of Article 21 of the Constitution unless there is proof of the minimal fairness of his wilful failure to pay in spite of his sufficient means and absence of more terribly pressing claims on his means such as medical bills to treat cancer or other grave illness.

In *Xavier v Canara Bank Ltd*,¹⁰⁹ a judgment-debtor was sought to be detained under O XXI rule 37 CPC although he was 70 and had spent away on his illness the means he once had to pay off the decree. The court observed:

[V]iewed in this progressive perspective we may examine whether there is any conflict between Section 51 CPC and Article 11 of the International Covenants quoted above. As already indicated by me, this latter provision only interdicts imprisonment if that is sought solely on the ground of inability to fulfil the obligation. Section 51 also declares that if the debtor has no means to pay he cannot be arrested and detained. If he has and still refuses or neglects to honour his obligation or if he commits acts of bad faith, he incurs the liability to imprisonment under Section 51 of the Code, but this does not violate the mandate of Article 11. However, if he once had the means but now has not or if he has money now on which there are other pressing claims, it is violative of the spirit of Article 11 to arrest and confine him in jail so as to coerce him into payment....

The *Xavier* dealt with the effect of international law and the enforceability of such law at the instance of individuals within the State. It was observed by the court that:

the remedy for breaches of International Law in general is not to be found in the law courts of the State because International Law per se or *proprio vigore* has not the force or authority of civil law, till under its inspirational impact actual legislation is undertaken. I agree that the Declaration of Human Rights merely sets a common standard of achievement for all peoples and all nations but cannot create a binding set of rules. Member States may seek, through appropriate agencies, to initiate action when these basic rights are violated; but individual citizens cannot complain about their breach in the municipal courts even if the country concerned has adopted the covenants and ratified the optional protocol. The individual cannot come to Court but may complain to the Human Rights Committee, which, in turn, will set in motion other procedures. In short, the basic human rights enshrined in the International Covenants above referred to, may at best inform judicial institutions and inspire legislative action within Member-States; but apart from such deep reverence, remedial action at the instance of an aggrieved individual is beyond the area of judicial authority.

Beg J while delivering concurrent judgment in *ADM v Shivakant Shukla*,¹¹⁰ observed that the argument that the provisions of Universal Declaration of Human Rights should be kept in mind while interpreting the Constitution observed:

109. *Xavier v Canara Bank Ltd*, (1969) Ker LT 927.

110. *ADM v Shivakant Shukla*, (1976) 2 SCC 521, p 755.

these submissions appear to me to amount to nothing more than appeals to weave certain ethical rules and principles into the fabric of our Constitution which is the paramount law of this country and provides the final test of validity and enforceability of rules and rights through courts. To advance such arguments is to forget that our Constitution itself embodies those rules and rights. It also governs the conditions of their operation and suspension. Nothing which conflicts with the provisions of the Constitution could be enforced here under any disguise.

Unfortunately, Beg J called Universal Declaration of Human Rights as “certain ethical rules and principles” knowing the very fact that India is a signatory to the Declaration. A more rational approach was adopted by Khanna J in his dissenting opinion:

Equally well established is the rule of construction that if there be a conflict between the municipal law on one side and the international law or the provisions of any treaty obligations on the other, the courts would give effect to municipal law. If, however, two constructions of the municipal law are possible, the courts should lean in favour of adopting such construction as would make the provisions of the municipal law to be in harmony with the international law or treaty obligations. Every statute, according to this rule, is interpreted, so far as its language permits, so as not to be inconsistent with the comity of nations, or the established rules of international law and the court will avoid a construction which would give rise to such inconsistency unless compelled to adopt it by plain and unambiguous language. But if the language of the statute is clear, it must be followed notwithstanding the conflict between municipal and international law which results.

The Supreme Court in *Apparel Export Promotion Council v A K Chopra*,¹¹¹ gave due respect to the international agreements and conventions while interpreting the domestic law. The court reiterated the obligations of the Government under the international conventions and stated that the message of international instruments such as the Convention on the Elimination of All Forms of Discrimination Against Woman, 1979 and the Beijing Declaration which directs all State parties to take appropriate measures to prevent discrimination of all forms against women beside taking steps to protect the honour and dignity of women is loud and clear. The International Covenant on Economic, Social and Cultural Rights contains several provisions particularly important for woman. Article 7 recognises her right to fair conditions of work and reflects that women shall not be subjected to sexual harassment at the place of work which may vitiate working environment.

These international instruments cast an obligation on the Indian State to gender sensitize its laws and the courts are under an obligation to see that the message of the international instruments is not allowed to be drowned. The Supreme Court has in numerous cases emphasized that while discussing constitutional requirements, court and counsel must never forget the core principle embodied in the International Conventions and Instruments and as far as possible give effect to the principles contained in those international instruments. The courts are under an obligation to give due regard to International Conventions and norms for construing domestic laws more so when there is no inconsistency between them and there is a void in domestic law. In cases involving violation of human rights, the courts must forever remain alive to the international instruments and conventions and apply the same to a given case when there is no inconsistency between the international norms and the domestic law occupying the field. In the instant case, the High Court appears to have totally ignored the intent and content of the International Conventions and norms while dealing with the case.

In *Kubic Darusz v UOI*,¹¹² the Supreme Court held that when an act of preventive detention involves a foreign national, though from the national point of view the municipal law alone

111. *Apparel Export Promotion Council v A K Chopra*, AIR 1999 SC 625.

112. *Kubic Darusz v UOI*, (1990) 1 SCC 568.

counts in its application and interpretation, it is generally a recognised principle in national legal system that in the event of doubt the national rule is to be interpreted in accordance with the State's international obligations as was pointed out by Krishna Iyer, J in *Jolly George Varghese v Bank of Cochin*.¹¹³ There is need for harmonisation whenever possible bearing in mind the spirit of the Covenants. In this context it may not be out of place to bear in mind that the fundamental rights guaranteed under our Constitution are in conforming line with those in the Universal Declaration of Human Rights, the Covenant on Civil and Political Rights and the Covenant on Economic, Social and Cultural Rights to which India has become a party by ratifying them.

On the issue of sexual harassment of working women at work places, the Supreme Court in *Vishaka v State of Rajasthan*,¹¹⁴ stated that international conventions and norms having relevance in this field have assumed significance in application and judicial interpretation. The court observed:

In the absence of domestic law occupying the field, to formulate effective measures to check the evil of sexual harassment of working women at all workplaces, the contents of international conventions and norms are significant for the purpose of interpretation of the guarantee of gender equality, right to work with human dignity in Articles 14, 15, 19(1) (g) and 21 of the Constitution and the safeguards against sexual harassment implicit therein. Any international convention not inconsistent with the fundamental rights and in harmony with its spirit must be read into these provisions to enlarge the meaning and content thereof, to promote the object of the constitutional guarantee. This is implicit from Article 51(c) and the enabling power of Parliament to enact laws for implementing the international conventions and norms by virtue of Article 253 read with Entry 14 of the Union List in Seventh Schedule of the Constitution. Article 73 also is relevant. It provides that the executive power of the Union shall extend to the matters with respect to which Parliament has power to make laws. The executive power of the Union is, therefore, available till Parliament enacts legislation to expressly provide measures needed to curb the evil.

The court further stated that gender equality includes protection from sexual harassment and right to work with dignity, which is a universally recognised basic human right. The common minimum requirement of this right has received global acceptance. The international conventions and norms are, therefore, of great significance in the formulation of the guidelines to achieve this purpose. The court observed:

The international conventions and norms are to be read into them in the absence of enacted domestic law occupying the field when there is no inconsistency between them. It is now an accepted rule of judicial construction that regard must be had to international conventions and norms for construing domestic law when there is no inconsistency between them and there is a void in the domestic law.

In *National Legal Services Authority v UOI*,¹¹⁵ the Supreme Court stated that “due to the absence of suitable legislation protecting the rights of the members of the transgender community, they are facing discrimination in various areas and hence the necessity to follow the International Conventions to which India is a party and to give due respect to other non-binding International Conventions and principles. Constitution makers could not have envisaged that each and every human activity be guided, controlled, recognised or safeguarded by laws made by the legislature”. The Supreme Court thus emphasised the need to refer to even non-binding International Conventions and principles when there was no municipal law.

113. *Jolly George Varghese v Bank of Cochin*, (1980) 2 SCC 360.

114. *Vishaka v State of Rajasthan*, (1997) 6 SCC 241.

115. *National Legal Services Authority v UOI*, Writ Petition (Civil) No. 400 of 2012 with Writ Petition (Civil) No. 604 of 2013 decided on 15 April 2014, para 49.

Considering the issue of grant of compensation for contravention of human rights and fundamental freedoms, the Supreme Court in *Nilabati Behera v State of Orissa*,¹¹⁶ referred to Article 9(5) of the International Covenant on Civil and Political Rights, 1966. The court was of the opinion that Article 9(5) indicated that an enforceable right to compensation was not alien to the concept of enforcement of a guaranteed right.¹¹⁷

The Supreme Court in *D K Basu v State of West Bengal*,¹¹⁸ stated that “custodial violence” and abuse of police power is not only peculiar to this country but also widespread. It has been the concern of international community because the problem is universal and the challenge is almost global. The Universal Declaration of Human Rights in 1948, which marked the emergence of a worldwide trend of protection and guarantee of certain basic human rights, stipulates in Article 5 that “no one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment”. Despite the pious declaration, the crime continues unabated, though every civilized nation shows its concern and takes steps for its eradication.

Rejecting the reservation made by the Government of India to the International Covenant on Civil and Political Rights, 1966, the Supreme Court held:

Article 9(5) of the International Covenant on Civil and Political Rights, 1966 (ICCPR) provides that “anyone who has been the victim of unlawful arrest or detention shall have enforceable right to compensation”. Of course, the Government of India at the time of its ratification (of ICCPR) in 1979 had made a specific reservation to the effect that the Indian Legal system does not recognise a right to compensation for victims of unlawful arrest or detention That reservation, however, has now lost its relevance in view of the law laid down by this Court in a number of cases awarding compensation for the infringement of the fundamental right to life of a citizen.

4.4.4.3.5 Other Treaties

In *Civil Rights Vigilance Committee, S L S R C College of Law, Bangalore v UOI*,¹¹⁹ the issue was whether the Government of India should allow the English Cricket Team which included Boycott and Cook to visit India and to play cricket matches, despite their links with South Africa which was practising policy of apartheid.

The Government of India was a party to the Gleneagles Accord of 12 June 1977, entered into by the member countries of the Commonwealth, wherein they reaffirmed their full support for the international campaign against apartheid and welcomed the efforts of the United Nations to reach universally accepted approaches to the question of sporting contacts with South Africa within the framework of that campaign. Boycott and Cook, were among the sportsmen blacklisted by the United Nations for having participated in sports events in South Africa between the 1 December 1980, and the 31 March 1981. When the Gleneagles Accord reaffirmed the full support of the member countries of the Commonwealth for the international campaign against apartheid and welcomed the efforts of the United Nations to reach universally accepted approaches to the question of sporting contacts with South Africa within the framework of that campaign, the Government of India being one of such member countries, was under an obligation not to allow Boycott and Cook who had sporting contacts with South Africa, to come to India as members of the English cricket team and to play cricket matches in this country. The Government of India should have prevented the entry of those two players into this country by invoking its authority under para 2 of the Exemption Order.

116. *Nilabati Behera v State of Orissa*, AIR 1993 SC 1960.

117. Article 9(5) reads as: Anyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation.

118. *D K Basu v State of West Bengal*, AIR 1997 SC 610.

119. *S L S R C College of Law, Bangalore v UOI*, AIR 1983 Kant 85.

The Government of India, however, allowed that English cricket team including those two players to come to the country and to play matches as scheduled.

The court held that the Government of India's obligations under the Gleneagles Accord and obligations attached to its membership of United Nations, cannot be enforced at the instance of citizens of this country or associations of such citizens of this country or associations of such citizens, by courts in India, unless such obligations are made part of the law of this country by means of appropriate legislation.

4.5 Conflict of Laws: Rule of Interpretation

In *Gramophone Co of India Ltd v Birendra Babadur Pandey*,¹²⁰ the Supreme Court examined two questions: first, whether international law is, of its own force, drawn into the law of the land without the aid of municipal statute and, second, whether, so drawn, it overrides municipal law in case of conflict.

Examining the aforesaid questions, the Supreme Court took assistance from the English law. The court stated that in England there are two schools of thought, one school of thought propounding the doctrine of incorporation and the other, the doctrine of transformation.¹²¹ According to the one, rules of international law are incorporated into the law of the land automatically and considered to be part of the law of the land unless in conflict with an Act of Parliament. According to the other, rules of international law are not part of the law of the land, unless already made so by an Act of Parliament, judicial decision or long established custom.

According to the one whenever the rules of international law changed, they would result in a change of the law of the land along with them, “without the aid of an Act of Parliament”. According to the other, no such change would occur unless those principles are “accepted and adopted by the domestic law”. Lord Denning who had once accepted the transformation doctrine without question, later veered round to express a preference for the doctrine of incorporation and explained how courts were justified in applying modern rules of international law when old rules of international law changed. In fact, the doctrine of incorporation, it appears, was accepted in England long before Lord Denning did so. Lord Denning himself referred to some old cases. Apart from those, we may refer to *West Rand Central Gold Mining Co v King*,¹²² where the court said:

It is quite true that whatever has received the common consent of civilized nations must have received the assent of our country, and that to which we have assented along with other nations in general may properly be called international law, and as such will be acknowledged and applied by our municipal tribunals when legitimate occasion arises for those tribunals to decide questions to which doctrines of international law may be relevant.

The Supreme Court held that there can be no question that nations must march with the international community and the municipal law must respect rules of international law even as nations respect international opinion. The comity of nations requires that rules of international law may be accommodated in the municipal law even without express legislative sanction provided they do not run into conflict with Acts of Parliament. But when they do run into such conflict, the sovereignty and the integrity of the Republic and the supremacy of the constituted legislatures in making the laws may not be subjected to external rules except to the extent legitimately accepted by the constituted legislatures themselves. The doctrine of incorporation also recognises the position that the rules of international law are incorporated

120. *Gramophone Co of India Ltd v Birendra Babadur Pandey*, (1984) 2 SCC 534.

121. Per Lord Denning MR in *Trendtex Trading Corp'n. v Central Bank of Nigeria*, (1977) 1 All ER 881.

122. *West Rand Central Gold Mining Co v King*, (1905) 2 KB 391.

into national law and considered to be part of the national law, *unless they are in conflict with an Act of Parliament*. Comity of nations or no, municipal law must prevail in case of conflict. National courts cannot say yes if Parliament has said no to a principle of international law. National courts will endorse international law but not if it conflicts with national law. National courts being organs of the national State and not organs of international law must perforce apply national law if international law conflicts with it. But the courts are under an obligation within legitimate limits, to so interpret the municipal statute as to avoid confrontation with the comity of nations or the well-established principles of international law. But if conflict is inevitable, the latter must yield.

The proposition has been well stated by Latham, CJ, in *Polites v Commonwealth*:¹²³

Every statute is to be interpreted and applied, as far as its language admits, as not to be inconsistent with the comity of nations or with the established rules of international law.... It must be held that legislation otherwise within the power of the Commonwealth Parliament does not become invalid because it conflicts with a rule of international law, though every effort should be made to construe Commonwealth statutes so as to avoid breaches of international law and of international comity. The question, therefore, is not a question of the power of the Commonwealth Parliament to legislate in breach of international law, but is a question whether in fact it has done so.

The Supreme Court of India has said practically the same thing in *Tractoroexport, Moscow v Tarapore & Co*:¹²⁴

Now, as stated in *Halsbury's Laws of England*, Vol. 36, p. 414, there is a presumption that Parliament does not assert or assume jurisdiction which goes beyond the limits established by the common consent of nations and statutes are to be interpreted provided, that their language permits, so as not to be inconsistent with the comity of nations or with the established principles of international law. But this principle applies only where there is an ambiguity and must give way before a clearly expressed intention. If statutory enactments are clear in meaning, they must be construed according to their meaning even though they are contrary to the comity of nations or international law.

The observations show that the court was only concerned with a principle of interpretation, but by implication, it may be possible to say that the court preferred the doctrine of incorporation; otherwise the question of interpretation would not truly arise. What has been said in the *Tractoroexport* case is entirely consistent with what we have said earlier.

In *Indian Performing Right Society Ltd v Aditya Pandey*,¹²⁵ the Division Bench of Delhi High Court observed that it is settled law that unless an international convention finds itself legislated in municipal law it would be impermissible to import the principle deduced from an international convention. The court elaborated this preposition by stating that if the legislature has legislated, the intention has to be gathered from the statute, and while so doing guidance may be had from international conventions, on the presumption that the legislature had kept the international convention in mind. The statute, if unambiguous, is to be preferred.¹²⁶

In *Chairman, Rly Board v Chandrima Das*,¹²⁷ the Supreme Court referred to *Brind v Secy of State for the Home Dept*,¹²⁸ where Lord Bridge observed that it was well settled that, in construing any provision in domestic legislation which was ambiguous in the sense that it was capable of a meaning which either conforms to or conflicts with the International Convention, the courts

123. *Polites v Commonwealth*, (1945) 70 CLR 60.

124. *Tractoroexport, Moscow v Tarapore & Co*, AIR 1971 SC 1.

125. *Indian Performing Right Society Ltd v Aditya Pandey*, (2012) 50 PTC 460 (Del) (DB).

126. *Indian Performing Right Society Ltd v Aditya Pandey*, (2012) 50 PTC 460, p 485.

127. *Chairman, Rly Board v Chandrima Das*, (2000) 2 SCC 465.

128. *Brind v Secy of State for the Home Dept*, (1991) 1 All ER 720 (HL).

would presume that Parliament intended to legislate in conformity with the Convention and not in conflict with it.

The Bombay High Court in *Bayer Corp v UOI*,¹²⁹ stated that while considering and interpreting the municipal law, the same would have to be necessarily construed in consonance with International Treaties/Agreements to which India is a party.

Relying upon Article 51, Sikri, CJ observed in the case of *Kesavananda Bharati v State of Kerala*:¹³⁰

It seems to me that, in view of Article 51 of the directive principles, this Court must interpret language of the Constitution, if not intractable, which is after all a municipal law, in the light of the United Nations Charter and the solemn declaration subscribed to by India.

In *LG Electronics India Pvt Ltd v Bharat Bhogilal Patel*,¹³¹ the Delhi High Court observed that if the terms of the provisions of municipal law were not clear and ambiguous in nature which were reasonably capable of more than one meaning and the said provision of law was based upon implementation of international treaty then the treaty itself would become relevant and the interpretation of treaty could be used as an aid to construction of the said relevant provision.¹³² After referring to several authorities,¹³³ the court deduced following propositions:

- (i) It is amply clear by virtue of the State Directives envisaged in the Constitution that it is obligatory upon the courts which are also one of the facet of the State to consider upon the international treaty for the purpose of construing the rules of municipal laws which are aimed at implementing the treaty obligation of the State and if, there are two views emerging from the reading of the provision and the treaty, the one which is not consonant and another which is consonant then the interpretation which is consonant would be preferred over and above the other.
- (ii) In the cases of the interpretation of the provisions which are aimed at implementing the international treaty, there is a prima facie presumption that the provisions are made in consonance with the international agreement and thus the same interpretation must be given in the same sense.
- (iii) The normal rule of the conflict that once there is conflict between the municipal law and international law, the municipal law should be followed, does not in any way preclude the court from looking into the international law and examine the true meaning of the provision, when the interpretation of such provision under the municipal law is ambiguous.
- (iv) Upon examining the true meaning, the court must interpret the same in consonance with the international agreement when the said provision is capable of two interpretations unless there are compelling reasons to take the contrary view. This is due to the reason that the provision or the law itself is aimed at implementing the international obligation.¹³⁴

To sum up, the judiciary in India has been sensitised towards the implementation of international law in India. The courts are now referring to international law very frequently

129. *Bayer Corp v UOI*, AIR 2014 Bom 178, Writ Petition No 1323 of 2013 decided on 15 July 2014.

130. *Kesavananda Bharati v State of Kerala*, (1973) 4 SCC 225, p 333.

131. *LG Electronics India Pvt Ltd v Bharat Bhogilal Patel*, (2012) 51 PTC 513 (Del).

132. *LG Electronics India Pvt Ltd v Bharat Bhogilal Patel*, (2012) 51 PTC 513, p 557 (Del).

133. *Saloman v Commissioner of Customs and Excise*, (1966) 3 All ER 871 (CA) 875; *Kubic Dariusz v UOI*, AIR 1990 SC 605; *Peoples Union of Civil Liberties v UOI*, AIR 1997 SC 568, p 575; *Applicant v Minister for Immigration*, (1997) 71 ALJR 381, p 383; *R v Secretary of State for the Home Department*, (2004) 1 All ER 65, 84; *S & S Enterprise v Designated Authority*, (2005) 3 SCC 337, p 340.

134. *LG Electronics India Pvt Ltd v Bharat Bhogilal Patel*, (2012) 51 PTC 513, pp 558–59 (Del).

while pronouncing judgments. Where there is a void in a municipal law, courts have no hesitation in invoking international law. Further, where there is no conflict between municipal law and international law, the courts interpret the municipal law favouring international law. Where there exists a conflict between international law and municipal law, and the municipal law is vague and unclear, the courts interpret the municipal law in such a way as to avoid any conflict with international law. Where, however, there is a conflict between international law and municipal law, and the municipal law is clear, the courts apply municipal law only.

Before concluding this chapter, it will be appropriate to make a reference to the Prize courts and the law applied by them.

4.6 Prize Courts

Prize courts are constituted by the maritime States to decide the matter arising out of the capture of the ships in war by that State. The matter is related to the prize claimed by the maritime State from the captured ships. These courts are municipal courts, but they have to administer the international law of prize, i.e. customary and treaty law, even if the international law is contrary to the municipal law. The Judicial Committee of the Privy Council in *The Zamora* case¹³⁵ held that a British prize court had to apply the international law even though it conflicted with an order in council. It had to be bound by a British statute.¹³⁶

135. *The Zamora*, [1916] 2 AC 77.

136. *The Zamora*, [1916] 2 AC 77, p 93.

CHAPTER 5

RECOGNITION

SYNOPSIS

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Recognition is voluntary act of existing States to acknowledge the existence of a human society on a definite territory as State, provided it is politically organised, independent and capable of carrying out its obligations under international law.¹ According to Montevideo Convention on the Rights and Duties of States of 1933, the recognition of a State merely signifies that the State which recognises it accepts the personality of the other with all the rights and duties determined by international law.²

Recognition in fact is a political act. To confer or not to confer recognition on a State or government is a matter which falls within the province of executive and not the judiciary. The courts are bound by the statements made by the executive branch of the government. As recognition is a political act, the States may confer early recognition on new States or governments or delay it or refuse it keeping in mind their interests.³ There may not be any legal justifications of their acts. Thus, in many cases, the decision of recognising or not recognising a new State or government may depend more upon political considerations than exclusively legal factors.⁴

1. Article 1 of Montevideo Convention on the Rights and Duties of States, 1933 lays down essential characteristics of a State. It provides that “the State as a person of international law should possess the following qualifications: — (a) a permanent population; (b) a defined territory; (c) a Government; and (d) a capacity to enter into relations with other States”.
2. Montevideo Convention on the Rights and Duties of States, 1933, Article 6.
3. For example, United States conferred recognition on Israel on 14 May 1948, the day on which the Israeli Act of Independence became effective, even though the existence of Israel was not firmly established by then. Similarly, Bangladesh was recognised by India in 1971, even when the territory of East Pakistan (now Bangladesh) was still under the control of Pakistani authorities.
4. For example, the United States refused to recognise People’s Republic of China and North Korea for many years just for political reasons.

5.1 Reasons for Recognising a State or Government

The world map keeps on changing due to increasing or decreasing number of States from time to time. Political developments take place in several States which sometimes result in uniting of two or more States into one; overthrow of governments; attaining of independence from colonial rule; disintegration of State, due to which several new entities are formed; etc. The status of new States and governments which come to power by unconstitutional means particularly after revolt becomes a matter of concern for other States which formerly had relations with the ousted governments. It becomes important for the existing States to decide whether or not to have formal or informal relations with the new regime by recognition or otherwise.

There are certain factors which may prompt a State to confer recognition on a new State or government. These may include the necessity to protect its nationals, investment, trade and other interests.

5.2 Theories of Recognition

There are two theories on recognition: (i) constitutive and (ii) declaratory.

5.2.1 Constitutive

The constitutive theory maintains that it is the act of recognition by other States that creates a new State and endows it with legal personality. Constitutive theory, therefore is status creating. According to constitutive theory, the political act of recognition is a pre-condition of the existence of legal rights. Thus, the very personality of a State depends on the political decision of other States. In other words, the act of recognition creates statehood. The recognition alone clothes a new government with any authority or status in the international sphere. The supporters of this theory include Anzilotti, Kelsen, and Lauterpacht.

According to Lauterpacht, the full international legal personality of rising communities cannot be automatic. As its ascertainment requires the prior determination of difficult circumstances of fact and law, there must be someone to perform the task. This task is performed by the already existing States. In other words, he maintained that once the conditions prescribed by international law for statehood had been complied with, there was a duty on the part of existing States to grant recognition. As there was no central authority to assess and confer legal personality, it was for the existing States to recognise the new entity as State.⁵

The constitutive theory has several drawbacks. It is criticised on many grounds. First of all, the States cannot by their independent judgment remove or abrogate any competence of other States established by international law. Further, it is difficult to decide as to how many States must recognise? Can existence be relative only to those States which recognise? Does non-recognition by a State entitle it to treat an entity as a non-State for the purposes of international law, eg by intervening in its internal affairs or annexing its territory?⁶ Further, does non-recognition may mean that an unrecognised State is not subject to the obligations imposed by international law and is therefore free to implement the policies of aggression?

The constitutive theory, however, may be supported to some extent due to the fact that upon recognition, the recognised State or government acquires status in the municipal courts of the recognising State. The act of recognition, therefore, itself creates legal results within the domestic jurisdiction.

5. Lauterpacht, *Recognition in International Law*, 1947, p 55.

6. James Crawford, *Brownlie's Principles of Public International Law*, 2012, p 146.

5.2.2 Declaratory or Evidentiary

Declaratory theory is status confirming. Recognition is to acknowledge as a fact something which has hitherto been uncertain, namely the independence of the body claiming to be a State, and to declare the recognising State's readiness to accept the normal consequences of that fact, namely the usual courtesies of international intercourse.⁷ The legal effects of recognition are limited. According to declaratory theory, recognition is a declaration or acknowledgement of an existing State of law and fact, legal personality having been conferred previously by operation of law. In other words, statehood or the authority of a new government exists prior to and independently of recognition. Recognition is not more than a formal acknowledgment of an established situation of fact.

Thus, in contrast to the constitutive theory, the declaratory theory maintains that a new State acquires capacity in international law not by virtue of the consent of others but by virtue of a particular factual situation. The supporters of this theory include Chen, Waldock, Rolin and Kunj. The Opinion No. 1 of the Arbitral Commission of the EC Conference on Yugoslavia in 1991 has also stated that the existence or disappearance of State was a question of fact and recognition of States by other States was purely declaratory.

The declaratory theory is also supported by the rule that recognition of a new State has retroactive effect, dating back to its actual inception as an independent State. Further, before an international tribunal, it would be entirely proper to accept the existence of a State although the other party to the dispute, or third States do not recognise it.⁸

In practice, out of the two theories, most of the States follow declaratory theory. To sum up, it may be said that recognition, while declaratory of an existing fact, is constitutive in nature, at least so far as concerns relations with the recognising State. It marks the beginning of the effective enjoyment of the international rights and duties of the recognised community.⁹

5.3 Types of Recognition

There can be two types of recognition: (i) express recognition and (ii) implied recognition. It is the intention of the existing States which matters.

5.3.1 Express Recognition

Express recognition may be conferred by formal declaration. This means that recognition may be conferred *inter alia* by diplomatic note, *note verbale*, personal message from the head of State or Minister of Foreign Affairs, parliamentary declaration, or treaty. The recognising State, therefore, makes its intention clear that it is recognising the new State or the government.

5.3.2 Implied Recognition

Implied recognition may be inferred from certain relations between the recognising State and the new State or government. Article 7 of the Montevideo Convention on Rights and Duties

7. Brierly, *The Law of Nations*, 6th ed, 1963, p 138.

8. *Tinoco Concessions*, (1923) 1 RIAA 369. See also Application of the Convention on the Prevention and Punishment of the Crime of Genocide (*Bosnia and Herzegovina v Yugoslavia*), Preliminary Objections, (1996) ICJ Rep 595 p 612–13, where the ICJ rejected the arguments of Socialist Federal Republic of Yugoslavia that the allegations of the breach of the Genocide Convention of 1948 made by Bosnia-Herzegovina were not admissible as the parties to the dispute had not recognised each other at the time of the events in question. The Court ruled that as the recognition had been given subsequently in the Dayton Accord, any defect was merely procedural and could be remedied by re-filing the claim to relate to events of genocide occurring prior to 1995; see Crawford, *supra* note 6 at 145.

9. See also *Oppenheim's International Law*, Robert Jennings and Arthur Watts (Eds), 9th Edn, 1996, p 133.

of States, 1933 also provides that the recognition of a State may be express or tacit. The latter results from any act which implies the intention of recognising the new State.

There may be implied recognition where a new State is allowed in the conclusion of a bilateral treaty, the formal initiation of diplomatic relations and the issue of consular exequaturs, etc.¹⁰ An inference of recognition may also be made where States vote for the membership of a new entity to the United Nations.

Recognition, however, may not be implied from negotiations, unofficial representation, the conclusion of a multilateral treaty to which the unrecognised entity is also a party,¹¹ admission to an international organisation, or participation with the entity concerned at an international conference.¹² Further, recognition is not to be inferred *inter alia* from a bilateral agreement with that authority for a limited purposes, retention of diplomatic representatives for an interim period, the establishment of representative offices with something less than full diplomatic character, exchange of visits of high ranking persons, and the maintenance of contact with the insurgents in a civil war and conducting negotiations with them.¹³

The manner of recognition does not matter but the intention of recognising State that it is recognising the new State or government should be clear. It is noteworthy that recognition, once granted precludes the recognising State from contesting the qualifications for recognition.

5.4 Collective Recognition

The collective recognition may be conferred through the medium of an international institution or by some collective international act. The recognition of Bulgaria, Montenegro, Serbia and Rumania by the Berlin Congress of 1878 is the example of collective recognition. Membership of the United Nations for a new State may be a good example of collective recognition. In view of the Advisory Opinion of the International Court of Justice (ICJ) on *Conditions of Admission of a State to Membership in the United Nations*,¹⁴ which recognises statehood as a primary qualification for admission to the United Nations, such admission may be tantamount to recognition of the member admitted as a State.¹⁵ This however, is not a settled proposition. The admission of a new State to the United Nations is consistent with the decision of an existing State of not recognising it. For example, several Arab States, which were members of the international organisations together with Israel, did not recognise it.

In 1950, the former Secretary-General of the United Nations stated that:

the United Nations does not possess any authority to recognize either a new state or a new government of an existing state. To establish the rule of collective recognition by the United Nations would require either an amendment of the Charter or a treaty to which all members would adhere.¹⁶

10. The issuing of a consular exequatur, the accepted authorisation permitting the performance of consular functions, to a representative of an unrecognised State will usually amount to recognition of that State, though not in all cases. For example, a British consul has operated in Taiwan, but the United Kingdom did not recognise the Taiwan government; see Malcolm N Shaw, *International Law*, 2008, p 463.

11. For example, many of the Member States of the United Nations Charter were not recognised by other Member States.

12. See James Crawford, *Brownlie's Principles of Public International Law*, 2012, p 149.

13. See also *Oppenheim's International Law*, Robert Jennings and Arthur Watts (Eds), 9th Edn, 1996, pp 170–74.

14. *Conditions of Admission of a State to Membership in the United Nations*, (1948) ICJ Rep 57.

15. J G Starke, *Introduction to International Law*, 1st Indian reprint, 1994, p 137.

16. UN Doc S/1466.

5.5 EC Guidelines on the Recognition of new States

In 1991, the Ministers in Europe adopted the following guidelines on the formal recognition on new States in Eastern Europe and in the Soviet Union:

The Community and its Member States confirm their attachment to the principles of the Helsinki Final Act and the Charter of Paris, in particular the principle of self-determination. They affirm their readiness to recognize, subject to the normal standard of international practice and the political realities in each case, those new States which, following the historic changes in the region, have constituted themselves on a democratic basis, have accepted the appropriate international obligations and have committed themselves in good faith to a peaceful process and to negotiations.

The Ministers adopted a common position on the process of recognition of these new States, which required:

- (i) respect for the provisions of the Charter of the United Nations and the commitments subscribed to in the Final Act of Helsinki and in the Charter of Paris, especially with regard to the rule of law, democracy and human rights;
- (ii) guarantee for the rights of ethnic and national groups and minorities in accordance with the commitments subscribed to in the framework of the CSCE;
- (iii) respect for the inviolability of all frontiers which can only be changed by peaceful means and by common agreement;
- (iv) acceptance of all relevant commitments with regard to disarmament and nuclear non-proliferation as well as to security and regional stability;
- (v) commitment to settle by agreement, including where appropriate by recourse to arbitration, all questions concerning State succession and regional disputes.

It was also decided that the Community and its Member States would not recognise entities which were the result of aggression. Eleven out of fifteen republics of the former USSR were recognised by the EC and its Member States by applying these guidelines.¹⁷

The EC guidelines of 1991 are a departure from British practice of recognition of new States, which generally focus on the Montevideo Convention requirements. It is clear from the statement of the Minister of State, Foreign and Commonwealth Office, which he made in 1986. He stated that:

the normal criteria which the Government apply for recognition as a State are that it should have, and seem likely to continue to have, a clearly defined territory with a population, a Government who are able of themselves to exercise effective control of that territory, and independence in their external relations. Other factors, including some United Nations resolutions, may also be relevant.¹⁸

The United States also focuses on the requirements laid down in Montevideo Convention. In 1976, the US Department of State stated that:

in the view of the United States, international law does not require a State to recognize another entity as a State; it is a matter for the judgment of each State whether an entity merits recognition as a State. In reaching this judgement, the United States has traditionally looked to the establishment of certain facts. These facts include effective control over a clearly-defined territory and population; and organized governmental administration of that territory; and a capacity to act effectively to conduct foreign relations and to fulfill international obligations. The United States has also taken into account whether the entity in question has attracted the recognition of the international community of States.¹⁹

17. See D J Harris, *Cases and Materials on International Law*, 2004, pp 147–48.

18. D J Harris, *Cases and Materials on International Law*, 2004, p 154.

19. *American Journal of International Law*, vol 72, 1978, p 337.

5.6 Recognition of Government

Recognition of a new Government or head of State is independent of recognition of State. Where recognition is not conferred on a new Government formed in a State whether in constitutional or unconstitutional manner, that would not mean that the State has lost recognition or it is required to be recognised again. Where an unconstitutional change of regime takes place in a recognised State, governments of other States normally consider what dealings, if any, they should have with the new regime, and whether and to what extent it qualifies to be treated as the Government of the State concerned. The States may or may not confer recognition on the new regime.

In *Tinoco Arbitration*,²⁰ William H Taft observed that:

the non-recognition by other nations of a government claiming to be a national personality, is usually appropriate evidence that it has not attained the independence and control entitling it by international law to be classed as such. But when recognition *vel non* of a government is by such nations determined by inquiry, not into its *de facto* sovereignty and complete governmental control, but into its illegitimacy or irregularity of origin, their non-recognition loses something of evidential weight on the issue with which those applying the rules of international law are alone concerned. What is true of non-recognition of the United States in its bearing upon the existence of a *de facto* government under Tinoco for thirty months is probably in a measure true of the non-recognition by her Allies in the European War. Such non-recognition for any reason, however, cannot outweigh the evidence disclosed by this record before me as to the *de facto* character of Tinoco's government, according to the standard set by international law.

In due course of time many States adopted the policy of not recognising the government. Some States eg United States, United Kingdom, France, Belgium, Canada, Australia, have adopted the policy of not recognising the governments. The United States made the following declaration in 1977:

US practice has been to de-emphasise and avoid the use of recognition in cases of changes of governments and to concern ourselves with the question of whether we wish to have diplomatic relations with the new governments.²¹

The United Kingdom also announced its policy of not recognising the governments in 1980. It was stated that the government of United Kingdom would no longer accord recognition to governments as distinct from States. Generally, problems do not arise where the government changes in constitutional manner. Difficulty arises only when the change in government takes place in unconstitutional manner such as by revolution. The UK Government has decided to deal with such unconstitutional regimes "in the light of assessment of whether they are able of themselves to exercise effective control of the territory of the State concerned, and seem likely to continue to do so".²²

In *Republic of Somalia v Woodhouse Drake Carey Suisse SA*,²³ the court stated that:

the factors to be taken into account in deciding whether a government exists as the government of a State are: (a) whether it is the constitutional government of the State; (b) the degree, nature and stability of administrative control, if any, that it of itself exercises over the territory of the State; (c) whether Her Majesty's Government has any dealings with it and if so what is the nature of those dealings; and (d) in marginal cases, the extent of international recognition that it has as the government of the State.

20. *Great Britain v Costa Rica*, (1923) 1 RIAA 369.

21. *Digest of United States Practice in International Law*, 1977, p 20.

22. Recognition of Governments : Policy and Practice, HL Deb., vol 408, cc1121-2WA, 28 April 1980.

23. *Republic of Somalia v Woodhouse Drake Carey Suisse SA*, [1993] QB 54.

5.7 *De facto* and *De jure* Recognition

Recognition conferred by a State may be *de facto* or *de jure*. When recognising State is of the opinion that *factually* the new State or the Government fulfils the requirement laid down by international law, it may recognise such State or government temporarily, as the former may have certain doubts with respect to the latter's future. When the recognising State overcomes the doubts, it may extend *de jure* recognition. The *de facto* recognition, therefore depicts the attitude of recognising States of "wait and watch".²⁴

De jure recognition, on the other hand indicates the intention of recognising State that the Government or State to be recognised fulfils the requirements laid down by international law. The recognising States does not have any doubt about its stability or the future. *De jure* recognition may be conferred directly.

The States, ordinarily confer *de facto* recognition when a new Government comes to power after revolution and the legitimate regime is overthrown, which was recognised as *de jure*. The States confer *de facto* recognition on the new regime. The decision of recognising State may be influenced by several factors, eg it may become necessary for it to protect its nationals or investment in that State or it may gain economic advantages or it is necessary to continue with ongoing projects as disruption in these activities may be prejudicial to its interest or security.

During Spanish Civil War, the United Kingdom recognised the Republican Government as the *de jure* government and granted *de facto* recognition to the forces under General Franco as they gradually took over the country. Likewise, the United Kingdom conferred *de facto* recognition on the government of Italian conquering forces in Ethiopia in 1936. The *de jure* recognition was conferred after two years.²⁵

Where *de facto* government in a part of a State comes to power, the rights and status of such government prevails in that part. The issue of conflict between the laws passed by the *de jure* government and *de facto* government came up in *Bank of Ethiopia v National Bank of Egypt and Liguori*.²⁶ After conquering Abyssinia in 1936, the Government of Italy was conferred *de facto* recognition. The exiled Emperor of Abyssinia, who was *de jure* ruler fled from there. The Italian Government enacted certain laws in conflict with the laws made by the exiled Emperor of Abyssinia. The court gave effect to the authority of *de facto* regime over the *de jure* ruler, whose authority was merely theoretical and incapable of being enforced.²⁷

De facto recognition of a government is as good as *de jure* recognition, so long it remains in force. In *Luther v Sagor*,²⁸ it was stated that in case of *de jure* recognition, as well as in *de facto* recognition, "the Government in question acquires the right to be treated by the recognising State as an independent sovereign State, and none the less that our Government does not pretend to express any opinion on the legality or otherwise of the means by which its power has been obtained".

24. For example, the governments of Finland, Latvia and Estonia were recognised as *de facto* governments, even though the territorial settlement was still pending. Further, the Government of Soviet Union which was firmly and effectively established, was recognised as *de facto* Government for a number of years, because the recognising States were of the opinion that the Government of Soviet Union was unwilling to fulfill its international obligations in such matters as compensation for the confiscated property of foreign subjects and acknowledgement of liability for financial obligations incurred by its predecessors. See *Oppenheim's International Law*, Robert Jennings and Arthur Watts (Eds), 9th ed, 1996, p 156.

25. See Malcolm N Shaw, *International Law*, 2008, p 460.

26. *Bank of Ethiopia v National Bank of Egypt and Liguori*, [1937] Ch 513.

27. See also *Arantzazu Mendi*, [1939] AC 256, in which the British Admiralty court stated that *de facto* government in Spain (who were insurgents in Spanish Civil War) was a sovereign State and was entitled to immunity from appearing before the British court.

28. *Luther v Sagor*, [1921] 3 KB 532, p 551.

The international responsibility of a State for wrongful acts remains the same whether it is ruled by a *de facto* or a *de jure* government.

5.7.1 Distinctions Between *de jure* and *de facto* Recognition

There are certain distinctions between the *de facto* and *de jure* recognition. Starke has identified following distinctions:

- (i) only the *de jure* recognised State or government can claim to receive property locally situated in the territory of the recognising State;
- (ii) only the *de jure* recognised State can represent the old State for purposes of State succession, or in regard to espousing any claim of a national of that State for injury done by the recognising State in breach of international law;
- (iii) the representatives of entities recognised only *de facto* are not as a rule entitled to full diplomatic immunities and privileges;
- (iv) *de facto* recognition can, in principle, owing to its provisional character, be withdrawn on several grounds other than those normally justifying a withdrawal of *de jure* recognition; and
- (v) if a sovereign State, *de jure* recognised, grants independence to a dependency, the new State is to be recognised *de jure* and not otherwise.²⁹

In practice, the distinctions between the *de jure* and *de facto* recognition, in so far as the municipal laws of the recognising States are concerned, have been erased to certain extent.³⁰

5.8 Conditional Recognition

Sometimes, States confer conditional recognition on a new entity or government. The recognising State may confer recognition subject to certain conditions, such as that recognised State shall not impose any religious disabilities on any of their subjects or that it shall provide good treatment to the religious minorities, or that it shall not do acts of aggression against other States, etc. What would be the consequences if these conditions are revoked by the recognised State or the government? Does it mean automatic withdrawal of recognition? Or does it mean that the recognising States become entitle to revoke the recognition in case of non-fulfillment of those conditions? The answer is that recognition does not deemed to have been withdrawn or revoked in such cases.

In case of breach of conditions under which the recognition was conferred, the recognising States may sever their diplomatic relations with the recognised State or the government, or may not have any other relations, but the recognition remains intact. Breach of conditions may also result into breach of international law and may have political repercussions.

5.9 Withdrawal of Recognition

Recognition of a State or government may be withdrawn in certain exceptional cases. For example, where a State loses its independence or a government ceases to be effective, or a belligerent party is defeated in the civil war, the recognition may be withdrawn. The act of withdrawal of recognition may take place by conferring *de jure* recognition on the rival

29. J.G. Starke, *Introduction to International Law*, 1st Indian reprint, 1994, pp145–46.

30. See the cumulative effects of *Luther v Sagor*, [1921] 3 KB 532; *Bank of Ethiopia v National Bank of Egypt and Liguori*, [1937] Ch 513; and *Arantzazu Mendi*, [1939] AC 256; see also J G Starke, *Introduction to International Law*, 1st Indian reprint, 1994, p 145.

government which has succeeded in establishing itself, or by recognising the sovereignty of the State which has annexed another. In 1938, the United Kingdom withdrew its recognition of Abyssinia as an independent State by recognising *de jure* the annexation of that country by Italy. Apart from that, in 1939, it withdrew the recognition from the *de jure* government of Spain by recognising the *de facto* revolutionary government as *de jure* government of Spain.

To sum up, recognition *de jure* or *de facto* can be withdrawn only when the required conditions for recognition disappear. Stringent proofs, however are required of the final disappearance of the essential elements of statehood or of governmental capacity in case of *de jure* recognition.³¹ But in case of *de facto* recognition, the recognising State may withdraw it due to change in political situation as it is provisional in nature. Withdrawal of recognition occurs in exceptional circumstances only.

The withdrawal of recognition can be inferred from certain acts of the State, which express its intention of doing so. The severance of diplomatic relations does not necessarily mean that recognition has been withdrawn.

5.10 Legal Consequences of Recognition

Recognition confers a status on the recognised State or government under national or municipal law and international law. Thus, recognition involves consequences both on the international plane and within national law. Recognition serves two legal functions. Firstly, it determines the statehood. Secondly, it acts as a condition for the establishment of formal relations, including diplomatic relations. Apart from this, the newly recognised State acquires the capacity to conclude treaties with the recognising State. Various obligations also arise for the new State under international law.

Recognition confers certain rights on the newly recognised State or government. The new State/government acquires the right of suing in the courts of law of the recognising State. The unrecognised State/government cannot sue in the courts of a State which has not recognised it because it does not have the *locus standi*.³² Further, legislative and executive acts of new State may also be given effect by the courts of recognising State. The courts of non-recognising States will not recognise or enforce the laws or other public acts of an unrecognised State.

The immunity from the legal process is not available to the representatives of unrecognised State.³³ Thus, recognition enables the recognised State to claim immunity from suit in regard to its property and its diplomatic representatives. In addition, the recognised State/government becomes entitled to demand and receive possession of, or to dispose of its property situate within the jurisdiction of a recognising State.³⁴

In *Republic of Somalia v Woodhouse Drake Carey Suisse SA*,³⁵ the issue was whether £2 million which belonged to the Republic of Somalia could be paid to its interim government which came to power after the civil war. The court took note of the fact that the policy of United Kingdom at that point of time was not to confer recognition on governments.

The court held that on the basis of evidence, the interim government did not qualify having regard to any of the three important factors (as discussed above under the heading “5.6 Recognition of government”). Accordingly, the court held that the interim government of Somalia was not entitled to receive any sum.

31. See *Oppenheim's International Law*, Robert Jennings and Arthur Watts (Eds), 9th ed, 1996, pp 156, 176–77.

32. See also *City of Berne v Bank of England*, (1804) 9 Ves Jun 347.

33. See also *The Annette and the Dora*, [1919] p105, PD.

34. See also J G Starke, *Introduction to International Law*, 1st Indian reprint, 1994, p 147.

35. *Republic of Somalia v Woodhouse Drake Carey Suisse SA*, [1993] QB 54.

5.11 Is There any Duty of States to Recognise a new State?

Is there any duty of existing States under international law to recognise a new State? The answer is no. As recognition is an optional and political act, there is no legal duty of States under international law to recognise a new State. Even the Draft Declaration on the Rights and Duties of States of 1949 does not lay down right of recognition for new States. In Opinion No. 10 of the Yugoslav Arbitration Commission in July in 1992 also, it was emphasised that recognition was a discretionary act that other States might perform when they choose. Lauterpacht and Guggenheim, however, were of the opinion that recognition was constitutive and there was a legal duty of existing States to recognise the new entity as State.³⁶ Their views did not found support in international law and cannot be accepted.

5.11.1 Estrada Doctrine

Estrada doctrine is named after Mr. Estrada, the former Minister for Foreign Affairs of Mexico, who made the announcement in 1930 that his government would no longer issue declarations in the sense of grants of recognition inasmuch as “such a course is an insulting practice and one which, in addition to the fact that it offends the sovereignty of other nations, implies that judgment of some sort may be passed upon the internal affairs of those nations by other governments...”³⁷ Later on other States also followed the policy of not recognising the new governments.

5.12 Retroactivity of Recognition

The recognition of a new State or government relates back to the date of inception of the particular State or government concerned. In other words, recognition has retroactive effect. The retroactivity of recognition is a rule of convenience rather than of principle. Once recognition is conferred on a new entity, the courts generally regard recognition as retroactive to accept the statehood of the entity from the date of statehood, which is a factual situation, and not from the date of recognition. However, if the recognising State makes its intention clear that recognition is not to operate retroactively, then it will not have retroactive effect.

In *Luther v Sagor*,³⁸ it was established that recognition once given, was retroactive in effect from the time that the recognised government established itself. The court agreed with the observations made by Fuller CJ in *Underhill v Hernandez*,³⁹ with respect to civil war that:

if the party seeking to dislodge the existing government succeeds, and the independence of the government it has set up is recognized, then the acts of such government from the commencement of its existence are regarded as those of an independent nation.

In *Civil Air Transport Inc v Central Air Transport Corp*,⁴⁰ it was stated by the House of Lords that recognition, where applicable, operated retroactively not to invalidate the acts of a former government, but to validate the acts of a government which had become the new *de jure* government.

5.13 States not to Confer Recognition in Certain Cases

International law neither obligates States to recognise new States or governments, nor prevents them from conferring it. But in certain circumstances, States are duty bound not to confer

36. See James Crawford, *Brownlie's Principles of Public International Law*, 2012, p 148.

37. Whiteman, *Digest of International Law*, 1963, vol 2, pp 85–86 quoted in J G Starke, *Introduction to International Law*, 1st Indian reprint, 1994, p 131.

38. *Luther v Sagor*, [1921] 3 KB 532.

39. *Underhill v Hernandez*, (1897) 168 US 250.

40. *Civil Air Transport Inc v Central Air Transport Corp*, [1953] AC 70.

recognition, particularly where territory is acquired by a State by resorting to force. Several international instruments and Security Council resolutions also provided for the same. According to Draft Declaration on the Rights and Duties of States of 1949, the territorial acquisitions by States, which were achieved by means of the threat or use of force or in any other manner inconsistent with international law and order, are not to be recognised by other States. Similarly, the Declaration on Principles of International Law, 1970 also provided that territorial acquisition resulting from the threat or use of force shall not be recognised as legal. These Declarations carry enormous legal weight as they have the backing of Article 2(4) of the United Nations Charter which prohibits States from using threat or forces against the territorial integrity and political independence of States.

The Special Assembly of the League of Nations adopted a resolution in 1932 declaring that “it is incumbent upon the Members of the League of Nations not to recognise any situation, treaty or agreement which may be brought about by means contrary to the Covenant of the League of Nations or to the Pact of Paris”.⁴¹

The Namibia case is noteworthy in this regard. The mandate given to South Africa to administer South West Africa (Namibia) was terminated in 1966. However, South Africa did not vacate Namibia. The Security Council adopted several resolutions by which it declared the continued presence of South Africa in Namibia as illegal and all acts done by the South Africa with respect to Namibia as the illegal and invalid. The ICJ was also approached by the Security Council for an advisory opinion. In 1971, the ICJ in the Advisory Opinion on Namibia stated that the continued presence of South Africa in Namibia was illegal. The Court also obligated States to refrain from any actions which could imply recognition of the South African presence and administration in Namibia.⁴²

In 1965, the government of the British Colony of Southern Rhodesia declared itself independent. Immediately thereafter, the Security Council adopted resolutions calling on all States not to recognise that illegal racist minority regime and to take appropriate measures at the national level to ensure that any act performed by officials and institutions of the illegal regime in Southern Rhodesia should not be accorded any recognition. In 1989, when Iraq annexed Kuwait, the Security Council adopted resolution 662 in 1990, by which it declared the annexation of Kuwait by Iraq as null and void and called on all States not to recognise the annexation.

However, on Kosovo’s independence, Britain stated that it had already been recognised by almost all European Union countries. The United States was of the opinion that “the recognition of Kosovo’s independence by an ever-increasing number of States is consistent with international law”. In 2010, the ICJ ruled in advisory opinion that Kosovo’s unilateral declaration of independence had not violated international law.⁴³

5.14 Recognition of Other Entities

Apart from State and government, recognition may also be conferred on rebels, insurgents and belligerents. The rebel regime may become so well established in part of the national territory that it may be recognised as a *de facto* government with respect to that part of the territory which is under its effective control. It is not a pre-condition that it should have overthrown the established government. Once the rebels are recognised, they will not be treated as terrorists, criminals or pirates and the legitimate government there will not be held responsible for their acts.

41. Off J, Special Suppl (1932), No 101, p 8.

42. *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276 (1970)*, (1971) ICJ Rep 16.

43. Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 227–94, 311–312.

The organised rebels who normally represent indigenous population and fight against the colonial regime are referred to as national liberation movement. While seeking the liberation of their territory, they establish their government. The States may recognise them. The recognition may be premature. The national liberation movement may have limited international status even in the absence of a government. The League of Arab States and the Organisation of African Unity have procedures for giving official status to national liberation movements. On the basis of such recognition, the General Assembly has allowed them to attend certain conferences organised by the United Nations without granting any right to vote. The General Assembly has also granted the status of permanent observer to Palestine Liberation Organisation (PLO) in the United Nations. The South West Africa People's Organisation was also recognised as the "authentic representative of the Namibian people" by the General Assembly.

The representatives of duly recognised national liberation movements have also been allowed by the specialised agencies of the United Nations to participate in their works.⁴⁴

When the rebel forces in a civil war, other than under a national liberation movement, occupy a part of the State and constitute a *de facto* regime, they may be recognised as insurgents. But when the war escalates and converts into full-fledged war and the insurgents takes over control of substantial part of the territory, then belligerency is recognised. Before belligerency is recognised, regard is normally being had to the fact that apart from occupying a substantial part of the territory, the insurgent forces are organised under a proper command and observe law of war. By recognising insurgency or belligerency, the recognising States protect their nationals, trade, investment and other interest in the State in which the war is going on. Further, in case of violations of international humanitarian law, both of the warring groups are held liable for the violations of law of war individually.

44. See also *Oppenheim's International Law*, Robert Jennings and Arthur Watts, 9th Edn, 1996, pp 163–64.

CHAPTER 6

STATE JURISDICTION

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International law does not prohibit a State from exercising jurisdiction in its own territory, in respect of any case which relates to acts which have taken place abroad. Further, the States may extend the application of their laws and the jurisdiction of their courts to persons, property and acts outside their territory. The international law leaves them in this respect a wide measure of discretion, which is only limited in certain cases by prohibitive rules; as regards other cases, every State remains free to adopt the principles which it regards as best and most suitable. This discretion left to States by international law explains the great variety of rules which they have been able to adopt without objections or complaints on the part of other States.¹

The general notion is that no State attempts to exercise a jurisdiction over matters, persons or things with which it has absolutely no concern.² The jurisdiction is to be exercised cautiously in a case where two States are involved. For example, if a man commits a crime in State A and escapes to State B, the courts of State A have jurisdiction to try him but the police of State A cannot enter the territory of State B and arrest him. In such a situation, State A has to request State B to arrest him and hand him over to it for trial. Thus, no State has the authority to violate territorial sovereignty of another State in order to apprehend an alleged criminal, even if the suspect is charged with an international crime.³

6.1 Jurisdiction of National Courts

6.1.1 Territorial Principle

According to Schwarzenberger, territorial jurisdiction is the authority over a geographically defined portion of the surface of the earth and the space above and below the ground which a sovereign claims as his territory, together with all persons and things therein.⁴

1. *S S Lotus Case (France v Turkey)*, (1927) PCIJ Series A No 10.
2. Mr HV Evatt J quoted in J G Starke, *Introduction to International Law*, 1989, p 202.
3. On 20 December 1989, the United States ordered the military invasion of Panama to bring General Manuel Noriega in drug trafficking case for the purpose of criminal prosecution. The legality of such unilateral actions always remain open for challenge. See also Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 109–10.
4. Georg Schwarzenberger, *A Manual of International Law*, 1967, p 92.

It is an essential attribute of the sovereignty, that States should possess jurisdiction over all property, persons, acts or events occurring within their territory. In some States, the mere physical presence of any person or thing within the territory is sufficient to attract jurisdiction without the necessity for either domicile or residence. It is, however, noteworthy that there may be persons within the territory of a State who may be immune from jurisdiction. The State may not exercise its jurisdiction over them even though they are present within their territory.

Every State has jurisdiction over crimes which are committed in its own territory, irrespective of the fact whether they are committed by nationals of that State or the foreigners. Sometimes, a criminal act is completed in two States. It may start in one State and is completed in another State. In such a case, both the States have jurisdiction. The State where the act commenced has jurisdiction under the *subjective territorial principle*, and the State where the act is completed has jurisdiction under the *objective territorial principle*. For example, if a person stands near to the border between State A and State B and fires a gun from State A and injure a person in State B, both the States will have jurisdiction in such a case. State A shall have *subjective territorial principle*, whereas State B shall have *objective territorial principle*.⁵

The *objective territorial principle* is exercised by State on the basis of *effect doctrine*. It is based on the principle that the injurious effect has been brought on the other State, even though that act might not have been committed on the territory of such State.⁶

Thus, under *subjective territorial principle*, States exercise jurisdiction to prosecute and punish crimes which has commenced in their territory, but was completed in the territory of another State. Sometimes, conspiracy is made in one State and the criminal act is committed in another State. In such a situation, both the States may exercise their jurisdiction. However, some States may not be willing to exercise their jurisdiction on the ground that only ancillary acts and not the principal act was committed in their territories. But in international law, there is no bar on them to exercise their jurisdiction over such acts.

Under Geneva Convention for the Suppression of Counterfeiting Currency, 1929 and the Geneva Convention for the Suppression of the Illicit Drug Traffic, 1936, the States Parties bound themselves to punish the conspiracies to commit and intentional participation in the commission of counterfeiting and drug traffic offences, if such conspiracies have taken place in their territory, irrespective of the fact whether that criminal act was committed in their territory or in some other State.

Under the *objective territorial principle*, States exercise jurisdiction to offences or acts commenced in another State but completed within their territory or brought injurious effect on it. According to Prof Hyde, "the setting in motion outside of a State of a force which produces as a direct consequence an injurious effect therein justifies the territorial sovereign in prosecuting the actor when he enters its domain".⁷ In *Lotus Case*,⁸ the Permanent Court of Justice also applied this principle by holding that action of Turkish authorities in prosecuting the officer of the French ship *Lotus* which collided with Turkish ship on high seas, was not inconsistent with international law. It is, however, noteworthy that this is not a good law (i.e. negating exclusive penal jurisdiction of the flag State in maritime collisions on high seas) in the light of Geneva Convention on High Seas, 1958 and U.N. Convention on Law of the Sea, 1982.

The *objective territorial principle* is very relevant for States to exercise jurisdiction over multinational corporations which have their Head Office in one State and their branches in several other States. The sociological and economic problems created by such corporations have also been under examination by international organisations, such as United Nations,

5. See also Rebecca M M Wallace, *International Law*, 1997, p 112.

6. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 110–11.

7. Prof Hyde quoted in J G Starke, *Introduction to International Law*, 1989, p 205.

8. *S S Lotus Case (France v Turkey)*, (1927) PCIJ Series A No 10.

International Labour Organisation (ILO), and Organisation for Economic Co-operation and Development (OECD).⁹

Where two States have concurrent jurisdiction over a criminal act, the probability is that the State which has the custody of the alleged offender will exercise the jurisdiction. However, there is no rule of international law which gives exclusive jurisdiction to the State, where the crime has been completed. The State, where the crime was initiated, is not restricted from exercising the jurisdiction.¹⁰

As far as jurisdiction with respect to port is concerned, foreign merchant vessels are subject to the jurisdiction and regulations of the State of the port. However, in case of criminal matters, the States may exercise their jurisdiction over such matters if the same are affecting the peace or good order of their ports. In case of matters of internal discipline of the vessel, the authorities of the flag State have their jurisdiction.

6.1.2 Nationality Principle

Nationality jurisdiction is the authority asserted by a sovereign over individuals on grounds of allegiance or protection. Schwarzenberger called it personal jurisdiction.¹¹

A State may prosecute its nationals for crimes committed by them anywhere in the world. This is known as *active nationality principle*. This is a universally accepted rule. However, a State may try a person only for violation of its law, and not for the violation of the law of a foreign State. Some States claim jurisdiction on the basis of some personal link other than nationality, eg long residence by the accused in the State exercising jurisdiction. It is also noted that other States have not objected to the State exercising such jurisdiction.

Apart from *active nationality principle*, jurisdiction may also be exercised by States on the basis of *passive nationality principle* to try a foreigner for crimes committed abroad affecting one of their nationals. It has been argued against this rule that the mere fact that the national of a State has been the victim of a crime committed in another State does not necessarily concern the general interests of the home State. On the other hand, if the State where the crime is occurred is unwilling or unable to prosecute the offender, one could also argue that in such a situation, the home State is entitled to protect its own citizens once the foreign suspect comes under its control. The *passive nationality principle* is also embodied in the criminal laws of several States. The United States has accepted the passive nationality principle with regard to terrorist activities and similar serious crimes.¹²

The *passive nationality principle* has also been recognised in Article 4(b) of the Tokyo Convention on Offences Aboard Aircraft of 1963,¹³ and Article 5(1)(c) of the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment of 1984.

6.1.3 Protective Principle

States have the right to exercise jurisdiction over crimes against its security and integrity or its vital economic interests under international law. The jurisdiction exercised by them is known as *protective principle*.

9. See J G Starke, *Introduction to International Law*, 1989, pp 206–07.

10. See Rebecca M M Wallace, *International Law*, 1997, p 113.

11. Georg Schwarzenberger, *A Manual of International Law*, 1967, p 92.

12. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 111.

13. Convention on Offences and Certain Other Acts Committed on Board Aircraft, Article 4(b) States: "A Contracting State which is not the State of registration may not interfere with an aircraft in flight in order to exercise its criminal jurisdiction over an offence committed on board except in the following cases: ... (b) the offence has been committed by or against a national or permanent resident of such State".

Thus, *protective principle* allows a State to punish acts prejudicial to its security, even when they are committed by foreigners abroad, eg plot to overthrow its government, espionage, forging its currency, etc. There are two primary justification for the exercise of *protective principle*. Firstly, the offences may be so grave that they may have far reaching consequences to the State against which they are directed. Secondly, if jurisdiction is not exercised by the affected State, many such offences would escape punishment altogether because they did not contravene the law of the place where they were committed or because extradition would be refused by reason of the political character of the offence, or otherwise.¹⁴ In *Joyce v DPP*,¹⁵ the House of Lords stated that, “no principle of comity demands that a State should ignore the crime of treason committed against it outside its territory”.¹⁶

There is, however, a danger that some States may try to interpret the terms “security” and “vital interests” in a broader and ambiguous manner. For example, if a newspaper published in State A criticises State B, it would be unreasonable to suggest that State B has jurisdiction to try the editor for sedition. The *protective principle* did not cover the death sentence imposed by *fatwa* issued by Iranian leader Ayatollah Khomeini in 1989 against Salman Rushdie for blasphemy in his book *The Satanic Verses*. In some of the cases, therefore, the application of the *protective principle* may be quite arbitrary. The *protective principle* of jurisdiction is different from diplomatic protection. The diplomatic protection refers to the right of a State to intervene diplomatically or to raise an international claim on behalf of its nationals against another State.¹⁷

6.1.4 Universality Principle

Ordinarily, the universality principle is contrary to international law. However, international law allows States to exercise universal jurisdiction over certain acts which threaten the international community as a whole and which are considered criminal throughout the world, such as war crimes, genocide, piracy, hijacking and various forms of international terrorism. In addition, universal jurisdiction may also be exercised for offences under International Convention on the Suppression and Punishment of the Crime of Apartheid of 1973; and Convention against Torture and Other Cruel, Inhuman and Degrading Treatment or Punishment of 1984. These Conventions are applicable to State Parties only. It can be argued that customary law has come to accept these offences as subject to universal jurisdiction. The purpose of allowing universal jurisdiction is to ensure that no such offence goes unpunished.

Apart from piracy, the slave trade, war crimes and crimes against humanity, other crimes of international concern established by more recent conventions, extending to the hijacking of aircraft, sabotage, apartheid, crimes against internationally protected persons, terrorism, hostage-taking, drug trafficking, counterfeiting of currency and others raise difficult issues concerning the legal basis of the alleged universal jurisdiction. Such conventions create an obligation to prosecute or to extradite the accused and thereby confer jurisdiction under the provisions of the relevant treaty. These treaties cannot create a true universal jurisdiction in relation to non-parties.¹⁸

There is no hierarchy in jurisdiction. A State cannot claim precedence simply on the principle on which it exercises jurisdiction. Two or more States may legitimately possess concurrent jurisdiction on the same subject matter. What is required under international law is that there

14. See J G Starke, *Introduction to International Law*, 1989, p 234.

15. *Joyce v DPP* [1946] AC 347 HL.

16. *Joyce v DPP* [1946] AC 347 HL p 372.

17. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 111–12.

18. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 112–13.

should be a tangible link between the alleged offender and the State exercising jurisdiction.¹⁹ In *Lotus Case*,²⁰ the Permanent Court of International Justice observed that unless there was an evident prohibition under international law for a State to exercise its jurisdiction, that State could enjoy a wide measure of discretion in the exercise of its jurisdiction.

6.2 Extradition

Extradition is the handing over of an alleged offender or convicted criminal who has escaped before completing his prison term by one State to another. There is no international customary law which obligates a State to extradite a person who is present on its territory and alleged to have committed a crime on the territory of another State. Such a person may take refuge in a State which has no jurisdiction to try him, or in a State which is unable or unwilling to try him because all the evidences and witnesses are abroad. To resolve this problem, international law has evolved the practice of extradition. Individuals are extradited by one State to another, in order that they may be tried in the latter State for offences against its laws. Extradition also includes the surrender of convicted criminals who have escaped before completing their punishment.

In *Gerhard Terlinden v John C Ames*,²¹ Fuller CJ defined extradition as “the surrender by one nation to another of an individual accused or convicted of an offence outside of its own territory, and within the territorial jurisdiction of the other, which, being competent to try and to punish him, demands the surrender”. In *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*,²² P Sathasivam J of Supreme Court observed:

The term ‘extradition’ denotes the process whereby under a concluded treaty one State surrenders to any other State at its request, a person accused or convicted of a criminal offence committed against the laws of the requesting State, such requesting State being competent to try the alleged offender. Though extradition is granted in implementation of the international commitment of the State, the procedure to be followed by the courts in deciding, whether extradition should be granted and on what terms, is determined by the municipal law of the land. Extradition is founded on the broad principle that it is in the interest of civilized communities that criminals should not go unpunished and on that account it is recognized as a part of the comity of nations that one State should ordinarily afford to another State assistance towards bringing offenders to justice.

A K Ganguly J in the same case stated that extradition has five substantive ingredients. They are: (1) reciprocity; (2) double criminality; (3) extraditable offences; (4) specialty; and (5) non inquiry.²³

The international law does not impose any duty on States to extradite a person in the absence of a treaty. Extradition of an offender is to be made by a State which is a party to a multilateral treaty which imposes obligations on the parties to make such extradition. Article VII of the Convention on the Prevention and Punishment of the Crime of Genocide, 1948 provides that the acts of (a) genocide; (b) conspiracy to commit genocide; (c) direct and public incitement to commit genocide; (d) attempt to commit genocide; and (e) complicity in genocide are not to be considered as political crimes for the purpose of extradition. The Contracting Parties pledge themselves in such cases to grant extradition in accordance with their laws and treaties in force.

19. See also Rebecca M M Wallace, *International Law*, 1997, p 112.

20. *S S Lotus Case (France v Turkey)*, (1927) PCIJ Series A No 10, p 25.

21. *Gerhard Terlinden v John C Ames*, (1902) 184 US 270, p 289.

22. *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, para 11, judgment rendered by Supreme Court dated 10 September 2010.

23. *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, para 25.

Extradition treaties normally relate only to serious crimes and impose the same obligations on both the parties concerned, for example the offence must be designated a crime under the domestic laws of both the States.²⁴ This is known as the doctrine of double criminality. Thus, extradition depends on the co-operation of the other States in order to obtain surrender of suspected or convicted criminals. In the absence of a treaty, surrender of such a criminal cannot be demanded as a matter of right.

The surrendering State may impose a pre-condition that the person surrendered is to be tried and punished exclusively for offences for which extradition had been requested and granted. This is known as the doctrine of speciality. In *Daya Singh Lahoria v UOI*,²⁵ the Supreme Court observed:

The doctrine of speciality is yet another established rule of international law relating to extradition. Thus, when a person is extradited for a particular crime, he can be tried for only that crime. If the requesting State deems it desirable to try the extradited fugitive for some other crime committed before his extradition, the fugitive has to be brought to the status quo ante, in the sense that he has to be returned first to the State which granted the extradition and a fresh extradition has to be requested for the latter crime.

The doctrine of speciality is recognised in section 21 of the Indian Extradition Act of 1962. The speciality doctrine is a universally recognised principle of international law and partakes of doctrines of both double criminality and reciprocity.²⁶ Apart from the doctrine of speciality, the doctrine of non-inquiry is also applicable in the extradition cases. Normally, in extradition law the requested State is to follow the rule of non-inquiry which means that normally the requested State is not to make inquiry about the nature of criminal justice system in the requesting State. The doctrine of non-inquiry is, however, not an absolute doctrine.

A practice of informal extradition has also been witnessed. According to Brownlie, since the informal practice takes place with the consent of the State from the territory of which the transfer of custody of alleged criminal takes place, there is no transgression of international law. The issues of legality may be raised in a case where informal extradition takes place in a situation in which there is knowledge of the likelihood of physical abuse or torture of the suspect in the receiving State. In addition, a practice is called “extraordinary rendition” where the suspect is seized by the agents of a State in the absence of any legal process or the consent of the State from whose territory the seizure is made. Such a practice is clearly unlawful and may give rise to international responsibility. It is, however, noteworthy that unlawful seizure does not affect the validity of the subsequent exercise of jurisdiction over them.²⁷

It is sometimes stated that asylum ends where extradition begins. In other words, a State has a right to grant asylum (refuge) to fugitive criminals unless it has bound itself by treaty to extradite them. The right of asylum belongs to a State which can grant asylum to an individual at its will. An individual, however, cannot demand asylum as a matter of right from a State. It is also correct at the same time that there is no rule of international law which prevents States from extraditing a person in the absence of a treaty.²⁸

24. See Rebecca M M Wallace, *International Law*, 1997, p 119.

25. *Daya Singh Lahoria v UOI*, (2001) 4 SCC 516, p 521.

26. In *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, para 25, Judgment of P Sathasivam J, of Supreme Court dated 10 September 2010.

27. Ian Brownlie, *Principles of Public International Law*, 2008, pp 316–18.

28. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 117.

Extradition is different from deportation by which competent State authorities order a person to leave a country and prevent him from returning to the same territory. Thus, deportation basically is a non-consensual exercise whereas extradition is based on a consensual treaty obligation between the requesting State and the requested State.²⁹

6.2.1 Extradition and Human Rights

The international community is under an obligation to promote and protect human rights. It has also to deal with transnational crimes effectively. The conflict between these two divergent fields is sought to be resolved by expanding the network of bilateral and multilateral treaties to outlaw transnational crime on the basis of mutual treaty obligation. In such a situation there is obviously a demand for inclusion of human rights concerns in the extradition process and at the same time garnering more international support and awareness for suppression of crime.³⁰

A fair balance has to be struck between Human Rights norms and the need to tackle transnational crime. In *Soering v United Kingdom*,³¹ the European Court of Human Rights stated that:

inherent in the whole of the Convention (European Convention on Human Rights) is a search for a fair balance between the demands of the general interest of the community and the requirements of the protection of the individual's fundamental rights. As movement about the world becomes easier and crime takes on a larger international dimension, it is increasingly in the interests of all nations that suspected offenders who flee abroad should be brought to justice. Conversely, the establishment of safe havens for fugitives would not only result in danger for the State obliged to harbour the protected person but also tend to undermine the foundations of extradition. These considerations must also be included among the factors to be taken into account in the interpretation and application of the notions of inhuman and degrading treatment or punishment in extradition cases.

The European Court of Human Rights rejected an extradition request from the United States on the ground of it being violative of Article 3 of the European Convention on Human Rights which prohibits inhuman and degrading treatment of humans. It said that the prolonged delay in the form of death row, which is a natural outcome of the criminal procedure existing in the United States, was certainly violative of the human rights of the fugitive, for it was torturous for him to wait in anticipation of a death that was almost certain for him in the United States. The *Soering* case was quoted with approval by Justice A K Ganguly of Supreme Court in *Abu Salem Abdul Qayoom Ansari v State of Maharashtra*.³²

6.3 Immunity from Jurisdiction

There are two principal exceptions to the exercise of territorial jurisdiction. These are – (i) sovereign/ State immunity, which is enjoyed by foreign heads of State; and (ii) diplomatic immunity, which is enjoyed by official representatives of foreign State. In this chapter, discussion will be made only on State immunity. Diplomatic immunity has been discussed in chapter titled Diplomatic and Consular Relations.

29. A K Ganguly J, in *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, paras 8–9, Judgment rendered by Supreme Court dated 10 September 2010.

30. *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, para 10, Judgment of A K Ganguly J, rendered by Supreme Court dated 10 September 2010, para 10.

31. *Soering v United Kingdom*, (1989) 11 EHRR 439.

32. *Abu Salem Abdul Qayoom Ansari v State Of Maharashtra*, (2011) 11 SCC 214, para 10, Judgment rendered by Supreme Court dated 10 September 2010.

6.3.1 Sovereign/State Immunity

Stanley Hoffmann defines sovereignty as “the situation of the State which has no political superior over it, but is nevertheless bound by international law”.³³ Hoffmann further States that the concept of sovereignty carries with it the principle of sovereign equality which holds that all States are in equal relations to each other, regardless of their size or capabilities.³⁴ The rule of State immunity derives its force from the principle of the sovereign equality of States. The rule of State immunity is based on the maxim *par in parem non habet imperium* — one sovereign power cannot exercise jurisdiction over another sovereign power. As the principle of the sovereign equality of States is of paramount importance under international law, no State may exercise jurisdiction over another State without its consent.

Earlier, sovereigns of States used to enjoy absolute immunity from the jurisdiction of other States. This immunity was available for their public acts as well as the acts done by them in their private capacity.³⁵ With the passage of time, the States were involving themselves in more and more commercial activities with other States. The State immunity was also extended to State enterprises. Subsequently, many States modified their approach and introduced restrictive immunity by making a distinction between the public acts and private acts of the State. The immunity from the jurisdiction was confined to the public acts/government acts of a State (*jure imperii*). No immunity was granted for private acts of State, which were primarily trading and commercial acts (*jure gestionis*). It is noteworthy that some States however, continued to provide immunity from its jurisdiction to the commercial activities of other States.

In the second half of the 20th century, the courts of a number of European States and the United States decisions curtailing the scope of immunity.³⁶ The restrictive immunity approach disentitled the States to claim immunity from the jurisdiction of other States in those cases where they were acting as a private person. The States also adopted legislation to curtail the scope of absolute immunity. The United States adopted the American Foreign Sovereign Immunities Act of 1976 which provided restrictive immunity from jurisdiction. The Britain in 1978 enacted the State Immunity Act by which it adopted the restrictive immunity approach. Canada also adopted restrictive immunity approach by enacting State Immunity Act in 1982.

As far as international treaties are concerned, the Brussels Convention for the Unification of Certain Rules Relating to the Immunity of State Owned Vessels was adopted in 1926, which provided that government-owned vessels engaged in commercial purposes are subject to the same legal regime as private vessels. In 1972, European Convention on State Immunity was adopted which enabled States to adopt a uniform approach to the issue of State immunity. The Convention did not provide for the grant of immunity in respect of contractual obligations.

In *United States v Noriega*,³⁷ immunity was not accorded to General Noriega on the ground that the US government had never recognised General Noriega (the *de facto* ruler of Panama) as the Head of State.

On the basis of State practice, Starke has pointed out certain exceptions to the rule of immunity. For example, the suits relating to the title to land within the territorial jurisdiction of a State fall in the category of exception. This is because of the reason that States have

33. Stanley Hoffmann, “International Systems and International Law”, in Richard A Falk & Saul H Mendlovitz (Eds), *The Strategy of World Order*, 1966, p 164.

34. Stanley Hoffmann, “International Systems and International Law”, in Richard A Falk & Saul H Mendlovitz (Eds), *The Strategy of World Order*, 1966, p 164. See also Jefferson H Weaver, “Illusion or Reality? State Sovereignty in Outer Space”, *Boston University International Law Journal*, vol 10, 1992, p 203.

35. See also *Mighell v Sultan of Johore*, [1894] 1 QB 149.

36. See eg Austrian SC judgment in *Dralle v Republic of Czechoslovakia*, (1950) 17 ILR 155 and Federal Constitution Court of Germany in *Empire of Iran Case*, (1963) 45 ILR 57.

37. *United States v Noriega*, (1997) 117 F.3d 1206 (11th Cir).

vital interests in its land. Immunity is not to be granted in a case in which a trust fund was being administered in which a foreign State was interested. Immunity is to be denied in representative actions, such as debenture holders' actions, where a foreign State or foreign sovereign was debenture holder. Similarly, no immunity is to be conferred on foreign State or foreign sovereign in a case of winding up of a company in whose assets the foreign State or foreign sovereign claimed an interest.³⁸

In *Jurisdictional Immunities of the State* case,³⁹ the International Court of Justice (ICJ) observed:

[T]he rule of State immunity ... derives from the principle of sovereign equality of States, which, as Article 2, paragraph 1, of the Charter of the United Nations makes clear, is one of the fundamental principles of the international legal order. This principle has to be viewed together with the principle that each State possesses sovereignty over its own territory and that there flows from that sovereignty the jurisdiction of the State over events and persons within that territory. Exceptions to the immunity of the State represent a departure from the principle of sovereign equality. Immunity may represent a departure from the principle of territorial sovereignty and the jurisdiction which flows from it.⁴⁰

The Court further stated that:

State immunity for *acta jure imperii* continues to extend to civil proceedings for acts occasioning death, personal injury or damage to property committed by the armed forces and other organs of a State in the conduct of armed conflict, even if the relevant acts take place on the territory of the forum State.⁴¹

On the issue of whether human rights violations disentitled States from claiming immunity, the Court stated that if such an exception depended on State's having committed a serious violation of international human rights law, national courts would have to inquire into the merits to determine whether jurisdiction existed.⁴² Referring to case law of six national jurisdictions (France, Slovenia, Serbia, Poland, Belgium and Brazil), the Court found that no such exception to sovereign immunity existed.

In the *Arrest Warrant* case,⁴³ the ICJ emphasised that the immunity from jurisdiction enjoyed by the Minister for Foreign Affairs of Congo did not mean that they enjoyed impunity in respect of any crimes they might have committed, irrespective of their gravity. Immunity from criminal jurisdiction and individual criminal responsibility were quite separate concepts. While jurisdictional immunity was procedural in nature, criminal responsibility was a question of substantive law. Jurisdictional immunity could bar prosecution for a certain period or for certain offences; it could not exonerate the person to whom it applied from all criminal responsibility.

The ICJ also stated that in customary international law, the immunities accorded to the Ministers were not granted for their personal benefits, but to ensure the effective performance of their functions on behalf of their respective States. The immunity and inviolability protected the individual concerned against any act of authority of another State which would have hindered him in the performance of his duties. In this respect, no distinction could be drawn between acts performed by a Minister of Foreign Affairs in an "official capacity" and those claimed to have been performed in a "private capacity".

38. See J G Starke, *Introduction to International Law*, 1989, p 213.

39. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99 International Court of Justice, 3 February 3 2012 available at <https://www.icj-cij.org/public/files/case-related/143/143-20120203-JUD-01-00-EN.pdf> (last accessed in January, 2021).

40. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, para 57.

41. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, para 77.

42. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, para 82.

43. *Arrest Warrant (Democratic Republic of the Congo v Belgium)*, (2002) ICJ Rep 3.

CHAPTER 7

STATE RESPONSIBILITY

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The concept of State responsibility may not be based on the same concept under municipal law. It may differ fundamentally and cannot precisely be analogised to any discrete category of legal obligations in national law. The tort analogy can be helpful pedagogically and otherwise, but it is not at all precise. Reparation for the violation of an international obligation, for example, may take forms that do not exist in national tort law.

International law subjects all breaches of all rules of international law, irrespective of their origin and contents, to a uniform set of secondary principles. Unlike many national systems, it does not distinguish between contractual and tortuous responsibility or between civil, criminal and public law (“administrative”) responsibility. The rules of State responsibility form a single system, without any precise counterpart in national legal systems.¹

7.1 Theories on State Responsibility

There can be three theories on State responsibility. These are (i) damage theory; (ii) fault theory; and (iii) absolute liability theory.

7.1.1 Damage Theory

One of the views is that State responsibility is not engaged by the conduct of a State in disregard of its obligations unless some further element exists, in particular, “damage” to another State. Thus, in order to invoke State responsibility of a State, it should be shown that it acted in

1. Andre Nollkaemper, “Internationally Wrongful Acts in Domestic Courts”, *American Journal of International Law*, vol 101, 2007, pp 760–799, at p 791.

disregard of its obligations and caused damage to another State. If no damage has been done to a State, it cannot invoke the responsibility of another State. The ILC commentary makes it clear that there is no general rule in this respect. Whether the element of damage is required depends on the content of the primary obligation. For example, the obligation under a treaty to enact a uniform law is breached by the failure to enact the law, and it is not necessary for another State party to point to any specific damage it has suffered by reason of that failure. Whether a particular obligation is breached forthwith upon a failure to act on the part of the responsible State, or whether some important event must occur, depends on the content and interpretation of the primary obligation and cannot be determined in the abstract.²

7.1.2 Fault Theory

The fault theory raises the question as to whether fault constitutes a necessary element of the internationally wrongful act of a State. It is not necessary for State responsibility that there should be an intention to cause harm. In the absence of any specific requirement of a mental element in terms of the primary obligation, it is only the act of the State that matters, independently of any intention.

7.1.3 Absolute Liability Theory

Apart from the aforesaid theories, there can also be absolute liability theory to fix the State responsibility. The absolute liability theory establishes the liability of States arising out of the performance of certain activities which are highly risky but lawful, such as nuclear and spatial activities. According to this theory, the principle of risk is applied, not as a general principle of responsibility, but in circumstances and conditions which are clearly defined in international treaties.³ For example, the Convention on International Liability for Damage Caused by Space Objects, 1972 imposes absolute liability on launching States for all damages caused by its space object on the earth or to aircraft in flight.⁴

Michael Listner writes that according to Liability Convention, damage caused by a spacecraft may (1) occur on the surface of the earth or to an aircraft in flight, or (2) occur elsewhere other than on the surface of the earth. In the first instance, the Liability Convention imposes absolute liability whereby the State will be liable under any circumstances, even in the presence of *force majeure*. If the damage does not occur on the surface of the earth, the launching State will be subject to fault liability, whereby it will only be liable for damage which either it or persons or agencies for which it is responsible are at fault.⁵

7.2 Primary and Secondary Rules of State Responsibility

The rules of State responsibility may be divided into two parts — (i) primary rules; and (ii) secondary rules. As to primary rules of State responsibility, responsibility arises for the breach of any obligation owed under international law. A State is responsible *inter alia*, if it fails to honour a treaty, if it violates the territorial sovereignty of another State, if it damages the

2. See eg *United States Diplomatic and Consular Staff in Tehran*, (1980) ICJ Rep 3, pp 30–33, paras 62–68; *Rainbow Warrior*, (1990) 20 RIAA 215, pp 266–67, paras 107–10.

3. Gurdip Singh, *International Law*, 2011, p 118.

4. See Article II, Convention on International Liability for Damage Caused by Space Objects, 1972. See also Paris Convention on Third-Party Liability in the Field of Nuclear Energy, 1960; Brussels Convention on the Liability of Operators of Nuclearships, 1962; Vienna Convention on Civil Liability for Nuclear Damage, 1963; Brussels Convention on Liability arising from the Transport by Sea of Nuclear Materials, 1971.

5. Michael J Listner, “The Ownership and Exploitation of Outer Space: A Look at Foundational Law and Future Legal Challenges to Current Claims”, *Regent Journal of International Law*, vol 1, 2003, pp 75–94, at p 83.

territory or property of another State, if it employs armed forces against another State, if it injures the diplomatic representatives of another State, or if it mistreats the nationals of another State.⁶

The International Law Commission Draft Articles on Responsibility of States for Internationally Wrongful Acts of 2001 are an outcome of codification and progressive development of international law. The ILC Draft Articles are primarily concerned with the secondary rules of State responsibility. According to ILC Commentary on Draft Articles, “the emphasis is on the secondary rules of State responsibility that is to say, the general conditions under international law for the State to be considered responsible for wrongful actions or omissions, and the legal consequences which flow there from. The Articles do not attempt to define the content of the international obligations breach of which gives rise to responsibility. This is the function of the primary rules, whose codification would involve restating most of substantive international law, customary and conventional”.

The ILC Draft Articles consisting of 54 Articles are divided in three parts. These Articles deal only with the responsibility of States and not of other subjects. These Articles have been discussed below with the help of ILC Commentaries on Draft Articles.

7.3 Internationally Wrongful Act of a State

Every internationally wrongful act of a State entails the international responsibility of that State.⁷ In other words, a breach of international law by a State entails its international responsibility. This principle was applied by International Court of Justice (ICJ) in *Corfu Channel* case.⁸ In Advisory Opinion on *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*,⁹ the ICJ stated that “having found that the decolonisation of Mauritius was not conducted in a manner consistent with the right of peoples to self-determination, it follows that the United Kingdom’s continued administration of the Chagos Archipelago constitutes a wrongful act entailing the international responsibility of that State”. The Court also stated that it was an unlawful act of a continuing character which arose as a result of the separation of the Chagos Archipelago from Mauritius.¹⁰

There is an internationally wrongful act of a State when conduct consisting of an action or omission – (a) is attributable to the State under international law; and (b) constitutes a breach of an international obligation of the State.¹¹ Whether there has been a breach of a rule may depend on the intention or knowledge of relevant State organs or agents. It is important that conduct attributable to the State can consist of actions or omissions. It may also be a combination of an action and an omission which is the basis for responsibility. The *Corfu Channel* case is a good example on omission where the ICJ held that it was a sufficient basis for Albanian responsibility that it knew, or must have known, of the presence of the mines in its territorial waters and did nothing to warn third States of their presence.¹² Similarly in *Diplomatic and Consular Staff* case, the ICJ concluded that the responsibility of Iran was entailed by the “inaction” of its authorities which “failed to take appropriate step”, in circumstances where such steps were evidently called for.¹³

6. D J Harris, *Cases and Materials on International Law*, 6th ed, 2004, p 505.

7. Article 1, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

8. *Corfu Channel*, (1949) ICJ Rep 4, p 23.

9. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, 2019 ICJ Rep 95, Advisory Opinion dated 25 February 2019.

10. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, 2019 ICJ Rep 95, para 177.

11. Article 2, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

12. *Corfu Channel Case (Merits)*, (1949) ICJ Rep 4, pp 22–23.

13. *United States Diplomatic and Consular Staff in Tehran*, (1980) ICJ Rep 3, pp 31–32, paras 63, 67.

The responsibility for a State is not fixed just because the desired outcome has not been achieved despite its bonafide efforts. The responsibility is fixed if the State has failed to perform its obligations under international law. In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,¹⁴ the ICJ stated that “a State does not incur responsibility simply because the desired result is not achieved; responsibility is however incurred if the State manifestly failed to take all measures to prevent genocide which were within its power, and which might have contributed to preventing the genocide”.¹⁵ Thus the obligations of a State is one of conduct and not one of result.

According to Article 3, international law characterises an act of a State as internationally wrongful act and such characterisation is not affected by the characterisation of the same act as lawful by internal law. Thus, if a State violates its own internal law, it cannot be characterised as internationally wrongful act unless it constitutes a breach of an international obligation. On the other hand, for an internationally wrongful act, a State cannot justify its conduct on the basis of its internal law.

7.4 Attribution of Conduct to a State

The conduct of any State organ is to be considered an act of that State under international law. It is not material whether such organ exercises legislative, executive, judicial or any other function. Whatever position it hold in the organisation of the State, and whatever its character is – whether as an organ of the central government or of a territorial unit of the State, is also not material.

An organ includes any person or entity which has that status in accordance with the internal law of the State.¹⁶ The term State organ extends to organs of government of whatever kind or classification exercising whatever functions, and at whatever level in the hierarchy, including those at provincial or even local level.

In *Difference Relating to Immunity from Legal Process of a Special Rapporteur of the Commission on Human Rights*, the ICJ stated:

According to a well-established rule of international law, the conduct of any organ of a State must be regarded as an act of that State. This rule ... is of a customary character.¹⁷

In the *Pellat* case, the France-Mexico Claims Commission reaffirmed “the principle of the international responsibility ... of a federal State for all the acts of its separate States which gives rise to claims by foreign States” and noted specially that such responsibility “cannot be denied, not even in cases where the federal Constitution denies the Central Government the right of control over the separate State or the right to require them to comply, in their conduct, with the rules of international law”.¹⁸ That rule has since been consistently applied. Thus, eg in the *LaGrand* case, the ICJ stated:

Whereas the international responsibility of a State is engaged by the action of the competent organs and authorities acting in that State, whatever, they may be; whereas the United States should take all measures at its disposal to ensure that Walter LaGrand is not executed pending the final decision in these proceedings; whereas, according to information available to the Court, implementation of the measures indicated in the present Order

14. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep, 43.

15. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43 para 430.

16. Article 4, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

17. *Difference Relating to Immunity from Legal Process of a Special Rapporteur of the Commission on Human Rights*, (1999) ICJ Rep 62, p 87, para 62.

18. *Pellat (France v Mexico)*, (1929) 5 RIAA 534, p 536.

falls within the jurisdiction of the Governor of Arizona; whereas the Government of the United States is consequently under the obligation to transmit the present order to the said Governor; whereas the Governor of Arizona is under the obligation to act in conformity with the international undertakings of the United States.¹⁹

There is a distinction between unauthorised conduct of a State organ and purely private conduct. In the *Mallen* case, there involved the act of an official acting in a private capacity, and another act committed by him in his official capacity, although in an abusive way.²⁰ The United States/ Mexico General Claims Commission held that the latter act was attributable to the State and not the former one. In *Caire* case, the French-Mexican claims Commission excluded responsibility of State only in cases where “the act had no connection with the official function and was, in fact, merely the act of a private individual”.²¹

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,²² the ICJ observed that “to equate persons or entities with State organs when they do not have that status under internal law must be exceptional, for it requires proof of a particularly great degree of State control over them, a relationship which ... [is] described as “complete dependence””.²³

According to Article 5, the conduct of a person or entity which is not an organ of the State under Article 4 but which is empowered by the law of that State to exercise elements of the governmental authority shall be considered as act of the State under international law, provided the person or entity is acting in that capacity in the particular instance. The ILC Commentary clarifies that Article 5 intends to cover so called “para-statal” entities, such as public corporations, semi-public entities, public agencies of various kinds and even, in special cases, private companies, provided that in each case the entity is empowered by the law of the State to exercise functions of a public character normally exercised by State organs, and the conduct of the entity relates to the exercise of the governmental authority concerned. Private security firm delegated the powers by the State to ensure security at a particular place may be a good example within the meaning of Article 5.

The conduct of an organ placed at the disposal of a State by another State shall be considered an act of the former State under international law if the organ is acting in the exercise of elements of the governmental authority of the State at whose disposal it is placed.²⁴ This provision may include situations, for example, where a section of health service or some other unit of a State is placed under the orders of another State to assist it in overcoming an epidemic or natural disaster, or judges appointed in particular cases to act as judicial organs of another State. However, situations like offering of aid or assistance by organs of one State to another on its territory is not covered under this provision. For example, armed forces may be sent to assist another State in the exercise of the right of collective self-defence or for other purposes. The purpose of this provision is that receiving State should be responsible for the conduct of an organ of sending State, if that organ acts in the exercise of elements of the governmental authority of the receiving State.

Article 7 makes unauthorised or *ultra vires* acts of State organs or entities as acts of State. It provides that the conduct of an organ of a State or of a person or entity empowered to

19. *LaGrand (Germany v United States of America)*, Provisional Measures, (1999) ICJ Rep 9, p 16, para 28.

20. *Francisco Mallen (United Mexican States) v USA*, (1927) 4 RIAA 173, p 175.

21. *Caire v United Mexican States*, (1929) 5 RIAA 516, p 531.

22. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.

23. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 393.

24. Article 6, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

exercise elements of the governmental authority is considered as an act of that State under international law if the act is done in that capacity. It is immaterial whether such organ, person or entity exceeds its authority or contravenes instructions. According to ILC commentary, this principle being a well established principle of international law can be found in Article 91 of the 1977 Geneva Protocol I Additional to the Geneva Conventions of 12 August 1949. Which provides that: "A Party to the conflict ... shall be responsible for all acts by persons forming part of its armed forces". This principle was applied in the *Caire* case where two Mexican officers, after being failed to extort money took Caire, a French national to the local barracks and shot him. The Commission held:

That the two officers even if they are deemed to have acted outside their competence ... and even if their superiors countermanded an order, have involved the responsibility of the State, since they acted under cover of their status as officers and used means placed at their disposal on account of that status.²⁵

In *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*,²⁶ two Indian fishermen were killed by two Italian marines in the contiguous zone of India. The Arbitral Tribunal was of the opinion that "regardless of whether the Marines' acts were ultra vires or unlawful, ... the evidence demonstrates that during the incident the Marines were under an apprehension of a piracy threat and engaged in conduct that was in the exercise of their official functions as members of the Italian Navy and of a VPD".²⁷ The tribunal was also of the opinion that Italian marines were "State officials of the Italian Republic for the purpose of determining their entitlement to immunity *ratione materiae* because they were and remain members of the Italian Navy and officers and agents of the judicial police entrusted with guaranteeing the maritime defence of the State".²⁸

The conduct of private individuals is considered an act of State if they act on the instructions of State or under its directions or control. Article 8 provides that the conduct of the person or group of persons is considered an act of a State if the person or group of persons is acting on the instruction of that State or under its direction or control. The provisions deals with a situation where State organ supplement their own actions by recruiting or instigating private persons who act as "auxiliaries" while remaining outside the official structure of the State. For example, individuals not forming part of police or armed forces of a State are employed as auxiliaries or are sent as "volunteers" to neighbouring countries or who are instructed to carry out particular missions abroad. Not the entire conduct of such individuals shall be considered as the act of State, but only that conduct which was based on instructions, directions or control of that State.

In *Military and Paramilitary Activities* case,²⁹ the question was whether the conduct of the contras was attributable to the United States so as to hold the latter generally responsible for breaches of international humanitarian law committed by the contras. Analysing the term "control" the ICJ held that United States was responsible for the planning directions and support given by the United States to Nicaragua operatives. However, the ICJ rejected the broader claim of Nicaragua that all the conduct of the contras was attributable to the United States by reason of its control over them.

In *Prosecutor v Du (Ko Tadi)*, the Appeals Chamber of International Criminal Tribunal for the Former Yugoslavia observed that:

The requirement of international law for the attribution to States of acts performed by private individuals is that the State exercises control over the individuals. The *degree of*

25. *Caire v United Mexican States*, (1929) 5 RIAA 516, p 531.

26. *The Italian Republic v The Republic of India*, PCA Case No 2015-28, PCA Award dated 21 May 2020.

27. *The Italian Republic v The Republic of India*, PCA Case No 2015-28, PCA Award dated 21 May 2020 para 862.

28. *The Italian Republic v The Republic of India*, PCA Case No 2015-28, PCA Award dated 21 May 2020 para 855.

29. *Military and Paramilitary Activities (Nicargua v United States of America)*, (1986) ICJ Rep 14.

control may, however, vary according to the factual circumstances of each case. The Appeals Chamber fails to see why in each and every circumstance international law should acquire a high threshold for the test of control.³⁰

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,³¹ however, the ICJ noted that the “overall control” test was incorrect as it resulted into the broadening of the scope of State responsibility well beyond the fundamental principle governing the law of international responsibility. The Court further stated that “a State is responsible only for its own conduct, that is to say, the conduct of persons acting, on whatever basis, on its behalf. That is true of acts carried out by its official organs, and also by persons or entities which are not formally recognised as official organs under internal law but which must nevertheless be equated with State organs because they are in a relationship of complete dependence on the State”. In addition, a State’s responsibility may also be incurred for internationally wrongful acts committed by persons or group of persons who are neither State organs nor to be equated with such organs — only if, they are attributable to it under the rule of customary international law. This is so where an organ of the State gave the instructions or provided the direction pursuant to which the perpetrators of the wrongful act acted or where it exercised effective control over the action during which the wrong was committed. The Court noted that “in this regard the “overall control” test is unsuitable, for it stretches too far, almost to breaking point, the connection which must exist between the conduct of a State’s organs and its international responsibility”.³² The Court, thus emphasised on “effective control” not “overall control” to fix the responsibility of a State for its wrongful acts.

The conduct of a person or group of persons is considered an act of a State under international law if the person or group of persons is in fact exercising elements of the governmental authority in the absence or default of the official authorities and in circumstances such as to call for the exercise of those elements of authority.³³

According to ILC commentary, the underlying principle borrows idea from the concept *levee en masse*, the self-defence of the citizenry in the absence of regular forces: in effect it is a form of agency of necessity. In *Yeager v Islamic Republic of Iran*, the Tribunal held the conduct attributable to the Islamic Republic of Iran, on the basis that, if it was not actually authorised by the Government, then the Guards “at least exercised elements of the governmental authority in the absence of official authorities, in operation of which the new Government must have had knowledge and to which it did not specifically object”.³⁴

Article 10 States that where an insurrectional movement takes place in a State and it results into a new government, then the conduct of such movement shall be considered as an act of that State. Further, where the conduct of a movement, whether insurrectional or other, has succeeded in the formation of a new State within that pre-existing State, then such conduct shall be considered as an act of the new State.

The objective of this provision is that no government can be held responsible for the conduct of rebellious groups committed in violation of its authority, where it is itself guilty of no breach of good faith, or of no negligence in suppressing insurrection.³⁵ Thus, the conduct

30. *Prosecutor v Du (Ko Tadi)*, Case IT-94-1-A, (1999) 38 ILM1518, p 1541, para 11.

31. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.

32. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 406.

33. Article 9, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

34. *Yeager v Islamic Republic of Iran*, (1987) 17 Iran-USCTR 92, p 104, para 43.

35. See also *Solis case*, (1928) 4 RIAA 358, p 361.

of an insurrectional movement cannot be attributed to the State. On the other hand, where the movement achieves its aims and either installs itself as the new government of the State or forms a new State in part of the territory of the pre-existing State or in a territory under its administration, it would be anomalous if the new regime or new State could avoid responsibility for conduct earlier committed by it.

The conduct which is otherwise not attributable to a State under the preceding Articles shall be considered as act of that State if that State acknowledges and adopts the conduct in question as its own.³⁶ Thus, purely private conduct cannot be attributed to the State unless that State acknowledges and adopts them.

7.5 Breach of an International Obligation

A State commits breach of an international obligation when its act is not in conformity with that obligation, regardless of its origin or character.³⁷ There is no distinction between the responsibility for breach of a treaty and for breach of some other rule, i.e. for responsibility arising *ex contractu* or *ex delicto*. State responsibility can arise from breaches of bilateral obligations or of obligations owed to some States or to the international community as a whole.

In *Rainbow Warrior* arbitration,³⁸ the Tribunal affirmed that “in the international law field there is no distinction between contractual and tortuous responsibility”.³⁹ As far as the origin of the international obligation breached is concerned, there is a single general regime of State responsibility. Unlike municipal legal system, no distinction is made between civil and criminal responsibility under international law.

An act of a State, however, does not constitute a breach of an international obligation unless the State was bound by the obligation in question at the time when the act was occurred.⁴⁰ In *Island of Palmas* case,⁴¹ Judge Huber observed:

A juridical fact must be appreciated in the light of the law contemporary with it, and not of the law in force at the time when a dispute in regard to it arises or falls to be settled.⁴²

Article 14 deals with extension in time of the breach of an international obligation. The breach of an international obligation by an act of a State not having a continuing character occurs at the moment when the act is performed, even if its effects continue. Further, the breach of an international obligation by an act of a State having a continuing character extends over the entire period during which the act continues and remains not in conformity with the international obligation.

The breach of an international obligation requiring a State to prevent a given event occurs when the event occurs and extends over the entire period during which the event continues and remains not in conformity with that obligation. In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁴³ the ICJ observed:

This obviously does not mean that the obligation to prevent genocide only comes into being when perpetration of genocide commences; that would be absurd, since the whole

36. Article 11, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

37. Article 12, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

38. *Rainbow Warrior*, (1990) 20 RIAA 215.

39. *Rainbow Warrior*, (1990) 20 RIAA 215, p 251, para 75.

40. Article 13, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

41. *Island of Palmas*, (1928) 2 RIAA 829.

42. *Island of Palmas*, (1928) 2 RIAA 829, p 845.

43. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.

point of the obligation is to prevent, or attempt to prevent, the occurrence of the act. In fact, a State's obligation to prevent, and the corresponding duty to act, arise at the instant that the State learns of, or should normally have learned of, the existence of a serious risk that genocide will be committed.⁴⁴

The Court further stated that from that moment onwards, if the State had means which were likely to have a deterrent effect on those suspected of preparing genocide, or reasonably suspected of harbouring specific intent (*dolus specialis*), it was under a duty to make such use of those means as the circumstances permitted.⁴⁵

7.6 Responsibility of a State for the act of Another State

A State which aids or assists another State in the commission of an internationally wrongful act by the latter is internationally responsible for doing so if — (i) the assisting State does so with knowledge of the circumstances of the internationally wrongful act; and (ii) the act would be internationally wrongful if committed by that assisting State.⁴⁶ For example, in 1984 Iran protested against the supply of financial and military aid to Iraq by the United Kingdom, which allegedly included chemical weapons used in attacks against Iranian troops, on the ground that the assistance was facilitating acts of aggression by Iraq. The allegations with respect to chemical weapons were denied by the British Government.

In 1986, Libya charged the United Kingdom with responsibility for Tripoli bombing, based on the fact that the United Kingdom had allowed several of its air bases to be used for the launching of American fighter planes to attack Libyan targets. Libya asserted that the United Kingdom “would be held partly responsible” for having “supported and contributed in a direct way” to the raid. The General Assembly adopted a resolution condemning the “military attack” as “a violation of the Charter of the United Nations and of international law”, and calling upon all States to refrain from extending any assistance or facilities for perpetrating acts of aggression against the Libya.

It is also noteworthy that a State may incur responsibility if it assists another State to circumvent sanctions imposed by the Security Council or provides material aid to a State that uses the aid to commit human rights violations.⁴⁷

A State which directs and controls another State in the commission of an internationally wrongful act by the latter is internationally responsible for that act if – (i) that controlling State does so with knowledge of the circumstances of the internationally wrongful act; and (ii) the act would be internationally wrongful if committed by that controlling State.⁴⁸ This provision seems to be more of historical importance. International dependency relationships such as “suzerainty” or “protectorate” warranted treating the dominant State as internationally responsible for conduct formally attributable to the dependent State.

Article 18 fixes the responsibility of a State which coerces another State to commit an internationally wrongful act. State practice lends support to the principle that a State bears responsibility for the internationally wrongful conduct of another State which it coerces.

44. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43 para 431.

45. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43

46. Article 16, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

47. See ILC Commentary on Article 16.

48. Article 17, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

7.7 Circumstances Precluding Wrongfulness

Chapter V of the ILC Draft Code lays down certain circumstances which preclude the wrongfulness of an act of a State. These circumstances are consent; self-defence; countermeasures; *force majeure*; distress; and necessity.

7.7.1 Consent

According to Article 20, valid consent by a State to the commission of a given act by another State precludes the wrongfulness of that act in relation to the former State. However, the wrongfulness of that act is to be precluded to the extent to which the act remains within the limits of that consent.

7.7.2 Self-defence

In addition, the wrongfulness of an act of a State is precluded if the act constitutes a lawful measure of self-defence taken in conformity with the Charter of the United Nations.⁴⁹ The right of self-defence is secured to Member States under Article 51 of the United Nations Charter. This is an inherent right of individual or collective self-defence which is available to a State against an armed attack in accordance with Article 51.

7.7.3 Countermeasures

Article 22 justifies countermeasures by a State in respect of an internationally wrongful act, provided the countermeasures are taken in accordance with Articles 49–54. Thus, the wrongfulness of an act of a State not in conformity with an international obligation towards another State is precluded if and to the extent that the act constitutes a countermeasure taken against the latter State in accordance with Chapter II of Part Three (Articles 49–54) of the ILC Draft Code.

7.7.4 *Force majeure*

Force majeure is a ground for precluding the wrongfulness of an internationally wrongful act under Article 23. Thus, the wrongfulness of an act of a State is precluded if the act is due to *force majeure*, i.e. the occurrence of an irresistible force or of an unforeseen event, beyond the control of the State, making it materially impossible in the circumstances to perform the obligation.

Under two circumstances, however, the wrongfulness of an act shall not be precluded if –

- (i) the situation of *force majeure* is due, either alone or in combination with other factors, to the conduct of the State invoking it; or
- (ii) the State has assumed the risk of that situation occurring.

Force majeure is an involuntary conduct of a State. Material impossibility of performance giving rise to *force majeure* may be due to a natural or physical event (eg, stress of weather which may divert State aircraft into the territory of another State, earthquakes, floods or drought) or to human intervention (eg, loss of control over a portion of the State's territory as a result of an insurrection or devastation of an area by military operations carried out by a third State), or some combination of the two. *Force majeure* does not include circumstances in which

49. Article 21, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

performance of an obligation has become more difficult, for example due to some political or economic crisis or neglect or default.⁵⁰

The principle of *force majeure* has been pleaded successfully before international tribunals. In the *Lighthouses* arbitration, a lighthouse owned by a French company had been requisitioned by the Greek Government in 1915 and was subsequently destroyed by enemy action. The Arbitral Tribunal denied the French claim for restoration of the lighthouse on ground of *force majeure*.⁵¹ The Mixed Claims Commissions have frequently cited the unforeseeability of attacks by rebels in denying the responsibility of the territorial State for resulting damage suffered by foreigners.⁵²

7.7.5 Distress

Distress is another situation which precludes the wrongfulness of the acts of a State. According to Article 24, the wrongfulness of an internationally wrongful act is precluded if in a situation of distress, the author of the act in question has no other reasonable way of saving the author's life or the lives of other persons entrusted to the author's care.

The defence of distress, however, will not be available in the following two situations:

- (i) where the situation of distress is due, either alone or in combination with other factors, to the conduct of the State invoking it; or
- (ii) the act in question is likely to create a comparable or greater peril.

A person acts voluntarily under distress, as he may not be left with any other choice due to a situation of peril. In case of distress, the interest concerned is the immediate one of saving people's lives, irrespective of their nationality. Most of the distress cases involved aircraft or ships entering State territory under stress of weather or following mechanical or navigational failure.

Article 24 is limited to cases where human life is at stake. The Arbitral Tribunal in *Rainbow Warrior*⁵³ took a broader view of the circumstances justifying a plea of distress, apparently accepting that a serious health risk would suffice.⁵⁴

7.7.6 Necessity

Necessity, under Article 25, may be invoked by a State as a ground for precluding the wrongfulness of an internationally wrongful act only when the act:

- (i) is the only way for the State to safeguard an essential interest against a grave and imminent peril; and
- (ii) it does not seriously impair an essential interest of the State or States towards which the obligation exists, or of the international community as a whole.

Necessity, however, may not be invoked by a State if (a) the international obligation in question excludes the possibility of invoking necessity; or (b) the State has contributed to the situation of necessity.

The situation of necessity arises where there is an irreconcilable conflict between an essential interest on the one hand and an obligation of the State invoking necessity on the other.

50. See the ILC Commentary to Article 23.

51. *Ottoman Empire Lighthouses Concession*, (1956) 12 RIAA 155, pp 219–20.

52. See for example, the *John Gill v United Mexican States*, (1931) 5 RIAA 157.

53. *Rainbow Warrior (New Zealand/ France)*, (1990) 20 RIAA 215.

54. See also the ILC Commentary to Article 24.

The defence of necessity is available in exceptional cases to excuse non-performance of an obligation and is subject to strict limitation against possible abuse.

The term “essential interest” used in Article 25 has not been defined by International Law Commission in its commentary. Its meaning cannot be prejudged and depends on all the circumstances. According to Heathcote, what qualifies as an “essential interest” is not a fixed category. It is not limited to safeguarding the very survival of the State itself. It includes the preservation of the natural environment or the ecological equilibrium, the economic survival of the State, and the maintenance of the food supply of the population.⁵⁵

In *Gabcikovo-Nagymaros Project (Hung./Slovak.)*,⁵⁶ the ICJ stated that necessity is a ground recognised by customary international law for precluding the wrongfulness of an act not in conformity with an international obligation.⁵⁷ It further observed that such ground for precluding wrongfulness can only be accepted on an exceptional basis.

The circumstances precluding wrongfulness do not authorise or excuse any derogation from a peremptory norm of general international law.⁵⁸ For example, a State taking countermeasures may not derogate from such a norm: for example, a genocide cannot justify a counter-genocide. These peremptory norms may include the prohibitions of aggression, genocide, slavery, racial discrimination, crimes against humanity and torture, and the right of self-determination.

The invocation of a circumstance precluding wrongfulness is subject to compliance with the obligation in question, if the circumstance precluding wrongfulness no longer exists. Further, the question of compensation for any material loss caused by the act is to remain for settlement.⁵⁹

7.8 Legal Consequences of Internationally Wrongful Acts

The international responsibility of a State for its internationally wrongful acts involves legal consequences. The responsible State is under an obligation to (i) cease that act, if it is continuing; and (ii) offer appropriate assurances and guarantees of non-repetition, if circumstances so require.⁶⁰

The responsible State is under an obligation to make full reparation for the injury caused by the internationally wrongful act. Injury includes any damage, whether material or moral, caused by the internationally wrongful act of a State.⁶¹

In the *Factory at Chorzow* case, the Permanent Court of International Justice made observations on the general principle on the legal consequences of the commission of an internationally wrongful act. The Court stated that “it is a principle of international law that the breach of an engagement involves an obligation to make reparation in an adequate form”.⁶² What constitutes “reparation in an adequate form” clearly varies depending upon the concrete circumstances surrounding each case and the precise nature and scope of the injury, since the question has to be examined from the viewpoint of what is the “reparation in an adequate form” that corresponds to the injury.

55. Sarah Heathcote, “Circumstances Precluding Wrongfulness in the ILC Articles on State Responsibility: Necessity” in *The Law of International Responsibility*, James Crawford, Alain Peller and Simon Olleson (Eds), 2010, p 491, at p 494.

56. *Gabcikovo-Nagymaros Project (Hung./Slovak.)*, (1997) ICJ Rep 7, para 51.

57. See also Advisory Opinion of ICJ on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 140.

58. Article 26, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

59. Article 27, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

60. Articles 28, 30, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

61. Article 31, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

62. *Factory at Chorzow*, (Jurisdiction), (1927) PCIJ Rep Series A No 9, p 21.

In a subsequent phase of the same case, the Court went on to elaborate on this point as follows:

The essential principle contained in the actual notion of an illegal act - a principle which seems to be established by international practice and in particular by the decisions of arbitral tribunals - is that reparation must, as far as possible, wipe out all the consequences of the illegal act and reestablish the situation which would, in all probability, have existed if that act had not been committed. Restitution in kind, or, if this is not possible, payment of a sum corresponding to the value which a restitution in kind would bear; the award, if need be, of damages for loss sustained which would not be covered by restitution in kind or payment in place of it - such are the principles which should serve to determine the amount of compensation due for an act contrary to international law.⁶³

As already discussed, damage may be material or moral. “Material” damage refers to damage to property or other interests of the State and its nationals which is assessable in financial terms. “Moral” damage includes such things as individual pain and suffering, loss of loved ones or personal affront associated with an intrusion on one’s home or private life.

In *Rainbow Warrior* arbitration, the Tribunal held that the breach by France had provoked indignation and public outrage in New Zealand and caused a new, additional non-material damage of a moral, political and legal nature, resulting from the affront to the dignity and prestige not only of New Zealand as such, but of its highest judicial and executive authorities as well.⁶⁴

It is the duty of the injured State to mitigate the damages. A failure to mitigate damages by the injured State may preclude recovery to that extent. In *Gabcikovo-Nagymaros Project (Hung./Slovak.)*,⁶⁵ the ICJ stated:

[A]n injured state which has failed to take the necessary measures to limit the damage sustained would not be entitled to claim compensation for that damage which could have been avoided. While this principle might thus provide a basis for the calculation of damages, it could not, on the other hand, justify an otherwise wrongful act.

Article 32 makes it clear that the responsible State may not rely on the provisions of its internal law as justification for failure to comply with its obligations.

7.9 Reparation for Injury

A responsible State is under an obligation to make full reparation for the injury caused by it to another State. According to Article 34, full reparation for the injury caused by the internationally wrongful act is to take the form of restitution, compensation and satisfaction, either singly or in combination.

7.9.1 Restitution

A State responsible for an internationally wrongful act is under an obligation to make reparation. Reparation means to re-establish the situation which existed before the wrongful act was committed. Restitution, however, is not to be made in two circumstances. Firstly, where it is materially impossible; and secondly, where it involves a burden out of all proportion to the benefit deriving from restitution instead of compensation.⁶⁶ The second situation applies only where there is a grave disproportionality between the burden which restitution would impose on the responsible State and the benefit which would be gained, either by the injured State or by any victim of the breach. It is thus based on considerations of equity and reasonableness.

63. *Factory at Chorzow*, (Merits), (1928) PCIJ Rep Series A No 17, p 47.

64. *Rainbow Warrior (New Zealand/ France)*, (1990) 20 RIAA 215, p 267.

65. *Gabcikovo-Nagymaros Project (Hungary/Slovakia)*, (1997) ICJ Rep 7, p 55, para 80.

66. Article 35, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

In *Factory at Chorzow* case, the PCIJ stated that the responsible State was under “the obligation to restore the undertaking and, if this be not possible, to pay its value at the time of the indemnification, which value is designed to take the place of restitution which has become impossible”.⁶⁷ The Court further stated that the impossibility, on which the parties have agreed, of restoring the Chorzow factory could therefore have no other effect but that of substituting payment of the value of the undertaking for restitution.

Restitution may take the form of material restoration or return of territory, persons or property, or the reversal of some juridical act, or some combination of them. Material restoration include the release of detained individuals, the handing over to a State of an individual arrested in its territory, the restitution of ships or other types of property including documents, works of art, etc. In Advisory Opinion on *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*,⁶⁸ the ICJ concluded with respect to the consequences under international law that arose from the continued administration by the United Kingdom of the Chagos Archipelago, that the United Kingdom was under an obligation “to bring an end to its administration of the Chagos Archipelago as rapidly as possible, thereby enabling Mauritius to complete the decolonisation of its territory in a manner consistent with the right of peoples to self-determination”.⁶⁹

Restitution may not be available in certain cases or its value to the injured State is so reduced that other forms of reparation take priority, eg where the property in question has been destroyed or fundamentally changed in character or the situation cannot be restored to the *status quo ante* for some reason.

7.9.2 Compensation

The responsible State is under an obligation to compensate for the damage caused thereby, insofar as such damage is not made good by restitution. The compensation is to cover any financially assessable damage including loss of profits insofar as it is established.⁷⁰

Compensation is the most commonly sought form of reparation. The damages, with respect to which the compensation is sought, may be material or moral. Monetary compensation is intended to offset the damage suffered by the injured State as a result of the breach. Satisfaction is concerned with non-material injury, specially non-material injury to the State on which a monetary value can be put only in a highly approximate and notional way.

A State may also seek compensation in respect of personal injuries suffered by its officials or nationals, over and above any direct injury it may itself have suffered in relation to the same event. Compensable personal injury encompasses not only associated material losses such as loss of earning and earning capacity, medical expenses and the like, but also non-material damage suffered by the individual, such as loss of loved ones and pain and suffering. Non-material damage is financially assessable and may be the subject of a claim of compensation, as stressed in the *Lusitania* case.⁷¹

Responsibility of a State arises where it expropriates the alien property. In *Amoco International Finance Corp. v Iran*,⁷² the tribunal while referring to *Chorzow Factory case*, stated:

67. *Factory at Chorzow*, (Merits), (1928) PCIJ Series A No 17, p 48.

68. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, (2019) ICJ Rep 95, Advisory Opinion dated 25 February 2019.

69. *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, (2019) ICJ Rep 95, paras 178, 182.

70. Article 36, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

71. *Lusitania Cases*, (1923) 7 RIAA 32.

72. *Amoco International Finance Corp v Iran (US v Iran)*, 15 Iran-USCTR 189.

According to the Court in the *Chorzow Factory case* an obligation of reparation of all the damages sustained by the owner of expropriated property arises from an unlawful expropriation... . The rules of international law relating to international responsibility of States apply in such a case. They provide for *restitution in integrum*: restitution in kind or, if impossible, its monetary equivalent. If need be, “damages for loss sustained which would not be covered by restitution” should also be awarded. ... On the other hand, a lawful expropriation must give rise to “the payment of fair compensation” or of “the just price of what was expropriated”.⁷³

The tribunal found the expropriation of the property of United States’s company by the Government of Iran as lawful and made Iran responsible to pay a compensation of 50% of the going concern value without the addition of future lost profits.⁷⁴

In *Iraq matter*, the Security Council reaffirmed that Iraq “is liable under international law for any direct loss, damage and the depletion of natural resources, or injury to foreign Governments, nationals and corporations, as a result of Iraq’s unlawful invasion and occupation of Kuwait”. The Security Council also decided to establish a fund to pay compensation and a commission to administer it. For this purpose, the Security Council directed the Secretary General to recommend to it “the mechanisms for determining the appropriate level of Iraq’s contribution to the fund based on a percentage of the value of the exports of petroleum and petroleum products ... taking into account the needs of the people of Iraq”.⁷⁵ On the suggestion made by Secretary General, the Security Council decided that “compensation to be paid by Iraq ... shall not exceed 30 per cent of the annual value of the exports of petroleum and petroleum products from Iraq”.⁷⁶ The amount of compensation could be reviewed from time to time.

In *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*,⁷⁷ the Arbitral Tribunal while referring to Article 36 of the Draft Articles held that shooting at the *St. Antony* by Italian marines amounted to physical interference with the freedom of navigation of the Indian ship *St. Antony* and resulted in loss of life, physical harm, material damage to their property and moral harm. India is accordingly entitled to payment of compensation in respect of such damage, which by its nature cannot be made good through restitution.⁷⁸

7.9.3 Satisfaction

The responsible State is under an obligation to give satisfaction to other State for the injury caused by its wrongful acts to such State insofar as it cannot be made good by restitution or compensation.

Satisfaction may consist in an acknowledgement of the breach, an expression of regret, a formal apology or another appropriate modality. Satisfaction is not to be out of proportion to the injury and may not take a form humiliating to the responsible State.⁷⁹ Satisfaction may normally be required in those cases where the full reparation could not be provided by other forms, such as restitution and compensation.

Satisfaction is the remedy for those injuries, which are not financially assessable, and which amount to an affront to the State. These injuries are frequently of a symbolic character, arising

73. *Amoco International Finance Corp v Iran (US, v Iran)*, 15 Iran-USCTR 189, para 193.

74. *Amoco International Finance Corp v Iran (US v Iran)*, 15 Iran-USCTR 189, para 341.

75. UN Security Council Resolution S/RES/687 dated 8 April 1991, paras 16, 18 and 19.

76. Resolution 705 (1991) of 15 August 1991.

77. *The Italian Republic v The Republic of India*, PCA Case No 2015-28, PCA Award dated 21 May 2020.

78. *The Italian Republic v The Republic of India*, PCA Case No 2015-28, PCA Award dated 21 May 2020. para 1088.

79. Article 37, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

from the very fact of the breach of the obligation, irrespective of its material consequences for the State concerned.

In *Rainbow Warrior* arbitration, the tribunal stated:

There is a long established practice of States and international Courts and Tribunals of using satisfaction as a remedy or form of reparation (in the wide sense) for the breach of an international obligation. This practice relates particularly to the case of moral or legal damage done directly to the State, especially as opposed to the case of damage to persons involving international responsibilities.

Satisfaction for non-material injury caused by a State to another may be claimed by latter for cases like insults to the symbols of the State or national flag, violations of sovereignty or territorial integrity, attacks on ships and aircrafts, ill treatment of head of State or government, diplomatic or consular representatives, violation of the premises of embassies or consulates, etc.

An acknowledgement of the breach of obligation, an expression of regret, or a formal apology as referred to in Article 37, are only some of the examples of satisfaction. These forms of satisfaction are not exhaustive. The other forms may include an inquiry into the causes of injury caused, disciplinary or penal actions against the individuals responsible for the injury, or the award of symbolic damages for non-pecuniary injury, etc.

In the *LaGrand* case the ICJ observed:

The Court considers in this respect that if the United States, notwithstanding its commitment [to ensure implementation of the specific measures adopted in performance of its obligations under Article 36, paragraph 1(b) of Vienna Convention on Consular Relations, 1963], should fail in its obligation of consular notification to the detriment of German nationals, an apology would not suffice in cases where the individuals concerned have been subjected to prolonged detention or convicted and sentenced to severe penalties. In the case of such a conviction and sentence, it would be incumbent upon the United States to allow the review and reconsideration of the conviction and sentence by taking account of the violation of the rights set forth in the Convention. This obligation can be carried out in various ways. The choice of means must be left to the United States.⁸⁰

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁸¹ the Court found that financial compensation for the failure to prevent the genocide at Srebrenica was not the appropriate form of reparation. The Court held that its finding that “Serbia has violated the obligation to prevent genocide, under the Convention on the Prevention and Punishment of the Crime of Genocide, in respect of the genocide that occurred in Srebrenica in July 1995” constituted appropriate satisfaction. Apart from that, the Court’s finding that “Serbia has violated its obligation to comply with the provisional measures ordered by the Court on 8 April and 13 September 1993 in this case, inasmuch as it failed to take all measures within its power to prevent genocide in Srebrenica in July 1995” also constituted appropriate satisfaction.⁸² In the opinion of Court, a direction to provide assurances and guarantees of non-repetition was appropriate.

In *Jadhav Case (India v Pakistan) (Merits)*,⁸³ while requesting for remedies before ICJ, India referred to Article 14 of the International Covenant on Civil and Political Rights, 1966 (Covenant) to support its requests. India stated that in accordance with the rule reflected

80. *LaGrand (Germany v United States of America)*, (2001) ICJ Rep 466, 513–14, para 125.

81. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.

82. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 471.

83. *Jadhav Case (India v Pakistan) (Merits)*, (2019) ICJ Rep 418, Judgment dated 17 July 2019.

in Article 31, paragraph 3(c) of the Vienna Convention on the Law of Treaties, 1969⁸⁴ the Covenant may be taken into account, together with the context, for the interpretation of the Vienna Convention on Consular Relations, 1963. The Court observed that:

the remedy to be ordered in this case has the purpose of providing reparation only for the injury caused by the internationally wrongful act of Pakistan that falls within the Court's jurisdiction, namely its breach of obligations under Article 36 of the Vienna Convention on Consular Relations, and not of the Covenant.⁸⁵

The Court in this case found that:

the appropriate reparation in this case consists in the obligation of the Islamic Republic of Pakistan to provide, by the means of its own choosing, effective review and reconsideration of the conviction and sentence of Mr. Kulbhushan Sudhir Jadhav, so as to ensure that full weight is given to the effect of the violation of the rights set forth in Article 36 of the Convention⁸⁶

7.10 Serious Breaches of Obligations under Peremptory Norms of International Law

Certain obligations are owed by States to the international community as a whole. Therefore, all other States have a legal interest in their protection. In *Barcelona Traction* case,⁸⁷ the ICJ observed:

An essential distinction should be drawn between the obligations of a State towards the international community as a whole, and those arising vis-à-vis another State in the field of diplomatic protection. By their very nature the former are the concern of all States. In view of the importance of the rights involved, all States can be held to have a legal interest in their protection: they are obligations *erga omnes*.⁸⁸

In the *East Timor (Portugal v Australia)*,⁸⁹ the ICJ stated that “Portugal’s assertion that the right of peoples to self-determination, as it evolved from the Charter and from United Nations practice, has an *erga omnes* character, is irreproachable”.⁹⁰ Similarly, at the preliminary objections stage of the *Application of the Convention on the Prevention and Punishment of the Crime of Genocide* case,⁹¹ the ICJ stated that “the rights and obligations enshrined by the [Genocide] Convention are rights and obligations *erga omnes*”.⁹²

Article 40 deals with international responsibility which is entailed by a serious breach by a State of an obligation arising under a peremptory norm of general international law. A breach of such an obligation is considered as serious if it involves a gross or systematic failure by the responsible State to fulfil the obligation. The State is under an obligation of not conducting the act of aggression as prohibition of aggression is one such peremptory norm.

According to Article 41, the States are under an obligation to cooperate to bring any such serious breach to an end by lawful means. Further, no State shall recognise a situation created by a serious breach as lawful, nor shall they render aid or assistance in maintaining that situation.

84. Article 31 of Vienna Convention on Law of Treaties, 1969 lays down general rule of interpretation. Article 31(3)(c) provides that “There shall be taken into account, together with the context ... any relevant rules of international law applicable in the relations between the parties.”

85. *Jadhav Case (India v Pakistan) (Merits)*, (2019) ICJ Rep 418, para 135, Judgment dated 17 July 2019, para 135.

86. *Jadhav Case (India v Pakistan) (Merits)*, (2019) ICJ Rep 418, para 149.

87. *Barcelona Traction, Light and Power Company, Limited, Second Phase*, (1970) ICJ Rep 3.

88. *Barcelona Traction, Light and Power Company, Limited, Second Phase*, (1970) ICJ Rep 3, p 32, para 33.

89. *East Timor (Portugal v Australia)*, (1995) ICJ Rep 90.

90. *East Timor (Portugal v Australia)*, (1995) ICJ Rep 90, p 102, para 29.

91. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide*, (1996) ICJ Rep 595.

92. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide*, (1996) ICJ Rep 595, p 616, para 31.

In *Jurisdictional Immunities of the State* case,⁹³ the ICJ observed that granting immunity to a State did not amount to recognizing as lawful a situation created by the breach of a *jus cogens* rule, or rendering aid and assistance in maintaining that situation, as provided in Article 41.⁹⁴

An injured State may take countermeasures against a State which is responsible for an internationally wrongful act in order to induce that State to comply with its obligations. Countermeasures are limited to the non-performance of international obligations of the State for the time being. As far as possible, countermeasures are to be taken in such a way as to permit the resumption of performance of the obligations in question.⁹⁵

Countermeasures are not intended as a form of punishment for wrongful conduct but as an instrument for achieving compliance with the obligations of the responsible State to cease the internationally wrongful conduct, if it is continuing, and to provide reparation to the injured State. Countermeasures are different from reprisals and retorsion. Reprisals have been limited to action taken in time of international armed conflict. Countermeasures are taken in accordance with modern practice and judicial decisions, and cover that part of the subject of reprisals which are not associated with armed conflict. Countermeasures are to be contrasted with retorsion, i.e. “unfriendly” conduct which is not inconsistent with any international obligation of the State engaging in it even though it may bear response to an internationally wrongful act. Acts of retorsion may include the prohibition of or limitation upon normal diplomatic relations or other contacts, embargos of various kinds or withdrawal of voluntary aid programs.

7.11 Countermeasures not to Affect Certain Obligations of State

Article 50 of the Draft Code makes it obligatory for States to fulfil certain obligations even when they are taking countermeasures. Countermeasures taken by States are not to affect (i) the obligation to refrain from the threat or use of force as embodied in the UN Charter; (ii) obligations for the protection of fundamental human rights; (iii) obligations of a humanitarian character prohibiting reprisals; (iv) other obligations under peremptory norms of general international law.

A State taking countermeasures is not relieved from fulfilling its obligations (a) under any dispute settlement procedure applicable between it and the responsible State; and (b) to respect the inviolability of diplomatic or consular agents, premises, archives and documents.

The Committee on Economic, Social and Cultural Rights in its General Comment 8 (1997) discussed the effect of economic sanctions on civilian populations and especially on children. It stressed that “whatever the circumstances, such sanctions should always take full account of the provisions of the International Covenant on Economic, Social and Cultural Rights”.⁹⁶ The Committee further stated:

It is essential to distinguish between the basic objective of applying political and economic pressure upon the governing elite of a country to persuade them to conform to international law, and the collateral infliction of suffering upon the most vulnerable groups within the targeted country.⁹⁷

In addition, Article 54(1) of the Additional Protocol I of 1977 stipulates unconditionally that starvation of civilians as a method of warfare is prohibited. Similarly, the final sentence of Article 1(2) of the International Covenant on Civil and Political Rights and International

93. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, International Court of Justice, 3 February 2012 available at <https://www.icj-cij.org/public/files/case-related/143/143-20120203-JUD-01-00-EN.pdf> (last accessed in January, 2021).

94. *Jurisdictional Immunities of the State (Germany v Italy; Greece Intervening)*, (2012) ICJ Rep 99, para 93.

95. Article 49, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

96. E/C.12/1997/8, 12 December 1997, para 1.

97. E/C.12/1997/8, 12 December 1997, para 4.

Covenant on Economic, Social and Cultural Rights of 1966 States that “in no case may a people be deprived of its own means of subsistence”.

Thus, a State is duty bound to ensure that countermeasures taken by it against the State which is responsible for internationally wrongful acts, are consistent with its certain international obligations as laid down in Article 50.

Proportionality is a well-established requirement for taking countermeasures. Article 51 States that taking into account gravity of the internationally wrongful act and the rights in question, countermeasures must be commensurate with the injury suffered. The countermeasures therefore should be proportionate to the injury and should not exceed.

It becomes sometimes very difficult to judge the proportionality. In *Air Services* arbitration,⁹⁸ the tribunal stated:

It has been observed, generally, that judging the ‘proportionality’ of countermeasures is not an easy task and can best be accomplished by approximation.⁹⁹

In *Gabcikovo-Nagmaros Project* case,¹⁰⁰ Czechoslovakia took countermeasures against Hungary. The ICJ stated that “in the view of the Court, an important consideration is that the effects of a countermeasure must be commensurate with the injury suffered, taking account of the rights in question”.¹⁰¹

Article 52 imposes further obligation on the injured States and States that before taking countermeasures, an injured State shall (a) call on the responsible State to fulfil its obligations; and (b) notify the responsible State of any decision to take countermeasures and offer to negotiate with that State. However, the injured State may take such urgent countermeasures as are necessary to preserve its rights without notifying the responsible State.

Countermeasures may not be taken, and if already taken must be suspended without undue delay if (i) the internationally wrongful act has ceased, and (ii) the dispute is pending before a court or tribunal which has the authority to make decisions binding on the parties. These provisions however will not apply if the responsible State fails to implement the dispute settlement procedure in good faith.

Countermeasures are to terminate as soon as the responsible State has complied with its obligations in relation to its internationally wrongful act.¹⁰²

7.12 Exhaustion of Local Remedies Rule

As per customary international law, local remedies need to be exhausted before diplomatic intervention is sought, or before recourse is made to international arbitral or judicial processes. The exhaustion of local remedies rule permits States to solve their internal problems in accordance with their own constitutional procedures before accepted international mechanisms can be invoked. According to Rebecca Wallace, there are three reasons for the adoption of this rule of exhaustion of local remedies:

- (i) it allows the State concerned the opportunity to afford redress within its own legal system for the alleged wrong;
- (ii) it reduces the number of possible international claims; and
- (iii) it respects for the sovereignty of States.¹⁰³

98. *Air Services Agreement of 27 March 1946 (United States v France)*, (1978) 18 RIAA 417.

99. *Ibid.*

100. *Gabcikovo-Nagmaros Project (Hungary v Slovakia)*, (1997) ICJ Rep 7.

101. *Gabcikovo-Nagmaros Project (Hungary v Slovakia)*, (1997) ICJ Rep 7, p 56.

102. Article 53, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

103. Rebecca M M Wallace, *International Law*, 1997, p 194.

It is noteworthy that Calvo clause used to be inserted in many of the commercial contracts. Calvo clause is a clause in a contract between a State and an alien whereby the latter agrees to resort to local remedies only and not to invoke the protection of the State of which it is a national.

Article 44 of the ILC Draft Code States that the responsibility of a State may not be invoked if the claim is one to which the rule of exhaustion of local remedies applies and any available and effective local remedy has not been exhausted.

In practice, it is found that the rule of exhaustion of local remedies has been applied mostly in the cases of diplomatic protection of foreign nationals. Article 44, however, is formulated in general terms in order to cover any case to which the exhaustion of local remedies rule applies, whether under treaty or general international law, and in spheres not necessarily limited to diplomatic protection.

The International Law Commission Draft Articles on Diplomatic Protection of 2003 also lays down that a State may not bring an international claim in respect of an injury to a national or other person before the injured person has exhausted all local remedies.¹⁰⁴ Local remedies shall be exhausted where an international claim, or request for a declaratory judgment related to the claim, is brought preponderantly on the basis of an injury to a national or other person.¹⁰⁵

Local remedies are not confined to having access to courts and tribunals. In *Ambatielos Arbitration*, the Commission of Arbitration stated:

The rule requires that “local remedies” shall have been exhausted before an international action can be brought. These “local remedies” include not only reference to the courts and tribunals, but also the use of the procedural facilities which municipal law makes available to litigants before such courts and tribunals. It is the whole system of legal protection, as provided by municipal law, which must have been put to the test before a state, as the protector of its nationals, can prosecute the claim on the international plane.¹⁰⁶

Local remedies thus, include all administrative, arbitral, judicial or quasi-judicial remedies. Article 8(2) of the ILC Draft Articles also defines “local remedies” to mean “the remedies which are as of right open to the injured person before the judicial or administrative courts or bodies, whether ordinary or special, of the State alleged to be responsible for the injury”.

In *Case Concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, *Preliminary Objections*,¹⁰⁷ the ICJ recalled that:

while the local remedies that must be exhausted include all remedies of a legal nature, judicial redress as well as redress before administrative bodies, administrative remedies can only be taken into consideration for purposes of the local remedies rule if they are aimed at vindicating a right and not at obtaining a favour, unless they constitute an essential prerequisite for the admissibility of subsequent contentious proceedings.¹⁰⁸

It is noteworthy that only effective remedies which could affect the final outcome of the case need to be exhausted.¹⁰⁹ The exhaustion of local remedies is not required when the alleged wrong is a direct injury by one State against another State.

104. Article 8, International Law Commission Draft Articles on Diplomatic Protection of 2003.

105. Article 9, International Law Commission Draft Articles on Diplomatic Protection of 2003.

106. *Ambatielos Arbitration (Greece v UK)*, (1956) 12 RIAA 83 : (1956) 23 ILR 306.

107. *Case concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, Preliminary Objections, 2007 ICJ Rep 582.

108. *Case concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, Preliminary Objections, 2007 ICJ Rep 582, para 47.

109. *Finnish Ships Arbitration*, (1934) 3 RIAA 1479; *El Oro Mining and Railway Co Case (Great Britain v Mexico)* (1931) 5 RIAA 191; *Interhandel Case* (Preliminary Objections), (1959) ICJ Rep 6, pp 26–29; see also Rebecca M M Wallace, *International Law*, 1997, p 195.

The exhaustion of local remedies rule is not to be pressed in cases where such local remedies are not-existent or unduly and unreasonably prolonged or unlikely to bring effective relief.¹¹⁰ According to ILC Draft Articles, local remedies do not need to be exhausted in the following four conditions, where:

- (i) the local remedies provide no reasonable possibility of effective redress;
- (ii) there is undue delay in the remedial process which is attributable to the State alleged to be responsible;
- (iii) there is no relevant connection between the injured person and the State alleged to be responsible or the circumstances of the case otherwise make the exhaustion of local remedies unreasonable;
- (iv) the State alleged to be responsible has waived the requirement that local remedies be exhausted.¹¹¹

In *Case Concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, *Preliminary Objections*,¹¹² the Court also observed that in matters of diplomatic protection, it is incumbent on the applicant to prove that local remedies were indeed exhausted or to establish that exceptional circumstances relieved the allegedly injured person whom the applicant seeks to protect of the obligation to exhaust available local remedies. It is for the respondent to convince the Court that there were effective remedies in its domestic legal system that were not exhausted.¹¹³

7.13 *Lex specialis*

The Draft Articles on State Responsibility are not applicable in a case “where and to the extent that the conditions for the existence of an internationally wrongful act or the content or implementation of the international responsibility of a State are governed by special rules of international law”.¹¹⁴ Article 55, thus, opens the door to the exclusion of the Draft Articles on State responsibility. The ILC commentary explains that “Article 55 is designed to cover both “strong” forms of *lex specialis*, including what are often referred to as self-contained regimes, as well as “weaker” forms such as specific treaty provisions on a single point, for example, a specific treaty provision excluding restitution”. In *United States Diplomatic and Consular Staff in Tehran*, the ICJ observed that:

the rules of diplomatic law ... constitute a self-contained regime which, on the one hand, lays down the receiving State's obligations regarding the facilities, privileges and immunities to be accorded to diplomatic missions and, on the other, foresees their possible abuse by members of the mission and specifies the means at the disposal of the receiving State to counter any such abuse.¹¹⁵

The effect of Article 55 is that the law of State responsibility is presumed to be subordinate to such regimes.¹¹⁶ The fact that human rights protection has been confined under specific treaty regimes does not mean that State responsibility is inapplicable to human rights treaties.¹¹⁷

110. Malcolm N Shaw, *International Law*, 2008, p 273.

111. Article 10, International Law Commission Draft Articles on Diplomatic Protection of 2003.

112. *Case Concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, (2007) ICJ Rep 582.

113. *Case Concerning Ahmadou Sadio Diallo (Republic of Guinea v Democratic Republic of the Congo)*, (2007) ICJ Rep 582, para 44; see also *Elettronica Sicula S p A (ELSI) (United States of America v Italy)* (1989) ICJ Rep 15, pp 43–44, para 53.

114. Article 55, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

115. *United States Diplomatic and Consular Staff in Tehran*, (1980) ICJ Rep 3, p 40, para 86.

116. Margaretha Wewerinke-Singh, *State Responsibility, Climate Change and Human Rights under International Law*, Hart Publishing, 2018, p 64.

117. Martti Koskeniemi, “Doctrines of State Responsibility” in *The Law of International Responsibility*, James Crawford, Alain Pellet and Simon Olleson (Eds), Oxford University Press, 2010, p 47.

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,¹¹⁸ the Court concluded that “State responsibility can arise under the Convention for genocide and complicity, without an individual being convicted of the crime or an associated one”.

The questions concerning the responsibility of a State for an internationally wrongful act shall continue to be governed by the applicable rules of international law to the extent that they are not regulated by the Draft Articles.¹¹⁹ Thus, where Draft Articles are not dealing with the questions of State responsibility for internationally wrongful acts, the customary international law will become applicable in such cases.

According to Article 57, the Draft Articles are without prejudice to any question of the responsibility of an international organisation under international law, or of any State for the conduct of an international organisation. International organisation is defined as “intergovernmental organization” under Article 2(1)(i) of the Vienna Convention on the Law of Treaties between States and International Organizations or between International Organizations, 1986.

These articles are also without prejudice to any question of the individual responsibility under international law of any person acting on behalf of a State.¹²⁰ The individual responsibility may be “individual civil liability” as well as “individual criminal liability”.¹²¹ Individual criminal responsibility refers to the criminal responsibility of individual persons, including State officials, under certain rules of international law for conduct such as genocide, war crimes and crimes against humanity. Individual responsibility was fixed by the Nuremberg Tribunal, Tokyo Tribunal, Adhoc Yugoslavia and Rwanda Tribunals, and International Criminal Court to name a few.

According to Article 59, these articles are without prejudice to the Charter of the United Nations. The basis of Article 59 can be found in Article 103 of the UN Charter. Article 103 of the Charter provides that “in the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail”. The Draft Articles, therefore are to be interpreted in conformity with the UN Charter.

118. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 182.

119. Article 56, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

120. Article 58, Draft Articles on Responsibility of States for Internationally Wrongful Acts, 2001.

121. See Commentary on Draft Articles, p 142.

CHAPTER 8

LAW AND PRACTICE OF TREATIES

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Treaties are regarded as the most important source of international law. As the treaties are normally in writing, it becomes easier for the parties to know their rights and obligations arising out of them. Further, in case of any dispute, the courts and tribunals can interpret the rights and obligations of the parties in a precise manner, as they may not have to deduce it from the State practice.

The need to codify the law of treaties was satisfied when 20 years work of International Law Commission was adopted in the form of Vienna Convention on Law of the Treaties in 1969. The Convention entered into force in January 1980. Prior to Vienna Convention, law of treaties was mainly being governed by customary international law. The Convention is a combination of the codification of customary international law¹ and the progressive development of international law. The Convention is not a complete code of treaty law as the rules of customary international law will continue to govern questions not regulated by the Convention.

The Vienna Convention applies only to those treaties which have been concluded between the States.² The Convention is not applicable to treaties which have been concluded between States and other subjects of international law, such as international organisations or between such other subjects of international law. The treaties between States and international organisations or between International Organisations are governed by the provisions of The Vienna Convention on the Law of Treaties between States and International Organizations or between International Organizations, 1986.

1. See for example Advisory Opinion of International Court of Justice in *Namibia* case, (1971) ICJ Rep 16, p 47, in which the Court stated that the rules laid down by the Vienna Convention “concerning termination of a treaty relationship on account of breach (adopted without a dissenting vote) may in many respects be considered as a codification of existing customary law on the subject”.

2. Article 1.

8.1 Definition of Treaty

The term “treaty” is the most popular term used in international law which lays down the rules agreed between the parties on a particular subject-matter. “Treaty” is used as a generic term embracing all instruments binding at international law regardless of their formal designation. Treaties go under a variety of names, some of which indicate a difference in procedure or a greater or lesser degree of formality. A particular treaty term might indicate that the desired objective of the treaty is a higher degree of cooperation than ordinarily aimed for in such instruments. Other terms might indicate that the parties sought to regulate only technical matters.³ Apart from treaty, many other titles are also used, eg Covenant, Convention⁴; Agreement⁵; Arrangement⁶; Protocol⁷; Proces-Verbal⁸; Statute⁹; Declaration¹⁰; Charter¹¹; Accord or Act¹²; Pact¹³; Modus Vivendi¹⁴; Exchange of Notes or Exchange of Letters¹⁵; Final Act¹⁶; Memorandum of Agreement; “Memorandum of Understanding” and Agreed Minutes.¹⁷

3. Usually the term “treaty” is reserved for matters of some gravity that require more solemn agreements. Their signatures are usually sealed and they normally require ratification. The examples of “treaties” are Peace Treaties, Border Treaties, Delimitation Treaties, Extradition Treaties and Treaties of Friendship, Commerce and Cooperation. See https://treaties.un.org/pages/Overview.aspx?path=overview/definition/page1_en.xml.
4. The term “Convention” is ordinarily used for a proper formal instrument of a multilateral character.
5. An “agreement” is an instrument less formal than a treaty or convention proper. The term “agreement” is usually applied to agreements of more limited scope and with two or fewer parties. It is employed especially for instruments of a technical or administrative character, which are signed by the representatives of government departments, but are not subject to ratification. Typical agreements deal with matters of economic, cultural, scientific and technical cooperation.
6. The term “Arrangement” is usually employed for a transaction of a provisional or temporary nature.
7. A “Protocol” is ordinarily an agreement less formal than a treaty or convention. It may be adopted as an instrument subsidiary to a convention. It may be an ancillary instrument to a convention, but of an independent character and subject to independent ratification. It can also be an independent treaty altogether.
Many a times, the Optional Protocol is adopted to complement and add to the existing treaty. It is called optional because the obligations under it may be more demanding than those in the main treaty. So States parties to the main treaty have to choose whether or not to be bound by those obligations by becoming a party to the protocol. Optional Protocol is a treaty in its own right. A protocol may be on any topic relevant to the main treaty and is used either to further address something in the main treaty, address new or emerging concern or add a procedure and enforcement of the treaty.
8. A Proces-Verbal is an instrument that contains a record of certain understandings arrived at by the contracting parties.
9. The term “Statute” is used for a collection of constituent rules relating to the functioning of an international institution, for example, Statute of International Court of Justice, 1945; Statute of International Criminal Court, 1998, etc. A statute may also be an accessory instrument to a convention setting out certain regulations to be applied.
10. The term “Declaration” may be used for a treaty proper or an informal instrument appended to a treaty or convention explaining its provisions. Sometimes, a resolution by a diplomatic conference, enunciating some principle for observance by all States is also called Declaration.
11. The term “Charter” is used for the constituent instrument of international organisations, e.g. Charter of the United Nations.
12. The terms “Accord” or “Act” are used for a treaty laying down general rules of international law or setting up an international organ.
13. The term “Pact” is used to record some solemn obligation.
14. The term “*Modus vivendi*” refers to an instrument recording an international agreement of a temporary or provisional nature, usually made in an informal way. It is intended to be replaced by an arrangement of a more permanent and detailed character.
15. “Exchange of Notes” or “Exchange of Letters” take the form of an exchange of correspondence between the States. It is an informal method whereby States subscribe to certain understandings or recognize certain obligations as binding them.
16. “Final Act” usually is the title of the instrument which records the winding up of the proceedings of the Conference summoned to conclude a convention. It also sets out resolutions, declarations, and recommendations adopted by the Conference. It may also be used for a treaty.
17. The terms “Memorandum of Agreement”, “Memorandum of Understanding” and “Agreed Minutes” are used to record in a less formal manner some understanding or to deal with a minor procedural matter.

These titles are not exhaustive. There is no exclusive or systematic use of titles for particular types of transaction.¹⁸ It is very difficult to define each of the agreements in a precise manner. There is no exclusive or systematic use of title for particular types of transaction. The title given to an agreement is not of any importance as far as the law laid down in Vienna Convention is concerned.

The Convention defines “treaty” to mean “an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation”.¹⁹ The Convention, therefore, is not applicable to treaties concluded between States and other subjects of international law or between such other subjects of international law. Further, the treaties which are not in written form shall not be governed by the provisions of Vienna Convention. This, however, does not mean that these treaties do not have any legal validity. The Convention does not affect the legal force of such treaties. They would continue to be governed by international law independently of the Convention.²⁰

The Convention is applicable to treaties which are the constituent instruments of international organisations.²¹ The Convention does not have the retrospective effect. It is applicable only to those treaties which have been concluded by States after the entry into force of this Convention.²² As the Convention spells out established rules, it may be applied to agreements pre-dating the Convention.²³

8.2 Conclusion of Treaties

Article 6 provides that every State possesses capacity to conclude treaties. The colonial and similar territories on their way to independence were recognised as having treaty-making powers.²⁴

According to Article 7, a person is considered as representing a State for the purpose of adopting or authenticating the text of a treaty or for the purpose of expressing the consent of the State to be bound by a treaty if he produces appropriate full powers.

Heads of State, Heads of Government and Ministers for Foreign Affairs are considered as representing their State for the purpose of performing all acts relating to the conclusion of a treaty. Heads of diplomatic missions are considered as representing their State for the purpose of adopting the text of a treaty between the accrediting State and the State to which they are accredited. In *Genocide Convention (Bosnia and Herzegovina v Yugoslavia) (Preliminary Objections)* case,²⁵ while referring to Article 7, the International Court of Justice stated that “every head of State is presumed to be able to act on behalf of the State in its international relations”.

An act relating to the conclusion of a treaty performed by an unauthorised person is without legal effect unless afterwards confirmed by that State.²⁶

18. See the International Law Commission's Commentary in the *Year Book of International Law Commission*, 1966, vol 2, p 188; see also J G Starke, *Introduction to International Law*, 1989, pp 440–44, where all these terms have been defined in a detailed manner.

19. Article 2(1)(a).

20. Article 3.

21. Article 5.

22. Article 4.

23. Rebecca MM Wallace, *International Law*, 1997, p 224.

24. See Fawcett, *The British Commonwealth in International Law*, 1963, p 144.

25. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide, (Preliminary Objections)*, (1996) ICJ Rep 595, p 622.

26. Article 8.

Ordinarily, the adoption of the text of a treaty takes place by the consent of all the States participating in its drawing up. However, the adoption of the text at an international conference takes place by the vote of two thirds of the States present and voting, unless by the same majority they shall decide to apply a different rule.²⁷

Earlier, the treaties used to be adopted by unanimity. The unanimity rule, however, became unrealistic with the growth of the practice of drawing up treaties in large international conferences. Unanimity remains the general rule for bilateral treaties and for treaties drawn up between few States. But for other multilateral treaties a different general rule was required to be specified.²⁸

The text of a treaty is established as authentic and definitive — (i) by such procedure as may be provided for in the text or as agreed upon by the States participating in its drawing up; or (ii) failing such procedure, by the signature, signature *ad referendum* or initialing by the representatives of those States of the text of the treaty.²⁹

A State may express its consent to be bound by a treaty by signature, exchange of instruments constituting a treaty, ratification, acceptance, approval or accession, or by any other means if so agreed.³⁰

A State expresses its consent to be bound by a treaty by the signature of its representative when — (a) the treaty provides that signature is to have that effect; (b) it is otherwise established that the negotiating States were agreed that signature should have that effect; or (c) the intention of the State to give that effect to the signature appears from the full powers of its representative or was expressed during the negotiation.³¹

A State expresses its consent to be bound by a treaty by way of ratification when — (i) the treaty provides for such consent to be expressed by means of ratification; (ii) it is otherwise established that the negotiating States were agreed that ratification should be required; (iii) the representative of the State has signed the treaty subject to ratification; or (iv) the intention of the State to sign the treaty subject to ratification appears from the full powers of its representative or was expressed during the negotiation.³²

The term ratification refers to the subsequent formal confirmation by a State that it is bound by the treaty. The treaty has already been signed by it. Earlier, by ratification, a sovereign used to confirm or finally verify the full powers previously issued to his representative to negotiate the treaty. Ratification was not an approval of the treaty but only a confirmation of the powers of the representative who was sent to negotiate that treaty.

In the modern time, however, ratification came to be used as the means of submitting the treaty-making power of the executive to parliamentary control. Between signature and ratification, the State may initiate some parliamentary process to get the approval of the parliament, if it is a requirement in that State under its Constitution.

Article 15 of the Convention provides that a State expresses its consent to be bound by a treaty by way of accession when — (i) the treaty provides that such consent may be expressed by that State by means of accession; (ii) it is otherwise established that the negotiating States were agreed that such consent may be expressed by that State by means of accession; or (iii)

27. Article 9.

28. *Year Book of International Law Commission*, 1966, vol 2 p 194.

29. Article 10.

30. Article 11.

31. Article 12.

32. Article 14.

all the parties have subsequently agreed that such consent may be expressed by that State by means of accession.

A State, which has not signed a treaty, may express its consent to be bound by the provisions of the treaty by acceding to it. According to the Commentary of the International Law Commission, accession is the traditional method by which a State, in certain circumstances, becomes a party to a treaty of which it is not a signatory.³³

Ordinarily, instruments of ratification, acceptance, approval or accession establish the consent of a State to be bound by a treaty upon — (i) their exchange between the contracting States; (ii) their deposit with the depositary; or (iii) their notification to the contracting States to or to the depositary, if so agreed.³⁴

Where a treaty permits, a State may give its consent to be bound by only a part of the treaty and not the entire treaty. Article 17 States that the consent of a State to be bound by part of a treaty is effective only if the treaty so permits or the other contracting States so agree. The State has to clearly point out the provisions to which the consent relates.

Article 18 of the Convention obligates a State to refrain from acts which would defeat the object and purpose of a treaty when: (i) it has signed the treaty or has exchanged instruments constituting the treaty subject to ratification, acceptance or approval, until it makes its intention clear not to become a party to the treaty; or (ii) it has expressed its consent to be bound by the treaty, pending the entry into force of the treaty and provided that such entry into force is not unduly delayed.

The principle laid down in Article 18 is generally accepted rule of international law that signatory States have an obligation in good faith to refrain from acts which would defeat the object and purpose of a treaty. There will, however, be no such obligation on a signatory State if it makes its intention clear that it will not become a party to the treaty. On 6 May 2002, the United States, which was a signatory to the Statute of International Criminal Court made its intention clear by writing to UN Secretary General as depositary “that the United States does not intend to become a party to the ICC Statute. ... Accordingly, the United States has no legal obligations arising from its signature on 31 December 2000. The United States requests that its intention not to become a party ... be reflected in the depositary’s status lists relating to this treaty”.³⁵

8.3 Reservations

A treaty which allows reservation in respect of some of its provisions, in fact, encourages those States which feel difficulties in undertaking all obligations arising out of that treaty. Therefore, where a State after excluding certain provisions of the treaty with respect to which reservation is allowed, feels comfortable with the rest of the treaty, it may decide to become a party to it. The traditional rule in relation to reservations was that a reservation could not be made unless all State Parties to the treaty accepted it. This rule was modified by the International Court of Justice in its advisory opinion on the *Reservation to the Convention on the Prevention and Punishment of the Crime of Genocide (Genocide Case)*.³⁶ The ICJ ruled that while the traditional rule had merit, it was not applicable to all kinds of treaties. In relation to reservations to the Genocide Convention, the Court stated that a State entering a reservation that is objected to by one or more parties to the Convention may still be considered a party

33. *Year Book of International Law Commission*, 1966, vol 2, p 199.

34. Article 16.

35. Press Statement of US Department of State on 6 May 2002.

36. *Reservation to the Convention on the Prevention and Punishment of the Crime of Genocide*, (1951) ICJ Rep 15.

as long as the reservation is “compatible with the object and purpose of the Convention”. The Court also ruled:

(a) that if a party to the Convention objects to a reservation which it considers to be incompatible with the object and purpose of the Convention, it can in fact consider that the reserving State is not a party to the Convention; (b) that if, on the other hand, a party accepts the reservation as being compatible with the object and purpose of the Convention, it can in fact consider that the reserving State is a party to the Convention.³⁷

Articles 19–23 of the Vienna Convention lays down the law regarding making of reservation with respect to a treaty. Article 19 enables States to make reservation to a treaty at the time of signing, ratifying, accepting, approving or acceding to a treaty, unless — (i) the reservation is prohibited by the treaty; (ii) the treaty provides that only specified reservations may be made, which do not include the reservation in question; or (iii) the reservation is incompatible with the object and purpose of the treaty.

Thus, if there is no prohibition on reservation in a treaty, it does not mean that any reservation is permitted. Article 19 provides the relevant guidance. No reservation which is incompatible with the object and purpose of the treaty is permitted. This principle reflects the general international law on reservation as had already been affirmed by the International Court of Justice in the *Reservation to the Genocide Convention* case of 1951. In this case, the Court stated that in the absence of any express provision on the subject, the character of a multilateral convention, its purpose, provisions, mode of preparation and adoption, are factors which must be considered in determining, the possibility of making reservations, as well as their validity and effect.³⁸

Reservations that offend peremptory norms would not be compatible with the object and purpose of the treaty. The Human Rights Committee made following General Comment on the issue of reservation to Covenant on Civil and Political Rights of 1966:

...[P]rovisions in the Covenant that represent customary international law (and a *fortiori* when they have the character of peremptory norms) may not be the subject of reservations. Accordingly, a State may not reserve the right to engage in slavery, to torture, to subject persons to cruel, inhuman or degrading treatment or punishment, to arbitrarily deprive persons of their lives, to arbitrarily arrest and detain persons, to deny freedom of thought, conscience and religion, to presume a person guilty unless he proves his innocence, to execute pregnant women or children, to permit the advocacy of national, racial or religious hatred, to deny to persons of marriageable age the right to marry, or to deny to minorities the right to enjoy their own culture, profess their own religion, or use their own language.³⁹

Reservations need to be specific and transparent, so that all States may know the obligations which the State making the reservation, is going to undertake. The Human Rights Committee made following General Comment on the issue of reservation to Covenant on Civil and Political Rights of 1966:

Reservations must be specific and transparent, so that the Committee, those under the jurisdiction of the reserving State and other State parties may be clear as to what obligations of human rights compliance have or have not been undertaken. Reservations may thus not be general, but must refer to a particular provision of the Covenant and indicate in precise terms its scope in relation thereto. When considering the compatibility of possible reservations with the object and purpose of the Covenant, States should also take into

37. *Reservation to the Convention on the Prevention and Punishment of the Crime of Genocide*, (1951) ICJ Rep 15, pp 29–30.

38. *Reservation to the Convention on the Prevention and Punishment of the Crime of Genocide*, (1951) ICJ Rep 15, p 22.

39. Human Rights Committee, General Comment No. 24, “Issues relating to reservations made upon ratification or accession to the Covenant or the Optional Protocols thereto, or in relation to declarations under Article 41 of the Covenant: 04/11/94”, CCPR/C/21/Rev. 1/Add. 6, para 8.

consideration the overall effect of a group of reservations, as well as the effect of each reservation on the integrity of the Covenant, which remains an essential consideration.⁴⁰

In *Belilos v Switzerland*,⁴¹ the European Court of Human Rights held that the Swiss reservation was invalid because (i) it was a reservation of a “general character” (i.e. one that was “couched in terms that are too vague or broad for it to be possible to determine their exact scope or meaning”) and so prohibited by Article 64(1) and (ii) it had not been accompanied by a “brief statement of the laws concerned” (i.e. those that were incompatible with the Convention necessitating the reservation) as required by Article 64(2), this being “not a purely formal requirement but a condition of substance”.

Ordinarily, a reservation expressly authorized by a treaty does not require any subsequent acceptance by the other Contracting States. However, when it appears from the limited number of the negotiating States and the object and purpose of a treaty that the application of the treaty in its entirety between all the parties is an essential condition of the consent of each one to be bound by the treaty, a reservation requires acceptance by all the parties. Further, when a treaty is a constituent instrument of an international organisation, then a reservation requires the acceptance of the competent organ of that organization.

Apart from the aforesaid situations, acceptance by another Contracting State of a reservation constitutes the reserving State a party to the treaty in relation to that other State. However, in case of an objection by another Contracting State to a reservation, it shall not preclude the entry into force of the treaty as between the objecting and reserving State (State making the reservation) unless a contrary intention is definitely expressed by the objecting State. Reservation to the treaty is effective as soon as at least one other contracting State has accepted the reservation.

A reservation is considered to have been accepted by a State if it did not raise objection to the reservation by the end of a period of 12 months after it was notified of the reservation or by the date on which it expressed its consent to be bound by the treaty, whichever is later.⁴²

8.3.1 Legal Effects of Reservations

A reservation established with regard to another party modifies for the reserving State in its relations with that other party the provisions of the treaty to which the reservation relates to the extent of the reservation. The reservation also modifies those provisions to the same extent for that other party in its relations with the reserving State.

The reservation modifies the treaty provisions only for those parties for which it has been made by the reserving State. It does not modify the provisions of the treaty for the other parties to the treaty.

When a State objecting to a reservation has not opposed the entry into force of the treaty between itself and the reserving State, the provisions to which the reservation relates do not apply as between the two States to the extent of the reservation.⁴³

It is noteworthy that reservations are different from declarations. Sometimes, a State makes a statement with respect to certain provisions of a treaty, which may or may not have the effect of reservation. Distinguishing between reservation and declaration, the Human Rights

40. Human Rights Committee, General Comment No. 24, “Issues relating to reservations made upon ratification or accession to the Covenant or the Optional Protocols thereto, or in relation to declarations under Article 41 of the Covenant: 04/11/94”, CCPR/C/21/Rev. 1/Add. 6, para 19.

41. *Belilos v Switzerland*, European Court of Human Rights, Series A, vol 132, Judgement of 20 April 1988.

42. Article 20.

43. Article 21.

Committee made General Comment on the issue of reservation to Covenant on Civil and Political Rights of 1966 as follows:

If a statement ... purports to exclude or modify the legal effect of a treaty in its application to the State, it constitutes a reservation. Conversely, if a so-called reservation merely offers a State's understanding of a provision but does not exclude or modify that provision in its application to that State, it is, in reality, not a reservation.⁴⁴

The Committee also made it clear that though the distinction between reservations and declarations could seem straightforward in theory, in practice, however, "it is not always easy to distinguish a reservation from a declaration as to a State's understanding of the interpretation of a provision, or from a statement of policy".

8.3.2 Withdrawal of Reservations

Article 22 provides for the withdrawal of reservations and objections to reservations. A reservation may be withdrawn at any time unless the treaty provides otherwise. The consent of a State which has accepted the reservation is not required for its withdrawal. An objection to a reservation may also be withdrawn at any time.

Ordinarily, the withdrawal of a reservation becomes operative in relation to another contracting State only when notice of it has been received by that State. Similarly, the withdrawal of an objection to a reservation becomes operative only when notice of it has been received by the State which formulated the reservation.

8.4 Entry into Force of a Treaty

Article 24 lays down the rules regarding the entering into force of a treaty and the time when it will enter into force. A treaty enters into force in such manner and upon such date as it may provide or as the negotiating States may agree. However, if there is no such provision or agreement, then the treaty enters into force as soon as consent to be bound by the treaty has been established for all the negotiating States.

When the consent of a State to be bound by a treaty is established on a date after the treaty has come into force, the treaty enters into force for that State on that date, unless the treaty otherwise provides.⁴⁵

8.5 Observance and Application of Treaties

When a State enters a treaty with an intention of being governed by the provisions of that treaty, it puts itself under an international obligation to comply with that treaty. The doctrine *pacta sunt servanda* also refers to this obligation of State. The doctrine means "every treaty in force is binding upon the parties to it and must be performed by them in good faith".⁴⁶ It is the fundamental principle of the law of treaties.

In *North Atlantic Coast Fisheries Arbitration*,⁴⁷ the Tribunal stated that "from the Treaty results an obligatory relation whereby the right of Great Britain to exercise its right of

44. Human Rights Committee, General Comment No. 24, "Issues relating to reservations made upon ratification or accession to the Covenant or the Optional Protocols thereto, or in relation to declarations under Article 41 of the Covenant: 04/11/94", CCPR/C/21/Rev. 1/Add. 6, para. 3.

45. Article 24.

46. Article 26.

47. *North Atlantic Coast Fisheries Arbitration*, (1910) 11 RIAA 167, p. 188; see also *Year Book of International Law Commission*, 1966, vol. 2, p. 211.

sovereignty by making regulations is limited to such regulations as are made in good faith, and are not in violation of the treaty”.⁴⁸

Anzilottigave considerable importance to the doctrine of *pactasuntservanda*. He was of the opinion that international law was conditioned by the doctrine *pactasuntservanda*. Although his views were not widely accepted, the doctrine *pactasuntservanda* remained an important rule of customary international law. This doctrine was incorporated not only in Vienna Convention as referred above, but also in the UN Charter. Article 2(2) of the UN Charter calls upon the Members to “fulfill in good faith the obligations assumed by them in accordance with the present Charter”.

A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty. Internal law may be invoked by a State as justification for its failure to perform a treaty in accordance with Article 46.⁴⁹ Article 46 provides that a State may not invoke the fact that its consent to be bound by a treaty has been expressed in violation of a provision of its internal law regarding competence to conclude treaties as invalidating its consent unless that violation was manifest and concerned a rule of its internal law of fundamental importance.

A party to a treaty, thus cannot invoke provisions of its domestic law to escape the performance of its treaty obligations. Further, international jurisprudence has also affirmed that the doctrine prevents the use of judgments issued by national tribunals as an impediment to the fulfilment of international obligations. The term “good faith”, however is a vague concept. It is, therefore difficult to determine as to whether a State’s behaviour reflects a good faith performance of its treaty obligations.⁵⁰

Article 28 provides for non-retroactivity of treaties. Ordinarily, the provisions of a treaty do not bind a party in relation to any act or fact which took place or any situation which ceased to exist before the date of the entry into force of the treaty with respect to that party, unless a different intention appears from the treaty or is otherwise established. Ordinarily, a treaty is binding upon each party in respect of its entire territory unless a different intention appears from it or is otherwise established.⁵¹

Article 30 lays down the rules regarding the application of successive treaties relating to the same subject matter. When a treaty specifies that it is subject to, or that it is not to be considered as incompatible with, an earlier or later treaty, the provisions of that other treaty prevail. When all the parties to the earlier treaty are parties also to the later treaty but the earlier treaty is not terminated or suspended in operation, the earlier treaty applies only to the extent that its provisions are compatible with those of the later treaty. When the parties to the later treaty do not include all the parties to the earlier one, then the treaty to which both States are parties governs their mutual rights and obligations.

However, in the event of a conflict between the obligations of the Members of the United Nations under the UN Charter and their obligations under any other international agreement, their obligations under the UN Charter shall prevail.⁵²

8.6 Interpretation of Treaties

According to Fitzmaurice, there are three main schools of thought on the interpretation of treaty. The first one is “intentions of the parties” or “founding fathers” school. According to this school, effect is given to the intentions or presumed intentions of the parties. The second

48. See also *Rights of Nationals of the United States of America in Morocco*, (1952) ICJ Rep 212.

49. Article 27.

50. See South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 49.

51. Article 29.

52. Article 103, UN Charter.

school is the “textual” or “ordinary meaning of the words” school. The primary object of this school is to establish what the text means according to the ordinary or apparent signification of its terms. The third school is “teleological” or “aims and objects” school. According to this school, it is the general purpose of the treaty itself that counts. It is independent of the original intentions of the framers.

The ideas of these three schools are not necessarily exclusive of one another. The treaty may be interpreted by compounding all the three. All the three approaches are capable in a given case, of producing the same result in practice; but equally they are capable of leading to radically divergent results.⁵³

Articles 31 to 33 lay down the rules for the interpretation of treaties. According to Article 31, a treaty is to be interpreted in good faith by giving the ordinary meaning to the terms of the treaty in their context and in the light of its object and purpose. A special meaning⁵⁴ is to be given to a term if it is established that the parties so intended.

The context for the purpose of the interpretation of a treaty is to comprise, in addition to the text, including its preamble and annexes — (i) any agreement relating to the treaty which was made between all the parties in connection with the conclusion of the treaty; (ii) any instrument which was made by one or more parties in connection with the conclusion of the treaty and accepted by the other parties as an instrument related to the treaty.

The following shall also be taken into account for the purpose of interpretation of a treaty:

- (i) any subsequent agreement between the parties regarding the interpretation of the treaty or the application of its provisions;
- (ii) any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation; and
- (iii) any relevant rules of international law applicable in the relations between the parties.

The jurisprudence of the International Court of Justice contains many pronouncements from which it is permissible to conclude that the textual approach to treaty interpretation is regarded by it as established law.⁵⁵ In the *Land and Maritime Boundary between Cameroon and Nigeria* case,⁵⁶ the International Court of Justice stated that a term in a treaty must be interpreted in accordance with the intention of the parties at the time.

Recourse may be had to supplementary means of interpretation, including the preparatory work of the treaty and the circumstances of its conclusion, in order to confirm the meaning resulting from the application of Article 31, or to determine the meaning when the interpretation according to Article 31 leaves the meaning ambiguous or obscure; or leads to a result which is manifestly absurd or unreasonable.⁵⁷

The preparatory work of a treaty, also known as *travaux préparatoires*, is the record of the drafting of a treaty. It includes records of negotiations between the States that participate in the drafting and, in some cases, records of the work of independent bodies of experts, such

53. Fitzmaurice, “The Law and Procedure of the International Court of Justice: Treaty Interpretation and Certain Other Treaty Points”, 28 BYIL, 1951, p 1.

54. In *Eastern Greenland’s* case, PCIJ Reports, Series A, no 53, p 49, the Permanent Court of International Justice stated that “the geographical meaning of the word “Greenland” ... must be regarded as the ordinary meaning of the word. If it is alleged by one of the Parties that some unusual or exceptional meaning is to be attributed to it, it lies on that Party to establish its contention”.

55. See eg, the *Admissions* case, (1948) ICJ Rep 57; and the *Competence* case, (1950) ICJ Rep 4. See also *Year Book of International Law Commission*, 1966, vol 2, p 220.

56. *Land and Maritime Boundary between Cameroon and Nigeria*, ICJ Judgment of 10 October 2002, para 59.

57. Article 32.

as the International Law Commission.⁵⁸ In *Read v Secretary of State for the Home Department*,⁵⁹ the explanatory report published with a Council of Europe Convention was treated as a part of the *travaux*.

Travaux préparatoires may not necessarily been resorted to in a case where a provision of the treaty is interpreted in accordance with its ordinary meaning and in the light of object and purpose of that treaty. There is, however no bar for the courts to confirm its interpretation by having recourse to *travaux préparatoires*.

In *Jadhav Case (India v Pakistan) (Merits)*,⁶⁰ the International Court of Justice while rejecting Pakistan's contention, concluded that, when interpreted in accordance with the ordinary meaning to be given to the terms of the Vienna Convention on Consular Relations in their context and in the light of its object and purpose, Article 36 of the Convention did not exclude from its scope certain categories of persons, such as those suspected of espionage.

The Court further stated that in view of the above, it need not, in principle, “resort to supplementary means of interpretation, such as the *travaux préparatoires* of the Vienna Convention and the circumstances of its conclusion, to determine the meaning of Article 36 of the Convention”. The Court added that “however, as in other cases (see, for example, *Immunities and Criminal Proceedings (Equatorial Guinea v France)*, *Preliminary Objections*, Judgment, ICJ Reports 2018 (I), p 322, para 96; *Sovereignty over Pulau Ligitan and Pulau Sipadan (Indonesia/Malaysia)*, Judgment, ICJ Reports 2002, p 653, para 53), the Court may have recourse to the *travaux préparatoires* in order to confirm its interpretation of Article 36 of the Vienna Convention”.⁶¹

The provisions of Article 31 and 32 of the Vienna Convention on Law of Treaties are customary international law. This proposition has been confirmed by International Court of Justice in several cases. In *Jadhav Case (India v Pakistan) (Merits)*,⁶² the International Court of Justice noted that India and Pakistan were not parties to the 1969 Vienna Convention on the Law of Treaties. Therefore, the Court had to interpret the Vienna Convention on Consular Relations according to the customary rules of treaty interpretation which, according to Court were reflected in Articles 31 and 32 of the Vienna Convention on the Law of Treaties.⁶³ The Court further stated that “under these rules of customary international law, the provisions of the Vienna Convention on Consular Relations must be interpreted in good faith in accordance with the ordinary meaning to be given to their terms in their context and in the light of the object and purpose of the Convention. To confirm the meaning resulting from that process, or to remove ambiguity or obscurity, or to avoid a manifestly absurd or unreasonable result, recourse may be had to supplementary means of interpretation, which include the preparatory work of the Convention and the circumstances of its conclusion”.⁶⁴

58. In *Employment of Women's case*, PCIJ Reports, Series A/B, No. 50 (1932), the Permanent Court of International Justice referred to the preparatory work of a treaty to confirm the clear meaning of its text.

59. *Read v Secretary of State for the Home Department*, [1989] AC 1014 (HL).

60. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 75.

61. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 76.

62. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 71.

63. See, for example, *Avena and Other Mexican Nationals (Mexico v United States of America)*, Judgment, (2004) ICJ Rep 12, p 48, para 83; *Certain Questions of Mutual Assistance in Criminal Matters (Djibouti v France)*, Judgment, (2008) ICJ Rep 177, p 232, para 153.

64. *Jadhav Case (India v Pakistan) (Merits)* Judgment dated 17 July 2019, para 71. Similar observations were made in the *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, where the Court observed that “what obligations the Convention imposes upon the parties to it depends on the ordinary meaning of the terms of the Convention read in their context and in the light of its object and purpose. To confirm the meaning resulting from that process or to remove ambiguity or obscurity or a manifestly absurd or unreasonable result, the supplementary means of interpretation to which recourse may be had include the preparatory work of the Convention and the circumstances of its conclusion. Those propositions, reflected in Articles 31 and 32 of the Vienna Convention on the Law of Treaties, are well recognised as part of customary international law”.

When a treaty has been authenticated in two or more languages, the text is equally authoritative in each language, unless the treaty provides or the parties agree that, in case of divergence, a particular text shall prevail. A version of the treaty in a different language shall also be considered an authentic text if the treaty so provides or the parties so agree. The terms of the treaty are presumed to have the same meaning in each authentic text. According to Article 33(4), except where a particular text prevails, when a comparison of the authentic texts discloses a difference of meaning which cannot be removed by Articles 32 and 32, then having regard to the object and purpose of the treaty, the meaning which best reconciles the texts shall be adopted.⁶⁵ In *LaGrand* case,⁶⁶ the International Court of Justice applied Article 33(4) of the Vienna Convention and stated that it reflects customary international law.

8.7 Treaties and Third States

A treaty creates rights and obligations for parties. According to Article 34, a treaty does not create either obligations or rights for a third State without its consent. This rule is known as *pacta tertiis nec nocent nec prosunt*. Article 34 reflects customary international law. This rule is a corollary of the principle of consent and of the sovereignty and independence of States.⁶⁷

However, an obligation arises for a third State from the provisions of a treaty if the parties to the treaty so intended and the third State expressly accepted that obligation in writing. Similarly, a right arises for a third State from a provision of a treaty if the parties to the treaty so intended and the third State assented thereto. Its assent shall be presumed so long as the contrary is not indicated, unless the treaty otherwise provides. This means that the third State unlike its obligations, is not to accept the rights in writing. While exercising a right, such a State is to comply with the conditions for its exercise provided for in the treaty or established in conformity with the treaty.

In *Free Zones of Upper Savoy and the District of Gex* case,⁶⁸ the Permanent Court of International Justice stated:

It cannot be lightly presumed that stipulations favourable to a third State have been adopted with the object of creating an actual right in its favour. ... The question of the existence of a right acquired under an instrument drawn between other States is therefore one to be decided in each particular case: it must be ascertained whether the States which have stipulated in favour of a third State meant to create for that State an actual right which the latter has accepted as such.⁶⁹

The obligations and rights of the third State may be revoked or modified in accordance with Article 37. The obligation for third State may be revoked or modified only with the consent of the parties to the treaty and of the third State, unless it is established that they had otherwise agreed. The right of third State may not be revoked or modified by the parties if it is established that the right was intended not to be revocable or subject to modification without the consent of the third State.

65. Article 33.

66. *LaGrand (Germany v United States of America)*, Case (Merits), (2001) ICJ Rep 466, para 101.

67. See Ian Brownlie, *Principles of Public International Law*, (2008), p 627.

68. *Free Zones of Upper Savoy and the District of Gex, France v Switzerland*, (1932) PCIJ Reports, Series A/B, No. 46.

69. *Free Zones of Upper Savoy and the District of Gex, France v Switzerland*, (1932) PCIJ Reports, Series A/B, No. 46, Judgement available at http://www.worldcourts.com/pcij/eng/decisions/1932.06.07_savoy_gex.htm (last accessed in January, 2021).

It is, however, noteworthy that a rule set forth in a treaty becomes binding upon a third State if the same has been recognized as a customary rule of international law.⁷⁰ It is noteworthy to refer Article 2(6) of the UN Charter⁷¹ which creates certain duties and liabilities to sanctions for non-members under the enforcement provisions of the UN Charter. This provision can only be reconciled with general principles by reference to the status of the principles in Article 2 as customary international law.⁷²

8.8 Amendment and Modification of Treaties

A treaty may be amended by agreement between the parties. Any proposal to amend a multilateral treaty must be notified to all the contracting States. Each contracting State has the right to take part in the decision as to the action to be taken in this regard as well as in the negotiation and conclusion of any agreement for the amendment of the treaty. Every State entitled to become a party to the treaty shall also be entitled to become a party to the treaty as amended.

The amending agreement does not bind any State already a party to the treaty which does not become a party to the amending agreement. Any State which becomes a party to the treaty after the entry into force of the amending agreement shall be considered as a party to the treaty as amended. However, it is to be considered as a party to the unamended treaty in relation to any party to the treaty which is not bound by the amending agreement.

Two or more of the parties to a multilateral treaty may conclude an agreement to modify the treaty as between themselves alone in two conditions. Firstly, the possibility of such a modification is provided for by the treaty. Secondly, the modification in question is not prohibited by the treaty and it does not affect the enjoyment by the other parties of their rights under the treaty or the performance of their obligations. Further, it should not relate to a provision, derogation from which is incompatible with the effective execution of the object and purpose of the treaty as a whole. In addition, the parties in question are to notify the other parties of their intention to conclude the agreement and of the modification to the treaty for which it provides.⁷³

8.9 Invalidity of Treaties

A State may not invoke the fact that its consent has been expressed in violation of a provision of its internal law regarding competence to conclude treaties, and therefore, its consent is invalid and it is not bound by the treaty. However, such State can justify itself in doing so if the violation of its internal law was manifest⁷⁴ and concerned a rule of its internal law of fundamental importance. If the authority of a representative to express the consent of a State has been made subject to a specific restriction, his omission to observe that restriction may not be invoked as invalidating the consent expressed by him unless the restriction was notified to the other negotiating States prior to his expressing such consent.⁷⁵

A State may invoke an error in a treaty as invalidating its consent to be bound by the treaty if the error relates to a fact or situation which was assumed by that State to exist at the time

70. Articles 35–38.

71. Article 2(6) of the UN Charter reads: “The Organization shall ensure that States which are not Members of the United Nations act in accordance with these Principles so far as may be necessary for the maintenance of international peace and security”.

72. See Ian Brownlie, *Principles of Public International Law*, 2008, p 628.

73. Articles 39–41.

74. A violation is manifest if it would be objectively evident to any State conducting itself in the matter in accordance with normal practice and in good faith.

75. Articles 46–47.

when the treaty was concluded and formed an essential basis of its consent to be bound by the treaty. However, where that State contributed by its own conduct to the error or if the circumstances were such as to put that State on notice of a possible error, such an error is not to be invoked as invalidating its consent. An error relating only to the wording of the text of a treaty does not affect its validity.⁷⁶

In *Temple of Preah Vihear's* case,⁷⁷ the International Court of Justice observed:

It is an established rule of law that the plea of error cannot be allowed as an element vitiating consent if the party advancing it contributed by its own conduct to the error, or could have avoided it, or if the circumstances were such as to put that party on notice of a possible error. The Court considers that the character and qualifications of the persons who saw the Annex I map on the Siamese side would alone make it difficult for Thailand to plead error in law.⁷⁸

If a State has been induced to conclude a treaty by the fraudulent conduct of another negotiating State, the State may invoke the fraud as invalidating its consent to be bound by the treaty.⁷⁹ Fraud is a concept found in most system of law, but the scope of the concept is not the same in all the systems. There is not much of guidance in the jurisprudence of international tribunals as to the precise scope of the term fraud.

If the expression of a State's consent to be bound by a treaty has been procured through the corruption of its representative directly or indirectly by another negotiating State, the State may invoke such corruption as invalidating its consent to be bound by the treaty.⁸⁰ According to ILC, a small courtesy or favour shown to a representative in connection with the conclusion of a treaty may not be invoked as a pretext for invalidating the treaty. The term "corruption" is used in order to indicate that only acts calculated to exercise a substantial influence on the disposition of the representative to conclude the treaty may be invoked as invalidating the expression of consent which he has purported to give on behalf of his State.⁸¹

According to Article 51, a State's consent to be bound by a treaty which has been procured by the coercion of its representative through acts or threats directed against him is to be without any legal effect. The International Law Commission stated that "the use of coercion against the representative of a State for the purpose of procuring the conclusion of a treaty would be a matter of such gravity that the article should provide for the absolute nullity of a consent to a treaty so obtained".⁸² The Commission further considered that a treaty procured by a threat or use of force in violation of the principles of the Charter must be characterized as void, rather than as voidable at the instance of the injured party.⁸³

A treaty is void if its conclusion has been procured by the threat or use of force in violation of the principles of international law embodied in the Charter of the United Nations.⁸⁴

8.10 *Jus cogens*

Jus cogens is a peremptory norm of general international law. It is a norm accepted and recognised by the international community of States as a whole as a norm from which no

76. Article 48.

77. *Temple of Preah Vihear*, (1962) ICJ Rep 6.

78. *Temple of Preah Vihear*, (1962) ICJ Rep 6, p 26 available at <https://www.icj-cij.org/public/files/case-related/45/045-19620615-JUD-01-00-EN.pdf> (last accessed in January, 2021).

79. Article 49.

80. Article 50.

81. *Year Book of International Law Commission*, 1966, vol 2, p 245.

82. *Year Book of International Law Commission*, 1966, vol 2, p 246.

83. *Year Book of International Law Commission*, 1966, vol 2, pp 246–47.

84. Article 52.

derogation is permitted. Such a norm can be modified only by a subsequent norm of general international law having the same character.⁸⁵ A treaty is void if, at the time of its conclusion, it conflicts with *jus cogens*.

Jus cogens, therefore, is a superior law that voids derogatory transactions between States, whether effected through a written agreement or through practice. Very few norms of international law could acquire the status of *jus cogens*. A very strong evidence of State practice is required for a norm to become *jus cogens*. The question whether a norm is part of the *jus cogens* relates to the legal character of the norm.⁸⁶ The norms that have been accepted as *jus cogens* include the prohibition of - genocide, piracy, slavery, torture,⁸⁷ principle of racial non-discrimination,⁸⁸ and crimes against humanity.⁸⁹ In *Armed Activities on the Territory of the Congo (New Application 2002) (Democratic Republic of the Congo v Rwanda)*,⁹⁰ the Court observed that the norm prohibiting genocide was assuredly a peremptory norm of international law (*jus cogens*).

Apart from that, treaties contemplating an unlawful use of force contrary to the principles of UN Charter; and treaties violating human rights,⁹¹ the equality of States or the principle of self-determination may be the other examples against the *jus cogens*.

If a new peremptory norm of general international law (*Jus cogens*) emerges, any existing treaty which is in conflict with that norm becomes void and terminates.⁹² In *Aloeboetoe* case,⁹³ the inter-American Court of Human Rights ruled that a 1762 treaty that imposed an obligation to sell prisoners as slaves would today be null and void because it contradicts the norms of *jus cogens*.

8.11 Termination and Suspension of the Operation of Treaties

The termination of a treaty or the withdrawal of a party from the treaty may take place in conformity with the provisions of the treaty; or at any time by consent of all the parties after consultation with the other contracting States. A multilateral treaty, ordinarily, does not terminate by reason only of the fact that the number of the parties falls below the number necessary for its entry into force.⁹⁴

According to Article 56(1), a treaty which contains no provision regarding its termination and which does not provide for denunciation or withdrawal is not subject to denunciation or withdrawal unless it is established that the parties intended to admit the possibility of denunciation or withdrawal; or a right of denunciation or withdrawal may be implied by the nature of the treaty.

85. See Article 53.

86. Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 83.

87. See *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP. 2 dated 16 September 2015, para 204, in which it was stated that “international law contains an absolute and peremptory prohibition of torture and other cruel, inhuman or degrading treatment or punishment, as set out *inter alia* in the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT) and the International Covenant on Civil and Political Rights (ICCPR). The right to be free from torture cannot be limited or derogated from under any circumstances.

88. See Ian Brownlie, *Principles of Public International Law*, 2008, p 511.

89. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 50.

90. Judgment, 3 February 2006, para 64; see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43.

91. See also *Barcelona Traction* case (Second Phase), (1970) ICJ Rep 3, p 32.

92. Article 64.

93. *Aloeboetoe*, (1994) 1-2 IHRR, 208.

94. Articles 54–55.

Article 56(2) makes it obligatory for a party to give a notice of at least 12 months of its intention to denounce or withdraw from a treaty. This provision is based on “an obligation to act in good faith and have reasonable regard to the interests of the other party”.⁹⁵

The operation of a treaty in regard to all the parties or to a particular party may be suspended in conformity with the provisions of the treaty; or at any time by consent of all the parties after consultation with the other contracting States.⁹⁶

Two or more parties to a multilateral treaty may conclude an agreement to suspend the operation of provisions of the treaty, temporarily and as between themselves alone, if — (a) the possibility of such a suspension is provided for by the treaty; or (b) the suspension in question is not prohibited by the treaty. Further, it should not affect the enjoyment by the other parties of their rights under the treaty or the performance of their obligations; and should not be incompatible with the object and purpose of the treaty. Such parties have to notify the other parties of their intention to conclude the agreement and of those provisions of the treaty the operation of which they intend to suspend.⁹⁷

A treaty is to be considered as terminated if all the parties to it conclude a later treaty relating to the same subject matter and it appears from the later treaty that the parties intended that the matter should be governed by that treaty; or the provisions of the later treaty are so far incompatible with those of the earlier one that the two treaties are not capable of being applied at the same time.

The earlier treaty is to be considered as only suspended in operation if it appears from the later treaty or is otherwise established that such was the intention of the parties.⁹⁸

According to Article 60, a material breach of a bilateral treaty by one of the parties entitles the other to invoke the breach as a ground for terminating the treaty or suspending its operation in whole or in part. A material breach of a multilateral treaty by one of the parties entitles the other parties by unanimous agreement to suspend the operation of the treaty in whole or in part or to terminate it either in the relations between themselves and the defaulting State; or as between all the parties. Further, a party specially affected by the breach becomes entitled to invoke it as a ground for suspending the operation of the treaty in whole or in part in the relations between itself and the defaulting State. Any party other than the defaulting State becomes entitled to invoke the breach as a ground for suspending the operation of the treaty in whole or in part with respect to itself if the treaty is of such a character that a material breach of its provisions by one party radically changes the position of every party with respect to the further performance of its obligations under the treaty.

A repudiation of the treaty not sanctioned by the Vienna Convention; and the violation of a provision essential to the accomplishment of the object or purpose of the treaty are to be taken as material breaches of a treaty. The International Court of Justice in its Advisory Opinion on *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Resolution 276 (1970)* stated that “the rules laid down by Vienna Convention on the Law of Treaties concerning termination of a treaty relationship on account of breach (adopted without a dissenting vote) may in many respects be considered as a codification of existing customary law on the subject. In the light of these rules [see Article 60(3)], only a material breach of a treaty justifies termination”.⁹⁹

95. See Advisory Opinion of ICJ on *Agreement between WHO and Egypt Case*, (1980) ICJ Rep 73, p 95.

96. Article 57.

97. Article 58.

98. Article 59.

99. *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Resolution 276 (1970)*, (1971) ICJ Rep 16, para 94.

The aforesaid provisions contained in Article 60(1) to (3) do not apply to provisions relating to the protection of the human person contained in treaties of a humanitarian character, in particular to provisions prohibiting any form of reprisals against persons protected by such treaties.¹⁰⁰ Thus, the obligations of a party to the armed conflict under international humanitarian law do not depend on the conduct of the opposing party, as the duty to respect international humanitarian law is not conditioned on reciprocity.¹⁰¹

Article 61 provides that if there is a permanent disappearance or destruction of an object indispensable for the execution of the treaty, then a party may invoke the impossibility of performing a treaty as a ground for terminating or withdrawing from it. If the impossibility is temporary, then it may be invoked only as a ground for suspending the operation of the treaty and not for terminating it. The types of cases which may be covered under Article 61, may include eg the submergence of an island, the drying up of a river or the destruction of a dam or hydro-electric installation indispensable for the execution of a treaty.¹⁰²

The effect of impossibility is not automatic, and a party is required to invoke it as a ground for termination. Impossibility of performance may not be invoked by a party as a ground for terminating, withdrawing from or suspending the operation of a treaty if the impossibility is the result of a breach by that party either of an obligation under the treaty or of any other international obligation.

8.11.1 *Clausula rebus sic stantibus*

According to Article 62, a fundamental change of circumstances which has occurred and which was not foreseen by the parties, may not be invoked as a ground for terminating or withdrawing from the treaty unless — (a) the existence of those circumstances constituted an essential basis of the consent of the parties to be bound by the treaty; and (b) the effect of the change is radically to transform the extent of obligations still to be performed under the treaty.

A fundamental change of circumstances may not be invoked as a ground for terminating or withdrawing from a treaty — (a) if the treaty establishes a boundary; or (b) if the fundamental change is the result of a breach by the party invoking it either of an obligation under the treaty or of any other international obligation.

If a party may invoke a fundamental change of circumstances as a ground for terminating or withdrawing from a treaty, it may also invoke the change as a ground for suspending the operation of the treaty.

The provision laid down in Article 62 is also known as the doctrine of *rebus sic stantibus*. This doctrine has been invoked in States practice to justify the termination or modification of treaty obligations by reason of changed circumstances. The doctrine shows a wide acceptance of the view that a fundamental change of circumstances may justify a demand for the termination or revision of a treaty, but also shows a strong disposition to question the right of a party to denounce a treaty unilaterally on this ground.¹⁰³ This doctrine is an objective rule of law. It does not terminate the treaty automatically. One of the parties is required to invoke it.¹⁰⁴

This doctrine was invoked by Russia (1870), Austria-Hungary (1908), Persia (1927), Nazi Germany (1936 and 1939) and the United States of America (1941). In all but two of the

100. Article 60(5).

101. See ICRC, *Database on Customary International Humanitarian Law*, Rules 140 and 144.

102. See *Year Book of International Law Commission*, 1966, vol.2, p 256.

103. See *Year Book of International Law Commission*, 1966, vol 2, p 257.

104. See Ian Brownlie, *Principles of Public International Law*, 2008, p 624.

cases, all that had changed was the relative power position and the greater freedom of action of the parties onerously affected by these treaties.¹⁰⁵

In *Gabcikovo-Nagymaros Project* case,¹⁰⁶ the International Court of Justice referred the following paragraph with approval from the *Fisheries Jurisdiction* case:

Article 62 of the Vienna Convention on the Law of Treaties ... may in many respects be considered as a codification of existing customary law on the subject of the termination of a treaty relationship on account of change of circumstances. (ICJ Reports 1973, p. 63, para 36).¹⁰⁷

In *Fisheries Jurisdiction Case (Jurisdiction)*,¹⁰⁸ the International Court of Justice observed:

Moreover, in order that a change of circumstances may give rise to a ground for invoking the termination of a treaty it is also necessary that it should have resulted in a radical transformation of the extent of the obligations still to be performed. The change must have increased the burden of the obligations to be executed to the extent of rendering the performance something essentially different from that originally undertaken.¹⁰⁹

In *Gabcikovo-Nagymaros Project's* case,¹¹⁰ the International Court of Justice stated that “a fundamental change of circumstances must have been unforeseen; the existence of the circumstances at the time of the Treaty’s conclusion must have constituted an essential basis of the consent of the parties to be bound by the Treaty. The negative and conditional wording of Article 62 of the Vienna Convention on the Law of Treaties is a clear indication moreover that the stability of treaty relations requires that the plea of fundamental change or circumstances be applied only in exceptional cases”.¹¹¹ The arguments of Hungary of “profound changes of a political nature, the Project’s diminishing economic viability, the progress of environmental knowledge and the development of new norms and prescriptions of international environmental law” were not justified by the Court as a reason for invoking this doctrine.

According to Article 63, the legal relations established between the parties by the treaty are not to be affected by the severance of diplomatic or consular relations between them except insofar as the existence of diplomatic or consular relations are indispensable for the application of the treaty. The severance of consular relations by the two parties to a treaty providing for a right of consular access to a detained national would presumably come within the stated exception.¹¹²

If a new peremptory norm of general international law (*jus cogens*) emerges, any existing treaty which is in conflict with that norm becomes void and terminates.¹¹³

8.12 Consequences of the Invalidity, Termination or Suspension of the Operation of a Treaty

A treaty is void if its invalidity has been established under the Vienna Convention. The provisions of a void treaty have no legal force. The acts performed in good faith before the invalidity was invoked are not rendered unlawful by reason only of the invalidity of the

105. Georg Schwarzenberger, *A Manual of International Law*, 1967, pp 169–70.

106. *Hungary v Slovakia*, (1997) ICJ Rep 7.

107. *Hungary v Slovakia*, (1997) ICJ Rep 7, para 104.

108. *United Kingdom v Iceland*, (1973) ICJ Rep 3 available at <https://www.icj-cij.org/public/files/case-related/55/055-19730202-JUD-01-00-EN.pdf> (last accessed in January, 2021)

109. *United Kingdom v Iceland*, (1973) ICJ Rep 3 para 43.

110. *Hungary v Slovakia*, (1997) ICJ Rep 7.

111. *Hungary v Slovakia*, (1997) ICJ Rep 7, para 104.

112. DJ Harris, *Cases and Materials on International Law*, (2004), p 876.

113. Article 64.

treaty.¹¹⁴ According to International Law Commission, where neither party was to be regarded as a wrongdoer in relation to the cause of nullity (i.e. where no fraud, corruption or coercion was imputable to either party), the legal position should be determined on the basis of taking account both of the invalidity of the treaty *ab initio* and of the good faith of the parties.¹¹⁵

The termination of a treaty, ordinarily, releases the parties from any further obligations to be performed. It, however, does not affect any right, obligation or legal situation of the parties created through the execution of the treaty prior to its termination. It is reasonable to consider that any action begun before expiry of the notice can continue its course thereafter.

If a State denounces or withdraws from a multilateral treaty, then the aforesaid provision becomes applicable in the relations between that State and each of the other parties to the treaty from the date when such denunciation or withdrawal takes effect.¹¹⁶

In the case of a treaty which is void because of its being conflicting with *jus cogens*, the parties shall eliminate as far as possible the consequences of any act performed in reliance on any provision which conflicts with the peremptory norm of general international law. Further, they will bring their mutual relations into conformity with the peremptory norm of general international law.

In the case of a treaty which becomes void and terminates because of its being conflicting with a new *jus cogens*, the termination of the treaty shall release the parties from any further obligation to be performed the treaty. However, it is not to affect any right, obligation or legal situation of the parties created through the execution of the treaty prior to its termination, provided that those rights, obligations or situations may thereafter be maintained only to the extent that their maintenance is not in itself in conflict with the new peremptory norm of general international law (*jus cogens*).¹¹⁷

The suspension of the operation of a treaty, ordinarily, releases the parties between which the operation of the treaty is suspended from the obligation to perform the treaty during the period of the suspension. However, the suspension does not otherwise affect the legal relations between the parties established by the treaty. During the period of suspension, it is obligatory for the parties to refrain from acts tending to obstruct the resumption of the operation of the treaty.¹¹⁸

8.13 Miscellaneous Provisions Under the Vienna Convention

The Vienna Convention is not to prejudice any question that may arise in regard to a treaty from a succession of States or from the international responsibility of a State or from the outbreak of hostilities between States.

The severance or absence of diplomatic or consular relations between two or more States does not prevent the conclusion of treaties between those States. The conclusion of a treaty does not in itself affect the situation in regard to diplomatic or consular relations.

The provisions of the Vienna Convention are without prejudice to any obligation in relation to a treaty which may arise for an aggressor State in consequence of measures taken in conformity with the Charter of the United Nations with reference to that State's aggression.¹¹⁹

114. Article 69.

115. *Year Book of International Law Commission*, 1966, vol 2, pp 264–65.

116. Article 70.

117. Article 71.

118. Article 72.

119. Articles 73–75.

8.14 Registration of Treaties

Article 80(1) of the Vienna Convention provides that after their entry into force, treaties are to be transmitted to the Secretariat of the United Nations for registration and publication.

During the period of League of Nations, Members of the League were bound to register their treaties with the League Secretariat, and prior to registration, such treaties were not binding.¹²⁰ The idea of this provision was to make an effective contribution to the abolition of secret diplomacy and to promote the availability of texts of agreements.¹²¹

Article 102 of the UN Charter also provides for every *treaty* and every *international agreement* entered into by any Member of the United Nations to be registered with the Secretariat of the United Nations as soon as possible. A treaty which has not been so registered, is not to be invoked by the parties before any organ of the United Nations. As already stated, the purpose of registration is to give publicity to treaty relations and avoid secret treaties. Although the Charter obligation is limited to Member States, non-Member States have also in practice registered their treaties with the Secretariat of the United Nations.¹²²

The terms “treaty” and “international agreement” as used in Article 102 of the Charter, covers the broadest range of instruments. Article 1 of the General Assembly Regulations to Give Effect to Article 102 of the Charter of the United Nations provides that the obligation to register applies to every treaty or international agreement “whatever its form and descriptive name”. In practice, the terms “treaty” and “international agreement” cover a wide variety of instruments, including unilateral commitments, such as declarations by new Member States of the UN accepting the obligations of the UN Charter, declarations of acceptance of the compulsory jurisdiction of the International Court of Justice under Article 36 (2) of its Statute and certain unilateral declarations that create binding obligations between the declaring nation and other nations. The nomenclature of an international instrument is not material for the obligation incumbent on the Member States to register it.¹²³

The legality of an unregistered treaty, however, is not affected. In *Maritime and Territorial Questions* case,¹²⁴ the International Court of Justice held that an unregistered treaty remains legally binding between the parties.

8.15 Treaties between States and International Organisations

The treaties between States and international organisations or between International Organisations are governed by the provisions of The Vienna Convention on the Law of Treaties between States and International Organisations or between International Organisations, 1986. The Convention is an outcome of the codification and progressive development of the rules in this regard. The Convention is not applicable to treaties to which other subjects other than States and international organisations are also parties.¹²⁵ The Convention does not have retrospective effect.¹²⁶ The Convention allows States and international organisations to make

120. Article 18, League of Nations.

121. Georg Schwarzenberger, *A Manual of International Law*, 1967, p 158; Ian Brownlie, *Principles of Public International Law*, 2008, p 616.

122. See *Year Book of International Law Commission*, 1966, vol 2, p 273.

123. See https://treaties.un.org/pages/Overview.aspx?path=overview/definition/page1_en.xml (last accessed in January, 2021).

124. *Maritime and Territorial Questions* case (*Qatar v Bahrain*), (1994) ICJ Rep 112, p 122.

125. Article 3, The Vienna Convention on the Law of Treaties between States and International Organizations or between International Organizations, 1986.

126. Article 4.

reservations to the provisions of a treaty to which they are parties in accordance with the provisions of the Convention.¹²⁷

Like 1969 Vienna Convention, this Convention also makes the principle *Pacta Sunt Servanda* applicable to the parties to a treaty.¹²⁸ The provisions of 1986 Convention are broadly similar to 1969 Convention with necessary changes.

As between States Parties to the 1969 Convention, the relations of those States under a treaty between two or more States and one or more international organisations are to be governed by 1986 Convention.¹²⁹

The 1986 Convention is based on a set of Draft Articles adopted by the International Law Commission. Although there is a close resemblance between the provisions of 1986 Convention and that of 1969 Convention, a number of the situations covered under the 1986 Convention are more varied than those applicable to States alone.¹³⁰

127. Articles 19–23.

128. Article 26.

129. Article 73.

130. JG Starke, *Introduction to International Law*, 1989, p 437.

CHAPTER 9

DIPLOMATIC AND CONSULAR RELATIONS

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The status of diplomatic agents has been recognised by people of all nations from ancient times. Diplomatic agents were needed by States to negotiate and consult with each other. Since they were representing their States in other States, certain immunities and privileges were required to be conferred on them. The practice of diplomatic immunity can be found in two great epics of Hindus of India, *Ramayana* and *Mahabharata* which were written much before the dawn of Christianity. The diplomatic and consular relations between States were earlier governed primarily by customary international law.

9.1 Diplomatic Relations

After establishment of the United Nations, it was considered that an international convention on diplomatic intercourse, privileges and immunities would contribute to the development of friendly relations among nations, irrespective of their differing constitutional and social system. Therefore, by keeping in mind the purposes and principles of the United Nations Charter concerning the sovereign equality of States, the maintenance of international peace and security, and the promotion of friendly relations among nations, the Vienna Convention on Diplomatic Relations was adopted on 18 April 1961. It entered into force on 24 April 1964.¹ The purpose of granting privileges and immunities is not to benefit individuals but to ensure the efficient performance of the functions of diplomatic missions as presenting States. The Convention has not only codified the law on diplomatic relations to a substantial extent, but

1. The Vienna Convention entered into force on the 13th day following the date of deposit of the 22nd instrument of ratification or accession with the Secretary-General of the United Nations; see Article 51 of the Vienna Convention.

also resulted in the progressive development of international law on the subject. The rules of customary international law shall continue to govern questions not expressly regulated by the provisions of the Vienna Convention.

In *Case Concerning US Diplomatic and Consular Staff in Tehran (Provisional Measures)*², the International Court of Justice stated that “the institution of diplomacy, with its concomitant privileges and immunities, has withstood the test of centuries and proved to be an instrument essential for effective cooperation in the international community, and for enabling States, irrespective of their differing constitutional and social systems, to achieve mutual understanding and to resolve their differences by peaceful means”.

The States are under no obligation to maintain diplomatic or consular relations with each other. The establishment of diplomatic relations between States, and of permanent missions, takes place by mutual consent.³ The International Court of Justice stated that “while no State is under any obligation to maintain diplomatic or consular relations with another, yet it cannot fail to recognize the imperative obligations inherent therein now codified in the Vienna Conventions of 1961 and 1963”. The Court further stated:

The rules of diplomatic law, in short, constitute a self-contained regime which, on the one hand, lays down the receiving State's obligations regarding the facilities, privileges and immunities to be accorded to diplomatic missions and, on the other, foresees their possible abuse by members of the mission and specifies the means at the disposal of the receiving State to counter any such abuse.⁴

Where diplomatic and consular relations are maintained between the States, the receiving State is not to discriminate between the States as far as the application of the provisions of the Vienna Convention is concerned. Discrimination does not result — (a) where the receiving State applies any of the provisions of the Vienna Convention restrictively because of a restrictive application of that provision to its mission in the sending State; (b) whereby custom or agreement States extend to each other more favourable treatment than is required by Vienna Convention.⁵

9.1.1 Functions of a Diplomatic Mission

According to Article 3, the functions of a diplomatic mission consist, *inter alia*, in:

- (a) Representing the sending State in the receiving State;
- (b) Protecting the interests of the sending State and of its nationals in the receiving State within the limits permitted by international law;
- (c) Negotiating with the Government of the receiving State;
- (d) Ascertaining by all lawful means conditions and developments in the receiving State, and reporting thereon to the Government of the sending State;
- (e) Promoting friendly relations between the sending State and the receiving State, and developing their economic, cultural and scientific relations.

9.1.2 Provisions Relating to Diplomatic Staff of the Mission

In principle, the members of the diplomatic staff of the mission should be of the nationality of the sending State. However, with the consent of receiving State, the sending State may appoint

2. *Case Concerning US Diplomatic and Consular Staff in Tehran (Provisional Measures)*, (1979) ICJ Rep 7, pp 19–20 and *Case Concerning US Diplomatic and Consular Staff in Tehran (Judgment)* (1980) ICJ Rep 3, p 40.

3. Article 2, Vienna Convention.

4. *Supra* note 2.

5. Article 47, Vienna Convention.

nationals of the receiving State as members of the diplomatic staff of its mission. The consent so given by the receiving State may be withdrawn at any time. Further, the receiving State may reserve the same right with regard to nationals of a third State, who are not nationals of the sending State.⁶

Article 9 enables receiving State to declare any member of the diplomatic staff of the sending State as *persona non grata*.⁷ Thus, the receiving State may at any time notify the sending State that the head of the mission or any member of the diplomatic staff of the mission is *persona non grata* or that any other member of the staff of the mission is not acceptable. No explanation is required to be given by the receiving State about its decision. The sending State in such a case shall either recall the person concerned or terminate his functions with the mission. A person may also be declared *non grata* or not acceptable before arriving in the territory of the receiving State. If the sending State refuses or fails to carry out its obligations within a reasonable period, the receiving State may refuse to recognize the person concerned as a member of the mission.

The sending State is under an obligation to notify the Ministry for Foreign Affairs of the receiving State about the following facts:

- (a) The appointment of members of the mission, their arrival and their final departure or the termination of their functions with the mission;
- (b) The arrival and final departure of a person belonging to the family of a member of the mission and where appropriate, the fact that a person becomes or ceases to be a member of the family of a member of the mission;
- (c) The arrival and final departure of private servants in the employment of members of the mission and where appropriate, the fact that they are leaving the employment of such persons;
- (d) The engagement and discharge of persons resident in the receiving State as members of the mission or private servants entitled to privileges and immunities.

In addition, prior notification of arrival and final departure is to be given, where possible.⁸ Article 11 deals with the size of mission. It provides that in the absence of specific agreement as to the size of the mission, the receiving State may require that the size of a mission be kept within limits considered by it to be reasonable and normal, having regard to the circumstances and conditions in the receiving State and to the needs of the particular mission. The test is thus not an objective one but rests simply on the opinion of the receiving State, which may be discriminatory or unreasonable in some of the cases. Thus, where the decision of the receiving State is discriminatory or otherwise unrelated to the consideration of size as such, it would be considered to be in breach of Article 11.⁹

9.1.3 Classes of Heads of Mission

The Vienna Convention divides the Heads of Mission into the following three classes:

- (1) That of ambassadors or *nuncios* accredited to Heads of State, and other heads of mission of equivalent rank;
- (2) That of envoys, ministers and *internuncio* accredited to Heads of State;
- (3) That of charges *d'affaires* accredited to Minister for Foreign Affairs.

6. Article 8, Vienna Convention.

7. A person declared as *persona non grata* means that he becomes unwelcome or unacceptable because of something they have said or done.

8. Article 10, Vienna Convention.

9. See Ian Brownlie, *Principles of Public International Law*, 2008, p 354.

There shall be no differentiation between heads of mission by reason of their class, except as concern precedence and etiquette.¹⁰

Article 19 States that if the post of head of the mission is vacant, or if the head of the mission is unable to perform his function, a charge d' affaires ad interim shall be notified by sending State to receiving State. In case where no member of the diplomatic staff of the mission is present in the receiving State, a member of the administrative and technical staff may be designated by the sending State to be in charge of the current administrative affairs of the mission with the prior consent of the receiving State.

9.1.4 Rights and Immunities of the Diplomatic Mission

The Vienna Convention provides the right to mission and its head to use the flag and emblem of the sending State on the premises of the mission, including the residence of the head of the mission, and on his means of transport.¹¹

In accordance with its laws, the receiving State shall either facilitate the acquisition on its territory of premises by the sending State which is necessary for its mission or assist it in obtaining accommodation in some other way. Where necessary, the receiving State shall also assist missions in obtaining suitable accommodation for their members.¹²

Article 22 makes the premises of the mission inviolable. The establishment and functioning of a mission is required to be protected from external interference. The agents of the receiving State are not allowed to enter the premises of mission, except with the consent of its head. The receiving State is put under a special duty to take all appropriate steps to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity.

The premises of the mission, their furnishings and other property thereon and the means of transport of the mission shall be immune from search, requisition, attachment or execution. In addition, the archives and documents of the mission shall be inviolable at any time and wherever they may be.¹³

In *Case Concerning US Diplomatic and Consular Staff in Tehran (Judgment)*,¹⁴ a large number of students and demonstrators in Iran took forcible possession of US Embassy in Tehran on 4 November 1979 in protest of admitting deposed Shah of Iran in United States for medical treatment. The security forces instead of dispersing them and evacuating the embassy, simply disappeared from the scene. 50 diplomatic and consular staff members were taken hostages and archives and documents were seized by the demonstrators. All other United States consulates in Iran were similarly occupied. The International Court of Justice stated:

By a number of provisions of the Vienna Conventions of 1961 and 1963, Iran was placed under the most categorical obligations, as a receiving State, to take appropriate steps to ensure the protection of the United States Embassy and consulates, their staffs, their archives, their means of communication and the freedom of movement of the members of their staffs. ... In the view of the Court, the obligation of the Iranian Government here in question are not merely contractual obligations established by the Vienna Conventions of 1961 and 1963, but also obligations under general international law.¹⁵

10. Articles 14, 15, Vienna Convention.

11. Article 20, Vienna Convention.

12. Article 21, Vienna Convention.

13. Article 24, Vienna Convention.

14. *Case Concerning US Diplomatic and Consular Staff in Tehran (Judgment)*, (1980) ICJ Rep 3.

15. *Case Concerning US Diplomatic and Consular Staff in Tehran (Judgment)*, (1980) ICJ Rep 3, paras 61, 62.

The Court decided that Iran had violated obligations owed by it to the United States of America under international conventions in force between the two countries, as well as under long-established rules of general international law. The Court further decided that Iran must immediately take all steps to release the hostages and return the premises, documents, etc. to the United States. In addition, the Court decided that Iran was under an obligation to make reparation to the United States.

*Congo v Uganda*¹⁶ is another case, where the International Court of Justice held that attacks by Congolese armed forces on the Ugandan Embassy in Kinshasa, the capital of Congo constituted a violation of Article 22. The Court also stated that the Vienna Convention has not only prohibited any infringement of the inviolability of the mission by the receiving State itself but also put the receiving State under an obligation to prevent others, such as armed militia groups from doing so.

Article 23 provides exemption to mission from municipal dues and taxes. It provides that the sending State and the head of the mission shall be exempt from all national, regional or municipal dues and taxes in respect of the premises of the mission, whether owned or leased, other than such as represent payment for specific services rendered. Such exemption shall not apply to such dues and taxes payable under the law of the receiving State by persons contracting with the sending State or the head of the mission. A diplomatic agent shall also be exempt from all dues and taxes, personal or real, national, regional or municipal, except: (1) indirect taxes of a kind which are normally incorporated in the price of goods or services; (2) dues and taxes on private immovable property situated in the receiving State; (3) estate, succession or inheritance duties levied by the receiving State; (4) dues and taxes on private income having its source in the receiving State and capital taxes on investments made in commercial undertakings in the receiving State; (5) charges levied for specific services rendered; and (6) registration, court or record fees, mortgage dues and stamp duty with respect to immovable property.¹⁷

In accordance with its own laws, the receiving State is to grant exemption from all customs duties, taxes, and related charges on (a) articles for the official use of the mission and (b) articles for the personal use of a diplomatic agent or his family members forming part of his household, including articles intended for his establishment. Further, the personal baggage of a diplomatic agent shall be exempt from inspection, unless there are serious grounds for presuming that it contains articles not covered by the exemptions, or articles the import or export of which is prohibited by the law or controlled by the quarantine regulations of the receiving State. Such inspection is to be conducted only in the presence of the diplomatic agent or of his authorized representative.¹⁸ The family members of the diplomatic agent also enjoy the privileges and immunities, provided they are not nationals of the receiving State. The members of the administrative and technical staff together with their family members, members of the service staff of the mission, and private servants of members of the mission enjoy limited privileges and immunity, provided they are not nationals of receiving State.¹⁹ Article 38 States that a diplomatic agent who is a national of or permanently resident in that State shall enjoy only immunity from jurisdiction, and inviolability in respect of official acts performed in the exercise of his functions. In respect of other persons as aforesaid, the privileges and immunities shall be available to the extent admitted by the receiving State.

16. *Congo v Uganda*, (2005) ICJ Rep 168, paras 337–38, 340 and 342.

17. Article 34, Vienna Convention.

18. Article 36, Vienna Convention.

19. Article 37, Vienna Convention.

The receiving State is duty bound to accord full facilities for the performance of the functions of the mission. Further, it is to ensure freedom of movement and travel in its territory to all members of the mission, subject to the laws made by it for national security.²⁰

According to Article 27, all correspondence relating to the mission and its functions, i.e. the official correspondence of the mission is to be inviolable. The receiving State is to permit and protect free communication on the part of the mission for all official purposes. The mission may employ all appropriate means including diplomatic couriers and messages in codes or cipher for this purpose. The mission may, however, install and use a wireless transmitter only with the consent of the receiving State. The diplomatic bags, carrying visible external marks, are not to be opened or detained. The diplomatic courier is to enjoy person inviolability and is not to be liable to any form of arrest or detention.

The diplomatic bags, though, are exempted from being opened or detained under the Convention, the possibility of their being misused cannot be ruled out. In some exceptional cases, the diplomatic bags may contain drugs or equipment or devices for terrorist attack. In such a case, it may not only pose a direct threat to the security of that State, but also become a matter of concern for the international community.

The International Law Commission considered the status of the diplomatic bag and adopted Draft Articles on the Status of the Diplomatic Courier and the Diplomatic Bag not Accompanied by Diplomatic Courier in 1989. Draft Articles of 1989 is not a binding instrument as such. Article 28(1) of the Draft Articles States that the diplomatic bag is to be inviolable wherever it may be. It is not to be opened or detained. It shall be exempted from examination directly or through electronic or other technical devices.

Article 28(2) of the Draft Articles, however, States that if the competent authorities of the receiving or the transit State have serious reason to believe that the consular bag contains something other than the correspondence, documents or articles as allowed, they may request that the bag be opened in their presence by an authorized representative of the sending State. If this request is refused by the authorities of the sending State, the bag is to be returned to its place of origin.

Article 28(1) of the Draft Articles clarifies the extent of principle of inviolability of the diplomatic bag by words “and shall be exempt from examination directly or through electronic or other technical devices”. The inclusion of this phrase was considered necessary as the evolution of technology had created very sophisticated means of examination which might result in the violation of the confidentiality of the bag. Article 28(1) leaves the scope for non-intrusive means of examination, such as sniffing dogs, in case there is a suspicion that the bag is used for the transport of narcotic drugs.

Article 28(2) of the Draft Articles applies only to the consular bag *stricto sensu*. There may be misuse of diplomatic bags also. Contemporary international practice has witnessed cases of diplomatic bags being used or attempted to be used for the illicit import or export of currency, narcotic drugs, arms or other items, and even for the transport of human beings, which have violated the established rules regarding the permissible contents of the bag and adversely affected the legitimate interests of the receiving or transit States. The International Law Commission is of the view that while the protection of the diplomatic bag is a fundamental principle for the normal functioning of official communications between States, the implementation of this principle should not provide an opportunity for abuse which may affect the legitimate interests of the receiving or transit States.²¹

20. Articles 25, 26, Vienna Convention.

21. See Commentary of ILC on Draft Article 28.

Article 29 of Vienna Convention makes the person of a diplomatic agent inviolable. He shall not be liable to any form of arrest or detention. The receiving State shall treat him with due respect and shall take all appropriate steps to prevent any attack on his person, freedom or dignity. This inviolability is distinct from the immunity from criminal jurisdiction.²² Similarly, the private residence of a diplomatic agent, his papers, correspondence and his property shall also enjoy the inviolability.²³

Article 44 States that even in case of armed conflict, the receiving State must grant facilities in order to enable persons enjoying privileges and immunities and their family members to leave the State at the earliest possible moment.

9.1.5 Immunity from Civil, Administrative and Criminal Jurisdiction of Receiving State

According to Article 31, a diplomatic agent is to enjoy immunity from the criminal jurisdiction of the receiving State. A diplomatic agent guilty of serious or persistent breaches may be declared *persona non grata*.²⁴ He shall also enjoy immunity from its civil and administrative jurisdiction, except in the following cases:

- (1) A real action relating to private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission;
- (2) An action relating to succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;
- (3) An action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving State outside his official functions.

A diplomatic agent is under no obligation to give evidence as a witness. It is noteworthy that the immunity of a diplomatic agent from the jurisdiction of the receiving State does not exempt him from the jurisdiction of the sending State.

9.1.6 Waiver of Immunity

Article 32 deals with waiver of immunity. The sending State may waive the immunity of diplomatic agents and other persons enjoying immunity under Article 37, from the jurisdiction of the receiving State. Waiver must always be express. The initiation of proceedings by a diplomatic agent or by a person enjoying immunity from jurisdiction as aforesaid shall preclude him invoking immunity from jurisdiction in respect of any counterclaim directly connected with the principal claim.

Waiver of immunity from jurisdiction in respect of civil or administrative proceedings is not to imply waiver of immunity in respect of the execution of the judgment. For execution of judgment, a separate waiver is necessary.

9.1.7 Immunity from the Jurisdiction of Third State during Transit

The diplomatic agent along with his family members shall enjoy inviolability and immunity from the jurisdiction of third State during transit. The third State is not to hinder the passage of members of the administrative and technical or service staff of a mission and their family

22. See Ian Brownlie, *Principles of Public International Law*, 2008, p 358.

23. Article 30, Vienna Convention.

24. See Ian Brownlie, *Principles of Public International Law*, 2008, p 359.

members. The official correspondence and diplomatic bags in transit shall also get the same freedom and protection in the third State as is accorded to them by the receiving State.²⁵

9.1.8 Duties of Diplomatic Agent and Other Staff Members

The Vienna Convention States the duties of diplomatic agent and all other persons who enjoy privileges and immunities in the receiving State. Article 41 States that it is the duty of all persons enjoying such privileges and immunities to respect the laws and regulations of the receiving State. Further, they are duty bound not to interfere in the internal affairs of that State. It is noteworthy that diplomatic agents enjoy an immunity from the jurisdiction of the local courts and not an exemption from the substantive law. The immunity can be waived and the local laws will apply thereafter.²⁶

The entire official business with the receiving State is to be conducted with or through the Ministry for foreign Affairs of the receiving State or such other ministry as may be agreed. The premises of the mission must not be used in any manner incompatible with the functions of the mission as laid down in the Vienna Convention or by other rules of general international law or by any special agreements in force between the sending and the receiving State.

The abuse of diplomatic immunity by diplomats has always been a matter of concern for the international community. It has also been found that some States use the inviolability of their mission premises and their diplomatic bag to facilitate the commission of acts of violence against their political opponents abroad or to assist terrorists.²⁷ This is a flagrant violation of international law and undermines the Convention.

9.1.9 When Function of a Diplomatic Agent comes to an End?

A diplomatic agent in receiving State is not to practise any professional or commercial activity for personal profit. The function of a diplomatic agent comes to an end, *inter alia* (a) on notification by the sending State to the receiving State that the function of the diplomatic agent has come to an end; (b) on notification by the receiving State to the sending State that it refuses to recognize the diplomatic agent as a member of the mission in accordance with Article 9(2) (where receiving State declares diplomatic agent as *persona non grata* or not acceptable and sending State fails to recall him).²⁸

Where diplomatic relations are broken off between two States, or if a mission is permanently or temporarily recalled, in such a situation — (a) the receiving State must respect and protect the premises of the mission, together with its property and archives, even in case of armed conflict; (b) the sending State may entrust the custody of the premises of the mission, together with its property and archives, to a third State acceptable to the receiving State; (c) the sending State may entrust the protection of its interests and those of its nationals to a third State acceptable to the receiving State.²⁹

9.2 Consular Relations

Consuls are concerned with administrative issues rather than political affairs.³⁰ For instance, they issue visas and passports and generally promote the commercial interests of their State.³¹

25. Article 40, Vienna Convention.

26. See Ian Brownlie, *Principles of Public International Law*, 2008, p 359.

27. D J Harris, *Cases and Materials on International Law*, 2004, p 361.

28. Article 43, Vienna Convention.

29. Article 45, Vienna Convention.

30. Rebecca MM Wallace, *International Law*, 1997, p 131.

31. Malcolm N Shaw, *International Law*, 2008, p 772.

Since the 18th century, the status of consuls has been based upon general usages rather than law, together with bilateral agreements. On 24 April 1963, the United Nations Conference on Consular Relations adopted the Vienna Convention on Consular Relations, the Optional Protocol concerning Acquisition of Nationality and the Optional Protocol concerning the Compulsory Settlement of Disputes. The Convention as well as the Optional Protocols came into force on 19 March 1967. In *Case Concerning US Diplomatic and Consular Staff in Tehran*,³² the International Court of Justice stated that the obligations disregarded by Iran were part of general international law and not merely contractual obligations established by Vienna Convention on Consular Relations.

The Vienna Convention on Consular Relations consists of 79 articles. Most of it provide for the operation of consulates; outline the functions of consular agents; address the privileges and immunities granted to consular officials when posted to a foreign country; and consular officials' duties when citizens of their country face difficulties in a receiving State. The immunities and privileges enjoyed by consuls and consular premises resemble those accorded to diplomatic agents and diplomatic missions. These immunities and privileges, however, are more limited in scope in comparison to those provided under the Vienna Convention on Diplomatic Relations.

Article 36 is an extremely important provision.³³ It provides for certain obligations for competent authorities of the receiving State in the case of an arrest or detention of a foreign national, in order to guarantee him the inalienable right to counsel and due process through consular notification and effective access to consular protection.

Article 36(1) establishes an interrelated regime designed to facilitate the implementation of the system of consular protection. It begins with the basic principle governing consular protection: the right of communication and access (Article 36(1)(a)). This clause is followed by the provision which spells out the modalities of consular notification (Article 36(1)(b)). Finally, Article 36(1)(c) sets out the measures consular officers may take in rendering consular assistance to their nationals in the custody of the receiving State. It follows that where the sending State is unaware of the detention of its nationals due to the failure of the receiving State to provide the requisite consular notification without delay, it is to be considered that the sending State has been prevented for all practical purposes from exercising its rights under Article 36, paragraph 1.³⁴

32. *Case Concerning US Diplomatic and Consular Staff in Tehran*, (1979) ICJ Rep 7 p 31, para. 62.

33. Article 36 — Communication and contact with nationals of the sending State

1. With a view to facilitating the exercise of consular functions relating to nationals of the sending State:

- (a) consular officers shall be free to communicate with nationals of the sending State and to have access to them. Nationals of the sending State shall have the same freedom with respect to communication with and access to consular officers of the sending State;
- (b) if he so requests, the competent authorities of the receiving State shall, without delay, inform the consular post of the sending State if, within its consular district, a national of that State is arrested or committed to prison or to custody pending trial or is detained in any other manner. Any communication addressed to the consular post by the person arrested, in prison, custody or detention shall be forwarded by the said authorities without delay. The said authorities shall inform the person concerned without delay of his rights under this subparagraph;
- (c) consular officers shall have the right to visit a national of the sending State who is in prison, custody or detention, to converse and correspond with him and to arrange for his legal representation. They shall also have the right to visit any national of the sending State who is in prison, custody or detention in their district in pursuance of a judgment. Nevertheless, consular officers shall refrain from taking action on behalf of a national who is in prison, custody or detention if he expressly opposes such action.

2. The rights referred to in paragraph 1 of this article shall be exercised in conformity with the laws and regulations of the receiving State, subject to the proviso, however, that the said laws and regulations must enable full effect to be given to the purposes for which the rights accorded under this article are intended.

34. *LaGrand Case (Germany v United States of America)*, (2001) ICJ Rep 466, para. 74.

The receiving State has to perform its obligations under Article 36 independently. It cannot put a condition that it will perform its obligations under Article 36 only when the sending State fulfils some other obligations under international law. In *Jadhav Case (India v Pakistan) (Merits)*,³⁵ the Court while referring to its earlier judgments³⁶ reiterated the legal position on Article 36 that the Vienna Convention “lays down certain standards to be observed by all States parties, with a view to the ‘unimpeded conduct of consular relations’”. On consular assistance to and communication with nationals undergoing criminal proceedings, Article 36 sets forth rights both for the State and the individual which are interdependent. The Court was of the opinion that there was no basis under the Vienna Convention for a State to condition the fulfilment of its obligations under Article 36 on the other State’s compliance with other international law obligations. Otherwise, the whole system of consular assistance would be severely undermined.³⁷

The right to consular notification and access provided for in Article 36 has increasingly been raised in proceedings at the domestic,³⁸ regional and international levels.

In *Advisory Opinion of the Inter-American Court of Human Rights: Due Process of Law is a Fundamental Right* of 1999, the Inter-American Court of Human Rights recognised that Article 36 creates individual rights, as a “notable exception to what are essentially States’ rights and obligations accorded elsewhere” in the Convention.³⁹

In the *LaGrand* case,⁴⁰ the International Court of Justice recognised that “Article 36, paragraph 1 [of the Vienna Convention], creates individual rights [for the national concerned], which . . . may be invoked in this Court by the national State or the detained person”. The Court further stated:

The Court considers in this respect that if the United States, notwithstanding its commitment [to ensure implementation of the specific measures adopted in performance of its obligations under Article 36, paragraph 1 (b)], should fail in its obligation of consular notification to the detriment of German nationals, an apology would not suffice in cases where the individuals concerned have been subjected to prolonged detention or convicted and sentenced to severe penalties. In the case of such a conviction and sentence, it would be incumbent upon the United States to allow the review and reconsideration of the conviction and sentence by taking account of the violation of the rights set forth in the Convention.⁴¹

In *Avena and other Mexican Nationals* case (*Mexico v United States of America*),⁴² the International Court of Justice expressly recognised the interdependence of both individual and State’s rights, by asserting that “violations of the rights of the individual under article 36 may entail a violation of the rights of the sending State, and that violations of the rights of the latter may entail a violation of the rights of the individual”.

The Court also stated that the words “without delay” in Article 36(1)(b) were not necessarily to be interpreted as “immediately upon arrest and before interrogation”.⁴³ The meaning of these words may be determined on the individual merits of each case.

35. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 135.

36. *Avena and Other Mexican Nationals (Mexico v United States of America)*, Judgment, (2004) ICJ Rep 12, p 36, para 40 and p 38, para 47; *LaGrand (Germany v United States of America)*, Judgment, (2001) ICJ Reports 494, para 77; and *United States Diplomatic and Consular Staff in Tehran (United States of America v Iran)*, Provisional Measures, Order of 15 December 1979, (1979) ICJ Rep 3, pp 19–20, para 40.

37. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 123.

38. See *Breard v Greene*, (1988) 523 U.S. 371.

39. *Advisory Opinion of the Inter-American Court of Human Rights: Due Process of Law is a Fundamental Right*, (OC-16/99), para 82.

40. *LaGrand Case (Germany v United States of America)*, (2001) ICJ Rep 466, p 494, para 77.

41. *LaGrand Case (Germany v United States of America)*, (2001) ICJ Rep 466, para 125.

42. *Avena and other Mexican Nationals* case (*Mexico v United States of America*), (2004) ICJ Rep 12, p 36.

43. *Avena and other Mexican Nationals* case (*Mexico v United States of America*), (2004) ICJ Rep 12, p 48, para 85.

In *Jadhav Case (India v Pakistan) (Merits)*,⁴⁴ The Court stated that the object and purpose of the Vienna Convention as stated in its preamble is to “contribute to the development of friendly relations among nations”. The purpose of Article 36(1) of the Convention is to “facilitat[e] the exercise of consular functions relating to nationals of the sending State”. Rejecting Pakistan’s contention that Vienna Convention was not applicable in espionage cases, the Court stated that “consular officers may in all cases exercise the rights relating to consular access set out in that provision for the nationals of the sending State. It would run counter to the purpose of that provision if the rights it provides could be disregarded when the receiving State alleges that a foreign national in its custody was involved in acts of espionage”.⁴⁵

It is noteworthy to refer *Jadhav’s* case in detail. On 3 March 2016, Mr. Kulbhushan Sudhir Jadhav, a retired Navy officer of India who was residing and doing business in Iran was kidnapped by Pakistan from Iran and has been in the custody of Pakistani authorities since then. Pakistan contended that Mr. Jadhav, was arrested in Balochistan near the border with Iran after illegally entering Pakistani territory. Pakistan accused Mr. Jadhav of performing acts of espionage and terrorism on behalf of India, the fact which India vehemently denied.

On 25 March 2016, India was informed of his alleged arrest. On the same day, India sought consular access to Mr. Jadhav at the earliest. Since there was no response from Pakistan, India sent several reminders in this regard, but to no avail. Mr. Jadhav was sentenced to death by a military court in Pakistan in April 2017. On 8 May 2017, India filed an Application before International Court of Justice instituting proceedings against Pakistan for alleged violations of the Vienna Convention on Consular Relations, 1963 in the matter of the detention and trial of Mr. Jadhav, who had been sentenced to death by a military court in Pakistan.

According to India, Pakistan failed to inform it without delay, the arrest and detention of Mr. Jadhav. In addition, it contended that Mr. Jadhav had not been informed of his rights under Article 36 of the Vienna Convention on Consular Relations. Not only that, it’s consular officers had also been denied access to Mr. Jadhav while he was in custody, detention and prison. India’s consular officers had neither been able to converse and correspond with Mr. Jadhav, nor arrange for his legal representation due to Pakistan’s violations of its obligations under Vienna Convention.

India invoked Court’s jurisdiction under Article 36(1) of the Statute of International Court of Justice and Article I of the Optional Protocol to the Vienna Convention on Consular Relations concerning the Compulsory Settlement of Disputes, 1963 to which both India and Pakistan are parties. Article I of the Optional Protocol makes the following provision:

Disputes arising out of the interpretation or application of the Convention shall lie within the compulsory jurisdiction of the International Court of Justice and may accordingly be brought before the Court by an application made by any party to the dispute being a Party to the present Protocol.

It is noteworthy that while accepting the compulsory jurisdiction of the Court under Article 36(2), India had already made a reservation that “disputes with the government of any State which is or has been a Member of the Commonwealth of Nations” will not be brought before the Court. India, therefore invoked Court’s jurisdiction under Article 36(1) of the Statute of ICJ and Article I of the Optional Protocol.

On 8 May 2017 itself, India also filed an application for the indication of provisional measures, on which the Court on 18 May 2017 unanimously indicated the provisional measure that “Pakistan shall take all measures at its disposal to ensure that Mr. Jadhav is not executed

44. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019.

45. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 74.

pending the final decision in these proceedings and shall inform the Court of all the measures taken in implementation of the present Order". The Court also unanimously decided that "until the Court has given its final decision, it shall remain seised of the matters which form the subject-matter of this Order".⁴⁶

The Court gave its judgment on merits on 17 July 2019 stating that it has jurisdiction in the case on the basis of Article I of the Optional Protocol concerning the Compulsory Settlement of Disputes to the Vienna Convention on Consular Relations of 24 April 1963 and dismissed the three objections raised by Pakistan to the admissibility of the case. These objections were based on India's alleged abuse of process; abuse of rights; and unlawful conduct.

Pakistan maintained that it was the 2008 Agreement on Consular Access between India and Pakistan, rather than Article 36 of the Vienna Convention, which regulated consular access in that case. Rejecting this contention of Pakistan, the Court stated that account should also be taken of Article 73(2) of the Vienna Convention for the purpose of interpreting the 2008 Agreement. Article 73(2) provides that "[n]othing in the present Convention shall preclude States from concluding international agreements confirming or supplementing or extending or amplifying the provisions thereof". Thus, Article 73(2) refers to subsequent agreements to be concluded by parties to the Vienna Convention. The Court noted that the Vienna Convention was drafted with a view to establishing, to the extent possible, uniform standards for consular relations. The ordinary meaning of Article 73(2) suggests that "it is consistent with the Vienna Convention to conclude only subsequent agreements which confirm, supplement, extend or amplify the provisions of that instrument, such as agreements which regulate matters not covered by the Convention".⁴⁷ The Court also rejected the Pakistan's contention that Vienna Convention was not applicable to espionage cases.

The Court found that "by not informing Mr. Kulbhushan Sudhir Jadhav without delay of his rights under Article 36 paragraph 1(b), of the Vienna Convention on Consular Relations, Pakistan breached the obligations incumbent upon it under that provision". The Court also found that "by not notifying the appropriate consular post of India in the Pakistan without delay of the detention of Mr. Jadhav and thereby depriving India of the right to render the assistance provided for by the Vienna Convention to the individual concerned, Pakistan breached the obligations incumbent upon it under Article 36 paragraph 1(b) of the Vienna Convention". The Court further found that "Pakistan deprived India of the right to communicate with and have access to Mr. Jadhav, to visit him in detention and to arrange for his legal representation, and thereby breached the obligations incumbent upon it under Article 36 paragraph 1(a) and (c) of the Vienna Convention. In addition, the Court also found that "Pakistan is under an obligation to inform Mr. Jadhav without further delay of his rights and to provide Indian consular officers access to him in accordance with Article 36 of the Vienna Convention on Consular Relations".

The Court declared that "a continued stay of execution constitutes an indispensable condition for the effective review and reconsideration of the conviction and sentence of Mr. Kulbhushan Sudhir Jadhav".

As on 9 October 2020, Pakistan did not provide India unimpeded and unconditional access to Kulbhushan Jadhav, nor did it hand over copies of relevant documents related to the case. Pakistan also rejected India's demand that an Indian lawyer or a Queen's counsel be appointed for Jadhav to ensure a free and fair trial.⁴⁸

46. *Jadhav Case (India v Pakistan)*, *Provisional Measures*, (2017) ICJ Rep 231, para 61.

47. *Jadhav Case (India v Pakistan)*, Judgment dated 17 July 2019, para 96.

48. <https://timesofindia.indiatimes.com/videos/news/kulbhushan-jadhav-case-india-slams-pakistan-for-failing-to-address-core-issues/videoshow/78566833.cms> (last accessed in January, 2021).

9.3 Optional Protocol concerning Compulsory Settlement of Disputes

The Optional Protocol concerning the Compulsory Settlement of Disputes was adopted in 1963. Through this Protocol, the States parties expressed their wish to resort to the compulsory jurisdiction of the International Court of Justice in all disputes arising out of the interpretation or application of the Vienna Convention, unless some other form of settlement has been agreed upon by the parties within a reasonable period.⁴⁹

Article I provides that disputes arising out of the interpretation or application of the Convention shall lie within the compulsory jurisdiction of the Court. Such disputes may be brought before the Court by an application made by any party to the dispute who is also a Party to the Protocol.

According to Article II, within a period of two months after one party has notified its opinion to the other that a dispute exists, the parties may agree to resort to an arbitral tribunal instead of the Court. After the expiry of the said period, either party may bring the dispute before the Court by an application.

Article III enables the parties to adopt a conciliation procedure before resorting to the Court within the same period of two months. The conciliation commission “shall make its recommendations within five months after its appointment. If its recommendations are not accepted by the parties to the dispute within two months ..., either party may bring the dispute before the Court by an application”.

The interpretation of Articles I-III of the Optional Protocol was made by the International Court of Justice in the *Case concerning United States Diplomatic and Consular Staff in Tehran (United States of America v Iran)*. The Court ruled that Articles II and III of the Optional Protocols to the Vienna Convention on Diplomatic Relations and to the Vienna Convention on Consular Relations do not lay down a “precondition of the applicability of the precise and categorical provision contained in Article I establishing the compulsory jurisdiction of the Court in respect of disputes arising out of the interpretation or application of the Vienna Convention in question. Articles II and III provide only that, as a substitute for recourse to the Court, the parties may agree upon resort either to arbitration or to conciliation”.⁵⁰

In *Jadhav Case (India v Pakistan) (Merits)*,⁵¹ the Court ruled that “India was under no obligation ... to consider other dispute settlement mechanisms prior to instituting proceedings before the Court.... Thus, Pakistan’s objection based on the alleged non-compliance by India with Articles II and III of the Optional Protocol cannot be upheld”.

9.4 Law Relating to Special or *ad hoc* Missions

In addition to diplomatic and consular relations which the States maintain among themselves, in some cases, States send out special mission or *ad hoc* mission to other States to deal with some particular and specific matters. To deal with these kinds of special or *ad hoc* missions, the Convention on Special Missions was adopted in 1969. The Convention came into force in June 1985. These missions enjoy certain immunities which are based on the Vienna Convention on Diplomatic Relations, 1961. The immunities provided to them are limited and not at par with the immunities provided to the diplomatic staff. Under the Convention, the sending State must inform the host State of the size and composition of the mission⁵²

49. See Preamble of the Protocol.

50. *Case concerning United States Diplomatic and Consular Staff in Tehran (United States of America v Iran)*, Judgment, (1980) ICJ Rep 3, pp 25–26, para 48.

51. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 48.

52. Article 8, Convention on Special Missions, 1969.

and the mission must be located in a place mutually agreed by the States concerned or in the Foreign Ministry of the receiving State.⁵³

9.5 Immunities of International Organisations

The international organisations must be conferred with certain privileges and immunities for their functioning. Such privileges and immunities are conferred by way of treaty as there is no customary law on the subject. The immunities conferred on them include immunity from legal process, financial controls, taxes, duties, etc. the immunities and privileges to be enjoyed by the organisation and its personnel *vis-à-vis* members States are provided for in the constituent charter of the organisation and supplementary agreements adhered to by members of the organisation. The General Convention on the Privileges and Immunities of the United Nations, 1946 is the best example in this regard. The General Convention gives immunity from legal process to the United Nations as well as its members. The Convention also emphasises the inviolability of its premises, archives and documents.⁵⁴

In 1975, the Vienna Convention on the Representation of States in Their Relations with International Organisations of a Universal Character was adopted. The Convention deals with the representation of States in any international organisation of a universal character, irrespective of whether or not there are diplomatic relations between the sending and the host States. The Convention is similar to the Vienna Convention on Diplomatic Relations, 1961 in several respects.

9.6 Prevention and Punishment of Crimes Against Internationally Protected Persons

In view of attacks on diplomatic agents, it was considered that crimes committed against diplomatic agents and other internationally protected persons were jeopardizing the safety of these persons, which was ultimately posing a serious threat to the maintenance of normal international relations between States. Considering this, the General Assembly of the United Nations adopted the Convention on the Prevention and Punishment of Crimes Against Internationally Protected Persons, including Diplomatic Agents in 1973.⁵⁵ The Convention came into force on 20 February 1977.

Under the Convention, the “internationally protected person” means a Head of State, a Head of Government, a Minister for Foreign Affairs and the like.⁵⁶ The Convention obligates State Parties to make the following acts a crime under its internal law: (1) a murder, kidnapping or other attack upon the person or liberty of an internationally protected person; (2) a violent attack upon the official premises, the private accommodation or the means of transport of an internationally protected person; (3) a threat to commit any such attack; (4) an attempt to commit any such attack; and (5) an act constituting participation as an accomplice in any such attack.⁵⁷ The State Parties are to “make these crimes punishable by appropriate penalties which take into account their grave nature”.⁵⁸ The State Parties are under an obligation either to apply its internal law or extradite the alleged offender.

53. Article 17, Convention on Special Missions, 1969.

54. Rebecca MM Wallace, *International Law*, 1997, p 133.

55. GA Resolution 3166 (XVIII) of 14 December 1973.

56. Article 1, Convention on Prevention of Crimes Against Internationally Protected Persons, 1973.

57. Article 2(1), Convention on Prevention of Crimes Against Internationally Protected Persons, 1973.

58. Article 2(2), Convention on Prevention of Crimes Against Internationally Protected Persons, 1973.

CHAPTER 10

AIR AND SPACE LAW

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Air law is the set of national and international rules concerning aircraft, air navigation, aero-commercial transport and all relations public or private, arising from domestic and international air navigation.¹

Space law on the other hand can be said to be law which is meant to regulate between States to determine their rights and duties resulting from all activities directed towards outer space and within it – and to do so in the interest of mankind as a whole, to offer protection to life, terrestrial and non-terrestrial, wherever it may exist.²

An attempt was also made by some writers to merge air law and space law into one branch of law, i.e. “aerospace law”. Aerospace was defined as the Earth’s envelope of air and space above it, the two considered as a single realm for activity in the flight of air vehicles and in the launching, guidance and control of ballistic missiles, earth satellites, dirigible space vehicles and the like.³ This chapter is divided in Part A and Part B. Part A deals with law on air space and part B deals with law on outer space.

10.1 Airspace Law

Balloons provided the first means of human air travel. They were also an early driving force behind the development of air law. Today, air transportation has become a commonplace

1. M le Goff, *Manuel de Droit Aerien, Droit Public*, Paris, 1954.

2. See M Lachs, “The International Law of Outer Space”, *Recueil des Cours*, vol 113, 1964-III, p 33.

3. See I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, p 8.

method. Large numbers of people prefer to use airways as it saves enormous time and is no more very expensive. To travel by aircraft is now being seen as a necessity, and it is no more a luxury.

10.1.1 Sovereignty of States on Airspace

The German balloons landing within French territory in 1889 caused the question of air sovereignty to arise.⁴ As the aircraft enters into the airspace of several countries when it is on an international flight, it therefore, became essential to regulate the aerial navigation. The issue with respect to exercising of sovereignty on airspace by States was debated in the 19th century. There was no customary international law on the States' sovereignty on their airspace. In the second half of the 19th century, two approaches were developed on the issue. According to the first approach, the right of States to penetrate the airspace of other States should remain unhampered on the analogy of freedom of the high sea which was an established practice and no more disputed. In other words, the freedom of the atmosphere/airspace should be taken as a logical consequence of the freedom of the high sea. Professor Westlake supported "a right of innocent passage for foreign aircraft such as international law recognized for surface vessels through" territorial seas.⁵

The second approach maintained that since States exercised absolute sovereignty over and beneath the surface of their territories, they were entitled to exercise similar jurisdiction above the airspace of their territories.⁶

By 1902, the publicists of international air law were divided into four categories: (i) authors in favour of absolute freedom of air navigation; (ii) authors in favour of absolute State sovereignty in the air; (iii) authors accepting a vertical limitation ("zones") to sovereignty; and (iv) authors accepting a functional limitation by international law.⁷

The practice during World War I clearly affirmed State sovereignty in the air space. The main reason for claiming sovereignty in airspace was that military use of airspace of a State by other States could threaten and undermine its sovereignty. Thus, an invasion of air space of a State was to be treated in the same manner as invasion of its land territory. In other words, the exclusive jurisdiction of States over the air space immediately above their land territories was recognised.

It may, however be noted that like air space, there is no State sovereignty in outer space. The Third International Astronomical Congress which met in Stuttgart, West Germany in September 1952, observed:

The factors which tend to make the close relationship between the earth and the airspace above it appear to be natural law, do not apply to nonatmospheric outer space, for only the area filled with air stands in such an essential relationship with life on the surface of the earth, that it must be designated as belonging to the earth. Contrariwise, this "special and sovereign correlation" does not exist between outer space and the land and water areas under it. Outer space cannot be considered as an "integral constituent part" of the territory of a state.⁸

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4. Karl J Shawhan, *Vital Interests, Virtual Threats : Reconciling International Law with Information Warfare and United States Security*, 2001, p 12.
 5. John Cobb Cooper, "The International Air Navigation Conference Paris 1910", *Journal of Air Law and Commerce*, vol 19, 1952, pp 127–143, at p 134.
 6. Michael Aaronson, "The Law of Space", *Flight*, 6 December 1957, p 889.
 7. Peter H Sand, Jorge de Sousa Freitas, Geoffrey N Pratt, "An Historical Survey of International Air Law before the Second World War", *McGill Law Journal*, vol 7, p 28.
 8. Martin BSchofield, "Control of Outer Space," *Air University Quarterly Review*, Spring 1958, vol 10, p 98; See also Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 14.

10.1.2 Demarcation Between Airspace and Outer Space

The sovereignty of States on their airspace ends where outer space begins as outer space is recognized as common heritage of mankind. The debatable issue is how to demarcate between airspace and outer space as there is no clear-cut delimitation between them. States must know the limits of other States' sovereignty to avoid conflict along the borders.

There have been different proposals for a demarcation between air and space. There has also been discussion as to whether there is a need for demarcation at all. The reasons for not fixing the delimitation between the air and space include:

- (i) The possibility that any attempt at a treaty delimiting air and space will encourage some States to make excessive sovereignty claims;
- (ii) The fear that the boundary may be established so high that some space activities could be hampered;
- (iii) An understanding that fixing the boundary at a lower altitude will not lessen the fear of some States that their security interests are threatened;
- (iv) A fear that setting a boundary now may make it impossible to change the boundary in the future, especially if the boundary has to be lowered;
- (v) A hope that it will be possible to establish a lower boundary in the future than is conceivable now.⁹

One of the proposals which favoured the delimitation of air and space is to limit a State's vertical sovereignty at the physical point where space begins. This proposal is not a practical one as there is no sudden natural dividing line between air and space. Another proposal is to extend State sovereignty to the uppermost altitude at which an aircraft is capable of flying. The maximum altitude for aircraft is about 80 km, while space activities cannot be carried out below approximately 120 km. Halving the distance between those limits would place the boundary in the vertical line at approximately 100 km above the Earth.¹⁰

This again is not a practical solution as advances in technology could change the maximum altitude over time unless the definition of aircraft was very specific. Further, it may extend State sovereignty too high.

Another proposal is that in order to exercise sovereignty over an area, a State must effectively control it. A State's vertical sovereignty thus would extend as high, or as low, as that State could exercise its control. This again is not an acceptable idea because there should be a uniform limit on the sovereignty of State as far as the vertical sovereignty is concerned.¹¹

A low limit on vertical sovereignty did not find favour with most of the States because of security concern. Professor Cheng was also of the opinion that "States will most probably prefer to claim the greatest height practicable as the limit of their national space".¹²

In addition, it is appropriate to refer to functionalism and spatialism theory on the issue of demarcation between air and space. The functionalists are of the opinion that objects in

9. Robert F A Goedhart, "The Never Ending Dispute: Delimitation of Air Space and Outer Space" in *Forum for Air and Space Law*, Marietta Benko and Willem de Graaff (Eds), vol 4, 1996, pp 6–7 quoted in Dean N Reinhardt, "The Vertical Limit of State Sovereignty", *Journal of Air Law and Commerce*, vol 72, 2007, pp 65, 113.

10. See I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, p17.

11. Robert F A Goedhart, "The Never Ending Dispute: Delimitation of Air Space and Outer Space" in *Forum for Air and Space Law*, Marietta Benko and Willem de Graaff (Eds), vol 4, 1996, pp 6–7 quoted in Dean N Reinhardt, "The Vertical Limit of State Sovereignty", *Journal of Air Law and Commerce*, vol 72, 2007, p 65 at p 114.

12. Dean N Reinhardt, "The Vertical Limit of State Sovereignty", *Journal of Air Law and Commerce*, vol 72, 2007, p 65 at p 129.

space should be governed by space law and objects not in space should be governed by air law. The functional approach, therefore, implies that there is no need for a boundary line between airspace and outer space, because the one can be regarded as an extension of the other, with a gradual transition.

In support of functional approach, five arguments have been advanced: (i) space law covers *inter alia* transport through outer space; therefore space law should be applicable to all transport from the Earth to a point in outer space; (ii) since “aircraft” has been defined in Annex 7 of the Chicago Convention,¹³ all other vehicles passing through and beyond the atmosphere should be classified as “spacecraft”; (iii) airspace extends to the maximum altitude attainable for aircraft, while outer space starts at the lowest point where spacecraft can orbit the Earth. In between there should be a “mesospace”; (iv) all space activities should be permitted at any level of altitude as long as the security of the underlying State is guaranteed; (v) given the definition of “spacecraft” in the space treaties and the absence of a delimitation in space, the Outer Space Treaty is by nature a functional treaty.¹⁴ According to Gal, “the functional theory is the logical outcome of the controversy between aims at demarcation and natural-technical possibilities”.¹⁵ The existing space law treaties are written in a functionalist way to avoid the boundary problem.

The spatialists, on the other hand are of the opinion that a definitive demarcation line should be drawn between air and space. This would impose a vertical limit on State sovereignty. Gal, though supported functional theory, has also admitted that the Outer Space Treaty, though bearing fundamentally a functional character, also contained elements of spatial character.¹⁶

The issue whether States have a right of innocent passage for access to space remains unresolved, as there is no such customary right and the opinions are divided.

To sum up, it is not an easy task to solve the problem of delimitation. None of the aforesaid proposals can be considered as conclusive as of date.

10.1.3 Conventional Law on Airspace

After First World War, a need was felt to adopt an international convention to regulate the aerial navigation. The Aeronautical Commission of the Peace Conference in Paris met to examine fundamental principles for air navigation. So recognising the progress of aerial navigation, the Paris Convention for the Regulation of Aerial Navigation was adopted on October 13, 1919 to establish regulations of universal application.

10.1.3.1 State Sovereignty on Airspace

The Paris Convention conferred complete and exclusive sovereignty or jurisdiction on States for the column of air above their land territory and territorial sea.¹⁷ The Paris Convention encourages States to allow innocent passage under Article 2, stating that “each contracting state undertakes in time of peace to accord freedom of innocent passage above its territory to the aircraft of the other contracting States”. The idea of innocent passage was not looked upon favorably. Article 15, which provided that “every aircraft of a contracting State has the

13. “Aircraft” is defined as “any machine that can derive support in the atmosphere from the reactions of the air other than the reactions of air against the earth’s surface”.

14. See I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, pp 18–19.

15. G Gal, *Space Law*, 1969, pp 109–15 quoted in I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, p 19.

16. G Gal, *Space Law*, 1969, pp 109–15 quoted in I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, p 19.

17. See Article 1, Paris Convention for the Regulation of Aerial Navigation, 1919.

right to cross the air space of another State without landing,” was amended in 1929 to make this right conditional. The amended Article 15(4) States that “every contracting State may make conditional on its prior authorisation the establishment of international airways and the creation and operation of regular international air navigation lines, with or without landing, on its territory”. The right of innocent passage provided by Article 2 was thus largely limited to civil aircraft used for pleasure or occasional commercial flights.¹⁸

The Paris Convention imposed uniform and obligatory regulation of air navigation to ensure safety, and also dealt with, *inter alia*, the issues of registration of aircraft, certificates of airworthiness, certificates of competency, and licences to be issued to aircraft personnel.

In 1928, the Pan American Convention on Commercial Aviation, known as Havana Convention was adopted. The Havana Convention also repeated the Paris Convention’s recognition of complete and exclusive sovereignty of a State over airspace above its territory and provided a similarly limited right of innocent passage. For the operation of scheduled international air services, under the Havana Convention, just as in the case of the Paris Convention, a prior consent was required by the States on the route.¹⁹

The exclusive State control over airspace of its territory was further confirmed by the Chicago Convention on International Civil Aviation which was adopted in 1944. The territory of a State is deemed to be the land areas and territorial waters adjacent thereto, under the sovereignty, suzerainty, protection or mandate of such State. The Chicago Convention recognises sovereignty of contracting as well as non-contracting States. The Chicago Convention which is considered as framework treaty for airspace laid down many specific rules, including assigning nationality to planes according to their country of registration.

The Chicago Convention also does not provide any right of innocent passage, and scheduled international air services are only allowed with special permission of the contracting States.

10.1.3.2 Meaning of Airspace

Both Paris Convention and Chicago Convention do not define the term “airspace”. The outer space begins where airspace ends. According to an official Soviet manual on international law, “air” is defined as the column of air above the territory of the USSR including land and water, comprising the troposphere and its stratosphere. The manual asserts that there are no laws permitting limitation of the air under national jurisdiction. Furthermore, these regions of the air are undergoing continual extension in proportion to the increases in the ceiling of aircraft.²⁰

There have been different views on the term airspace. Some of the writers did not distinguish between air and atmosphere whereas others made distinctions between the two and maintained that airspace has a specific meaning. According to Professor John Cobb Cooper, both the Paris and Chicago Conventions deal with objects which derive their support in the atmosphere from reactions in the air, such as balloons and aero planes and not with rockets, satellites and other such spacecraft designed to move through space without atmospheric support. According to him, a rocket propelled in the atmosphere only a few miles above a State’s territory would not infringe the territorial airspace sovereignty of that State.²¹

18. Dean N Reinhardt, “The Vertical Limit of State Sovereignty”, *Journal of Air Law and Commerce*, vol 72, 2007, p 65, at pp 73–74.

19. Dean N Reinhardt, “The Vertical Limit of State Sovereignty”, *Journal of Air Law and Commerce*, vol 72, 2007, p 65 at p 74.

20. Quoted in Michael Aaronson, “The Law of Space”, *Flight*, 6 December 1957, p 889.

21. *Ibid*.

According to Michael Aaronson, airspace or atmospheric space, as used in the Chicago Convention of 1944 may be defined as that space enclosed by the projection of the radii of the earth passing through the above surface political boundaries, until such radii reach the notional frontier dividing the earth's atmospheric envelope from the sparse interplanetary gas which is reputed to permeate interplanetary space.²²

10.1.3.3 International Civil Aviation Organisation (ICAO)

The Chicago Convention created International Civil Aviation Organisation (ICAO), which became a specialised agency of the United Nations in 1947. The Executive Council of ICAO recommended numerous rules for international navigation and safety which were regularly accepted by States. The ICAO also called on all States to refrain from using weapons on civilian aircrafts in cases where they had violated airspace.

The ICAO is responsible for the adoption of three treaties which broadly deal with the safety of aircrafts and passengers. First of them is Tokyo Convention on Offences and Certain other Acts Committed on Board Aircraft of 1963. The Tokyo Convention lays down the rule that for any commission of a crime on board aircraft, the State of the aircraft's registration will have the jurisdiction. The Tokyo Convention does not deal with the offence of hijacking as such. A need was felt to adopt a convention on hijacking following certain incidents of hijackings in 1960s. To address the issue of hijacking, the Hague Convention for the Suppression of Unlawful Seizures of Aircraft was adopted in 1970. The Hague Convention deals with the issue of individuals hijacking planes in flight. The Convention enabled State parties to try the hijackers or extradite them to another country having jurisdiction.

The third Convention was adopted in 1971 under the title Montreal Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation. The Montreal Convention covers the issues of harming persons on board planes, damaging the aircraft in flight, placing explosives on the plane, or interfering with navigation facilities. The accused persons are to be tried or extradited by contracting parties.

10.2 Outer Space Law

Since that historic date of 4 October 1957, when Soviet Union launched the SPUTNIK — I into orbit, a new era began in the life of mankind known as the space age which changed the ideas, science, communication and life itself. A few years later, in April 1961 man entered outer space and by the end of same decade, in 1969 the first astronaut landed on the moon and brought back samples of rock from celestial body. The immense interest shown by human being in the space led to the development of space science and technology. The outer space is being used for *inter alia*, scientific investigation of outer space, manned and unmanned space flights, and utilisation of artificial earth satellites for telecommunication, meteorology, remote sensing of the earth's natural resources, geodesy, direct broadcasting and navigation, etc.

The law of outer space recognises the rights of States to explore and use for peaceful purposes the outer space including the moon and other celestial bodies. State sovereignty does not extend upwards *ad infinitum* and ceases where outer space begins. It is, however, debatable from where does the outer space start.

10.2.1 Outer Space: *res nullius* or *res communis*

The States rejected the idea of treating outer space as *res nullius* and declared it as *res communis*. The concept of *res nullius* would have treated outer space as “unclaimed territory” that

22. Quoted in Michael Aaronson, “The Law of Space”, *Flight*, 6 December 1957, p 889.

belonged to no one, but was available for conquest. Such an arrangement would allow States to peremptorily claim ownership of the celestial bodies that they were the first to reach and exclude access to all others. Instead, they declared outer space to be *res communis* where all entities, individual or corporate, and States have common or open access to the resources that are contained within its realm and are precluded from making any claims of ownership.²³ Thus, outer space is not open to acquisition by any State and is recognised as common heritage of mankind.

10.2.2 International Legal Regime on Outer Space

At the early stages of outer space exploration, States were the only actors in outer space because of the high cost of space vehicles, technologies and other factors. But later on, private enterprises and international organisations have also joined them in the space activities for commercial benefits. The increasing space activities opened up enormous opportunities for the exploration of outer space. However, at the same time, intensive and extensive exploration of outer space and of the moon and other celestial bodies led to a situation in which it became necessary to regulate the space activities to protect the environment of earth and its neighborhood outer space from the hazards associated with such activities.

The existing legal controls consist of customary law and a few treaties and agreements which regulate the various space activities of States. On 13 December 1958, United Nations General Assembly established an Ad hoc Committee on the Peaceful Uses of Outer Space (COPUOS). In its report to United Nations General Assembly in 1959, COPUOS stressed the need for international cooperation in the conduct of space activities. The Committee also urged the drafting of international agreements minimising the adverse effects of possible contamination from space activities. A year later the Committee was transformed into a permanent subsidiary body of the General Assembly.

10.2.2.1 UN Declaration on Outer Space, 1963

On 20 December 1961, the General Assembly adopted resolution no. 1721(XVI) which laid down a comprehensive programme for international cooperation of Member States of the United Nations. The resolution, which was adopted unanimously, contained two fundamental principles in its first part for the guidance of States in the exploration and use of outer space. These principles are:

- (a) International law including the Charter of the United Nations, applies to outer space and celestial bodies; and
- (b) Outer space and celestial bodies are free for exploration and use by all States in conformity with international law and are not subject to national appropriation.

The aforesaid resolution was enlarged into a Declaration of Legal Principles Governing the Activities of States in the Exploration and Use of Outer Space, which was adopted on 13 December 1963.²⁴ Para 6 of the Declaration States:

In the exploration and use of outer space, States shall be guided by the principle of cooperation and mutual assistance and shall conduct all their activities in outer space with due regard for the corresponding interests of other States. If a State has reason to believe that an outer space activity or experiment planned by it or its nationals would cause potentially harmful interference with activities of other States in peaceful exploration and use of outer space, it shall undertake appropriate international consultations before

23. Michael J Listner, "The Ownership and Exploitation of Outer Space: A Look at Foundational Law and Future Legal Challenges to Current Claims", *Regent Journal of International Law*, vol 1, 2003, p 75 at p 77.

24. UNGA Res 1962 (XVIII), 13 December 1963.

proceeding with any such activity or experiment. A State which has reason to believe that an outer space activity or experiment planned by another State would cause potentially harmful interference with activities in the peaceful exploration and use of outer space may request consultation concerning the activity or experiment.

The Declaration limited the freedom of space experimentation only to the extent that Member States did not comply with the rules of cooperation and respect for the interest of others. Para 6 was viewed as a statement of principle which would guard against any outer space activities that could cause potentially harmful interference with space activities of other States.

Since no protest has been made against the principle contained in Para 6 of the Declaration, it may be inferred, based on the principles of estoppel and acquiescence that the Declaration is evidence of customary international law and, as such, the principles it espouses regardless of their generality are binding on all States whether or not parties to the Outer Space Treaty, 1967.²⁵

10.2.2.2 *Outer Space Treaty, 1967*

The 1961 Resolution and 1963 Declaration contained many general legal principles which were later on incorporated in the Treaty on Principles Governing the Activities of States in the Exploration and Uses of Outer Space, including the Moon and Other Celestial Bodies, 1967 (Outer Space Treaty).²⁶ The Outer Space Treaty contained principles relating to *inter alia*, the freedom of exploration and use of outer space and celestial bodies;²⁷ non-appropriation of outer space and celestial bodies;²⁸ exploration and use of outer space in accordance with the fundamental principles of international law, including the basic principles of the UN Charter;²⁹ partial demilitarisation of outer space and complete demilitarization of celestial bodies;³⁰ assistance to personnel of spacecraft in the event of accidents, distress, emergency or unintended landing;³¹ responsibility of the States for national activities in outer space, including damage caused by space objects;³² retention by the States of sovereign rights to objects launched into outer space;³³ and promotion of international co-operation in the peaceful exploration and use of outer space and celestial bodies.³⁴

The Outer Space Treaty lists the “three freedom” principles in Article I. The “freedom of access” principle ensures that all mankind shall benefit from exploration and use of outer space, despite economic or scientific development, that outer space “shall be the province of all mankind”. Second, every State shall have “freedom of exploration” and free access to all celestial bodies. Finally, all nations have “freedom of use” for scientific investigation, along with a pledge to facilitate co-operation among States.³⁵ Article II strengthens the interpretation which espouses the doctrine of *res communis* by stating that outer space “is not subject to national appropriation by claim of sovereignty”.

25. Howard A Baker, “Protection of the Outer Space Environment: History and Analysis of Article IX of the Outer Space Treaty”, *Annals of Air and Space Law*, vol 12, 1987, p 154.

26. See also I H Ph Diederiks-Verschoor and v Kopal, *An Introduction to Space Law*, 2008, p 3.

27. Article I, Outer Space Treaty, 1967.

28. Article II, Outer Space Treaty, 1967.

29. Article III, Outer Space Treaty, 1967.

30. Article IV, Outer Space Treaty, 1967.

31. Article V, Outer Space Treaty, 1967.

32. Article VI, Outer Space Treaty, 1967.

33. Article VIII, Outer Space Treaty, 1967.

34. Articles X and XI, Outer Space Treaty, 1967.

35. See also Daniel A Porras, “The “Common Heritage” of Outer Space: Equal Benefits for Most of Mankind”, *California Western International Law Journal*, vol 37, 2006, p 143 at pp 153–54.

Article IV(1) laid down the first legal basis for partial demilitarisation of outer space. It reads as:

States Parties to the Treaty undertake not to place in orbit around the earth any objects carrying nuclear weapons or any other kinds of weapons of mass destruction, install such weapons on celestial bodies, or station such weapons in outer space in any other manner.

Thus, Article IV(1) partially demilitarises the whole outer space particularly the near earth space by simply banning the placement of nuclear weapons and “any other kinds of weapons of mass destruction” in earth orbit. Installing of weapons of nature other than mass destruction in outer space or on celestial bodies are not, however, prohibited. Thus, Article IV(1) does not prevent the deployment of other space weapons including ASAT weapons, (2) no ban on warheads carried by strategic missiles on trajectories travelling through outer space and (3) no definition of “weapons of mass destruction” has been given in Article IV(1).³⁶ The Commission for Conventional Armaments advised by the United Nations Security Council that “weapons of mass destruction” should be defined to include atomic explosive weapons, radio-active material weapons, lethal chemical and biological weapons, and any weapons developed in the future which have characteristics comparable in destructive effect to those of the atomic bomb or other weapons mentioned above.³⁷ To sum up, in the absence of a definition of weapons of mass destruction, Article IV(1) leaves open the possibility of testing, deploying and utilizing space weapons other than nuclear weapons, enhancing the possibility of further worsening of the debris situation.

Article IV(2) States that the moon and other celestial bodies shall be used by all States Parties to the Treaty exclusively for peaceful purposes. The establishment of military bases, installations and fortifications, the testing of any type of weapons and the conduct of military maneuvers on celestial bodies shall be forbidden. The use of military personnel for scientific research or for any other peaceful purposes shall not be prohibited. The use of any equipment or facility necessary for peaceful exploration of the moon and other celestial bodies shall also not be prohibited. Thus, in Article IV(2), more far-reaching limitations of military activities have been enshrined, however they are concerned only the moon and other celestial bodies and not outer space as such.

Under Article V, the Member States are under an obligation to render all possible assistance to astronauts who are in distress. The assistance includes allowing emergency landings on the territory of another State or on the high seas, and requires the return of rescued astronauts to the State in which their space vehicle is registered. Article v also requires that Member States inform other States or the United Nations Secretary-General of any condition or phenomena discovered in outer space that may constitute a threat to the life or health of astronauts from any other State. This mandate extends to any danger or threat that might be discovered on the moon or any other celestial body.

Article VI fixes the international responsibility of State Parties for the activities in outer space. It States that “States Parties to the Treaty shall bear international responsibility for national activities in outer space... when activities are carried on in outer space, including the moon and other celestial bodies, by an international organization, responsibility for compliance with this Treaty shall be borne both by the international organization and by the States Parties to the Treaty participating in such organization”. Article VII provides a strict liability standard under which a Member State is liable for any damage caused by an object that is launched into space

36. See HE Qizhi, “Environmental Impact of Space Activities and Measures for International Protection”, *Journal of Space Law*, vol 16, 1988, pp 122–03.

37. Eilene Galloway, “International Institutions to Ensure Peaceful Uses of Outer Space”, *Annals of Air and Space Law*, vol 9, 1984, p 322.

and subsequently causes damage in the course of space activity. Article VIII, which deals with the jurisdiction of a registered space object launched by a Member State, stipulates that a State will retain ownership and control of any object, or any part of an object, and any personnel launched into outer space. The registered object, thus, belongs to the State in which it is registered regardless of whether it is in outer space, is on the moon, or it lands in territories outside the boundaries of the launching State. The Treaty provides that “such objects or component parts found beyond the limits of the State to the Treaty on whose registry they are carried shall be returned to that State, which shall upon request, furnish identifying data prior to their return”.³⁸

Article IX of the Outer Space Treaty, 1967, which is based on para 6 of the 1963 Declaration, States that in the exploration and use of outer space, including the moon and other celestial bodies, States Parties to the Treaty are to be guided by the principle of co-operation and mutual assistance and shall conduct all their activities in outer space, including the moon and other celestial bodies, with due regard to the corresponding interests of all other State Parties. The State Parties are obligated to pursue studies of outer space, including the moon and other celestial bodies, and conduct exploration of them so as to avoid their harmful contamination and also adverse changes in the environment of the earth resulting from the introduction of extraterrestrial matter. They are to adopt appropriate measures for this purpose, where necessary.

Where a State Party has reason to believe that an activity or experiment planned by it or its nationals in outer space would cause potentially harmful interference with activities of other States Parties in the peaceful exploration and use of outer space, it shall undertake appropriate international consultations before proceeding with any such activity or experiment. Further, where a State Party has reason to believe that an activity or experiment planned by another State Party in outer space would cause potentially harmful interference with activities in the peaceful exploration and use of outer space, may request consultation concerning the activity or experiment.

10.2.2.3 Agreement on the Rescue of Astronauts, 1968

The Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space, 1968 was adopted to deal with a situation of accident, distress, emergency or unintended landing of a space object. The Agreement on Rescue of Astronauts is an expansion of Article v of the Outer Space Treaty.

Article I of the Agreement requires a Member State that has knowledge of another Member State's personnel who are in an emergency situation, to not only notify the State who launched the astronauts or otherwise publicly communicate the existence of an accident, but also communicate this information to the United Nations Secretary-General. Articles II and III deal with providing the practical measures that a State must take in rendering assistance to crews in distress. The Agreement requires the Member States to render assistance when there is an accident, a distress or emergency situation, an unintended landing in the jurisdiction of the Member State, and a landing on the high seas or any other place not falling under the jurisdiction of the launching State. The Agreement also requires under Article II that other Member States cooperate with the launching State in the conduct of a prompt rescue or recovery in the most effective way possible.

The obligations of States to take measures for the prevention of harmful effect on the environment are also embodied in this Agreement. Article V(4) of the Agreement obligates launching States to take effective measures in order to avoid the possible danger of inflicting harm on another State, if a space object discovered on the latter's territory is perilous or harmful.

38. Michael J Listner, “The Ownership and Exploitation of Outer Space: A Look at Foundational Law and Future Legal Challenges to Current Claims”, *Regent Journal of International Law*, vol 1, 2003, p 75 at pp 80, 81.

The measures by launching States would be taken under the direction and control of the Contracting Party on whose territory such space object or its component parts have been found.

10.2.2.4 *Liability Convention, 1972*

The Convention on International Liability for Damage Caused by Space Objects, 1972 applies to harms caused by debris and by activities having contamination/pollution effects. It imposes absolute liability on launching States for all damages caused by its space object on the earth or to aircraft in flight.

The Liability Convention defines “damage” to mean “loss of life, personal injury or other impairment of health; or loss of or damage to property of States or of persons, natural or juridical, or property of international intergovernmental organizations”.³⁹ When COSMOS — 954 incident took place, the affected State Canada presented its claim to launching State Soviet Union on the relevant provisions of Liability Convention of 1972 and it was settled through diplomatic channels between the two States.

According to Liability Convention, damage caused by a spacecraft may (1) occur on the surface of the earth or to an aircraft in flight, or (2) occur elsewhere other than on the surface of the earth. In the first instance, the Liability Convention imposes absolute liability whereby the State will be liable under any circumstances, even in the presence of *force majeure*. If the damage does not occur on the surface of the earth, the launching State will be subject to fault liability, whereby it will only be liable for damage which either it or persons or agencies for which it is responsible are at fault.⁴⁰

Such a fault based liability system fails due to the reason that there must be a definable standard of care and an ability to assess who is at fault. For example, when negligence of one party is the question of fault, there must be a duty owed to the other party, the duty must be breached, and the breach must be the legal and actual cause of the injury. The Liability Convention and Registration Convention and the current tracking technologies provide neither a definable standard nor an adequate fault assessment.⁴¹

Article XII, which deals with compensation, lays down the rule that “the compensation which the launching State shall be liable to pay for damage under this Convention shall be determined in accordance with international law and the principles of justice and equity, in order to provide such reparation in respect of the damage as will restore the person, natural or juridical, State or international organization on whose behalf the claim is presented to the condition which would have existed if the damage had not occurred”.

The Liability Convention does not make direct reference to consultation in the event of potentially harmful interference with activities in the peaceful exploration and use of outer space environment. However, Article XXI which deals with multinational assistance to areas threatened by large scale detriment, implies the need for some kind of consultation in order to make such assistance effective. Article XXI reads that “if the damage caused by a space object presents a large-scale danger to human life or seriously interferes with the living conditions of the population or the functioning of vital centres, the States Parties, and in particular the launching State, shall examine the possibility of rendering appropriate and rapid assistance to the State which has suffered the damage, when it so requests...”.

39. Convention on International Liability for Damage Caused by Space Objects, 1972, Article 1(a).

40. Michael J Listner, “The Ownership and Exploitation of Outer Space: A Look at Foundational Law and Future Legal Challenges to Current Claims”, *Regent Journal of International Law*, vol 1, 2003, p 75 at p 83.

41. Peter T Limperis, “Orbital Debris and the Spacefaring Nations: International Law Methods for Prevention and Reduction of Debris, and Liability Regimes for Damage Caused by Debris”, *Arizona Journal of International and Comparative Law*, vol 15, 1998, p 319 at p 338.

10.2.2.5 *Registration Convention, 1975*

The major purpose underlying the Convention on Registration of Objects Launched into Outer Space, 1975⁴² is to gather factual information of the space objects that were launched into earth orbit or beyond for the purpose of identifying them in case they cause harm. The registration will help to minimise the possibility of weapons of mass destruction being clandestinely placed into orbit. Further, a State may be held liable for damages caused by its object only when its object is identified and the ownership of the object is established.

This Convention pursuant to Article II, calls for the registration of a space object that is launched into earth orbit or beyond. Article II(1) reads that “when a space object is launched into earth orbit or beyond, the launching State shall register the space object by means of an entry in an appropriate registry which it shall maintain. Each launching State shall inform the Secretary General of the United Nations of the establishment of such a registry”. The scope of this provision is limited as it provides for the registration of “space objects launched into earth orbit or beyond”. It excludes the launches of sub-orbital sounding rockets or ballistic missile test vehicles, etc.

Article IV(1) of the Registration Convention identifies certain information including the basic orbital parameters to be supplied by States of registry to the United Nations. Thus, launching States, being aware of the presence of space objects in a given orbital position, would be enabled to avoid those areas. In this way the modest danger of collision can be minimised. Article IV(3) provides that notifications is also to be made to the Secretary General of the United Nations of the fact that space objects are no longer in earth orbit.

In addition, each State of registry may provide additional information concerning a space object carried on its registry to the Secretary General of the United Nations from time to time.⁴³ Such information for example, could be concerned with radio frequencies, precise orbital slot, the lifetime, size and weight of the launched space object; in fact, any information which would help in promoting international law in space activities.⁴⁴ Although this type of information would assist in the identification of space objects, the provision of “additional information” is discretionary and not mandatory.

Article VI of the Registration Convention lays down the rule that when damage is caused by a space object to a State Party or such object is of a hazardous or deleterious nature and the victim State under the provisions of this Convention is not able to identify, it can request to other State Parties particularly those possessing space monitoring and tracking facilities, for the identification of such object. A response is to be made by the requested parties on such request to the greatest extent feasible.

The Registration Convention, though is properly associated with the identification of space object or its parts, is also designed to provide for the general safety of the space environment.

10.2.2.6 *Moon Agreement, 1979*

The Agreement Governing the Activities of States on the Moon and Other Celestial Bodies, 1979 is *inter alia* concerned with the demilitarisation of moon and other celestial bodies and protection of the environment of earth, moon and other celestial bodies.

As already discussed, Article IV of the Outer Space Treaty contains a broad list of all types of activity which are prohibited on the moon and other celestial bodies. The list covers

42. The Registration Convention came into force on 15 September 1976.

43. Article IV(2), Registration Convention, 1975.

44. Eilene Galloway, *Convention on Registration of Objects Launched into Outer Space: Analysis and Background Data*, Senate Comm. on Aeronautical and Space Sciences, 94th Cong 1st Sess, 12, Comm Print, 1975.

the deployment of nuclear weapons or any other types of weapons of mass destruction, the construction of military bases, structures and fortifications, the testing of any types of weapons and the conduct of military exercises. The list is supplemented and extended in Article 3 of the Moon Agreement, which in addition to the aforesaid prohibited types of use of the moon and other celestial bodies, also prohibits the placement of objects with nuclear weapons or any other kind of weapons of mass destruction in orbit round the moon or in other trajectories towards the moon or round it and the use of such weapons on or below the surface of the moon.

Some jurists describe the complete prohibition of military activity on the moon and other celestial bodies as the demilitarisation of the moon. While with respect to the moon and other celestial bodies, it would be more correct to speak not in terms of demilitarisation, i.e. prohibition of earlier military activity, but in terms of preventing the military use of the moon and other celestial bodies, or in terms of the prohibition of their militarisation.⁴⁵

Article 7 of the Moon Agreement enhances the environmental obligations of States found in Article IX of the Outer Space Treaty through the expression of specific standards of behaviour to be followed on the moon and other celestial bodies. Article 7 of the Agreement obligates States Parties to take measures to prevent the disruption of the existing balance of the environment of the moon and other celestial bodies by introducing adverse changes or by harmful contamination or otherwise. They are also obligated to avoid harmful effects to the earth environment through the introduction of extra-terrestrial matter or otherwise. They are further obligated to inform the United Nations of the measures being adopted to prevent the disruption of the existing balance of the environment of the moon and any plan to place any radioactive material on it.

Article 7 of the Moon Agreement, 1979 is more effective than Article IX of the Outer Space Treaty, 1967. But the basic problem is that Article VII of the Moon Agreement is applicable only to the earth, moon and other celestial bodies and not to the outer space as such.

Article 11(2) of the Moon Agreement, which is identical to Article II of the Outer Space Treaty, proclaims that “outer space, including the moon and other celestial bodies, is not subject to national appropriation by claim of sovereignty, by use or occupation or by other means”. It also lays down that “neither the surface nor the subsurface of the moon, nor any part thereof or natural resources in place, shall become property of any State, international intergovernmental or non-governmental organization, national organization or non-governmental entity or of any natural person. The placement of personnel, space vehicles, equipment, facilities, stations and installations on or below the surface of the Moon, including structures connected with its surface or subsurface, shall not create a right of ownership over the surface or the subsurface of the Moon or any areas thereof”.

Article 15(2) is a consultative clause which provides that a State Party may request consultation if it reasonably believes that another State Party has not fulfilled its obligations under the Agreement or is interfering with the rights of the requesting State. It is mandatory on the part of requested State to enter into consultation without delay and seek a mutually acceptable settlement. If such a settlement is not reached, the States involved must use appropriate peaceful means of their choice to settle the dispute.

The scope of the Moon Agreement is narrower. The provisions of this Agreement apply to other celestial bodies within the solar system other than the earth, if they do not have any specific legal regime. Further, reference to moon also includes orbits around or other trajectories to or around it.⁴⁶ The Agreement thus, encompasses the moon, “orbits around or

45. *Outer Space: Politics and Law*, V S Vereshchetin, (Ed), 1997, p 13.

46. Article 1, Moon Agreement, 1979.

other trajectories to or around” the moon and our solar system without their own specific legal regime. The protection of the outer space environment and celestial bodies outside our solar system is excluded.

10.2.2.7 Other Principles and Declaration on Outer Space

After Moon Agreement of 1979, no other treaty or convention was adopted on outer space. However, certain Principles and Declaration were adopted to regulate the various uses of the outer space.

10.2.2.7.1 Principles Governing the Use by States of Artificial Earth Satellites for International Direct Television Broadcasting, 1982

The Principles Governing the Use by States of Artificial Earth Satellites for International Direct Television Broadcasting were adopted in 1982. The purposes and objectives of these Principles state that the activities in the field of international direct television broadcasting by satellite should be carried out in a manner compatible with the sovereign rights of States, including the principle of non-intervention as well as with the right of everyone to seek, receive and impart information and ideas as enshrined in the relevant United Nations Instrument.

Such activities are to promote the free dissemination and mutual exchange of information and knowledge in cultural and scientific fields and also to assist in educational, social and economic development, particularly in the developing countries. These activities should also enhance the qualities of life of all peoples and provide recreation with due respect to the political and cultural integrity of States.

The aforesaid activities, therefore should be carried out in a manner compatible with the development of mutual understanding and the strengthening of friendly relations and co-operation among all States and peoples in the interest of maintaining international peace and security.⁴⁷ The activities are to be conducted *inter alia* in accordance with international law, including the Charter of the United Nations, and the Outer Space Treaty, 1967.

10.2.2.7.2 Principles on Remote Sensing, 1986

The Principles on Remote Sensing were adopted in 1986 to regulate the remote sensing activities of the States. Remote sensing means the sensing of the earth's surface from space by making use of properties of electromagnetic waves emitted, reflected or diffracted by the sensed objects, for the purpose of improving natural resources management, land use and the protection of the environment.⁴⁸ The remote sensing activities are to be carried out for the benefit and in the interests of all countries, irrespective of their degree of economic, social or scientific and technological development, and taking into particular consideration the needs of the developing countries.⁴⁹

Remote sensing activities are to be conducted in accordance with international law, including the Charter of the United Nations, the Outer Space Treaty, and the relevant instruments of the International Telecommunication Union.⁵⁰ Remote sensing activities are to be conducted on the basis of respect for the principle of full and permanent sovereignty of all States and peoples over their own wealth and natural resources, with due regard to the rights and interests, in accordance with international law, of other States and entities under their jurisdiction.

47. Principles 1–3, Principles Governing the Use by States of Artificial Earth Satellites for International Direct Television Broadcasting, 1982.

48. Principle I(a), Principles on Remote Sensing, 1986.

49. Principle II, Principles on Remote Sensing, 1986.

50. Principles III, Principles on Remote Sensing, 1986.

10.2.2.7.3 Principles Relevant to the Use of Nuclear Power in Outer Space, 1992

The Principles Relevant to the Use of Nuclear Power Sources in Outer Space were adopted in 1992 by the General Assembly recognising the fact that for some missions in outer space nuclear power sources were particularly suited or even essential due to their compactness, long life and other attributes. A need was felt that in this respect a set of Principles containing goals and guidelines should be adopted to ensure safe use of nuclear power sources in outer space.

Activities involving the use of nuclear power sources in outer space are to be carried out in accordance with international law, including in particular the Charter of the United Nations and the Outer Space Treaty. The Principles contain guidelines and criteria for safe use of nuclear power sources in outer space.

10.2.2.7.4 Declaration on International Cooperation in the Exploration and Use of Outer Space, 1996

In 1996, the General Assembly adopted a Declaration on International Cooperation in the Exploration and Use of Outer Space for the Benefit and in the Interest of all States, taking into Particular Account the Needs of Developing Countries. The Declaration provides that the international cooperation in the exploration and use of outer space for peaceful purposes are to be conducted in accordance with the provisions of international law, including in particular the Charter of the United Nations and the Outer Space Treaty. It is to be carried out for the benefit and in the interest of all States, irrespective of their degree of economic, social or scientific and technological development, and shall be the province of all mankind. Particular account should be taken of the needs of developing countries.

The Declaration makes the States free to determine all aspects of their participation in international cooperation in the exploration and use of outer space on an equitable and mutually acceptable basis. Contractual terms in such cooperative ventures should be fair and reasonable and they should be in full compliance with the legitimate rights and interests of the parties concerned, as for example, with intellectual property rights.

10.2.2.8 Other Treaties

In addition to the specific treaties dealing with international space law, some other treaties such as Treaty Banning Nuclear Weapon Tests in the Atmosphere, in Outer Space and under Water, 1963 (Partial Test Ban Treaty) and the Convention on the Prohibition of Military or Any Other Hostile Use of Environmental Modification Techniques, 1977 (Environmental Modification Convention) also deal with the aspects of protection of the environment of the earth and outer space.

Article 1 of the Partial Test Ban Treaty, 1963 embodies the main prohibition against nuclear test. It obligates Parties to undertake “to prohibit, to prevent, and not to carry out any nuclear weapon test explosion, or any other nuclear explosion, at any place under its jurisdiction or control (a) in the atmosphere; beyond its limits, including outer space, or under water, including territorial waters or high seas; or (b) in any other environment if such explosion causes radio-active debris to be present outside the territorial limits of the State under whose jurisdiction or control such explosion is conducted”.

The purpose of Article 1 is to prevent the wide-ranging distribution of radioactive debris. The prohibition contained in this Treaty applies to all nuclear test carried out in outer space, irrespective of the distance of their test-sites from the earth, since there is no outer limit of outer space. Similarly, such prohibition would apply to all nuclear tests conducted on celestial bodies, since they form part of outer space and testing could result in contamination.

The major advantage of this Treaty is the establishment of essentially favourable conditions for the peaceful uses of outer space i.e. keeping outer space relatively free from the adverse effects of electromagnetic pulse (EMP) which can be created by a nuclear explosion in the atmosphere or in outer space.

Article I(1) of the Environmental Modification Convention, 1977 obligates State Parties to undertake “not to engage in military or other hostile use of environmental modification techniques having widespread, long-lasting or severe effects as the means of destruction, damage or injury to any other State Party”. The term “environmental modification technique” refers to any technique for changing through the deliberate manipulation of natural processes the dynamics, composition or structure of the earth, including its biota, lithosphere, hydrosphere and atmosphere, or of outer space.⁵¹

The effectiveness of these provisions as a regulatory mechanism for protection of the outer space environment *per se* is limited as the application of the Convention is restricted to States Parties. The non-State parties are obligated by customary international law not to adopt any environmental modification technique for the aforesaid purposes.

These provisions, however, shall not hinder the use of environmental modification techniques for peaceful purposes and shall be without prejudice to the generally recognised principles and applicable rules of international law concerning such use.⁵² In other words, the provisions of this Convention are not to affect the generally recognised principles and customary international law so far as the use of environmental modification techniques for peaceful purposes is concerned.

10.2.2.9 Other Applicable Law

The Space Liability Convention, 1972 is applicable only on the parties to the Convention, whereas the general international law on State liability is applicable to all. The principle of absolute liability is applicable where even the legitimate space activities of a State result in some injury to another State. In such a case, the responsible State shall be liable to make reparation to the affected State. The reparation may be done in the form of restitution of earlier position or where it is not possible, in the form of compensation to the affected State.

Principle 21 of Stockholm Declaration on the Human Environment, 1972 expanded further the scope of international responsibility. Principle 21 States that in accordance with United Nations Charter and the principles of international law, States have “the sovereign right to exploit their own resources pursuant to their own environmental policies”. They also have “the responsibility to ensure that activities within their jurisdiction or control do not cause damage to the environment of other States or *areas beyond the limits of natural jurisdiction*”.

Principle 21, thus makes it clear that the rule of responsibility applies not only to damage caused to the environment of other States but also to any injury inflicted on the environment of “areas beyond the limits of national jurisdiction”, such as the high seas, Antarctica or outer space.

51. Article II, The Environmental Modification Convention, 1977.

52. Article III(1), The Environmental Modification Convention, 1977.

CHAPTER 11

LAW OF THE SEA

SYNOPSIS

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The sea is a physical unit which covers the greatest part (70.8%) of the earth's solid crust.¹ Traditionally, the sea was considered as vagrant waters and States did not show much interest in it. It was being considered useful only for the purposes of navigation and to catch small quantity of fishes. The States were not aware of the resources lying in the sea. They did not have the technology. The States were primarily land powers and maintaining armies. They did not realise any security threat from the sea. It was only when the technology became advance, and new methods of warfare particularly new cannons were developed, that the States became cautious about their security and claimed some portion of the sea as their territorial waters.

1. See Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, p 3.

The technology also made it clear that huge resources of metals and minerals were lying on and under the seabed. There were an estimated 1.5 trillion tons of manganese nodules which lay on the ocean floor. The nodules contain significant amounts of nickel, cobalt, copper and manganese.² These resources were very extremely useful for industrial revolution. This made States to think about claiming right over the seabed which was adjacent to their coasts. Arvid Pardo, Malta's representative to the United Nations proposed that the United Nations declare the seabed and ocean floor "underlying the seas beyond the limits of present national jurisdiction" to be the "common heritage of mankind" and these should not be "subject of national appropriation in any manner whatsoever". Some writers called seabed and ocean floor as *res communis*, i.e. commonly available for the use of all States, and used this term as a synonym to common heritage of mankind. De Soto pointed out a distinction between the two by stating that "the difference between common heritage of mankind and *res communis* is not that common heritage implies everyone owns the area or has equal access to it, but rather that it must be jointly administered and jointly managed".³ Thus, it was felt necessary that there should be appropriate regulation on the exploitation of this so called *common heritage of mankind*.

The conventional law on the sea came in the second half of the 20th Century. The International Law Commission, which was set up in 1949 took the earliest opportunity to codify the law of the sea.⁴ The First United Nations Conference on Law of the Sea was organised in 1958 which culminated in the adoption of four important conventions. These conventions were (i) Geneva Convention on Territorial Waters and Contiguous Zone; (ii) Geneva Convention on Continental Shelf; (iii) Geneva Convention on High Seas; and (iv) Geneva Convention on Fisheries.

The Second United Nations Conference on Law of the Sea was organised in 1960 to deal specifically with the issue of the breadth of territorial waters and the issues relating to fisheries limits. The Conference was unable to reach a consensus on these issues. No convention was therefore adopted in this Conference.

The four Geneva Conventions made a good start, but they failed to respond to all the issues, most particularly the breadth of territorial waters. Further, the development of new technology for the exploration and exploitation of sea bed made it necessary to look into the law on continental shelf and deep sea bed. The Geneva Convention on Continental Shelf allowed States parties to make reservation with respect to certain important provisions. This meant that those provisions would never be transformed into customary law.⁵ The archipelagic, landlocked, and geographically disadvantaged States were also looking for a better deal. A need was therefore felt to have a comprehensive regime on law of the sea.

The Third United Nations Conference on Law of the Sea (UNCLOS III) started in 1973 and participated by 160 States. It was a great success as it resulted into the adoption of a comprehensive convention i.e. United Nations Convention on Law of the Sea in 1982.

11.1 UN Convention on Law of the Sea, 1982: A Package Deal

The 1982 Convention was negotiated and accepted as a "package deal". As already stated that a large number of parties participated in UNCLOS III, they had large number of

2. Kathryn E Yost, "The International Seabed Authority Decision-Making Process: Does it Give a Proportionate Voice to the Participant's Interests in Deep Sea Mining?" 20 *San Diego Law Review*, 1983, pp 659–78 at pp 664–65.

3. De Soto, "The Developing Countries and Deep Seabed Mining" in *International Law of the Sea and the Future of Deep Seabed Mining*, C Joyner (Ed), 1975, p 47.

4. Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 11.

5. See also *North Sea Continental Shelf Cases*, (1969) ICJ Rep 3, where the International Court of Justice stated that Article 6 of the Geneva Convention on Continental Shelf cannot be considered as customary international law. One of the reasons cited by the Court was that reservation could be made by the State parties with respect to that Article.

conflicting interests. In order to satisfy all interests a package deal was conceived.⁶ The issues were interconnected. No reservation was allowed to be made with respect to any of the provisions of the Convention. The States were not allowed to pick certain provisions and reject others. They would either accept the entire Convention or will not become a party to it. During the negotiation stage, none of its provisions for voted upon. The intention was that it should be accepted by way of consensus. The articles of the Convention were drafted in the working Committees and presented as stating the common, predominant, or accepted view. The complete text of the Convention was seen as an intricate and delicately balanced bargain between the different interests of the participating States. Several States made it clear that their willingness to accept one or more of the claims and proposals were dependent upon the acceptance of other claims and proposals.⁷ Thus, where the States did not agree with a particular provision and opposed it, they were still prepared to accept it either in return for the inclusion of some other provision or in the interest of an agreed regime for the law of the sea. Lot of compromises were therefore made by the States to come to an agreed solution. A Convention adopted after forming a consensus and in the form of a package deal has greater chances of getting good response from the majority of States. There is also a likelihood of the provisions of such Convention taking the form of customary international law in a short span of time.⁸ RP Barston stated that many parts of the 1982 Convention had already been adopted into international customary law in view of the length of the negotiating process.⁹

Mr. Tommy Koh, the President of the Third United Nations Conference on Law of the Sea (UNCLOS III), made very relevant remarks in the following words:

Although the Convention consists of a series of compromises, they form an integral whole. This is why the Convention does not provide for reservations. It is therefore not possible for States to pick what they like and disregard what they do not like. In international law, as in domestic law, rights and duties go hand in hand. It is therefore legally impermissible to claim rights under the Convention without being willing to assume the correlative duties.

The 1982 Convention contains dispute settlement machinery and provided for the establishment of an International Tribunal for the Law of the Sea. The tribunal has its seat at Hamburg.

Thus, the 1982 Convention balances extended coastal State jurisdiction with provision for preservation and elaboration of rights of navigation and over flight in these areas and guarantees of passage through and over straits used for international navigation and archipelagos.

It is noteworthy that 1982 Convention is not the sole source of law governing maritime affairs. Other complementary conventions and treaties that regulate general international law aspects in the law of the sea such as boundary agreements may also be referred to.¹⁰

11.2 The 1994 Agreement Relating to Implementation of Part XI of the 1982 Convention

Part XI of the 1982 Convention on deep seabed was not acceptable to the developed States as it prescribed certain obligations for them. Several developed States decided not to become a

6. G Plant, "United Nations Law-Making: The UNCLOS III Model" in *UN for a Better World*, JN Saxena, Gurdip Singh, AK Koul (Eds), 1986, p 293.

7. See also John R Stevenson and Bernard Oxman, "The Third UNCLOS: The 1974 Caracas Session", 69 *American Journal of International Law*, 1ff (1975) quoted in RP Anand, *Studies in International Law and History: An Asian Perspective*, 2004, p 221.

8. DJ Harris, *Cases and Materials on International Law*, 2004, p 383.

9. RP Barston, "The Law of the Sea: The Conference and After", *Journal of World Trade Law*, vol 17, 1983, pp 207–23 at p 223.

10. See Sarra Sefrioui, "Adapting to Sea Level Rise: A Law of the Sea Perspective" in *The Future of the Law of the Sea: Bridging Gaps Between National, Individual and Common Interests*, Gemma Andreone (Ed), 2017, pp 18–19.

signatory to the Convention or ratify it. In 1994, the Agreement relating to Implementation of Part XI of the 1982 Convention was adopted to accommodate the demands of developed States. The 1994 Agreement amended Part XI of the 1982 Convention to the satisfaction of developed States. Both the Convention and the Agreement entered into force in 1994.

11.3 Internal Waters

Internal waters refer to those parts of the sea that are so closely linked with the land as to be considered integral and inseparable parts thereof. Internal waters are subject to the sovereignty of the particular coastal State that controls such land.¹¹ The UN Convention on Law of the Sea, 1982 lays down that the waters on the landward side of the baseline of the territorial sea form part of the internal waters of the State.¹² In case of archipelagic State,¹³ the State may within its archipelagic waters, draw closing lines for the delimitation of internal waters, in accordance with Articles 9 (mouth of rivers), 10 (bays) and 11 (ports).¹⁴ States have complete sovereignty over their internal waters, which are rivers, lakes, ports, bays and the like generally on the landward side of the baseline.

11.4 Territorial Waters

States attempted to place a buffer zone around their territorial interests primarily for the maintenance of land sovereignty.¹⁵ “Such interests included the prevention of poaching on local fishing grounds, prevention of smuggling, control of negligent navigation in coastal waters, and the prevention of other incidents which endangered the inhabitants of the State concerned”.¹⁶ Therefore, certain portion of the sea along a State’s coasts was universally considered as a prolongation of its territory and that State’s jurisdiction over such portion was recognised. All States claimed sovereignty over that portion of the sea which was adjacent to their coastlines. This was known as “territorial waters”, “territorial sea”, “marginal belt”, “marginal sea” or “maritime sea”. As aforesaid, there were several reasons for claiming sovereignty over the territorial waters. Firstly, the security of State demanded that it should have exclusive possession of its shores and that it should be able to protect its approaches. Secondly, for the purpose of furthering its commercial, fiscal and political interests, a State must be able to supervise all ships entering, leaving or anchoring in its territorial waters. Thirdly, the exclusive exploitation and enjoyment of the products of the sea within a State’s territorial waters is necessary for the existence and welfare of the people on its coasts.¹⁷

Elihu Root in proceedings *North Atlantic Fisheries Arbitration* made the following statements for territorial waters:

[T]he new principle of freedom, when it approached the shore, met with another principle, the principle of protection, not a residuum of the old claim, but a new independent basis and reason for modification, near the shore, of the principle of freedom.

11. See Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, p 37.

12. Article 8(1), UN Convention on Law of the Sea, 1982; Article 5(1), Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

13. According to Article 46, “archipelagic state” means a State constituted wholly by one or more archipelagos and may include other islands. The term “archipelago” means a group of islands, including parts of islands, interconnecting waters and other natural features which are so closely interrelated that such islands, waters and other natural features form an intrinsic geographical, economic and political entity, or which historically have been regarded as such.

14. Article 50, UN Convention on Law of the Sea, 1982.

15. Karl J Shawhan, *Vital Interests, Virtual Threats: Reconciling International Law with Information Warfare and United States Security*, 2001, p 11.

16. Martin B Schofield, “Control of Outer Space,” *Air University Quarterly Review*, vol 10(1), Spring 1958, p 94.

17. C John Colombos, *The International Law of the Sea*, 1959, p 74.

The sovereign of the land washed by the sea asserted a new right to protect his subjects and citizens against attack, against invasion, against interference and injury, to protect them against attack threatening their peace, to protect their revenues, to protect their health, to protect their industries. This is the basis and sole basis on which is established the territorial zone that is recognised in the international law of today.¹⁸

11.4.1 Breadth of the Territorial Waters

Traditionally, there was no agreement among States on the breadth of the territorial waters. Loccenius advocated the limit of territorial waters as distance from shore as could be covered in two days' navigation, whereas in some of the treaties of the sixteenth and seventeenth centuries, the limit was determined by the range of visual horizon. Grotius's doctrine of territorial waters was based on the principle of effective dominium.¹⁹

Bynkershoek stated that the breadth of maritime belt extended to that distance where a cannon could fire. According to him, "the dominion of the land ends where the power of the arms ends".²⁰ Fulton justified the cannon range by stating that "it was the rule that the sea should salute the land and the range of guns determined the limit within which the salute ought to be rendered".²¹ In 1793, the cannon-shot rule was first given a standard value of one marine league or three nautical miles in diplomatic practice.²² The cannon-shot rule and the three mile limit were generally regarded as synonymous in the practice of States supporting a three mile rule. Galiani also proposed that the territorial sea should be a distance of three nautical miles from the shore, three nautical miles being the optimum hypothetical range of artillery.²³ The United Kingdom, United States and many other States also supported the three mile limit. This, however, was not a uniform limit and therefore, could not become a customary law.

At the League of Nations Codification Conference at the Hague in 1930, 18 States, including all the major maritime countries, preferred the three-mile limit. However, eight of these eighteen States wished to add a contiguous zone so as to extend their control for certain purposes beyond the territorial sea. On the other hand, 17 States claimed more than three miles, namely four or six. The Soviet Union was of the view that States were free to establish the limit of their territorial sea at three, four, six, or twelve nautical miles.²⁴

Thus, despite strong support to the three mile rule by the big maritime powers, such as United Kingdom, United States, Germany and Japan, it could not be accepted as a general rule of international law. Professor Manley Hudson stated that "the history of last Century has failed to invest the 'three mile limit' with any particular sanctity, and recent conquest of distance makes it seem in many respective archaic".²⁵

The reason for not accepting a narrow territorial sea limit of three nautical miles was that beyond this limit, the high sea would start and developed States with sophisticated artillery could stand at a distance of just three nautical miles from the coasts of the coastal States and threaten, attack or intimidate them. The developing States were therefore in favour of a larger breadth of the territorial sea.

In 1951, the International Law Commission (ILC) submitted its report on the "Territorial Waters". The report consisting of 25 articles, dealt with its juridical status, its limits, the right

18. See RP Anand, *Origin and Development of Law of the Sea*, 1982, p 137.

19. C John Colombos, *The International Law of the Sea*, 1959, p 79.

20. Ibid.

21. Ibid.

22. Ian Brownlie, *Principles of Public International Law*, 1979, p 191.

23. See HS Fraser, "The Extent and Delimitation of Territorial Waters", 11 *Corn LQ*, 1925–26, p 455.

24. See Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, p 41.

25. See RP Anand, *Origin and Development of Law of the Sea*, 1982, p 140.

of innocent passage and the regime governing merchant ships and warships through its waters. As regards the breadth of territorial waters, the ILC was unable to agree on any generally acceptable limit; but merely stated in Article 3 that “international law does not permit as extension of the territorial sea beyond 12 miles”.²⁶

The First UN Conference on Law of the Sea was held in 1958, at which four Geneva Conventions were adopted. The Geneva Convention on Territorial Sea and Contiguous Zone, 1958 failed to have an agreed limit on the territorial waters as the small States insisted that the old concept of the freedom of the seas could no longer be regarded as sacrosanct. The adherents to the three-mile limit came in minority. Six States claimed 3 to 6 nautical miles²⁷ as their territorial sea, 149 States claimed 12 nautical miles, whereas nine States claimed up to 200 nautical miles as their territorial sea.²⁸

While inability to settle the breadth of territorial waters was one of the major failures of the conference, some limit to State control of the territorial waters was prescribed by the Geneva Convention on Territorial Waters and Contiguous Zone. Article 24 of the Convention, which permits States to proclaim a contiguous zone, prohibits this zone from extending more than 12 miles from either the low water mark or the coast line or the outward limit of the internal waters. Thus, territorial waters could not be extended beyond 12 miles.

The Second UN Conference on Law of the Sea was held in 1960. In this Conference, United States presented a compromise formula which provided that the breadth of territorial waters should be six miles and beyond these six miles the coastal States should be given rights for fishing etc. for another six miles. This formula is also known as “Six Plus Six” formula. This proposal was also rejected.

An agreement was finally reached in the Third United Nations Conference on Law of the Sea on the breadth of the territorial waters. Article 3 of the 1982 Convention provides that every State has the right to establish the breadth of its territorial sea up to a limit not exceeding 12 nautical miles, measured from the baselines.

11.4.2 Straight Baseline Method

Generally, the normal baseline for measuring the breadth of the territorial sea is the low-water line along the coast as marked on large scale charts officially recognised by the coastal States.²⁹ However, in some exceptional cases, the coastal States may adopt straight baseline for measuring the breadth of the territorial sea. For example, where much of the coast of a State is penetrated by fjords and fringed by many islands, rocks and reefs etc., the State in such a case may adopt the straight baseline method for the purpose of delimitation of its territorial waters.

The method of adopting straight baseline by Norway was held valid by International Court of Justice in *Anglo-Norwegian Fisheries* case.³⁰ In this case Norway measured its territorial sea not from the low-water mark but from the straight baselines linking the outermost points of land along it.³¹ The geographical conditions of Norway are such that the coastline concerned is deeply indented by *fjords* and *sunds* and is fronted by a fringe of islands and rocks

26. C John Colombos, *The International Law of the Sea*, 1959, pp 92–93.

27. 1 Nautical mile is equivalent to 1.1508 land miles.

28. DJ Harris, *Cases and Materials on International Law*, 2004, pp 386–87.

29. Article 5, UN Convention on Law of the Sea, 1982; Article 3, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

30. *Anglo-Norwegian Fisheries* case (*United Kingdom v Norway*), (1951) ICJ Rep 116.

31. Norway issued Royal Norwegian Decree on 12 July 1935 and delimited its territorial sea in accordance with by adopting straight baseline method.

(the *skjaergaard*) that is difficult to separate from the mainland. By using straight baselines, Norway enclosed waters within its territorial sea that would have been high seas. Several baselines were over 30 miles long and the longest was 44 miles. The United Kingdom challenged the legality of Norway's straight baseline system.

It is noteworthy that there was no conventional law of universal application when the dispute arose. The Court therefore had to apply customary international law. The Court stated that for the purpose of measuring the breadth of the territorial sea, it was the low-water mark as opposed to the high-water mark, which had generally been adopted in the practice of States. The Court had to decide whether the relevant low-water mark was that of the mainland or of the *skjaergaard*. Since the mainland was bordered by the *skjaergaard*, which constituted a whole with the mainland, it was outer line of the *skjaergaard* which had to be taken into account in delimiting the Norwegian territorial sea. The solution was dictated by geographic realities.

The Court concluded that the method of straight baselines was imposed by the peculiar geography of the Norwegian coast. Further, even before the dispute arose, that method had been consolidated by a constant and sufficiently long practice and the States did not consider it contrary to international law. The Court stated that the straight baseline must be drawn in such a way as to respect the general direction of the coast. The Court also considered the historic title claimed by Norway and stated that historic data produced lent some weight to the idea of survival of traditional rights reserved to the inhabitants of the Norway. Such rights, founded on the vital needs of the population and attested by very ancient and peaceful usage, might legitimately be taken into account in drawing the line.

Although the Court upheld the validity of straight baselines in international law, it made clear that the coastal State does not have an unfettered discretion as to how it draws straight baselines, and it laid down a number of conditions governing the drawing of such baselines. First, such lines must be drawn so that they do "not depart to any appreciable extent from the general direction of the coast". Secondly, they must be drawn so that the "sea areas lying within these lines are sufficiently closely linked to the land domain to be subject to the regime of internal waters".³² Thirdly, the Court stated that it is legitimate to take into account "certain economic interests peculiar to a region, the reality and importance of which are clearly evidenced by a long usage".³³

The rules enunciated by the Court were eventually incorporated in Geneva Convention on Territorial Waters and Contiguous Zone, 1958 as well as in the UN Convention on Law of the Sea, 1982.

Thus, in localities where the coastline is deeply indented and cut into or if there is a fringe of islands along the coast in its immediate vicinity the method of straight baselines joining appropriate points may be employed in drawing the baseline from which the breadth of the territorial sea is measured. Where because of the presence of a delta and other natural conditions the coastline is highly unstable, the appropriate points may be selected along the furthest seaward extent of the low-water line.

It is however important that the drawing of straight baselines must not depart to any appreciable extent from the general direction of the coast. The sea area lying within the lines is to be called as internal waters only if it is sufficiently closely linked to the land domain. The system of straight baselines may not be applied by a State in such a manner as to cut off the territorial sea of another State from the high seas or an exclusive economic zone.

32. *Anglo-Norwegian Fisheries case (United Kingdom v Norway)*, (1951) ICJ Rep 116, p 133.

33. *Anglo-Norwegian Fisheries case (United Kingdom v Norway)*, (1951) ICJ Rep 116, p 142.

Where the method of straight baseline is applicable, account may be taken of economic interests peculiar to the region concerned, the reality and the importance of which are clearly evidenced by long usage.³⁴

In *Maritime Delimitation and Territorial Questions Between Qatar and Bahrain* case,³⁵ the International Court of Justice observed that “the method of straight baselines, which is an exception to the normal rules for the determination of baselines ... must be applied restrictively”.³⁶ The Court concluded that Bahrain was not entitled to apply the method of straight baseline. The Court stated:

The Court does not deny that the maritime features east of Bahrain’s main islands are part of the overall geographical-configuration; it would be going too far, however, to qualify them as a fringe of islands along the coast. The islands concerned are relatively small in number. ... [I]t is only possible to speak of a “cluster of islands” or an “island system” if Bahrain’s main islands are included in that concept. In such a situation, the method of straight baselines is applicable only if the State has declared itself to be an archipelagic State under Part IV of the 1982 Convention on the Law of the Sea, which is not true of Bahrain in this case.³⁷

11.4.3 Delimitation of the Territorial Sea between States with Opposite or Adjacent Coasts

Where States have opposite or adjacent coasts, the territorial sea of these States is to be measured by drawing a median line unless they reach at an agreement to the contrary. According to Article 15 of the 1982 Convention, where the coasts of two States are opposite or adjacent to each other, then in absence of any agreement between them to the contrary, neither of the two States is entitled to extend its territorial sea beyond the median line every point of which is equidistant from the nearest points on the baselines from which the breadth of the territorial seas of each of the two States is measured. The above provision does not apply, however, where it is necessary by reason of historic title or other special circumstances to delimit the territorial seas of the two States in a way which is at variance therewith.³⁸

11.4.4 Rights of Coastal States in the Territorial Sea

The sovereignty of a coastal State extends, beyond its land territory and internal waters and in the case of an archipelagic State, its archipelagic waters, to an adjacent belt of sea, described as the territorial sea. This sovereignty extends to the air space over the territorial sea as well as to its bed and subsoil.³⁹

The sovereignty of the coastal States over their territorial sea is not absolute and to be exercised subject to the 1982 Convention and to “other rules of international law”.⁴⁰ The term “other rules of international law” presumably include both customary rules (eg concerning the treatment of aliens) and treaty obligations (eg concerning navigation at sea).⁴¹ These may also include mandatory resolutions of the UN Security Council.⁴²

34. Article 4, Geneva Convention on Territorial Waters and Contiguous Zone, 1958; Article 7, UN Convention on Law of the Sea, 1982.

35. *Maritime Delimitation and Territorial Questions Between Qatar and Bahrain*, (2001) ICJ Rep 40.

36. *Maritime Delimitation and Territorial Questions Between Qatar and Bahrain*, (2001) ICJ Rep 40, para 212.

37. *Maritime Delimitation and Territorial Questions Between Qatar and Bahrain*, (2001) ICJ Rep 40, paras 214, 215.

38. Article 12 of the Geneva Convention on Territorial Waters and Contiguous Zone, 1958 is also to the same effect.

39. Article 2, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

40. Article 2, UN Convention on Law of the Sea, 1982.

41. DJ Harris, *Cases and Materials on International Law*, 2004, p 386.

42. Magne Frostad, “United Nations Authorized Embargos and Maritime Interdiction: A Special Focus on Somalia” in *The Future of the Law of the Sea: Bridging Gaps Between National, Individual and Common Interests*, Gemma Andreone (Ed), 2017, p 218.

Earlier, the nature of rights of a State over its territorial waters was viewed in various ways. According to some, it was an actual ownership (*dominium*) because it implied in certain cases an exclusive enjoyment, very characteristic of ownership, especially in the matter of fishing and pilotage; other treated it as a right of limited sovereignty conferring only a right of jurisdiction on the littoral State.⁴³ The claim of absolute sovereignty was first advanced by Bartolus and later strongly supported by Gentilis in the latter part of the 16th century; by whom it was stated to form “part of the law of nations; coastal waters are part of the territory of the State whose shores they wash. It follows that the territorial rights of sovereignty which exist in the Head of a State are extended *in toto* over the sea adjacent to his coasts”.⁴⁴ But Professor A De la Pradelle expressed his opinion that the littoral State was neither the owner nor the sovereign of territorial waters, but it merely possessed “a bundle of servitudes” over them.⁴⁵

The Geneva Convention on Territorial Waters and Contiguous Zone, 1958 made it clear that the “sovereignty is exercised subject to the provisions of these articles and to other rules of international law”.⁴⁶ A similar position is maintained under the UN Convention on Law of the Sea, 1982. Thus, a sovereignty exercised under such conditions cannot be held to be absolute or exclusive as the term “sovereignty” would require.

On the basis of Articles 2, 19, 21 of 1982 Convention and Article 1 of Convention (XIII) concerning the Rights and Duties of Neutral Powers in Naval War of 1907, the following rights are available to the coastal States due to its sovereignty:

- (i) Coastal States have an exclusive right to fish and to exploit the resources of the seabed and subsoil;
- (ii) They have exclusive enjoyment of the air space above the territorial sea area as foreign aircraft does not enjoy the same rights of innocent passage as foreign vessels do;
- (iii) A coastal State has an exclusive right to transport goods and passengers from one part of its territory to another part;
- (iv) During times of war when a coastal State is neutral, belligerent States are not allowed to engage in combat, or capture merchant vessels, within the coastal State’s territorial sea;
- (v) Foreign vessels must obey regulations concerning navigation, health, customs duties and immigration that are enacted by a coastal State.⁴⁷

11.4.5 Right of Other States of Innocent Passage

By the beginning of the 19th century, it was emphasised that sea constituting the great highway for commerce and communications should remain unrestricted. At the same time, it was also felt that a small part of adjacent sea deemed essential for security should be recognised under the dominion of coastal States.⁴⁸ The right of innocent passage therefore was “the result of an attempt to reconcile the freedom of ocean navigation with the theory of territorial waters”.⁴⁹

43. Opinion of Raestad referred in C John Colombos, *The International Law of the Sea*, 1959, p 76.

44. Colombos, *The International Law of the Sea*, 1959, p 76.

45. Colombos, *The International Law of the Sea*, 1959, pp 76–77.

46. Article 1, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

47. Pirjo Kleemola-Juntunen, “The Right of Innocent Passage: The Challenge of the Proliferation Security Initiative and the Implications for the Territorial Waters of the Åland Islands” in *The Future of the Law of the Sea: Bridging Gaps Between National, Individual and Common Interests*, Gemma Andreone (Ed), 2017, p 253.

48. RP Anand, *Studies in International Law and History: An Asian Perspective*, 2004, p 197.

49. Philip C Jessup, *The Law of Territorial Waters and Maritime Jurisdiction*, 1927, p 120.

According to 1982 Convention, the ships of all States, whether coastal or land-locked enjoy the right of innocent passage through the territorial sea. This right is subject to the provisions of 1982 Convention. The passage here means navigation through the territorial sea for the purpose of (i) traversing that sea without entering internal waters or calling at a roadstead or port facility outside internal waters; or (ii) proceeding to or from internal waters or a call at such roadstead or port facility.⁵⁰

The passage is to be continuous and expeditious. The passage however includes stopping and anchoring, but only in so far as the same are incidental to ordinary navigation or are rendered necessary by *force majeure* or distress or for the purpose of rendering assistance to persons, ships or aircraft in danger or distress.

11.4.5.1 Meaning of Innocent Passage

According to Article 19, a passage is to be considered as innocent so long as it is not prejudicial to the peace, good order or security of the coastal State. The passage is required to take place in conformity with the 1982 Convention and other rules of international law.

The passage of a foreign ship is not to be considered as innocent and shall amount to be prejudicial to the peace, good order or security of the coastal State if in the territorial sea it engages in any of the following activities:

- (i) any threat or use of force against the sovereignty, territorial integrity or political independence of coastal State, or in any other manner in violation of the principles of international law embodied in the Charter of the United Nations;
- (ii) any exercise or practice with weapons of any kind;
- (iii) any act aimed at collecting information to the prejudice of the defence or security of the coastal State;
- (iv) any act of propaganda aimed at affecting the defence or security of the coastal State;
- (v) the launching, landing or taking on board of any aircraft;
- (vi) the launching, landing or taking on board of any military device;
- (vii) the loading or unloading of any commodity, currency or person contrary to the customs, fiscal, immigration or sanitary laws and regulations of the coastal States;
- (viii) any act of wilful and serious pollution contrary to the 1982 Convention;
- (ix) any fishing activities;
- (x) the carrying out of research or survey activities;
- (xi) any act aimed at interfering with any systems of communication or any other facilities or installations of the coastal State;
- (xii) any other activity not having a direct bearing on passage.

Article 20 makes it mandatory for the submarines and other underwater vehicles to navigate on the surface of the water and to show their flag when they pass through the territorial sea of a State.

The right of innocent passage is also available to States in the internal waters of a coastal State where that “internal waters” has become so only after adopting the straight baselines in accordance with Article 7 of the 1982 Convention and previously had not been considered as its internal waters.⁵¹

50. Article 18(1), UN Convention on Law of the Sea, 1982; see also Article 14, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

51. Article 8(2), UN Convention on Law of the Sea, 1982.

The coastal State may adopt laws and regulations relating to innocent passage through the territorial sea. These laws should be in conformity with the provisions of the 1982 Convention and other rules of international law. The laws may be adopted in respect of — (i) the safety of navigation and the regulation of maritime traffic; (ii) the protection of navigational aids and facilities and other facilities or installations; (iii) the protection of cables and pipelines; (iv) the conservation of the living resources of the sea; (v) the prevention of infringement of the fisheries laws and regulations of the coastal State; (vi) the preservation of the environment of the coastal State and the prevention, reduction and control of pollution thereof; (vii) marine scientific research and hydrographic surveys; (viii) the prevention of infringement of the customs, fiscal, immigration or sanitary laws and regulations of the coastal State.

Foreign ships exercising the right of innocent passage through the territorial sea are required to comply with all such laws and regulations and all generally accepted international regulations relating to the prevention of collisions at sea.⁵²

Article 22 enables the coastal State, where necessary having regard to the safety of navigation, to require foreign ships exercising the right of innocent passage through its territorial sea to use such sea lanes and traffic separation schemes as it may designate or prescribe for the regulation of the passage of ships. In particular, tankers, nuclear-powered ships and ships carrying nuclear or other inherently dangerous or noxious substances or materials may be required to confine their passage to such sea lanes.

Duties have been prescribed by Article 24 for the coastal States. The coastal State is not to hamper the innocent passage of foreign ships through the territorial sea except in accordance with the Convention. In particular, the coastal State is not to impose requirements on foreign ships which have the practical effect of denying or impairing the right of innocent passage. Further, it is not to discriminate in form or in fact against the ships of any State or against ships carrying cargoes to, from or on behalf of any State.

The coastal State is also under an obligation to give appropriate publicity to any danger to navigation within its territorial sea, of which it has knowledge.

11.4.5.2 Transit Passage

Transit passage is a specialised version of innocent passage, which goes through one of the many straits that may fall within the territorial jurisdiction of one or two States. Freedom of passage or navigation through straits, or those natural narrow passages that join two parts of the high seas was considered as a necessary concomitant of the freedom of the seas. Geographically defined as a narrow passage or sea channel “connecting two larger bodies of water”, the term “strait” is used for waterways ranging in breadth from 800 yards to over 150 miles. A relatively narrow waterway lying between areas of land, a strait may be a channel between continents, a continent and an island, or two islands, connecting two oceans, two adjoining parts of the same ocean, two by-oceans or an ocean and a by-ocean.⁵³ Thus, a strait can exist between an island and coast of a single State, as in the case of the Corfu Channel in the Adriatic Sea formed by an island off the coast of Albania, or between two States such as the Malaccan Straits lying between Malaysia and Indonesia. There are more than 200 waterways all over the world.

If a strait is wide enough, and the territorial sea claims of the riparian States leave a navigable channel of high seas in the strait, there is normally speaking no problem of navigation for the vessels of other States. However, if the territorial sea claims of the riparian States cover the whole breadth of a strait so that it becomes territorial waters, or the only navigable channel in the strait lies through the territorial sea, problems do arise as to the nature of the right

52. Article 21, UN Convention on Law of the Sea, 1982.

53. RP Anand, *Studies in International Law and History: An Asian Perspective*, 2004, pp 207–08.

of passage of the vessels of other States. Since many of the straits are of critical importance for international communication, and some of them are virtually indispensable for ocean transport in the sense that no other route is physically or economically possible, it is generally accepted that straits should be free for navigation and access to them should not be prohibited without specific justifiable cause. The general belief is that ships and aircrafts of all kinds enjoy the freedom of transit passage.⁵⁴

On 22 October 1946, two United Kingdom destroyers were severely damaged and many sailors died after the ships struck sea mines while steaming through the Corfu Channel. The channel is between Albania and Corfu Island and is within Albania's territorial waters. The mines that damaged the UK destroyers were placed in the channel by Albania. Albania acknowledged the existence of the strait, but denied that it was an international waterway and asserted that foreign warships required prior authorisation to use the strait. It further contended that the passage by British warships through the strait was a violation of Albanian sovereignty for which the United Kingdom was responsible.

The International Court of Justice held that Albania was responsible for the damage caused by the mines to the British warships on the basis of the "general and well-recognized principle" of "every State's obligation not to allow knowingly its territory to be used for acts contrary to the rights of other States".⁵⁵ The Court further stated:

It is in the opinion of the Court, generally recognized and in accordance with international custom, that States in times of peace have right to send their warships through straits used for international navigation between two parts of the high seas without the previous authorisation of a coastal State, provided the passage is innocent. Unless otherwise prescribed in an international convention, there is no right for a coastal State to prohibit such passage through straits in time of peace.⁵⁶

The Court further stated that in view of exceptional circumstances (Greece considered itself technically at war with Albania), Albania would have been justified in issuing regulations in respect of the passage of warships through the strait, but not in prohibiting such passage or in subjecting it to the requirement of special authorisation.⁵⁷

While referring to "transit passage", Michael Reisman commented that "transit passage is a neologism; it lies somewhere between "freedom of navigation" on the one hand, and "innocent passage" on the other, it is a compromise, a concession or a second-best solution".⁵⁸

According to Article 38 of the 1982 Convention, in straits which are used for international navigation between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone, all ships and aircraft enjoy the right of transit passage, which shall not be impeded.

However, if the strait is formed by an island of a State bordering the strait and its mainland, transit passage shall not apply if there exists seaward of the island a route through the high seas or through an exclusive economic zone of similar convenience with respect to navigational and hydrographical characteristics.

Transit passage means the exercise of the freedom of navigation and overflight solely for the purpose of continuous and expeditious transit of the strait between one part of the high seas or an exclusive economic zone and another part of the high seas or an exclusive economic zone.

54. Conway W Henderson, *Understanding International Law*, 2010, pp 120–21.

55. *Corfu Channel case (Great Britain v Albania)*, (1949) ICJ Rep 4, pp 22–23.

56. *Corfu Channel case (Great Britain v Albania)*, (1949) ICJ Rep 4, p 28.

57. *Corfu Channel case (Great Britain v Albania)*, (1949) ICJ Rep 4, p 29.

58. Michael Reisman, "The Regime of Straits and National Security: An Appraisal of International Law Making", 74, *American Journal of International Law*, 1980, p 48.

While exercising the right of transit passage, ships and aircrafts are duty bound under Article 39 to proceed without delay through or over the strait; refrain from any threat or use of force against the sovereignty, territorial integrity or political independence of States bordering the strait, or in any other manner in violation of the principles of international law embodied in the Charter of the United Nations; refrain from any activities other than those incident to their normal modes of continuous and expeditious transit unless rendered necessary by *force majeure* or by distress; and comply with other relevant provisions of Part III of the Convention.

States bordering straits shall not hamper transit passage and shall give appropriate publicity to any danger to navigation or over flight within or over the strait of which they have knowledge. There shall be no suspension of transit passage.⁵⁹

11.4.5.3 *Right of innocent passage of warships*

It has always been very controversial as to whether warships have right of innocent passage or not? According to Jessup:

As to warships, the sound rule seems to be that they should not enjoy an absolute right to pass through a State's territorial waters. As Mr. Root has said; warships may not pass without consent into this zone, because they threaten, merchant ships may pass and repass because they do not threaten.⁶⁰

The Geneva Convention on territorial waters and Contiguous Zone, 1958 contains no provision on the subject of passage of warships through the territorial sea. However, Articles 21 and 22 specifically declare that government ships, whether operated for commercial or non-commercial purposes, enjoy the right of innocent passage defined under Articles 15–17. But there is no clear provision on warships with respect to their right of innocent passage. Sorensen pointed out that the majority of delegations did not want warships to have the same rights as other ships.⁶¹

A large number of States required authorisation and a majority of them required at least prior notification for transit of warships.⁶² At least 43 States (several of them developed States of Europe) have imposed such a condition for notification by warships, and many of them require clear permission, before the warships can exercise their rights of innocent passage through territorial waters. Besides, some States imposed some restrictions on passage of ships carrying nuclear weapons or other dangerous cargo.⁶³

“Warship” is defined in Article 29 of the 1982 Convention to mean “a ship belonging to the armed forces of a State bearing the external marks distinguishing such ships of its nationality, under the command of an officer duly commissioned by the government of the State and whose name appears in the appropriate service list or its equivalent, and manned by a crew which is under regular armed forces discipline”.

If any warship does not comply with the laws and regulations of the coastal State concerning passage through the territorial sea and disregards any request for compliance therewith which is made to it, the coastal State may require it to leave the territorial sea immediately.⁶⁴

11.4.6 **Criminal Jurisdiction of Coastal State**

The criminal jurisdiction of the coastal State “should not” be exercised on board a foreign ship passing through the territorial sea to arrest any person or to conduct any investigation in

59. Article 44, UN Convention on Law of the Sea, 1982.

60. Philip C Jessup, *The Law of Territorial Waters and Maritime Jurisdiction*, 1927, p 120.

61. Max Sorensen, “Law of the Sea”, 520 *International Conciliation*, 1958, p 235.

62. DPO'Connell, *The International Law of the Sea*, I A Sharer (Ed), 1984, p 290.

63. RP Anand, *Studies in International Law and History: An Asian Perspective*, 2004, p 205.

64. Article 30, UN Convention on Law of the Sea, 1982.

connection with any crime committed on board the ship during its passage. However, criminal jurisdiction may be exercised in the following cases:

- (i) if the consequences of the crime extend to the coastal State;
- (ii) if the crime is of a kind to disturb the peace of the country or the good order of the territorial sea;
- (iii) if the assistance of the local authorities has been requested by the master of the ship or by a diplomatic agent or consular officer of the flag State; or
- (iv) if such measures are necessary for the suppression of illicit traffic in narcotic drugs or psychotropic substances.

The coastal State may take any steps authorised by its laws for the purpose of an arrest or investigation on board a foreign ship passing through the territorial sea after leaving internal waters.⁶⁵

It is noteworthy that in Article 27, as opposed to the expression “shall not”, the expression “should not” has been used.

11.5 Contiguous Zone

Contiguous zone is contiguous to territorial sea. India played a significant role in the continuance of the concept of the contiguous zone despite the emergence of the concept of the exclusive economic zone (EEZ). India however wanted contiguous zone to be extended up to 30 nautical miles from the baseline, but it did not find support from other States.⁶⁶ The 1982 Convention States that contiguous zone may not extend beyond 24 nautical miles from the baselines from which the breadth of the territorial sea is measured. In contiguous zone, the coastal State may exercise the control necessary to:

- (i) prevent infringement of its customs, fiscal, immigration or sanitary laws and regulations within its territory or territorial sea; and
- (ii) punish infringement of the above laws and regulations committed within its territory or territorial sea.⁶⁷

A coastal State thus, can exercise its jurisdiction up to 24 nautical miles. In this area, States can police all manner of smuggling, such as trafficking in drugs.

11.6 Exclusive Economic Zone

The exclusive economic zone (EEZ) is an area beyond and adjacent to the territorial sea which may extend up to 200 nautical miles from the baselines from which the breadth of the territorial sea is measured. The EEZ was not available to the coastal States under the Geneva Conventions of 1958. The EEZ can be called a zone *sui generis*, since it does not fit either with the territorial sea, or high seas, or contiguous zone. This term was often used to characterize fishing zones in contrast to the usual contiguous zones.⁶⁸

65. Article 27, UN Convention on Law of the Sea, 1982; Article 19, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

66. OP Sharma, “India and the United Nations Convention on the Law of the Sea”, 26 *Ocean Development & International Law*, 1995, pp 391–412 at p 396.

67. Article 33, UN Convention on Law of the Sea, 1982; Article 24, Geneva Convention on Territorial Waters and Contiguous Zone, 1958.

68. Shah Alam, “The Problem of the Legal Status of the Exclusive Economic Zone”, 24 *Indian Journal of International Law*, 1984, pp 468–488 at p 477.

11.6.1 Rights and Duties of Coastal State in EEZ

In the exclusive economic zone, the coastal State has the sovereign rights⁶⁹ for the purpose of exploring and exploiting, conserving and managing the natural resources, whether living or non-living, of the waters superjacent to the seabed and of the seabed and its subsoil. Further, it also has the sovereign rights with regard to other activities for the economic exploitation and exploration of the zone, such as the production of energy from the water, currents and winds.

The coastal State has jurisdiction with regard to — (i) the establishment and use of artificial islands, installations and structures; (ii) marine scientific research; (iii) the protection and preservation of the marine environment. In addition, the coastal State has other rights and duties provided for in the 1982 Convention.

In exercising its rights and performing its duties under this Convention in the exclusive economic zone, the coastal State is under an obligation to have due regard to the rights and duties of other States and it shall act in a manner compatible with the provisions of the 1982 Convention. The rights set out with respect to the seabed and subsoil are to be exercised in accordance with Part VI (Continental Shelf).⁷⁰

In the exclusive economic zone, the coastal State shall have the exclusive right to construct and to authorise and regulate the construction, operation and use of — (i) artificial islands; (ii) installations and structures for the economic purposes; and (iii) installations and structures which may interfere with the exercise of the rights of the coastal State in the zone.

The coastal State is to enjoy exclusive jurisdiction over such artificial islands, installations and structures, including jurisdiction with regard to customs, fiscal, health, safety and immigration laws and regulations.

Due notice must be given of the construction of such artificial islands, installations or structures, and permanent means for giving warning of their presence must be maintained. Any installations or structures which are abandoned or disused shall be removed to ensure safety of navigation.

The coastal State may, where necessary, establish reasonable safety zones around such artificial islands, installations and structures in which it may take appropriate measures to ensure the safety both of navigation and of the artificial islands, installations and structures. The breadth of the safety zones shall not exceed a distance of 500 metres around them and due notice shall be given of the extent of safety zones. All ships are duty bound to respect these safety zones and shall comply with generally accepted international standards regarding navigation in the vicinity of artificial islands, installations, structures and safety zones.

Artificial islands, installations and structures do not possess the status of islands. They have no territorial sea of their own, and their presence does not affect the delimitation of the territorial sea, the exclusive economic zone or the continental shelf.⁷¹

11.6.2 Rights and Duties of Other States in the EEZ

In the exclusive economic zone, all States, whether coastal or land-locked, enjoy the freedoms of navigation and over flight and of the laying of submarine cables and pipelines, and other internationally lawful uses of the sea related to these freedoms, such as those associated with the operation of ships, aircraft and submarine cables and pipelines.

69. Sovereign rights are in essence exclusive rights. See Shah Alam, "The Problem of the Legal Status of the Exclusive Economic Zone", 24 *Indian Journal of International Law*, 1984, pp 468–88 at p 473.

70. Articles 55, 56, 57, UN Convention on Law of the Sea, 1982.

71. Article 60, UN Convention on Law of the Sea, 1982.

In exercising their rights and performing their duties under this Convention in the exclusive economic zone, States shall have due regard to the rights and duties of the coastal State and shall comply with the laws and regulations adopted by the coastal State in accordance with the provisions of the 1982 Convention and other rules of international law.⁷²

The coastal State shall determine the allowable catch of the living resources in its exclusive economic zone. The coastal State shall ensure through proper conservation and management measures that the maintenance of the living resources in the exclusive economic zone is not endangered by over-exploitation.

The coastal State shall promote the objective of optimum utilization of the living resources in the exclusive economic zone. The coastal State shall determine its capacity to harvest the living resources of the exclusive economic zone. Where the coastal State does not have the capacity to harvest the entire allowable catch, it shall, through agreements or other arrangements give other States access to the surplus of the allowable catch especially in relation to the developing States.⁷³

11.6.3 Rights of Land-Locked States

Under 1982 Convention, land-locked States have the right to participate, on an equitable basis, in the exploitation of an appropriate part of the surplus of the living resources of the exclusive economic zones of coastal States of the same sub-region or region, taking into account the relevant economic and geographical circumstances of all the States concerned. The terms and modalities of such participation shall be established by the States concerned through bilateral, sub-regional or regional agreements.⁷⁴

The geographically disadvantaged States shall also have a similar right. The “geographically disadvantaged States” means coastal States, including States bordering enclosed or semi-enclosed seas, whose geographical situation makes them dependent upon the exploitation of the living resources of the exclusive economic zones of other States in the sub-region or region for adequate supplies of fish for the nutritional purposes of their populations or parts thereof, and coastal States which can claim no exclusive economic zones of their own.⁷⁵

It is noteworthy that land-locked and geographically disadvantaged States may exercise the aforesaid rights only when the coastal States do not have the capacity to harvest the entire allowable catch and there is a surplus. Based on the available scientific evidence the allowable catch is determined so as to avoid the twin evils of over-exploitation and under exploitation in order to maintain biological reproduction of fish at levels of maximum sustainable yield. Such a conservation policy adoptable by the coastal State within its EEZ is to be matched with a proper utilisation and harvesting policy. The governing principle here within the limits of allowable catch as determined by the coastal State is the notion of optimum utilisation. At this stage, the coastal State determines its full harvesting capacity of the allowable catch.⁷⁶ Therefore, the right of land-locked and geographically disadvantaged States to participate in the exploitation of the surplus of the living resources of the exclusive economic zones of coastal States is not absolute but conditional.

Further, these rights will not be available to land-locked and geographically disadvantaged States in the situation where the economy of a coastal State is overwhelmingly dependent on the exploitation of the living resources of its exclusive economic zone.⁷⁷

72. Article 58, UN Convention on Law of the Sea, 1982.

73. Articles 61, 62, UN Convention on Law of the Sea, 1982.

74. Article 69, UN Convention on Law of the Sea, 1982.

75. Article 70, UN Convention on Law of the Sea, 1982.

76. S Rama Rao, “EEZ Concept Under the New Law of the Sea Convention: Basic Framework for Another Approach”, 24 *Indian Journal of International Law*, 1984, pp 102–15 at pp 106–07.

77. Article 71, UN Convention on Law of the Sea, 1982.

It is also important to note that these rights of the land-locked and geographically disadvantaged States cannot be transferred directly or indirectly to third States or their nationals by lease or licence, by establishing joint ventures or in any other manner which has the effect of such transfer unless otherwise agreed by the States concerned. They will however be free to obtain technical or financial assistance from third States or international organizations in order to facilitate the exercise of these rights.⁷⁸

11.6.4 Delimitation of the EEZ between States with Opposite or Adjacent Coasts

The delimitation of the exclusive economic zone between States with opposite or adjacent coasts is to be effected by agreement on the basis of international law, in order to achieve an equitable solution.

If no agreement can be reached within a reasonable period of time, the States concerned shall resort to the procedures provided for in Part XV. Pending agreement, the States concerned shall make every effort to enter into provisional arrangements of a practical nature. During this transitional period, they are obligated not to jeopardize or hamper the reaching of the final agreement. Such arrangements shall be without prejudice to the final delimitation.

Where there is an agreement in force between the States concerned, the delimitation of the exclusive economic zone shall be determined in accordance with the provisions of that agreement.⁷⁹

11.7 Continental Shelf

The claim to continental shelf was first advanced by President Truman in a proclamation issued on 28 September 1945, which declared that:

[H]aving concern for the urgency of conserving and prudently utilizing its natural resources, the government of the United States regards the natural resources of the subsoil and seabed of the continental shelf beneath the high seas but contiguous to the coasts of the United States as appertaining to the United States, subject to its jurisdiction and control. ... The character as high seas of the waters above the continental shelf and the right to their free and unimpeded navigation are in no way thus affected.⁸⁰

Subsequently, by a press release, the United States indicated that the outer limits of the claim extended only to the 100-fathom isobaths. Interestingly, the aforesaid proclamation did not meet any open opposition. Rather, several other States issued similar declarations as if they were waiting for a beginning to be made in this regard. By these declarations, the States extended their authority over submarine areas outside their territorial waters. However, there was no uniformity as to the kind of authority a claiming State sought to exercise or the extent of the area it wished to control. All claims were based upon the argument that since the continental shelf was merely a continuation of the land mass, it was only natural that the coastal States controlling the land mass should also control its extension.

11.7.1 Continental Shelf under Geneva Convention, 1958

The Geneva Convention on Continental Shelf which was adopted in 1958, came into force on 10 June 1964. Under Geneva Convention, the term continental shelf was used as referring to “the seabed and subsoil of the submarine areas adjacent to the coast but outside the area of

78. Article 72, UN Convention on Law of the Sea, 1982.

79. Article 74, UN Convention on Law of the Sea, 1982.

80. See Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, p 50.

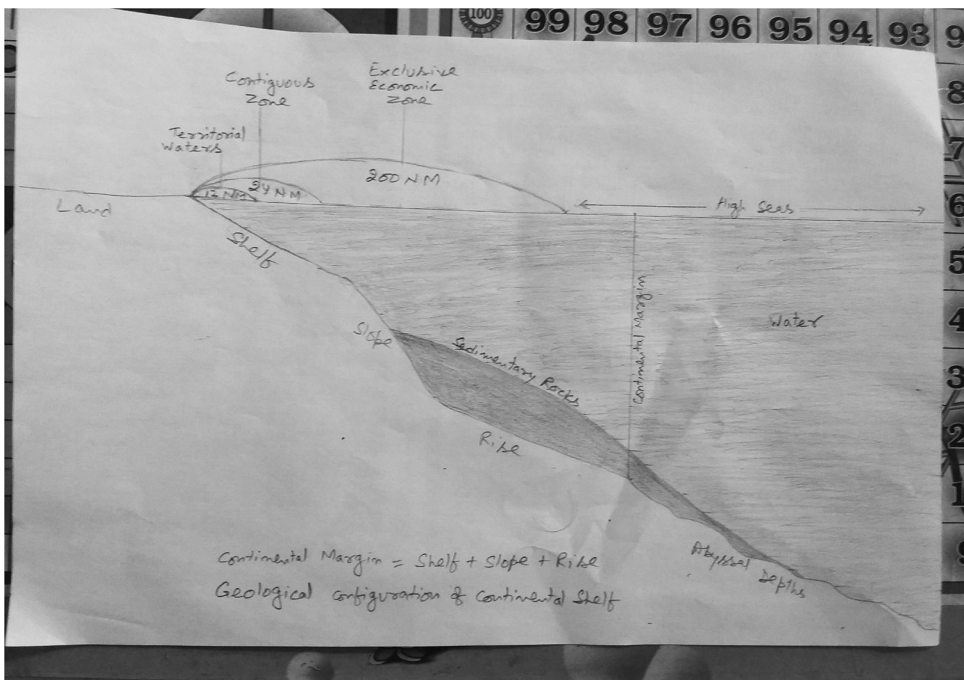
the territorial sea, to a depth of 200 meters or, beyond that limit, to where the depth of the superjacent waters admits of the exploitation of the natural resources of the said areas".⁸¹

The Geneva Convention, thus provided two tests for delimitation of continental shelf — (i) to a depth of 200 meters; or (ii) to the extent to which a State Party could exploit it. The crucial question concerning the exploitability criterion is to what extent does the definition of continental shelf permit the extension of the claims of coastal States towards the submarine areas of the high seas? The technological developments could make it possible to exploit natural resources at great depths. With the passage of time, it could have been possible that by applying the exploitability test the coastal States could claim all submarine areas.⁸² The exploitative test, therefore did not find much support as it was discriminatory in nature and was beneficial for the developed States.

11.7.2 Continental Shelf under UN Convention, 1982

The continental shelf of a coastal State comprises the seabed and subsoil of the submarine areas that extend beyond its territorial sea throughout the natural prolongation of its land territory to the outer edge of the continental margin. Where the outer edge of the continental margin is less than 200 nautical miles from the baseline, then continental shelf shall extend up to 200 nautical miles.

The continental margin comprises the submerged prolongation of the land mass of the coastal State, and consists of the seabed and subsoil of the shelf, the slope and the rise. It does not include the deep ocean floor with its oceanic ridges or the subsoil thereof.



81. Article 1, Geneva Convention on Continental Shelf, 1958.

82. For detail see Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, pp 82–83.

In UNCLOS III, the wide margin States such as India, Australia, New Zealand and United Kingdom were in favour of imposing minimum limitations on the extent of the continental shelf. There were opposition to the definition of the outer limit of the continental shelf as the continental margin from the coastal States with limited or no shelf areas, and the group of landlocked States. A compromise which eventually emerged on this question hinged on a revenue sharing regime in which a form of sea resource tax, paid by coastal States initially at the rate of one percent after the fifth year on the value or volume of an offshore non-living resource site, would be paid to the international seabed authority. Such payment would be distributed by the authority, with developing States and the landlocked States receiving the bulk of the revenue.⁸³

Wherever the continental margin extends beyond 200 nautical miles from the baselines from which the breadth of the territorial sea is measured, the coastal State shall establish the outer edge of the continental margin in accordance with any one of the following two rules:

- (i) by a line delineated in accordance with Article 76(7) by reference to the outermost fixed points at each of which the thickness of sedimentary rocks is at least 1% of the shortest distance from such point to the foot of the continental slope⁸⁴; or
- (ii) by a line delineated in accordance with Article 76(7) by reference to fixed points not more than 60 nautical miles from the foot of the continental slope.

The outer limits of the continental shelf on the seabed either shall not exceed 350 nautical miles from the baselines or 100 nautical miles from the 2,500 metre isobaths.

According to Article 76(7), the coastal State shall delineate the outer limits of its continental shelf, where that shelf extends beyond 200 nautical miles from the baselines from which the breadth of the territorial sea is measured, by straight lines not exceeding 60 nautical miles in length, connecting fixed points, defined by coordinates of latitude and longitude.

These provisions are without prejudice to the question of delimitation of the continental shelf between States with opposite or adjacent coasts.⁸⁵

11.7.3 Rights of the Coastal State over the Continental Shelf

According to Article 77, the coastal State exercises sovereign rights over the continental shelf for the purpose of exploring it and exploiting its natural resources. These rights are exclusive in the sense that if the coastal State does not explore the continental shelf or exploit its natural resources, no one may undertake these activities without the express consent of the coastal State. The rights of the coastal State over the continental shelf do not depend on occupation, effective or notional, or on any express proclamation. The natural resources consist of the mineral and other non-living resources of the seabed and subsoil.⁸⁶ In addition, it shall also consist of living organisms belonging to sedentary species, that is to say, organisms which, at the harvestable stage, either are immobile on or under the seabed or are unable to move except in constant physical contact with the seabed or the subsoil.⁸⁷

This provision is very important for developing and the least developed States which do not have the technology to exploit natural resources on their seabed and subsoil. No other State

83. Article 82, UN Convention on Law of the Sea, 1982. See also RP Barston, "The Law of the Sea: The Conference and After", 17 *Journal of World Trade Law*, 1983, pp 207–23 at p 211.

84. This was also called as Irish formula.

85. Article 76, UN Convention on Law of the Sea, 1982.

86. See also Enrique J Martínez Pérez, "The Environmental Legal Framework for the Development of Blue Energy in Europe" in *The Future of the Law of the Sea: Bridging Gaps Between National, Individual and Common Interests*, Gemma Andreone (Ed), (2017), p 130.

87. See also Article 2, Geneva Convention on Continental Shelf, 1958.

can exploit their natural resources without their prior permission. These States may either enter into some agreement with other States for the exploitation of their resources or wait till they become capable of exploiting their resources themselves. The natural resources also include those living organisms which belong to sedentary species which remain on the seabed and do not swim.

The coastal State shall have the exclusive right to authorise and regulate drilling on the continental shelf for all purposes. The coastal State has the right to exploit the subsoil by means of tunneling, irrespective of the depth of water above the subsoil.⁸⁸

As already discussed, where the continental shelf of a coastal State extends beyond 200 nautical miles, it has to make certain payments to the International Seabed Authority on annual basis with respect to exploitation of non-living resources beyond 200 nautical miles. Article 82 States that the coastal State shall make payments or contributions in kind in respect of the exploitation of the non-living resources of the continental shelf beyond 200 nautical miles from the baselines. The payments and contributions shall be made annually with respect to all production at a site after the first five years of production at that site. For the sixth year, the rate of payment or contribution shall be 1% of the value or volume of production at the site. The rate shall increase by 1% for each subsequent year until the twelfth year and shall remain at 7% thereafter. Production does not include resources used in connection with exploitation.

A developing State which is a net importer of a mineral resource produced from its continental shelf is exempt from making such payments or contributions in respect of that mineral resource. The payments or contributions shall be made through the Authority, which shall distribute them to States Parties to this Convention, on the basis of equitable sharing criteria, taking into account the interests and needs of developing States, particularly the least developed and the land-locked among them.

11.7.4 Rights of other States on the Continental Shelf of Coastal States

The rights of the coastal State over the continental shelf do not affect the legal status of the superjacent waters or of the air space above those waters. The exercise of the rights of the coastal State over the continental shelf must not infringe or result in any unjustifiable interference with navigation and other rights and freedoms of other States as provided for in the 1982 Convention.⁸⁹

The rights of other States of navigation and over flight remain unaffected in that area. Further, all States are entitled to lay submarine cables and pipelines on the continental shelf. The coastal State may not impede the laying or maintenance of such cables or pipelines, subject however to its right to take reasonable measures for the exploration of the continental shelf, the exploitation of its natural resources and the prevention, reduction and control of pollution from pipelines. Further, the delineation of the course for the laying of such pipelines on the continental shelf is subject to the consent of the coastal State.

The right of the coastal State remains unaffected with respect to setting of conditions for cables or pipelines entering its territory or territorial sea, or its jurisdiction over cables and pipelines constructed or used in connection with the exploration of its continental shelf or exploitation of its resources or the operations of artificial islands, installations and structures under its jurisdiction.

88. Articles 81, 85, UN Convention on Law of the Sea, 1982; Article 7, Geneva Convention on Continental Shelf, 1958.

89. Article 78, UN Convention on Law of the Sea, 1982; Articles 3, 5(1), Geneva Convention on Continental Shelf, 1958.

When laying submarine cables or pipelines, States are duty bound to have due regard to cables or pipelines already in position. The possibilities of repairing existing cables or pipelines shall not be prejudiced.⁹⁰

11.7.5 Delimitation of the Continental Shelf between States with Opposite or Adjacent Coasts

Article 6 of the Geneva Convention on Continental Shelf deals with the problems of delimitation of continental shelf of neighboring States where their coasts are adjacent or opposite to one another. Article 6(1) provides:

Where the same continental shelf is adjacent to the territories of two or more States whose coasts are opposite each other, the boundary of the continental shelf appertaining to such States shall be determined by agreement between them. In the absence of agreement, and unless another boundary line is justified by special circumstances, the boundary is the median line, every point of which is equidistant from the nearest points of the baselines from which the breadth of the territorial sea of each State is measured.

Where the same continental shelf is adjacent to the territories of two adjacent States, the boundary of the continental shelf shall be determined by agreement between them. In the absence of agreement, and unless another boundary line is justified by special circumstances, the boundary shall be determined by application of the principle of equidistance from the nearest points of the baseline from which the breadth of the territorial sea of each State is measured.⁹¹

Thus, Article 6 prescribes that in case of adjacent States and States with opposite coasts, delimitation disputes are to be settled by agreement between them. However, in absence of an agreement, unless special circumstances otherwise justify, boundaries are to be demarcated according to the principle of equidistance. The “special circumstances” referred in Article 6 have not been defined in the Convention. These special circumstances may include islands, especially those quite distant from their owner’s coast and nearer the coast of another country, mining and fishing rights, and navigational sea lanes, etc.⁹²

Article 6 imposes an obligation on States Parties to enter in negotiations to arrive at an agreement, failing which the delimitation is to be done in accordance with the principle of equidistance. In *North Sea Continental Shelf Cases*,⁹³ the International Court of Justice observed:

The parties are under an obligation to enter in negotiations with a view to arriving at an agreement and not merely to go through a formal process of negotiation as a sort of prior condition for the automatic application of a certain method of limitation in the absence of agreement; they are under an obligation so to conduct themselves that the negotiations are meaningful, which will not be the case when either of them insist upon its own position without contemplating any modification of it.⁹⁴

In this case, there were certain differences between Germany and Denmark on one hand and Germany and Netherlands on the other concerning “the delimitation as between the Parties of the areas of the continental shelf in the North Sea which appertain to each of them”. Since Germany did not ratify the Geneva Convention on Continental Shelf 1958, Article 6 was not applicable to it. Denmark and the Netherlands pleaded on the basis of customary status of

90. Article 79, UN Convention on Law of the Sea, 1982; Article 4, Geneva Convention on Continental Shelf, 1958.

91. Article 6(2), Geneva Convention on Continental Shelf, 1958.

92. See Juraj Andrassy, *International Law and the Resources of the Sea*, 1970, p 94.

93. *North Sea Continental Shelf Cases*, (1969) ICJ Rep 3.

94. *North Sea Continental Shelf Cases*, (1969) ICJ Rep 3, p 42.

Article 6, which was rejected by the Court. The Court stated that it was a conventional rule only. The Court, by 11 votes to 6, found that in each case:

- (A) the use of the equidistance method of delimitation not being obligatory as between the Parties; and
- (B) there being no other single method of delimitation the use of which is in all circumstances obligatory;
- (C) the principles and rules of international law applicable to the delimitation as between the Parties are as follows:
 - (1) delimitation is to be effected by agreement in accordance with equitable principles, and taking account of all the relevant circumstances, in such a way as to leave as much possible to each Parties all those parts of the continental shelf that constitute a natural prolongation of its land territory into and under the sea, without encroachment on the natural prolongation of the land territory of the other;
 - (2) if, in the application of the preceding sub-paragraph, the delimitation leaves to the Parties areas that overlap, these are to be divided between them in agreed proportions or, failing agreement, equally, unless they decide on a regime of joint jurisdiction, user, or exploitation for the zones of overlap or any part of them;
- (D) in the course of negotiations, the factors to be taken into account are to include:
 - (1) the general configuration of the coasts of the Parties, as well as the presence of any special or unusual features;
 - (2) so far as known or readily ascertainable, the physical and geological structure, and natural resources, of the continental shelf areas involved;
 - (3) the element of a reasonable degree of proportionality, which a delimitation carried out in accordance with equitable principles ought to bring about between the extent of the continental shelf areas appertaining to the coastal States and the length of its coast measured in the general direction of the coastline, account being taken for this purpose of the effects, actual or prospective, of any other continental shelf delimitation between adjacent States in the same region.

In *Continental Shelf Case (Tunisia/Libyan Arab Jamahriya)*⁹⁵, both the parties were of the opinion that delimitation of continental shelf should be done in accordance with equitable principles and by taking account of all relevant circumstances. The Court stated that:

the equitableness of a principle must be assessed in the light of its usefulness for the purpose of arriving at an equitable result. It is not every such principle which is in itself equitable; it may acquire this quality by reference to equitableness of the solution. The principles to be indicated by the Court have to be selected according to their appropriateness for reaching an equitable result. ... the term "equitable principles" cannot be interpreted in the abstract; it refers back to the principles and rules which may be appropriate in order to achieve an equitable result.⁹⁶

In *Case Concerning the Continental Shelf (Libyan Arab Jamahiriya/Malta)*⁹⁷, the International Court of Justice held that "the delimitation is to be effected in accordance with equitable principles and taking account of all relevant circumstances, so as to arrive at an equitable

95. *Continental Shelf Case (Tunisia/Libyan Arab Jamahriya)*, (1982) ICJ Rep 17.

96. *Continental Shelf Case (Tunisia/Libyan Arab Jamahriya)*, (1982) ICJ Rep 17, para 70.

97. *Case Concerning the Continental Shelf (Libyan Arab Jamahiriya/Malta)*, (1985) ICJ Rep 13.

result". The Court further held that the circumstances and factors to be taken into account in achieving an equitable delimitation were the following:

- (1) the general configuration of the coasts of the Parties, their oppositeness, and their relationship to each other within the general geographical context;
- (2) the disparity in the lengths of the relevant coasts of the Parties, and the distance between them;
- (3) the need to avoid in the delimitation any excessive disproportion between the extent of the continental shelf areas appertaining to the coastal State and the length of the relevant part of its coasts, measured in the general direction of the coastlines.

The Court, thus not only emphasised on achieving equitable result but also stated that the delimitation is to be done in accordance with equitable principles.

On the delimitation of the continental shelf between States with opposite or adjacent coasts, Article 83(1) of the 1982 Convention provides as follows:

The delimitation of the continental shelf between States with opposite or adjacent coasts shall be effected by agreement on the basis of international law, as referred to in Article 38 of the Statute of the International Court of Justice, in order to achieve an equitable solution.

The 1982 Convention, therefore, sets a goal to be achieved, but is silent as to the method to be followed to achieve it. It restricts itself to setting a standard, and it is left to States themselves, or to the courts, to endow this standard with specific content.⁹⁸

According to Convention, where there is an agreement in force between the States with Opposite or Adjacent Coasts, questions relating to the delimitation of the continental shelf shall be determined in accordance with the provisions of that agreement.

In absence of an agreement, the delimitation of the continental shelf between States with opposite or adjacent coasts shall be effected by agreement on the basis of international law in order to achieve an equitable solution. If no agreement can be reached within a reasonable period of time, the States concerned shall resort to the procedures provided for in Part XV.

During the pendency of agreement, the States concerned, in a spirit of understanding and cooperation, shall make every effort to enter into provisional arrangements of a practical nature. During this transitional period, they will not jeopardise or hamper the reaching of the final agreement. Such arrangements shall be without prejudice to the final delimitation.⁹⁹

11.7.6 Indian Position

India occupies a central position in the Indian Ocean. It has a long coastline of over 6400 kilometres. It has over 1280 islands and islets, about half of which constitute the archipelagos of Andaman and Nicobar on the one hand and Lakshadweep on the other.¹⁰⁰

India claimed a territorial sea of three nautical miles after attaining the independence. Four presidential notifications were issued between August 1955 and December 1956, claiming the continental shelf without specifying any depth or distance, a territorial sea of six nautical miles, a fisheries conservation zone of 100 nautical miles, and a contiguous zone of 12 nautical miles. India extended its territorial waters to 12 nautical miles on 30 September 1967.¹⁰¹

98. *Case Concerning the Continental Shelf (Libyan Arab Jamahiriya/Malta)*, (1985) ICJ Rep 13, para 28.

99. Article 83, UN Convention on Law of the Sea, 1982.

100. O P Sharma, "India and the United Nations Convention on the Law of the Sea", 26 *Ocean Development and International Law*, 1995, pp 391–412 at p 393.

101. O P Sharma, "India and the United Nations Convention on the Law of the Sea", 26 *Ocean Development and International Law*, 1995, p 392.

11.8 High Seas

The high seas is *res communis* and open to all States for unimpeded navigation, fishing, over-flight by aircraft, and the laying of cables and pipelines. The size of the high seas is reduced significantly due to several zones claimed by States. Article 87 of the 1982 Convention States that the high seas are open to all States, whether coastal or land-locked. Freedom of the high seas is exercised subject to the conditions laid down by the Convention and other rules of international law. The freedom comprises of:

- (i) freedom of navigation;
- (ii) freedom of over flight;
- (iii) freedom to lay submarine cables and pipelines;
- (iv) freedom to construct artificial islands and other installations permitted under international law;
- (v) freedom of fishing;
- (vi) freedom of scientific research.

The high seas shall be reserved for peaceful purposes. No State can claim sovereignty on any part of the high seas. Every State, whether coastal or land-locked, has the right to sail ships flying its flag on the high seas.¹⁰² Article 92 makes it mandatory for the ships to sail under the flag of one State only. The ship shall be subject to the exclusive jurisdiction of the flag State on the high seas. In *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*¹⁰³, two Italian marines on board *Enrica Lexie* killed two Indian fishermen on board *St. Antony*. The Arbitral Tribunal stated that both India and Italy had exclusive jurisdiction on their ships, i.e. on *St. Antony* and *Enrica Lexie* respectively. They had “concurrent jurisdiction over the incident”. The Tribunal also stated that in accordance with a well settled principle of international law, i.e. the “principle of objective territoriality”, a State is empowered to assert its jurisdiction with respect to those offences which were committed outside its territory but “consummated within its territory”.¹⁰⁴ The tribunal also referred to *Lotus Case* in which it was stated that a State was empowered to exercise jurisdiction “if one of the constituent elements of the offence, and more especially its effects, have taken place [in its territory]”.¹⁰⁵

The tribunal stated that the killing of two Indian fishermen by Italian marines brought effects on India being the flag State of the ship *St. Antony*. However, the tribunal also stated that India’s criminal jurisdiction was precluded because the Italian marines enjoy immunity under customary international law as the UNCLOS is silent on that issue. Citing customary international law, the tribunal stated that State officials were given immunity from foreign criminal jurisdiction with respect to their official activities.¹⁰⁶

The transport of slaves on high seas is to be prevented and punished. Any slave taking refuge on board any ship, whatever its flag, shall *ipso facto* be free.¹⁰⁷

102. Articles 88–90, UN Convention on Law of the Sea, 1982.

103. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28.

104. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28, paras 839–40.

105. *SS “Lotus” (France v Turkey)*, Judgment of 7 September 1927, PCIJ Series A, No. 10, p 23.

106. *Enrica Lexie Case*, para 843.

107. Article 99, UN Convention on Law of the Sea, 1982.

11.8.1 Jurisdiction

Warships on the high seas have complete immunity from the jurisdiction of any State other than the flag State. Ships owned or operated by a State and used only on government non-commercial service shall, on the high seas, have complete immunity from the jurisdiction of any State other than the flag State.¹⁰⁸

Article 97 provides that in the event of a collision or any other incident of navigation concerning a ship on the high seas, involving the penal or disciplinary responsibility of the master or of any other person in the service of the ship, no penal or disciplinary proceedings may be instituted against such person except before the judicial or administrative authorities either of the flag State or of the State of which such person is a national. No arrest or detention of the ship, even as a measure of investigation, shall be ordered by any authorities other than those of the flag State.

Article 97 can be invoked only in *incident of navigation*. In *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*¹⁰⁹, two Indian fishermen were killed by two Italian marines in the contiguous zone of India. The Arbitral Tribunal observed that in order to be a part of an “incident of navigation” as provided in Article 97, the incident must have caused by “the movement or manoeuvring” of both the ships.¹¹⁰ Since the killing by Italian marines on board Italian ship of Indian fishermen on board Indian ship was not to be called as *incident of navigation*, therefore in view of Arbitral Tribunal, Article 97 was not applicable.¹¹¹ The tribunal has appropriately explained the scope of Article 97 and rightly made it inapplicable in that case. Article 97 can be invoked only in *incident of navigation*, such as collision between the two ships, etc. The killing by marines on board a ship of persons on board another ship is not to be called as *incident of navigation*.

The genesis of Article 97 can be found to the *Lotus Case* decided by Permanent Court of International Justice (PCIJ). In the *Lotus Case*, there was a collision between *Lotus* (French ship) and *Boz-Kourt* (Turkish ship) on the high seas. As a consequence, eight people aboard the *Boz-Kourt* died and there was severe damage to the ship as it was broken down into two pieces and sank. When the *Lotus* arrived at Constantinople, criminal proceedings were initiated against the captain of *Lotus* and he was sentenced to imprisonment. The France moved to PCIJ which held that prosecution of French Captain by Turkey was in accordance with international law as the collision brought effect on Turkey and Turkey could exercise criminal jurisdiction on French captain. According to PCIJ, the jurisdiction lay both with France and Turkey in that case. The *Lotus* judgment was criticised widely.

The *Lotus* judgment was reversed in the Geneva Convention on high seas, 1958¹¹² and in Article 97 of the UNCLOS. The *Lotus* judgment was reversed with “the object of protecting ships and their crews from the risk of penal proceedings before foreign courts in the event of collision on the high seas, since such proceedings may constitute an intolerable interference with international navigation”.¹¹³

108. Articles 95–96, UN Convention on Law of the Sea, 1982.

109. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28.

110. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28, para 655.

111. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28, para 656.

112. Article 11, Geneva Convention on high seas, 1958.

113. ILC, “Articles Concerning the Law of the Sea with Commentaries” in vol 2 *Yearbook of the International Law Commission*, 1956, p 265, at p 281.

11.8.2 Duty to Render Assistance

Article 98 is closely connected with the principle of safety of life at sea. According to Article 98, every State shall require the master of a ship flying its flag — (a) to render assistance to any person found at sea in danger of being lost; (b) to proceed with all possible speed to the rescue of persons in distress; and (c) after a collision, to render assistance to the other ship, its crew and its passengers. Due to the repetition of this provision in treaty and domestic law and in State practice, the duty to render assistance is generally recognized as a principle of customary law binding on all States.¹¹⁴

11.8.3 Piracy

Piracy is a crime under municipal laws of the States as well as under international law. Piracy is committed on the high seas. Pirates are enemies of the mankind and are liable to be punished wherever found. Pirates have placed themselves outside the protection of their national State. According to Article 100, all States are obliged to cooperate to the fullest possible extent in the repression of piracy on the high seas or in any other place outside the jurisdiction of any State.

Piracy consists of any of the following acts:

- (a) any illegal acts of violence or detention, or any act of depredation, committed for private ends by the crew or the passengers of a private ship or a private aircraft, and directed: (i) on the high seas, against another ship or aircraft, or against persons or property on board such ship or aircraft; or (ii) against a ship, aircraft, persons or property in a place outside the jurisdiction of any State;
- (b) any act of voluntary participation in the operation of a ship or of an aircraft with knowledge of facts making it a pirate ship or aircraft;
- (c) any act of inciting or of intentionally facilitating an aforesaid act.¹¹⁵

In *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*¹¹⁶, the Arbitral Tribunal made important observations with respect to Article 100. The tribunal stated that for the repression of piracy, Article 100 “does not stipulate the forms or modalities of cooperation” which the States are obligated to undertake. It further stated that the duty to cooperate “does not necessarily imply a duty to capture and prosecute pirates”. It is suffice if the States include certain mechanism in their national legislations which may provide for “mutual assistance in criminal matters, extradition and transfer of suspected, detained and convicted pirates”; or conclude “bilateral and multilateral agreements or arrangements in order to facilitate such cooperation”.¹¹⁷

The States exercise universal jurisdiction on pirates under customary law as well as conventional law, i.e. Geneva Convention on High Sea, 1958 and United Nations Convention on Law of the Sea, 1982.

Article 105 of the 1982 Convention States that on the high seas, or in any other place outside the jurisdiction of any State, every State may seize a pirate ship or aircraft, or a ship or aircraft taken by piracy and under the control of pirates, and arrest the persons and seize

114. Giorgia Bevilacqua, “Exploring the Ambiguity of Operation Sophia Between Military and Search and Rescue Activities” in *The Future of the Law of the Sea: Bridging Gaps Between National, Individual and Common Interests*, Gemma Andreone (Ed), 2017, pp 179–80.

115. Article 101, UN Convention on Law of the Sea, 1982.

116. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28.

117. *Enrica Lexie Case (The Italian Republic v The Republic of India concerning the Enrica Lexie Incident)*, PCA Award of 21 May 2020, PCA Case No. 2015-28, paras 722–23.

the property on board. The courts of the State which carried out the seizure may decide upon the penalties to be imposed, and may also determine the action to be taken with regard to the ships, aircraft or property, subject to the rights of third parties acting in good faith.

In *The Le Louis*,¹¹⁸ Lord Stowell Stated that “with professed pirates there is no state of peace. They are the enemies of every country and at all times, and therefore are universally subject to the extreme rights of war”.¹¹⁹ Moore J stated in the *Lotus Case*:

Piracy by law of nations, in its jurisdictional aspects, is *sui generis*. Though statutes may provide for its punishment, it is an offence against the law of nations; and as the scene of the pirates's operations in the high seas, which it is not the right or duty of any nation to police, he is denied the protection of the flag which he may carry, and is treated as an outlaw, as the enemy of mankind – *hostis humani generis* – whom any nation may in the interest of all capture and punish.¹²⁰

Ntovas writes that:

piracy ... poses a serious security threat to the use of commercial maritime routes and safety of international navigation in general for slow-moving cargo carriers and tankers, which serve more than 90 per cent of global trade. ... [P]iracy has posed an exceptional threat due to the strategic importance of the navigational routes along the coast of Somalia for regional and global seaborne trade... . In terms of human cost, since the first known hijacking in April 2005 until April 2013 as many as 3,741 crewmembers of 125 different nationalities had been captured by pirates based in Somalia alone. ... [T]he life of the crew was put at high risk owing to physical and psychological abuse.¹²¹

The UN Secretary General suggested the options of establishing an international or regional tribunal for piracy in his 2010 report.¹²² The international community, however did not go along with it. The absence of any international tribunal to punish the crime made it imperative that individual nations should do so, but for that purpose they found it necessary to invest their courts with jurisdiction and also to specify the offence. Piracy is an international crime and international law delegates jurisdiction over it to municipal authorities.¹²³

In order to commit the crime of piracy, is it necessary that pirates should have committed actual robbery? This question came up before Privy Council in *Re piracy jure gentium*. The Privy Council concluded that actual robbery was not an essential element of the crime of piracy under international law and that a frustrated attempt to commit piracy was equally *piracy jure gentium*.¹²⁴

In 1999, the Alondra Rainbow ship was attacked and seized off the coast of Indonesia. The Indian Navy chased the pirates and arrested them. Though India did not have any interest in the ship, it still prosecuted the pirates and punished them according to its national laws.

In *Republic of Korea v Araye*,¹²⁵ the Supreme Court of Republic of Korea (Daebeobwon) upheld the exercise of universal criminal jurisdiction over Somali pirates convicted of hijacking a Korean vessel in the Indian Ocean. The basis for the personal jurisdiction of Korean courts over the *Samho Jewelry* pirates can be found in both international and domestic law. The

118. *The Le Louis*, (1817) 2 Dods 210.

119. *The Le Louis*, (1817) 2 Dods 210, p 244.

120. *Lotus Case*, PCIJ, Ser A No. 10 (1927), p 70.

121. Ntovas, Alexandros XM “Contemporary Maritime Piracy as a Threat to International Peace and Security” in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright (Eds). *Security and International Law*, Oxford, 2016, 167–206, p 173.

122. See UN Doc S/2010/394 dated 26 July 2010.

123. DP O’Connell, *The International Law of the Sea*, vol 2, 1984, p 967.

124. *Re piracy jure gentium*, (1934) AC 586.

125. *Republic of Korea v Araye*, (S. Ct.) No. 2011 Do 12927.

international legal basis is provided by Article 105 of UNCLOS, Article 6 of the Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation (SUA Convention) of 1988,¹²⁶ and Article 5 of the International Convention against the Taking of Hostages.¹²⁷

The acts of piracy committed by a warship, government ship or government aircraft whose crew has mutinied and taken control of the ship or aircraft are assimilated to acts committed by a private ship or aircraft.¹²⁸

11.8.4 The Right of Hot Pursuit

A vessel may be pursued upon the high seas and seized there when it has committed a violation of the laws of a foreign State while within its territorial waters. This is known as the doctrine of “hot pursuit”. The reason for allowing this violation of the general rule of immunity of ships on the high seas appears to be that pursuit under these circumstances is a continuation of an act of jurisdiction which has begun, or which, but for the accident of escape, would have begun, within the territory itself, and that is necessary to permit in order to enable the jurisdiction to be efficiently exercised.¹²⁹

Article 111 of the 1982 Convention States that the hot pursuit of a foreign ship may be undertaken when the competent authorities of the coastal State have good reason to believe that the ship has violated the laws and regulations of that State. Such pursuit must be commenced when the foreign ship or one of its boats is within the internal waters, the archipelagic waters, the territorial sea or the contiguous zone of the pursuing State, and may only be continued outside the territorial sea or the contiguous zone if the pursuit has not been interrupted. It is not necessary that, at the time when the foreign ship within the territorial sea or the contiguous zone receives the order to stop, the ship giving the order should likewise be within the territorial sea or the contiguous zone. If the foreign ship is within a contiguous zone, the pursuit may only be undertaken if there has been a violation of the rights for the protection of which the zone was established.

The right of hot pursuit shall apply *mutatis mutandis* to violations of the laws and regulations of the coastal State in the exclusive economic zone or on the continental shelf, including safety zones around continental shelf installation.

Hot pursuit is not deemed to have begun unless the pursuing ship has satisfied itself by such practicable means as may be available that the ship pursued or one of its boats or other craft working as a team and using the ship pursued as a mother ship is within the limits of the territorial sea, or, as the case may be, within the contiguous zone or the exclusive economic zone or above the continental shelf. The pursuit may only be commenced after a visual or auditory signal to stop has been given at a distance which enables it to be seen or heard by the foreign ship.

The right of hot pursuit may be exercised only by warships or military aircraft, or other ships or aircraft clearly marked and identifiable as being on government service and authorized to that effect.

The right of hot pursuit ceases as soon as the ship pursued enters the territorial sea of its own State or of a third State.

126. 1678 UNTS 222, 10 March 1988.

127. TIAS No. 11081, 1316 UNTS 205 17 December 1979.

128. Article 102, UN Convention on Law of the Sea, 1982.

129. C John Colombos, *The International Law of the Sea*, 1959, pp 141–42.

Where a ship has been stopped or arrested outside the territorial sea in circumstances which do not justify the exercise of the right of hot pursuit, it shall be compensated for any loss or damage that may have been thereby sustained.

11.9 Sea Bed Mining

In 1970, a General Assembly declaration was adopted for applying the principle of “common heritage of mankind” to the wealth lying on the sea bed in the form of polymetallic nodules. The principle was later on incorporated in Part XI of the 1982 Convention.¹³⁰

Article 136 declares the seabed and ocean floor and subsoil thereof, beyond the limits of national jurisdiction (the “area”) and its resources as the common heritage of mankind. “Resources” means all solid, liquid or gaseous mineral resources *in situ* in the Area at or beneath the seabed, including polymetallic nodules.¹³¹

No State or natural or juridical person is to claim or exercise sovereignty or sovereign rights over any part of the Area or its resources. No such claim or exercise of sovereignty or sovereign rights shall be recognised. All rights in the resources of the Area are vested in mankind as a whole, on whose behalf the Authority shall act.¹³²

Activities in the Area are to be organised, carried out and controlled by the Authority on behalf of mankind as a whole. Activities in the Area shall be carried out by the Enterprise, and by States Parties, or their enterprises or natural or juridical persons in association with the Authority. Activities in the Area are to be carried out in accordance with a formal written plan of work drawn up in accordance with Annex III. In the case of activities in the Area carried out as authorised by the Authority by the entities, the plan of work shall be in the form of a contract which may provide for joint arrangements in accordance with Annex III, Article 11. The Authority shall exercise such control over activities in the Area as is necessary for the purpose of securing compliance with the relevant provisions.¹³³

11.9.1 1994 Agreement Relating to the Implementation of Part XI of the Convention

Part XI of the 1982 Convention was not acceptable to the developed States. They sought a more market-oriented regime with respect to sea bed mining. Therefore, they objected to mandatory technology transfer, production limitations from the seabed, onerous financial obligations on miners and the establishment of a subsidised international public enterprise that would compete unfairly with other commercial enterprises.

In 1994, Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea was adopted to address certain difficulties posed by the provisions of Part XI of the 1982 Convention. Article 2 establishes relationship between the 1994 Agreement and Part XI of the 1982 Convention. The two are to be interpreted and applied together as a single instrument and in the event of any inconsistency the provisions of the Agreement shall prevail.

After the 1994 Agreement, the initial operations of the Enterprise are to be conducted through joint ventures, which shall operate in accordance with sound commercial principles. It follows that the obligation of the parties to fund a mine site becomes redundant, so there is no longer any need for the funding provisions in the Convention and Annex IV. The States are under no obligation to finance any of the operations of the Enterprise. The Enterprise

130. Article 136, UN Convention on Law of the Sea, 1982.

131. Article 133(a), UN Convention on Law of the Sea, 1982.

132. Article 137, UN Convention on Law of the Sea, 1982.

133. Article 153, UN Convention on Law of the Sea, 1982.

is to enter into contracts with the Seabed Authority for its plans of work. A contractor who has contributed a site to the Authority has first refusal to enter into a joint venture with the Enterprise in relation to that site.¹³⁴

Section 6 of the Agreement substitutes for the production formula in Art 151 a new system based on GATT, including the new WTO Agreements. There is to be no subsidisation of deep seabed mining beyond what may be allowed under GATT. There is to be no discrimination between minerals from the deep seabed and those from other sources, nor is there to be any preferential access to markets or for imports. This arrangement should be fair to all. The annual fee is to be payable only from the start of commercial production. The application fees are also reduced.¹³⁵

The condition of mandatory transfer of technology as laid down in Part XI of the 1982 Convention was not acceptable to the industrialised States. This condition was eased by the joint venture system involving the Enterprise. Section 5 of the Agreement provides that the Enterprise and developing States wishing to obtain technology may seek it on commercial terms on the open market or through joint ventures. If they are unable to obtain the technology, the Authority may then request the contractors and sponsoring States to cooperate in facilitating the acquisition of technology on fair and reasonable commercial terms, consistent with the protection of intellectual property rights. States undertake to cooperate effectively for this purpose.¹³⁶

11.9.2 Pioneer Investor

India was recognised as a “pioneer investor” in seabed exploratory activities for the recovery of polymetallic nodules from the ocean. The pioneer investor status was subject to the fulfilment of two conditions. One, that it be a signatory and two, that such a State or State enterprise or natural or juridical person has expended, before 1 January 1983, an amount equivalent to at least \$30 million in pioneer activities and has expended no less than 10% of that amount in location, survey and evaluation of the area.

To have achieved some measure of expertise to be recognised as a “pioneer investor” and being the first developing country to acquire a high level of technological excellence in the related fields of science and technology is a good achievement for India.¹³⁷ India was allotted a mine site in the central Indian Ocean to carry out seabed exploration activities for the recovery of polymetallic nodules.¹³⁸

11.10 Prohibition on Placement of Nuclear Weapons on Seabed

The Treaty on the Prohibition of the Emplacement of Nuclear Weapons and Other Weapons of Mass Destruction on the Seabed and the Ocean Floor and in the Subsoil Thereof, 1971 (Seabed Treaty) sought to curb the growing danger of nuclear weapons and to prevent an arms

134. See also D H Anderson, “Resolution and Agreement Relating to the Implementation of Part XI of the UN Convention on the Law of the Sea: A General Assessment”, p 285, available at <http://www.zaoerv.de> (last accessed in January, 2021).

135. D H Anderson, “Resolution and Agreement Relating to the Implementation of Part XI of the UN Convention on the Law of the Sea: A General Assessment”, pp 287–88, available at <http://www.zaoerv.de> (last accessed in January, 2021).

136. D H Anderson, “Resolution and Agreement Relating to the Implementation of Part XI of the UN Convention on the Law of the Sea: A General Assessment”, p 287, available at <http://www.zaoerv.de> (last accessed in January, 2021).

137. RP Anand, *Studies in International Law and History: An Asian Perspective*, 2004, p 231.

138. O p Sharma, “India and the United Nations Convention on the Law of the Sea”, 26 *Ocean Development & International Law*, 1995, pp 391–412 at p 406.

race on the seafloor. The Seabed Treaty recognises the common interest of mankind in the progress of the exploration and use of the seabed and the ocean floor for peaceful purposes.

11.11 Settlement of Disputes

An innovative elaborate dispute settlement mechanism is provided in the 1982 Convention. This mechanism is innovative in the sense that in most of the cases, it will lead to a binding third party decision in one form or another. The problem with four Geneva Conventions of 1958 had been that procedures with binding decisions were either not applied (as in the case of Fisheries Convention providing for an *ad hoc* Commission) or laid down in a separate protocol which was not ratified by all members to the Convention (the other three 1958 Geneva Conventions). The 1982 Convention automatically makes each ratifying State at the same time a party to the dispute settlement provisions.¹³⁹

Article 279 obliges States Parties to settle their dispute under the Convention in a peaceful manner. The general principle in section 2 of Part XV is that any dispute between two States Parties on the interpretation or application of a provision of UNCLOS which cannot be resolved by negotiation may unilaterally be referred by either party to the dispute to an international court or arbitral tribunal for a binding decision. States give their consent in advance to these compulsory procedures when they become a party to UNCLOS. Article 287 gives a choice of procedure to States Parties to settle their disputes. A State, therefore, shall be free to choose one or more of the following means for the settlement of disputes:

- (1) the International Tribunal for the Law of the Sea;
- (2) the International Court of Justice;
- (3) an arbitral tribunal;
- (4) a special arbitral tribunal constituted in accordance with Annex VIII.

A State Party shall have to make a written declaration accepting any one of more of the aforesaid means of settlement of disputes. Arbitration remains as the default procedure, if other mechanisms of dispute settlement fail.¹⁴⁰

The territorial sovereignty disputes over the islands are governed by the principles and rules of general international law on the acquisition and loss of territory, and not by the 1982 Convention.¹⁴¹ The 1982 Convention does not have any provision to govern a situation where two States assert sovereignty over a particular island and assert maritime claims from that island. Therefore, such a dispute is to be governed by the rules and principles of general international law.¹⁴²

139. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 299.

140. Article 287, UN Convention on Law of the Sea, 1982. See also Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 298.

141. S Jayakumar, Tommy Koh and Robert Beckman, Edns, *The South China Sea Disputes and Law of the Sea*, 2014, p 1.

142. S Jayakumar, Tommy Koh and Robert Beckman, Edns, *The South China Sea Disputes and Law of the Sea*, 2014, pp 5–6.

CHAPTER 12

INTERNATIONAL INSTITUTIONS

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The need to establish international organisations was realised in the wake of growing international intercourse in the sense that there was development of relations between different peoples of the world, advances in the mechanic of communications and the need to develop trade. It was therefore, felt that there should be regulation of international intercourse by institutional means.

The origin of international institutions may be traced to two institutions called consul and ambassadors. The institution of the consul was known to the Greeks and the Romans. The consul used to be an official of the State whose essential task was to watch over the interests of the citizens of his State engaged in commerce in a foreign port. The ambassadors were being sent to represent their States for the purpose of a specific negotiation.¹

The bilateral relationships established by diplomatic missions proved inadequate. It was realised that there should be some means to represent the interests of all States where there were issues concerning all of them. There were international conferences, which were gathering of representatives from States to discuss the problems and adopt treaties. The conclusion of a conference, therefore, would normally be accompanied by a formal treaty or convention. However, where no binding agreement could be reached or where it was not required, the memorandum or minutes were adopted at the conference.

The system of *ad hoc* conferences to deal with the problems of the States had several defects. First of all, a new conference had to be convened every time whenever a new problem arose. This used to be a cumbersome task and there were delays to tackle the problems. Secondly, unlike the League of Nations and the UN, these conferences were not the debating forums. Thirdly, the conferences were held by invitation of the sponsoring or host State and there was no principle of membership which conferred an automatic right to representation. Fourthly,

1. D W Bowett, *The Law of International Institutions*, 1963, p 1.

the conferences adhered to the unanimity rule which represented a serious restriction on the powers of *ad hoc* conferences. Further, as a political body, the conference was not ideally suited to the determination of legal question.²

12.1 Private and Public International Unions

In 19th century, private international unions or associations between groups other than governments, having international character were originated. There were similar developments between governments. The unions between governments were called as public international unions.

12.1.1 Private International Unions

The non-governmental bodies, whether private individuals or corporate associations realised that their interests had an international character which demanded the furtherance of those interests via a permanent international association with like bodies in other countries. This led to the establishment of around 400 permanent associations or unions between 1840 till the beginning of the First World War.³

The impact of these private unions was so great that Union of International Associations was formed in 1910 to co-ordinate their activities and to lay down the conditions of membership. These conditions were — (i) the possession of a permanent organ, (ii) that the object must be of interest to all or some nations and not ones of profit, and (iii) that membership should be open to individuals or groups from different countries.

The private international unions emphasised the need for permanent association and for periodic, regular meetings. Their membership sometimes comprised States, municipal authorities, national groups and societies and private individuals. The activities of these private unions underlined, in many cases, the need for State action.⁴

12.1.2 Public International Unions

The public international unions were developed in those fields where co-operation between governments became necessary. These public international unions were permanent associations of governments or administration, based upon a treaty of a multilateral rather than a bilateral type and with some definite criterion of purpose. For example, the International Telegraphic Union (1865) with a permanent bureau, the Universal Postal Union (1874), the Metric Union (1875), the International Copyright Union (1886), the International Sugar Union (1902), the International Office of Public Health (1903), the International Institute of Agriculture (1905) and the Radiotelegraphic Union (1906) were established as public international unions.⁵

In 1919, the League of Nations was created with an objective to promote international co-operation and to achieve international peace and security. Article 24 of the Covenant of

2. D W Bowett, *The Law of International Institutions*, 1963, p 3.

3. These unions/associations included International Committee of the Red Cross (1863), The Inter-Parliamentary Union (1889), The International Law Association (1873), The International Dental Federation (1900), The International Literary and Artistic Association (1878) and International Chamber of Commerce (1919). D W Bowett, *The Law of International Institutions*, 1963, p 4.

4. The work of International Committee of the Red Cross in promoting the Geneva Conventions of 1864, 1906, 1929, 1949 and Additional Protocols of 1977, and that of the International Maritime Committee in promoting the Conventions on the Safety of Life at Sea of 1914 and 1929 are good examples among many others. D W Bowett, *The Law of International Institutions*, 1963, p 5.

5. D W Bowett, *The Law of International Institutions*, 1963, pp 5–7.

League provided for the placement under the direction of the League all international bureau already established by general treaties if the parties to such treaties consented. “All such international bureaux and all commissions for the regulation of matters of international interest hereafter constituted shall be placed under the direction of the League”. The League, however, never became the effective co-ordinator of the activities of many administrative unions.

12.2 Specialised Agencies

After the establishment of United Nations (UN), the intergovernmental organisations became the specialised agencies of the United Nations. Barring a few intergovernmental organisations, such as International Labour Organisation (ILO),⁶ BIRPI,⁷ Universal Postal Union (UPU) and International Telecommunication Union (ITU), most of them did not exist before the Second World War. They were created for the specific purpose of dealing with a particular subject or field of activity at the international level.

Although the specialised agencies belong to the United Nations Organisation, they retain their independence. Each specialised agency has its own constitution, its own governing bodies, its own elected executive head, its own income, its own budget, its own staff, its own programs and activities. These specialised agencies have their memberships. It is open to all Member States of the UN to become member of these agencies. In practice, however, not all Member States are members of these agencies. Thus, it is for the Member States of the UN to take a decision whether they would like to become member of any specialised agency or not.

Machinery exists for coordinating the activities of all the specialised agencies, among themselves and with the UN, but basically each agency remains responsible, under its own constitution, to its own governing bodies, which are the Member States of the organisation.⁸

12.3 League of Nations

The League of Nations was formed in 1919. The Covenant of the League of Nations was adopted in order to promote international co-operation and to achieve international peace and security — (i) by the acceptance of obligations not to resort to war, (ii) by the prescription of open, just and honourable relations between nations, (iii) by the firm establishment of the understandings of international law as the actual rule of conduct among Governments, and (iv) by the maintenance of justice and a scrupulous respect for all treaty obligations in the dealings of organised peoples with one another.

6. The ILO was created under the Treaty of Versailles in 1919. It became the first specialised agency of the United Nations in 1946. The ILO concerns itself with a host of labour related issues including the right to work, the right to form trade unions, the right to strike, the right to freedom from slavery and forced labour, and right to equal employment opportunities. It is also responsible for drafting and promoting standard-setting conventions and recommendations that address a whole panoply of labour rights. See South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, pp 86–87.

7. BIRPI was the acronym of the French language version of the English name: United International Bureaux for the Protection of Intellectual Property. It was an intergovernmental organisation in the field of intellectual property. World Intellectual Property Organisation (WIPO) became successor to BIRPI. WIPO, thereafter became a specialised agency of the United Nations on December 17, 1974 through an agreement between them. WIPO is subject to the competence of the United Nations and its organs. It is responsible for taking appropriate action in accordance with its basic instrument and the treaties and agreements administered by it, *inter alia*, for promoting creative intellectual activity and for facilitating the transfer of technology related to industrial property to developing countries in order to accelerate economic, social and cultural development.

8. WIPO, *WIPO Intellectual Property Handbook: Policy, Law and Use*, 2nd ed, WIPO, 2004, para 1.10–1.13.

12.3.1 Membership and Withdrawal

Any fully self-governing State, Dominion or Colony could become a member of the League if its admission was agreed to by two-thirds of the Assembly, provided that it would give effective guarantees of its sincere intention to observe its international obligations, and also accepted such regulations as might be prescribed by the League in regard to its military, naval and air forces and armaments.

The League allowed Members to withdraw from it by giving a two years notice of its intention so to do, provided that all its international obligations and all its obligations under this Covenant were fulfilled at the time of its withdrawal.⁹

12.3.2 Organs of the League

The actions of the League were to be effected through the instrumentality of an Assembly and of a Council, with a permanent Secretariat.¹⁰ The Assembly consisted of Representatives of the Members of the League. It had to meet at stated intervals and from time to time as occasion might require at the Seat of the League, which was established at Geneva¹¹ or other place as could be decided upon.

The Assembly was empowered to deal at its meetings with any matter within the sphere of action of the League or which was affecting the peace of the world. At meetings of the Assembly, each Member of the League had one vote, and could have not more than three Representatives.¹²

The other organ Council consisted of representatives of the Principal Allied and Associated Powers, together with representatives of four other Members of the League. These four Members of the League were to be selected by the Assembly from time to time in its discretion. Until the appointment of the representatives of the four Members of the League first selected by the Assembly, representatives of Belgium, Brazil, Spain and Greece were taken to be members of the Council.

With the approval of the majority of the Assembly, the Council could name additional Members of the League whose representatives were always be members of the Council. The Council, with like approval could increase the number of members of the League to be selected by the Assembly for representation on the Council.

The Council had to meet from time to time as occasion might require, and at least once a year, at the Seat of the League, or at other place as could be decided upon. The Council was empowered to deal at its meetings with any matter within the sphere of action of the League or affecting the peace of the world.

During the consideration of matters specially affecting the interests of a Member, who was not represented at the Council, the Council had to invite that Member to send a representative to sit as a member at any meeting of the Council. At meetings of the Council, each Member of the League represented on the Council had one vote, and could have not more than one representative.¹³

The decisions at any meeting of the Assembly or of the Council required the agreement of all the Members of the League represented at the meeting, except where otherwise expressly provided in the Covenant or by the terms of that Treaty.

9. Article 1, Covenant of League of Nations.

10. Article 2, Covenant of League of Nations.

11. Article 7, Covenant of League of Nations.

12. Article 3, Covenant of League of Nations.

13. Article 4, Covenant of League of Nations.

All procedural matters at meetings of the Assembly or of the Council, including the appointment of Committees to investigate particular matters, were to be regulated by the Assembly or by the Council. These matters could be decided by a majority of the Members of the League represented at the meeting.¹⁴

The permanent Secretariat comprised a Secretary General and such secretaries and staff as could be required. The first Secretary General was the person named in the Annex. Thereafter, the Secretary General was to be appointed by the Council with the approval of the majority of the Assembly. The secretaries and staff of the Secretariat were to be appointed by the Secretary General with the approval of the Council.¹⁵

12.4 United Nations

The UN was established by the Charter of the United Nations which was signed on 26th June 1945 at the conclusion of the United Nations Conference on International Organisation in San Francisco. The Charter came into force on 24th October 1945.

The establishment of UN was an important step by the international community to “save succeeding generations from the scourge of war, which twice ... has brought untold sorrow to mankind”.

12.4.1 Purposes of United Nations

The UN has four purposes. The first purpose is to maintain *international peace and security*. For this purpose, the UN has to take effective collective measures for the prevention and removal of threats to the peace, and for the suppression of acts of aggression or other breaches of the peace, and to bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace.

According to Hans Kelsen, *international peace* is a condition of absence of force in the relations among States. International peace is to be distinguished from *internal peace*, i.e. peace within one and the same State. Hence, it is not the purpose of the UN to maintain or restore internal peace by interfering in a civil war within a State. This interpretation can be justified in the light of Article 2(7) which forbids any intervention on the part of the UN “in matters which are essentially within the domestic jurisdiction of any State”. However, a civil war in a State may be considered as a threat to international peace, in which case intervention on the part of the UN is not prohibited. Kelsen, therefore, writes that “it is doubtful whether the restriction implied in the term ‘international’ peace is of any importance”.¹⁶

The second purpose is to develop friendly relations among nations based on respect for the principle of equal rights and self-determination of peoples. The UN is also to take other appropriate measures to strengthen universal peace.

The third purpose is to achieve international co-operation in solving international problems of an economic, social, cultural or humanitarian character. The UN is further to achieve international co-operation in promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion.

Finally, the UN is to be a centre for harmonizing the actions of nations in the attainment of these common ends.¹⁷

14. Article 5, Covenant of League of Nations.

15. Article 6, Covenant of League of Nations.

16. Hans Kelsen, *The Law of the United Nations*, 1950, p 19.

17. Article 1, Charter of the United Nations.

12.4.2 Principles of United Nations

In pursuit of the aforesaid purposes, the UN and its Members are obliged to work in accordance with the seven principles as laid down in Article 2 of the UN Charter. These principles are:

- (1) The Organisation is based on the principle of the sovereign equality of all its Members.
- (2) In order to ensure to all Members the rights and benefits resulting from membership, all Members are required to fulfil in good faith the obligations assumed by them in accordance with the UN Charter.
- (3) All Members are obliged to settle their international disputes by peaceful means in such a manner that international peace and security, and justice are not endangered.
- (4) In their international relations, all Members are obliged to refrain from the threat or use of force against territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the UN. A detailed discussion on Article 2(4) has been made in Chapter 15.
- (5) All Members are obliged to provide every assistance in any action it takes in accordance with the UN Charter. They are also obliged to refrain from giving assistance to any State against which the UN is taking preventive or enforcement action.
- (6) The Organisation is to ensure that States which are not Members of the UN act in accordance with these principles so far as may be necessary for the maintenance of international peace and security. Thus, Article 2(6) confers a competence upon the Organisation in relation to non-Members with respect to certain acts.¹⁸
- (7) The UN is neither authorised to intervene in matters which are essentially within the domestic jurisdiction of any State nor shall require the Members to submit such matters to settlement under the Charter. However, this principle is not to prejudice the application of enforcement measures under Chapter VII of the Charter.

Thus, according to Article 2(7), the UN is not to intervene in the domestic affairs of a State. The underlying idea of excluding the UN to intervene in the domestic jurisdiction of any State is that there exist certain matters which, by their very nature, are solely within the domestic jurisdiction of the States and such matters are internal or domestic. Consequently, there is no reason to confer upon an international agency the competence to intervene in such matter.¹⁹

In the Declaration on the Granting of Independence to Colonial Countries and Peoples of 14 December 1960²⁰, the General Assembly declared that “any attempt aimed at the partial or total disruption of the national unity and the territorial integrity of a country is incompatible with the purposes and principles of the Charter of the United Nations”. It further declared that all States were under obligation to observe the provisions of UN Charter, the Universal Declaration of Human Rights and the present Declaration “on the basis of equality, non-interference in the internal affairs of all States, and respect for the sovereign rights of all peoples and their territorial integrity”.²¹

18. See also Hans Kelsen, *The Law of the United Nations*, 1950, p 87.

19. Hans Kelsen, *The Law of the United Nations*, 1950, p 771.

20. General Assembly Resolution 1514 (XV) of 14 December 1960.

21. General Assembly Resolution 1514 (XV) of 14 December 1960, paras 6–7.

12.4.3 Membership of the United Nations

The States which participated in the UN Conference on International Organisation at San Francisco, or who previously signed the Declaration by United Nations of 1 January 1942 and signed and ratify the UN Charter, shall be the original members of the UN.

Membership in the UN is open to all other peace-loving States which accept the obligations contained in the Charter and are able and willing to carry out these obligations in the judgment of the Organisation. Any such State is to be admitted to the membership of the UN by General Assembly on the recommendations of the Security Council.²²

12.4.4 Suspension and Expulsion

A Member of the UN against which preventive or enforcement action has been taken by the Security Council may be suspended from the exercise of the rights and privileges of membership by the General Assembly upon the recommendation of the Security Council. The Security Council may restore the exercise of these rights and privileges.

According to Kelsen, suspension of the rights of membership is not intended as a sanction. It is an additional measure taken against a Member subjected to “preventive or enforcement action”. If the preventive or enforcement action is sanction, suspension of the rights of membership may be considered as an additional sanction. If, however, the preventive or enforcement action itself has not the character of a sanction, the suspension of the rights of membership cannot have this character either. The main purpose of this measure is to prevent a Member which is not expelled but against which enforcement action is in operation from exercising the rights of a Member.²³

The General Assembly upon the recommendation of the Security Council may expel a Member of the UN from the Organisation which has persistently violated the principles contained in the UN Charter.²⁴ Expulsion is a sanction. It is, however, noteworthy that the Charter does not confer upon the Members the right of withdrawal from UN. Kelsen argues that where no voluntary withdrawal is possible at all, a State that wishes to leave may be induced to reach this goal by creating a situation which may lead to its expulsion.²⁵

12.4.5 Organs of the United Nations

The UN has six principal organs. These are: (1) General Assembly; (2) Security Council; (3) Economic and Social Council; (4) Trusteeship Council; (5) International Court of Justice (ICJ); and (6) Secretariat. In addition to the aforesaid principal organs, such subsidiary organs as may be found necessary may also be established in accordance with the UN Charter.²⁶

12.4.5.1 General Assembly

12.4.5.1.1 Composition, Functions and Powers

The General Assembly consists of all the Members of the UN. Each Member is to have not more than five representatives in the General Assembly.

22. Articles 3–4, Charter of the United Nations.

23. Hans Kelsen, *The Law of the United Nations*, 1950, p 714.

24. Articles 5–6, Charter of the United Nations.

25. Hans Kelsen, *The Law of the United Nations*, 1950, pp 714–15.

26. Article 7, Charter of the United Nations.

According to Article 10, the General Assembly may discuss any *questions* or any *matters* within the scope of the UN Charter or relating to the powers and functions of any organs provided for in the Charter. Except as provided in Article 12 (where any dispute is under the consideration of the Security Council), the General Assembly may make recommendations to the Members of the UN or to the Security Council or to both on any such questions or matters.

Kelsen argues that the wordings of Article 10 is technically defective, as there is no reason to differentiate between *questions* and *matters* since the one term can be used in exactly the same sense as the other.²⁷ The General Assembly is competent not only to discuss any matter within the competence of the UN but also to make recommendations on any such matter. This is a political competence not a legal one.²⁸ The intention was to establish the General Assembly as “town meeting of the world”, the “open conscience of humanity”, that is to say, as a deliberative and criticising organ.²⁹

The General Assembly may consider the general principles of co-operation in the maintenance of international peace and security, including the principles governing disarmament and the regulation of armaments. It may make recommendations in this regard to the Members or to the Security Council or to both. It may discuss any questions relating to the maintenance of international peace and security brought before it by any Member of the UN, or by the Security Council, or by a State which is not a Member of the UN in accordance with Article 35(2). Except as provided in Article 12, it may make recommendations with regard to any such questions to the State or States concerned or to the Security Council or to both. Any such question on which action is necessary shall be referred to the Security Council by the General Assembly either before or after discussion. The General Assembly may also call the attention of the Security Council to situations which are likely to endanger international peace and security.³⁰

According to Article 12, the General Assembly shall not make any recommendation with regard to any dispute or situation which is being dealt with by the Security Council unless the Security Council so requests. Article 12 only forbids the General Assembly to make any recommendation with regard to a dispute or situation while the Security Council is exercising its functions in respect of that dispute or situation, no such restriction is placed on the functioning of the ICJ by any provision of either the Charter or the Statute of the International Court of Justice. This is because of the reason that the Court, which is the principal judicial organ of the UN, is to resolve any legal questions that may be in issue between parties to the dispute. The resolution of such legal questions by the Court may be an important and sometimes decisive factor in promoting the peaceful settlement of the dispute.³¹

Subject to the provisions of Article 12, the General Assembly may recommend measures for the peaceful adjustment of any situation, regardless of origin, which it deems likely to impair the general welfare or friendly relations among nations, including situations resulting from a violation of the provisions of the UN Charter.³²

The General Assembly shall receive and consider annual and special reports from the Security Council which shall include an account of the measures that the Security Council has decided upon or taken to maintain international peace and security.

27. Hans Kelsen, *The Law of the United Nations*, 1950, p 198.

28. Hans Kelsen, *The Law of the United Nations*, 1950, p 198.

29. *Yearbook of the United Nations*, 1946–47, p 51.

30. Article 11, Charter of the United Nations.

31. *United States Diplomatic and Consular Staff in Tehran case*, (1980) ICJ Rep 3, p 22, para 40. See also *Military and Paramilitary Activities in and against Nicaragua*, (1984) ICJ Rep 392, pp 433–34, para 93.

32. Article 14, Charter of the United Nations.

The General Assembly shall initiate studies and make recommendations for the purpose of — (i) promoting international co-operation in the political field and encouraging the progressive development of international law and its codification; and (ii) promoting international co-operation in the economic, social, cultural, educational, and health fields, and assisting in the realisation of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion.³³

The General Assembly shall receive and consider reports from the other organs of the UN. The General Assembly shall perform such functions with respect to the international trusteeship system as are assigned to it under Chapters XII and XIII, including the approval of the trusteeship agreements for areas not designated as strategic.

The General Assembly shall consider and approve the budget of the Organisation. The expenses of the Organisation shall be borne by the Members as apportioned by the General Assembly. The Assembly shall consider and approve any financial and budgetary arrangements with specialise agencies referred to in Article 57.³⁴

12.4.5.1.2 Voting and Procedure

In General Assembly, each Member has one vote. Decisions of the General Assembly on important questions are to be made by a two-thirds majority of the members present and voting. These questions shall include: recommendations with respect to the maintenance of international peace and security, the election of the non-permanent members of the Security Council, the election of the members of the Economic and Social Council, the election of members of the Trusteeship Council in accordance with Article 86(1), the admission of new Members to the UN, the suspension of the rights and privileges of membership, the expulsion of Members, questions relating to the operation of the trusteeship system, and budgetary questions. Decisions on other questions are to be made by a majority of the members present and voting.³⁵

According to Article 19, no voting right is available to a Member which did not pay its financial contribution to the Organisation for the preceding two full years. The General Assembly may, however, permit such a Member to vote if it is satisfied that the failure to pay is due to conditions beyond the control of the Member.

A Member who has lost the right to exercise its vote in the General Assembly may still exercise all the other rights of membership, especially the right to participate in the deliberations of the General Assembly, the right to be elected member of the Security Council, and if it is a member of the Security Council, to vote in the Security Council. A Member, therefore, may be excluded from voting in the General Assembly but not from voting in the Security Council.³⁶

The General Assembly is to meet in regular annual sessions and in such special sessions as occasion may require. Special sessions are to be invoked by the Secretary-General at the request of the Security Council or of a majority of the Members of the UN. The General Assembly adopts its own rules of procedure. It elects its President for each session. It may establish such subsidiary organs as it deems necessary for the performance of its functions.³⁷

33. Article 13, Charter of the United Nations.

34. Articles 15–17, Charter of the United Nations.

35. Article 18, Charter of the United Nations.

36. Hans Kelsen, *The Law of the United Nations*, 1950, p 717.

37. Articles 20–22, Charter of the United Nations.

12.4.5.2 Security Council

12.4.5.2.1 Composition, Functions and Powers

The Security Council consists of 15 Members of the UN — five permanent and ten non-permanent members. The Republic of China, France, the Union of Soviet Socialist, the United Kingdom of Great Britain and Northern Ireland, and the USA are the permanent members of the Security Council. The 10 non-permanent Members of the Security Council are elected by the General Assembly by giving due regards to the contribution of Members of the UN to the maintenance of international peace and security and to the other purposes of the Organisation, and also to equitable geographical distribution.

The non-permanent members of the Security Council are elected for a term of two years. In the first election of the non-permanent members after the increase of the membership of the Security Council from eleven to fifteen, two of the four additional members were chosen for a term of one year. A retiring member is not eligible for immediate re-election. Each member of the Security Council has one representative.³⁸

The primary responsibility for the maintenance of international peace and security lies on the Security Council. The Security Council is to act in accordance with the purposes and principles of the UN. The specific powers are granted to the Security Council for this purpose in Chapters VI (Pacific Settlement of disputes), VII (Action with Respect to Threats to the Peace, Breaches of the Peace, and Acts of Aggression), VIII (Regional Arrangements), and XII (International Trusteeship System).³⁹

The Members of the UN agree to accept and carry out the decisions of the Security Council in accordance with the present Charter. In order to promote the establishment and maintenance of international peace and security with the least diversion for armaments of the world's human and economic resources, the Security Council shall be responsible for formulating, with the assistance of the Military Staff Committee (referred to in Article 47), plans to be submitted to the Members of the UN for the establishment of a system for the regulation of armaments.⁴⁰

12.4.5.2.2 Voting and Procedure

Each member of the Security Council has one vote. Decisions of the Security Council on procedural matters are made by an affirmative vote of nine members, whereas on all other matters decisions are made by an affirmative vote of nine members including the concurring votes of the permanent members. However, in decisions under Chapter VI (Pacific Settlement of disputes), and under Article 52(3), a party to a dispute shall abstain from voting.⁴¹

The Security Council is so organised as to be able to function continuously. Each member of the Security Council is represented at times at the seat of the Organisation. The Security Council holds meetings at which each of its members may, if it so desires, be represented. The Security Council may hold meetings at such places other than the seat of the Organisation as in its judgment will best facilitate its work.

The Security Council may establish such subsidiary organs as it deems necessary for the performance of its functions. The Security Council adopts its own rules of procedure, including the method of selecting its President.

38. Article 23, Charter of the United Nations.

39. Article 24, Charter of the United Nations.

40. Articles 25–26, Charter of the United Nations.

41. Article 27, Charter of the United Nations.

Any Member of the UN which is not a member of the Security Council may participate, without vote, in the discussion of any question brought before the Security Council whenever the latter considers that the interests of that Member are specially affected. Any Member of the UN which is not a member of the Security Council or any State which is not a Member of the UN, if it is a party to a dispute under consideration by the Security Council, is to be invited to participate, without vote, in the discussion relating to the dispute. The Security Council is to lay down such conditions as it deems just for the participation of a State which is not a Member of the UN.⁴²

12.4.5.3 The Economic and Social Council

12.4.5.3.1 Composition, Functions and Powers

Originally, the Economic and Social Council consisted of 18 Members of the UN which were elected by the General Assembly. The membership was increased from 18 to 27 by an amendment to the UN Charter on 17 December 1963 which came into force on 31 August 1965. The membership was further increased from 27 to 54 by another amendment to the Charter on 20 December 1971 which came into force on 24 September 1973. Presently, there are 54 Members of the Economic and Social Council.

The term of the office of Members of the Economic and Social Council is three years. A retiring member is eligible for immediate re-election. Each member of the Economic and Social Council has one representative.⁴³

The Economic and Social Council may make or initiate studies and reports with respect to international economic, social, cultural, educational, health, and related matters and may make recommendations with respect to any such matters to the General Assembly, to the Members of the UN, and to the specialised agencies concerned.

It may make recommendations for the purpose of promoting respect for, and observance of, human rights and fundamental freedoms for all. It may prepare draft conventions for submission to the General Assembly, with respect to matters falling within its competence. It may call international conferences on matters falling within its competence.

The Economic and Social Council may enter into agreements with any of the specialised agencies referred to in Article 57. It may co-ordinate the activities of the specialised agencies. It may take appropriate steps to obtain regular reports from the specialised agencies. It may make arrangements with the Members of the UN and with the specialised agencies to obtain reports on the steps taken to give effect to its own recommendations and to recommendations on matters falling within its competence made by the General Assembly. It may communicate its observations on these reports to the General Assembly. The Economic and Social Council may furnish information to the Security Council and it is to assist the Security Council upon its request.

The Economic and Social Council shall perform such functions as fall within its competence in connection with the carrying out of the recommendations of the General Assembly. It may, with the approval of the General Assembly, perform services at the request of Members of the UN and at the request of specialised agencies. It is to perform such other functions as are specified elsewhere in the present Charter or as may be assigned to it by the General Assembly.⁴⁴

42. Articles 28–32, Charter of the United Nations.

43. Article 61, Charter of the United Nations.

44. Articles 62–66, Charter of the United Nations.

12.4.5.3.2 *Voting and Procedure*

Each member of the Economic and Social Council has one vote. The decisions of the Economic and Social Council are made by a majority of the members present and voting.

The Economic and Social Council is to set up commissions in economic and social fields and for the promotion of human rights. It is also to set up such other commissions as may be required for the performance of its functions. It is to invite any Member of the UN to participate, without vote, in its deliberations on any matter of particular concern to that Member.

The Economic and Social Council may make arrangements for representatives of the specialised agencies to participate, without vote, in its deliberations and in those of the commissions established by it. It may also make arrangements for its representatives to participate in the deliberations of the specialised agencies.

The Economic and Social Council may make suitable arrangements for consultation with non-governmental organisations which are concerned with matters within its competence. Such arrangements may be made with international organisations and, where appropriate, with national organisations after consultation with the Member of the UN concerned.

The Economic and Social Council is to adopt its own rules of procedure, including the method of selecting its President. It is to meet as required in accordance with its rules, which include provision for the convening of meetings on the request of a majority of its members.⁴⁵

12.4.5.4 *The Trusteeship Council*

It is pertinent to discuss the mandated territories and trust territories before discussing about the trusteeship system and Trusteeship Council.

After the World War I, some of the Allies were interested to annex Germany's colonies and certain Arabic-speaking areas of the Turkish Empire. Their plans, however, were opposed by President Wilson, who wished to secure recognition for the ideal of self-determination. It was finally decided that each of the territories in question was to be administered by one of the Allies, under supervision of the League of Nations. This system was called as mandate system.⁴⁶ Modelled on the League's mandate system, the UN Charter provides for a trusteeship system.⁴⁷

12.4.5.4.1 *Objectives of Trusteeship System*

The basic objectives of trusteeship system are: (i) to further international peace and security; (ii) to promote the political, economic, social, and educational advancement of the inhabitants of the trust territories, and their progressive developments towards self-government or independence as may be appropriate to the particular circumstances of each territory and its people and the freely expressed wishes of the peoples concerned, and as may be provided by the terms of each trusteeship agreement; (iii) to encourage respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion, and to encourage recognition of the interdependence of the peoples of the world; and (iv) to ensure equal treatment in social, economic, and commercial matters for all Members of the UN and their nationals, and also equal treatment for the latter in the administration of justice.⁴⁸

45. Articles 67–72, Charter of the United Nations.

46. Article 22, League of Nations; see Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 327–28.

47. Articles 75–91, Charter of the United Nations.

48. Article 76, Charter of the United Nations.

The trusteeship system applies to: (i) territories, then held under mandate; (ii) territories which may be detached from enemy States as a result of the World War II; and (iii) territories voluntarily placed under the system by States responsible for their administration.⁴⁹

12.4.5.4.2 *Composition, Functions and Powers*

The Trusteeship Council consists of the following Members of the UN — (i) those Members administering trust territories; (ii) such of those Members mentioned by name in Article 23 as are not administering trust territories; and (iii) as many other Members elected for three-year terms by the General Assembly as may be necessary to ensure that the total number of members of the Trusteeship Council is equally divided between those Members of the UN which administer trust territories and those which do not. Each member of the Trusteeship Council is to designate one specially qualified person to represent it therein.⁵⁰

In carrying out their functions, the General Assembly and, under its authority, the Trusteeship Council may:

- (i) consider reports submitted by the administering authority;
- (ii) accept petitions and examine them in consultation with the administering authority;
- (iii) provide for periodic visits to the respective trust territories at times agreed upon with the administering authority; and
- (iv) take these and other actions in conformity with the terms of the trusteeship agreements.

The Trusteeship Council is to formulate a questionnaire on the political, economic, social, and educational advancement of the inhabitants of each trust territory. The administering authority for each trust territory within the competence of the General Assembly is to make an annual report to the General Assembly upon the basis of such questionnaire.⁵¹

12.4.5.4.3 *Voting and Procedure*

Each member of the Trusteeship Council is to have one vote. Decisions of the Trusteeship Council are to be made by a majority of the members present and voting. The Trusteeship Council is to adopt its own rules of procedure, including the method of selecting its President. The Trusteeship Council is to meet as required in accordance with its rules, which shall include provision for the convening of meetings on the request of a majority of its members.

The Trusteeship Council shall, when appropriate, avail itself of the assistance of the Economic and Social Council and of the specialised agencies in regard to matters with which they are respectively concerned.⁵²

In 1955, there were 11 trust territories, which were administered by seven States. In 1994, the Security Council terminated Palau's trusteeship status, which has chosen free association with United States in a plebiscite. The trusteeship system has completed its mission and now has no territories left.⁵³

49. Article 77, Charter of the United Nations.

50. Article 86, Charter of the United Nations.

51. Articles 87–88, Charter of the United Nations.

52. Articles 89–91, Charter of the United Nations.

53. See Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 328.

12.4.5.5 *International Court of Justice*

The ICJ is the principal judicial organ of the UN. It functions in accordance with the annexed Statute, which is based upon the Statute of the Permanent Court of International Justice. The Statute of International Court of Justice forms an integral part of the UN Charter.

All Members of the UN are *ipso facto* parties to the Statute of the International Court of Justice. A State which is not a Member of the UN may become a party to the Statute of the International Court of Justice on conditions to be determined in each case by the General Assembly upon the recommendation of the Security Council.⁵⁴ A detailed discussion on International Court of Justice is made in chapter 13.

12.4.5.6 *Secretariat*

The Secretariat is comprised of a Secretary-General and such staff as the Organisation may require. The Secretary-General is appointed by the General Assembly upon the recommendation of the Security Council. He is the chief administrative officer of the Organisation.

The Secretary-General is to act in that capacity in all meetings of the General Assembly, of the Security Council, of the Economic and Social Council, and of the Trusteeship Council. He is to perform such other functions as are entrusted to him by these organs. The Secretary-General is to make an annual report to the General Assembly on the work of the Organisation.⁵⁵

The Secretary-General may bring to the attention of the Security Council any matter which in his opinion may threaten the maintenance of international peace and security.

In the performance of their duties the Secretary-General and the staff shall not seek or receive instructions from any government or from any other authority external to the Organisation. They shall refrain from any action which might reflect on their position as international officials responsible only to the Organisation. Each Member of the UN undertakes to respect the exclusively international character of the responsibilities of the Secretary-General and the staff and not to seek to influence them in the discharge of their responsibilities.⁵⁶

The staff of the Secretariat is to be appointed by the Secretary-General under regulations established by the General Assembly. Appropriate staffs are permanently assigned to the Economic and Social Council, the Trusteeship Council, and, as required, to other organs of the UN. These staffs form a part of the Secretariat.

The paramount consideration in the employment of the staff and in the determination of the conditions of service is the necessity of securing the highest standards of efficiency, competence, and integrity. Due regard is to be paid to the importance of recruiting the staff on as wide a geographical basis as possible.⁵⁷

12.5 *Conflicts Between UN Charter and Other Treaties*

Article 103 makes it clear that in the event of a conflict between the obligations of the Members of the UN under the Charter and their obligations under any other international agreement, their obligations under the Charter shall prevail. In *Case Concerning Questions of Interpretation and application of the Montreal Convention Arising Out of the Aerial Incident at Lockerbie*

54. Articles 92–93, Charter of the United Nations.

55. Articles 97–98, Charter of the United Nations.

56. Articles 99–100, Charter of the United Nations.

57. Article 101, Charter of the United Nations.

(*Provisional Measures*),⁵⁸ while referring to Article 103, Weeramantry J in his dissenting opinion stated that “Security Council decisions are to be accepted and carried out by all Member States, the obligations thus created are given priority by Article 103 over obligations under any other Agreement. All this amounts to enormous power indeed and international law as embodied in the Charter requires all States to recognise this power and act according to the directions issuing from it”.

It is submitted that Article 103 should be interpreted very carefully. It intends to displace those treaty provisions which come in conflict with obligations under UN Charter. The resolutions of Security Council, when it is taking enforcement measures, should not be interpreted so broadly as to prevent States to uphold their human rights obligations under various international instruments unnecessarily. To the extent possible, the resolutions of Security Council should be interpreted in conformity with the obligations of States under treaties, particularly human rights treaties. Giving very wide interpretation to the Security Council resolutions may undermine human rights obligations of States. However, where it is not possible, the treaty obligations have to be overruled at that point of time.⁵⁹ Wherever possible, a balancing approach should be adopted in such cases.

12.6 International Courts and Tribunal

The Permanent Court of International Justice (PCIJ) was established in accordance with the provisions of the Covenant of League of Nations. The PCIJ worked till 1946. The ICJ, an organ of the UN is in continuance of the PCIJ since then.

There has been a sharp rise in the number of international judicial bodies in the form of international courts and tribunals, and a correlative expansion of their jurisdiction in the last two to three decades. International courts and tribunals are permanent judicial bodies made up of independent judges which are entrusted with adjudicating international disputes on the basis of international law according to a pre-determined set of rules of procedure and rendering decisions which are binding on the parties.⁶⁰ An international judicial body is defined as one which has five specific features — (i) permanence; (ii) established by an international instrument; (iii) use of international law to decide cases; (iv) reliance upon preexisting rules of procedure in deciding cases; and (v) result of process is a binding decision.⁶¹

The creation and operation of international judicial bodies that are capable of enforcing international commitments, interpreting international treaties, and settling international conflicts have facilitated the growth of international legal norms and cooperative regimes governing important areas of international law and politics, such as economic relations, human rights and armed conflicts.⁶²

58. *Case Concerning Questions of Interpretation and application of the Montreal Convention Arising Out of the Aerial Incident at Lockerbie, Libya v United Kingdom*, (*Provisional Measures*), (1992) ICJ Rep 3.

59. See also Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White, (Eds), Hart Publishing, London, 2010, pp 191–224 at pp 196–197.

60. Christian Tomuschat, “International Courts and Tribunals”, in *Max Planck Encyclopaedia of Public International Law*, Rudiger Wolfrum (Ed), 2008, cited in Yuval Shany, “Assessing the Effectiveness of International Courts: A Goal-based Approach”, *American Journal of International Law*, vol 106(2), 2012, p 225.

61. See Cesare P R Romano, “The Proliferation of International Judicial Bodies: The Pieces of the Puzzle”, *New York University Journal of International Law and Politics*, vol 31, 1999, p 709 at p 712.

62. Yuval Shany, “Assessing the Effectiveness of International Courts: A Goal-based Approach”, *American Journal of International Law*, vol 106(2), 2012, p 225.

CHAPTER 13

INTERNATIONAL COURT OF JUSTICE

SYNOPSIS

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The International Court of Justice (hereinafter the “Court”) is established by the Charter of the United Nations as the principal judicial organ of the United Nations. It is constituted in accordance with the provisions of the Statute of the International Court of Justice, is annexed to the Charter of the United Nations, of which it forms an integral part. The main object of the Statute is to organise the composition and the functioning of the Court.¹

During the period of League of Nations, Permanent Court of International Justice (PCIJ) which was constituted in accordance with the provision of the Covenant of League of Nations, 1919.² Article 14 of the Covenant of League of Nations obligated the Council of the League of Nations to formulate and submit to the Members of the League for adoption plans for the establishment of a Permanent Court of International Justice. The PCIJ was competent to hear and determine any dispute of an international character which the parties thereto submitted to it. The PCIJ could also give an advisory opinion upon any dispute or question which was referred to it by the Council or the Assembly of the League of Nations.

At the San Francisco Conference, the delegates wished to maintain continuity with PCIJ. The Statute of Court is essentially that of its predecessor. The Court originally adopted the Rules of Court of PCIJ without any substantial amendment. The Rules of Court were, however, amended substantially in 1972 and 1978. The PCIJ was formally dissolved in April 1946.³ The continuity between PCIJ and Court was maintained and Court is to be considered in continuance of PCIJ. The Court did not have much work during 1960s to 1980s. However, since 1990s, the Court's list has been full.⁴

1. Article 1, Statute of International Court of Justice.
2. Article 14, Covenant of League of Nations.
3. Rebecca M M Wallace, *International Law*, 1997, p 286.
4. See D J Harris, *Cases and Materials on International Law*, 2004, p 1027.

13.1 Organisation of the Court

The Court is composed of a body of independent judges, who are elected regardless of their nationality from among persons of high moral character, who possess the qualifications required in their respective countries for appointment to the highest judicial offices, or are jurisconsults of recognised competence in international law. Thus, the persons who are eligible to be appointed to the highest judicial offices in their countries or who are jurisconsults of recognised competence in international law can be appointed as judges of the Court.

The Court consists of 15 members. There cannot be two members of the Court who are nationals of the same State at the same time. A person who for the purposes of membership in the Court could be regarded as a national of more than one State, is to be deemed to be a national of that State only in which he ordinarily exercises civil and political rights.⁵

13.1.1 Appointment of Judges

According to Article 4 of the Statute of International Court of Justice, the members of the Court are elected by the General Assembly and by the Security Council from a list of persons nominated by the national groups in the Permanent Court of Arbitration. The elections of the members are made in accordance with the provisions mentioned hereinafter.

In the case of Members of the United Nations not represented in the Permanent Court of Arbitration, candidates are to be nominated by national groups appointed for this purpose by their governments under the same conditions as those prescribed for members of the Permanent Court of Arbitration by Article 44 of the Convention of The Hague of 1907 for the pacific settlement of international disputes.

Where a State which is a party to the present Statute but is not a Member of the United Nations, in such a case it may participate in electing the members of the Court in accordance with conditions as would be laid down by the General Assembly upon recommendation of the Security Council.

At least three months before the date of the election, the Secretary-General of the United Nations addresses a written request to the members of the Permanent Court of Arbitration belonging to the States which are parties to the Statute of ICJ, and to the members of the national groups appointed under Article 4(2), inviting them to undertake, within a given time, by national groups, the nomination of persons who are in a position to accept the duties of a member of the Court.

No group may nominate more than four persons, not more than two of whom shall be of their own nationality. The number of candidates nominated by a group shall not be more than double the number of seats to be filled. Before making these nominations, each national group is recommended to consult its highest court of justice, its legal faculties and schools of law, and its national academies and national sections of international academies devoted to the study of law.

The Secretary-General prepares a list in alphabetical order of all the persons thus nominated and submits it to the General Assembly and to the Security Council.⁶ The General Assembly and the Security Council then proceed independently of one another to elect the members of the Court. At every election, the electors have to bear in mind not only that the persons to be elected should individually possess the qualifications required, but also that in the body as a whole the representation of the main forms of civilisation and of the principal legal systems of the world should be assured.

5. Articles 2–3, Statute of International Court of Justice.

6. Articles 5–7, Statute of International Court of Justice.

Those candidates who obtain an absolute majority of votes in the General Assembly and in the Security Council are considered as elected. Any vote of the Security Council, whether for the election of judges or for the appointment of members of the conference envisaged in Article 12, are to be taken without any distinction between permanent and non-permanent members of the Security Council. If more than one national of the same State obtain an absolute majority of the votes both of the General Assembly and of the Security Council, the eldest of these is to be considered as elected.⁷

If, after the first meeting held for the purpose of the election, any seat(s) remain to be filled, a second and, if necessary, a third meeting shall take place. If, after the third meeting, one or more seats still remain unfilled, a joint conference consisting of six members, three appointed by the General Assembly and three by the Security Council, may be formed at any time at the request of either the General Assembly or the Security Council, for the purpose of choosing by the vote of an absolute majority one name for each seat still vacant, to submit to the General Assembly and the Security Council for their respective acceptance.

If the joint conference is unanimously agreed upon any person who fulfills the required conditions, he may be included in its list, even though he was not included in the list of nominations referred to in Article 7.

If the joint conference is satisfied that it will not be successful in procuring an election, those members of the Court who have already been elected shall, within a period to be fixed by the Security Council, proceed to fill the vacant seats by selection from among those candidates who have obtained votes either in the General Assembly or in the Security Council. In the event of an equality of votes among the judges, the eldest judge shall have a casting vote.⁸

The Court elects its President and Vice-President for three years. They may be re-elected. The Court also appoints its Registrar. It may provide for the appointment of such other officers as may be necessary.

13.1.2 Rights and Duties of Judges

No member of the Court may exercise any political or administrative function, or engage in any other occupation of a professional nature. No member of the Court may act as agent, counsel, or advocate in any case. No member may participate in the decision of any case in which he has previously taken part as agent, counsel, or advocate for one of the parties, or as a member of a national or international court, or of a commission of enquiry, or in any other capacity.⁹

No member of the Court can be dismissed unless, in the unanimous opinion of the other members, he has ceased to fulfill the required conditions. Formal notification thereof shall be made to the Secretary-General by the Registrar. This notification makes the place vacant.¹⁰

The members of the Court, when engaged on the business of the Court, enjoy diplomatic privileges and immunities. Every member of the Court, before taking up his duties, has to make a solemn declaration in open court that he will exercise his powers impartially and conscientiously.¹¹

Members of the Court are entitled to periodic leave, the dates and duration of which shall be fixed by the Court, having in mind the distance between The Hague and the home of

7. Articles 8–10, Statute of International Court of Justice.

8. Articles 11–12, Statute of International Court of Justice.

9. Articles 16–17, Statute of International Court of Justice.

10. Article 18, Statute of International Court of Justice.

11. Articles 19–20, Statute of International Court of Justice.

each judge. Members of the Court are bound, unless they are on leave or prevented from attending by illness or other serious reasons duly explained to the President, to hold themselves permanently at the disposal of the Court.¹²

If, for some special reason, a member of the Court considers that he should not take part in the decision of a particular case, he shall so inform the President. If the President considers that for some special reason one of the members of the Court should not sit in a particular case, he shall give him notice accordingly. If in any such case the member of the Court and the President disagree, the matter is to be settled by the decision of the Court.¹³

The judges are entitled to salary, allowances and compensation as are fixed by the General Assembly. Once fixed, they may not be decreased during the term of office.¹⁴

13.1.3 Term of Office

The members of the Court are elected for nine years and may be re-elected. The terms of five judges elected at the first election expired at the end of three years the terms of five more judges expired at the end of six years.

The members of the Court continue to discharge their duties until their places have been filled. Though replaced, they shall finish any cases which they may have begun. In the case of the resignation of a member of the Court, the resignation is to be addressed to the President of the Court for transmission to the Secretary-General. A member of the Court elected to replace a member whose term of office has not expired shall hold office for the remainder of his predecessor's term.¹⁵

13.1.4 Seat of the Court

The seat of the Court is established at The Hague. The Court, however, may sit and exercise its functions elsewhere whenever the Court considers it desirable. The Court shall remain permanently in session, except during the judicial vacations, the dates and duration of which are fixed by the Court.

13.1.5 Adhoc Chambers

Ordinarily, the full Court sits except when it is expressly provided otherwise in the Statute. Subject to the condition that the number of judges available to constitute the Court is not thereby reduced below eleven, the Rules of the Court may provide for allowing one or more judges, according to circumstances and in rotation, to be dispensed from sitting. A quorum of nine judges is suffice to constitute the Court.¹⁶

The Court may, however, from time to time form one or more chambers, composed of three or more judges as the Court may determine, for dealing with particular categories of cases; for example, labour cases and cases relating to transit and communications. The Court may at any time form a chamber for dealing with a particular case. The number of judges to constitute such a chamber is determined by the Court with the approval of the parties. Cases are heard and determined by the chambers if the parties so request. A judgment given by any

12. Article 23(2) and (3), Statute of International Court of Justice.

13. Articles 21–24, Statute of International Court of Justice.

14. Article 32, Statute of International Court of Justice.

15. Articles 13, 15, Statute of International Court of Justice.

16. Article 25, Statute of International Court of Justice.

of the chambers is considered as rendered by the Court. The chambers may, with the consent of the parties, sit and exercise their functions elsewhere than at The Hague.¹⁷

In order to “attract more business”, the Court changed its procedural Rules of Court in 1978 and used adhoc chambers under Article 26(2) of the Statute of ICJ. The use of chambers gives the parties influence as regards the number of judges to decide a case¹⁸ and as regards the composition of the chamber.

Adhoc chamber was preferred for the first time by Canada and the United States in *Gulf of Maine Case*.¹⁹ Thereafter, adhoc chambers were used in the *Frontier Dispute Case*;²⁰ *ELSI Case*; the *Land, Island and Maritime Frontier Dispute between El Salvador and Honduras Case*²¹ and in many other cases.²²

With a view to the speedy dispatch of business, the Court shall form annually a chamber composed of five judges which, at the request of the parties, may hear and determine cases by summary procedure. In addition, two judges shall be selected for the purpose of replacing judges who find it impossible to sit.²³

The Court frames rules for carrying out its functions. In particular, it lays down rules of procedure. The Rules of the Court may provide for assessors to sit with the Court or with any of its chambers, without the right to vote.²⁴

According to Article 31 of the Statute, judges of the nationality of each of the parties retain their right to sit in the case before the Court. If the Court includes upon the Bench a judge of the nationality of one of the parties, any other party may choose a person to sit as judge. Such person shall be chosen preferably from among those persons who have been nominated as candidates as provided in Articles 4 and 5. In *Jadhav Case (India v Pakistan) (Merits)*,²⁵ as there was no Pakistani Judge in the Bench, Pakistan proceeded to exercise its right under Article 31, paragraph 2, of the Statute to choose a judge *ad hoc* to sit in the case.

If the Court includes upon the Bench no judge of the nationality of the parties, each of these parties may proceed to choose a judge in the aforesaid manner. If there are several parties in the same interest, they shall, for the purpose of the preceding provisions, be reckoned as one party only. Any doubt upon this point is to be settled by the decision of the Court.

13.2 Competence of the Court

Only States may be parties in cases before the Court. In other words, only States have *locus standi* and may be a party to the contentious case before the Court. The other subjects of international law, e.g. international organisations, individuals, non-State parties, etc. cannot be a party to a case before the Court.

The Court may request public international organizations for information relevant to cases before it, and shall receive such information presented by such organizations on their own initiative. Whenever the construction of the constituent instrument of a public international organisation or of an international convention adopted thereunder is in question in a case

17. Articles 26–28, Statute of International Court of Justice.

18. Article 17(2), Rules of Court.

19. *Gulf of Maine Case*, (1984) ICJ Rep 246–390.

20. *Frontier Dispute Case*, (1986) ICJ Rep 554.

21. *Land, Island and Maritime Frontier Dispute between El Salvador and Honduras Case*, (1990) ICJ Rep 92.

22. Peter Malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, p 288.

23. Article 29, Statute of International Court of Justice.

24. Article 30, Statute of International Court of Justice.

25. *Jadhav Case (India v Pakistan) (Merits)*, Judgment dated 17 July 2019, para 11.

before the Court, the Registrar shall so notify the public international organisation concerned. He shall also communicate to it copies of all the written proceedings.²⁶

The Court is open to the States parties to the Statute of ICJ. However, that does not mean that States which are not parties to the Statute of ICJ cannot be a party to a case before the Court. Such States can also be parties before the case subject to the acceptance of conditions which is to be laid down by the Security Council subject to the special provisions contained in treaties in force. The conditions so laid down shall in no case place the parties in a position of inequality before the Court.

When a State which is not a Member of the United Nations is a party to a case, the Court shall fix the amount which that party is to contribute towards the expenses of the Court. This provision shall not apply if such State is bearing a share of the expenses of the Court.²⁷

13.3 Jurisdiction of the Court

The Court exercises two types of jurisdictions. It decides the contentious cases which are brought before it by the States and also delivers advisory opinion on the request of General Assembly, Security Council, or other organs of the United Nations and specialised agencies, which are so authorised by the General Assembly.

13.4 Contentious Cases

As already stated, only States have *locus standi* before the Court in a contentious case. The issue of *locus standi* arose before the Court in the *Case concerning the Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Yugoslavia Serbia and Montenegro) (Indication of Provisional Measures in 1993)*,²⁸ as the statehood of these States were in dispute at that point of time. The Court found them competent under Article 35(2) of the Statute because they were parties to the Genocide Convention which provides for a reference to the Court on disputes arising from the Convention.²⁹

The jurisdiction of the Court comprises all cases which the parties refer to it and all matters specially provided for in the Charter of the United Nations or in treaties and conventions in force. States, therefore, may agree by special agreement (*compromis*) to submit an existing dispute to the Court and thereby recognise the Court's jurisdiction over that particular case. The *compromis* remained a classic method by which the parties refer a "particular and defined matter" to the Court for a decision.³⁰ The Court cannot decide a case unless the parties have accepted its jurisdiction. In *East Timor* case,³¹ the Court stated that "... one of the fundamental principles of its Statute is that it cannot decide a dispute between States without the consent of those States to its jurisdiction".³² In *Certain Phosphate Lands in Nauru (Nauru v Australia)*,³³ the Court stated that "its jurisdiction depends on the consent of States and, consequently, the Court may not compel a State to appear before it, even by way of intervention".³⁴

26. Article 34, Statute of International Court of Justice.

27. Article 35, Statute of International Court of Justice.

28. *Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Yugoslavia Serbia and Montenegro) (Indication of Provisional Measures in 1993)*, (1993) ICJ Rep 325.

29. Rebecca M M Wallace, *International Law*, 1997, p 288.

30. Rosenne, *The Law and Practice of the International Court*, vol 1, 1965, p 333.

31. *Portugal v Australia (East Timor case)*, (1995) ICJ Rep 90, para 26.

32. See also *Monetary Gold Removed from Rome in 1943 (Italy v France, United Kingdom and United States)*, (1954) ICJ Rep 19.

33. *Certain Phosphate Lands in Nauru (Nauru v Australia)*, Preliminary Objections, Judgment, (1992) ICJ Rep 240. ICJ Rep, p. 240.

34. *Certain Phosphate Lands in Nauru (Nauru v Australia)*, Preliminary Objections, Judgment, (1992) ICJ Rep 240, para 53.

The consent given by the States to accept the compulsory jurisdiction of the Court may be express or implied. The consent of States to submit their disputes to the Court may also be inferred from their acts.³⁵ In *Appeal Relating to the Jurisdiction of the ICAO Council*,³⁶ the International Court of Justice observed that “it is certainly to be desired that objections to the jurisdiction of the Court should be put forward as preliminary objections for separate decision in advance of the proceedings on the merits. The Court must however always be satisfied that it has jurisdiction and must if necessary go into that matter *proprio motu*. The real issue raised by the present case was whether, in the event of a party’s failure to put forward a jurisdictional objection as a preliminary one, that party might not thereby be held to have acquiesced in the jurisdiction of the Court”. Referring to this case, the Court in *Avena and Other Mexican Nationals (Mexico v United States of America)*,³⁷ stated that “there are of course circumstances in which the party failing to put forward an objection to jurisdiction might be held to have acquiesced in jurisdiction”.

In *Corfu Channel (Preliminary Objection) Case*,³⁸ the Court exercised its jurisdiction on the basis of *forum prorogatum*. By this, the Court has jurisdiction where the parties have given their consent by separate acts expressly or impliedly accepting it. One of those acts being the making of a unilateral application under Article 40(1) of the Statute.³⁹ Sometimes, the bilateral and multilateral treaties also contain a provision by which it is made mandatory for the State parties to refer any dispute to the Court, which may arise under the treaty.

13.4.1 Declarations of States Accepting Compulsory Jurisdiction

According to Article 36(2), the States parties to the present Statute may at any time declare that they recognise as compulsory *ipso facto* and without special agreement, in relation to any other State accepting the same obligation, the jurisdiction of the Court in all legal disputes concerning:

- (i) the interpretation of a treaty;
- (ii) any question of international law;
- (iii) the existence of any fact which, if established, would constitute a breach of an international obligation;
- (iv) the nature or extent of the reparation to be made for the breach of an international obligation.

The declarations may be made unconditionally or on condition of reciprocity on the part of several or certain States, or for a certain time. Such declarations are to be deposited with the Secretary-General of the United Nations, who shall transmit copies thereof to the parties to the Statute and to the Registrar of the Court.

The principle of reciprocity follows from the wordings “in relation to any other State accepting the same obligation” in Article 36(2). According to this principle, a State accepts the Court’s jurisdiction *vis-a-vis* any other State only in so far as that State has accepted it also. In

35. See e.g., *Rights of Minorities in Polish Upper Silesia*, PCIJ Rep Series A No 15 (1928); the *Monetary Gold Case*, (1954) ICJ Rep 19. See also Rebecca M M Wallace, *International Law*, (1997), p 290.

36. *Appeal Relating to the Jurisdiction of the ICAO Council*, Judgment, (1972) ICJ Rep 46, at 52, para 13.

37. *Avena & Other Mexican Nationals (Mexico v United States of America)*, Judgment, (2004) ICJ Reports ICJ Rep 12, p 29.

38. *Corfu Channel (Preliminary Objection) Case*, (1948) ICJ Rep 15. The Court stated that while the consent of the parties confers jurisdiction on the Court, such consent need not be expressed in any special form. A previous formal conclusion of a special agreement is unnecessary.

39. See D J Harris, *Cases and Materials on International Law*, 2004, p. 1039.

Anglo-Iranian Oil Co case,⁴⁰ the Court stated that “jurisdiction is conferred on the Court only to the extent to which the two declarations coincide in conferring it”⁴¹ and the subject-matter of the dispute is not excluded from the jurisdiction of the Court by any of the parties. In the *Interhandel* case,⁴² the Court made following observations on reciprocity:

Reciprocity in the case of Declarations accepting the compulsory jurisdiction of the Court enables a Party to invoke a reservation to that acceptance which it has not expressed in its own Declaration but which the other Party has expressed in its Declaration. ... Reciprocity enables the state which has made the wider acceptance of the jurisdiction of the Court to rely upon the reservations to the acceptance laid down by the other party. There the effect of reciprocity ends.

A State, therefore, may invoke a reservation to an acceptance which it has not expressed in its own declaration, but which the other party has expressed in its own declaration.⁴³ States normally make reservations while accepting the jurisdiction of the Court. The Court, thus exercises its jurisdiction with respect to those matters only which have not been excluded from its jurisdiction.

Where a State has made a reservation in its declaration, the Court may still assume jurisdiction on the excluded matter on some other basis, such as a jurisdiction clause in a treaty between the parties.⁴⁴

Under Article 36(3), States are allowed to make declarations for a certain period. They can renew it from time to time. They can withdraw their existing declarations and issue new one excluding those areas or subjects in which they may anticipate disputes. As a result of *Nuclear Tests* cases,⁴⁵ France terminated its declaration in 1974; whereas the United States terminated its declaration in 1985 because of the *Nicaragua* case.⁴⁶ There are many declarations which are terminable upon notice; some others are terminable upon a specific period of notice; other are valid for five years which are automatically renewed unless revoked before the expiry of the term; and a number of declarations contain no time limit.⁴⁷

13.4.1.1 India's declaration accepting the compulsory jurisdiction

India made first declaration under Article 36(2) accepting the compulsory jurisdiction of the Court on 14 September 1959. This declaration was revoked and replaced by a new declaration on 18 September 1974. A new declaration dated 18 September 2019 was submitted by India accepting compulsory jurisdiction of the Court. By this declaration, India accepted:

...in conformity with paragraph 2 of Article 36 of the Statute of the Court, until such time as notice may be given to terminate such acceptance, as compulsory *ipso facto* and without special agreement, and on the basis and condition of reciprocity, the jurisdiction of the International Court of Justice over all disputes other than:

- (1) disputes in regard to which the parties to the dispute have agreed or shall agree to have recourse to some other method or methods of settlement;
- (2) disputes with the government of any State which is or has been a Member of the Commonwealth of Nations;

40. *United Kingdom v Iran (Anglo-Iranian Oil Co. case)*, (1952) ICJ Rep 93.

41. *United Kingdom v Iran (Anglo-Iranian Oil Co case)*, (1952) ICJ Rep 103.

42. *Interhandel (Switzerland v United States of America)*, (1959) ICJ Rep 6.

43. See also *Norwegian Loans Case*, (1957) ICJ Rep 9; and *Interhandel Case*, (1959) ICJ Rep 6.

44. *Appeal Relating to the Jurisdiction of the ICAO Council case*, (1972) ICJ Rep 46, p 53.

45. *Australia v France; New Zealand v France*, (1974) ICJ Rep 253.

46. *Nicaragua v United States*, (1986) ICJ Rep 14.

47. See D J Harris, *Cases and Materials on International Law*, 2004, p 1045.

- (3) disputes in regard to matters which are essentially within the domestic jurisdiction of the Republic of India;
- (4) disputes relating to or connected with facts or situations of hostilities, armed conflicts, individual or collective actions taken in self-defence, resistance to aggression, fulfilment of obligations imposed by international bodies, and other similar or related acts, measures or situations in which India is, has been or may in future be involved, including the measures taken for protection of national security and ensuring national defence;
- (5) disputes with regard to which any other party to a dispute has accepted the compulsory jurisdiction of the International Court of Justice exclusively for or in relation to the purposes of such dispute; or where the acceptance of the Court's compulsory jurisdiction on behalf of a party to the dispute was deposited or ratified less than 12 months prior to the filing of the application bringing the dispute before the Court;
- (6) disputes where the jurisdiction of the Court is or may be founded on the basis of a treaty concluded under the auspices of the League of Nations, unless the Government of India specially agree to jurisdiction in each case;
- (7) disputes concerning the interpretation or application of a multilateral treaty to which India is not a party; and disputes concerning the interpretation or application of a multilateral treaty to which India is a party, unless all the parties to the treaty are also parties to the case before the Court or the Government of India specially agree to jurisdiction;
- (8) disputes with the Government of any State with which, on the date of an application to bring a dispute before the Court, the Government of India has no diplomatic relations or which has not been recognized by the Government of India;
- (9) disputes with non-sovereign States or territories;
- (10) disputes with India concerning or relating to:
 - (a) the status of its territory or the modification or delimitation of its frontiers or any other matter concerning boundaries;
 - (b) the territorial sea, the continental shelf and the margins, the exclusive fishery zone, the exclusive economic zone, and other zones of national maritime jurisdiction including for the regulation and control of marine pollution and the conduct of scientific research by foreign vessels;
 - (c) the condition and status of its islands, bays and gulfs and that of the bays and gulfs that for historical reasons belong to it;
 - (d) the airspace superjacent to its land and maritime territory; and
 - (e) the determination and delimitation of its maritime boundaries.
- (11) disputes prior to the date of this declaration, including any dispute the foundations, reasons, facts, causes, origins, definitions, allegations or bases of which existed prior to this date, even if they are submitted or brought to the knowledge of the Court hereafter.
- (12) This declaration revokes and replaces the previous declaration submitted by the Government of India on 18 September, 1974.
- (13) The Government of India reserves the right at any time, by means of a written notification addressed to the Secretary-General of the United Nations, and with effect as from the moment of such notification, either to amend or terminate the present declaration.

The 2019 declaration is the same as of 1974 declaration with the following additions — clauses (12) and (13) have been added in the 1974 declaration. Apart from that the words “including the measures taken for protection of national security and ensuring national defence” have been added in clause (4).

The reservation with respect to disputes with a Member of the Commonwealth of Nations was pleaded successfully by India to prevent the Court taking jurisdiction in the *Aerial Incident* of 10 August 1999 case.⁴⁸

The Court has to exercise its jurisdiction cautiously when the legal rights of the third parties are also involved. In *Land and Maritime Boundary between Cameroon and Nigeria* case,⁴⁹ the Court stated that it was able to rule on the maritime boundary between the two parties, but only to the extent that it was not called upon to “decide upon the legal rights of third States not parties to the proceedings”.

In *Jadhav (India v Pakistan)*,⁵⁰ referring to the scope of Article 36, paragraph 1 and Article 36, paragraph 2 of the Statute of ICJ, the Court stated that when the jurisdiction of the Court is founded on particular “treaties and conventions in force” pursuant to Article 36, paragraph 1, of its Statute, “it becomes irrelevant to consider the objections to other possible bases of jurisdiction”.⁵¹ Therefore, “any reservations contained in the declarations made by the Parties under Article 36, paragraph 2, of the Statute cannot impede the Court’s jurisdiction specially provided for in the Optional Protocol [to the Vienna Convention]. Thus, the Court need not examine these reservations further”.⁵²

13.4.2 Declarations Made Under the Statute of PCIJ

All those declarations which were made under Article 36 of the Statute of the Permanent Court of International Justice and which remained in force were also deemed to be acceptances of the compulsory jurisdiction of the International Court of Justice in accordance with their terms. Where a dispute arises as to the jurisdiction of the Court, the matter is to be settled by the decision of the Court only.⁵³

Whenever a treaty or convention in force provides for reference of a matter to a tribunal to have been instituted by the League of Nations, or to the Permanent Court of International Justice, the matter is to be referred to the International Court of Justice.⁵⁴

While deciding a dispute, the Court is to apply: (i) international conventions, whether general or particular, establishing rules expressly recognised by the contesting States; (ii) international custom, as evidence of a general practice accepted as law; (iii) the general principles of law recognised by civilised nations; (iv) subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law. The Court is to decide a case *ex aequo et bono*, if the parties agree thereto. This provision has already been discussed in detail under the Chapter on “Sources of International Law”.⁵⁵

48. *Pakistan v India*, (2000) ICJ Rep 12.

49. *Cameroon v Nigeria*, ICJ, 10 October 2002, General List No. 94.

50. *Provisional Measures*, Order of 18 May 2017, (2017) ICJ Rep 231.

51. *Appeal Relating to the Jurisdiction of the ICAO Council (India v Pakistan)*, Judgment, (1972) ICJ Rep 60, para 25; see also *Territorial and Maritime Dispute (Nicaragua v Colombia)*, Preliminary Objections, Judgment, (2007) (2) ICJ Rep 872, para 132.

52. *Provisional Measures*, Order of 18 May 2017, (2017) ICJ Rep 231, para 26.

53. Article 36(5) and (6), Statute of International Court of Justice.

54. Article 37, Statute of International Court of Justice.

55. Article 38, Statute of International Court of Justice.

13.5 Procedure of the Court

There are two official languages of the Court — French and English. On the basis of the agreement between the parties, the case is either to be conducted in English or in French and the judgment is also to be delivered in the same language in which the case was conducted.

However, where there is no agreement between the parties with respect to the language which is to be employed, each party may, in the pleadings, use the language which it prefers. In such a case, the decision of the Court shall be given in French and English. The Court shall at the same time determine which of the two texts shall be considered as authoritative. Further, at the request of any party, the Court shall authorise a language other than French or English to be used by that party.⁵⁶

According to Article 40, the cases are brought before the Court either by the notification of the special agreement or by a written application addressed to the Registrar. In either case the subject of the dispute and the parties are to be indicated. The Registrar shall communicate the application to all concerned. He shall also notify the Members of the United Nations through the Secretary-General, and also any other States entitled to appear before the Court. A State, thus, may make a unilateral application accepting the jurisdiction of the Court under Article 40.

The parties are to be represented by agents. They may have the assistance of counsel or advocates before the Court. The agents, counsel, and advocates of parties before the Court shall enjoy the privileges and immunities necessary to the independent exercise of their duties.⁵⁷

Article 43 provides that the procedure is to consist of two parts: written and oral. The written proceedings are to consist of the communication to the Court and to the parties of memorials, counter-memorials and, if necessary, replies. The proceedings shall also include all papers and documents in support. The oral proceedings are to consist of the hearing by the Court of witnesses, experts, agents, counsel, and advocates.

The hearing in Court is public, unless the Court decides otherwise, or unless the parties demand that the public be not admitted. Minutes are to be made at each hearing and signed by the Registrar and the President. These minutes alone shall be authentic.⁵⁸

The Court makes orders for the conduct of the case. It decides the form and time in which each party must conclude its arguments. It also makes all arrangements connected with the taking of evidence. It may call upon the agents to produce any document or to supply any explanations, even before the hearing begins. The Court is to take formal note of any refusal.⁵⁹

The Court may entrust any individual, body, bureau, commission, or other organisation with the task of carrying out an enquiry or giving an expert opinion. During the hearing any relevant questions are to be put to the witnesses and experts. After the Court has received the proofs and evidence within the time specified, it may refuse to accept any further oral or written evidence that one party may desire to present unless the other side consents.⁶⁰

Whenever one of the parties does not appear before the Court, or fails to defend its case, the other party may call upon the Court to decide in favour of its claim. However, the Court must, before doing so, satisfy itself, not only that it has jurisdiction in accordance with Articles 36 and 37 of the Statutes of International Court of Justice, but also that the claim is well founded in fact and law.⁶¹

56. Article 39, Statute of International Court of Justice.

57. Article 42, Statute of International Court of Justice.

58. Articles 46, 47, Statute of International Court of Justice.

59. Articles 48, 49, Statute of International Court of Justice.

60. Articles 50–52, Statute of International Court of Justice.

61. Article 53, Statute of International Court of Justice.

When the agents, counsel, and advocates have completed their presentation of the case, the Court withdraws to consider the judgment. The deliberations of the Court takes place in private and remain secret. All questions are to be decided by a majority of the judges present. In the event of an equality of votes, the President shall have a casting vote. The judgment is to state the reasons on which it is based.⁶²

13.6 Provisional Measures

Where the Court considers that circumstances require that any provisional measures ought to be taken to preserve the respective rights of either party, it may indicate so. Pending the final decision, notice of the measures suggested shall be given to the parties and to the Security Council.⁶³

The objective of the Court's power to indicate provisional measures is "the preservation of the respective rights claimed by the parties in a case, pending its decision on the merits thereof". Such rights may subsequently be adjudged by the Court to belong to either party. It is, however noteworthy that the "Court may exercise this power only if it is satisfied that the rights asserted by the party requesting such measures are at least plausible".⁶⁴ Moreover, a link must exist between the rights whose protection is sought and the provisional measures being requested.⁶⁵

In order to indicate provisional measures, the Court "need not satisfy itself in a definitive manner that it has jurisdiction as regards the merits of the case". The Court "may indicate provisional measures only if the provisions relied on by the Applicant appear, *prima facie*, to afford a basis on which its jurisdiction could be founded. This significant observation was made by Court in the *Jadhav (India v Pakistan)*⁶⁶; *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation)*⁶⁷; and in many other cases.⁶⁸ Thus, for indicating provisional measures, the Court only need to satisfy that the provisions relied on by the Applicant appear, *prima facie*, to afford a basis on which its jurisdiction could be founded.

The Court exercises its power to indicate provisional measures only if there is urgency. Here "urgency" means that "there is a real and imminent risk that irreparable prejudice will be caused

62. Articles 54–56, Statute of International Court of Justice.

63. Article 41, Statute of International Court of Justice.

64. *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation)*, Provisional Measures, Order of 19 April 2017, (2017) ICJ Rep 126, para. 63; see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar)* Provisional Measures, 23 January 2020 Order, para 43; *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Qatar v United Arab Emirates)*, Provisional Measures, Order of 23 July 2018, (2018) ICJ Rep 406, pp 421–422, para 43.

65. *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation)*, Provisional Measures, Order of 19 April 2017, (2017) ICJ Rep 126, para 64.

66. *Jadhav (India v Pakistan)*, Provisional Measures, Order of 18 May 2017, (2017) ICJ Rep 231, para 15.

67. *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation)*, Provisional Measures, Order of 19 April 2017, (2017) ICJ Rep 114, para 17.

68. See also *Alleged Violations of the 1955 Treaty of Amity, Economic Relations, and Consular Rights (Islamic Republic of Iran v United States of America)*, Provisional Measures, Order of 3 October 2018, (2018) 2 ICJ Rep 630, para. 24; *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar)* Provisional Measures, Order of 23 January 2020, para 16.

to the rights in dispute before the Court gives its final decision”.⁶⁹ The condition of urgency is met when the acts susceptible of causing irreparable prejudice can “occur at any moment” before the Court makes a final decision on the case. The Court must therefore consider whether such a risk exists at this stage of the proceedings.⁷⁰ In *Jadhav (India v Pakistan)*, Order of 18 May 2017,⁷¹ the Court considered that, “as far as the risk of irreparable prejudice to the rights claimed by India is concerned, the mere fact that Mr. Jadhav is under such a sentence and might therefore be executed is sufficient to demonstrate the existence of such a risk”.⁷² Accordingly, the Court unanimously indicated the provisional measure that “Pakistan shall take all measures at its disposal to ensure that Mr. Jadhav is not executed pending the final decision in these proceedings and shall inform the Court of all the measures taken in implementation of the present Order”. The Court also unanimously decided that “until the Court has given its final decision, it shall remain seized of the matters which form the subject-matter of this Order”.⁷³

Are these provisional measures binding on the parties? This question was dealt with in *LaGrand* case.⁷⁴ Answering the question in affirmative, the Court observed:

[T]he context in which Article 41 has to be seen within the Statute is to prevent the Court from being hampered in the exercise of its functions because the respective rights of the parties to a dispute before the Court are not preserved. It follows from the object and purpose of the Statute, as well as from the terms of Article 41 when read in their context, that the power to indicate provisional measures entails that such measures should be binding, inasmuch as the power in question is based on the necessity, when the circumstances call for it, to safeguard, and to avoid prejudice to, the rights of the parties as determined by the final judgment of the Court. The contention that provisional measures indicated under Article 41 might not be binding would be contrary to the object and purpose of that Article.⁷⁵

In *Jadhav (India v Pakistan)*, Order of 18 May 2017,⁷⁶ the Court reaffirmed that its “orders on provisional measures under Article 41 of the Statute have binding effect” and “thus create international legal obligations for any party to whom the provisional measures are addressed”.⁷⁷

A related reason which points to the binding character of orders made under Article 41 and to which the Court attached importance is the existence of a principle which has already been recognised by the PCIJ in *Electricity Company of Sofia and Bulgaria*:⁷⁸

[T]he principle universally accepted by international tribunals and likewise laid down in many conventions ... to the effect that the parties to a case must abstain from any measure capable of exercising a prejudicial effect in regard to the execution of the decision to be given, and, in general, not allow any step of any kind to be taken which might aggravate or extend the dispute.

69. *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation)*, Provisional Measures, Order of 19 April 2017, (2017) ICJ Rep 126, para 89.

70. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar)* Provisional Measures, Order of 23 January 2020, para 65; see also *Alleged Violations of the 1955 Treaty of Amity, Economic Relations, and Consular Rights (Islamic Republic of Iran v United States of America)*, Provisional Measures, Order of 3 October 2018, (2018) Rep 623, pp 645–646, para 78.

71. *Jadhav (India v Pakistan)*, Provisional Measures, (2017) ICJ Rep 231.

72. *Jadhav (India v Pakistan)*, Provisional Measures, (2017) ICJ Rep 231, para 53.

73. *Jadhav (India v Pakistan)*, Provisional Measures, (2017) ICJ Rep 231, para 61.

74. *LaGrand (Germany v United States of America)* Case (Merits), (2001) ICJ Rep 466.

75. *LaGrand (Germany v United States of America)* Case (Merits), (2001) ICJ Rep 466, para 102.

76. *Jadhav (India v Pakistan)*, Provisional Measures, (2017) ICJ Rep 231.

77. *Jadhav (India v Pakistan)*, Provisional Measures, (2017) ICJ Rep 231, para 59. See also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar)* Provisional Measures, 23 January 2020 Order, para 84.

78. *Electricity Company of Sofia and Bulgaria*, Order of 5 December 1939, PCIJ Rep Series A/B, No 79, p 199.

The Court stated that the wordings in Article 94(1) of the UN Charter⁷⁹ “could be understood as referring not merely to the Court’s judgments but to any decision rendered by it, thus including orders indicating provisional measures. ... The Court accordingly concludes that Article 94 of the Charter does not prevent orders made under Article 41 from having a binding character”.⁸⁰

In practice, however, it has been found that the States have not respected provisional measures that are indicated against them. This happened in the *Anglo-Iranian Oil Co* case, the *Fisheries Jurisdiction* cases, the *Nuclear Tests* cases, the *US Diplomatic and Consular Staff in Tehran* case, and the *LaGrand* case. There has not been full compliance in *Nicaragua* case.⁸¹

13.7 Finality and Revision of the Judgment

According to Article 59, the decision of the Court has no binding force except between the parties and in respect of that particular case. In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁸² the International Court of Justice stated that Article 59 of the Statute of the Court, “notwithstanding its negative wording, has at its core the positive statement that the parties are bound by the decision of the Court in respect of the particular case”.⁸³

The judgment is final and without appeal. In the event of dispute as to the meaning or scope of the judgment, the Court is to construe it upon the request of any party.⁸⁴

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁸⁵ the International Court of Justice stated that Article 60 of the Statute articulates the finality of judgments. “Depriving a litigant of the benefit of a judgment it has already obtained must in general be seen as a breach of the principles governing the legal settlement of disputes”.⁸⁶

An application for revision of a judgment may be made only when it is based upon the discovery of some fact of such a nature as to be a decisive factor. Such fact should have been unknown to the Court and also to the party claiming revision when the judgment was given. The ignorance of such facts should not be due to negligence.

The proceedings for revision shall be opened by a judgment of the Court expressly recording the existence of the new fact, recognizing that it has such a character as to lay the case open to revision, and declaring the application admissible on this ground. The Court may, however, require previous compliance with the terms of the judgment before it admits proceedings in revision. The application for revision is to be made at latest within six months of the discovery of the new fact. No application for revision is allowed to be made after the lapse of ten years from the date of the judgment.⁸⁷

79. Article 94(1) of the UN Charter provides that “Each Member of the United Nations undertakes to comply with the decision of the International Court of Justice in any case to which it is a party”.

80. *LaGrand (Germany v United States of America)* (Merits) case, (2001) ICJ Rep 466, para 108.

81. See DJ Harris, *Cases and Materials on International Law*, 2004, p 1076.

82. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43.

83. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43, para 115.

84. Article 60, Statute of International Court of Justice.

85. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43.

86. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43, para 116.

87. Article 61, Statute of International Court of Justice.

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁸⁸ the Court stated that, should a party to a case believe that elements have come to light subsequent to the decision of the Court which tend to show that the Court's conclusions may have been based on incorrect or insufficient facts, the decision of the Court in such a situation must not remain final, even if it is in apparent contradiction to reality. The Statute provides for only one procedure in such an event: the procedure under Article 61, which offers the possibility for the revision of judgments, subject to the restrictions stated in that Article. In the interests of the stability of legal relations, those restrictions must be rigorously applied. Subject only to this possibility of revision, the applicable principle is *res judicata pro veritate habetur*, that is to say that the findings of a judgment are, for the purposes of the case and between the parties, to be taken as correct, and may not be reopened on the basis of claims that doubt has been thrown on them by subsequent events.⁸⁹

In *Application for Revision of the Judgment of 11 July 1996 in the Case Concerning Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Yugoslavia v Bosnia and Herzegovina)*,⁹⁰ the Court stated that Yugoslavia “bases its Application for revision on the legal consequences which it seeks to draw from facts subsequent to the Judgment which it is asking to have revised. Those consequences, even supposing them to be established, cannot be regarded as facts within the meaning of Article 61”. The Yugoslavia's argument, therefore cannot be upheld.

13.8 Intervention of Third Party

According to Article 62, if a State considers that it has an interest of a legal nature which may be affected by the decision in the case, it may submit a request to the Court to be permitted to intervene. The Court is to decide upon such request. In the *Land, Island and Maritime Frontier Dispute case (El Salvador v Honduras)*,⁹¹ the Court allowed Nicaragua to intervene under Article 62 of the Statute in respect of the legal regime of the Gulf of Fonseca. The application, however, was refused in respect of other matters before the Court.

Intervention under Article 62 is a matter for the Court. There is no right to intervene and the parties to the case may only seek to persuade the Court to adopt any view that they have. The burden of proof is on the State seeking to intervene. A State may be permitted to intervene even though there is no “jurisdictional link” between the intervening State and the parties to the case.⁹² Intervention was also allowed by the Court to Equatorial Guinea in *Land and Maritime Boundary (Cameroon v Nigeria)* case.⁹³ An intervening State is not bound by the Court's judgment, as it is not a party to the case. Article 59 States that the decision of the Court has no binding force except between the parties and in respect of that particular case.

In *Certain Phosphate Lands in Nauru (Nauru v Australia)*,⁹⁴ the Court stated that a State, which is not a party to a case is free to apply for permission to intervene in accordance with Article 62 of the Statute.

88. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43.

89. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)* Judgment, (2007) ICJ Rep 43, para 120.

90. *Application for Revision of the Judgment of 11 July 1996 in the Case Concerning Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Yugoslavia v Bosnia and Herzegovina)*, (2003) ICJ Rep 7, para 69.

91. *Land, Island and Maritime Frontier Dispute case (El Salvador v Honduras)*, (1990) ICJ Rep 92, p 121.

92. *Land, Island and Maritime Frontier Dispute case (El Salvador v Honduras)*, (1990) ICJ Rep 92, pp 117, 135.

93. *Land and Maritime Boundary (Cameroon v Nigeria)*, (1999) ICJ Rep 1029.

94. *Certain Phosphate Lands in Nauru (Nauru v Australia)*, Preliminary Objections, Judgment, (1992) ICJ Rep 240.

But the absence of such a request in no way precludes the Court from adjudicating upon the claims submitted to it, provided that the legal interests of the third State which may possibly be affected do not form the very subject-matter of the decision that is applied for. Where the Court is so entitled to act, the interests of the third State which is not a party to the case are protected by Article 59 of the Statute of the Court.⁹⁵

According to Article 63, whenever the construction of a convention to which States other than those concerned in the case are parties is in question, the Registrar shall notify all such States forthwith. Every such State has the right to intervene in the proceedings. But if it uses this right, the construction given by the judgment will be equally binding upon it. Article 63, thus allows intervention in a case where a State is a party to a treaty that is being interpreted by the Court. In *Wimbledon* case,⁹⁶ the PCIJ and in *Haya de la Torre* case,⁹⁷ the Court allowed intervention under Article 63 of the Statute.⁹⁸

13.9 Enforcement of the Judgment

Each Member of the United Nations undertakes to comply with the decision of the International Court of Justice in any case to which it is a party. If any party to a case fails to perform the obligations incumbent upon it under a judgment rendered by the Court, the other party may have recourse to the Security Council. In such a case, the Security Council may, if it deems necessary, make recommendations or decide upon measures to be taken to give effect to the judgment.⁹⁹

The only measures the Security Council may adopt in this regard are those under Chapter VI of the Charter, dealing with the settlement of disputes, and not the stronger measures under Chapter VII which require an immediate threat to the peace before sanctions can be adopted.¹⁰⁰ It is noteworthy that a request by Nicaragua to the Security Council to enforce the Court's decision in the *Nicaragua* case¹⁰¹ was vetoed by the United States.¹⁰²

States normally give effect to the judgments of the Court. The aforesaid provision as contained in Article 94(2) is hardly used in practice. It has been observed that the problem of enforcement of judgments of the Court is not a serious one. The reason is that if a State is willing to accept the jurisdiction of the Court in a specific case, it is usually willing to carry out the Court's judgment also. The important issue is that States should come forward to accept the jurisdiction of the Court on all legal matters leaving behind the reservations unless those reservations are required for some genuine reasons and improve friendly relations among themselves.

13.10 Advisory Opinion

The purpose of the advisory opinion is not to settle disputes between States, but to offer legal advice to the organs and institutions requesting the opinion.¹⁰³ Article 96 of the UN Charter enables the General Assembly and the Security Council to request the International Court of Justice to give an advisory opinion on any legal question. In addition, other organs of

95. *Certain Phosphate Lands in Nauru (Nauru v Australia)*, Preliminary Objections, Judgment, (1992) ICJ Rep 240, para 54.

96. *France, Italy, Japan and the United Kingdom v Germany (Wimbledon case)*, PCIJ Rep Series A No 1 (1923).

97. *Haya de la Torre (Colombia v Peru)*, (1951) ICJ Rep 71.

98. See also D J Harris, *Cases and Materials on International Law*, 2004, p 1071.

99. Article 94, UN Charter.

100. Peter malanczuk, *Akehurst's Modern Introduction to International Law*, 1997, pp 288–89.

101. *Nicaragua case (The Republic of Nicaragua v The United States of America)*, (1986) ICJ Rep 14.

102. S/PV 2718 of 28 October 1986, 51, UN Doc. S/18428.

103. *The Interpretation of Peace Treaties case*, (1950) ICJ Rep 71.

the United Nations and specialised agencies, which may at any time be so authorised by the General Assembly, may also request advisory opinions of the Court on legal questions arising within the scope of their activities.

Thus, General Assembly and Security Council may seek advisory opinion on any legal question, whereas the other organs of the United Nations and specialised agencies may seek advisory opinion only on legal questions *arising within the scope of their activities*. The ECOSOC and Trusteeship Council are authorised to seek advisory opinion of the Court. In addition, barring Universal Postal Union and the Multilateral Investment Guarantee Agency, rest of the specialised agencies are also authorised to seek advisory opinion.

According to Article 65(1) of the Statute of International Court of Justice, the Court *may* give an advisory opinion on any *legal question* at the request of a body which is so authorised by or in accordance with the Charter of the United Nations to make such a request. Thus, “the Court may give an advisory opinion on any legal question, abstract or otherwise”.¹⁰⁴

The Court has discretionary power to give an advisory opinion as the word “may” has been used in Article 65(1). Does it mean that Court may refuse to give advisory opinion? This question was discussed by Court in *In Advisory Opinion on Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*.¹⁰⁵ The Court stated that “discretion whether or not to respond to a request for an advisory opinion exists so as to protect the integrity of the Court’s judicial function as the principal judicial organ of the United Nations”. The Court further stated that it was mindful of the fact that its answer to a request for an advisory opinion “represents its participation in the activities of the Organization, and, in principle, should not be refused”.¹⁰⁶ Thus, the consistent jurisprudence of the Court is that “only “compelling reasons” may lead the Court to refuse its opinion in response to a request falling within its jurisdiction”.¹⁰⁷

In 1993, the WHO requested the Court to deliver an advisory opinion on the following question:

In view of the health and environmental effects, would the use of nuclear weapons by a State in war or other armed conflict be a breach of its obligations under international law including the WHO Constitution?

While refusing to give an advisory opinion, the Court held that the question did not fall within the scope of WHO’s activities, as is required by Article 96(2) of the UN Charter.

In *Advisory Opinion of International Court of Justice on the Legality of the Threat or Use of Nuclear Weapons*,¹⁰⁸ the Court stated that Article 65(1) “is more than an enabling provision. As the Court has repeatedly emphasised, the Statute leaves a discretion as to whether or not it will give an advisory opinion that has been requested of it, once it has established its competence

104. *Advisory Opinion on Conditions of Admission of a State to Membership in the United Nations*, (1948) ICJ Rep 61.

105. *Advisory Opinion on Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, Advisory Opinion of 25 February 2019.

106. See also *Interpretation of Peace Treaties with Bulgaria, Hungary and Romania, (First Phase)*, Advisory Opinion, (1950) ICJ Rep 71; *Difference Relating to Immunity from Legal Process of a Special Rapporteur of the Commission on Human Rights*, Advisory Opinion, (1999) 1 ICJ Rep 78, p 79, para 29; *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, (2004) 1 ICJ Rep 156, para 44.

107. *Advisory Opinion on Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, Advisory Opinion of 25 February 2019, paras 64, 65. See also *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, (2004) 1 ICJ Rep 156, para 44; *Accordance with International Law of the Unilateral Declaration of Independence in respect of Kosovo*, Advisory Opinion, (2010) 2 ICJ Rep 416, para 30.

108. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 14.

to do so". The Court referred to its earlier Advisory Opinion on *Interpretation of Peace Treaties with Bulgaria, Hungary and Romania (First Phase)*,¹⁰⁹ in which it has noted:

The Court's Opinion is given not to the States, but to the organ which is entitled to request it; the reply of the Court, itself an 'organ of the United Nations', represents its participation in the activities of the Organization, and, in principle, should not be refused.

It is not for the Court itself to purport to decide whether or not an advisory opinion is needed by the General Assembly for the performance of its functions. The General Assembly has the right to decide for itself on the usefulness of an opinion in the light of its own needs.¹¹⁰ Further, the Court stated that the political nature of the motives which may be said to have inspired the request and the political implications that the opinion given might have are of no relevance in the establishment of its jurisdiction to give such an opinion.¹¹¹

According to Article 65(2), the questions upon which the advisory opinion of the Court is asked, is to be laid before the Court by means of a written request containing an exact statement of the question upon which an opinion is required. The request is to be accompanied by all documents which may throw light upon the question. It is noteworthy that "lack of clarity in the drafting of a question does not deprive the Court of jurisdiction. Rather, such uncertainty will require clarification in interpretation, and such necessary clarifications of interpretation have frequently been given by the Court".¹¹²

According to Article 66, the Registrar shall give notice of the request for an advisory opinion to all States entitled to appear before the Court. States and organisations having presented written or oral statements or both shall be permitted to comment on the statements made by other States or organisations in the form, to the extent, and within the time-limits which the Court shall decide in each particular case. Accordingly, the Registrar shall in due time communicate any such written statements to States and organisations having submitted similar statements.

Thus, according to Article 66, States are not allowed to seek advisory opinion from the Court, but they are permitted to participate in proceedings before the Court along with international organisations. The other subjects of international law do not have any *locus standi*. More than 20 States made oral and/or written statements to the Court in *Legality of the Threat or Use of Nuclear Weapons* case.

The Court is to deliver its advisory opinions in open court.¹¹³ In the exercise of its advisory functions, the Court is to be guided by the provisions of the present Statute which apply in contentious cases to the extent to which it recognises them to be applicable.¹¹⁴

The advisory opinion of the Court is not like a judgment which has a binding effect. The advisory opinions are consultative opinions and non-binding on the requesting bodies unless provided otherwise in the instrument concerned. The advisory opinions, however are being considered seriously and complied in most the cases. Sometimes, the advisory opinions contribute significantly to the development of international law. There are, however, examples when advisory opinions have not been complied with. For example, the General Assembly

109. *Interpretation of Peace Treaties with Bulgaria, Hungary and Romania (First Phase)*, (1950) ICJ Rep 71.

110. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 16.

111. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 13.

112. *Advisory Opinion on the Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, (2004) 1 ICJ Rep 153, p 154, para 38. See also *Advisory Opinion on Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*, Advisory Opinion of 25 February 2019, para 61.

113. Article 67, Statute of International Court of Justice.

114. Article 68, Statute of International Court of Justice.

failed to enforce the opinion in *Certain Expenses* case¹¹⁵ and the South Africa did not fall in line with the several opinions on *South West Africa (Namibia)* for many years.

The Court has given many advisory opinions till date. Some of the important advisory opinions include *Admission to United Nations Membership*,¹¹⁶ *Reparation for Injuries Suffered in the Service of the United Nations*,¹¹⁷ *Territorial Status of South West Africa (Namibia)*,¹¹⁸ *Western Sahara Case*,¹¹⁹ *Effect of Awards of Compensation Made by the United Nations Administrative Tribunal*,¹²⁰ *Advisory Opinion on Certain Expenses of the United Nations*,¹²¹ *Applicability of the Convention on the Privileges and Immunities of the United Nations*,¹²² and *Legality of the Threat or Use of Nuclear Weapons*.¹²³

115. *Certain Expenses case*, (1962) ICJ Rep 151.

116. *Admission to United Nations Membership*, (1948) ICJ Rep 57, pp 57–119.

117. *Reparation for Injuries Suffered in the Service of the United Nations*, (1949) ICJ Rep 174, pp 174–220.

118. *Territorial Status of South West Africa (Namibia)*, (1950) ICJ Rep 128, pp 128–45; (1955) ICJ Rep, pp 67–123; (1956) ICJ Rep, pp 23–71.

119. *Western Sahara Case*, (1975) ICJ Rep 12, pp 12–176.

120. *Effect of Awards of Compensation Made by the United Nations Administrative Tribunal*, (1954) ICJ Rep 47, pp 47–97.

121. *Advisory Opinion on Certain Expenses of the United Nations*, (1962) ICJ Rep 151.

122. *Applicability of the Convention on the Privileges and Immunities of the United Nations*, (1989) ICJ Rep 177.

123. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226.

CHAPTER 14

SETTLEMENT OF DISPUTES BY
PEACEFUL MEANS

SYNOPSIS

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14.1 International Disputes

It has been accepted since centuries that States should submit their disputes for third party settlement as an alternative to war. International disputes between States may threaten international peace and security if not resolved timely. It has been an aim of international law to settle international disputes in peaceful manner. The long standing customary practices and conventions such as Hague Convention of 1899 and 1907 for the Pacific Settlement of International Disputes also laid down rules for resolving international disputes. It was one of the purposes of Covenant of League of Nations to resolve international disputes in peaceful manner. The settlement of disputes continues to be one of the purposes of the United Nations Charter, namely to “bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of the peace”.¹

International disputes may not necessarily be between two States. International disputes also cover certain disputes between States on one hand and individuals, bodies corporate and non-State entities on the other. For example, Convention for the Settlement of Investment Disputes between States and Nationals of Other States of 1965 provides for the settlement of investment disputes between the States which receives investment and private foreign investors as per the procedure laid down in the Convention for which International Centre for the Settlement of Investment Disputes (ICSID) has been established at Washington.² This chapter shall confine to international disputes between States only.

14.2 Meaning of Disputes

A “dispute” is normally considered as “a disagreement on a point of law or fact, a conflict of legal views or interests between two persons”.³ In *Application of the Convention on the Prevention*

1. Article 1 para 1 of the UN Charter. Article 2 para 3, which is one of the principles of the UN Charter obligates Members to settle their disputes by peaceful means in such a manner that international peace and security, and justice are not endangered.

2. J G Starke, *An Introduction to International Law*, 1989, p 485

3. *Mavrommatis Palestine Concessions*, Preliminary Objections, (1924) PCIJ Rep Series A No 2, p 11.

and Punishment of the Crime of Genocide (*The Gambia v Myanmar*) Provisional Measures,⁴ the International Court of Justice (ICJ) while referring to its earlier judgments observed that “a dispute between States exists where they hold clearly opposite views concerning the question of the performance or non-performance of certain international obligations.”⁵ The claim of one party must be “positively opposed” by the other.⁶ The Court cannot limit itself to noting that one of the parties maintains that a dispute exists, and the other denies it.”⁷

In order to find out whether there was a dispute between the parties at the time of the filing of the application in the aforesaid case, the Court recalled that for the purpose of deciding that issue “it takes into account in particular any statements or documents exchanged between the Parties,⁸ as well as any exchanges made in multilateral settings”.⁹ It pays special attention to “the author of the statement or document, their intended or actual addressee, and their content”.¹⁰

In *Obligations Concerning Negotiations Relating to Cessation of the Nuclear Arms Race and to Nuclear Disarmament (Marshall Islands v India) Jurisdiction and Admissibility*,¹¹ the Court stated that its determination of “the existence of a dispute is a matter of substance, and not a question of form or procedure”.¹² The Court further stated that “although a formal diplomatic protest may be an important step to bring a claim of one party to the attention of the other, such a formal protest is not a necessary condition” for the existence of a dispute.¹³

The Court in *Land and Maritime Boundary between Cameroon and Nigeria (Cameroon v Nigeria), Preliminary Objections*,¹⁴ affirmed that “a disagreement on a point of law or fact, a conflict of legal views or interests, or the positive opposition of the claim of one party by the other need not necessarily be stated expressis verbis . . . [T]he position or the attitude of a party can be established by inference, whatever the professed view of that party.” Further, “the existence of a dispute may be inferred from the failure of a State to respond to a claim in circumstances where a response is called for”.¹⁵

4. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 20.
5. See *Application of the International Convention for the Suppression of the Financing of Terrorism and of the International Convention on the Elimination of All Forms of Racial Discrimination (Ukraine v Russian Federation), Provisional Measures*, (2017) ICJ Rep 104, p 115, para. 22, Order of 19 April 2017; *Interpretation of Peace Treaties with Bulgaria, Hungary and Romania, First Phase, Advisory Opinion*, (1950) ICJ Rep 65, p 74.
6. *South West Africa Cases (Ethiopia v South Africa; Liberia v South Africa), Preliminary Objections*, (1962) ICJ Rep 319 p 328.
7. *Oil Platforms (Islamic Republic of Iran v United States of America), Preliminary Objection*, (1996) ICJ Rep 803 p 810, para 16.
8. See *Questions relating to the Obligation to Prosecute or Extradite (Belgium v Senegal)*, (2012) ICJ Rep 422, pp 443–45, paras 50–55.
9. See *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v Russian Federation), Preliminary Objections*, (2011) ICJ Rep 70 p 94, para 51 and p 95, para 53.
10. *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v Russian Federation), Preliminary Objections*, (2011) ICJ Rep 70, p 100, para 63.
11. *Obligations Concerning Negotiations Relating to Cessation of the Nuclear Arms Race and to Nuclear Disarmament (Marshall Islands v India) Jurisdiction and Admissibility*, Judgment of 5 October 2016, (2016) ICJ Rep 255, para 35.
12. See also *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v Russian Federation), Preliminary Objections*, (2011) ICJ Rep 70, p 84, para 30; *Interpretation of Judgments Nos 7 and 8 (Factory at Chorzów) [Germany v Poland]*, Judgment No 11, (1927) PCIJ Series A No 13, pp 10–11.
13. See also *Alleged Violations of Sovereign Rights and Maritime Spaces in the Caribbean Sea (Nicaragua v Colombia), Preliminary Objections*, (2016) ICJ Rep 3, p 32, para 72.
14. *Land and Maritime Boundary between Cameroon and Nigeria (Cameroon v Nigeria), Preliminary Objections*, (1998) ICJ Rep 275, p 315, para 89.
15. *Application of the International Convention on the Elimination of All Forms of Racial Discrimination (Georgia v Russian Federation), Preliminary Objections*, (2011) ICJ Rep 70, p 84, para 30; see also *Land and Maritime Boundary between Cameroon and Nigeria (Cameroon v Nigeria), Preliminary Objections*, (1998) ICJ Rep 275, p 315, para 89.

The term international dispute may also cover within its fold political disputes apart from legal disputes. Many a times, dispute includes both legal and political elements.¹⁶ Legal disputes are those in which the parties base their respective claims and contentions on grounds recognised by international law. The disputes and controversies other than legal disputes may usually be referred as political disputes or as conflict of interests. The distinction between legal and political disputes is also referred to as distinction between justiciable and non-justiciable disputes, or between disputes as to rights and conflicts of interests.¹⁷

In practice, however, it is seen that a dispute may involve some political considerations and many overtly political disagreements may be resolved by judicial means. Whether a dispute is to be termed legal or political may well hinge upon the particular circumstances of the case.¹⁸

14.3 Settlement of International Disputes

States are duty bound to settle their international disputes whether legal or political by peaceful means of their choice. The UN Charter also obligates Member States to settle their international disputes (whether legal or political) by peaceful means. Article 2(3) of the UN Charter provides:

All Members shall settle their international disputes by peaceful means in such a manner that international peace and security, and justice, are not endangered.

Chapter VI of the UN Charter deals with “Pacific Settlement of Disputes”. Article 33 of the Charter makes it obligatory for the parties to any dispute, the continuance of which is likely to endanger the maintenance of international peace and security, to first of all, seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice. When necessary, the Security Council shall call upon the parties to settle their dispute by such means. Article 33 constitutes a *positive obligation* on the part of the Members of the United Nations to seek a solution to serious disputes by pacific means.¹⁹

Under Article 34, the Security Council may investigate any dispute, or any situation which might lead to international friction or give rise to a dispute. According to Article 35, any Member or a non-Member of the United Nations, provided it is a party to dispute, may also bring any such *dispute* or *situation* to the attention of the Security Council or of the General Assembly. The difference between a *dispute* and a *situation* was brought out by Goodrich and Hambro in the following words:

A *dispute* can properly be considered as a disagreement or matter at issue between two or more States which has reached a stage at which the parties have formulated claims and counter-claims sufficiently definite to be passed upon by a court or other body set up for

16. For example on the question “Is the threat or use of nuclear weapons in any circumstance permitted under international law?” put by General Assembly to ICJ for advisory opinion, the ICJ observed that the fact that this question also had political aspects, as in the nature of things, was the case with so many questions which arose in international life, was not suffice to deprive it of its character as a “legal question” and to “deprive the Court of a competence expressly conferred on it by its Statute”. Nor were the political nature of the motives which might be said to have inspired the request or the political implications that the opinion given might have of relevance in the establishment of the Court’s jurisdiction to give such an opinion. Advisory Opinion of ICJ on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 13.

17. L Oppenheim, *International Law: A Treatise*, vol 2, 1952, pp 3–4.

18. Malcolm N Shaw, *International Law*, 2008, pp 1012–13.

19. See Leland M Goodrich and Edvard Hambro, *Charter of the United Nations: Commentary and Documents*, 1949, p 237.

purposes of pacific settlement. A *situation*, by contrast, is a state of affairs which has not as yet assumed the nature of a conflict between parties but which may, though not necessarily, come to have that character.²⁰

The Security Council may recommend appropriate procedures or methods of adjustment to the parties to dispute. In making recommendations the Security Council should also take into consideration that legal disputes should as a general rule be referred by the parties to the ICJ. If the parties to a dispute fail to settle it by peaceful means as already discussed, they shall refer it to the Security Council which may recommend such terms of settlement as it may consider appropriate.²¹ Without prejudice to the aforesaid provisions as provided in Articles 33–37, if all the parties to a dispute so request, the Security Council may make recommendations to the parties with a view to a specific settlement of the dispute.²²

The Security Council, thus has non-binding powers of recommendation under Chapter VI of UN Charter. Regarding these powers of Security Council, some authors have argued that “in the light of its practice of determining what recommendations and measures should be taken ..., it is reasonable to identify a quasi-judicial role for the Security Council, in terms of judgment and capacity for implementation (enforcement) of that judgment”.²³

Sometimes, the line between pacific settlement and enforcement becomes blurred. In earlier years also, the line lacked much clarity concerning many provisional measures that the Council passed, whether they were Article 36 recommendations or Article 40 decisions.²⁴ The provisions of Chapter VI, though do not expressly allow for the Security Council to impose a mandatory settlement, it is able to use a combination of powers under Chapters VI and VII to the same effect if it determines that the situation or conflict is a threat to or breach of the peace.²⁵

The Security Council should make every possible effort to ensure that the dispute between States is settled under Chapter VI of the UN Charter. It should not rush to Chapter VII which is exceptional in nature and to be invoked as last resort. Steven R Ratner has rightly pointed out in this regard:

Heightened respect for Chapter VII turns upon an understanding that it represents a last resort, and one that the key Member States will back up with their political weight and levers. Chapter VI provides a mechanism to keep Chapter VII the exception. It also offers the link with consent and ‘sovereignty’ that most States find necessary to accept expanding the UN’s authority in new directions.²⁶

Apart from Chapter VI of the UN Charter, a number of Declarations were adopted which have emphasised the need of pacific settlement of disputes. The Declaration on Principles of

20. Leland M Goodrich and Edvard Hambro, *Charter of the United Nations: Commentary and Documents* 1949, p 249.

21. Articles 36–37, UN Charter.

22. Article 38, UN Charter.

23. Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White (Edns), London: Hart Publishing, 2010, pp 191–224 at p 191.

24. S R Ratner, “Image and Reality in the UN’s Peaceful Settlement of Disputes”, *European Journal of International Law*, vol 6, 1995, pp 426–44, at p 443.

25. Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White (Eds), London: Hart Publishing, 2010, pp 191–224 at p 211.

26. S R Ratner, “Image and Reality in the UN’s Peaceful Settlement of Disputes”, *European Journal of International Law*, vol 6, 1995, pp 426–44 at p 444.

International Law Concerning Friendly Relations and Co-operation among States of 1970 States that “States shall accordingly seek early and just settlement of their international disputes by negotiation, inquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements or other peaceful means of their choice”.²⁷

14.4 Methods of Dispute Settlement

As already discussed, States are free to adopt any peaceful measure to resolve their international disputes. These measures may include negotiation, inquiry, mediation, conciliation, arbitration, judicial settlement, and resort to regional agencies or arrangements.

14.4.1 Negotiation

Negotiation is the most popular and the simplest method of resolving disputes. It does not require any involvement from a third party. Through negotiation, States make discussion on the subject matter of their dispute to arrive at a friendly solution. Sometimes, the negotiation also acts as a precursor to other methods of dispute settlement. In *Mavrommatis Palestine Concessions*,²⁸ the Permanent Court of International Justice stated that “before a dispute can be made the subject of an action at law, its subject matter should have been clearly defined by diplomatic negotiations”.

Negotiations are the most preferred choice of the States as they are directly engaged in the discussion and are under no pressure of a third party. One of the basic problems preventing the successful settlement of a dispute by means of negotiation is the difficulty of ascertaining the facts which have given rise to the dispute.²⁹ It is also noteworthy that all disputes are not resolved through negotiations. The reasons for the failure of negotiations may include the mutual distrust, hostile public opinion, and lack of political will on the part of one of the parties to the dispute.

Certain treaties, such as UN Convention on Law of the Sea, 1982³⁰ may also make it obligatory for the States parties to enter into negotiations or adopt any other peaceful means in case of any dispute regarding the interpretation or application of its provisions. In such a case, the States parties shall be duty bound to either have discussion on the issues arising out of that treaty or adopt other peaceful means to resolve them. It is necessary that negotiation should be conducted in good faith.

According to Article 4 of the North Atlantic Treaty of 1949, the Contracting Parties agreed that they will consult together whenever, in the opinion of any one of them, the territorial integrity, political independence or security of any one of them is threatened.³¹

Article VI of the Treaty on the Non-Proliferation of Nuclear Weapons obligates States parties to “pursue negotiations in good faith on effective measures relating to cessation of the nuclear arms race at an early date and to nuclear disarmament, and on a treaty on general

27. See also eg Manila Declaration on the Peaceful Settlement of International Disputes, General Assembly resolution A/RES/37/10; Declaration on the Prevention and Removal of Disputes and Situations which may Threaten International Peace and Security, UN General Assembly resolution A/RES/43/51; and Declaration on Fact-finding by the United Nations in the Field of the Maintenance of International Peace and Security, UN General Assembly resolution A/RES/46/59.

28. *Mavrommatis Palestine Concessions (Greece v UK)*, (1924) PCIJ, Series A No 2, p 15.

29. L Oppenheim, *International Law: A Treatise*, 1952, p 7.

30. Article 283(1) provides that “the parties to the dispute shall proceed expeditiously to an exchange of views regarding its settlement by negotiation or other peaceful means”.

31. See also Article 7 of the Nine-Power Treaty of 6 February 1922.

and complete disarmament under strict and effective international control”. Referring to this provision, the ICJ in Advisory Opinion on the *Legality of the Threat or Use of Nuclear Weapons* observed that:

the legal import of that obligation goes beyond that of a mere obligation of conduct; the obligation involved here is an obligation to achieve a precise result — nuclear disarmament in all its aspects — by adopting a particular course of conduct, namely, the pursuit of negotiations on the matter in good faith.³²

In *North Sea Continental Shelf Cases*,³³ also, the ICJ stated that the negotiations should be meaningful not merely a formality:

[T]he parties are under an obligation to enter into negotiations with a view to arriving at an agreement, and not merely to go through a formal process of negotiation as a sort of prior condition ... they are under an obligation so to conduct themselves that the negotiations are meaningful, which will not be the case when either of them insists upon its own position without contemplating any modification of it.

14.4.2 Good Offices

Sometimes, the parties to the dispute do not come to negotiation table due to one reason or the other. The method of good offices may play an important role in this regard. The request for the assistance of good offices may be made by one of the parties or it may be offered spontaneously. In case of good offices, a third party tenders its services in order to bring the parties to dispute together to the negotiation table and may suggest the making of a settlement in general terms. The role of third State ends there. It does not involve itself in the discussions between the parties. The third party may be an individual, a State or an international organisation. Once the parties have been brought to the negotiation table, they have to proceed further for the settlement of their dispute.

The Hague Convention for the Pacific settlement of International Disputes also provides that States which are strangers to a dispute had a right to offer good offices or mediation, and that the exercise of this right must not be regarded as an unfriendly act.³⁴

In August 1947, the Security Council resolved to tender its good offices to Holland and Indonesia for the pacific settlement of their dispute. For this purpose, it appointed a Committee of Good Offices consisting of representatives of Belgium, Australia, and the United States.³⁵

14.4.3 Mediation

In case of mediation, the third party plays an active role. It participates in the negotiations and assists the parties to arrive at a solution. It may make suggestions for the settlement of their dispute. Unlike good offices in which the third party only brings the disputing parties to the negotiation table, in mediation the third party, so called mediator plays an important role by involving itself in the discussion and making suggestions to them to reconcile their divergent views. The suggestions made by the mediator are not binding on the parties.

It is also possible to have collective mediation, in which several States act as mediators. The protracted war between Bolivia and Paraguay was brought to a conclusion largely owing to the joint mediation of Argentina, Brazil, Chile, United States, Peru, and Uruguay between 1935

32. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, pp 263–64.

33. *North Sea Continental Shelf*, (1969) ICJ Rep 3, p 47.

34. L Oppenheim, *International Law: A Treatise*, 1952, p 10.

35. L Oppenheim, *International Law: A Treatise*, 1952, p 9.

and 1937. The General Assembly in May 1948 adopted a resolution through which it made a provision for a United Nations Mediator who was entrusted with the function of promoting a peaceful adjustment of the future situation of Palestine.³⁶

14.4.4 Inquiry

Sometimes parties to the dispute differ on the factual position of a dispute. In such a case, it becomes important to ascertain the correct factual position to proceed further to resolve the dispute. The disputing parties may request a third party to ascertain the facts underlying the dispute. This can be done by instituting a commission of inquiry which will ascertain the facts more precisely. Once the facts are ascertained by a third party in an independent and honest manner, it may become easier for the parties to settle their dispute.

Thus, the object of inquiry is to establish the facts underlying the dispute for a negotiated adjustment without making any specific recommendations. Inquiry is very important in cases of boundary disputes. A commission of inquiry appointed by the parties to dispute may inquire into the historical and geographical facts which may be the subject of controversy. Sometimes, the dispute between the parties may relate to a technical or other problem for which an expert fact-finding committee may be necessary to inquire into special facts and ascertain them precisely for further negotiation between the parties.³⁷

In *Dogger Bank* incident³⁸ of 1904 between Great Britain and Russia, the parties, with the help of French mediation, agreed to establish a Commission of Inquiry for the settlement of their differences. Though the Commission's work was done under circumstances of extreme tension, its success created a new faith in mediation as a means to pacific settlement of international disputes.³⁹

14.4.5 Conciliation

Conciliation is a broad process in which the third party not only involves itself in the discussion but also investigates the facts and makes the suggestions on the basis of its findings. Conciliation, therefore, involves both mediation and inquiry. Oppenheim defines conciliation as "the process of settling a dispute by referring it to a commission of persons whose task it is to elucidate the facts and (usually after hearing the parties and endeavouring to bring them to an agreement) to make a report containing proposals for a settlement, but which does not have the binding character of an award or judgment".⁴⁰ Judge Manly O Hudson defines "conciliation" as follows:

Conciliation ... is a process of formulating proposals of settlement after an investigation of the facts and an effort to reconcile opposing contentions, the parties to the dispute being left free to accept or reject the proposals formulated.⁴¹

36. L Oppenheim, *International Law: A Treatise*, 1952, pp 9–10.

37. J G Starke, *An Introduction to International Law*, 1989, p 515.

38. In *Dogger Bank Case (Great Britain v Russia)*, (1908) 2 AJIL 931, on 21 October 21 1904, during the Russo-Japanese War, the Russian Baltic fleet which was on its way to the Far East, fired into the Hull fishing fleet off the Dogger Bank in the North Sea. As a consequence, two fishermen were killed and considerable damage was done to several trawlers. Russia maintained that the firing was caused by the approach of some Japanese torpedo-boats. The parties agreed upon the establishment of an International Commission of Inquiry. On the basis of Commission's report, Russia paid a sum of £ 65, 000 to indemnify the victims of the incident.

39. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, pp 286–87.

40. L Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 12.

41. Hudson, *International Tribunals*, 1944, p 223.

The benefit of conciliation method is that not only a third party actively involves itself in the discussion, but also makes investigation to ascertain the factual position. It also makes suggestions to settle the dispute. Although the suggestions made in the conciliation process are not binding on the parties, it may stimulate negotiations between them.

The rules dealing with conciliation were elaborated in the 1928 General Act on the Pacific Settlement of International Disputes. These rules were revised in 1949. Article 15(1) of the General Act, after the amendment provides:

The task of the Conciliation Commission shall be to elucidate the questions in dispute, to collect with that object all necessary information by means of enquiry or otherwise, and to endeavour to bring the parties to an agreement. It may, after the case has been examined, inform the parties of the terms of settlement which seem suitable to it, and lay down the period within which they are to make their decision.

The proceedings of these Conciliation Commissions were not to be held in public. The conciliation procedure was intended to deal with mixed legal-factual situations and to operate quickly and informally. A number of multilateral treaties provided for conciliation as a means of resolving disputes.⁴² According to Oppenheim, several hundred treaties providing for conciliation were concluded after the conclusion of First World War. More than one hundred permanent conciliation commissions were set up. There are, however, few instances of actual recourse to the machinery established by these treaties.⁴³

The contracting powers of the Hague Convention for the Pacific Settlement of International Disputes recommended⁴⁴ that in the case of disputes arising out of differences of opinion on points of fact and involving neither honour nor vital interests, which the parties could not settle by diplomatic negotiation, they should, so far as circumstances allowed, institute an International Commission of Inquiry to elucidate the facts underlying the difference by an impartial and conscientious investigation.

14.4.6 Arbitration

Arbitration means the determination of a difference between States through a legal decision of umpire(s) chosen by the parties. Arbitration is different from mediation in the sense that it involves the application of law and judicial methods to the determination of disputes between States, whereas mediation is primarily a diplomatic function.

Arbitration is an ancient method of settling disputes. It has always been considered as one of the successful methods of settling inter-state disputes. It was, however, rarely used. During 7th century to the middle of 2nd century BC, around 110 cases were settled between the Greeks city-States (*polis*). Arbitration was also practised between allies (*socii*) in the Roman Empire. However, the genuine arbitration at the time of the Roman Empire is considered doubtful as Rome sought to have the institution of arbitration serve its own expansionist aspirations.⁴⁵ According to Nicolas Politis, "Rome considered itself as the arbitrator of the world, accepted to be judge, but not to be justiciable".⁴⁶

The arbitration was relatively frequently used in the Middle Ages between the sovereigns to resolve their disputes. Emphasising the importance of arbitration, Grotius was of the opinion

42. See Malcolm N Shaw, *International Law*, 2008, p 1023.

43. See L Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 18.

44. See Article 9, Convention for the Pacific Settlement of International Disputes. See also Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 13.

45. Vanda Lamm, *Compulsory Jurisdiction in International Law*, 2014, p 1.

46. Nicolas Politis, *La Justice Internationale*, 1924, p 27 quoted in Vanda Lamm, *Compulsory Jurisdiction in International Law*, 2014, pp 1–2.

that wars could be evaded by arbitral decision as well.⁴⁷ Vattel was of the opinion that, “when sovereigns cannot agree about their pretensions and are nevertheless desirous of preserving or restoring peace, they sometimes submit the decision of their disputes to arbitrators chosen by common agreement”.⁴⁸

The modern era of arbitration dates back to the Jay’s Treaty of 1794. Subsequently in 1871–72, a dispute between USA and UK which arose from the American Civil War was successfully resolved by the *Alabama Claims*, (1871) 29 RIAA 125 Arbitration by which the UK was made to pay compensation to US for the damage caused by a confederate warship built in the UK. *Alabama Claims* Arbitration was considered a landmark award. This was the first occasion where the arbitrators sat as a court of law. This became a precedent for the constitution of arbitration tribunals in the future. Following the success of *Alabama Claims* Arbitration, other arbitration awards followed.⁴⁹

At the First Hague Peace Conference in 1899, discussions were made for the establishment of an arbitral tribunal. An agreement was reached on the establishment of the Permanent Court of Arbitration. The Permanent Court of Arbitration is not a court. It is a panel of jurists, designated up to four judges by each contracting party to the 1899 Convention for the Pacific Settlement of International Disputes. In concrete disputes, the members of each arbitral tribunal may be chosen from this panel of jurists.

The question of obligatory arbitration and the conclusion of a convention on that subject were discussed at the Second Hague Peace Conference in 1907. The Conference did not reach any agreement on matters that were to be subject to obligatory arbitration. The Convention for the Pacific Settlement of International Disputes prepared in 1899 was amended and enlarged, especially with regards to the commissions of inquiry, and a new chapter was added for facilitating appeal to arbitration by summary procedure.⁵⁰

Arbitration was regarded as of purely voluntary nature. However, by the end of the 19th century it had become general practice to include in treaties the so-called *clause compromissoire*, which is an *a priori* agreement by the parties to arbitrate whatever differences might arise in connection with such treaties. Arbitration as a mode of settlement of dispute became widely accepted due to the expansion of the arbitral clause into treaties and the establishment of Permanent Court of Arbitration.

The arbitral procedure has been dealt with in Articles 51–85 of the Hague Convention of 1907. As a general rule, arbitration procedure comprises two distinct phases: (i) written pleadings, and (2) oral discussions. The tribunal considers its decisions in private, the proceedings remain secret, and all questions are decided by a majority. The award is to be accompanied by reasons on which it is based.

The award binds parties to the dispute only and none others. But when there is a question of interpreting a convention to which States other than those in dispute are parties, the disputing States have to inform all the contracting Powers in good time. Each has a right to intervene in the case. If one or more avail themselves of this right, the interpretation contained in the award is equally binding on them.⁵¹

47. Hugo Grotius (Hugo de Groot), *On the Law of War and Peace*, translated from *De Jure Belli ac Pacis* by A C Cambell, 2011, p 235 quoted in Vanda Lamm, *Compulsory Jurisdiction in International Law*, 2014, p 3.

48. Vanda Lamm, *Compulsory Jurisdiction in International Law*, 2014, p 4.

49. For example, *Behring Sea*, (1893) 28 RIAA 263, arbitration in 1893, and *British Guiana*, (1899) 28 RIAA 331, arbitration in 1899. See Thomas Barclay, *New Methods of Adjusting International Disputes and the Future*, 1917, p 41 cited in Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 287.

50. Vanda Lamm, *Compulsory Jurisdiction in International Law*, 2014, pp 8–9.

51. See Article 84, Convention for the Pacific Settlement of International Disputes.

Unless a treaty makes it mandatory, States parties are not obligated to submit their dispute for settlement by arbitration. In Advisory Opinion on *Eastern Carelia* case,⁵² the Permanent Court of International Justice observed:

It is well established in international law that no State can, without its consent, be compelled to submit its disputes with other States either to mediation or to arbitration, or to any other kind of pacific settlement. Such consent can be given once and for all in the form of an obligation freely undertaken, but it can, on the contrary, also be given in a special case apart from any existing obligation.⁵³

Once the parties to the dispute have consented for their dispute to be referred to arbitration, the arbitral award shall be binding on them. Ordinarily, international law is to be applied in arbitration proceedings. However, the parties to the dispute may agree upon certain principles to be applied by the arbitral tribunal. In such a case, it will be obligatory for the tribunal to apply those principles.

As already stated, the arbitral awards are binding on the States parties to the case. In the history of arbitration, however, there have been cases where one of the parties has refused to give effect to the award. One such case is *El Chamizal* between the United States and Mexico. In this case, the United States in 1911, refused to accept the award as valid or binding, on the grounds that the finding and award was vague, indeterminate, uncertain in its terms, and impossible for enforcement. The dispute in *El Chamizal*, therefore, remained unsettled.⁵⁴

Where the dispute between the parties has not been settled by other peaceful means, arbitration normally becomes their preferred choice. The reasons are manifold. In arbitration, the parties themselves choose the arbitrators. Further, the parties may lay down the applicable law and rules of procedure. Arbitration is extremely useful where the subject matter of the dispute is technical, and technical expertise is required to decide the dispute. The parties to the dispute may ask the tribunal to keep the proceedings confidential. These benefits are not available where the matter is referred to ICJ or some other judicial tribunal for adjudication.

14.5 Settlement of Disputes Under Regional Arrangements

The parties may settle their dispute by resorting to regional agencies or arrangements as provided in Article 33. Thus, Article 33 in combination with Article 52 provides Member States of a region with the choice of peaceful means of settling disputes that are available in their regional forum. It is expected of regional organisations “to solve a conflict, which is confined to a certain area, and to prevent it from spreading by using the [its] insight and closeness to the subject matter and its perceived legitimacy in order to prevent the need for an intervening third party. The perceived legitimacy of a regional organisation to settle local disputes builds on the identification of shared values and goals the members of this organisation aim to achieve through their membership”.⁵⁵

Articles 52–54 of Chapter VIII of the UN Charter deal with regional arrangements. Regional arrangements/agencies may deal with such matters relating to the maintenance of international peace and security as are appropriate for regional action, provided that such arrangements/agencies and their activities are consistent with the purposes and principles of the United Nations. The Members of the United Nations who enter into such arrangements or constitute such agencies are required to make every effort to achieve pacific settlement of local

52. *Eastern Carelia*, (1923) PCIJ Series B No 5.

53. *Eastern Carelia*, (1923) PCIJ Series B No 5, p 27.

54. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 290.

55. Julia Schmidt, “Regional Security and International Law” in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright (Eds), *Security and International Law*, 2016, pp 69–92 at p 77.

disputes through such regional arrangements/agencies before referring them to the Security Council. The Security Council is also to encourage the development of pacific settlement of local disputes through such regional arrangements/agencies.⁵⁶

There are various regional organizations which have created machinery for the settlement of disputes. The Organization of African Unity (OAU) was established in 1963. It was replaced by African Union in 2001. Article XIX of the Charter of OAU referred to “the principle of the peaceful settlement of disputes by negotiation, mediation, conciliation or arbitration” and to assist in achieving this, a Commission of Mediation, Conciliation and Arbitration was established by the Protocol of 21 July 1964. The Commission did not have compulsory jurisdiction and it was not utilised. In 2002, the Protocol Relating to the Establishment of the Peace and Security Council of the African Union was adopted which created Peace and Security Council. One of the functions of this Council is peacemaking including the use of good offices, mediation, conciliation and inquiry.⁵⁷

The Charter of Organization of American States (OAS) also provides that international disputes between Member States must be submitted to the Organisation for peaceful settlement.⁵⁸ The OAS has utilised the Inter-American Peace Committee which was created in 1940 and replaced by the Inter-American Committee on Peaceful Settlement in 1970. In addition to African Union and OAS, the Arab League also encouraged the settlement of disputes by peaceful means in Arab States.

In Europe, the Council of Europe adopted the European Convention for the Peaceful Settlement of Disputes in 1957 for the settlement of disputes by peaceful means. The Organization on Security and Co-operation in Europe (OSCE) has gradually been establishing dispute resolution mechanism.⁵⁹ The facilities of peaceful means for the settlement of disputes also exist within NATO alliance. Oscar Svarlien, however, refused to consider NATO as a regional system. He is of the opinion that though the NATO is a system of collective security on a nonuniversal basis, it does not fall within the compass of Chapter VIII of the UN Charter.⁶⁰

It is noteworthy that international organisations may also offer such mechanisms to parties to the dispute if they consent to it. In this scenario, the organisation could act as an independent negotiator or mediator and its action would also be covered by Article 33.⁶¹

56. Article 52, UN Charter.

57. See Malcolm N Shaw, *International Law*, 2008, pp 1027–28.

58. Article 23, Charter of the Organisation of American States.

59. For detail, see Malcolm N Shaw, *International Law*, 2008, pp 1032–34.

60. Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 309. See also Julia Schmidt, “Regional Security and International Law” in *Security and International Law*, Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright (Eds), 2016, pp 69–92.

61. Julia Schmidt, “Regional Security and International Law” in *Security and International Law*, Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright (Eds), 2016, p 79.

CHAPTER 15

USE OF FORCE

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Prior to the development of modern international law which developed after World War I, the principle of complete national sovereignty dominated international relations, such that nations were free to act autonomously or independently of other States, with an exclusive right to judge the lawfulness of their own conduct. During post-World War I era, efforts were made for denunciation of the use of force. The Covenant of the League of Nations clearly forbade the use of force by nations, and subsequent international conventions and treaties explicitly limited the nature of State sovereignty vis-à-vis a State's responsibility to other nations in the international community. Inevitably, conflicting economic and political objectives resulted in conflict and confrontation. However, there was no alternative but to accept forceful aggression, violent coercion and retaliation as legitimate instruments of dispute resolution. The use of force was the common means of obtaining redress and ensuring enforcement in the international legal order until the adoption of United Nations Charter.¹

15.1 Coercive Methods

The coercive methods to settle international disputes between two States include retorsion, reprisals, embargo, intervention and pacific blockade.

1. Paul Stephen Dempsey, *Law and Foreign Policy in International Aviation*, 1987, p 319.

15.1.1 Retorsion

Retorsion is normally a legitimate act of showing displeasure in a way that may hurt the other State. When State adopts an act which is lawful but unfriendly and harmful, as a method of retaliation against the injurious legal activities of another State that act is called retorsion. The severance of diplomatic relations and the expulsion or restrictive control of aliens, withdrawal of fiscal or tariff concessions are some of the examples of retorsion.

The legitimacy of the act of retorsion is to be checked in the light of Article 2(3) of the UN Charter, which obligates Member States to settle their disputes by peaceful means in such a way as not to “endanger” international peace and security, and justice. It is, however, possible that an act of retorsion which is otherwise legitimate, may endanger international peace and security, and justice. Such act of retorsion shall not be allowed as it would go against one of the principal purposes of the UN Charter as provided under Article 1(1).

15.1.2 Reprisals

Coercive enforcement mechanisms which classic international law designated as “reprisals” derived from the acts of withholding, taking or destroying any form of property of a foreign State or its nationals. They could be carried out for a variety of reasons: as a show of strength in foreign policy, to punish another State for any action judged to be reprehensible, or in warfare to compel an enemy to respect certain basic rules and to punish it for not having respected them. The premise of theory behind early public reprisals was that the international system must be based on a just and equal social order. A breach of law always disrupts that order and is likely to lead to injustice among nations.²

According to Professor Oscar Schachter, the use of reprisals has been historically justified on the basis of compelling another State to consent to a satisfactory settlement of a dispute created by its own international delinquency. Reprisals are admissible not only, as some writers maintain, in case of denial or delay of justice or other ill-treatment of foreign citizens prohibited by international law but in all other cases of an international delinquency for which the injured State cannot get reparation through negotiation, or other amicable means, be it noncompliance with treaty obligations or any other internationally illegal act. In the absence of a system of community enforcement, international law has traditionally sanctioned coercive measures by the successful party as “self-help” to compel the recalcitrant party to carry out the judicial decision or arbitral award imposing obligations upon it.³

Thus, the coercive methods adopted by one State in retaliation for the illegal acts committed by another State are called reprisals. Reprisals short of force, which are also termed as counter-measures may be undertaken legitimately whereas reprisals involving armed force may be lawful when resorted to in conformity with the right of self-defence.

The *Naulilaa* dispute⁴ between Portugal and Germany is an important case on reprisal. In this case, a German military raid was conducted on the colony of Angola, which destroyed property, in retaliation for the mistaken killing of three Germans lawfully in the Portuguese territory. Rejecting the German claim that it acted lawfully, the tribunal emphasised that before reprisals could be undertaken, there had to be sufficient justification in the form of a previous act contrary to international law. Once such an act is established, there should be unsatisfied

2. Elisabeth Zoller, *Peacetime Unilateral Remedies: An Analysis of Countermeasures*, 1984, p 37.

3. Oscar Schachter, “The Enforcement of International Judicial and Arbitral Decision”, *American Journal of International Law*, vol 54, 1960, p 1, at p 6.

4. *Naulilaa*, (1928) 2 RIAA 1011.

demand for reparation, which is accompanied by a sense of proportion between the offence and the reprisal.

According to settled international practice, a reprisal is only justified, if at all, the State against which it was directed has been guilty of international delinquency. The delinquent State must be requested to make reparation for such delinquency. Where no reparation is made, the measures of reprisals should be proportionate to the injury suffered and should not be excessive.

The act of reprisal should not be resorted to unless and until negotiations for the purpose of securing redress from the delinquent State fail. The purpose of reprisal should be to bring about a satisfactory settlement of a dispute and not to harm the delinquent State by inflicting more injuries than required.

A question arises as to whether the use of economic coercive means may be deemed illicit when directed against a State for purposes of achieving political ends. In assessing the lawfulness of economic reprisals, three succinct requirements have been identified:

- (i) a prior international delinquency against the claimant State;
- (ii) redress by other means must be either exhausted or unavailable; and
- (iii) the economic measures must be limited to the necessities of the case and proportionate to the wrong.⁵

The basic difference between retorsion and reprisal is that the former is generally legal whereas the latter is illegal, even though both may be unfriendly and harmful.

15.1.2.1 Reprisals Under UN Charter

Acts of reprisals are generally prohibited by UN Charter. Article 2 para 3 of UN Charter obligates Member States to settle their disputes by peaceful means in such a way as not to “endanger” international peace and security, and justice. In addition to this, Article 2 para 4 obligates Member States to refrain from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations.

Further Article 33 obligates State parties to any dispute, continuance of which is likely to endanger the maintenance of international peace and security, shall first of all seek a solution by peaceful means. In 1970, the General Assembly adopted a Declaration on Principles of International Law Concerning Friendly relations and Co-operation Among States in Accordance with the United Nations Charter. It has been provided in the Declaration that “States have a duty to refrain from acts of reprisals involving use of force”. The cumulative effects of aforesaid provisions of the UN Charter and the Declaration is that States should not adopt acts of reprisal involving use of force as they are incompatible with the purposes and principles of the UN Charter.

It is, however, noteworthy that an act of reprisal is allowed when taken in self-defence in case of an armed attack. Such act shall be justified to the extent provided by Article 51 of the UN Charter. In the Advisory Opinion on the *Legality of the Threat and Use of Nuclear Weapons*,⁶ the International Court of Justice (ICJ) stated that armed reprisals in peace time were considered to be unlawful. Any right to reprisals like self-defence was to be governed *inter alia* by the principle of proportionality.

5. Derek Bowett, “Economic Coercion and Reprisals by States”, *Virginia Journal of International Law*, vol 13, 1972, p 1 at pp 9–10.

6. *Legality of the Threat and Use of Nuclear Weapons*, (1996) ICJ Rep 226.

15.1.3 Embargo

The term “embargo” has been derived from the Spanish term *embargar* which means detention. In international law, however, embargo means detention of ships in port. It is a kind of reprisal. Embargo may be used to prevent the ships of delinquent State to leave the port of the injured State for the purpose of compelling the delinquent State to make reparation for the wrong done. Embargo for any other purposes such as an anticipatory measure designed to facilitate the capture and confiscation of the enemy’s merchant ships in the event of war breaking out is not to be justified as it may result into violation of the provisions of UN Charter.

A collective embargo in pursuance of a General Assembly resolution may be lawful. During the course of hostilities in Korea in 1951, the General Assembly recommended a collective embargo by States on the shipment of arms, ammunition, and implements of war, items useful in their production, petroleum and transportation materials to areas under the control of the Government of the People’s Republic of China, and of the North Korean authorities.

15.1.4 Pacific Blockade

Pacific blockade means blockade of a belligerent State’s ports during peace time. Pacific blockade may either be a case of reprisal or intervention. The purpose of pacific blockade is to coerce the State whose ports are blockaded into complying with a request for satisfaction by the blockading States.

The first blockade was employed in 1827, when during the Greek insurrection, Great Britain, France and Russia intervened in the interest of the independence of Greece and blockaded those parts of the Greek coast which were occupied by Turkish troops. Although the blockade led to the battle of Navarino, the Powers maintained that they were not at war with Turkey.⁷ There have been several cases of pacific blockade since then.

As far as ships of third States are concerned, the blockading State has no right to seize and sequester such ships where they try to break a pacific blockade. However, one view is that ships of third States must respect the blockade, and the blockading State has a right to stop those which try to break it. Such view seems to be incorrect as there is no rule of international law which establishes such a right as pacific blockade is merely a matter between the conflicting parties. The position, however, be different in case of a blockade during war time.

In Article 42 of the UN Charter, blockade has been mentioned expressly as one of the actions which the Security Council may take to maintain or restore international peace and security in case the measures provided in Article 41 would be or have proved to be inadequate. The legality of pacific blockade as a unilateral measure, however is doubtful in the light of UN Charter.

15.1.5 Intervention

Intervention as a measure to resolve international dispute is a dictatorial interference of a third State in a dispute between two States for the purpose of settling such disputes in a desired way. Intervention, therefore, is a dictatorial request of third State to one or both of the parties to resolve their dispute in a certain way. Such intervention may sometimes help in preventing the outbreak of war between parties to disputes, as the disputes may be resolved in a lawful manner such as arbitration in pursuance of such dictatorial request of the intervening State. Intervention like other compulsive modes for settlement of international disputes is not

7. L Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 145.

justiciable as it violates the principle of sovereignty of State and sovereign equality of Member States as provided in Article 2(1) of the UN Charter.

15.2 Prohibition of Use of Force

15.2.1 League of Nations

The League of Nations was formed to regulate the conduct of States regarding their rights to go to war. The Covenant of League declared that Members should submit disputes likely to lead to a rupture to arbitration or judicial settlement or inquiry by the Council of the League. The Members were not to resort to war under any circumstances until three months after the arbitral award or judicial decision or report by the Council. This was intended to provide a cooling off period for passion to subside.

The Covenant, thus, placed “resort to war” under international supervision. It rendered the war unlawful in four situations: (1) when made without prior submission of the dispute to arbitration or judicial settlement or to inquiry by the Council of the League; (2) when begun before the expiration of three months after the arbitral award or judicial decision or Council report; (3) when commenced against a member which had complied with such award or decision or recommendation of a unanimously adopted Council report; and (4) under certain circumstances, when initiated by a non-Member State against a Member State.⁸ The Covenant, however, did not touch upon all aspects of the States power to use force eg in self-help or undeclared war situation.

15.2.2 Pact of Paris or Kellogg-Briand Pact

To overcome the lacuna found in the Covenant of League of Nations, the Pact of Paris popularly known as Kellogg-Briand Pact was signed between United States and France in 1928 which was later on signed by 63 States. The parties declared that “they condemn recourse to war for the solution of international controversies, and renounce it, as an instrument of national policy in their relations with one another”.⁹ The parties also agreed that “the settlement or solution of all disputes or conflicts of whatever nature or of whatever origin they may be, which may arise among them, shall never be sought except by pacific means”.¹⁰ Thus, even though the Pact denounced war as an instrument of national policy and emphasised on the pacific settlement of disputes, it too failed to impose an absolute prohibition on States to use force.¹¹

15.2.3 UN Charter

In 1945, the allied nations gathered at San Francisco and signed a multilateral treaty to give effect to their determination “to save succeeding generations from the scourge of war ...” and “to ensure, by the acceptance of principles and the institution of methods that armed force shall not be used, save in the common interest ...”.¹² Thus, a new organisation, namely United Nations Organization was created to prevent future wars. The Charter of the United Nations, thus, intends to cover the gaps found in the earlier instruments prohibiting use of force, i.e. Covenant of League of Nations and Pact of Paris.

8. Leo Van den hole, “Anticipatory Self-Defence under International Law”, *American University International Law Review*, vol 19, 2003, pp 70–71.

9. Article 1, Pact of Paris, 1928.

10. Article 2, Pact of Paris, 1928.

11. V K Ahuja, “US Attack on Sudan and Afghanistan: Does the Action Fall under Article 51 of the UN Charter?” *National Capital Law Journal*, vol 3, 1998, pp 102–07, at p 103.

12. Preamble, UN Charter.

15.2.3.1 *Prohibition of use of Force Under Article 2(4)*

The Member States of the United Nations committed to settle their international disputes by peaceful means.¹³ Article 2(4) of the UN Charter prohibits use of force. It provides:

All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.

The framers of the Charter, in order to broaden the scope of restrictions upon the right of State to go to war, used the term “threat or use of force”. In doing so, the intention of the framers of the Charter was to avoid intricate problem of defining war which existed under the League of Nations. The provisions contained in Article 2(4) are now regarded as principle of customary international law and as such is binding upon all States irrespective of the fact whether they are members of the United Nations or not.

The term “threat” has nowhere been defined in the Charter. Threat of force may be brought into being through a number of situations created by the conduct of one State against another. The plain meaning of the word “threat” is a declaration of hostile determination or of loss, pain, punishment or damage to be inflicted in retribution for or conditionally upon some course.¹⁴ Brownlie defines use of force as “an express or implied promise by a government of a resort to force conditional on non-acceptance of certain demands of that government”.¹⁵ Romana Sadurska defines a threat of force as “a message, explicit or implicit, formulated by a decision maker and directed to the target audience, indicating that force will be used if a rule or demand is not complied with”.¹⁶

In Advisory Opinion on *Legality of the Threat or Use of Nuclear Weapons*,¹⁷ the ICJ stated that if the use of force envisaged was unlawful, a stated readiness to use it would be a threat prohibited under Article 2(4). The notions of threat of force and use of force in Article 2(4) stood together: if the use of force is unlawful the threat of it is also unlawful.

The term “territorial integrity” as used in Article 2(4) implies the effective control of an area and authoritative jurisdiction as well.¹⁸ Thus, a State would be acting in violation and in breach of its obligations under the Charter, if it commits an act of force within the territory of another State in order to obtain redress even without the intention of interfering with the territory or integrity and thereby undermining the political independence of that State. The actions against the “political independence” of a State are actions directed at controlling the government and other institutional bodies of a State, either by setting up a particular form of government with defined ideological propensities or by forcing existing institutions to act in the interests of the foreign power.¹⁹

The UN Charter does not prohibit the use of force absolutely. The use of force is allowed in collective action by United Nations under Chapter VII or action taken by States under the authority of United Nations under Chapter VII or VIII. Use of force is also allowed in individual or collective self-defence under Article 51 of the Charter.

13. Article 2(3), UN Charter.

14. S R Chowdhury quoted in S C Khare, *Use of Force under UN Charter*, 1st Edn, 1985, p 44.

15. Ian Brownlie, *International Law and the Use of Force by States*, 1963, p 364.

16. Romana Sadurska, “Threats of Force”, *American Journal of International Law*, vol 82, 1988, p 242.

17. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, paras 47–48.

18. R Higgins, *The Development of International Law Through the Political Organs of the United Nations*, 1963, p 182.

19. R Higgins, *The Development of International Law Through the Political Organs of the United Nations*, 1963, p 183.

As already stated, Article 2(4) covers not only war, which is extensive armed hostilities or the highest degree of destructive use of military instruments but also use of physical force of lesser intensity or magnitude, which in the past has been characterised as short of war situations or self-help. Self-help can be described as an act of State through the use of force to remedy an illegal act of the other in order to get satisfaction. The distinction between self-help and self-defence is that, self-defence operates to protect a State against irreparable harm where no other means are available, aims at the restoration of the *status quo*, whereas self-help has a remedial or repressive character in order to enforce legal rights.²⁰ The use of self-help is not justified under the UN Charter.

In Advisory Opinion on *Legality of the Threat or Use of Nuclear Weapons*,²¹ the ICJ stated:

[P]rohibition of the use of force is to be considered in the light of other relevant provisions of the Charter. In Article 51, the Charter recognizes the inherent right of individual or collective self-defence if an armed attack occurs. A further lawful use of force is envisaged in Article 42, whereby the Security Council may take military enforcement measures in conformity with Chapter VII of the Charter.²²

15.3 Action Under Chapter VII of UN Charter

Prior to the United Nations, the League of Nations was responsible for the collective security. Unfortunately, it could not do well. After the breakdown of collective security, a mass withdrawal of Members started and the League became more and more powerless and finally disappeared. On the other hand, the United Nations which was established in 1945, has expanded to embrace today nearly all sovereign States. The United Nations has emerged as an institution of the highest importance and indispensable for the maintenance of international peace and security.²³ The Security Council can take action under Chapter VII of the UN Charter in case of any threat to the peace, breach of the peace, or act of aggression.

15.3.1 Meaning of Aggression

The UN Charter does not define the term aggression. The General Assembly adopted a resolution on the definition of aggression in 1974.²⁴ The resolution defines “aggression” in a comprehensive manner. The resolution States that a war of aggression is a crime against international peace and it gives rise to international responsibility.²⁵

Aggression is the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations.²⁶ The first use of armed force by a State in contravention of the Charter is to constitute *prima facie* evidence of an act of aggression.²⁷

Regardless of a declaration of war and in accordance with the provisions of Article 2 of the Charter, any of the following acts is to be qualified as an act of aggression:

- (i) the invasion or attack by the armed forces of a State of the territory of another State, or any military occupation, however temporary, resulting from such invasion or attack, or any annexation by the use of force of the territory of another State or part thereof;

20. D W Bowett, *Self-Defence in International Law*, 1958, p 11.

21. *Legality of the Threat or Use of Nuclear Weapons*, (1997) 35 ILM 809 and 1343.

22. *Legality of the Threat or Use of Nuclear Weapons*, (1997) 35 ILM 809, para 38.

23. See also Josef L Kunz, *Sanctions in International Law*, *American Journal of International Law*, vol 54, 1960, pp 324–47, at p 345.

24. General Assembly Resolution 3314 (XXIX) (14 December 1974).

25. Article 5(2), General Assembly Resolution 3314 (XXIX) (14 December 1974).

26. Article 1, General Assembly Resolution 3314 (XXIX) (14 December 1974).

27. Article 2, General Assembly Resolution 3314 (XXIX) (14 December 1974).

- (ii) bombardment by the armed forces of a State against the territory of another State or the use of any weapons by a State against the territory of another State;
- (iii) the blockage of the ports or coasts of a State by the armed forces of another State;
- (iv) an attack by the armed forces of a State on the land, sea or air forces, or marine and air fleets of another State;
- (v) the use of armed forces of one State which are within the territory of another State with the agreement of the receiving State, in contravention of the conditions provided for in the agreement or any extension of their presence in such territory beyond the termination of the agreement;
- (vi) the action of a State in allowing its territory, which it has placed at the disposal of another State, to be used by that other State for perpetrating an act of aggression against a third State;
- (vii) the sending by or on behalf of a State of armed bands, groups irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to the acts listed above, or its substantial involvement therein.²⁸

The aforesaid acts are not exhaustive and the Security Council may determine that other acts constitute aggression under the provisions of the Charter.²⁹

No consideration of whatever nature, whether political, economic, military or otherwise, may serve as a justification for aggression. No territorial acquisition or special advantage resulting from aggression is to be recognised as lawful.³⁰

It is noteworthy that the rights of self-determination, freedom and independence of people, particularly of those who are under colonial and racist regimes or other forms of alien domination, remain intact. The resolution does not prejudice these rights which have been derived from the Charter and referred to in the Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations. Further, the right of these peoples to struggle and to seek and receive support in accordance with the principles of the Charter and the aforesaid Declaration are not prejudiced.³¹

15.3.2 Enforcement Action by Security Council

The Security Council is to determine the existence of any threat to the peace, breach of the peace, or act of aggression and make recommendations, or decide what measures should be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security.³² However, before making the recommendations or deciding upon the measures, the Security Council may call upon the parties concerned to comply with provisional measures. This is done in order to prevent an aggravation of the situation. The provisional measures are without prejudice to the rights, claims, or position of the parties concerned. The Security Council shall duly take account of failure to comply with such provisional measures.³³

28. Article 3, General Assembly Resolution 3314 (XXIX) (14 December 1974).

29. Article 4, General Assembly Resolution 3314 (XXIX) (14 December 1974).

30. Article 5(1) and (3), General Assembly Resolution 3314 (XXIX) (14 December 1974).

31. Article 7, General Assembly Resolution 3314 (XXIX) (14 December 1974).

32. Article 39, UN Charter.

33. Article 40, UN Charter.

Two kinds of actions are possible under Chapter VII of the UN Charter: (1) non-military enforcement actions; and (2) military enforcement actions.

15.3.2.1 Non-military Enforcement Actions

Non-military enforcement actions are to be taken under Article 41 of the Charter. Article 41 enables Security Council to decide the non-military measures to be taken against the State which is responsible for the threats/breach of the international peace or act of aggression. These may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations. These are the most damaging methods on the responsible State. The decisions of the Security Council to apply these measures are binding on Member States.

The aforesaid sanctions have been imposed on responsible States in the past for continual violations of international law. These States include former Yugoslavia, South Africa for apartheid regime, Iraq, and Sudan. Sanctions are effective deterrent against continued violations of international law and are removed once the States begin to comply with international law. Sanctions send a strong signal of international concern to an offending State and seek to modify its unacceptable behaviour towards other States or against its own citizens and also warn it of stronger actions to follow – including the use of force.³⁴

It is noteworthy that sometimes the role of Security Council in imposing sanctions becomes questionable. The decision of Security Council to impose sanctions depends tremendously on geopolitical calculations and can therefore be subjective. Many a times, it has been seen that one of the five permanent members of the Security Council is not willing to support full-scale sanctions against one of its closest allies. Any such decision is blocked by the use of veto.³⁵

15.3.2.2 Military Enforcement Actions

Where non-military enforcement actions taken by Security Council under Article 41 have been proved to be inadequate, it may take military enforcement actions by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Such action may include demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations.³⁶ In 1999, the Security Council, concerned at “systematic, widespread and flagrant violations of international humanitarian and human rights law” in East Timor, determined that situation was “a threat to peace and security”, and acted under Chapter VII to authorise a multinational force to take all necessary measures to restore peace there.³⁷

Article 43 provides that in order to contribute to the maintenance of international peace and security, the Members of the United Nations are to make available armed forces, assistance, and facilities, including rights of passage, necessary for the purpose of maintaining international peace and security to the Security Council in accordance with a special agreement(s). Such agreement(s) are to govern the numbers and types of forces, their degree of readiness and general

34. Woodrow Wilson Centre, *Sharpening International Sanctions: Executive Summary*, South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 78.

35. Ibid.

36. Article 42, UN Charter.

37. Security Council Resolution 1264 (15 September 1999) UN Doc S/RES/1264; see also Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 227–94 at p 252.

location, and the nature of the facilities and assistance to be provided. These agreement(s) are to be negotiated as soon as possible on the initiative of the Security Council. They are to be concluded between the Security Council and Members or between the Security Council and groups of Members. The agreement(s) are to be ratified by the signatory States.

It is noteworthy that hardly any agreement under Article 43 has been signed. The regional actors supply the Security Council with much needed military resources and assist it in maintaining and restoring international peace and security. The possibility of authorising regional organisations to use force intra-regionally has been explicitly codified in Article 53(1) of the UN Charter.³⁸

Article 46 obligates the Security Council to make plans with the assistance of the Military Staff Committee for the application of armed force. A Military Staff Committee is established to advise and assist the Security Council on questions relating to the Security Council's military requirements for the maintenance of international peace and security, the employment and command of forces placed at its disposal, the regulation of armaments, and possible disarmament.

The Military Staff Committee consists of the Chiefs of Staff of the permanent members of the Security Council or their representatives. It is responsible under the Security Council for the strategic direction of any armed forces placed at the disposal of the Security Council.³⁹

The action required to carry out the decisions of the Security Council for the maintenance of international peace and security is to be taken by all the Members of the United Nations or by some of them, as the Security Council may determine. The Members of the United Nations is to join in affording mutual assistance in carrying out the measures decided upon by the Security Council.⁴⁰

Where the Security Council takes preventive or enforcement measures against any State, any other State, whether a Member of the United Nations or not, which finds itself confronted with special economic problems arising from the carrying out of those measures shall have the right to consult the Security Council with regard to a solution of those problems.⁴¹

15.3.3 Refugee Flows as a Threat to International Peace and Security

The refugee flows as a result of humanitarian crises can pose a threat to nearby States and also constitute a threat to international peace and security. In 1994, thousands of Haitian refugees fled to Florida from a military regime that was spurning democratic election results. But the United States got the Security Council to act under Chapter VII authorising a multinational force to oust the Haitian junta. Thomas Franck noted in 2002 that the Security Council approved coercive measures in Haiti as well as Somalia and ex-Yugoslavia, not for humanitarian reasons alone, but also because of the "the threat to peace caused by massive out-flows of refugees and the danger of wider involvement by other States".⁴²

In June 1994, the Security Council noted that the massive exodus of Rwandan refugees to neighbouring countries constituted a humanitarian crisis of enormous proportions. Soon after, the Security Council, calling Rwanda "a unique case which demands an urgent response by

38. Julia Schmidt, "Regional Security and International Law" in *Security and International Law*, Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright (Edns), 2016, pp 69–92 at p 82.

39. Article 47, UN Charter.

40. Articles 48, 49, UN Charter.

41. Article 50, UN Charter.

42. Gary J Basst, "The Indian Way of Humanitarian Intervention", *The Yale Journal of International Law*, vol 40, 2015, pp 227–94, pp 273–74.

the international community,” determined that “the magnitude of the humanitarian crisis in Rwanda constitutes a threat to peace and security in the region”. The Security Council invoked Chapter VII to demand an end to the killing and asked for more State support for the faltering United Nations Assistance Mission for Rwanda.⁴³

15.4 Uniting for Peace Resolution

During the Korean War in 1950, an important question arose before the United Nations — what should be the course of action in a situation which may require enforcement action and there is a deadlock in the Security Council because of the use of veto by one or more of the permanent member(s)? To deal with such a situation, the General Assembly adopted *Uniting for Peace* Resolution in 1950.⁴⁴ It was resolved that if the Security Council, because of lack of unanimity of the permanent members, fails to exercise its primary responsibility for the maintenance of international peace and security in any case where there appears to be a threat to the peace, breach of the peace, or act of aggression, the General Assembly shall consider the matter immediately with a view to making appropriate recommendations to Members for collective measures, including in the case of a breach of the peace or act of aggression the use of armed force when necessary, to maintain or restore international peace and security.⁴⁵

The Resolution calls for the creation of a Peace Observation Commission to observe situations of a threat or breach of international peace and security, and to make recommendations to Member States for collective action, including the use of force. The Uniting for Peace resolution requires a two-third affirmative vote from Member States present and voting.

Commenting on the nature of the resolution, Kunj writes that Uniting for Peace Resolution was “an attempt to transfer, to a certain degree, the sanctioning competence from the Security Council to the General Assembly, in order to evade the veto, and to revive the task of the United Nations to maintain and restore international peace and security. ... The Assembly has no sanctioning competence, which, under the Charter, is solely and exclusively in the Security Council. The Assembly cannot order the use of military force as a sanction, it can only recommend, and in a legally non-binding way, that the Members make use of their right of individual and collective self-defence under Article 51”.⁴⁶

It is noteworthy that the Security Council’s primary role in the maintenance of international peace and security, and its special functions with regard to self-defence, do not exclude ICJ jurisdiction over cases with which the Security Council is concerned.

15.5 Right of Self-defence

Member States of the United Nations voluntarily surrendered their sovereign right to use force in favour of the Security Council of the United Nations. The Security Council has assumed the primary responsibility of maintaining international peace and security. States are not allowed to use force either to enforce their rights or to prevent possible aggression. However, in case of an armed attack, a State may either alone or in consort with other States use force in self-defence without prior authorisation of the Security Council. Any state that seeks to invoke the right of self-defence should be required to furnish the international community with credible evidence that it has suffered an attack, that the entity against which the right of self-defence is

43. Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 353–55.

44. General Assembly Resolution 377 (V) adopted on 3 November 1950.

45. General Assembly Resolution 377 (V), para 1.

46. Josef L Kunz, “Sanctions in International Law”, *American Journal of International Law*, vol 54, 1960, pp 324–47, p 336.

exercised was the source of the attack, that the attack or threat of attack is continuing, and that the use of force is necessary to protect the State from further injury.⁴⁷

The right of self-defence is an inherent right which exists in the nature of a State. The UN Charter does not grant the right of self-defence. It simply recognises this inherent right under Article 51. Thus, self-defence is a universally accepted exception to the general prohibition of the use of force, enshrined in both Article 51 of the UN Charter and in customary international law.⁴⁸ The right of self-defence was also recognised under the Covenant of League of Nations. The Covenant, however, did not define the right of self-defence and therefore, its extent remained uncertain. In the Kellogg-Briand Pact also, the right of legitimate self-defence of the Members was recognised.

Under UN Charter, the right of self-defence has been recognised in Article 51, which States:

Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence shall be immediately reported to the Security Council and shall not in any way affect the authority and responsibility of the Security Council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.

While recognising this inherent right, the UN Charter has prescribed its scope. The right is not an unfettered one and is available to States only against an actual armed attack. In *Nicaragua* case,⁴⁹ the ICJ while establishing that the right of self-defence of States exists as an inherent right under customary law as well as under Article 51 of the UN Charter, observed:

[A]rticle 51 of the Charter is only meaningful on the basis that there is a “natural” or “inherent” right of self-defence and it is hard to see how this can be other than of a customary nature, even if its present content has been confirmed and influenced by the Charter. ... It cannot therefore be held that Article 51 is a provision which “subsumes and supervenes” customary international law. It rather demonstrates that in the field in question ... customary international law continues to exist alongside treaty law.⁵⁰

As already stated, the right of self-defence is available to a State only when *an armed attack occurs* against it. Article 51 does not define the term “armed attack”. Does it mean the armed attack made only by regular forces of a State? Or does it also include armed attack by armed groups, mercenaries, etc. on behalf of States, where the attack is of such a gravity as to amount to an actual armed attack conducted by regular forces? These issues were dealt with in *Nicaragua* case, in which the ICJ stated:

[A]n armed attack must be understood as including not merely action by regular armed forces across an international border, but also “the sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to” (inter alia) an actual armed attack conducted by regular forces, “or its substantial involvement therein”.⁵¹

However, an “armed attack”, according to Court, does not include “assistance to rebels in the form of the provision of weapons or logistical or other support”. Such assistance may be

47. J Charney, “The Use of Force against Terrorism and International Law”, 95 *American Journal of International Law*, 2001, pp 835–839 at p 836.

48. James A Green and Francis Grimal, “The Threat of Force as an Action in Self-Defense Under International Law”, *Vanderbilt Journal of Transnational Law*, vol 44, 2011, p 285 at p 288.

49. (1986) ICJ Rep.

50. (1986) ICJ Rep 14, para 176.

51. (1986) ICJ Rep 14, para 195.

regarded as a threat or use of force, or amount to intervention in the internal or external affairs of other States.⁵²

In 1998, following terrorist attacks on American embassies in Tanzania and Kenya, which claimed lives of some US people, the United States retaliated by attacking the terrorist sites in Sudan and Afghanistan which it claimed were being maintained by terrorist Osama bin Laden. About 70 Tomahawk missiles were fired from Arabian Sea and the Red Sea, traversing 1000 to 1500 miles in each case.⁵³ These missiles overflew the coastal waters and air space of States other than those which were targeted.

The missiles fired on the Khartoum Chemical factory in Sudan achieved pre-designated damage, whereas those fired into Afghanistan destroyed more than the specific target. A couple of missiles also fell inside the territory of Pakistan. The United States argued that it targeted a group which had carried out anti-United States terrorist activities and which was likely to undertake further violent activities against the United States personnel and establishments. It argued further that punitive action taken by it were actions under the right of self-defence as contained in Article 51 of the UN Charter. The issue arose in that case was whether the terrorist attacks on the US embassies in a third State could be equated to an armed attack on it especially when there was no direct involvement of States in which the terrorist had a base. A plain and simple reading of Article 51 makes it abundantly clear that isolated terrorist attacks can never be equated to an armed attack by a State. It is hard to justify the action of United States in self-defence under Article 51.⁵⁴

In another incident, when terrorists attacked World Trade Centre in New York on 11 September 2001, the Security Council adopted resolution 1368 in which it specifically referred to “the inherent right of individual or collective self-defence in accordance with the Charter”. This right was reaffirmed in Security Council resolution 1373 (2001). A series of binding resolutions was adopted thereafter which declared international terrorism to be a threat to international peace and security with regard to which the right of self-defence is operative. This leads to the conclusion that large-scale attacks by non-State entities may amount to “armed attacks” within the meaning of Article 51.⁵⁵

15.5.1 Can There be a Right of Anticipatory/Pre-emptive Self-defence?

In view of the language used in Article 51, can it be said that a right of anticipatory or pre-emptive self-defence is available to a State? Anticipatory self-defence means use of force by a State to repel an attacker before an actual attack has taken place or before the army of the enemy has crossed its border or before the bombs of the enemy have fallen upon its territory. “Anticipatory” is a term that “refers to the ability to foresee consequences of some future action and take measures aimed at checking or countering those consequences”.⁵⁶

As per the strict interpretation of Article 51, the right of self-defence can be exercised against an actual armed attack. In other words, the right of anticipatory or pre-emptive self-defence is not available to a State. This, however, may cause practical problems, eg the use of modern weapons by a State may hardly give any time to the other State to react. With

52. (1986) ICJ Rep 14, para 195.

53. J N Dixit, “US Tomahawks in Sudan and Afghanistan: A Precedent with Potential”, *Indian Express*, 2 September 1998.

54. V K Ahuja, “US Attack on Sudan and Afghanistan: Does the Action Fall under Article 51 of the UN Charter?”, *National Capital Law Journal*, vol 3, 1998, pp 102–07 at pp 102, 106.

55. Malcolm N Shaw, *International Law*, 2008, p 1136.

56. Leo Van den hole, “Anticipatory Self-Defence Under International Law”, *American University International Law Review*, vol 19(1), 2003, p 72.

the growing availability of ever more sophisticated nuclear, biological and chemical weapons capable of destroying entire cities, if not nations, and with the development of delivery systems impervious to interception, no nation could seriously be expected to await an actual armed attack before acting to head it off.⁵⁷

It has been argued that “Article 2(4) of the Charter requires Members to refrain not only from the use of force, but also from the threat of force. If States had to wait for an armed attack to occur, then maintenance of international peace and security could not take place. If States waited for such an attack, they would then become responsible for the restoration, instead of maintenance, of international peace and security”.⁵⁸

It has been suggested that the notion of self-defence could be expanded to a right of “pre-emptive self-defence” which is also referred to as “preventive self-defence”, enabling the use of force in order to defend against, or prevent possible attacks.⁵⁹ It may, however, create a serious problem. If the States are allowed to exercise the right of anticipatory or pre-emptive self-defence, there shall always be a likelihood of its misuse. An early pre-emptive right may also result in aggression. The right of self-defence, therefore, cannot be exercised merely on the ground of expectations, anticipations, and fear. It is required to be proved that the other side is already embarked on an inevitable course of action.⁶⁰ Professor Greenwood argues:

The right of anticipatory self-defence is quite narrowly defined. Ever since the United Kingdom-US exchange in what has become known as the *Caroline* case in 1837–38, the right has been confined to instances where the threat of armed attack was imminent. In my opinion, that still reflects international law and, in so far as talk of a doctrine of ‘pre-emption’ is intended to refer to a broader right to respond to threats, which might materialise sometime in the future, I believe that such a doctrine has no basis in law.⁶¹

The scope of right of self-defence of a State is limited. The entitlement of States to resort to self-defence is subject to certain constraints. Some of these constraints are inherent in the very concept of self-defence. Other requirements are specified in Article 51. The *Caroline* incident has put the right of self-defence in two core principles: necessity and proportionality. Necessity demands that the danger be “instant, overwhelming, leaving no choice of means, and no moment for deliberation”. Proportionality means that “nothing unreasonable or excessive” may be done because the act must be distinctly limited by the necessity causing it. These principles were widely used in international disputes and rapidly came to represent the customary law of self-defence. Accordingly, Article 51 of the UN Charter incorporated the *Caroline* principles as pillars of the “inherent” State right of self-defence. Since 1945, States have continued to consider necessity and proportionality the defining parameters of appropriate self-defence.⁶²

In Advisory Opinion on *Legality of the Threat or Use of Nuclear Weapons*,⁶³ the ICJ stated that “the submission of the exercise of the right of self-defence to the conditions of necessity

57. Thomas M Franck, “Collective Security and UN Reform: Between the Necessary and the Possible”, *Chicago Journal of International Law*, vol 6, (2005–06), p 597 at p 602.

58. Leo Van den hole, “Anticipatory Self-Defence Under International Law”, *American University International Law Review*, vol 19(1), 2003, pp 85–86.

59. Malcolm N Shaw, *International Law*, 2008, p 1140.

60. J Paust, “Post-9/11 Overreaction and Fallacies Regarding War and Defence, Guantanamo, the Status of Persons, Treatment, Judicial Review of Detention, and Due Process in Military Commissions”, *Notre Dame Law Review* vol 79, 2004, pp1335–1364 at p 1343.

61. C Greenwood, “The Legality of Using Force Against Iraq”, quoted in Niaz A Shah, “Self-defence, Anticipatory Self-defence and Pre-emption: International Law’s Response to Terrorism”, *Journal of Conflict and Security Law* vol 12, 2007, pp 95–126 at p 116.

62. Matthew Allen Fitzgerald, “Seizing Weapons of Mass Destruction from Foreign-Flagged Ships on the High Seas Under Article 51 of the UN Charter”, *Virginia Journal of International Law* vol 49(2) 2008, pp 479–80.

63. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep.

and proportionality is a rule of customary international law”.⁶⁴ It further stated that “this dual condition applies equally to Article 51 of the Charter, whatever the means of force employed”.⁶⁵

On the use of nuclear weapons in self-defence, the ICJ made the following observations:

The proportionality principle may thus not in itself exclude the use of nuclear weapons in self-defence in all circumstances. But at the same time, a use of force that is proportionate under the law of self-defence, must, in order to be lawful, also meet the requirements of the law applicable in armed conflict which comprise in particular the principles and rules of humanitarian law.⁶⁶

The ICJ finally concluded by stating that “... however, in view of the current state of international law, and of the elements of fact at its disposal, the Court could not conclude definitively whether the threat or use of nuclear weapons would be lawful or unlawful in an extreme circumstance of self-defence, in which the very survival of a State would be at stake”.⁶⁷

15.5.2 Collective Self-defence

Article 51 also recognises the right of collective self-defence. If a State is not in a position to take action in self-defence, it may seek help of other States to defend it. In *Nicaragua* case,⁶⁸ the ICJ observed:

The exercise of the right of collective self-defence presupposes that an armed attack has occurred; ... if the victim State wishes another State to come to its help in the exercise of the right of collective self-defence, it will normally make an express request to that effect.⁶⁹

The Court further stated that “there is no rule in customary international law permitting another State to exercise the right of collective self-defence on the basis of its own assessment of the situation. Where collective self-defence is invoked, it is to be expected that the State for whose benefit this right is used will have declared itself to be the victim of an armed attack”.⁷⁰

The right of collective self-defence forms the basis of comprehensive regional security systems. After World War II, organisations such as NATO and Warsaw Pact were established which were based upon the right of collective self-defence under Article 51. According to Article 5 of the NATO Treaty, 1949 an attack upon one party is treated as an attack upon all. The collective self-defence is therefore, more than a collection of individual rights of self-defence.

When Iraq annexed Kuwait in 1990, the latter requested the friendly States for assistance. An armed action was taken by them to liberate Kuwait in 1991. This may be considered a good example of collective self-defence even though the action was taken pursuant to UN Security Council.⁷¹

As per Article 51, the right of self-defence is available to Member States until the Security Council has taken measures necessary to maintain international peace and security. The right of Member States to act in self-defence would cease once the Security Council has taken such measures in regard to the given situation. Thus, the right of State acting in self-defence would disappear, under the system contemplated by the UN Charter, as soon as the UN Security Council took it upon itself to employ the enforcement measures necessary for ensuring the full

64. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep, para 41.

65. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep.

66. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep, para 42.

67. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep, para 105.

68. (1986) ICJ Rep 14.

69. (1986) ICJ Rep 14, para 232.

70. (1986) ICJ Rep 14, para 195.

71. Malcolm N Shaw, *International Law*, 2008, pp 1146–47.

respect of a situation jeopardized by the aggression. This is a clear limitation, imposed by the UN Charter, upon the inherent customary right of self-defence of States.⁷²

Actions taken by Member States will immediately be reported to Security Council. In *Nicaragua* case,⁷³ the Court held that although the requirement to report to the Security Council was not part of customary international law, it was significant in that failure to report could be an indication that the State was not genuinely acting in self-defence.⁷⁴

The action taken by individual State under the right of self-defence does not in any way affect the power of Security Council to maintain international peace and security. It can at any time interfere in the situation and take necessary action to maintain international peace and security. Even if the Security Council is unable to act in the first instance, its authority to take action subsequently shall not be affected.

15.6 Regional Arrangements

The UN Charter does not preclude the existence of regional arrangements or agencies for dealing with such matters relating to the maintenance of international peace and security as are appropriate for regional action. It is, however, necessary that such arrangements or agencies and their activities are consistent with the Purposes and Principles of the United Nations. Unlike UN Charter, the Covenant of the League of Nations did not assign a *specific* role to regional organisations to secure the maintenance of peace.

The Members of the United Nations who enter into such arrangements or constitute such agencies are required to make every effort to achieve pacific settlement of local disputes through such regional arrangements or agencies before referring them to the Security Council. The Security Council is also to encourage the development of pacific settlement of local disputes through such regional arrangements or agencies.⁷⁵

According to Article 53(1), where appropriate, the Security Council is to utilise such regional arrangements or agencies for enforcement action under its authority. However, no enforcement action is to be taken under regional arrangements or by regional agencies without the authorisation of the Security Council.

Chapter VIII of the UN Charter establishes primary responsibility of the regional organisations for the pacific settlement of local disputes that can pose a threat to international peace and security. It also integrates regional arrangements and agencies into the United Nations system of collective security. According to Article 53 (1) of the UN Charter, the Security Council shall, where appropriate, utilise such regional arrangements or agencies for enforcement action under its authority.⁷⁶

The regional military measures under Chapter VIII are required to be authorised by Security Council in order to be lawful. The regional organisations do not enjoy greater autonomy in the context of the use of force than other military actors. They can decide independently in the context of the peaceful settlement of disputes under Chapter VI; in matters of collective self-defence; and in the context of consensual peace-keeping missions, but not while taking military enforcement measures.⁷⁷

72. Leo Van den hole, "Anticipatory Self-Defence under International Law", *American University International Law Review*, vol 19(1), 2003, p 98.

73. (1986) ICJ Rep 14.

74. (1986) ICJ Rep 14, para 200.

75. Article 52, UN Charter.

76. Julia Schmidt, "Regional Security and International Law" in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright, (Edns), *Security and International Law*, 2016, pp 69–92 at 75.

77. Julia Schmidt, "Regional Security and International Law" in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright, (Edns), *Security and International Law*, 2016 Id., p 88.

According to Article 54, the activities undertaken or in contemplation under regional arrangements or by regional agencies for the maintenance of international peace and security are to be brought to the notice of the Security Council at all times. As far as the requirement of informing Security Council is concerned, Article 54 is widely drafted in comparison to Article 51 which recognizes the right of self-defence. Article 51 requires an immediate report to the Security Council of the measures that have been taken in the exercise of the right to individual or collective self-defence whereas under Article 54, the Security Council has to be kept fully informed, even of the activities in contemplation apart from the activities undertaken.

Though the primary responsibility to restore and maintain international peace and security has been placed on the Security Council by the UN Charter, it however foresees a secondary role for regional arrangements or agencies. It has been found that regional organisations have assisted the United Nations in hard security tasks, including peace-enforcement by providing it much needed resources and rapid reaction mechanisms. The issue whether these regional organisations fall under Chapter VIII of the Charter or not remains debatable. It is also observed that multilateralism may be good in the sense that it overcomes some of the shortcomings of the United Nations. It may, however, at the same time also pose challenges to the universal security system.⁷⁸

The Charter does not define “regional arrangements or agencies”. The drafting history of the Charter suggests that both terms have been deliberately chosen to make the scope wider.⁷⁹ A number of organisations specifically self-identify as regional agencies include Organisation of American States; Organisation for Security and Co-operation in Europe; the Commonwealth of Independent States; Economic Community of West African States (ECOWAS), and the African Union (AU).⁸⁰

The regional organisations have been utilised by the Security Council in the context of peacekeeping and peace enforcement. In 2003, the Economic Community of West African States (ECOWAS) sought to intervene in Liberia. The Security Council authorised the establishment of a multinational force based upon ECOWAS to implement ceasefire. The role of ECOWAS within the context of Chapter VIII was specifically commended. The Security Council fully adopted the actions of ECOWAS, authorised further such actions and then subsumed the ECOWAS operation into a UN peacekeeping mission.⁸¹

In 2004, the African Mission in Sudan was created as a part of a ceasefire monitoring arrangement together with the European Union for the purpose of implementing ceasefire in Darfur. The African Union troops were sent to protect the monitors and the force grew from there. Subsequently, the African Union force merged with the United Nations force in 2007.⁸²

78. Julia Schmidt, “Regional Security and International Law” in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright, (Edns), *Security and International Law*, 2016, pp 69–92 at 70.

79. Julia Schmidt, “Regional Security and International Law” in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright, (Edns), *Security and International Law*, 2016, pp 75–76.

80. Malcolm N Shaw, *International Law*, (2008), p 1274; Julia Schmidt, “Regional Security and International Law” in Mary E Footer, Julia Schmidt, Nigel D White and Lydia Davies-Bright, (Edns), *Security and International Law*, 2016, id p 80.

81. Malcolm N Shaw, *International Law*, (2008), pp 1277–78.

82. Malcolm N Shaw, *International Law*, (2008), p 1280.

CHAPTER 16

INTERNATIONAL HUMANITARIAN LAW

SYNOPSIS

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16.1 Introduction

Law of war or armed conflicts popularly known as international humanitarian law governs the situations of armed conflicts whether internal or international in nature. International humanitarian law mitigates the effects of war by limiting the choice of belligerents of means and methods of conducting military operations and also by obligating them to spare persons who do not or no longer participate in conflicts. According to the *Report of the OHCHR Investigation on Sri Lanka (OISL)*,¹ international humanitarian law regulates the conduct of parties to the armed conflict by protecting those who do not or no longer directly participate in hostilities and by regulating the means and methods of warfare with the aim of restricting the use of armed force “to the amount necessary to achieve the aim of the conflict, which — independently of the causes fought for — can only be to weaken the military potential of the enemy”.²

1. UN Human Rights Council, *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 180.

2. *How Does Law Protect in War?*, Sassòli, M, Bouvier, A, and Quintin A (Eds), vol 1, 2011, p 1.

Thus, international humanitarian law deals with the protection of sick and wounded personnel, prisoners of war, civilian in occupied territory, prohibited methods of warfare, and protection of human rights in situation of armed conflicts whether internal or international. The obligations of parties to the conflict in the conduct of hostilities are governed by the principles of distinction,³ proportionality⁴ and precaution⁵ at all times.⁶

International humanitarian law does not itself prohibit war. It however, becomes applicable whenever an armed conflict actually occurs. The purpose of international humanitarian law is not to seek justification of war or armed conflict but to promote humanity during the war. It prevents belligerents to show their barbarity during and after the war.

The UN Charter prohibits threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the Purposes of the United Nations.⁷ States are obliged to settle their differences through peaceful methods only. The Charter does not, however, prevent Member States to take action in self-defence when an armed attack occurs against them. The Member States not only have the right of individual self-defence but also of the collective self-defence. This means that other States can join a Member State in self-defence against an armed attack. Apart from that, the Security Council can also take enforcement action to maintain international peace and security under Chapter VII of the UN Charter. Thus use of force is not completely prohibited under the UN Charter.

Apart from the use of force by one State against another, an armed conflict may also occur inside a State between the State forces and an organised armed group. The intensity of the armed conflict may be so high that it may become a civil war. In such a case the prohibition of use of force laid down by UN Charter for Member States is not applicable as it is considered as an internal matter of the State. It is, however, noteworthy that civil wars also result in a lot of bloodshed. The international humanitarian law, therefore, becomes applicable in civil wars also.

16.2 Difference Between *Jus ad bellum* and *jus in bello*

The International humanitarian law is different from the body of law relating to the justifications for the use of force by States. The latter is known as *jus ad bellum* (law on the use of force or the prevention of war). International humanitarian law governs the principles known as *jus in bello* (law in war).⁸ Whether war is legal or illegal is not the concern of international humanitarian law. It deals with matters of humanitarian concern during and after armed conflict.

16.3 Origin and Development of International Humanitarian Law

The international humanitarian law is not a new branch of law. It used to exist in older times in all the cultures. It can be traced back *inter alia*, to ancient Hindu epic Mahabharata,

3. The principle of *distinction* requires that parties to a conflict distinguish between civilians and civilian objects on the one hand, and lawful military targets on the other.

4. The principle of *proportionality* prohibits attacks that are expected to cause incidental loss of life, injury to civilians, damage to civilian objects, or a combination thereof, which would be excessive in relation to the concrete and direct military advantage anticipated.

5. The principle of *precaution* requires all parties to take all feasible measures to avoid and in any event to minimize incidental loss of civilian life, injury to civilians and damage to civilian objects.

6. UN Human Rights Council, *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, paras 184–87.

7. Article 2(4), UN Charter.

8. ICRC, *International Humanitarian Law: Answers to Your Questions*, 2002 available at <http://www.icrc.org> (last accessed in January, 2021).

Hammurabi's Code, the Bible, the Koran, the Japanese Code *bushido*.⁹ Many of the rules which were observed during earlier times also find a place in the international humanitarian law of the contemporary times.

In 1625, Hugo Grotius wrote in *De Jure Belli ac Pacis* "that throughout the Christian world, I observed a lack of restraint in relation to war, such as even barbarous races should be ashamed of; I observed that men rush to arms for slight causes, or no cause at all, and that when arms have once been taken up there is no longer any respect for law, divine or human; it is as if, in accordance with a general decree, frenzy had openly been let loose for the committing of all crimes".¹⁰ His work gained immediate popularity and the effect of his writing was so profound that in the Peace of Westphalia, its leading principles were recognised and became the very foundation of the new order of Europe which in 1648 was established by the treaties of Osnabruck and Munster.¹¹

The contribution of Henry Dunant in the 19th century has a bearing on the development of modern international humanitarian law. Henry Dunant in his book *Memory of Solferino* shared his experiences after witnessing the bloodiest battle of Solferino between France and its Italian allies and Austria in 1859. He was shocked to see that there was no help coming for the wounded and defenceless persons. On the basis of his experiences, he proposed two practical measures calling for direct action: (i) an international agreement on the neutralisation of medical personnel in the field, and (ii) the creation of a permanent organization for practical assistance to the war wounded.¹²

He also founded a charitable humanitarian association with the help of others, namely Geneva Association of Public Welfare in 1863, which later became the International Committee of the Red Cross (ICRC).¹³ His efforts for the adoption of an international agreement fructified when 12 European States adopted the Geneva Convention for the Amelioration of the Condition of the Wounded in Armies in the Field in 1864. This can be said to be the first international treaty in the field of modern international humanitarian law. The Convention of 1864 was revised in 1906.

The Declaration of St Petersburg was adopted in 1868, which prohibited the use of small explosive or incendiary projectiles. The codification of law of war was done at the Hague Conferences of 1899 and 1907 at which a series of conventions were adopted on land and naval warfare. These conventions were based partly upon the St. Petersburg Declaration of 1868 as well as the results of the Brussels Conference of 1874. The conventions along with the Regulations Respecting the Laws and Customs of War on Land emphasised that belligerents remained subject to the law of nations and the use of force against undefended population was forbidden. The rights and duties of neutral States and persons in case of war were also laid down. The conventions also prohibited the employment of arms, projectiles or material calculated to cause unnecessary suffering.¹⁴

The international humanitarian law got impetus when four Geneva Conventions were adopted by international community in 1949. The majority of States agreed to be governed by these conventions. The international humanitarian law was further strengthened by the adoption of two Additional Protocols in 1977. The "Hague Law" relative to the laws and

9. Hans-Peter Gasser, "International Humanitarian Law" in *Introduction to International Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 4.

10. See Oscar Svarlien, *An Introduction to the Law of Nations*, 1955, p 74.

11. Ibid.

12. Hans-Peter Gasser, "International Humanitarian Law" in, *Introduction to International Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 5.

13. ICRC, *Discover the ICRC*, 2005, pp 6-7.

14. Malcolm N Shaw, *International Law*, 2008, p 1169.

customs of war, which fixes the rights and duties of belligerents in their conduct of operations and limits the choice of methods and means of injuring the enemy in an international armed conflict; and the “Geneva Law” (the Conventions of 1864, 1906, 1929 and 1949), which protects the victims of war and aims to provide safeguards for disabled armed forces personnel and persons not taking part in the hostilities, are the two branches of the law applicable in armed conflict. The “Hague Law” and “Geneva Law” have become so closely interrelated that they are considered to have gradually formed one single complex system, known today as international humanitarian law. The provisions of the Additional Protocols of 1977 give expression and attest to the unity and complexity of that law.¹⁵

The law laid down by the Hague Conventions and Geneva Conventions may also be applicable on non-State parties as customary international law. In 1945, the Nuremberg International Military Tribunal stated that the humanitarian rules included in the Regulations annexed to the Hague Convention IV of 1907 “were recognised by all civilised nations and were regarded as being declaratory of the laws and customs of war”.¹⁶

In the Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, the Court observed that:

a great many rules of humanitarian law applicable in armed conflict are so fundamental to the respect of the human person and “elementary considerations of humanity” ... that the Hague and Geneva Conventions have enjoyed a broad accession. Further these fundamental rules are to be observed by all States whether or not they have ratified the conventions that contain them, because they constitute intransgressible principles of international customary law.¹⁷

In 1993, the Secretary-General of the United Nations introduced the Statute of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991, and submitted his report which was unanimously approved by the Security Council. The Security Council in its resolution 827 (1993), stated:

In the view of the Secretary-General, the application of the principle *nullum crimen sine lege* requires that the international tribunal should apply rules of international humanitarian law which are beyond any doubt part of customary law . . .

The part of conventional international humanitarian law which has beyond doubt become part of international customary law is the law applicable in armed conflict as embodied in: the Geneva Conventions of 12 August 1949 for the Protection of War Victims; the Hague Convention (IV) Respecting the Laws and Customs of War on Land and the Regulations annexed thereto of 18 October 1907; the Convention on the Prevention and Punishment of the Crime of Genocide of 9 December 1948; and the Charter of the International Military Tribunal of 8 August 1945.¹⁸

Not all provisions of Additional Protocols of 1977 reflect the customary international law. The Additional Protocols, therefore, may not be applied on non-State parties as customary international law. It is noteworthy that customary international law which may develop beyond the aforesaid conventional law, shall also be applicable on all the States.

15. Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 75.

16. *Trial of the Major War Criminals before the International Military Tribunal*, 14 November 1945–1 October 1946, Nuremberg, 1947, vol 1, p 254.

17. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 79.

18. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, paras 80–81.

16.4 Martens Clause

The Martens Clause stipulates that in cases not covered by the rules of law, “the inhabitants and belligerents remain under the protection and the rule of the principles of the law of nations, as they result from the usages established by civilized peoples, from the laws of humanity, and the dictates of public conscience”.¹⁹ The Martens Clause is extremely important as it plugs in the loopholes which may be found in the codified humanitarian law. The Martens Clause, therefore, provides a “legal safety net”.²⁰

The Second Hague Convention with Respect to the Laws and Customs of War on Land of 1899 incorporated the Martens Clause in its preamble:

Until a more complete code of the laws of war is issued, the High Contracting Parties think it right to declare that in cases not included in the Regulations adopted by them, populations and belligerents remain under the protection and empire of the principles of international law, as they result from the usages established between civilized nations, from the laws of humanity, and the requirements of the public conscience.

In the Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*,²¹ the Court observed that the Martens Clause has proved to be an effective means of addressing the rapid evolution of military technology. A modern version of that clause is to be found in Article 1(2), of Additional Protocol I of 1977, which provides:

In cases not covered by this Protocol or by other international agreements, civilians and combatants remain under the protection and authority of the principles of international law derived from established custom, from the principles of humanity and from the dictates of public conscience.

16.5 Geneva Conventions and Additional Protocols

The international humanitarian law has been codified to a great extent in the four Geneva Conventions of 12 August 1949 and their Additional Protocols of 8 June 1977. These Geneva Conventions are — Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field (First Geneva Convention); Geneva Convention for the Amelioration of the Condition of the Wounded, Sick and Shipwrecked Members of Armed Forces at Sea (Second Geneva Convention); Geneva Convention Relative to the Treatment of Prisoners of War (Third Geneva Convention); and Geneva Convention Relative to the Protection of Civilian Persons in Time of War (Fourth Geneva Convention).

The Additional Protocols are — Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Additional Protocol I); and Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of Non-International Armed Conflicts (Additional Protocol II). These Protocols were adopted at the 1974–77 Diplomatic Conference on the Reaffirmation and Development of International Humanitarian Law Applicable in Armed Conflicts.

In addition to the above, the third Additional Protocol, namely Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Adoption of an Additional Distinctive Emblem (Additional Protocol III) was adopted on 8 December 2005.

19. Hans-Peter Gasser, “International Humanitarian Law” in *Introduction to International Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 8.

20. Ibid.

21. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 78.

It is noteworthy that the obligations of a party to the armed conflict under international humanitarian law including Geneva Conventions do not depend on the conduct of the opposing party, as the duty to respect international humanitarian law is not conditioned on reciprocity. Violations of international humanitarian law attributable to one of the parties to the conflict do not justify lack of compliance in response on part of the opposing party. Similarly, common Article 1 of the Four Geneva Conventions of 1949 provides that all “High Contracting Parties undertake to respect and ensure respect” for the four Geneva Conventions in all circumstances. The wording of common Article 3 providing that the guarantees contained therein shall be applicable “in all circumstances” further reinforces this obligation.²²

The Geneva Conventions are ordinarily applicable to international armed conflicts, i.e. the armed conflict only between two or more States. Article 2 common to all the Geneva Conventions makes the Conventions applicable to “all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them”.

The Conventions also “apply to all cases of partial or total occupation of the territory of a High Contracting Party, even if the said occupation meets with no armed resistance”. Although one of the Powers in conflict may not be a party to the Geneva Conventions, the Powers who are parties thereto shall remain bound by it in their mutual relations. They shall furthermore be bound by the Conventions in relation to the said Power, if the latter accepts and applies the provisions thereof.

Article 3 common to all four Conventions —applies to non-international armed conflicts, i.e. armed conflict between the State and armed groups (or between armed groups themselves) where the groups possess a certain degree of organization and the violence reaches a certain level of intensity. Civil war is a good example of it.

Additional Protocol I supplements the Convention’s provisions regulating international armed conflicts. It broadens the definition of those conflicts to include situations in which people exercise their right to self-determination by fighting against colonial domination, alien occupation or racist regimes. Additional Protocol II specifically applies to certain high intensity, non-international armed conflicts between State armed forces and organized armed groups that exercise such territorial control as to enable them to carry out sustained and concerted military operations and to implement the Protocol.²³

The Additional Protocol III supplements the Geneva Conventions by permitting the use of an additional distinctive emblem. Article 1(2) of the Protocol reaffirms and supplements the provisions of the four Geneva Conventions and, where applicable, of their two Additional Protocols relating to the distinctive emblems, namely the red cross, the red crescent and the red lion and sun. The scope of Additional Protocol III, therefore, is very restricted in comparison to Additional Protocol I and II.

Before proceeding to discuss Geneva Conventions and Additional Protocols individually, it will be appropriate to discuss the meaning of the term “armed conflict” as used in common Article 2 of the Geneva Conventions.

16.5.1 Meaning of “armed conflict”

As already stated Article 2 common to all the Geneva Conventions makes the conventions applicable to “all cases of declared war” or “armed conflict which may arise between two or

22. UN Human Rights Council *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, paras 189.

23. ICRC, *Summary of the Geneva Conventions of 12 August 1949 and their Additional Protocols*, 2nd Edn, 2012, p 4.

more of the High Contracting Parties, even if the state of war is not recognized by one of them". The Geneva Conventions and Additional Protocols are applicable to the armed conflict, irrespective of the fact whether such conflict is declared as war or not.

The term "armed conflict" has nowhere been defined in Geneva Conventions or Additional Protocols. In absence of a definition, it can be stated that any use of force by one State against another shall invite the application of international humanitarian law. It is irrelevant whether the armed conflict was legal or illegal. The moment one State uses force against another State, international humanitarian law becomes applicable to the parties to the conflict. International humanitarian law also becomes applicable in internal armed conflicts.

The Appeals Chamber of the International Criminal Tribunal for Yugoslavia made the following observations on "armed conflict":

[A]n armed conflict exists whenever there is a resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups or between such groups within a State. International humanitarian law applies from the initiation of such armed conflicts and extends beyond the cessation of hostilities until a general conclusion of peace is reached; or in the case of internal conflicts, a peaceful settlement is achieved. Until that moment, international humanitarian law continues to apply in the whole territory of the warring States or, in the case of internal conflicts, the whole territory under the control of a party, whether or not actual combat takes place there.²⁴

16.5.2 Geneva Conventions I and II

The provisions of Second Geneva Convention i.e. Geneva Convention for the Amelioration of the Condition of the Wounded, Sick and Shipwrecked Members of Armed Forces at Sea are very similar to the provisions of First Geneva Convention, i.e. Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field. The provisions of Second Geneva Convention apply to naval forces and add the category of shipwrecked persons to the protected classes of the ill and wounded.

16.5.2.1 Wounded and Sick

Article 13 makes the First Geneva Convention applicable to the wounded and sick belonging to the following categories:

- (i) Members of the armed forces of a Party to the conflict as well as members of militias or volunteer corps forming part of such armed forces.
- (ii) Members of other militias and members of other volunteer corps, including those of organized resistance movements, belonging to a Party to the conflict and operating in or outside their own territory, provided that such militias or volunteer corps, including such organised resistance movements, fulfil the conditions of — (1) being commanded by a person responsible for his subordinates; (2) having a fixed distinctive sign recognisable at a distance; (3) carrying arms openly; and (4) conducting their operations in accordance with the laws and customs of war.
- (iii) Members of regular armed forces who profess allegiance to a Government or an authority not recognised by the Detaining Power.
- (iv) Persons who accompany the armed forces without actually being members thereof, such as civilian members of military aircraft crews, war correspondents, supply

24. *Prosecutor v Tadić*, IT-94-1-AR 72, 2 October 1995, para 70.

contractors, members of labour units or of services responsible for the welfare of the armed forces.

- (v) Members of crews including masters, pilots and apprentices of the merchant marine and the crews of civil aircraft of the Parties to the conflict, who do not benefit by more favourable treatment under any other provisions in international law.
- (vi) Inhabitants of a non-occupied territory who, on the approach of the enemy, spontaneously take up arms to resist the invading forces, without having had time to form themselves into regular armed units, provided they carry arms openly and respect the laws and customs of war.

The aforesaid persons as mentioned in Article 13, who are wounded or sick, are to be respected and protected in all circumstances. They are to be treated humanely and cared for by the Party to the conflict in whose power they may be, without any adverse distinction founded on sex, race, nationality, religion, political opinions, or any other similar criteria. Any attempts upon their lives, or violence to their persons, is strictly prohibited. They are not to be murdered or exterminated, or subjected to torture or to biological experiments. Only urgent medical reasons will authorise priority in the order of treatment to be administered. Women are to be treated with all consideration due to their sex.²⁵ In Second Geneva Convention, a similar provision is provided which is applicable to the aforesaid Members of the armed forces and other persons, who are at sea and who are wounded, sick or shipwrecked.²⁶ If wounded, sick or shipwrecked persons are taken on board a neutral warship or a neutral military aircraft, it is to be ensured, that they can take no further part in operations of war.²⁷

The wounded, sick and shipwrecked of a belligerent who fall into enemy hands are to be considered prisoners of war. The provisions of international law concerning prisoners of war shall apply to them.²⁸ Parties to the conflict are under an obligation to take all possible measures to search for and collect the shipwrecked, wounded and sick without delay. They are to protect them against pillage and ill-treatment, ensure their adequate care, and to search for the dead.²⁹

16.5.2.2 Medical Units and Establishments

Fixed establishments, mobile medical units of the Medical Service, hospital ships, military hospital ships, are to be respected and protected at all times and not to be attacked under any circumstances.³⁰ Medical personnel (doctors, nurses, stretcher-bearers, etc.) exclusively engaged in the search for, or the collection, transport or treatment of the wounded or sick, or in the prevention of disease, staff exclusively engaged in the administration of medical units (field hospitals, tents, open-air installations, etc.) and establishments, as well as chaplains attached to the armed forces, shall be respected and protected in all circumstances.³¹ The Second Geneva Convention also provides that the religious, medical and hospital personnel of hospital ships and their crews are to be respected and protected. They may not be captured during the time they are in the service of the hospital ship, whether or not there are wounded and sick on board.³²

25. Article 12, First Geneva Convention.

26. Articles 12 and 13, Second Geneva Convention.

27. Article 15, Second Geneva Convention.

28. Article 14, First Geneva Convention; Article 16, Second Geneva Convention.

29. Article 15, First Geneva Convention; Article 18, Second Geneva Convention.

30. Articles 19, 20, First Geneva Convention; Article 22, Second Geneva Convention.

31. Article 24, First Geneva Convention.

32. Article 36, Second Geneva Convention.

Transports of wounded and sick or of medical equipment (stretchers, medical and surgical appliances and instruments, medical supplies, dressings, etc.), and ships chartered for that purpose shall be respected and protected in the same way as mobile medical units. Medical aircrafts are to be respected by the belligerents and not to be attacked while flying at heights, times and on routes specifically agreed upon between the belligerents concerned.³³ The second Geneva Convention also establishes protections for neutral medical transport ships.

Reprisals against the wounded, sick and shipwrecked, personnel, buildings or equipment protected by the Convention are prohibited.³⁴ Wounded, sick and shipwrecked persons, as well as members of the medical personnel and chaplains, may in no circumstances renounce the rights secured to them by the Convention.³⁵

The humanitarian activities undertaken by the ICRC or any other impartial humanitarian organisation for the protection of wounded and sick, medical personnel and chaplains are to remain unhindered.³⁶

16.5.2.3 Repression of Abuses

The State parties are to enact legislation necessary to provide effective penal sanctions for persons committing, or ordering to be committed, any of the grave breaches of the convention. The convention obliges them to search for persons alleged to have committed, or to have ordered to be committed, such grave breaches. They shall bring such persons, regardless of their nationality, before its own courts.³⁷ Grave breaches are those involving any of the following acts, if committed against persons or property protected by the Convention: wilful killing, torture or inhuman treatment, including biological experiments, wilfully causing great suffering or serious injury to body or health, and extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly.³⁸

Other than the grave breaches, the State parties are to take measures necessary for the suppression of all acts contrary to the provisions of the Convention. In all circumstances, the accused persons shall benefit by safeguards of proper trial and defence.

The Second Geneva Convention replaces the 10th Hague Convention of 18 October 1907, for the adaptation to Maritime Warfare of the principles of the Geneva Convention of 1906.³⁹

16.5.3 Geneva Conventions III

16.5.3.1 Who are Prisoners of War?

Prisoners of war are persons belonging to one of the following categories, who have fallen into the power of the enemy:

- (i) Members of the armed forces of a Party to the conflict as well as members of militias or volunteer corps forming part of such armed forces.
- (ii) Members of other militias and members of other volunteer corps, including those of organised resistance movements, belonging to a Party to the conflict and operating in or outside their own territory, even if this territory is occupied, provided that

33. Articles 35, 36, First Geneva Convention; Articles 38–40, Second Geneva Convention.

34. Article 46, First Geneva Convention; Article 47, Second Geneva Convention.

35. Article 7, First Geneva Convention; Article 7, Second Geneva Convention.

36. Article 9, First Geneva Convention; Article 9, Second Geneva Convention.

37. Article 49, First Geneva Convention; Article 50, Second Geneva Convention.

38. Article 50, First Geneva Convention; Article 51, Second Geneva Convention.

39. Article 58, Second Geneva Convention.

such militias or volunteer corps, including such organised resistance movements, fulfil the conditions of: (1) being commanded by a person responsible for his subordinates; (2) having a fixed distinctive sign recognisable at a distance; (3) carrying arms openly; and (4) conducting their operations in accordance with the laws and customs of war.

- (iii) Members of regular armed forces who profess allegiance to a government or an authority not recognised by the Detaining Power.
- (iv) Persons who accompany the armed forces without actually being members thereof, such as civilian members of military aircraft crews, war correspondents, supply contractors, members of labour units or of services responsible for the welfare of the armed forces, provided that they have received authorisation from the armed forces which they accompany, who shall provide them for that purpose with an identity card similar to the annexed model.
- (v) Members of crews, including masters, pilots and apprentices of the merchant marine and the crews of civil aircraft of the Parties to the conflict, who do not benefit by more favourable treatment under any other provisions of international law.
- (vi) Inhabitants of a non-occupied territory who, on the approach of the enemy, spontaneously take up arms to resist the invading forces, without having had time to form themselves into regular armed units, provided they carry arms openly and respect the laws and customs of war.

Apart from the above, the following shall likewise be treated as prisoners of war under the present Convention:

- (i) Persons belonging, or having belonged, to the armed forces of the occupied country, if the occupying Power considers it necessary by reason of such allegiance to intern them, even though it has originally liberated them while hostilities were going on outside the territory it occupies, in particular where such persons have made an unsuccessful attempt to rejoin the armed forces to which they belong and which are engaged in combat, or where they fail to comply with a summons made to them with a view to internment.
- (ii) The persons belonging to one of the categories mentioned above, who have been received by neutral or non-belligerent powers on their territory and whom these powers are required to intern under international law.⁴⁰

The convention is applicable to the aforesaid persons from the time they fall into the power of the enemy and until their final release and repatriation.⁴¹ Prisoners of war may in no circumstances renounce in part or in entirety the rights secured to them by the convention.⁴² The convention does not constitute any obstacle to the humanitarian activities which the ICRC or any other impartial humanitarian organisation may undertake for the protection of prisoners of war and for their relief.⁴³

16.5.3.2 Protection of Prisoners of War

Prisoners of war must at all times be humanely treated. Any unlawful act or omission by the Detaining Power causing death or seriously endangering the health of a prisoner of war in its

40. Article 4, Third Geneva Convention.

41. Article 5, Third Geneva Convention.

42. Article 7, Third Geneva Convention.

43. Article 9, Third Geneva Convention.

custody is strictly prohibited. No prisoner of war may be subjected to physical mutilation or to medical or scientific experiments of any kind which are not justified by the medical, dental or hospital treatment of the prisoner concerned and carried out in his interest. The prisoners of war must at all times be protected, particularly against acts of violence or intimidation and against insults and public curiosity. Measures of reprisal against prisoners of war are prohibited.⁴⁴

Prisoners of war are entitled in all circumstances to respect for their persons and their honour. Women shall be treated with all the regard due to their sex. All prisoners of war shall be treated alike by the detaining power, without any adverse distinction based on race, nationality, religious belief or political opinions, or any other distinction founded on similar criteria.⁴⁵

Every prisoner of war, when questioned on the subject, is bound to give only his — (i) surname, (ii) first names and rank, (iii) date of birth, and (iv) army, regimental, personal or serial number. No physical or mental torture, nor any other form of coercion, may be inflicted on prisoners of war to secure from them information of any kind whatever. Prisoners of war who refuse to answer may not be threatened, insulted, or exposed to any unpleasant or disadvantageous treatment of any kind. The questioning of prisoners of war shall be carried out in a language which they understand.

The prisoners of war are to be furnished an identity card showing the owner's surname, first names, rank, army, regimental, personal or serial number or equivalent information, and date of birth. The identity card may, furthermore, bear the signature or the finger-prints, or both, of the owner. The identity card shall be shown by the prisoner of war upon demand, but may in no case be taken away from him.⁴⁶

After capturing prisoners of war, they have to be evacuated at the earliest to camps situated in an area far enough from the combat zone. Prisoners of war shall not be unnecessarily exposed to danger while awaiting evacuation from a fighting zone.⁴⁷

16.5.3.3 Internment of Prisoners of War

The detaining power may subject prisoners of war to internment. It may impose on them the obligation of not leaving the camp where they are interned, beyond certain limits. The prisoners of war may not be held in close confinement except where necessary to safeguard their health. Prisoners of war may be partially or wholly released on parole or promise. Such measures shall be taken particularly in cases where this may contribute to the improvement of their state of health. Prisoners of war may be interned only in premises located on land and affording every guarantee of hygiene and healthfulness. If they have been interned in unhealthy areas, or where the climate is injurious for them, they shall be removed to a more favourable climate at the earliest. No prisoner of war may at any time be sent to, or detained in areas where he may be exposed to the fire of the combat zone. Prisoners of war are to be quartered under conditions as favourable as those for the forces of the Detaining Power who are billeted in the same area.⁴⁸

The basic daily food rations are to be sufficient in quantity, quality and variety to keep prisoners of war in good health. Clothing, underwear and footwear shall be supplied to prisoners of war in sufficient quantities. All sanitary measures which are necessary to ensure

44. Article 13, Third Geneva Convention.

45. Articles 14, 16, Third Geneva Convention.

46. Article 17, Third Geneva Convention.

47. Article 19, Third Geneva Convention.

48. Articles 21, 23, Third Geneva Convention.

the cleanliness and healthfulness of camps and to prevent epidemics are required to be taken by the detaining power.⁴⁹

The use of weapons against prisoners of war, especially against those who are escaping or attempting to escape, is to constitute an extreme measure. The use of weapons is to be preceded by warnings appropriate to the circumstances.⁵⁰

16.5.3.4 Labour of Prisoners of War

The detaining power may utilise the labour of prisoners of war who are physically fit, taking into account their age, sex, rank and physical aptitude. The prisoners of war are not to be employed on labour which is of an unhealthy or dangerous nature. However, if a prisoner of war volunteers, he can be so employed. The removal of mines or similar devices is to be considered as dangerous labour.⁵¹

16.5.3.5 Penal and Disciplinary Sanctions

A prisoner of war is subject to the laws, regulations and orders in force in the armed forces of the detaining power. The detaining power is justified in taking judicial or disciplinary measures in respect of any offence committed by a prisoner of war against such laws, regulations or orders. If any law, regulation or order of the detaining power declares acts committed by a prisoner of war to be punishable, whereas the same acts are not punishable if committed by a member of the forces of the detaining power, such acts are to entail only disciplinary punishments.⁵²

No prisoner of war may be tried or sentenced for an act which is not forbidden by the law of the detaining power or by international law in force at the time the said act was committed. No prisoner of war may be convicted without having had an opportunity to present his defence and the assistance of a qualified advocate or counsel. With a view to the quashing or revising of the sentence or the reopening of the trial, every prisoner of war is to have the right of appeal or petition from any sentence pronounced upon him, in the same manner as the members of the armed forces of the detaining power.⁵³

16.5.3.6 Repatriation and Release of POW

The seriously wounded and seriously sick prisoners of war are to be sent back to their own country after they have become fit to travel. Throughout the duration of hostilities, parties to the conflict shall endeavour, with the co-operation of the neutral powers concerned, to make arrangements for the accommodation in neutral countries of the sick and wounded prisoners of war. No sick or injured prisoner of war who is eligible for repatriation may be repatriated against his will during hostilities.⁵⁴ The following are to be directly repatriated:

- (1) Incurably wounded and sick whose mental or physical fitness seems to have been gravely diminished.
- (2) Wounded and sick who are not likely to recover within one year, whose condition requires treatment and whose mental or physical fitness seems to have been gravely diminished.

49. Articles 26, 27, 29, Third Geneva Convention.

50. Article 42, Third Geneva Convention.

51. Articles 49, 52, Third Geneva Convention.

52. Article 82, Third Geneva Convention.

53. Articles 99, 106, Third Geneva Convention.

54. Article 109, Third Geneva Convention.

- (3) Wounded and sick who have recovered, but whose mental or physical fitness seems to have gravely and permanently diminished.⁵⁵

Prisoners of war are to be released and repatriated without delay after the cessation of active hostilities.⁵⁶

16.5.4 Geneva Conventions IV

The Fourth Geneva Convention lays down certain minimum rules of protection which apply to civilians affected by armed conflict, irrespective of their nationality and the territory in which they live. The Convention protects civilians living in territory under enemy military control and occupation. A civilian is a person who is not a combatant. In case of doubt whether a person is a civilian, that person shall be considered to be a civilian.⁵⁷ Nationals of a State which is not bound by the convention are not protected by it.⁵⁸

Protected persons may in no circumstances renounce the rights secured to them by the convention. The wounded and sick, as well as the infirm, and expectant mothers are to be protected and taken special care of.⁵⁹ Protected persons are entitled to respect for their persons, their honour, their family rights, and their religious convictions and practices. They are to be humanely treated without any discrimination on the basis of race, religion or political opinion and to be protected from violence. Women are to be especially protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault. The taking of hostages is prohibited.⁶⁰

The civilians in enemy territory must be allowed to leave, unless security reasons forbid it. If they do not leave or are detained, they must be treated in the same way as aliens in general.⁶¹ Article 49 prohibits individual or mass forcible transfers, as well as deportations of protected persons from occupied territory to the territory of the Occupying Power or any other country. The Occupying Power is not to deport or transfer parts of its own civilian population into the territory it occupies.

On 22 March 1979, the Security Council adopted a resolution by which it called upon Israel, as the occupying power to abide scrupulously by the Fourth Geneva Convention. The resolution asked Israel “to rescind its previous measures and to desist from taking any action which would result in changing the legal status and geographical nature and materially affecting the demographic composition of the Arab territories occupied since 1967, including Jerusalem and, in particular, not to transfer parts of its own civilian population into the occupied Arab territories”.⁶² In its further resolutions, the Security Council described Israel’s policy and practices of settling parts of its population and new immigrants in the occupied territories as a flagrant violation of the Fourth Geneva Convention.⁶³

In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,⁶⁴ the ICJ stated that “since 1977, Israel has conducted a policy and developed practices involving the establishment of settlements in the Occupied Palestinian

55. Article 110, Third Geneva Convention.

56. Article 118, Third Geneva Convention.

57. Article 50, First Additional Protocol.

58. Article 4, Fourth Geneva Convention.

59. Articles 8, 16, Fourth Geneva Convention.

60. Articles 27, 34, Fourth Geneva Convention.

61. Articles 35, 38, Fourth Geneva Convention.

62. SC resolution 446 (1979) of 22 March 1979.

63. See SC resolution 452 (1979) of 20 July 1979; and SC resolution 465 (1980) of 1 March 1980.

64. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

Territory, contrary to the terms of Article 49”.⁶⁵ The Court concluded that the Israeli settlements in the Occupied Palestinian Territory (including East Jerusalem) had been established in breach of international law.⁶⁶

The Occupying Power may not compel protected persons to serve in its armed or auxiliary forces.⁶⁷ As far as possible, the civilian population must be enabled to continue living as usual.

The Convention sets out the rules regarding the internment of civilians. Internees are to retain their full civil capacity. The disciplinary regime in places of internment are to be consistent with humanitarian principles. Such regime is not to include regulations imposing on internees any physical exertion dangerous to their health or involving physical or moral victimisation.⁶⁸

The Fourth Geneva Convention represents the most significant development over and above the previous conventions, as it fulfilled the longstanding need of protecting the civilians effectively.

16.5.5 Additional Protocol I of 1977

The Additional Protocol I expands upon the provisions of the Geneva Conventions of 1949. The provisions of the Protocol supplement the provisions of the Geneva Convention. It lays down the additional provisions, *inter alia*, for the protection of the victims of armed conflicts and civilians. It also prohibits the use of certain weapons which may cause superfluous injury or unnecessary sufferings.

The Protocol, which is applicable to international armed conflicts, is also applicable to “armed conflicts in which peoples are fighting against colonial domination and alien occupation and against racist régimes in the exercise of their right of self-determination, as enshrined in the Charter of the United Nations and the Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations”.⁶⁹ In other words, fighting against colonial domination and alien occupation and against racist regimes in the exercise of the right of self-determination by people is to be considered as international armed conflict under the Additional Protocol I. Article 1(4), therefore, refers to war of national liberation. This provision raised concerns for several States including India, United States, and Pakistan, as they argued that expanded definition could give cover to “terrorist groups”. It is submitted that this provision does not enjoy the status of customary international law.⁷⁰

The Protocol restricts the choice of parties to the conflict to choose methods or means of warfare. It prohibits the employment of weapons, projectiles and material and methods of warfare of a nature, which may cause superfluous injury or unnecessary suffering. It also prohibits the employment of methods or means of warfare which are intended, or may be expected, to cause widespread, long-term and severe damage to the natural environment.⁷¹

65. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 120.

66. *Ibid.*

67. Article 51, Fourth Geneva Convention.

68. Articles 80, 100, Fourth Geneva Convention.

69. Article 1(4), Additional Protocol I of 1977.

70. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 146.

71. Article 35, Additional Protocol I of 1977.

The Parties to the conflict are to distinguish between the civilian population and combatants and between civilian objects and military objectives at all times. They shall accordingly direct their operations only against military objectives. Indiscriminate attacks are prohibited.⁷²

16.5.5 Additional Protocol II of 1977

The Additional Protocol II deals with the protection of victims of non-international armed conflicts. Although Article 3 common to all the four Geneva Conventions is applicable to non-international armed conflict, the Additional Protocol II develops and supplements the provision of Article 3. A discussion on non-international armed conflict is made below.

Article 3 of the Protocol recognises the principle of non-intervention. It provides that the Protocol is not to be “invoked as a justification for intervening, directly or indirectly, for any reason whatever, in the armed conflict or in the internal or external affairs” of the State party in the territory of which that conflict occurs. It is stated that “State sovereignty triumphed over humanitarian concerns” in the finalisation of the text of Additional Protocol II.⁷³

16.5.5.1 Non-international Armed Conflict

The Geneva Conventions of 1949 are primarily concerned with international armed conflict. However, Article 3 common to all the four conventions applies to non-international armed conflict occurring in the territory of a State party. Common Article 3 provides that in the case of armed conflict not of an international character occurring in the territory of one of the High Contracting Parties, each Party to the conflict is to apply certain minimum provisions discussed hereinafter.

Persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed *hors de combat* by sickness, wounds, detention, or any other cause, shall in all circumstances be treated humanely, without any adverse distinction founded on race, colour, religion or faith, sex, birth or wealth, or any other similar criteria. To this end, the following acts are to remain prohibited at any time and in any place whatsoever with respect to the above-mentioned persons:

- (i) violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture;
- (ii) taking of hostages;
- (iii) outrages upon personal dignity, in particular humiliating and degrading treatment;
- (iv) the passing of sentences and the carrying out of executions without previous judgment pronounced by a regularly constituted court, affording all the judicial guarantees which are recognised as indispensable by civilised peoples.

The wounded and sick are to be collected and cared for. An impartial humanitarian body, such as the International Committee of the Red Cross (ICRC), may offer its services to the Parties to the conflict. The Parties to the conflict should further endeavour to bring into force, by means of special agreements, all or part of the other provisions of the Geneva Conventions.

The aforesaid common Article 3 does not define the term “armed conflict not of an international character”. It was difficult to find out the applicability of common Article 3 in all the conflicts which occurred on the territory of a State party. For example, riots, isolated

72. Articles 48, 51, Additional Protocol I of 1977.

73. See South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 147.

and sporadic acts of violence, and minor internal disturbances could also be included in armed conflict not of an international character. This problem was removed by the Additional Protocol II of 1977. However, the Protocol is applicable only to the State parties.

The Additional Protocol II of 1977 develops and supplements common Article 3 without modifying its existing conditions of applications. It applies to non-international armed conflicts “which take place in the territory of a High Contracting Party between its armed forces and dissident armed forces or other organised armed groups which, under responsible command, exercise such control over a part of its territory as to enable them to carry out sustained and concerted military operations and to implement this Protocol”.⁷⁴

The Additional Protocol II does not apply to situations of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence and other acts of a similar nature, as not being armed conflicts. Unlike Geneva Conventions of 1949, the Additional Protocol II brings clarity in its provisions by excluding certain acts as not being armed conflicts.

16.6 Prohibition on the Use of Certain Weapons

The States do not have the unlimited choice to methods or means of warfare in armed conflict. In addition to Geneva Conventions of 1949 and Additional Protocols of 1977, treaties have also been adopted to prohibit the use of certain weapons which result in unnecessary sufferings to the combatants and civilians. At a very early stage, the humanitarian law prohibited certain types of weapons either because of their indiscriminate effect on combatants and civilians or because of the unnecessary suffering caused to combatants, that is to say, a harm greater than that unavoidable to achieve legitimate military objectives. If an envisaged use of weapons would not meet the requirements of humanitarian law, a threat to engage in such use would also be contrary to that law. In the Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, the Court observed:

The cardinal principles contained in the texts constituting the fabric of humanitarian law are the following. The first is aimed at the protection of the civilian population and civilian objects and establishes the distinction between combatants and non-combatants; States must never make civilians the object of attack and must consequently never use weapons that are incapable of distinguishing between civilian and military targets. According to the second principle, it is prohibited to cause unnecessary suffering to combatants: it is accordingly prohibited to use weapons causing them such harm or uselessly aggravating their suffering. In application of that second principle, States do not have unlimited freedom of choice of means in the weapons they use.⁷⁵

As already discussed, the international humanitarian law prohibits uses of certain weapons as they may cause unnecessary suffering to the combatants and civilians. The weapons which have been banned include, eg small projectiles under the St. Petersburg Declaration of 1868; dum-dum bullets under the Hague Declaration of 1899 and chemical and bacteriological weapons under the 1925 Geneva Protocol. Apart from that, the Convention on Prohibitions or Restrictions on the Use of Certain Conventional Weapons which may be Deemed to be Excessively Injurious or to Have Indiscriminate Effects was adopted on 10 October 1980. The convention either prohibited or limited, depending on the case, the use of weapons producing “non-detectable fragments”, of other types of “mines, booby traps and other devices”, and of “incendiary weapons”. The provisions of the convention on “mines, booby traps and other devices” was amended on 3 May 1996. It regulates the use of anti-personnel land mines. Five Protocols have been adopted to the Convention of 1980. Protocols I, II, III were adopted in

⁷⁴. Article 1.

⁷⁵. *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 78.

1980, Protocol IV in 1995, and Protocol V in 2003. The first four Protocols prohibit — the use of weapons that cannot be detected by X-rays; the use of mines and booby-traps against civilians; the use of incendiary devices against civilians or against military objectives located within a concentration of civilians where the attack is by air-delivered incendiary weapons; and the use of blinding laser weapons, respectively. Protocol V concerns the explosive remnants of war. On the prohibition of anti-personnel mines, the Ottawa Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-Personnel Mines and on their Destruction was adopted in 1997.

In addition, the Convention on Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxic Weapons and on Their Destruction, which was adopted on 10 April 1972, prohibits the possession of bacteriological and toxic weapons and reinforces the prohibition of their use.

On 13 January 1993, the Convention on Prohibition of the Development, Production and Stockpiling and Use of Chemical Weapons and on Their Destruction was adopted. The Chemical Weapons Convention prohibits all use of chemical weapons and requires the destruction of existing stocks. The use of chemical weapons is prohibited for State as well as non-State actors. Unfortunately, chemical weapons remain a component of the 21st century battlefield. Chemical weapons can be used by a State against its own people as was alleged in the Iraq and Syria. The same can also be used by one State against another in war. The chemical weapons “possess inherent military functions in that they can be used to kill and degrade opposing troop formations and for area — and materiel-denial purposes (eg, persistent agents), have anti-materiel uses (eg, corrosive agents), and can even cause aircrews to be grounded due to the effects of myopia (eg, nerve agents)”. The ongoing threat of chemical agent attacks can also have psychological effects on military units.⁷⁶

The history of use of chemical weapons is very old. Chemical weapons were used during the Peloponnesian War (431–404 BC) in which sulfur smoke was utilised as a choking agent for incapacitation purposes. During World War I, the allies and central powers used chlorine, phosgene and sulfur mustard agents. As per a report, there were 90,000 fatalities and around 1 million casualties which took place during the conflict as a result of the use of chemical weapons. It is also stated that in the Iran-Iraq War during 1983–1988, sulfur mustard, tabun, and possibly sarin were fielded by Iraqi forces, with Iranian forces at the end of the war retaliating with phosgene, cyanogen chloride, and sulfur mustard (likely) used. The Assad regime in Syria is also reported to have used chemical weapons on several occasions in 2012, 2016 and 2017. Apart from this, North Korea has extensive chemical artillery capabilities and since its 1961 “Declaration of Chemicalisation,” it has gone on to produce hundreds of tons of sulfur mustard as well as thousands of tons of sarin and VX. Since the 1990s, chemical weapons have been employed on the battlefield or in terrorist incidents in Japan, Iraq, Syria, and Afghanistan. Chemical weapons were also used by non-State actor Islamic State (IS) in Iraq and Syria.⁷⁷ It is highly unfortunate that States are still manufacturing, possessing and using chemical weapons which bring unnecessary sufferings to the victims.

The Additional Protocol I of 1977 also provides that in any armed conflict, the right of the parties to the conflict to choose methods or means of warfare is not unlimited and it is prohibited to employ weapons, projectiles and material and methods of warfare of a nature which cause superfluous injury or unnecessary suffering.⁷⁸

76. Robert J Bunker, *Contemporary Chemical Weapons Use in Syria and Iraq by the Assad Regime and the Islamic State*, 2019, pp 1–2.

77. Robert J Bunker, *Contemporary Chemical Weapons Use in Syria and Iraq by the Assad Regime and the Islamic State*, 2019, pp 2, 3 and 20.

78. Article 35, The Additional Protocol I of 1977.

There is, however, no “specific prohibition of recourse to nuclear weapons in treaties expressly prohibiting the use of certain weapons of mass destruction”.⁷⁹ On the request of General Assembly to render advisory opinion on the question “Is the threat or use of nuclear weapons in any circumstance permitted under international law?” the Court handed down following Advisory Opinion on 8 July 1996:

- (1) It unanimously opined that there was in neither customary nor conventional international law any specific authorization of the threat or use of nuclear weapons.
- (2) By eleven votes to three, it opined that there was in neither customary nor conventional international law any comprehensive and universal prohibition of the threat or use of nuclear weapons as such.
- (3) It unanimously opined that a threat or use of force by means of nuclear weapons that was contrary to article 2, paragraph 4, of the United Nations Charter and that failed to meet all the requirements of article 51, was unlawful.
- (4) It unanimously opined that a threat or use of nuclear weapons should also be compatible with the requirements of the international law applicable in armed conflict particularly those of the principles and rules of international humanitarian law, as well as with specific obligations under treaties and other undertakings which expressly dealt with nuclear weapons.
- (5) By seven votes to seven, and by the President’s casting vote, it opined that it followed from the above-mentioned requirements that the threat or use of nuclear weapons would generally be contrary to the rules of international law applicable in armed conflict, and in particular the principles and rules of humanitarian law.

However, in view of the current state of international law, and of the elements of fact at its disposal, the Court could not conclude definitively whether the threat or use of nuclear weapons would be lawful or unlawful in an extreme circumstance of self-defence, in which the very survival of a State would be at stake.

- (6) It unanimously opined that there existed an obligation to pursue in good faith and bring to a conclusion negotiations leading to nuclear disarmament in all its aspects under strict and effective international control.⁸⁰

In order to prohibit nuclear weapons completely, leading towards their total elimination, the Treaty on the Prohibition of Nuclear Weapons was adopted in 2017. The Treaty was adopted by 122 votes in favour, one against and one abstention. The Treaty lays down certain prohibited activities for the parties.

The Treaty obligates every State Party to undertake not to do the following seven acts under any circumstances whatsoever: they are prohibited from developing, testing, producing, manufacturing, acquiring, possessing or stockpiling nuclear weapons/devices. They are also prohibited from transferring or receiving nuclear weapons/devices or control over them in any manner. Further, they are prohibited from using or threatening to use nuclear weapons/devices. Assisting, encouraging or inducing someone, or seeking or receiving any assistance from someone in any manner whatsoever to engage in prohibited activity is also prohibited. In addition, allowing any stationing, installing, or deploying of nuclear weapons/devices in the

79. Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 57.

80. Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 105.

State Party territory or any place which is under the jurisdiction or control of such State Party is also a prohibited activity.⁸¹

The Treaty also obligates State Parties to declare the nuclear weapons/devices they “owned, possessed or controlled” prior to the Treaty. They shall also declare the information with respect to elimination of their “nuclear-weapon programme”. The Treaty also obligates State Parties to maintain their IAEA safeguards obligations and conclude “a comprehensive safeguards agreement” with IAEA. Comprehensive provisions towards the total elimination of nuclear weapons have been laid down in Article 4 of the Treaty.

The Treaty also lays down obligations for State Parties with respect to “victim assistance” and “environmental remediation” and seeks international co-operation and assistance.⁸²

The Treaty is an excellent effort towards making the world free of nuclear weapons. It is expected of all the States possessing nuclear weapon to come forward, build a trust and join this Treaty to achieve the ultimate goal of nuclear disarmament.

16.7 International Human Rights Law and Humanitarian Law

International human rights law is applicable in peace as well as during armed conflict. In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian territory*, the International Court of Justice confirmed its earlier observation in *Nuclear Weapons* Advisory Opinion, that the protection of the International Covenant for Civil and Political Rights does not cease in situations of armed conflict. The Court identified three possible situations as regards the relationship between international humanitarian law and human rights law stating that “some rights may be exclusively matters of international humanitarian law; others may be exclusively matters of human rights law; yet others may be matters of both these branches of international law”.⁸³ The Human Rights Committee in its General Comment 31 stated that the ICCPR applies also in situations of armed conflict, specifying that “[w]hile, in respect of certain Covenant rights, more specific rules of international humanitarian law may be specially relevant for the purposes of the interpretation of Covenant rights, both spheres of law are complementary, not mutually exclusive”.⁸⁴

Thus, there has been an overlapping between international human rights law and international humanitarian law. Certain acts violate both the branches of law. International humanitarian law is a set of legal rules specially conceived for implementation in the event of armed conflicts. It does not supersede other system of international rules protecting the individual, such as international human rights law. Thus, in situations of armed conflict international human rights law and international humanitarian law are applied concurrently. The concurrent application of international humanitarian law and international human rights law in situations of armed conflict means that the provisions of the two bodies of law should be read together and reconciled, as far as possible.⁸⁵ International humanitarian law deals with special problems that arise during the armed conflicts, whereas the applicability of international human rights instruments remain suspended during armed conflicts or other

81. Article 1. See also V K Ahuja, “International Legal Regime on Nuclear Disarmament: Contemporary Developments”, 7(1) *NLUJ Law Review*, 2020, p 165.

82. Articles 6–7.

83. Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian territory*, (2004) ICJ Rep 136 para 106.

84. Human Rights Committee, General Comment 31, Nature of the General Legal Obligation on States Parties to the Covenant, U.N. Doc. CCPR/C/21/Rev.1/Add.13 (2004), para 11.

85. Human Rights Committee, General Comment 31, Nature of the General Legal Obligation on States Parties to the Covenant, UN Doc. CCPR/C/21/Rev.1/Add.13 (2004), para 179.

emergencies threatening the life of the nation. For example, Article 4(1) of the International Covenant on Civil and Political Rights, 1966 provides:

In time of public emergency which threatens the life of the nation and the existence of which is officially proclaimed, the States Parties to the present Covenant may take measures derogating from their obligations under the present Covenant to the extent strictly required by the exigencies of the situation, provided that such measures are not inconsistent with their other obligations under international law and do not involve discrimination solely on the ground of race, colour, sex, language, religion or social origin.

It is, however, noteworthy that not all the human rights are suspended during emergency. The non-derogable human rights remain applicable during armed conflicts also. According to Article 4(2) of the ICCPR, these rights are — the right to life (Article 6), the right not to be subjected to torture or to cruel, inhuman or degrading treatment or punishment (Article 7), the right not to be held in slavery or in servitude (Article 8(1) and (2)), the right not to be charged with *ex post facto* criminal offences (Article 15), the right to recognition everywhere as a person before the law (Article 16), and the right to freedom of thought, conscience and religion (Article 18).⁸⁶

In its General Comment 29, the Human Rights Committee has interpreted Article 4(2) of the ICCPR to be illustrative rather than exhaustive. In addition to the aforesaid non-derogable rights, the Committee has identified certain other provisions of the ICCPR as non-derogable, such as protection against discrimination and right to a fair trial.⁸⁷ In this regard, the Human Rights Committee observed that, as certain elements of the right to a fair trial are explicitly guaranteed under international humanitarian law during armed conflict, there is no justification for derogation from these guarantees during emergency situations.⁸⁸ The General Comment 29 further States that a number of other acts are prohibited at all times and therefore cannot be made subject to lawful derogations. These include the prohibitions against the taking of hostages, abductions or unacknowledged detention; deportation or forcible transfer of population without grounds permitted under international law, in the form of forced displacement by expulsion or other coercive means from the area in which the persons concerned are lawfully present; propaganda for war, or advocacy of national, racial or religious hatred that would constitute incitement to discrimination, hostility or violence.⁸⁹

There is no concept of derogation in international humanitarian law. In *Abella v Argentina*,⁹⁰ the Inter-American Commission for Human Rights observed that “the American Convention [of Human Rights], as well as other universal and regional human rights instruments, and the 1949 Geneva Conventions share a common nucleus of non-derogable rights and a common purpose of protecting human life and dignity”. The protection offered by human rights conventions does not cease in case of armed conflict, unless there has been a relevant derogation permitted by those conventions.

In *Report of the OHCHR Investigation on Sri Lanka (OISL)*,⁹¹ it was stated with reference to Article 9 of the ICCPR that “human rights law protects all persons against unlawful or arbitrary

86. Article 11 also lays down non-derogable right, which provides that “no one shall be imprisoned merely on the ground of inability to fulfil a contractual obligation”. It may not have its applicability during armed conflicts.

87. Human Rights Committee, General Comment 29, States of Emergency (Article 4), U.N. Doc. CCPR/C/21/Rev.1/Add.11 (2001).

88. The Human Rights Committee referred to its Concluding Observations on Israel (1998, CCPR/C/79/Add. 93), where it stressed that a State party may not depart from the requirement of effective judicial review of detention.

89. Para 13 of General Comment 29.

90. (Case 11.137), IACHR, Report No. 55/97, cited in South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 152.

91. A/HRC/30/CRP.2, 16 September 2015, para 1032.

interference with their liberty, including deprivation of liberty. Arbitrary deprivation of liberty is also prohibited under international humanitarian law. Such a prohibition is implied in the requirement that civilians and persons *hors de combat* be treated humanely.⁹² In a situation of armed conflict what counts as arbitrary or unlawful deprivation of liberty will be determined by reference to both international human rights law and international humanitarian law⁹³.

International humanitarian law is not formulated as a series of rights, but rather as a series of obligations that combatants have to obey. These obligations are binding on all the belligerents, irrespective of the fact whether both the parties to the armed conflicts are States or States on one side and an organized armed group on the other. In case of human rights violations, however, only States are held responsible.⁹⁴

In case of international humanitarian law, appropriate organizations have access to protected persons on a regular basis for the purpose of monitoring its compliance. In case of international human rights law, the mechanism for monitoring respect for human rights is set in motion only when individuals or third States approach the United Nations or any other agency having jurisdiction.⁹⁴

The human rights treaties are universal as well as regional, whereas all humanitarian law treaties are universal and there are no regional systems in humanitarian law laying down rules which may vary from continent to continent. Further, international humanitarian law does not present the kind of theoretical difficulties encountered by human rights law as regards first generation, second generation, and third generation rights.⁹⁵

Apart from dissimilarities, there are also similarities between the two branches. International humanitarian law is now perceived as a means of sparing non-combatants from the horrors of war. As with human rights philosophy, humanitarian law has as its major premise the applicability of protection to all persons, irrespective of whether the individuals are perceived as good or bad. From human rights point of view, the use of force is in itself a violation of human rights. This has also been stated at the United Nations Human Rights Conference in Tehran in 1968 as follows:

Peace is the underlying condition for the full observance of human rights and war is their negation.

Like international human rights law, international humanitarian law also prohibits discrimination when it comes to the protection of non-combatants and victims of war. Article 27 of the Fourth Convention may be cited as one of the examples, which provides that "... all protected persons shall be treated with the same consideration by the Party to the conflict in whose power they are, without any adverse distinction based, in particular, on race, religion or political opinion".

Similar to human rights obligations of States, the Geneva Conventions of 1949 and Additional Protocols of 1977 also specify in considerable detail the physical conditions during armed conflict that are needed in order to sustain life in as reasonable a condition as possible. The detailed provisions in this regard have been provided with respect to prisoners of war and civilians in these conventions and protocols.

The international human rights law prohibits torture or other cruel, inhuman or degrading treatment or punishment. In 1984, a specific Convention against Torture and Other Cruel,

92. ICRC, Database on customary international humanitarian law, Rule 99.

93. See Denise Plattner, "The Protection of Displaced Persons in Non-International Armed Conflicts" in, *Introduction to international Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, pp 327–28.

94. See Denise Plattner, "The Protection of Displaced Persons in Non-International Armed Conflicts" in *Introduction to international Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 328.

95. See *Introduction to International Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 139.

Inhuman or Degrading Treatment or Punishment was adopted, which sets out detailed provisions for the prevention of torture. The international humanitarian law also contains an absolute prohibition of such behaviour. Common Article 3 to all the Geneva Conventions prohibits “violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture”.

Similar to international human rights law which prohibits slavery, the conventional as well as customary international humanitarian law also prohibits slavery. Article 4(2)(f) of the Second Additional Protocol of 1977 prohibits “slavery and the slave trade in all their forms”. The protection of children and women has also been given a great deal of importance in humanitarian law.

At the United Nations Human Rights Conference in Tehran in 1968, the application of human rights in armed conflicts was considered for the first time. The convergence of international humanitarian law and human rights law continues since then. Human rights texts are increasingly expressing ideas and concepts typical of humanitarian law. The reverse phenomenon has also occurred. In other terms, the gap which still exists today between international human rights and humanitarian law is diminishing.⁹⁶ Article 75 of First Additional Protocol and Article 4 of the Second Additional Protocol of 1977, which are entitled as “Fundamental guarantees”, have been directly inspired by the major human rights instruments as the provisions laid down in these Articles are also to be found in the human rights instruments.

The General Assembly has also made references to human rights and humanitarian law in the same resolutions. For example, in its resolution 46/136 on the situation of human rights in Afghanistan, the General Assembly stated that it was “guided by the principles embodied in the Charter of the United Nations, the Universal Declaration of Human Rights, the International Covenants on Human Rights and accepted humanitarian rules as set out in the Geneva Conventions of 12 August 1949 and the Additional Protocols thereto, of 1977”.⁹⁷ In dealing with human rights violations during armed conflicts, not only the Universal Declaration of Human Rights and International Covenant on Civil and Political Rights, but also international humanitarian law consisting of four Geneva Conventions and two Additional Protocols are relied upon.⁹⁸

The principles of international human rights law and international humanitarian law are applicable with respect to occupied territory. In *Democratic Republic of Congo v Uganda*,⁹⁹ the International Court of Justice reaffirmed that international human rights instruments were applicable in respect of acts done by a State in the exercise of its jurisdiction outside its own territory, particularly in occupied territories.

16.8 Applicability of International Humanitarian Law to UN Forces

The Geneva Conventions and Additional Protocols, which form the basis of international humanitarian law, are applicable on State parties. The non-State parties are bound by customary international law. The important question arises whether UN enforcement and peace-keeping forces are also bound by Geneva Conventions. This question first arose in 1950 during the

96. See T Meron, “The Protection of the Human Person under Human Rights Law and Humanitarian Law”, *Bulletin of Human Rights*, 91/1, United Nations (1992).

97. See also resolution 46/135 on the situation of human rights in Kuwait under Iraqi occupation and Declaration 47/133 on the protection of all people against forced disappearances.

98. David Weissbrodt and Peggy L. Hicks, “Implementation of Human Rights and Humanitarian Law in Situations of Armed Conflict” in *Introduction to international Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 275.

99. *Democratic Republic of Congo v Uganda*, (2005) ICJ Rep 168, pp 242–43.

Korean conflict. The UN Commander had instructions to abide by humanitarian principles and articles 3 common to the Geneva Conventions of 1949.

The necessity of observance of international humanitarian law by the UN peace-keepers was also emphasised by International Committee of the Red Cross (ICRC) which has the mandate to look after humanitarian activities in respect of the victims of war. The ICRC also expected the States contributing their troops to the UN contingent to issue instructions to them to observe the Geneva Conventions in their interactions with the warring groups.¹⁰⁰ The views of the ICRC were endorsed by the UN Secretary-General in October 1978 when he wrote to the governments contributing their troops to the U.N. forces to instruct them to conduct their activities in accordance with the principles and spirit of international humanitarian law while using weapons.¹⁰¹

The role of UN peace-keeping forces have changed from mere buffer forces to monitor cease-fire. They are now engaged in a wide variety of activities such as disarming opposing factions, monitoring human rights, performing a wide range of administrative functions, supervising elections, helping render humanitarian relief, and assisting in national reconciliation or restore the democratic set up etc.¹⁰²

Considering greater role the UN forces play in maintaining international peace and security, the Secretary-General of the United Nations on 6 August 1999 promulgated fundamental principles and rules of international humanitarian law which are applicable to UN forces conducting operations under UN command and control. These rules came into force on 12 August 1999 and are applicable to UN forces in enforcement actions as well as in peace-keeping operations when the use of force is permitted in self-defence.¹⁰³ These rules do not replace the national laws by which military personnel remain bound throughout the operations.¹⁰⁴ Further, the UN forces are obligated to conduct its operations with full respect for the principles and rules of general conventions applicable to the conduct of military personnel as the rules promulgated by the Secretary General do not constitute an exhaustive list of principles and rules of international humanitarian international law.¹⁰⁵ It is the duty of UN force to take all feasible precautions to avoid, and in any event to minimise, incidental loss of civilian life, injury to civilians or damage to civilian property.¹⁰⁶

The UN force is prohibited from launching operations of a nature likely to strike military objectives and civilians in an indiscriminate manner, as well as operations that may be expected to cause incidental loss of life among the civilian population or damage to civilian objects that would be excessive in relation to the concrete and direct military advantage anticipated.¹⁰⁷ No reprisal is allowed by UN force against civilians or civilian objects.¹⁰⁸

The Rules do not provide UN force unlimited right to choose methods and means of combat. The UN force is obligated to respect the rules prohibiting or restricting the use of certain weapons and methods of combat under the relevant instruments of international humanitarian law such as the use of asphyxiating, poisonous or other gases and biological methods of warfare, bullets which explode, expand or flatten easily in human body, and

100. *International Review of the Red Cross*, (May-June 1993), p 230.

101. *International Review of the Red Cross*, (May-June 1993), p 232.

102. R C Hingorani, "The United Nations Peace-Keeping Forces and International Humanitarian Law" in, *Introduction to international Humanitarian Law*, M K Balachandran and Rose Varghese (Eds), 1997, p 361.

103. Section 1, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

104. Section 2, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

105. Sections 2–3 United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

106. Section 5.3, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

107. Section 5.5, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

108. Section 5.6, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

certain explosives projectiles. In addition, the use of certain conventional weapons, such as non-detectable fragments, anti-personnel mines, booby traps and incendiary weapons is also prohibited.¹⁰⁹

The UN forces are prohibited under the rules from employing methods of warfare which may cause superfluous injury or unnecessary suffering, or which may be expected to cause, widespread, long-term and severe damage to the natural environment.¹¹⁰

Monuments of art, architecture or history, archaeological sites, works of art, places of worship and museums and libraries which constitute the cultural or spiritual heritage of people shall not be attacked by UN forces. Further, theft, pillage, misappropriation and any act of vandalism directed against cultural property is strictly prohibited.¹¹¹

Section of the rules lays down provisions for the treatment of civilians and persons *hors de combat*. It provides that persons not, or no longer taking part in military operations, including civilians, members of armed forces who have laid down their weapons and persons placed *hors de combat* by reason of sickness, wounds or detention, shall in all circumstances be treated humanely and without any adverse distinction based on race, sex religious convictions or any other ground. Against such persons following acts are prohibited: violence to life or physical integrity; murder as well as cruel treatment such as torture, mutilation or any form of corporal punishment; collective punishment; reprisals; the taking of hostages; rapes; enforced prostitution; any form of sexual assault and humiliation and degrading treatment; enslavement; and pillage.¹¹² Women and children have been given special protection under the Rules.¹¹³

As far as detained members of the armed forces are concerned, they shall be treated with humanity and respect for their dignity by the UN forces. Further, they shall be treated in accordance with the relevant provisions of the Third Geneva Convention on Prisoners of War of 1949. Their capture and detention shall be notified to the party on which they depend and to the Central tracing Agency of the ICRC without delay. They shall be held in secure and safe premises and not in areas exposed to the dangers of the combat zone. Further, they shall be entitled to receive food and clothing, hygiene and medical attention and shall not be subjected to any form of torture or ill treatment. Women whose liberty has been restricted by U.N. force shall be held in quarters separate from men's quarters, and shall be under the immediate supervision of women. Detained children below the age of 16 years who take a direct part in hostilities shall be given special protection. The ICRC's right to visit prisoners and detained persons shall be respected and guaranteed.¹¹⁴

Section 9 of the rules lays down provisions for the protection of wounded, sick and medical and relief personnel. The wounded or sick armed personnel and other persons in the power of U.N. force shall be respected and protected and shall be entitled to medical care and attention.¹¹⁵ No attack shall be made by UN force on medical establishments or mobile units and medical personnel who are exclusively engaged in the search for transport or treatment of the wounded or sick as well as religious personnel.¹¹⁶ The UN force shall facilitate the work of relief operations which are humanitarian and impartial in character and conducted without any adverse distinction, and shall respect personnel, vehicles and premises involved in such operations.¹¹⁷

109. Sections 6.1 and 6.2, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

110. Section 6.3, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

111. Section 6.6, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

112. Section 7.2, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

113. Sections 7.3 and 7.4, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

114. Section 8, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

115. Section 9.1, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

116. Sections 9.3 and 9.4, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

117. Section 9.9, United Nations Secretary-General's Bulletin, ST/SGB/1999/13, 6 August 1999.

The aforesaid rules are applicable not only to UN enforcement forces but also to UN peace-keeping forces when they use force in self-defence. The rules, thus fill the gap in international humanitarian law.

16.9 Law on the Safety of UN and Associated Personnel

The conduct of combatants in international armed conflict is regulated by the Geneva Conventions of 1949 and related norms and principles, but there was no instrument prohibited or provided legal remedies for attacks against forces performing traditional non-combat peace-keeping functions as such. Since 1948 when first UN peace keeping operation was undertaken, larger and larger numbers of peacekeepers were deployed by the United Nations in the areas of extreme risk. As a consequence of this, many peacekeepers were killed while performing their duties. Thirty five peace keeping operations were undertaken by the United Nations between 1948–1994 in which nearly 7,20,000 peace keepers have served and a total of 1194 peace keepers have died while performing their duties.¹¹⁸ The international community realised that there was an urgent need for an international convention that would deter and ensure punishment for such attacks. It resulted in the adoption of the “Convention on the Safety of United Nations and Associated Personnel” on 9 December 1994 by the UN General Assembly. The convention is of particular importance to the UN peace keepers as it seeks to fill up a critical gap in international humanitarian law.

The convention applies in respect of United Nations and associated personnel and United Nations operations which are established by the competent organ of the United Nations in accordance with the Charter of the United Nations and conducted under United Nations authority and control.¹¹⁹ The convention covers two types of personnel who carry out activities in support of the fulfillment of the mandate of a United Nations operation. The first category is “United Nations personnel”, which is in fact core group of persons generally known as UN peace keepers and includes persons engaged or deployed by the UN Secretary General as members of the military, police or civilian components of a UN operation. This category also includes other officials and experts on mission of the United Nations or its specialised agencies who are present in an official capacity in the area where a UN operation is being conducted as they could also be natural targets of attacks even though they are not deployed in connection with operation in questions.¹²⁰

The second category of covered personnel is “associated personnel”, which comprises of persons assigned by the United Nations Secretary-General or an intergovernmental organisation such as NATO with the agreement of the competent organ of the United Nations. These will often be forces not under the UN command and control that are asked by the United Nations to assist UN forces. This category also includes persons who are engaged by the secretary-General, a specialised agency or the IAEA. Further, UN contractors associated with operations and persons deployed by a humanitarian non-governmental organization under an agreement with the United Nations are also covered under this category.

The Convention excludes enforcement actions under Chapter VII of the UN Charter from its coverage. Article 2(2) of the Convention reads:

The Convention shall not apply to a United Nations operation authorized by the Security Council as an enforcement action under Chapter VII of the Charter of the United Nations in which any of the personnel are engaged as combatants against organized armed forces and to which the law of international armed conflict applies.

118. *UN Newsletter*, vol 50, no. 15, 15 April 1995.

119. Articles 1 and 2, Convention on the Safety of United Nations and Associated Personnel, 1994.

120. Evan T Bloom, “Protecting Peacekeepers: The Convention on the Safety of United Nations and Associated Personnel”, 89 *American Journal of International Law*, 1995, pp 623–24.

Sometimes it becomes difficult to determine whether the operation authorised by the Security Council under Chapter VII is an enforcement action as the term enforcement is neither defined in the UN Charter nor employed regularly in Security Council resolutions authorising enforcement actions. The problem may however, be resolved by a careful analysis of the object and purposes of the resolution. Thus, in order to get protection of this Convention, it is *sine qua non* that the peacekeepers should not have been engaged as combatants. It is however, allowed for the United Nations and associated personnel to use force in self-defence in isolated cases, without sustained fighting.

The Convention creates a regime of universal jurisdiction over attacks against United Nations and associated personnel and covers intentional commission of a murder, kidnapping or other attack upon the person or liberty of any United Nations or associated personnel, and a violent attack upon the official premises, the private accommodation or the means of transportation of any United Nations or associated personnel likely to endanger their persons or liberty. The Convention also covers a threat to commit any such attack with the objective of compelling a physical or juridical person to do or to refrain from doing any act; an attempt to commit any such attack; and an act constituting participation as an accomplice in any such attack, or in an attempt to commit such attack, or in organising or ordering others to commit such attack.

Every State Party is obligated under article 10 of the Convention to take measures to establish its jurisdiction over the aforesaid crimes when the crime is committed in the territory of the State or on board a ship or aircraft registered in that State and when the alleged offender is a national of that State or when the alleged offender is present in its territory or when the crime is committed by a stateless person whose habitual residence is in that State. The State Party in whose territory the alleged offender is present is obligated to prosecute or extradite him pursuant to the Convention to any of the States, which have established their jurisdiction in accordance with article 10 of the Convention.

The military and police components of a UN operation and their vehicles, vessels and aircraft are to bear distinctive identification. In addition, all UN and associated personnel have to carry appropriate identification documents. The host States and the United Nations are obligated to conclude an agreement on the status of the UN operation and all personnel engaged in the operation.

It is obligatory for the UN and associated personnel to respect the laws and regulations of the host State and transit State and refrain from any action or activity incompatible with the impartial and international nature of their duties. The Secretary General is obligated to take all appropriate measures to ensure the observance of these obligations.¹²¹

Article 8, which establishes a relationship between the Convention and international humanitarian law including Geneva Convention of 1949, provides:

Except as otherwise provided in an applicable status-of-forces agreement, if United Nations or associated personnel are captured or detained in the course of the performance of their duties and their identification has been established, they shall not be subjected to interrogation and they shall be promptly released and returned to United Nations or other appropriate authorities. Pending their release such personnel shall be treated in accordance with universally recognized standards of human rights and the principles and spirit of the Geneva Conventions of 1949.

Article 8 is wider in scope in comparison to article 118 of the Third Geneva Convention Relative to the Treatment of Prisoners of War, 1949. Under this Convention, the prisoners of war shall be returned at the end of the conflict whereas under the convention the captured

121. Article 6, Convention on the Safety of United Nations and Associated Personnel, 1994.

or detained personnel are to be returned immediately. Article 8 addresses the serious problem of detaining peacekeepers. It is noteworthy that in May 1995, Bosnian Serbs detained and prevented the movement of almost 400 UN peacekeepers and used them as human shields.¹²² There were several attacks on French peace keepers in Sarajevo. Also in Somalia, the United States Chief Warrant Officer attached to the UN Unified Task Force (UNITAF) was held against his will following a mission in which a number of members of the force were killed. The Convention seeks to fill the critical gap in the international humanitarian law.

122. *The Times of India*, 6 June 1995.

CHAPTER 17

INTERNATIONAL CRIMINAL LAW

SYNOPSIS

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The concept of State sovereignty has a restrictive application in international criminal law particularly in cases of genocide, war crimes, and crimes against humanity. The responsibility of the international community entails the prevention of such crimes, including their incitement, through appropriate and necessary means.¹ The 20th century unfortunately was marred by the Holocaust, the killing fields of Cambodia, the genocide in Rwanda and the mass killings in Srebrenica. It becomes indispensable for the international community to intervene in those situations where States themselves are involved in the killings of their own people or are unwilling or unable to protect them from the aforesaid crimes under their jurisdictions. The State which has failed to prevent the commission of these crimes in its jurisdiction cannot justify its action on the basis that the matter pertains to its domestic jurisdiction.

The General Assembly adopted the World Summit Outcome 2005 which reiterates the responsibility of States to protect populations from genocide, war crimes, ethnic cleansing and crimes against humanity.² This responsibility entails the prevention of such crimes, including their incitement, through appropriate and necessary means. It was also stated that “the international community, through the United Nations, also has the responsibility to use appropriate diplomatic, humanitarian and other peaceful means, in accordance with Chapters VI and VIII of the Charter, to help to protect populations from genocide, war crimes, ethnic cleansing and crimes against humanity”. Further, if peaceful means fail, collective action should be taken in a timely and decisive manner, through the Security Council on a case-by-case basis.

In response to World Summit Outcome 2005, the Report of the Secretary-General on “Implementing the Responsibility to Protect” was adopted on 12 January 2009. It was stated in the Report that States have obligations to prevent and punish genocide, war crimes and crimes against humanity under conventional and customary international law. Regarding “ethnic cleansing”, it was stated that it was not a crime in its own right under international law, but acts of ethnic cleansing might constitute one of the other three crimes.³

1. C R Abrar, *Multilevel Approaches to Human Security and Conflict Management: The Rohingya Case*, 2013, p 2.
2. World Summit Outcome 2005, paras 138–39.
3. Report of Secretary General, “Implementing the Responsibility to Protect”, A/63/677, 12 January 2009, para 3.

The crime of genocide is discussed in detail in this chapter. The war crimes and crimes against humanity have been discussed in detail in the next chapter on International Criminal Court.

17.1 Genocide

The word “genocide” was coined in 1944 by Raphael Lemkin in his book on Nazi crimes in occupied Europe.⁴ The term “genocide” was adopted subsequently by the prosecutors at Nuremberg and in 1946 genocide was declared an international crime by the General Assembly. The atrocities committed by the Nazi regime in Germany before and during the Second World War prompted General Assembly of the United Nations to take measures of permanent significance. The most barbarous atrocities committed in Germany shook the conscience of international community.⁵

No State is permitted to commit genocide or allow non-State actors to commit genocide in its territory on the premise that it is a matter which falls solely within its domestic jurisdiction. Genocide is a matter of international concern. It is an international crime and is completely prohibited.

17.1.1 General Assembly Declaration on Genocide

The General Assembly made the Declaration on the prevention and punishment of the crime of genocide by adopting a resolution on 11 December 1946.⁶ It was stated in the resolution that “genocide is a denial of the right of existence of entire human groups, as homicide is the denial of the right to live of individual human beings”. Further, such denial of the right of existence shocks the conscience of mankind. Genocide results in great losses to humanity in the form of cultural and other contributions represented by these human groups. It is contrary to moral law and to the spirit and aims of the United Nations.

The Declaration noted that many instances of such crimes of genocide have occurred when racial, religious, political and other groups have been destroyed, entirely or in part. It was also noted that the punishment of the crime of genocide was a matter of international concern.

The General Assembly affirmed that “genocide is a crime under international law” which the civilised world condemns. The principals and accomplices whether private individuals, public officials or statesmen are punishable for the commission of the crime of genocide irrespective of the fact whether the crime is committed on religious, racial, political or any other grounds. The Assembly invited the Member States to enact the necessary legislation for the prevention and punishment of this crime. It also recommended that international co-operation be organised between States with a view to facilitating the speedy prevention and punishment of the crime of genocide. For this purpose, the Assembly requested the Economic and Social Council to undertake the necessary studies, with a view to drawing up a draft convention on the crime of genocide.

17.1.2 Genocide Convention, 1948

In pursuance of the Declaration, the General Assembly adopted the Convention on the Prevention and Punishment of the Crime of Genocide on 9 December 1948. It entered

4. Raphael Lemkin, *Axis Rule in Occupied Europe: Laws of Occupation, Analysis of Government, Proposals for Redress*, 1944.

5. See also Ole Spiermann, “Twentieth Century Internationalism in Law”, *European Journal of International Law*, vol 18, 2007, pp 785–814, at p 800.

6. UN General Assembly, *The Crime of Genocide*, A/RES/96 (I), dated 11 December 1946.

into force on 12 January 1951. The Preamble to the Convention referred to the Declaration that “genocide is a crime under international law, contrary to the spirit and aims of the United Nations and condemned by the civilized world”. It also recognised the fact that at all periods of history, genocide has inflicted great losses on humanity. Therefore, in order to liberate mankind from such an odious scourge, international co-operation was required. In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*,⁷ the Court observed that the Genocide Convention “was manifestly adopted for a purely humanitarian and civilizing purpose”, since “its object on the one hand is to safeguard the very existence of certain human groups and on the other to confirm and endorse the most elementary principles of morality”.⁸

The principles underlying the Genocide Convention are principles which are recognised by civilised nations as binding on States, even without any conventional obligation. The Genocide Convention is intended by the General Assembly and by the contracting parties to be universal in scope.⁹

Genocide is a crime under international law whether committed in time of peace or in time of war. The Contracting Parties “undertake” to prevent and punish the crime of genocide under the Convention.¹⁰ Thus, States parties expressly confirmed their willingness to consider genocide as a crime under international law which they must prevent and punish independently of the context “of peace” or “of war” in which it takes place.¹¹

The term “undertake” as used in Article I is not without legal backing.¹² The term was defined in *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*.¹³ The Court observed that:

the ordinary meaning of the word “undertake” is to give a formal promise, to bind or engage oneself, to give a pledge or promise, to agree, to accept an obligation. It is a word regularly used in treaties setting out the obligations of the Contracting Parties. ... It is not merely hortatory or purposive. The undertaking is unqualified ...; and it is not to be read merely as an introduction to later express references to legislation, prosecution and extradition. ... Article I, in particular its undertaking to prevent, creates obligations distinct from those which appear in the subsequent Articles.¹⁴

Referring to the purpose of Genocide Convention, the Court stated that the effect of Article I is to prohibit States from themselves committing genocide. Such a prohibition follows from the fact that Article I categorises genocide as “a crime under international law”. Thus, by agreeing to such a categorisation, the States parties must logically be undertaking not to commit

7. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020.
8. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 69; see also *Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide*, Advisory Opinion, (1951) ICJ Rep 23.
9. See *Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide*, Advisory Opinion, (1951) ICJ Rep 23.
10. Article 1, Convention on the Prevention and Punishment of the Crime of Genocide, 1948.
11. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Yugoslavia)*, Preliminary Objections, (1996) ICJ Rep 595, p 615, para 31; see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 74.
12. The term “undertake” has also been used in other human rights conventions; see for example, Article 2(1), International Convention on the Elimination of All Forms of Racial Discrimination, 1965; and Article 2(1) and (3), International Covenant on Civil and Political Rights, 1966.
13. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43.
14. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 162.

genocide. Further, it follows from the expressly stated obligation to prevent the commission of acts of genocide. That obligation requires the States parties, *inter alia*, to employ the means at their disposal to prevent persons or groups not directly under their authority from committing an act of genocide or any of the other acts as mentioned in Article III.¹⁵

Genocide is defined under the Convention to mean any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- (a) Killing members of the group;
- (b) Causing serious bodily or mental harm to members of the group;
- (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- (d) Imposing measures intended to prevent births within the group;
- (e) Forcibly transferring children of the group to another group.¹⁶

“Intention” is an important element in the commission of the crime of genocide as is clear from the language of Article II. The term “ethnic cleansing” as used in practice by reference to a specific region or area, means “rendering an area ethnically homogeneous by using force or intimidation to remove persons of given groups from the area”.¹⁷ It can only be a form of genocide within the meaning of the Convention, if it corresponds to or falls within one of the categories of acts prohibited by Article II of the Convention.¹⁸ The Genocide Convention is the first legally enforceable instrument at international level to eliminate planned destruction of human groups. In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*,¹⁹ the Court stated that in its view, “the Rohingya in Myanmar appear to constitute a protected group within the meaning of Article II of the Genocide Convention”.

The acts of (a) genocide; (b) conspiracy to commit genocide; (c) direct and public incitement to commit genocide; (d) attempt to commit genocide; and (e) complicity in genocide, have been specifically made punishable by Article III of the Convention. Persons committing any of these acts shall be punished, irrespective of the fact whether they are constitutionally responsible rulers, public officials or private individuals. Thus, no person who has committed any of the aforesaid acts shall enjoy impunity on the basis of his position in his country. In other words, the Convention does not make any difference between constitutionally responsible rulers, public officials or private individuals when it comes to punishing them for the commission of any of the aforesaid acts.²⁰

The Contracting Parties undertake to enact the necessary legislation to give effect to the provisions of the Convention. They also undertake to provide effective penalties for persons guilty of genocide or any of the aforesaid acts as enumerated in Article III.²¹ A competent

15. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 166.

16. Article II, The Convention on the Prevention and Punishment of the Crime of Genocide, 1948.

17. S/35374 (1993), para 55, Interim Report by the United Nations Commission of Experts, cited in *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 190.

18. S/35374 (1993), para 55, Interim Report by the United Nations Commission of Experts, cited in *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, para 190.

19. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 52.

20. Article IV, Convention on the Prevention and Punishment of the Crime of Genocide, 1948.

21. Article V, Convention on the Prevention and Punishment of the Crime of Genocide, 1948.

tribunal of the State in the territory of which the act of genocide or any of the aforesaid acts was committed shall try the persons accused of committing such acts. The accused may also be tried by such international penal tribunal as may have jurisdiction with respect to those Contracting Parties which shall have accepted its jurisdiction.²²

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,²³ the Court observed that the obligation to prevent and punish genocide as set out in Article I of the Convention is supplemented by the distinct obligations which appear in the subsequent articles of the Convention, more particularly those in Articles V and VI requiring the enactment of the necessary legislation to give effect to the provisions of the Convention, as well as the prosecution of persons charged with such acts. In so far as these provisions concerning the duty to punish also have a deterrent and therefore a preventive effect or purpose, they too meet the obligation to prevent genocide.

The obligation to prosecute the accused under Article VI is subject to an express territorial limit. The trial of accused is to be done in a competent tribunal of the State in the territory of which the act was committed, or by an international penal tribunal with jurisdiction. The Court further stated that once the “international penal tribunal” as mentioned in Article VI is established, the Contracting Parties “which shall have accepted its jurisdiction” to co-operate with it, will arrest persons accused of genocide who are in their territory — even if the crime of which they are accused was committed outside it — and, failing prosecution of them in the parties’ own courts, they will hand them over for trial by the competent international tribunal.²⁴

Genocide and the other aforesaid acts enumerated in Article III are not to be considered as political crimes for the purpose of extradition. The Contracting Parties pledge themselves in such cases to grant extradition in accordance with their laws and treaties in force.²⁵

Article VIII provides discretion to Contracting Parties to call upon the competent organs of the United Nations to take such action under the UN Charter as they consider appropriate for the prevention and suppression of acts of genocide or any other aforesaid acts as enumerated in Article III.

Article IX gives jurisdiction to ICJ with respect to disputes under the Convention. It provides that “disputes between the Contracting Parties relating to the interpretation, application or fulfilment of the present Convention, including those relating to the responsibility of a State for genocide or for any of the other acts enumerated in article III, shall be submitted to the International Court of Justice at the request of any of the parties to the dispute”.

In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*,²⁶ the Court observed that there is a correlation between the rights of members of groups protected under the Genocide Convention, the obligations incumbent on States parties thereto, and the right of any State party to seek compliance therewith by another State party. It is noteworthy that all the States parties to the Genocide Convention have a common interest to ensure that acts of genocide are prevented and that, if they occur, their authors do not enjoy impunity. That common interest implies

22. Article VI, Convention on the Prevention and Punishment of the Crime of Genocide, 1948.

23. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, p 109, para 159 and p 219, para 426; see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 51.

24. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, (2007) ICJ Rep 43, p 109, para 443.

25. Article VII, Convention on the Prevention and Punishment of the Crime of Genocide, 1948.

26. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 52.

that the obligations in question are owed by any State party to all the other States parties to the Convention. Therefore, “any State party to the Genocide Convention, and not only a specially affected State, may invoke the responsibility of another State party with a view to ascertaining the alleged failure to comply with its obligations *erga omnes partes*, and to bring that failure to an end”.²⁷

Myanmar was alleged to have committed the crime of genocide, crimes against humanity and war crimes against Rohingya Muslims. The independent international fact-finding mission on Myanmar found that “there [was] sufficient information to warrant investigation and prosecution so that a competent court may determine liability for genocide in relation to the situation in Rakhine State, that crimes against humanity and war crimes have been committed in Kachin, Rakhine and Shan States, including murder, imprisonment, enforced disappearance, torture, rape, sexual slavery and other forms of sexual violence, persecution and enslavement, that children were subjected to and witnessed serious human rights violations, including killing, maiming and sexual violence, that there are reasonable grounds to conclude that serious crimes under international law have been committed that warrant criminal investigation and prosecution and that the military has consistently failed to respect international human rights law and international humanitarian law”.²⁸ The General Assembly condemned all aforesaid violations and abuses of human rights in Myanmar.²⁹ Gambia brought a case against Myanmar before ICJ for seeking directions for Myanmar to prevent genocide and other crimes being committed by it against the Rohingya Muslims and to give effect to its obligations under the Genocide Convention.

The Court in *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*,³⁰ was of the opinion that the Rohingya in Myanmar remained extremely vulnerable. It also stated that “irrespective of the situation that the Myanmar Government is facing in Rakhine State, including the fact that there may be an ongoing internal conflict between armed groups and the Myanmar military and that security measures are in place, Myanmar remains under the obligations incumbent upon it as a State party to the Genocide Convention”.³¹

The Court indicated following provisional measures: (1) Myanmar shall, in relation to the members of the Rohingya group in its territory, take all measures within its power to prevent the commission of all acts within the scope of Article II of the Convention; (2) It shall also ensure that its military, as well as any irregular armed units, any organisations and persons under its control, direction or influence, do not commit any of the aforesaid acts or

27. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 41; see also *Case concerning Questions relating to the Obligation to Prosecute or Extradite (Belgium v Senegal)*, (2012) ICJ Rep 422, p 449, para 68. In its Advisory Opinion on *Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide*, (1951) ICJ Rep 15, p 23, the Court observed that “[i]n such a convention the contracting States do not have any interests of their own; they merely have, one and all, a common interest, namely, the accomplishment of those high purposes which are the *raison d'être* of the convention. Consequently, in a convention of this type one cannot speak of individual advantages or disadvantages to States, or of the maintenance of a perfect contractual balance between rights and duties. The high ideals which inspired the Convention provide, by virtue of the common will of the parties, the foundation and measure of all its provisions”.

28. See the United Nations General Assembly Resolution 73/264 adopted on 22 December 2018.

29. United Nations General Assembly Resolution 73/264 adopted on 22 December 2018. The court in *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 54 referred to the aforesaid resolution and indicated provisional measures for Myanmar to comply.

30. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020.

31. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, paras 72, 74.

of conspiracy to commit genocide, of direct and public incitement to commit genocide, of attempt to commit genocide, or of complicity in genocide; (3) Myanmar shall take effective measures to prevent the destruction and ensure the preservation of evidence; and (4) it shall submit a report to the Court on all measures taken within four months, and thereafter every six months, until a final decision is rendered by the Court.³²

17.2 International Criminal Tribunals

The breaches of international humanitarian law have been dealt with severely immediately after the Second World War. Germany and some of her allies particularly Japan, were found responsible for the grave breaches of international humanitarian law during the Second World War. The crimes committed by them shocked the conscience of the international community and it was decided that the perpetrators of the crimes should be brought to justice. In order to prosecute and punish them, Moscow Declaration was adopted on 30 October 1943. The Declaration stated (i) that members of the German armed forces and of the ruling party responsible for atrocities, massacres, executions, and killings of hostages in occupied territory would be brought back to the scene of their crimes and judged on the spot by the people they have outraged; and (ii) that the major war criminals whose offences had no particular geographical location would be punished by a joint decision of the Governments of the Allies.³³

17.2.1 International Military Tribunal at Nuremberg

The United States, United Kingdom, France and Soviet Russia concluded an Agreement for the Prosecution and Punishment of the Major War Criminals of the European Axis on 8 August 1945 in pursuance of the Moscow Declaration as stated above. It was provided in the Agreement that an International Military Tribunal would be set up. The provisions relating to the constitution, jurisdiction and the functions of the tribunal were laid down in a Charter which was annexed to the Agreement of 1945. The Charter contained provisions on *inter alia*, the defence of superior orders, the individual's responsibility irrespective of official position, and the safeguarding of a fair trial. Article 6 of the Charter defined the jurisdiction of the tribunal on the: (i) crimes against peace; (ii) war crimes; and (iii) crimes against humanity.

The crimes against peace were defined as “planning, perpetration, initiation, or waging of a war of aggression, or a war in violation of international treaties, agreements, or assurances, or participation in a common plan or conspiracy for the accomplishment of any of the foregoing”.

The war crimes were defined as “violations of the laws or customs of war. Such violations shall include, but not limited to, murder, ill treatment or deportation to slave labour or for any other purpose of civilian population of or in occupied territory, murder or ill treatment of prisoners of war or persons on the seas, killing of hostages, plunder of public or private property, wanton destruction of cities, towns, or villages, or devastation not justified by military necessity”.

The crimes against humanity were defined as “murder, extermination, enslavement, deportation, and other inhumane acts committed against any civilian population, before or during the war, or persecutions on political, racial, or religious grounds in execution of or in connection with any crime within the jurisdiction of the Tribunal, whether or not in violation of the domestic law of the country where perpetrated”.

32. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar) Provisional Measures*, Order of 23 January 2020, para 86.

33. L. Oppenheim, *International Law: A Treatise*, vol. 2, 1952, p 577.

The plea of orders of superior as an absolute defence was rejected. Article 3 of the Charter, however, provided that orders of superiors might be considered in mitigation of punishment if the tribunal determined that justice required this to be done.

The judgment of the tribunal was delivered on 30 September 1946. Sentences were pronounced on 1 October 1946. One accused was found guilty for crimes against peace alone, two accused were found guilty of crimes against humanity alone, and rest of the accused were found guilty, in addition to other crimes, of ordinary war crimes and were sentenced accordingly.³⁴

17.2.2 International Military Tribunal for the Far East (Tokyo)

Apart from Nuremberg trial, another tribunal, i.e. the International Military Tribunal for the Far East (Tokyo) was also established. The tribunal was set up by a Proclamation issued on 19 January 1946 by the Supreme Commander for the Allied Powers in the Pacific. This Proclamation was based on the Potsdam Declaration of 26 July 1945. The Charter of the tribunal, annexed to the Proclamation, was similar to that of the Nuremberg Tribunal. The Charter specified the categories of war crimes, crimes against peace, and crimes against humanity, together with a separate grouping of a crime of conspiracy to commit the foregoing crimes. The trial began on 4 June 1946 and the judgment was given on 4 November 1948.³⁵

In the judgment of the tribunal, the only accused to be sentenced to death were those who, in addition to other crimes, were found guilty of ordering or permitting the commission of ordinary war crimes or of failure to take adequate steps to secure the observance and prevent breaches of conventions and laws of war in respect of prisoners of war and civilian internees — though a large proportion of the accused were sentenced to terms of imprisonment for crimes against the peace only.³⁶

17.2.3 International Criminal Tribunal for the Former Yugoslavia (ICTY)

In the territory of former Yugoslavia, widespread and flagrant violations of international humanitarian law were reported since 1991. These violations included mass killings, massive organised and systematic detention and rape of women, ethnic cleansing and destruction of civilian, cultural and religious properties.³⁷ In response to grave concern over these violations and the perceived threat to international peace and security resulting from them, the Security Council while exercising its powers under Chapter VII of the UN Charter, established International Criminal Tribunal for the Former Yugoslavia (ICTY) in 1993.³⁸ The ICTY was the first international tribunal which was established by Security Council. It was located at the Hague, Netherlands.

According to the Statute of the International Tribunal for the Former Yugoslavia,³⁹ the ICTY had to exercise its jurisdiction with respect to the violations of international humanitarian law within the territory of former Yugoslavia, which were committed by natural persons since 1 January 1991. The ICTY was empowered to prosecute grave breaches of the Geneva Conventions, violations of the laws or customs of war, genocide, and crimes against humanity,

34. L. Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 579.

35. Gerhard Von Glahn, *Law Among Nations*, 1976, p 704.

36. L. Oppenheim, *International Law: A Treatise*, vol 2, 1952, p 581.

37. M. C. Bassiouni, "The United Nations Commission of Experts Established Pursuant to Security Council Resolution 780 (1992)", *American Journal of International Law*, vol 88, 1994, p 784.

38. The ICTY was established by Security Council by resolution 827 of 25 May 1993.

39. Statute of the International Tribunal for the Former Yugoslavia was adopted by Security Council by resolution 827 on 25 May 1993. It was amended in 1998 and 2000.

which included murder, extermination, enslavement, deportation, imprisonment, torture, rape, persecution on political and religious grounds, and other inhuman acts.

The tribunal consisted of: (a) the Chambers, comprising three Trial Chambers and an Appeals Chamber; (b) the Prosecutor; and (c) a Registry, servicing both the Chambers and the Prosecutor.⁴⁰ The Appeals Chamber was to hear appeals from persons convicted by the Trial Chambers or from the Prosecutor on the grounds of (a) an error on a question of law invalidating the decision; or (b) an error of fact which has occasioned a miscarriage of justice.⁴¹ The Prosecutor was responsible for the *investigation* and *prosecution* of accused persons. He had to act independently as a separate organ of the International Tribunal and was not to seek or receive instructions from any Government or from any other source.⁴² According to Statute, the ICTY was to have primacy over national courts.⁴³ The ICTY was empowered to request the national court to transfer the accused and the investigation to its jurisdiction. The jurisdiction, otherwise was concurrent with national courts.

The first sentence was passed by ICTY in December 1996 when it pronounced a jail term of 10 years to a Croatian soldier who was in the Bosnian Serb army, for his part in the slaughter of Muslims in the United Nations “safe-haven” of Srebrenica. Dusko Tadic was sentenced to imprisonment for a term of 20 years on 14 July 1997.⁴⁴ The trial of Slobodan Milošević the Yugoslav President ended prematurely with his death in the Detention Unit on 11 March 2006.⁴⁵ A substantial number of accused were convicted of crimes, including war crimes, genocide and crimes against humanity.

The ICTY was closed on 31 December 2017, but the mandate was not yet over. The International Residual Mechanism for Criminal Tribunals (hereinafter “Mechanism”) which was created by the United Nations Security Council on 22 December 2010 as a “small, temporary and efficient structure” started operating at two places — at Arusha, United Republic of Tanzania for the International Criminal Tribunal for Rwanda and at The Hague for ICTY. At the Hague, the Mechanism started operating from 1 July 2013, where it was inheriting functions from the ICTY. During the initial years, the Mechanism operated in parallel with the ICTY, and thereafter continued after its closure to complete the leftover tasks of the ICTY.⁴⁶

In the *Karadžić* case, the Appeals Chamber at The Hague Branch of Mechanism delivered its judgment on 20 March 2019. While sentencing Radovan Karadžić to life imprisonment, the Appeals Chamber largely confirmed the convictions entered at trial.⁴⁷

17.2.4 International Criminal Tribunal for Rwanda (ICTR)

The acts of genocide and other systematic, widespread and flagrant violations of international humanitarian law were reported in Rwanda, on which grave concerns were expressed by the international community. According to the Preliminary Report of the Independent Commission of Experts, “a pre-planned execution of severe human right violations, including systematic, widespread and flagrant breaches of international humanitarian law, large scale

40. Article 11, Statute of the International Tribunal for the Former Yugoslavia.

41. Article 25, Statute of the International Tribunal for the Former Yugoslavia.

42. Article 16, Statute of the International Tribunal for the Former Yugoslavia.

43. Article 9(2), Statute of the International Tribunal for the Former Yugoslavia.

44. See <https://www.icty.org/en/press/dusko-tadic-sentenced-20-years-imprisonment> (last accessed in January, 2021).

45. See *ICTY Annual Report 2006*, A/61/271-S/2006/666, dated 21 August 2006, para 55.

46. For more details <http://www.irmct.org/en/about> (last accessed in January, 2021).

47. See para 106 of Assessment and Progress Report of Judge Carmel Agius, the President of the International Residual Mechanism for Criminal Tribunals, for the period from 16 November 2018 to 15 May 2019, S/2019/417 dated 20 May 2019.

crimes against humanity and genocide” took place in Rwanda.⁴⁸ It is believed that around one million people were massacred in 1994.

A Commission of Experts was established in July 1994 and the Security Council established International Criminal Tribunal for Rwanda (ICTR) at Arusha in United Republic of Tanzania in November 1994.⁴⁹ The ICTR was established with the objectives of bringing the perpetrators of the international humanitarian law violations to justice and to contribute to the process of reconciliation in Rwanda and the maintenance of peace in the region.

According to Statute of the International Criminal Tribunal for Rwanda, the ICTR is to exercise jurisdiction in relation to the commission of “serious violations of international humanitarian law committed in the territory of Rwanda and Rwandan citizens responsible for such violations committed in the territory of neighboring States, between 1 January 1994 and 31 December 1994”.⁵⁰

The ICTR passed death sentence against the former Mayor of Rwanda’s Taba Commune in February 1997.⁵¹ Security Council, thus took steps of “condemnation; publication; investigation; and by establishing the tribunal, punishment”, as regards the genocide which occurred in Rwanda in 1994.⁵²

The ICTR was closed on 31 December 2015. However, the International Residual Mechanism for Criminal Tribunals as discussed above started operating in Arusha, United Republic of Tanzania from 1 July 2012, where it was inheriting functions from the International Criminal Tribunal for Rwanda. The Mechanism had to complete the leftover tasks of the ICTR.

The Mechanism continues the vital work of the ICTR. Its fight for justice is going on through various functions including through “prioritising the tracking, arrest and prosecution of the eight remaining fugitives indicted by the ICTR; providing support to the victims and witnesses who courageously came forward to testify before the ICTR; and supervising the enforcement of sentences of persons convicted by the ICTR”.⁵³

With respect to Mechanism, the President of the United Nations Security Council, Theodor Meron made the following significant statement on 7 June 2012:

By establishing the Mechanism, the Council has helped to guarantee that the closure of the two pioneering ad hoc tribunals does not open the way for impunity to reign once more.

17.2.5 Special Court for Sierra Leone

The Government of Sierra Leone and the United Nations established a Special Court for Sierra Leone on 14 August 2000⁵⁴ to prosecute persons “who bear the greatest responsibility for serious violations of international humanitarian law and Sierra Leonean law committed in

48. Para 42 of Preliminary Report of the Independent Commission of Experts which was established in accordance with Security Council resolution 935 (2994), UN Doc. S/1994/1125 of 4 October 1994.

49. The ICTR was established by Security Council by resolution 955 of 8 November 1994.

50. Article 1, Statute of the International Criminal Tribunal for Rwanda, 1994.

51. Rebecca M M Wallace, *International Law*, 1997, p 221.

52. Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White (Eds), London: Hart Publishing, 2010, pp 191–224, at p 220.

53. See IRMCT Principals’ Joint Message – Genocide Commemoration on 7 April 2020 available at <https://www.irmct.org/en/news/20-04-07-irmct-genocide-commemoration-7-april-2020> (last accessed in January, 2021).

54. Statute of the Special Court for Sierra Leone was adopted by Security Council resolution 1315 (2000) on 14 August 2000.

the territory of Sierra Leone since 30 November 1996”.⁵⁵ The court is located in Freetown, Sierra Leone.

The Special Court for Sierra Leone, and the Special Tribunal for Lebanon (STL) have mixed national judges with international judges, and domestic law with international law as a purely domestic approach to criminal justice was deemed inadequate in such cases.⁵⁶

17.2.6 *Ad hoc* Hybrid Special Court for Sri Lanka

In March 2014, the Human Rights Council requested the Office of the High Commissioner for Human Rights (OHCHR) to “undertake a comprehensive investigation into alleged serious violations and abuses of human rights and related crimes by both parties in Sri Lanka during the period covered by the Lessons Learnt and Reconciliation Commission (LLRC) and to establish the facts and circumstances of such alleged violations and of the crimes perpetrated with a view to avoiding impunity and ensuring accountability, with assistance from relevant experts and special procedures mandate holders”.⁵⁷

The request for a comprehensive investigation followed increasing international and national concerns about the absence of a credible national process of accountability to address the extensive atrocities — including allegations of war crimes and crimes against humanity — allegedly committed towards the end of the conflict in 2009 by both the Government of Sri Lanka and the Liberation Tigers of Tamil Eelam (LTTE). The mandate given for the investigation covered a time period from February 2002–November 2011.⁵⁸

On 16 September 2015, the *Report of the OHCHR Investigation on Sri Lanka (OISL)* was adopted which found widespread violation of international humanitarian law by both the parties to the conflict, most particularly by Sri Lankan forces. The Report recommended the adoption of “specific legislation establishing an *ad hoc* hybrid special court, integrating international judges, prosecutors, lawyers and investigators, mandated to try war crimes and crimes against humanity, including sexual crimes and crimes committed against children, with its own independent investigative and prosecuting organ, defence office, and witness and victims protection programme”.⁵⁹

17.2.7 Other Criminal Tribunals

In addition to above, other internationalised criminal tribunals include the Special Panels for Kosovo, and East Timor, created by the respective UN administrations; the Extraordinary Chambers in the Courts of Cambodia, created by agreement between the UN Secretary-General and the Government of Cambodia on the initiative of the General Assembly; and the international judges that serve on the Special Chambers of the Bosnian State Court.⁶⁰

55. Article 1, Statute of the Special Court for Sierra Leone, 2000.

56. See Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White (Eds), London: Hart Publishing, 2010, pp 191–224 at p 221.

57. Human Rights Council, Resolution 25/1 of March 2014; see also *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1.

58. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 2.

59. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, p 250.

60. See Nigel D White, and Matthew Saul, “Legal Means of Dispute Settlement in the Field of Collective Security: The Quasi-Judicial Powers of the Security Council” in *International Law and Dispute Settlement: New Problems and Techniques*, Duncan French, Matthew Saul and Nigel D White (Eds), London: Hart Publishing, 2010, pp 191–224 at p 221.

Apart from the aforesaid criminal tribunals which were either international or hybrid in nature and which were established to ensure international criminal justice, the giant step was taken with the establishment of International Criminal Court (ICC). The composition, functioning and the relationship between ICC and United Nations have been discussed in the next chapter in detail.

CHAPTER 18

INTERNATIONAL CRIMINAL COURT

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The judgments of Nuremberg Trial and Tokyo Trial laid down the foundation for modern-day international criminal law. The need to establish International Criminal Court was felt way back in 1948 in view of the aforesaid trials. In 1994, the United Nations General Assembly decided to pursue work towards the establishment of an international criminal court, taking the International Law Commission’s draft statute as a basis.¹ The Rome Statute of the International Criminal Court was adopted at the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court at the headquarters of the Food and Agriculture Organisation of the United Nations in Rome, on 17 July 1998. The adoption of the Rome Statute was only possible as a result of a variety of innovations in the negotiating process. One of them was NGO participation —both as such and as part of government delegations.² The Rome Statute got a good response —120 States voted in favor of the adoption of the Rome Statute. Only 7 States voted against the treaty while 21 States abstained. The States which voted against the adoption of the Statute included the United States, Israel, China, Iraq, and Qatar. The Statute came into force on 1 July 2002.

The establishment of Court is thus, an outcome of the efforts made for 50 years since 1948. By adopting Rome Statute, the States resolved to put an end to the impunity enjoyed by the perpetrators of the most heinous crimes.³

Prior to the adoption of Rome Statute, the Geneva Conventions and Additional Protocol I laid down an obligation on States to repress grave breaches of international humanitarian law, which were considered war crimes. States could also take measures to suppress other breaches of the Geneva Conventions. However, in practice many States were found unable or unwilling to exercise their jurisdiction, as a result of which the serious and heinous crimes went unpunished in many cases. After the establishment of the Court, the States continue to have the primary role to prosecute and punish the criminals. The Court has been set up to step in for national courts when these are unwilling or unable to do so.⁴

After the adoption of Rome Statute, the International Committee of the Red Cross made the following statement at the United Nations General Assembly:

The establishment of the Court has at last provided international humanitarian law an instrument that will remedy the shortcomings of the current system of repression, which is inadequate and all too often ignored. Indeed, the obligation to prosecute war criminals already exists, but frequently remains a dead letter. It is therefore to be hoped that this new institution, which is intended to be complementary to national criminal jurisdictions, will encourage State to adopt the legislation necessary to implement international humanitarian law and to bring violators before their own courts.⁵

The relationship between the Rome Statute and other norms of international law was not without friction. There were three areas of the friction — (i) unsuccessful attempts to codify the crime of aggression; (ii) the relationship of the Court to the United Nations, in particular

1. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 13.
2. Andreas L Paulus, “Legalist Groundwork for the International Criminal Court: Commentaries on the Statute of the International Criminal Court”, *European Journal of International Law*, vol 14, 2003, pp 843–860, 848.
3. Knut Dormann, *Elements of War Crimes Under the Rome Statute of the International Criminal Court*, 2002, p 1.
4. Knut Dormann, *Elements of War Crimes Under the Rome Statute of the International Criminal Court*, 2002, p 2.
5. Statement of ICRC made at the United Nations General Assembly, 53rd Session, 22 October 1998.

the Security Council; and (iii) the rules of immunity which might prevent the Court from working effectively.⁶

The International Criminal Court was established at The Hague as an independent permanent court with jurisdiction over the most serious crimes of concern to the international community as a whole. The Court is complementary to national criminal jurisdictions. It was affirmed in the Preamble of the Statute that the most serious crimes must not go unpunished and their effective prosecution must be ensured by taking measures at the national level and by enhancing international co-operation.⁷

According to Article 2, the Court was to be brought into relationship with the United Nations through an agreement. The Relationship Agreement between the United Nations and the International Criminal Court was approved by the General Assembly on 13 September 2004. The Agreement entered into force on 4 October 2004. The Agreement creates a general framework for co-operation between the United Nations and the International Criminal Court. The United Nations and the Court respect each other's status and mandate.⁸ Both shall co-operate with one another and arrange for the exchange of information and documents of mutual interest.

The Court has international legal personality. It also has such legal capacity as may be necessary for the exercise of its functions and the fulfillment of its purposes. It may exercise its functions and powers on the territory of any State Party and, by special agreement, on the territory of any other State.⁹

18.1 Jurisdiction of the Court

18.1.1 Jurisdiction With Respect to Crimes

The jurisdiction of the Court is limited to the most serious crimes of concern to the international community as a whole. The Court has jurisdiction with respect to the following crimes:

- (1) The crime of genocide
- (2) Crimes against humanity
- (3) War crimes
- (4) The crime of aggression.

The Rome Statute described the aforesaid crimes as “the most serious crimes of concern to the international community as a whole”,¹⁰ “unimaginable atrocities that deeply shock the conscience of humanity”,¹¹ “international crimes”,¹² and “the most serious crimes of international concern”.¹³ The Nuremberg Tribunal prosecuted all the four crimes within the jurisdiction of the Court in somewhat embryonic form. At Nuremberg, they were called crimes against peace, war crimes and crimes against humanity. The term “crimes against peace” is now replaced by “aggression”; while probably not identical, the two terms largely overlap. Although the term “genocide” already existed at the time of the Nuremberg trial, and it was used by the

6. Andreas L Paulus, *Legalist Groundwork for the International Criminal Court: Commentaries on the Statute of the International Criminal Court*, *European Journal of International Law*, vol 14, 2003, pp 843–860, 850.

7. See Preamble and Articles 1 and 3, Rome Statute of the International Criminal Court, 1998.

8. Article 2, The Relationship Agreement between the United Nations and the International Criminal Court, 2004.

9. Article 4, Rome Statute.

10. See the Preamble and Article 5.

11. See the Preamble.

12. See the Preamble.

13. Article 1.

prosecutors, the indictments against Nazi criminals for the genocide of European Jews were based on the charge of “crimes against humanity”.¹⁴

18.1.1.1 Genocide

“Genocide” means any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- (a) Killing members of the group;
- (b) Causing serious bodily or mental harm to members of the group;
- (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- (d) Imposing measures intended to prevent births within the group;
- (e) Forcibly transferring children of the group to another group.¹⁵

On the issue of *destruction of the group in whole or in part*, the Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia made the following observations in the *Krstić’s* case¹⁶:

[D]espite recent developments, customary international law limits the definition of genocide to those acts seeking the physical or biological destruction of all or part of the group. An enterprise attacking only the cultural or sociological characteristics of a human group in order to annihilate these elements which give to that group its own identity distinct from the rest of the community would not fall under the definition of genocide.¹⁷

There must be an intention on the part of accused to destroy group in whole or in part. In *Bosnian Genocide* case,¹⁸ the ICJ stated that “the intent must be to destroy at least a substantial part of the particular group. That is demanded by the very nature of the crime of genocide: since the object and purpose of the Convention as a whole is to prevent the intentional destruction of groups, the part targeted must be significant enough to have an impact on the group as a whole”.¹⁹

On the *measures of preventing births within the group*, the Trial Chamber of International Criminal Tribunal for Rwanda (ICTR) observed in *Akayesu*²⁰ that:

In patriarchal societies, where membership of a group is determined by the identity of the father, an example of a measure intended to prevent births within a group is the case where, during rape, a woman of the said group is deliberately impregnated by a man of another group, with the intent to have her give birth to a child who will consequently not belong to its mother’s group. Furthermore, the Chamber notes that measures intended to prevent births within the group may be physical, but can also be mental. For instance, rape can be a measure intended to prevent births when the person raped subsequently refuses to procreate, in the same way that members can be led, through threats or trauma, not to procreate.

14. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 27.

15. Article 6.

16. *Krstić’s* case, ICTY T. Ch. 12 August 2001.

17. *Krstić’s* case, ICTY T. Ch. 12 August 2001, para 580. These observations were approved by the ICTY Appeals Chamber. (ICTY ACh 19 April 2004, para 25).

18. *Case Concerning the Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)* 2007 ICJ General List No. 91.

19. *Case Concerning the Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)* 2007 ICJ General List No. 91, para 198.

20. *Akayesu’s* case, ICTR T Ch I 2 September 1998, paras 507–08.

The International Criminal Tribunal for Rwanda (ICTR) has labelled genocide as “the crime of crimes”.²¹ In Advisory Opinion on *Reservations to the Genocide Convention*,²² the ICJ stated that the crime of genocide shocked the conscience of mankind, resulted in great losses to humanity and was contrary to moral law and to the spirit and aims of the United Nations.²³

18.1.1.2 Crimes Against Humanity

The use of the term “crimes against humanity” can be found dating back several centuries. However, it was first used in its contemporary context in 1915. The massacres of Turkey’s Armenian population were denounced as a crime against humanity in a declaration of three Allied powers pledging that those responsible would be held personally accountable.²⁴ The term “crimes against humanity” was also used in 1945 as one of three categories of offence within the jurisdiction of the Nuremberg Tribunal.

Crimes against humanity are inhumane acts which have been committed intentionally to cause great suffering, or serious injury to body or to mental or physical health against a civilian population, as part of a widespread or systematic attack. The obligation to establish and exercise jurisdiction over such crimes exists independently of treaty obligations. Article 7 of the Statute defines “Crime against humanity” to mean any of the following acts when committed as part of a widespread²⁵ or systematic²⁶ attack directed against any civilian population,²⁷ with knowledge of the attack:

- (a) Murder;
- (b) Extermination;²⁸
- (c) Enslavement;²⁹

21. See *Prosecutor v Kambanda* (Case No. ICTR-97-23-S), Judgment and Sentence, 4 September 1998, para 16; and *Prosecutor v Senabugo* (Case No. ICTR-98-39-S), Sentence, 2 February 1999, para 15.

22. Advisory Opinion on *Reservations to the Genocide Convention*, (1951) ICJ Rep 15, p 23.

23. See also the *Case Concerning Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Yugoslavia (Serbia and Montenegro))*, (1993) ICJ Rep 3.

24. United Nations War Crimes Commission, *History of the United Nations War Crimes Commission and the Development of the Laws of War*, 1948, p 35.

25. The term “widespread” generally refers to the large-scale nature of the attack and the number of victims. (*Warrant of Arrest for Omar Hassan Ahmad Al Bashir*, Pre-Trial Chamber I, ICC-02/05-01/09, 4 March 2009, para 81, *Katanga*, 30 September 2008, paras 394–97). However, an attack may also be considered widespread by the “cumulative effect of a series of in humane acts or the singular effect of an inhumane act of extraordinary magnitude”. (Judgment, *Blaškić* (IT-95-14), Trial Chamber, 3 March 2000, para. 206; Judgment, *Kordić and Čerkez* (IT-95-14/2-T), Trial Chamber, 26 February 2001, para 179; Judgment, *Kordić and Čerkez* (IT-95-14/2-A), Appeals Chamber, 17 December 2004, para 94).

26. The concept of a “systematic” attack refers to the organised nature of the acts of violence and the improbability of their random occurrence. (*Warrant of Arrest for Omar Hassan Ahmad Al Bashir*, Pre-Trial Chamber I, ICC-02/05-01/09, 4 March 2009, para 81, *Prosecutor v Germain Katanga and Mathieu Ngudjolo Chui*, Decision on the confirmation of charges, Pre-Trial Chamber I, ICC-01/04-01-/07, 30 September 2008, paras 394–97).

27. “Attack directed against any civilian population” means a course of conduct involving the multiple commission of acts referred above against any civilian population, pursuant to or in furtherance of a State or organisational policy to commit such attack. The population against whom the attack is directed is considered civilian if it is predominantly civilian in nature. The presence of individuals within the civilian population who do not come within the definition of civilians does not deprive the population of its civilian character. (*Naletilić and Martinović* (IT-98-34), Trial Chamber, 31 March 2003, para 235; *Akayesu*, (ICTR-96-4), Trial Chamber, 2 September 1998, para 582; *Jelić* (IT-95-10-T), Trial Chamber, 14 December 1999, para 54).

28. “Extermination” includes the intentional infliction of conditions of life, *inter alia* the deprivation of access to food and medicine, calculated to bring about the destruction of part of a population.

29. “Enslavement” means the exercise of any or all of the powers attaching to the right of ownership over a person and includes the exercise of such power in the course of trafficking in persons, in particular women and children.

- (d) Deportation or forcible transfer of population;³⁰
- (e) Imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law;
- (f) Torture;³¹
- (g) Rape,³² sexual slavery, enforced prostitution, forced pregnancy,³³ enforced sterilisation, or any other form of sexual violence of comparable gravity;
- (h) Persecution³⁴ against any identifiable group or collectivity on political, racial, national, ethnic, cultural, religious, gender or other grounds that are universally recognised as impermissible under international law;
- (i) Enforced disappearance of persons;³⁵
- (j) The crime of apartheid;³⁶
- (k) Other inhumane acts³⁷ of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health.

30. "Deportation or forcible transfer of population" means forced displacement of the persons concerned by expulsion or other coercive acts from the area in which they are lawfully present, without grounds permitted under international law.

31. "Torture" means the intentional infliction of severe pain or suffering, whether physical or mental, upon a person in the custody or under the control of the accused; except that torture shall not include pain or suffering arising only from, inherent in or incidental to, lawful sanctions. The *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1130 stated that "there are reasonable grounds to believe that ... torture was committed on a widespread scale. This breaches the absolute prohibition of torture, and Sri Lanka's international treaty and customary obligations. If established before a court of law, these acts of torture may, depending on the circumstances, amount to crimes against humanity if committed as part of a widespread or systematic attack, and as war crimes if a nexus is established with the armed conflict.

32. In *Prosecutor v Furundzija* (Case No. IT-95-17/1-T), Judgment, 10 December 1998, para 185, a Trial Chamber of the Yugoslav Tribunal took a more mechanical and technical approach, holding rape to be 'the sexual penetration, however slight: (a) of the vagina or anus of the victim by the penis of the perpetrator or any other object used by the perpetrator; or (b) of the mouth of the victim by the penis of the perpetrator'. In *Prosecutor v Kunarac* (Case No. IT-96-23 and IT-96-23/1-A), Judgment, 12 June 2002, para 150, the Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia (ICTY) said that sexual violence gives rise to severe pain or suffering, whether physical or mental. It further stated that it was not necessary to provide visual evidence of suffering by the victim, as this could be assumed.

33. "Forced pregnancy" means the unlawful confinement of a woman forcibly made pregnant, with the intent of affecting the ethnic composition of any population or carrying out other grave violations of international law. This definition shall not in any way be interpreted as affecting national laws relating to pregnancy.

34. "Persecution" means the intentional and severe deprivation of fundamental rights contrary to international law by reason of the identity of the group or collectivity. In *Prosecutor v Krnojelac* (Case No. IT-97-25-T), Judgment, 15 March 2002, para 436, the International Criminal Tribunal for the Former Yugoslavia held that the crime against humanity of persecution "derives its unique character from the requirement of a specific discriminatory intent". Persecution was defined as an act or omission that discriminated in fact and that denied or infringed on a fundamental right laid down in international customary or treaty law.

35. "Enforced disappearance of persons" means the arrest, detention or abduction of persons by, or with the authorisation, support or acquiescence of, a State or a political organisation, followed by a refusal to acknowledge that deprivation of freedom or to give information on the fate or whereabouts of those persons, with the intention of removing them from the protection of the law for a prolonged period of time.

36. "The crime of apartheid" means inhumane acts of a character similar to those referred above, committed in the context of an institutionalised regime of systematic oppression and domination by one racial group over any other racial group or groups and committed with the intention of maintaining that regime.

37. In *Prosecutor v Akayesu* (Case No. ICTR-96-4-T), Judgment, 2 September 1998, the Rwanda Tribunal used "other inhumane acts" to encompass such behaviour as forced nakedness of Tutsi women.

18.1.1.3 War Crimes

The history of prosecution of war criminals is very old. War criminals have been prosecuted well before the time of the ancient Greeks. The first international trial for the perpetration of atrocities was probably that of Peter von Hagenbach, who was tried in 1474 for atrocities committed during the occupation of Breisach. When the town was retaken, von Hagenbach was charged with war crimes, convicted and beheaded.³⁸

The Hague Conventions of 1899 and 1907 were meant to impose obligations and duties upon States, and were not intended to create criminal liability for individuals. They declared certain acts to be illegal, but not criminal, as can be seen from the absence of anything suggesting a sanction for their violation. Despite that, the Hague Conventions were presented as a source of the law of war crimes. In 1913, a Commission of Inquiry sent by the Carnegie Foundation to investigate atrocities committed during the Balkan Wars used the provisions of the Hague Convention IV as a basis for its description of war crimes. However, actual prosecution for violations of the Hague Conventions would have to wait until Nuremberg. War crimes were codified at the time of Nuremberg trial³⁹ and thereafter in the Geneva Conventions of 1949 and in the 1993 Statute of the International Criminal Tribunal for the Former Yugoslavia and in the Statute of the International Criminal Court.

Article 8 of the Rome Statute which is one of the longest provisions in the Statute, represents a progressive development over the Geneva Conventions because it expressly covers non-international armed conflicts.⁴⁰

The Court has jurisdiction in respect of war crimes in particular when such crimes are committed as part of a plan or policy or as part of a large-scale commission of such crimes. Article 8(2) of the Statute defines “war crimes” to mean:

(a) Grave breaches of the Geneva Conventions of 12 August 1949, namely, any of the following acts against persons or property protected under the provisions of the relevant Geneva Convention: (i) Wilful killing; (ii) Torture or inhuman treatment, including biological experiments; (iii) Wilfully causing great suffering, or serious injury to body or health; (iv) Extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly; (v) Compelling a prisoner of war or other protected person to serve in the forces of a hostile Power; (vi) Wilfully depriving a prisoner of war or other protected person of the rights of fair and regular trial; (vii) Unlawful deportation or transfer or unlawful confinement; (viii) Taking of hostages.

(b) Other serious violations of the laws and customs applicable in international armed conflict, within the established framework of international law, namely, any of the following acts: (i) Intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities;⁴¹ (ii) Intentionally directing attacks against civilian objects, that is, objects which are not military objectives; (iii) Intentionally directing attacks against personnel, installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission in accordance with the Charter of the United Nations, as long as they are entitled to the protection given to civilians or civilian objects under the international law of armed conflict; (iv) Intentionally launching an attack in the knowledge that such attack will cause incidental loss of life or injury to civilians or damage to civilian objects or widespread, long-term and severe damage to the natural environment which

38. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 1.

39. Article 6, Agreement for the Prosecution and Punishment of Major War Criminals.

40. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 54.

41. See also Advisory Opinion of International Court of Justice on the *Legality of the Threat or Use of Nuclear Weapons*, (1996) ICJ Rep 226, para 78.

would be clearly excessive in relation to the concrete and direct overall military advantage anticipated; (v) Attacking or bombarding, by whatever means, towns, villages, dwellings or buildings which are undefended and which are not military objectives; (vi) Killing or wounding a combatant who, having laid down his arms or having no longer means of defence, has surrendered at discretion; (vii) Making improper use of a flag of truce, of the flag or of the military insignia and uniform of the enemy or of the United Nations, as well as of the distinctive emblems of the Geneva Conventions, resulting in death or serious personal injury; (viii) The transfer, directly or indirectly, by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory; (ix) Intentionally directing attacks against buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals and places where the sick and wounded are collected, provided they are not military objectives; (x) Subjecting persons who are in the power of an adverse party to physical mutilation or to medical or scientific experiments of any kind which are neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest, and which cause death to or seriously endanger the health of such person or persons; (xi) Killing or wounding treacherously individuals belonging to the hostile nation or army; (xii) Declaring that no quarter will be given; (xiii) Destroying or seizing the enemy's property unless such destruction or seizure be imperatively demanded by the necessities of war; (xiv) Declaring abolished, suspended or inadmissible in a court of law the rights and actions of the nationals of the hostile party; (xv) Compelling the nationals of the hostile party to take part in the operations of war directed against their own country, even if they were in the belligerent's service before the commencement of the war; (xvi) Pillaging a town or place, even when taken by assault; (xvii) Employing poison or poisoned weapons; (xviii) Employing asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices; (xix) Employing bullets which expand or flatten easily in the human body, such as bullets with a hard envelope which does not entirely cover the core or is pierced with incisions; (xx) Employing weapons, projectiles and material and methods of warfare which are of a nature to cause superfluous injury or unnecessary suffering or which are inherently indiscriminate in violation of the international law of armed conflict, provided that such weapons, projectiles and material and methods of warfare are the subject of a comprehensive prohibition and are included in an annex to this Statute; (xxi) Committing outrages upon personal dignity, in particular humiliating and degrading treatment; (xxii) Committing rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization, or any other form of sexual violence also constituting a grave breach of the Geneva Conventions; (xxiii) Utilising the presence of a civilian or other protected person to render certain points, areas or military forces immune from military operations; (xxiv) Intentionally directing attacks against buildings, material, medical units and transport, and personnel using the distinctive emblems of the Geneva Conventions in conformity with international law; (xxv) Intentionally using starvation of civilians as a method of warfare by depriving them of objects indispensable to their survival, including wilfully impeding relief supplies as provided for under the Geneva Conventions; (xxvi) Conscripting or enlisting children under the age of fifteen years into the national armed forces or using them to participate actively in hostilities.

(c) In the case of an armed conflict not of an international character, serious violations of Article 3 common to the four Geneva Conventions of 12 August 1949, namely, any of the following acts committed against persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed *hors de combat* by sickness, wounds, detention or any other cause: (i) Violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture; (ii) Committing outrages upon personal dignity, in particular humiliating and degrading treatment; (iii) Taking of hostages; (iv) The passing of sentences and the carrying out of executions without previous judgment

pronounced by a regularly constituted court, affording all judicial guarantees which are generally recognised as indispensable.

(d) the aforesaid paragraph (c) applies to armed conflicts not of an international character and thus does not apply to situations of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature.

(e) Other serious violations of the laws and customs applicable in armed conflicts not of an international character, within the established framework of international law, namely, any of the following acts: (i) Intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities; (ii) Intentionally directing attacks against buildings, material, medical units and transport, and personnel using the distinctive emblems of the Geneva Conventions in conformity with international law; (iii) Intentionally directing attacks against personnel, installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission in accordance with the Charter of the United Nations; (iv) Intentionally directing attacks against buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals and places where the sick and wounded are collected, provided they are not military objectives; (v) Pillaging a town or place, even when taken by assault; (vi) Committing rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilisation, and any other form of sexual violence also constituting a serious violation of Article 3 common to the four Geneva Conventions; (vii) Conscripting or enlisting children under the age of 15 years into armed forces or groups or using them to participate actively in hostilities;⁴² (viii) Ordering the displacement of the civilian population for reasons related to the conflict, unless the security of the civilians involved or imperative military reasons so demand; (ix) Killing or wounding treacherously a combatant adversary; (x) Declaring that no quarter will be given; (xi) Subjecting persons who are in the power of another party to the conflict to physical mutilation or to medical or scientific experiments of any kind which are neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest, and which cause death to or seriously endanger the health of such person or persons; (xii) Destroying or seizing the property of an adversary unless such destruction or seizure be imperatively demanded by the necessities of the conflict;

(f) The aforesaid paragraph (e) applies to armed conflicts not of an international character and thus does not apply to situations of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature. It applies to armed conflicts that take place in the territory of a State when there is protracted armed conflict between governmental authorities and organised armed groups or between such groups.

The responsibility of a Government to maintain or re-establish law and order in the State or to defend the unity and territorial integrity of the State by all legitimate means shall not be affected notwithstanding anything contained in aforesaid paragraphs (c) and (e).

Thus, Article 8 defines war crimes comprehensively and lays down the list of acts which are prohibited during an armed conflict. It is, however, noteworthy that not every aforesaid act which is committed while a country is at war is to be taken as a war crime. It is *sine qua non* that there should be a nexus between the act perpetrated and the conflict. Thus the criminal conduct must be closely related to the conflict. In other words, the offence must be committed to pursue the aims of the conflict or, alternatively, be carried out “with a view to somehow

42. According to the *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 691, LTTE recruited children below the age of 14 years to take direct part in the hostilities. On 17 February 2009, UNICEF issued a statement expressing grave concern for the safety of children in conflict areas, stating that “we have clear indications that the LTTE has intensified forcible recruitment of civilians and that children as young as 14 years old are now being targeted”.

contributing to attain the ultimate goals of a military campaign or, at a minimum, in unison with the military campaign”.⁴³

In *Prosecutor v Kunarac*,⁴⁴ a Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia made the following observations:

[T]he criterion of a nexus with the armed conflict . . . does not require that the offences be directly committed whilst fighting is actually taking place, or at the scene of combat. Humanitarian law continues to apply in the whole of the territory under the control of one of the parties, whether or not actual combat continues at the place where the events in question took place. It is therefore sufficient that the crimes were closely related to the hostilities occurring in other parts of the territories controlled by the parties to the conflict. The requirement that the act be closely related to the armed conflict is satisfied if ... the crimes are committed in the aftermath of the fighting, and until the cessation of combat activities in a certain region, and are committed in furtherance or take advantage of the situation created by the fighting.⁴⁵

In *Situation in the Islamic Republic of Afghanistan*⁴⁶, it was noted by the Appeals Chamber of International Criminal Court that the nexus requirement for war crimes was recognised in the Elements of Crimes. The penultimate element of each of the war crimes under the Court’s jurisdiction required that “the conduct took place in the context of and was associated with an international armed conflict [or with an armed conflict not of an international character]”. The Appeals Chamber further observed that the function of the nexus requirement was to differentiate “war crimes, eg the killing or rape of a prisoner of war, from ‘ordinary’ or ‘common’ crimes under domestic law, such as the common crime of murder and rape”.⁴⁷

In *Prosecutor v Dragoljub Kunarac*,⁴⁸ the Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia (the ‘ICTY’) observed that “what ultimately distinguishes a war crime from a purely domestic offence is that a war crime is shaped by or dependent upon the environment – the armed conflict – in which it is committed. It need not have been planned or supported by some form of policy. The armed conflict need not have been causal to the commission of the crime, but the existence of an armed conflict must, at a minimum, have played a substantial part in the perpetrator’s ability to commit it, his decision to commit it, the manner in which it was committed or the purpose for which it was committed. Hence, if it can be established ... that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict”.

The Appeals Chamber of ICTY further observed that “in determining whether or not the act in question is sufficiently related to the armed conflict, the Trial Chamber may take into account, *inter alia*, the following factors: the fact that the perpetrator is a combatant; the fact that the victim is a non-combatant; the fact that the victim is a member of the opposing party; the fact that the act may be said to serve the ultimate goal of a military campaign; and the fact that the crime is committed as part of or in the context of the perpetrator’s official duties”.⁴⁹

43. Cassese, “The Nexus Requirement for War Crimes”, 10(5) *Journal of International Criminal Justice*, 2012, pp 1395–1417, 1397.

44. *Prosecutor v Kunarac*, Case No. IT-96-23 and IT-96-23/1-A, Judgment, 22 February 2001, para 568.

45. See also *Prosecutor v Kvočka*, Case No. IT-98-30-T, Judgment, 2 November 2001, para 123.

46. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020, para 68 available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

47. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020, para 69 available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

48. *Prosecutor v Dragoljub Kunarac*, Case No. IT-9623 & IT-96-23/1-A, Judgment, 12 June 2002.

49. *Prosecutor v Dragoljub Kunarac*, Case No. IT-9623 & IT-96-23/1-A, Judgment, 12 June 2002, paras 58–60.

18.1.1.4 Aggression

The crime of aggression was not defined in the Rome Statute. It was originally provided under Article 5 that the Court was to exercise jurisdiction once a provision was adopted in accordance with Articles 121 and 123 defining the crime and setting out the conditions under which the Court should exercise jurisdiction with respect to this crime. Such a provision was to be consistent with the relevant provisions of the Charter of the United Nations. A definition of “aggression” was adopted by the General Assembly resolution in 1974.⁵⁰ But that resolution was not designed as an instrument of criminal prosecution, although it may provide a useful basis for a definition.⁵¹

Thus, in absence of a definition of aggression as well as the jurisdictional conditions in the Rome Statute, the Court remained unable to exercise jurisdiction over the crime of aggression. On 11 June 2010, the Review Conference of Rome Statute at Kampala adopted amendments to the Rome Statute by consensus which included a definition of the crime of aggression and a regime establishing how the Court will exercise its jurisdiction over this crime. The Court, however, will be able to exercise its jurisdiction over the crime of aggression until after 1 January 2017 when a decision is made by the States Parties to activate the jurisdiction.

Article 8 *bis* adopted in Kampala defines the crime of aggression as “the planning, preparation, initiation or execution, by a person in a position effectively to exercise control over or to direct the political or military action of a State, of an act of aggression which, by its character, gravity and scale, constitutes a manifest violation of the Charter of the United Nations”.

An “act of aggression” means the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations.

In accordance with United Nations General Assembly resolution 3314 (XXIX) of 14 December 1974, the following acts qualify as an act of aggression:

- (a) The invasion or attack by the armed forces of a State of the territory of another State, or any military occupation, however temporary, resulting from such invasion or attack, or any annexation by the use of force of the territory of another State or part thereof;
- (b) Bombardment by the armed forces of a State against the territory of another State or the use of any weapons by a State against the territory of another State;
- (c) The blockade of the ports or coasts of a State by the armed forces of another State;
- (d) An attack by the armed forces of a State on the land, sea or air forces, or marine and air fleets of another State;
- (e) The use of armed forces of one State which are within the territory of another State with the agreement of the receiving State, in contravention of the conditions provided for in the agreement or any extension of their presence in such territory beyond the termination of the agreement;
- (f) The action of a State in allowing its territory, which it has placed at the disposal of another State, to be used by that other State for perpetrating an act of aggression against a third State;
- (g) The sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to the acts listed above, or its substantial involvement therein.

50. General Assembly resolution 3314 (XXIX) of 14 December 1974.

51. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 32.

18.1.2 Basis of Jurisdiction

The Rome Statute distinguishes between jurisdiction and admissibility. Jurisdiction refers to the legal parameters of the Court's operations, in terms of subject matter (jurisdiction *ratione materiae*), time (jurisdiction *ratione temporis*) and space (jurisdiction *ratione loci*) as well as over individuals (jurisdiction *ratione personae*). The question of admissibility arises at a subsequent stage, and seeks to establish whether matters over which the Court properly has jurisdiction should be litigated before it.⁵²

18.1.2.1 Jurisdiction *ratione materiae*

Subject matter jurisdiction (Jurisdiction *ratione materiae*) refers to the crimes which the Court may prosecute: genocide, crimes against humanity, war crimes, and aggression. These crimes have already been discussed.

18.1.2.2 Jurisdiction *ratione temporis*

The Court has jurisdiction only with respect to crimes committed after the entry into force of this Statute. If a State becomes a Party to this Statute after its entry into force, the Court may exercise its jurisdiction only with respect to crimes which were committed after it became a Party. (Article 11)

18.1.2.3 Jurisdiction *ratione loci*

The Court has jurisdiction over crimes committed on the territory of States parties, regardless of the nationality of the offender. This general principle is set out in Article 12(2)(a) of the Statute. It also has jurisdiction over crimes committed on the territory of States that accept its jurisdiction on an *ad hoc* basis and on territory so designated by the Security Council.⁵³

Thus, according to Article 12, a State which becomes a Party to the Statute thereby accepts the jurisdiction of the Court with respect to the crime of genocide, crimes against humanity, war crimes, and the crime of aggression. The Court may exercise its jurisdiction if one or more of the following States are Parties to this Statute or have accepted the jurisdiction of the Court by lodging a declaration with the Registrar — (a) the State on the territory of which the conduct in question occurred or, if the crime was committed on board a vessel or aircraft, the State of registration of that vessel or aircraft; (b) the State of which the person accused of the crime is a national.

18.1.2.4 Jurisdiction *ratione personae*

The International Criminal Court will also have jurisdiction over nationals of a State party who are accused of a crime, in accordance with Article 12 as discussed above. The Court can also prosecute nationals of non-party States that accept its jurisdiction on an *ad hoc* basis by virtue of a declaration, or pursuant to a decision of the Security Council.

18.1.3 Initiation of Prosecution

According to Article 13, the initiative to prosecute a case may come from three sources: a State party, the Security Council or the Prosecutor. Thus, the Court may exercise its jurisdiction if — (a) a situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by a State Party; (b) a situation in which one or more of such crimes

52. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 68.

53. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 78.

appears to have been committed is referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter of the United Nations; or (c) the Prosecutor has initiated an investigation *proprio motu* on the basis of information on crimes within the jurisdiction of the Court.

When the Security Council while acting under Chapter VII of the UN Charter decides to refer to the Prosecutor a situation, the Secretary-General shall immediately transmit the written decision of the Security Council to the Prosecutor together with documents and other materials that may be pertinent to the decision of the Council. The ICC undertakes to keep the Security Council informed in this regard.⁵⁴

On 31 March 2005, the Security Council referred the situation in Darfur, Sudan to the ICC through its Resolution 1593. Interestingly, Sudan is not a State Party to the Rome Statute which means that ICC cannot exercise its jurisdiction over Sudan. However, by virtue of the fact that the situation in Darfur was referred by Security Council, the ICC could exercise its jurisdiction and conduct investigations with respect to the crimes of genocide, war crimes and crimes against humanity alleged to have been committed on the territory of Darfur, Sudan, or by its nationals from 1 July 2002 onwards.

The Security Council in its Resolution 1593(2005) took note of the report of the “International Commission of Inquiry on violations of international humanitarian law and human rights law in Darfur”⁵⁵ and determined that “the situation in Sudan continues to constitute a threat to international peace and security”. While acting under Chapter VII of the UN Charter, the Security Council decided to refer the situation in Darfur to the Prosecutor of the International Criminal Court. The ICC started conducting its investigation in June 2005 and produced several cases with suspects which also included Sudanese Government officials.

The Darfur case is unique in many senses — (i) it was the first ever situation referred by Security Council to ICC; (ii) it was the first investigation of ICC on the territory of a State which was not party to the Rome Statute; (iii) it was the first ICC investigation dealing with alleged crime of genocide; (iv) former Sudan’s President Omar Al Bashir was the first sitting President to be wanted by the ICC, and the first person to be charged by the ICC for the crime of genocide; and (v) neither of the two warrants of arrest against President Omar Al Bashir have been enforced. He is not in the custody of ICC.⁵⁶

It is a paradox that three of the five permanent members of the Security Council, i.e. United States, Russia and China are not the State parties to the Rome Statute. However, they decide under the banner of Security Council whose case is to be referred to ICC including of those States which are not parties to the Rome Statute. One can very well argue on legal grounds that how a State which is not a party to the Rome Statute can be brought to the jurisdiction of the ICC. *Pacta sunt servanda* is not applicable in the case of non-State parties. Moreover, this can also be seen as a violation of the Vienna Convention on the Law of Treaties, 1969.

54. Article 17(1), The Relationship Agreement between the United Nations and the International Criminal Court, 2004.

55. The Commission began its work on 25 October 2004. In order to discharge its mandate, the Commission endeavoured to fulfil four key tasks: “(1) to investigate reports of violations of international humanitarian law and human rights law in Darfur by all parties; (2) to determine whether or not acts of genocide have occurred; (3) to identify the perpetrators of violations of international humanitarian law and human rights law in Darfur; and (4) to suggest means of ensuring that those responsible for such violations are held accountable”. See the Report of the International Commission of Inquiry on Darfur to the Secretary-General, S/2005/60 dated 1 February 2005 available at <https://www.securitycouncilreport.org/atf/cf/%7B65BFCF9B-6D27-4E9C-8CD3-CF6E4FF96FF9%7D/WPS%20S%202005%2060.pdf> (last accessed in January, 2021).

56. *Situation in Darfur, Sudan*, ICC-02/05, available at <https://www.icc-cpi.int/darfur> (last accessed in January, 2021).

It is noteworthy that Security Council while acting under Chapter VII of the UN Charter decided in Resolution 1593(2005) that “the Government of Sudan and all other parties to the conflict in Darfur, shall co-operate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution and, *while recognising that States not party to the Rome Statute have no obligation under the Statute, urges all States and concerned regional and other international organisations to co-operate fully*”. The Security Council, thus, did not make any distinction between State and non-State parties as far as co-operation is concerned.

The second case where a situation in non-State party was referred by Security Council to ICC was Libya. Security Council unanimously referred the situation in Libya since 15 February 2011 to the ICC through Resolution 1970 (2011). Analysing the power of Security Council under Article 13(b) of the Rome Statute, it can be stated that all members of the United Nations sans United States, Russia and China are subject to the jurisdiction of ICC in an indirect manner. In other words, while acting under Chapter VII of the UN Charter, the Security Council can refer a situation in any State including non-State party to Rome Convention (as it did in case of Darfur) to ICC. The aforesaid three permanent members of the Security Council can veto a resolution in which they are involved.

When it appears to a State Party that one or more crimes within the jurisdiction of the Court have been committed, then it may refer such a situation along with supporting documentation to the Prosecutor and request him to investigate the situation for the purpose of determining whether one or more specific persons should be charged with the commission of such crimes.⁵⁷

18.1.4 Investigation by the Prosecutor

The Prosecutor may initiate investigations *proprio motu* (own motion) on the basis of information on crimes within the jurisdiction of the Court. He shall analyse the seriousness of the information received. He may seek additional information from States, organs of the United Nations, intergovernmental or non-governmental organisations, or other reliable sources, and may receive written or oral testimony at the seat of the Court. Where the Prosecutor concludes that there is a reasonable basis to proceed with an investigation, he shall submit to the Pre-Trial Chamber a request for authorisation of an investigation, together with any supporting material collected. Victims may make representations to the Pre-Trial Chamber.

Under Article 15(4), the Pre-Trial Chamber is to authorise the commencement of the investigation where it considers that there is a reasonable basis to proceed with an investigation, and that the case appears to fall within the jurisdiction of the Court. This is, however, without prejudice to the subsequent determinations by the Court with regard to the jurisdiction and admissibility of a case.

As Kenya is a party to Rome Statute, on 31 March 2010, the Pre-Trial Chamber II granted the Prosecutor's request to open an investigation *proprio motu* in the situation in Kenya, in relation to crimes against humanity committed between 1 June 2005 and 26 November 2009. This was the first situation in which the Prosecutor opened an investigation *proprio motu*, rather than by receiving a referral.⁵⁸

Situation in the Republic of Côte d'Ivoire was the first investigation which was opened by Prosecutor *proprio motu* after authorisation of Pre-trial Chamber on 3 October 2011 in a situation where a country had accepted the Court's jurisdiction (under article 12(3) of the Rome Statute) but was not yet a State Party.

57. Article 14, Rome Statute.

58. *Situation in the Republic of Kenya*, ICC-01/09, available at <https://www.icc-cpi.int/kenya> (last accessed in January, 2021).

The Prosecutor also made requests to Pre-trial Chamber to open an investigation *proprio motu* in the Situation in Georgia on 27 January 2016; and Situation in the People's Republic of Bangladesh/Republic of the Union of Myanmar on 14 November 2019.

In *Situation in the Islamic Republic of Afghanistan*,⁵⁹ the Prosecutor filed a request on 20 November 2017, for authorisation of an investigation into war crimes allegedly committed in Afghanistan since 1 May 2003, as well as related crimes allegedly committed in other States Parties since 1 July 2002. On 12 April 2019, Pre-Trial Chamber II rejected the Prosecutor's request. The Pre-Trial Chamber concluded that, "notwithstanding the fact that all the relevant requirements are met as regards both jurisdiction and admissibility, an investigation into the situation in Afghanistan would not serve the interests of justice". In an appeal filed by Prosecutor against the judgment of the Pre-Trial Chamber, the Appeals Chamber found that the Pre-Trial Chamber erred in its interpretation of article 15(4) of the Rome Statute when it found itself bound to assess the factors under Article 53(1) of the Statute.

The Appeals Chamber observed that Article 15(4) of the Statute required a pre-trial chamber to determine whether there was a reasonable factual basis for the Prosecutor to proceed with an investigation, in the sense of whether crimes had been committed, and that potential cases arising from such investigation appeared to fall within the Court's jurisdiction. The Pre-trial Chamber was not called under Article 15(4) of the Statute to review the Prosecutor's analysis of the factors under Article 53(1)(a) to (c) of the Rome Statute.⁶⁰ The difference between Article 15 and Article 53(1) is that the former governs the initiation of a *proprio motu* investigation, while the latter concerns situations which are referred to the Prosecutor by a State Party or the Security Council.⁶¹

To initiate investigation in a situation, a request is required to be made by the Prosecutor to the Pre-trial chamber. "It would be contrary to the very concept to suggest that a duty to investigate could be imposed by the Pre-trial Chamber in the absence of a request for authorisation of an investigation by the Prosecutor".⁶²

Where the Pre-Trial Chamber refuses to authorise the investigation, the Prosecutor may make a subsequent request based on new facts or evidence regarding the same situation. Where the Prosecutor himself concludes that the information provided does not constitute a reasonable basis for an investigation, he shall inform those who provided the information. However, this does not preclude the Prosecutor from considering further information submitted to him or her regarding the same situation in the light of new facts or evidence.⁶³

Two new Articles — Articles 15 *bis* and 15 *ter* adopted by Review Conference of Rome Statute at Kampala on 11 June 2010, set out the conditions for the Court's exercise of jurisdiction over the crime of aggression. When a "situation" is referred to the Prosecutor by the Security Council, the Court's jurisdiction is triggered in the same manner as with the other

59. The Appeals Chamber, 5 March 2020, paras 4–5, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

60. The Appeals Chamber, 5 March 2020, para 1, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

61. The Appeals Chamber, 5 March 2020, para 33, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

62. The Appeals Chamber, 5 March 2020, para 31, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

63. Article 15, Rome Statute.

crimes.⁶⁴ In other words, the Prosecutor may, thereafter, proceed with an investigation into the crime of aggression.

Under Article 15 *bis*, the Prosecutor may only proceed with an own motion investigation or an investigation based on a State referral of a situation into the crime of aggression — (a) after first ascertaining whether the Security Council has made a determination of the existence of an act of aggression (under Article 39 of UN Charter) and waiting for a period of 6 months; (b) where that situation concerns an act of aggression committed between States Parties; and (c) after the Pre-Trial Division of the Court has authorised the commencement of the investigation.

Any determination by an organ outside of the Court, such as the Security Council, will be without prejudice to the Court's own finding of an act of aggression. Article 15 *bis* also provides that States Parties may opt out of the Court's jurisdiction by lodging a declaration on non-acceptance of jurisdiction.⁶⁵ The Court is not to exercise its jurisdiction over the crime of aggression which is committed by nationals of a non-State Party on its territory.

18.1.5 Deferral of Investigation or Prosecution

Article 16 provides that no investigation or prosecution is to be commenced or proceeded with under this Statute for a period of 12 months if the Security Council has adopted a resolution under Chapter VII of the Charter of the United Nations and requested the Court to that effect. This request may be renewed by the Council under the same conditions. That means the Security Council may defer the proceedings for an indefinite period of time. In 2002, the Security Council adopted a resolution pursuant to Article 16 of the Statute.⁶⁶ The resolution was passed at the insistence of the United States, which threatened to veto the renewal of all United Nations peacekeeping missions unless its citizens were shielded from prosecution by the Court. The resolution was renewed for one more year.

When the Security Council adopts a resolution requesting the Court not to commence or proceed with an investigation or prosecution, this request shall immediately be transmitted by the Secretary-General to the President of the Court and the Prosecutor. The Court is obliged to inform the Security Council of its receipt of the above request and inform the Security Council of actions, if any, taken by the Court in this regard.⁶⁷

It is clear that prosecution shall not be initiated even if all grounds for prosecution of a person is available under the Rome Statute, if the Security Council has adopted the resolution for deferral under Article 16. In other words, prerogative lies with Security Council to adopt a resolution of deferral.

18.1.6 Inadmissibility of a Case

The Court is to determine a case inadmissible where:

- (a) The case is being investigated or prosecuted by a State which has jurisdiction over it, unless the State is unwilling or unable genuinely to carry out the investigation or prosecution;

64. Article 15 *ter*, Rome Statute.

65. See also www.iccnw.org (last accessed in January, 2021).

66. Security Council Resolution 1422 adopted on 12 July 2002.

67. Article 17(2), Relationship Agreement between the United Nations and the International Criminal Court, 2004.

- (b) The case has been investigated by a State which has jurisdiction over it and the State has decided not to prosecute the person concerned, unless the decision resulted from the unwillingness or inability of the State genuinely to prosecute;
- (c) The person concerned has already been tried for conduct which is the subject of the complaint, and a trial by the Court is not permitted under Article 20(3);
- (d) The case is not of sufficient gravity to justify further action by the Court.

In order to determine unwillingness in a particular case, the Court is to consider the following grounds:

- (i) whether the proceedings were or are being undertaken or the national decision was made for the purpose of shielding the person concerned from criminal responsibility;
- (ii) whether there has been an unjustified delay in the proceedings which in the circumstances is inconsistent with an intent to bring the person concerned to justice; or
- (iii) whether the proceedings were not or are not being conducted independently or impartially.

As far as the inability of a State to prosecute a person is concerned, the Court is to determine such inability by taking into account the situation as to whether, due to a total or substantial collapse or unavailability of its national judicial system, the State is unable to obtain the accused or the necessary evidence and testimony or otherwise unable to carry out its proceedings.⁶⁸

If a State does not incriminate one of the acts defined in Articles 6 to 8 (genocide, crimes against humanity and war crimes) of the Rome Statute, or what is more likely, if the definition of these crimes in its domestic law does not correspond with the Statute's, it runs the risk of leading the Court to find its own jurisdiction, on the basis of Article 17.⁶⁹

18.1.7 Preliminary Rulings Regarding Admissibility

When a situation has been referred to the Court and the Prosecutor initiates an investigation, he shall notify all States Parties and those States which would normally exercise jurisdiction over the crimes concerned. The Prosecutor may notify such States on a confidential basis. He may limit the scope of the information provided to States, where he believes that it is necessary to protect persons, prevent destruction of evidence or prevent the absconding of persons.

Within one month of receipt of that notification, a State may inform the Court that it is investigating or has investigated its nationals or others within its jurisdiction with respect to crimes and which relate to the information provided in the notification to States. At the request of that State, the Prosecutor shall defer to the State's investigation of those persons unless the Pre-Trial Chamber, on the application of the Prosecutor, decides to authorise the investigation. The Prosecutor's deferral to a State's investigation is open to review by the Prosecutor six months after the date of deferral or at any time when there has been a significant change of circumstances based on the State's unwillingness or inability genuinely to carry out the investigation.

The State concerned or the Prosecutor may appeal to the Appeals Chamber against a ruling of the Pre-Trial Chamber. The appeal may be heard on an expedited basis.

68. Article 17, Rome Statute.

69. Alain Pellet, *Entry into Force and Amendment of the Statute in The Rome Statute of the International Criminal Court: A Commentary*, Antonio Cassese, Paola Gaeta, John RWD Jones (Eds), vol 1, 2002, p 153.

When the Prosecutor has deferred an investigation on the request of State concerned, he may request that such State periodically inform him of the progress of its investigations and any subsequent prosecutions. States Parties are to respond to such requests without undue delay.

On an exceptional basis, the Prosecutor may, pending a ruling by the Pre-Trial Chamber, or at any time when he has deferred an investigation, seek authority from the Pre-Trial Chamber to pursue necessary investigative steps for the purpose of preserving evidence where there is a unique opportunity to obtain important evidence or there is a significant risk that such evidence may not be subsequently available.

A State which has challenged a ruling of the Pre-Trial Chamber may challenge the admissibility of a case on the grounds of additional significant facts or significant change of circumstances.⁷⁰

In *Situation in the Islamic Republic of Afghanistan*,⁷¹ in an appeal by Prosecutor before Appeals Chamber against the judgment of Pre-Trial Chamber II for not authorising the investigation in Afghanistan, Afghanistan submitted that there was no need to authorise an investigation at that stage “in light of the investigations being undertaken by Afghanistan under its new laws and new criminal justice bodies and mechanisms put in place precisely to investigate the same crimes that could come before the ICC”. The Appeals Chamber stated that “the appropriate procedural mechanisms for consideration of such arguments by the Pre-trial Chamber (and potentially the Appeals Chamber) are provided by Article 18 of the Statute, which allows Afghanistan to request deferral of the Prosecutor’s investigation and, if necessary, allows for a preliminary ruling to be made regarding admissibility on the basis of arguments from the Prosecutor and Afghanistan”.⁷²

18.1.8 Challenges to the Jurisdiction of the Court

According to Article 19(1), the Court shall satisfy itself that it has jurisdiction in any case brought before it. The Court may, on its own motion, determine the admissibility of a case. Under Article 19(2), challenges to the admissibility of a case or to the jurisdiction of the Court may be made by:

- (i) an accused or a person for whom a warrant of arrest or a summons to appear has been issued under Article 58;
- (ii) a State which has jurisdiction over a case, on the ground that it is investigating or prosecuting the case or has investigated or prosecuted; or
- (iii) a State from which acceptance of jurisdiction is required under Article 12.

In *Situation in the Islamic Republic of Afghanistan*,⁷³ the Appeals Chamber observed that “in the event that the Prosecutor proceeds with a prosecution on a questionable jurisdictional basis, article 19(2) of the Statute provides that a challenge may be raised by an accused or person for whom a warrant of arrest or summons to appear has been issued, or a State with jurisdiction or from which acceptance of jurisdiction is required. The Court also has an obligation to satisfy itself that it has jurisdiction in any case brought before it pursuant to article 19(1) of the Statute”.

70. Article 18, Rome Statute.

71. The Appeals Chamber, 5 March 2020, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

72. The Appeals Chamber, 5 March 2020, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF, para 43 (last accessed in January, 2021).

73. The Appeals Chamber, 5 March 2020, para 78 available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

The admissibility of a case or the jurisdiction of the Court may be challenged only once by any person or State. The challenge is to take place prior to or at the commencement of the trial. In exceptional circumstances, the Court may grant leave for a challenge to be brought more than once or at a time later than the commencement of the trial.

Prior to the confirmation of the charges, challenges to the admissibility of a case or challenges to the jurisdiction of the Court are to be referred to the Pre-Trial Chamber. After confirmation of the charges, they are to be referred to the Trial Chamber. Decisions with respect to jurisdiction or admissibility may be appealed to the Appeals Chamber.

Where a challenge is made by a State, the Prosecutor shall suspend the investigation until such time as the Court makes a determination. Pending a ruling by the Court, the Prosecutor may seek authority from the Court:

- (i) to pursue necessary investigative steps for the purpose of preserving evidence where there is a unique opportunity to obtain important evidence or there is a significant risk that such evidence may not be subsequently available;
- (ii) To take a statement or testimony from a witness or complete the collection and examination of evidence which had begun prior to the making of the challenge; and
- (iii) In co-operation with the relevant States, to prevent the absconding of persons in respect of whom the Prosecutor has already requested a warrant of arrest under Article 58.⁷⁴

No person is to be tried by another court for a crime for which that person has already been convicted or acquitted by the Court. No person who has been tried by another court is to be tried by the Court with respect to the same conduct unless the proceedings in the other court:

- (a) were for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the Court; or
- (b) otherwise were not conducted independently or impartially in accordance with the norms of due process recognised by international law and were conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice.⁷⁵

18.2 Applicable Law

In prosecuting a person who is alleged to have committed a crime, the Court is to apply — (i) in the first place, this Statute, Elements of Crimes and its Rules of Procedure and Evidence; (ii) in the second place, where appropriate, applicable treaties and the principles and rules of international law, including the established principles of the international law of armed conflict; (iii) failing that, general principles of law derived by the Court from national laws of legal systems of the world including, as appropriate, the national laws of States that would normally exercise jurisdiction over the crime, provided that those principles are not inconsistent with this Statute and with international law and internationally recognised norms and standards. The Court may apply principles and rules of law as interpreted in its previous decisions.⁷⁶

74. Article 19, Rome Statute.

75. Article 20, Rome Statute.

76. Article 21, Rome Statute.

18.3 General Principles of Criminal Law

18.3.1 *Nullumcrimen sine lege* (no crime without law)

A person is not to be held criminally responsible unless his conduct constitutes a crime within the jurisdiction of the Court at the time it takes place. The definition of a crime is to be strictly construed and not be extended by analogy. The definition is to be interpreted in favour of the person being investigated, prosecuted or convicted in case of any ambiguity.⁷⁷ In *Vasiljevic* case,⁷⁸ a Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia observed:

[F]rom the perspective of the *nullumcrimen sine lege* principle, it would be wholly unacceptable for a Trial Chamber to convict an accused person on the basis of a prohibition which, taking into account the specificity of customary international law and allowing for the gradual clarification of the rules of criminal law is either insufficiently precise to determine conduct and distinguish the criminal from the permissible, or was not sufficiently accessible at the relevant time. A criminal conviction should indeed never be based upon a norm which an accused could not reasonably have been aware of at the time of his acts, and this norm must make it sufficiently clear what act or omission could engage his criminal responsibility.⁷⁹

18.3.2 *Nullapoena sine lege* (no penalty without a law)

The principle *nullapoena sine lege* requires that there are defined penalties attached to criminal prohibitions. In customary law, the punishment for international crimes may include the death penalty though many States have undertaken international obligations not to impose such a penalty, or may not permit that sentence in their domestic law.⁸⁰ The Rome Statute provides that a person convicted by the Court may be punished only in accordance with this Statute.⁸¹

18.3.3 Non-retroactivity *ratione personae* (by reason of the person concerned)

No person is to be held criminally responsible under this Statute for conduct prior to the entry into force of the Statute. Where there is a change in the law applicable to a given case prior to a final judgment, the law applicable shall be one which is more favourable to the person who is being investigated, prosecuted or convicted.⁸²

18.3.4 Individual Criminal Responsibility

The Court is to have jurisdiction over natural persons. A person who commits a crime within the jurisdiction of the Court is to be held individually responsible and liable for punishment in accordance with the Statute. A person is to be held criminally responsible and liable for punishment for a crime within the jurisdiction of the Court if that person:

- (1) commits such a crime, whether as an individual, jointly with another or through another person, regardless of whether that other person is criminally responsible;
- (2) orders, solicits or induces the commission of such a crime which in fact occurs or is attempted;

77. Article 22, Rome Statute.

78. *Prosecutor v Vasiljević*, ICTY T. Ch. I 29 November 2002.

79. *Prosecutor v Vasiljević*, ICTY T. Ch. I 29 November 2002, para 193.

80. Robert Cryer, Hakan Friman, Darryl Robinson and Elizabeth Wilmshurst, *An Introduction to International Criminal Law and Procedure*, 2010, p 20.

81. Article 23, Rome Statute.

82. Article 24, Rome Statute.

- (3) for the purpose of facilitating the commission of such a crime, aids, abets or otherwise assists in its commission or its attempted commission, including providing the means for its commission;
- (4) in any other way contributes to the commission or attempted commission of such a crime by a group of persons acting with a common purpose. Such contribution is to be intentional and shall either:
 - (i) be made with the aim of furthering the criminal activity or criminal purpose of the group, where such activity or purpose involves the commission of a crime within the jurisdiction of the Court; or
 - (ii) be made in the knowledge of the intention of the group to commit the crime;
- (5) in respect of the crime of genocide, directly and publicly incites others to commit genocide;
- (6) attempts to commit such a crime by taking action that commences its execution by means of a substantial step, but the crime does not occur because of circumstances independent of the person's intentions. However, a person who abandons the effort to commit the crime or otherwise prevents the completion of the crime is not to be held liable for punishment for the attempt to commit that crime if that person completely and voluntarily gave up the criminal purpose.

In respect of the crime of aggression, the aforesaid provisions shall apply only to persons in a position effectively to exercise control over or to direct the political or military action of a State. The responsibility of States under international law is not to be affected by any provision of the Statute which is related to individual criminal responsibility.⁸³ In *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*,⁸⁴ the Court observed that “duality of responsibility continues to be a constant feature of international law”. Thus, individual criminal responsibility and State responsibility may go side by side.

18.3.5 Exclusion of Jurisdiction Over Persons Under 18

The Court is not to have jurisdiction over any person who was under the age of 18 at the time of the alleged commission of a crime.⁸⁵

18.3.6 Irrelevance of Official Capacity

The Statute is applicable equally to all persons without any distinction based on official capacity. In particular, official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility. Further, the official capacity is not to constitute a ground for reduction of sentence.

The immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.⁸⁶ In *Arrest Warrant* case,⁸⁷ the ICJ stated:

83. Article 25, Rome Statute.

84. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v Serbia and Montenegro)*, Judgment, (2007) ICJ Rep 43, para 173.

85. Article 26, Rome Statute.

86. Article 27, Roman Statute.

87. *Arrest Warrant of 11 April 2000 (Democratic Republic of Congo v Belgium)*, (2002) ICJ Rep 3, para 58.

It has been unable to deduce ... that there exists under customary international law any form of exception to the rule according immunity from criminal jurisdiction and inviolability to incumbent Ministers for Foreign Affairs, where they are suspected of having committed war crimes or crimes against humanity.

It is, however, noteworthy that State officials cannot be held responsible for acts not attributable to them personally. In *Prosecutor v Blaškić*,⁸⁸ the Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia observed:

[State] officials are mere instruments of a State and their official action can only be attributed to the State. They cannot be the subject of sanctions or penalties for conduct that is not private but undertaken on behalf of the State. In other words, State officials cannot suffer the consequences of wrongful acts which are not attributable to them personally but to the State on whose behalf they act: they enjoy so-called “functional immunity”. This is a well-established rule of customary international law going back to the eighteenth and nineteenth centuries, restated many times since.

18.3.7 Responsibility of Commanders and Other Superiors

In addition to other grounds of criminal responsibility, a military commander or person effectively acting as a military commander is to be held criminally responsible for crimes committed by forces under his or her effective command and control, or effective authority and control as the case may be, as a result of his or her failure to exercise control properly over such forces, where — (i) that military commander or person either knew or, owing to the circumstances at the time, should have known that the forces were committing or about to commit such crimes; and (ii) that military commander or person failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.

With respect to superior and subordinate relationships not described above, a superior is to be held criminally responsible for crimes committed by subordinates under his or her effective authority and control, as a result of his or her failure to exercise control properly over such subordinates, where — (i) the superior either knew, or consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes; (ii) the crimes concerned activities that were within the effective responsibility and control of the superior; and (iii) the superior failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.⁸⁹

In *Blaskić* case,⁹⁰ the Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia stated that “if a commander has exercised due diligence in the fulfillment of his duties yet lacks knowledge that crimes are about to be or have been committed, such lack of knowledge cannot be held against him. However, taking into account his particular position of command and the circumstances prevailing at the time, such ignorance cannot be a defence where the absence of knowledge is the result of negligence in the discharge of his duties: this commander had reason to know within the meaning of the Statute”. In *Halilović*,⁹¹ the Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia stated that:

The commander is responsible for the failure to perform an act required by international law. This omission is culpable because international law imposes an affirmative duty on

88. *Prosecutor v Blaškić (Objection to the Issue of Subpoena duces Tecum)*, (1997) IT-95-14-AR108 : (1997) 110 ILR 607, p 707, para 38.

89. Article 28, Roman Statute.

90. *Prosecutor v Tihomir Blaškić (Blaskić case)*, ICTY T. Ch. I 3 March 2000, para 332.

91. *Prosecutor v Halilović (Halilović case)*, ICTY T. Ch. 16 November 2005, para 54.

superiors to prevent and punish crimes committed by their subordinates. Thus ‘for the acts of his subordinates’ ... does not mean that the commander shares the same responsibility as the subordinates who committed the crimes, but rather that because of the crimes committed by his subordinates, the commander should bear responsibility for his failure to act. The imposition of responsibility upon a commander for breach of his duty is to be weighed against the crimes of his subordinates; a commander is responsible not as though he had committed the crime himself, but his responsibility is considered in proportion to the gravity of the offences committed.

18.3.8 Non-applicability of Statute of Limitations

The crimes within the jurisdiction of the Court are not to be subject to any statute of limitations.⁹²

18.3.9 Mental Element

Normally, a person is to be held criminally responsible and liable for punishment for a crime only if the material elements are committed with intent and knowledge.⁹³ A person has intent when— (a) in relation to conduct, that person means to engage in the conduct; (b) in relation to a consequence, that person means to cause that consequence or is aware that it will occur in the ordinary course of events.⁹⁴

18.4 Defences/Grounds for Excluding Criminal Responsibility

In addition to other grounds for excluding criminal responsibility provided for in this Statute, a person is not to be held criminally responsible in the circumstances discussed below.

18.4.1 Mental Incapacity

If, at the time of that person’s conduct, the person suffers from a mental disease or defect that destroys that person’s capacity to appreciate the unlawfulness or nature of his or her conduct, or capacity to control his or her conduct to conform to the requirements of law.

18.4.2 Intoxication

If, at the time of that person’s conduct, the person is in a state of intoxication that destroys that person’s capacity to appreciate the unlawfulness or nature of his or her conduct, or capacity to control his or her conduct to conform to the requirements of law, unless the person has become voluntarily intoxicated under such circumstances that the person knew, or disregarded the risk, that, as a result of the intoxication, he or she was likely to engage in conduct constituting a crime.

18.4.3 Self-defence

If, at the time of that person’s conduct, the person acts reasonably to defend himself or herself or another person or, in the case of war crimes, property which is essential for the survival of the person or another person or property which is essential for accomplishing a military mission, against an imminent and unlawful use of force in a manner proportionate to the

92. Article 29, Roman Statute.

93. “Knowledge” means awareness that a circumstance exists or a consequence will occur in the ordinary course of events.

94. Article 30, Roman Statute.

degree of danger to the person or the other person or property protected. The fact that the person was involved in a defensive operation conducted by forces shall not in itself constitute a ground for excluding criminal responsibility. In *Kordic and Cerkez*,⁹⁵ the Trial Chamber of the International Criminal Tribunal for the Former Yugoslavia accepted that customary law recognised self-defence.

18.4.4 Duress and Necessity

If, at the time of that person's conduct, the conduct which is alleged to constitute a crime has been caused by duress resulting from a threat of imminent death or of continuing or imminent serious bodily harm against that person or another person, and the person acts necessarily and reasonably to avoid this threat, provided that the person does not intend to cause a greater harm than the one sought to be avoided. Such a threat may either be made by other persons; or constituted by other circumstances beyond that person's control.

A person acting under duress is someone who is compelled to commit the crime by a threat to his or her life, or to that of another person. However, the defendant is deemed to have no viable moral choice in the matter. In *Prosecutor v Erdemovic*,⁹⁶ the Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia determined that duress was not admissible as a defence to crimes against humanity. The consequence of the provision in the Rome Statute is to set aside the precedent established by the Yugoslav Tribunal and to reinstate the defence of duress.⁹⁷

In addition to the aforesaid, the Court may also, at trial, consider a ground for excluding criminal responsibility where such a ground is derived from applicable law.⁹⁸

18.4.5 Mistake of Fact or Mistake of Law

A mistake of fact is a ground for excluding criminal responsibility only if it negates the mental element required by the crime. A mistake of law as to whether a particular type of conduct is a crime within the jurisdiction of the Court is not a ground for excluding criminal responsibility. A mistake of law may, however, be a ground for excluding criminal responsibility if it negates the mental element required by such a crime, or as provided for in Article 33.⁹⁹

18.4.6 Superior Orders and Prescription of Law

According to Article 33, the fact that a crime has been committed by a person pursuant to an order of a Government or of a superior, whether military or civilian, shall not relieve that person of criminal responsibility unless:

- (a) the person was under a legal obligation to obey orders of the Government or the superior in question;
- (b) the person did not know that the order was unlawful; and
- (c) the order was not manifestly unlawful.

Thus, a person can escape liability for a crime which he committed in pursuance of an order of the Government or of a superior in three circumstances only— (i) that he was under a legal

95. *Kordic and Cerkez*, ICTY T. Ch. 26 February 2001, paras 448–52.

96. *Prosecutor v Erdemovic*, (Case No. IT-96-22-A), Sentencing Appeal, 7 October 1997, (1998) 111 ILR 298.

97. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 113.

98. Article 31, Roman Statute.

99. Article 32, Roman Statute.

obligation to obey such an order; (ii) that he did not know that the order was unlawful; and (iii) that the order was not manifestly unlawful. According to Article 33, the orders to commit genocide or crimes against humanity are manifestly unlawful.

18.5 Composition and Administration of the Court

18.5.1 Organs of the Court

The Court is composed of the following organs:

- (1) The Presidency;
- (2) An Appeals Division, a Trial Division and a Pre-Trial Division;
- (3) The Office of the Prosecutor; and
- (4) The Registry.¹⁰⁰

Originally, the Court is to have 18 judges. The number of judges may be increased. The judges are to be chosen from among persons of high moral character, impartiality and integrity who possess the qualifications required in their respective States for appointment to the highest judicial offices. They should — (i) have established competence in criminal law and procedure, and the necessary relevant experience, whether as judge, prosecutor, advocate or in other similar capacity, in criminal proceedings; or (ii) have established competence in relevant areas of international law such as international humanitarian law and the law of human rights, and extensive experience in a professional legal capacity which is of relevance to the judicial work of the Court.¹⁰¹

18.5.1.1 The Presidency

The President, together with the First and Second Vice-Presidents, constitutes the Presidency. The President and the First and Second Vice-Presidents are elected by an absolute majority of the judges. They serve for a term of three years or until the end of their respective terms of office as judges, whichever expires earlier. They are eligible for re-election once.

The First Vice-President acts in place of the President when he is unavailable or disqualified. The Second Vice-President acts in place of the President when both the President and the First Vice-President are unavailable or disqualified.

The Presidency is responsible for the proper administration of the Court, with the exception of the Office of the Prosecutor. It is also responsible for the other functions conferred upon it in accordance with this Statute. In discharging its responsibility, the Presidency shall coordinate with and seek the concurrence of the Prosecutor on all matters of mutual concern.¹⁰²

18.5.1.2 Chambers

The Court is organised into the divisions. The Appeals Division is composed of the President and four other judges. The Trial Division and Pre-Trial Division are composed of not less than six judges each. The judicial functions of the Court shall be carried out in each division by Chambers.¹⁰³

The judges are to be independent in the performance of their functions. They are not to engage in any activity which is likely to interfere with their judicial functions or to affect

100. Article 34, Roman Statute.

101. Article 36, Roman Statute.

102. Article 38, Roman Statute.

103. Article 39, Roman Statute.

confidence in their independence. They are required to serve on a full-time basis at the seat of the Court and not to engage in any other occupation of a professional nature.¹⁰⁴

18.5.1.3 Prosecutor

The Office of the Prosecutor acts independently as a separate organ of the Court. It is responsible for receiving referrals and any substantiated information on crimes within the jurisdiction of the Court, for examining them and for conducting investigations and prosecutions before the Court. A member of the Office is not to seek or act on instructions from any external source.

The Office is headed by the Prosecutor who has full authority over the management and administration of the Office, including the staff, facilities and other resources thereof. The Prosecutor is assisted by one or more Deputy Prosecutors, who are entitled to carry out any of the acts required of the Prosecutor. The Prosecutor and the Deputy Prosecutors are persons of high moral character. They are highly competent in and have extensive practical experience in the prosecution or trial of criminal cases. Neither the Prosecutor nor a Deputy Prosecutor is to engage in any activity which is likely to interfere with his or her prosecutorial functions or to affect confidence in his or her independence. They are not to engage in any other occupation of a professional nature.¹⁰⁵

18.5.1.4 The Registry

The Registry is to be responsible for the non-judicial aspects of the administration and servicing of the Court. The Registry is headed by the Registrar, who is the principal administrative officer of the Court. The Registrar exercises his or her functions under the authority of the President of the Court. The Registrar and the Deputy Registrar are persons of high moral character. The Registrar holds office for a term of five years and is eligible for re-election once.

The Registrar is to set up a Victims and Witnesses Unit within the Registry. This Unit is to provide, in consultation with the Office of the Prosecutor, protective measures and security arrangements, counselling and other appropriate assistance for witnesses, victims who appear before the Court, and others who are at risk on account of testimony given by such witnesses. The Unit is to include staff with expertise in trauma, including trauma related to crimes of sexual violence.¹⁰⁶

18.5.2 Removal from the Office

A judge, the Prosecutor, a Deputy Prosecutor, the Registrar or the Deputy Registrar is to be removed from office where that person - is found to have committed serious misconduct or a serious breach of his or her duties under this Statute. Such a person can also be removed from office if he or she is found unable to exercise the functions required by this Statute.¹⁰⁷

18.5.3 Privileges and Immunities

The Court is to enjoy in the territory of each State Party such privileges and immunities as are necessary for the fulfillment of its purposes. While being engaged in the business of the Court, the judges, the Prosecutor, the Deputy Prosecutors and the Registrar are to enjoy the same privileges and immunities as are accorded to heads of diplomatic missions. Even after the

104. Article 40, Roman Statute.

105. Article 42, Roman Statute.

106. Article 43, Roman Statute.

107. Article 46, Roman Statute.

expiry of their terms of office, they will continue to be accorded immunity from legal process of every kind in respect of words spoken or written and acts performed by them in their official capacity.

The Deputy Registrar, the staff of the Office of the Prosecutor and the staff of the Registry are to enjoy the privileges and immunities and facilities necessary for the performance of their functions, in accordance with the agreement on the privileges and immunities of the Court.

Counsel, experts, witnesses or any other person required to be present at the seat of the Court is to be accorded such treatment as is necessary for the proper functioning of the Court, in accordance with the agreement on the privileges and immunities of the Court.¹⁰⁸

18.6 Investigation and Prosecution

18.6.1 Initiation of an Investigation

Article 53(1) provides that after evaluating the information made available to him, the Prosecutor is to initiate an investigation unless he determines that there is no reasonable basis to proceed. In deciding whether to initiate an investigation, the Prosecutor is to consider the following:

- (a) whether the information available to him provides a reasonable basis to believe that a crime has been committed or is being committed;
- (b) whether the case is or would be admissible; and
- (c) whether taking into account the gravity of the crime and the interests of victims, there are nonetheless substantial reasons to believe that an investigation would not serve the interests of justice. If he determines that there is no reasonable basis to proceed he shall inform the Pre-Trial Chamber.

If, upon investigation, the Prosecutor concludes that there is not a sufficient basis for a prosecution because — (a) there is not a sufficient legal or factual basis to seek a warrant or summons; (b) the case is inadmissible; or (c) a prosecution is not in the interests of justice, taking into account all the circumstances, including the gravity of the crime, the interests of victims and the age or infirmity of the alleged perpetrator, and his or her role in the alleged crime; he shall inform the Pre-Trial Chamber and the State making a referral or the Security Council of his or her conclusion and the reasons for the conclusion.

According to Article 53(3), at the request of the State making a referral or the Security Council, the Pre-Trial Chamber may review a decision of the Prosecutor not to proceed and may request the Prosecutor to reconsider that decision. In addition, the Pre-Trial Chamber may, on its own initiative, review a decision of the Prosecutor not to proceed. In such a case, the decision of the Prosecutor shall be effective only if confirmed by the Pre-Trial Chamber. The Prosecutor may, at any time, reconsider a decision whether to initiate an investigation or prosecution based on new facts or information.

In *Situation in the Islamic Republic of Afghanistan*,¹⁰⁹ the Appeals Chamber observed that if a situation was referred by a State Party or the Security Council, then Article 53(1) placed an obligation on the Prosecutor to open an investigation unless he determined that there was no reasonable basis to proceed. The Prosecutor was obliged to evaluate the seriousness of the information received and might seek additional information for this purpose. If the Prosecutor decided not to initiate an investigation under Article 53(1), his decision was subject

108. Article 48, Roman Statute.

109. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

to certain notification requirements. Article 53(3) of the Statute envisaged judicial control over the Prosecutor's decision not to investigate and aimed at ensuring that the Prosecutor complied with his duty to investigate referred situations.¹¹⁰

18.6.2 Duties and Powers of the Prosecutor with Respect to Investigations

In order to establish the truth, the Prosecutor is to extend the investigation to cover all facts and evidence relevant to an assessment of whether there is criminal responsibility. In doing so, he is to investigate incriminating and exonerating circumstances equally.

The Prosecutor is to take appropriate measures to ensure the effective investigation and prosecution of crimes. He has to respect the interests and personal circumstances of victims and witnesses, including age, gender, and health. He is also to take into account the nature of the crime, in particular where it involves sexual violence, gender violence or violence against children. He has to fully respect the rights of persons arising under the Statute.

In *Situation in the Islamic Republic of Afghanistan*,¹¹¹ the Appeals Chamber observed that if an investigation was authorised by the Pre-trial Chamber, the full range of investigative powers under the Statute were available to the Prosecutor. However, he was also subject to certain duties that affected the scope of his investigation. Therefore, "in order to obtain a full picture of the relevant facts, their potential legal characterisation as specific crimes under the jurisdiction of the Court, and the responsibility of the various factors that may be involved, the Prosecutor must carry out an investigation into the situation as a whole".¹¹²

The Prosecutor may conduct investigations on the territory of a State — (a) in accordance with the provisions of Part 9 of the Statute;¹¹³ or (b) as authorised by the Pre-Trial Chamber.

The Prosecutor may (a) collect and examine evidence; (b) request the presence of and question persons being investigated, victims and witnesses; (c) seek the co-operation of any State or inter-governmental organisation or arrangement in accordance with its respective competence and/or mandate; (d) enter into such arrangements or agreements, not inconsistent with this Statute, as may be necessary to facilitate the co-operation of a State, intergovernmental organisation or person; (e) agree not to disclose, at any stage of the proceedings, documents or information that the Prosecutor obtains on the condition of confidentiality and solely for the purpose of generating new evidence, unless the provider of the information consents; and (f) take necessary measures, or request that necessary measures be taken, to ensure the confidentiality of information, the protection of any person or the preservation of evidence.¹¹⁴

18.6.3 Rights of Persons During an Investigation

During an investigation, a person has following rights:

- (a) he is not be compelled to incriminate himself or herself or to confess guilt;
- (b) he is not be subjected to any form of coercion, duress or threat, to torture or to any other form of cruel, inhuman or degrading treatment or punishment;

110. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020, paras 28–29, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

111. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020 available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021).

112. *Situation in the Islamic Republic of Afghanistan*, The Appeals Chamber, 5 March 2020, para 60, available at https://www.icc-cpi.int/CourtRecords/CR2020_00828.PDF (last accessed in January, 2021) para 60.

113. Part 9 of the Statute is on "International Co-operation and Judicial Assistance".

114. Article 54, Roman Statute.

- (c) he is to have the assistance of a competent interpreter if questioned in a language which he does not understand; and
- (d) he is not to be subjected to arbitrary arrest or detention, and is not to be deprived of his or her liberty except in accordance with established procedure.

Where there are grounds to believe that a person has committed a crime and he is about to be questioned either by the Prosecutor, or by national authorities pursuant to a request made under Part 9, that person shall also have certain rights of which he shall be informed prior to being questioned. Such a person has the right —to be informed, prior to being questioned, that there are grounds to believe that he has committed a crime;

- (a) to remain silent, without such silence being a consideration in the determination of guilt or innocence;
- (b) to have legal assistance; and
- (c) to be questioned in the presence of counsel unless the person has voluntarily waived his or her right to counsel.¹¹⁵

18.6.4 Issuance of Arrest Warrant or Summons by the Pre-Trial Chamber

On the application of the Prosecutor at any time after the initiation of an investigation, the Pre-Trial Chamber shall issue arrest warrant of a person if it is satisfied that — (a) there are reasonable grounds to believe that the person has committed a crime; and (b) the arrest of the person appears necessary — (i) to ensure the person's appearance at trial, (ii) to ensure that the person does not obstruct or endanger the investigation or the court proceedings, or (iii) to prevent the person from continuing with the commission of that crime or a related crime which arises out of the same circumstances.

The application of the Prosecutor is to contain (a) the name of the person and any other relevant identifying information; (b) a specific reference to the crimes which the person is alleged to have committed; (c) a concise statement of the facts which are alleged to constitute those crimes; (d) a summary of the evidence and any other information which establish reasonable grounds to believe that the person committed those crimes; and (e) the reason why the Prosecutor believes that the arrest of the person is necessary.

The arrest warrant is to contain — (a) the name of the person and any other relevant identifying information; (b) a specific reference to the crimes for which the person's arrest is sought; and (c) a concise statement of the facts which are alleged to constitute those crimes.

The arrest warrant is to remain in effect until otherwise ordered by the Court. On the basis of the warrant, the Court may request the provisional arrest or the arrest and surrender of the person. On the request of Prosecutor, the Pre-Trial Chamber, if satisfied, shall amend the warrant of arrest by modifying or adding to the crimes specified therein.

On the request of Prosecutor, if the Pre-Trial Chamber is satisfied that there are reasonable grounds to believe that the person committed the crime alleged and that a summons is sufficient to ensure the person's appearance, it shall issue the summons for the person to appear. The summons shall contain — (a) the name of the person and any other relevant identifying information; (b) the specified date on which the person is to appear; (c) a specific reference to the crimes which the person is alleged to have committed; and (d) a concise statement of the facts which are alleged to constitute the crime. The summons shall be served on the person.¹¹⁶

115. Article 55, Roman Statute.

116. Article 58, Roman Statute.

18.6.5 Arrest Proceedings in the Custodial State

A State Party which has received a request for provisional arrest or for arrest and surrender shall immediately take steps to arrest the person in question. The arrested person shall be brought promptly before the competent judicial authority in the custodial State which shall determine, in accordance with the law of that State, that — (a) the warrant applies to that person; (b) the person has been arrested in accordance with the proper process; and (c) the person's rights have been respected.

The person arrested shall have the right to apply to the competent authority in the custodial State for interim release pending surrender. The competent authority shall consider whether given the gravity of the alleged crimes, there are urgent and exceptional circumstances to justify interim release and whether necessary safeguards exist to ensure that the custodial State can fulfill its duty to surrender the person to the Court. However, the competent authority of the custodial State cannot raise any objection on the validity of the arrest warrant.

The Pre-Trial Chamber is to be notified of any request for interim release, which shall make recommendations to the competent authority in the custodial State. The competent authority in the custodial State is to give full consideration to such recommendations, including any recommendations on measures to prevent the escape of the person, before rendering its decision.

If the person is granted interim release, the Pre-Trial Chamber may request periodic reports on the status of the interim release. Once ordered to be surrendered by the custodial State, the person is to be delivered to the Court as soon as possible.¹¹⁷

18.6.6 Initial Proceedings Before the Court

Upon the surrender of the person to the Court, or the person's appearance before the Court voluntarily or pursuant to a summons, the Pre-Trial Chamber is to satisfy itself that the person has been informed of the crimes which he is alleged to have committed, and of his rights, including the right to apply for interim release pending trial.

A person may apply for interim release pending trial. The Pre-Trial Chamber shall decide whether that person should be released or detained. The Pre-Trial Chamber is to periodically review its ruling on the release or detention of the person. It may do so at any time on the request of the Prosecutor or the person concerned. Upon such review, it may modify its ruling as to detention, release or conditions of release, if it is satisfied that changed circumstances so require.

The Pre-Trial Chamber is to ensure that a person is not detained for an unreasonable period prior to trial due to inexcusable delay by the Prosecutor. If such delay occurs, the Court shall consider releasing the person, with or without conditions. If necessary, the Pre-Trial Chamber may issue arrest warrant to secure the presence of a person who has been released.¹¹⁸

18.6.7 Confirmation of the Charges Before Trial

Within a reasonable time after the person's surrender or voluntary appearance before the Court, the Pre-Trial Chamber is to hold a hearing to confirm the charges on which the Prosecutor intends to seek trial. The hearing is to be held in the presence of the Prosecutor and the person charged, as well as his counsel.

117. Article 59, Roman Statute.

118. Article 60, Roman Statute.

Upon request of the Prosecutor or on its own motion, the Pre-Trial Chamber may hold a hearing in the absence of the person charged to confirm the charges when the person has: (a) waived his or her right to be present; or (b) fled or cannot be found and all reasonable steps have been taken to secure his or her appearance before the Court. In that case, the person is to be represented by counsel where the Pre-Trial Chamber determines that it is in the interests of justice.

Within a reasonable time before the hearing, the person is to be provided with a copy of the document containing the charges on which the Prosecutor intends to bring the person to trial. He is also to be informed of the evidence on which the Prosecutor intends to rely at the hearing. The Pre-Trial Chamber may issue orders regarding the disclosure of information for the purposes of the hearing.

Before the hearing, the Prosecutor may continue the investigation and may amend or withdraw any charges. The person is to be given reasonable notice before the hearing of any amendment to or withdrawal of charges. In case of withdrawal of charges, the Prosecutor is to notify the Pre-Trial Chamber of the reasons for the withdrawal.

At the hearing, the Prosecutor is to support each charge with sufficient evidence. The Prosecutor may rely on documentary or summary evidence and need not call the witnesses expected to testify at the trial.

At the hearing, the person may object to the charges; challenge the evidence presented by the Prosecutor; and present evidence. On the basis of the hearing, the Pre-Trial Chamber is to determine whether there is sufficient evidence to establish substantial grounds to believe that the person committed each of the crimes charged. Based on its determination, the Pre-Trial Chamber shall either confirm those charges and commit the person to a Trial Chamber for trial; or decline to confirm those charges on the basis of insufficient evidence; or adjourn the hearing and request the Prosecutor to provide further evidence or conduct further investigation with respect to a particular charge; or amend a charge because the evidence submitted appears to establish a different crime.

Where the Pre-Trial Chamber declines to confirm a charge, the Prosecutor is not to be precluded from subsequently requesting its confirmation if the request is supported by additional evidence.

After the charges are confirmed and before the trial has begun, the Prosecutor may, with the permission of the Pre-Trial Chamber and after notice to the accused, amend the charges. If the Prosecutor seeks to add additional charges or to substitute more serious charges, a hearing to confirm those charges is to be held. After commencement of the trial, the Prosecutor may, with the permission of the Trial Chamber, withdraw the charges.

Any warrant previously issued shall cease to have effect with respect to any charges which have not been confirmed by the Pre-Trial Chamber or which have been withdrawn by the Prosecutor. Once the charges have been confirmed, the Presidency shall constitute a Trial Chamber which shall be responsible for the conduct of subsequent proceedings and may exercise any function of the Pre-Trial Chamber that is relevant and capable of application in those proceedings.¹¹⁹

18.7 The Trial

The place of the trial is to be the seat of the Court, unless decided otherwise.¹²⁰ Article 63 States that the accused is to be present during the trial. Presence at trial should imply more than

119. Article 61, Roman Statute.

120. Article 62, Roman Statute.

mere physical presence. The accused should be mentally fit to stand the trial. The Statute is silent with respect to cases of an accused who is unfit to stand trial because of mental disorder. This lacuna, however, is corrected in the Rules, which direct the Trial Chamber to adjourn the proceedings when it “is satisfied that the accused is unfit to stand trial”. An accused who is unfit to stand trial is not “present” within the meaning of Article 63 and therefore the hearing cannot proceed.¹²¹

In the *Erdemovic’s* case, a panel of experts concluded that the accused was suffering from post-traumatic stress disorder and that his mental condition at the time did not permit his trial before the Trial Chamber.¹²² The Trial Chamber postponed the pre-sentencing hearing and ordered a second evaluation of the appellant to be submitted in three months’ time.¹²³ A subsequent report concluded that Erdemovic’s condition had improved such that he was “sufficiently able to stand trial”.¹²⁴

If the accused continues to disrupt the trial, the Trial Chamber may remove the accused and shall make provision for him to observe the trial and instruct counsel from outside the courtroom, through the use of communications technology, if required. Such measures are to be taken only in exceptional circumstances after other reasonable alternatives have proved inadequate, and only for such duration as is strictly required.

18.7.1 Functions and Powers of the Trial Chamber

The Trial Chamber shall ensure that a trial is fair and expeditious and is conducted with full respect for the rights of the accused and due regard for the protection of victims and witnesses.

In performing its functions prior to trial or during the course of a trial, the Trial Chamber may, as necessary — (a) exercise any functions of the Pre-Trial Chamber; (b) require the attendance and testimony of witnesses and production of documents and other evidence; (c) provide for the protection of confidential information; (d) order the production of evidence in addition to that already collected prior to the trial or presented during the trial by the parties; (e) provide for the protection of the accused, witnesses and victims; and (f) rule on any other relevant matters.

Normally the trial is to be held in public. However, certain proceedings may be in held in closed session to protect confidential or sensitive information. At the commencement of the trial, the Trial Chamber shall satisfy itself that the accused understands the nature of the charges. It shall afford him or her the opportunity to make an admission of guilt or to plead not guilty. At the trial, the presiding judge may give directions for the conduct of proceedings, including to ensure that they are conducted in a fair and impartial manner.¹²⁵

18.7.2 Proceedings on an Admission of Guilt

Where the accused makes an admission of guilt, the Trial Chamber is to determine whether — (a) the accused understands the nature and consequences of the admission of guilt; (b) the admission is voluntarily made by the accused after sufficient consultation with defence counsel; and (c) the admission of guilt is supported by the facts of the case that are contained in — (i) the charges brought by the Prosecutor and admitted by the accused; (ii) any materials presented by the Prosecutor which supplement the charges and which the accused accepts; and

121. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 146.

122. *Prosecutor v Erdemovic*, (Case No.IT-96-22-T), Sentencing Judgment, 29 November 1996, para 5.

123. *Prosecutor v Erdemovic*, (Case No.IT-96-22-A), Appeal Judgment, 7 October 1997, para 5.

124. *Prosecutor v Erdemovic*, (Case No.IT-96-22-A), Appeal Judgment, 7 October 1997, para 8.

125. Article 64, Rome Statute.

(iii) any other evidence, such as the testimony of witnesses, presented by the Prosecutor or the accused.

Where the Trial Chamber is satisfied that the aforesaid matters are established, it shall consider the admission of guilt and may convict the accused. Where the Trial Chamber is not satisfied that the aforesaid matters are established, it shall consider the admission of guilt as not having been made. In such a case, it shall order that the trial be continued and may remit the case to another Trial Chamber.

Where the Trial Chamber is of the opinion that a more complete presentation of the facts of the case is required in the interests of justice, in particular the interests of the victims, the Trial Chamber may — (a) request the Prosecutor to present additional evidence, including the testimony of witnesses; or (b) order that the trial be continued, in which case it shall consider the admission of guilt as not having been made and may remit the case to another Trial Chamber. Any discussions between the Prosecutor and the defence regarding modification of the charges, the admission of guilt or the penalty to be imposed is not binding on the Court.¹²⁶

18.7.3 Presumption of Innocence

Article 66 States that everyone is to be presumed innocent until proved guilty before the Court in accordance with the applicable law. The onus is on the Prosecutor to prove the guilt of the accused. In order to convict the accused, the Court must be convinced of the guilt of the accused beyond reasonable doubt.

Thus, everyone is to be presumed innocent until he or she has been proved guilty by the law. Article 66 imposes the burden upon the prosecution to prove guilt beyond a reasonable doubt. This general rule of criminal law is common to most legal systems of the world. In the *Celebici's* case, the Trial Chamber said that “the Prosecution is bound in law to prove the case alleged against the accused beyond a reasonable doubt. At the conclusion of the case the accused is entitled to the benefit of the doubt as to whether the offence has been proved”.¹²⁷

The UN Human Rights Committee has insisted that the presumption of innocence imposes a duty on all public authorities to “refrain from prejudging the outcome of a trial”.¹²⁸ In *Barberà, Messegue and Jabardo v Spain*,¹²⁹ the European Court of Human Rights observed that “it requires, *inter alia*, that when carrying out their duties, the members of a court should not start with the preconceived idea that the accused has committed the offence charged; the burden of proof is on the prosecution, and any doubt should benefit the accused. It also follows that it is for the prosecution to inform the accused of the case that will be made against him, so that he may prepare and present his defence accordingly, and to adduce evidence sufficient to convict him”.

18.7.4 Rights of the Accused

The rights of accused are provided in the domestic criminal law of every State. In *Prosecutor v Tadić*,¹³⁰ the Appeals Chamber of the International Criminal Tribunal for the Former Yugoslavia (ICTY) made the following significant observation:

126. Article 65, Rome Statute.

127. *Prosecutor v Delalic* (Case No.IT-96-21-T), Judgment, 16 November 1998, para 601.

128. See General Comment of Human Rights Committee on Article 14 of the International Covenant on Civil and Political Rights, “General Comment 13/21”, UN Doc. A/39/40, pp 143–47.

129. *Barberà, Messegue and Jabardo v Spain*, Series A No 146, 6 December 1988, para 77.

130. *Prosecutor v Tadić*, (Case No. IT-94-1-AR72), Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, 2 October 1995, (1997) 105 ILR 453 : (1996) 35 ILM 32, para 45.

For a Tribunal such as this one to be established according to the rule of law, it must be established in accordance with the proper international standards; it must provide all the guarantees of fairness, justice and even-handedness, in full conformity with internationally recognized human rights instruments.

According to Article 67, in the determination of any charge, the accused shall be entitled to a public hearing, a fair hearing conducted impartially, and to the following minimum guarantees, in full equality:

- (a) to be informed promptly and in detail of the nature, cause and content of the charge, in a language which the accused fully understands and speaks;
- (b) to have adequate time and facilities for the preparation of the defence and to communicate freely with his counsel;
- (c) to be tried without undue delay;
- (d) to be present at the trial, to conduct the defence in person or through legal assistance of the accused's choosing, to be informed, if the accused does not have legal assistance, of this right and to have legal assistance assigned by the Court in any case where the interests of justice so require, and without payment if the accused lacks sufficient means to pay for it;
- (e) to examine, or have examined, the witnesses against him and to obtain the attendance and examination of witnesses on his behalf. The accused shall also be entitled to raise defences and to present other admissible evidence;
- (f) to have, free of any cost, the assistance of a competent interpreter and such translations as are necessary to meet the requirements of fairness, wherever required;
- (g) not to be compelled to testify or to confess guilt and to remain silent, without such silence being a consideration in the determination of guilt or innocence;
- (h) to make an unsworn oral or written statement in his or her defence; and
- (i) not to have imposed on him or her any reversal of the burden of proof or any onus of rebuttal.¹³¹

18.7.5 Victims and Witnesses

The Court is to take appropriate measures to protect the safety, physical and psychological well-being, dignity and privacy of victims¹³² and witnesses. In so doing, the Court is to have regard to all relevant factors, including age, gender, health, and the nature of the crime, in particular, but not limited to, where the crime involves sexual or gender violence or violence against children. The Prosecutor is to take these measures particularly during the investigation and prosecution of such crimes. These measures are not to be prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial.

In order to protect victims and witnesses or an accused, the Chambers of the Court may conduct any part of the proceedings in camera or allow the presentation of evidence by electronic or other special means. In particular, such measures are to be implemented in the case of a victim of sexual violence or a child who is a victim or a witness.

131. Article 67 of the Rome Statute is modelled on Article 14(3) of the International Covenant on Civil and Political Rights (ICCPR).

132. A victim can be said to be a person who has suffered "harm". "Harm" in this context denotes hurt, injury and damage. It covers material, physical and psychological (or emotional) harm, but only insofar as the harm is suffered personally by the victim ("personal harm"). See *Lubanga Dyilo*, ICC A. Ch. 11 July 2008, paras 31–32.

Where the personal interests of the victims are affected, the Court shall permit their views and concerns to be presented and considered at appropriate stages of the proceedings in a manner which is not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial.

The Victims and Witnesses Unit may advise the Prosecutor and the Court on appropriate protective measures, security arrangements, counselling and assistance. Where the disclosure of evidence or information may lead to the grave endangerment of the security of a witness or his or her family, the Prosecutor may, for the purposes of any proceedings conducted prior to the commencement of the trial, submit only a summary thereof. Such measures are to be exercised in a manner which is not prejudicial to or inconsistent with the rights of the accused and a fair and impartial trial.¹³³

18.7.6 Evidence

Ordinarily, the testimony of a witness at trial is to be given in person. The Court may also permit the giving of oral or recorded testimony of a witness by means of video or audio technology, as well as the introduction of documents or written transcripts.

Evidence obtained by means of a violation of this Statute or internationally recognised human rights are not to be admissible if — (a) the violation casts substantial doubt on the reliability of the evidence; or (b) the admission of the evidence would be antithetical to and would seriously damage the integrity of the proceedings.¹³⁴

18.7.7 Decision of the Trial Chamber

The Trial Chamber's decision is to be based on its evaluation of the evidence and the entire proceedings. The decision is not to exceed the facts and circumstances described in the charges and any amendments to the charges. The Court may base its decision only on evidence submitted and discussed before it at the trial. The judges shall attempt to achieve unanimity in their decision, failing which the decision shall be taken by a majority of the judges. The deliberation of the Trial Chamber is to remain secret.

The Court may make an order directly against a convicted person specifying appropriate reparations to victims, including restitution, compensation and rehabilitation. Where appropriate, the Court may order that the award for reparations be made through the Trust Fund.¹³⁵

18.7.8 Sentencing

In the event of a conviction, the Trial Chamber is to consider the appropriate sentence to be imposed and shall take into account the evidence presented and submissions made during the trial that are relevant to the sentence. Before the completion of the trial, the Trial Chamber may on its own motion and shall, at the request of the Prosecutor or the accused, hold a further hearing to hear any additional evidence or submissions relevant to the sentence. The sentence is to be pronounced in public and, wherever possible, in the presence of the accused.¹³⁶

133. Article 68, Rome Statute.

134. Article 69, Rome Statute.

135. Articles 74–75, Rome Statute.

136. Article 76, Rome Statute.

18.8 Penalties

Where a person has been convicted, the Court may award imprisonment for a specified number of years, which may not exceed a maximum of 30 years; or life imprisonment when justified by the extreme gravity of the crime and the individual circumstances of the convicted person. In addition to imprisonment, the Court may also order fine; and a forfeiture of proceeds, property and assets derived directly or indirectly from that crime, without prejudice to the rights of bona fide third parties. In determining the sentence, the Court shall take into account such factors as the gravity of the crime and the individual circumstances of the convicted person.¹³⁷

A Trust Fund is established by decision of the Assembly of States Parties for the benefit of victims of crimes, and of the families of such victims. The Court may order money and other property collected through fines or forfeiture to be transferred to the Trust Fund.¹³⁸

18.9 Appeal and Revision

18.9.1 Appeal Against Acquittal or Conviction or Against Sentence

A decision of the Court is appealable. The Prosecutor or the convicted person may make an appeal on the ground of procedural error, error of fact, or error of law. In addition to above, the convicted person may also make an appeal on any other ground that affects the fairness or reliability of the proceedings or decision.

A sentence may be appealed by the Prosecutor or the convicted person on the ground of disproportion between the crime and the sentence. If on an appeal against sentence the Court considers that there are grounds on which the conviction might be set aside, wholly or in part, it may invite the Prosecutor and the convicted person to submit grounds and may render a decision on conviction. In case of an acquittal, the accused shall be released immediately.¹³⁹

The Appeals Chamber is to have all the powers of the Trial Chamber. If the Appeals Chamber finds that the proceedings before Trial Chamber were unfair in a way that affected the reliability of the decision or sentence, or that the decision or sentence appealed from was materially affected by error of fact or law or procedural error, it may reverse or amend the decision or sentence; or order a new trial before a different Trial Chamber.

If in an appeal against sentence, the Appeals Chamber finds that the sentence is disproportionate to the crime, it may vary the sentence. The judgment of the Appeals Chamber shall be taken by a majority of the judges and shall be delivered in open court. The judgment shall state the reasons on which it is based. When there is no unanimity, the judgment of the Appeals Chamber shall contain the views of the majority and the minority, but a judge may deliver a separate or dissenting opinion on a question of law. The Appeals Chamber may deliver its judgment in the absence of the person acquitted or convicted.

The Appeals Chamber may revise the final judgment of conviction or sentence on the application of convicted person on the ground of discovery of new evidence.¹⁴⁰

137. Articles 77–78, Rome Statute.

138. Article 79, Rome Statute.

139. Article 81, Rome Statute.

140. Articles 83–84, Rome Statute.

18.9.2 Compensation to an Arrested or Convicted Person

Anyone who has been the victim of unlawful arrest or detention is to have an enforceable right to compensation. When a person has by a final decision been convicted of a criminal offence which has been reversed on the ground of newly discovered fact, the person who has suffered punishment shall be compensated according to law, unless it is proved that the non-disclosure of the unknown fact in time is wholly or partly attributable to him.

In exceptional circumstances, where the Court finds conclusive facts showing that there has been a grave and manifest miscarriage of justice, it may in its discretion award compensation to a person who has been released from detention following a final decision of acquittal or a termination of the proceedings for that reason.¹⁴¹

18.10 International Co-operation and Judicial Assistance

States Parties are obligated to co-operate fully with the Court in its investigation and prosecution of crimes. The Court may also invite any State not party to this Statute to provide assistance on the basis of an ad hoc arrangement, an agreement with such State or any other appropriate basis. The Court may ask any inter-governmental organisation to provide information or documents. The Court may also ask for other forms of co-operation and assistance which may be agreed upon with such an organisation and which are in accordance with its competence or mandate.¹⁴²

Where a State Party fails to comply with a request to co-operate by the Court, thereby preventing the Court from exercising its functions and powers under this Statute, the Court may make a finding to that effect and refer the matter to the Assembly of States Parties or, where the Security Council referred the matter to the Court, to the Security Council.

Where a matter has been referred to the Court by the Security Council and the Court makes a finding of a failure by a State to co-operate with the Court, the Court shall inform the Security Council or refer the matter to it, as the case may be, and the Registrar shall convey to the Security Council the decision of the Court, together with relevant information in the case. The Security Council, thereafter shall inform the Court of action, if any, taken by it under the circumstances.¹⁴³

18.10.1 Surrender of Persons to the Court

The Court may request for the arrest and surrender of a person to any State on the territory of which that person may be found. It shall request the co-operation of that State in the arrest and surrender of such a person. States Parties are to comply with requests for arrest and surrender in accordance with the provisions of the Statute and procedure under their national law.

Where the person sought for surrender brings a challenge before a national court on the basis of the principle of *ne bis in idem* as provided in Article 20, the requested State shall immediately consult with the Court to determine if there has been a relevant ruling on admissibility. If the case is admissible, the requested State is to proceed with the execution of the request. If an admissibility ruling is pending, the requested State may postpone the execution of the request for surrender of the person until the Court makes a determination on admissibility.

141. Article 85, Rome Statute.

142. Articles 86–87, Rome Statute.

143. Article 17(3), The Relationship Agreement between the United Nations and the International Criminal Court, 2004.

In accordance with its national procedural law, a State Party is to authorise transportation through its territory of a person being surrendered to the Court by another State, except where transit through that State would impede or delay the surrender. A person being transported is to be detained in custody during the period of transit. No authorisation is required if the person is transported by air and no landing is scheduled on the territory of the transit State;

If the person sought is being proceeded against or is serving a sentence in the requested State for a different crime, the requested State shall consult with the Court after making its decision to grant the request.¹⁴⁴

18.10.2 Competing Requests

Where a State Party receives a request from the Court for the surrender of a person and also receives a request from any other State for the extradition of the same person for the same crime, it shall notify the Court and the requesting State of that fact.

In case of competing request, whether from State Party or State which is not a Party, the decision is to be taken in accordance with the provisions of the Statute. Ordinarily, the request of the Court is to be given preference over the request of any State.¹⁴⁵

18.10.3 Other Forms of Co-operation

Article 93 obligates States Parties to comply with requests by the Court to provide the following assistance in relation to investigations or prosecutions — (i) the identification and whereabouts of persons or the location of items; (ii) the taking of evidence, including testimony under oath, and the production of evidence, including expert opinions and reports necessary to the Court; (iii) the questioning of any person being investigated or prosecuted; (iv) the service of documents, including judicial documents; (v) facilitating the voluntary appearance of persons as witnesses or experts before the Court; (vi) the temporary transfer of persons; (vii) the examination of places or sites, including the exhumation and examination of grave sites; (viii) the execution of searches and seizures; (ix) the provision of records and documents, including official records and documents; (x) the protection of victims and witnesses and the preservation of evidence; (xi) the identification, tracing and freezing or seizure of proceeds, property and assets and instrumentalities of crimes for the purpose of eventual forfeiture, without prejudice to the rights of bona fide third parties; and (xii) any other type of assistance which is not prohibited by the law of the requested State, with a view to facilitating the investigation and prosecution of crimes.

A State Party may deny a request for assistance, in whole or in part, only if the request concerns the production of any documents or disclosure of evidence which relates to its national security.

The Court may not proceed with a request for surrender or assistance which would require the requested State to act inconsistently with its obligations under international law with respect to the State or diplomatic immunity of a person or property of a third State, unless the Court can first obtain the co-operation of that third State for the waiver of the immunity.¹⁴⁶

A sentence of imprisonment is to be served in a State designated by the Court from a list of States which have indicated to the Court their willingness to accept sentenced persons. States

144. Article 89, Rome Statute.

145. Article 90, Rome Statute.

146. Article 98, Rome Statute.

Parties are to give effect to fines or forfeitures ordered by the Court without prejudice to the rights of bona fide third parties.¹⁴⁷

18.11 Assembly of States Parties

An Assembly of States Parties is established under the Statute. Each State Party has one representative in the Assembly who may be accompanied by alternates and advisers. Other States which have signed this Statute or the Final Act may be observers in the Assembly. The Assembly is established to:

- (i) consider and adopt, as appropriate, recommendations of the Preparatory Commission;
- (ii) provide management oversight to the Presidency, the Prosecutor and the Registrar regarding the administration of the Court;
- (iii) consider the reports and activities of the Bureau and take appropriate action in regard thereto;
- (iv) consider and decide the budget for the Court;
- (v) decide whether to alter the number of judges;
- (vi) consider any question relating to non-co-operation of State Parties;
- (vii) perform any other function consistent with this Statute or the Rules of Procedure and Evidence.

The Assembly has a Bureau consisting of a President, two Vice-Presidents and 18 members elected by the Assembly for three-year terms. The Bureau is to have a representative character, taking into account equitable geographical distribution and the adequate representation of the principal legal systems of the world. The Bureau meets as often as necessary, but at least once a year. It assists the Assembly in the discharge of its responsibilities.

Each State Party has one vote in the Assembly. Where consensus cannot be reached, decisions on substantive matters must be approved by a two-third majority of those present and voting, and decisions on procedural matters are to be taken by a simple majority of those present and voting.¹⁴⁸

18.12 Reservations and Withdrawal

State Parties are not allowed to make any reservations to the Statute. A State Party may withdraw itself from the Statute by giving a written notification to the Secretary-General of the United Nations. The withdrawal is to take effect one year after the date of receipt of the notification, unless the notification specifies a later date. The withdrawal, however, does not discharge a State from the obligations arising from this Statute while it was a Party to the Statute, including any financial obligations which may have accrued. Its withdrawal is not to affect any co-operation with the Court in connection with pending criminal investigations and proceedings.¹⁴⁹

If following some withdrawals pursuant to Article 127, the number of Parties to the Statute falls to a figure less than that required for its entry into force, this situation has no effect on the continued existence of the treaty or maintenance of the Court's activity.¹⁵⁰

147. Articles 103, 109, Roman Statute.

148. Article 112, Roman Statute.

149. Articles 120, 127, Roman Statute.

150. Alain Pellet, "Entry into Force and Amendment of the Statute" in *The Rome Statute of the International Criminal Court: A Commentary*, Antonio Cassese, Paola Gaeta, John RW D Jones (Eds), vol 1, 2002, p 173.

To conclude it may be said that the International Criminal Court is perhaps the most innovative and exciting development in international law since the creation of the United Nations. The Rome Statute is one of the most complex international instruments ever negotiated, a sophisticated web of highly technical provisions drawn from comparative criminal law combined with a series of more political propositions that touch the very heart of State concerns with their own sovereignty.¹⁵¹ The Rome Statute will deeply influence the domestic criminal law. It will also enrich the jurisprudence of national courts and motivate prosecutors and judges to display greater zeal in the repression of serious violations of human rights.

151. William A Schabas, *An Introduction to the International Criminal Court*, 2004, p 25.

CHAPTER 19

PROTECTION OF REFUGEES

SYNOPSIS

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It is the primary responsibility of every State to protect its people. At times, however, it is seen that governments are unwilling or unable to protect their people. There are serious violations of their rights. This may be due to gross violation of human rights, civil war, internal strife, war with another State, natural disaster, etc. Sometimes, the situations become so bad that people are forced to leave their homes with their families. They move to other States in order to survive. This is how they become refugee in that State.

The refugees as a group are the most vulnerable group, prone to abuses from State actors as well as non-State actors. They are at the risk of various acts of violence which may include killings, torture, rape, genocide, extra-judicial executions, forcible disappearance, etc. The plight of refugees has been described by Gil Loescher as follows:

Many are confined to camps or ramshackle settlements close to the borders of their home countries where, deprived of opportunities to work or farm their own land, they depend on international charity for survival. Refugees are often separated from members of their families, exposed to the danger of armed attack, subjected to many forms of exploitation and degradation, and haunted by the constant fear of expulsion and the forced return to their countries of origin. Vast numbers of children have spent all their lives in refugee camps. The longer they live there, the less chance they have of ever experiencing some semblance of a normal life.¹

1. Gil Loescher, "Refugee Issues in International Relations", in *Refugees and International Relations*, Gil Loescher and Laila Monahan (Eds), 1989, pp 1–2.

19.1 Historical Background of Refugee Law

The development of refugee law has its foundation on the events taking place in the western countries. Serious problems of refugees emerged at the end of World War I. This led the League of Nations to create an office of the High Commissioner to deal with the problem of refugees. The first High Commissioner Dr. Nansen took active interest in grant of international protection to refugees. The certificates of identity issued by the High Commissioner were named after Dr. Nansen and known as “Nansen Passport”. Subsequently, various other developments took place to solve the problems of refugees. However, the major break through was experienced after the end of World War II.²

In 1946, the International Refugee Organisation (IRO) was established. The IRO was mandated to deal with the displacement of millions of people following the World War II. The IRO was soon replaced by the new office of the United Nations High Commissioner for Refugees (UNHCR) in 1950. On 14 December 1950, the General Assembly of the United Nations decided to convene a Conference of Plenipotentiaries to complete the drafting of, and to sign, a Convention relating to the Status of Refugees and a Protocol relating to the Status of Stateless Persons. The Conference met at the European Office of the United Nations in Geneva from 2–25 July 1951. The Conference was represented by 26 States. The International Labour Organisation and the International Refugee Organisation were represented at the Conference without the right to vote. The Convention relating to the Status of Refugees was adopted on 25 July 1951 by 24 votes to none with no abstentions.

The Convention derives its force from Article 14(1) of the Universal Declaration of Human Rights, 1948, which recognises the right of persons to seek asylum from persecution in other countries.³ The Convention entered into force on 22 April 1954. The Convention is a foundation of international refugee law.

The 1951 Convention consolidates previous international instruments relating to refugees and provides the most comprehensive codification of the rights of refugees at the international level. The Convention lays down basic minimum standards for the treatment of refugees.

19.2 Meaning of Refugee

The term “refugee” has been defined separately in the Statute of International Refugee Organization, the Convention relating to the Status of Refugees and the Protocol, Bangkok Principles, OAU Convention, and the Cartagena Declaration.

19.2.1 Statute of International Refugee Organisation (IRO)

A “refugee” was defined under the Statute of International Refugee Organisation as follows:

[T]he term ‘refugee’ applies to a person who has left, or who is outside of, his country of nationality or of former habitual residence, and who, whether or not he had retained his nationality, belongs to one of the following categories:

- (a) victims of the Nazi or fascist regimes or regimes which took part on their side in the Second World War ...;
- (b) Spanish Republicans and other victims of the Falangist regime in Spain ...;

2. See also Sanjay Parikh, “Refugees in the International and National Framework”, *ISIL Year Book of International Humanitarian and Refugee Law*, vol 1, 2001, p 266.

3. Article 14 (1) of UDHR reads: “Everyone has the right to seek and to enjoy in other countries asylum from persecution”.

- (c) persons who were considered refugees before the outbreak of the Second World War, for reasons of race, religion, nationality or political opinion.

As already discussed, IRO was replaced by UNHCR which was established on 14 December 1950.⁴

19.2.2 1951 Convention and 1967 Protocol

As per the Convention, a person is to be considered as refugee if as a result of events occurring before 1 January 1951 and owing to well-founded fear of being persecuted for reasons of race, religion, nationality, membership of a particular social group or political opinion, he is outside the country of his nationality and is unable or, owing to such fear, is unwilling to avail himself of the protection of that country; or who, not having a nationality and being outside the country of his former habitual residence as a result of such events, is unable or, owing to such fear, is unwilling to return to it.⁵ In contrast to earlier international refugee instruments, which applied to specific groups of refugees, the 1951 Convention endorses a single definition of the term “refugee”.

The term “persecution” has not been defined in the 1951 Convention. However, it may be taken as “the sustained or systematic violation of basic human rights demonstrative of a failure of State protection”. “A well-founded fear of persecution” exists when one reasonably anticipates that the failure to leave the country may result in a form of serious harm which the government cannot or will not prevent. Persecution encompasses harassment from State actors as well as non-State actors.⁶ In some jurisdictions, “persecution” has been argued to include the omissions of States, especially where these may be understood to be discriminatory.⁷

However, as the Convention was drafted in the wake of World War II, its definition of a refugee focuses on persons who are outside their country of origin and are refugees as a result of events occurring in Europe or elsewhere before 1 January 1951. The scope of the Convention, therefore, was limited. When new refugee crises emerged during the late 1950s and early 1960s, it was observed that those refugees would not be covered by the 1951 Convention. It was considered desirable that equal status should be enjoyed by all refugees covered by the definition in the Convention irrespective of the dateline 1 January 1951. It became, therefore, necessary to widen both the temporal and geographical scope of the Convention.⁸ In 1967, Protocol Relating to the Status of Refugees was adopted, which removed the limitations of the 1951 Convention and gave the Convention universal coverage.⁹ Although related to the 1951 Convention, the Protocol is an independent instrument, accession to which is not limited to States parties to the Convention.¹⁰

Some authors have given very wide meaning to the term “refugee” in 1951 Convention by arguing that “the line between refugees and other survival migrants can never be understood as fixed because the refugee in international law is subject to interpretation. In theory, all survival migrants could be interpreted as refugees under the 1951 convention—although it

4. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, pp 167–68.

5. Article 1(A)(2), Convention Relating to the Status of Refugees, 1951.

6. James Hathaway, “Fear of Persecution and the Law of Human Rights”, *Bulletin of Human Rights*, 91/1 United Nations, 1992, p 99.

7. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 179.

8. UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, pp 13, 15.

9. See Article 1(2), Protocol Relating to the Status of Refugees, 1967.

10. Article V, Protocol Relating to the Status of Refugees, 1967.

currently seems unlikely”.¹¹ Michelle Foster States that “the 1951 Convention has the scope to be applied to protect people fleeing economic and social rights deprivations”. Foster further suggests that “the assumption that the 1951 convention can protect only people fleeing civil and political rights violations is mistaken”.¹²

19.2.3 Bangkok Principles, 1966

In 1966, the Asian-African Legal Consultative Committee (AALCC) adopted Principles on the Status and Treatment of Refugees. These Principles are known as Bangkok Principles. The Bangkok Principles define “refugee” as follows:

A refugee is a person who, owing to persecution or a well-founded fear of persecution for reasons of race, colour, religion, nationality, ethnic origin, gender, political opinion or membership of a particular social group:

- (a) leaves the State of which he is a national, or the Country of his nationality, or, if he has no nationality, the State or Country of which he is a habitual resident; or
- (b) being outside of such a State or Country, is unable or unwilling to return to it or to avail himself of its protection.¹³

The term refugee is also to apply to every person, who, owing to external aggression, occupation, foreign domination or events seriously disturbing public order in either part or the whole of his country of origin or nationality, is compelled to leave his place of habitual residence in order to seek refuge in another place outside his country of origin or nationality.¹⁴ While retaining the definition as provided in 1951 Convention, the Bangkok Principles gave the definition of refugee an extended meaning.

19.2.4 OAU Convention

The political scenario changed in African continent during 1960s, when the conflicts that accompanied the end of the colonial era led to a succession of large-scale refugee movements. Due to wide spread population displacements in Africa, not only the 1967 Protocol but also the 1969 OAU Convention Governing the Specific Aspects of Refugee Problems in Africa was adopted. The OAU Convention is a legally binding regional refugee treaty. The OAU Convention followed the definition of refugee as provided in 1951 Convention. It, however added a more objectively based consideration to the definition: any person compelled to leave his/her country owing to “external aggression, occupation, foreign domination or events seriously distributing public order in either part or the whole of his country of origin or nationality”.

According to this expanded definition, the persons fleeing civil disturbances, widespread violence and war are entitled to claim the status of refugee in States that are parties to OAU Convention, irrespective of the fact whether they have a well-founded fear of persecution or not. The phrase “events seriously disturbing public order” in the definition is significant and “opens up an array of causes of movement far beyond persecution, which may include a whole range of serious threats to human security”. Similarly, the phrase “in either part or the whole of his country of origin” indicates that “these threats need not necessarily exist throughout the country and that if the existence of “events seriously disturbing public order” in one part of

11. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 179.

12. Foster quoted in Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 180.

13. Principle 1, Bangkok Principles, 1966.

14. Principle 2, Bangkok Principles, 1966.

the country were to have secondary effects—for example, on socio-economic conditions—in another part of the country which “compelled” movement, then this would be sufficient to justify refugee status”.¹⁵ The OAU Convention, though, used expanded definition of refugee, has in fact been underused to address the problems of refugees in Africa.

19.2.5 Cartagena Declaration

A colloquium of government representatives and distinguished Latin American jurists was convened in Cartagena, Columbia in 1984 to discuss the international protection of refugees in the Latin American region. At the end of colloquium, Cartagena Declaration was adopted, which recommended that in the Latin American region, the definition of “refugee” should include the definition as provided in the 1951 Convention and also persons who have fled their country “because their lives, safety or freedom have been threatened by generalised violence, foreign aggression, internal conflicts, massive violation of human rights or other circumstances which have seriously disturbed public order”.

Despite the fact that the Declaration is a non-binding instrument, most of the Latin American States apply the definition as a matter of practice. Some of these States have also incorporated the definition of refugee as provided in Declaration into their national legislation. The Organisation of American States (OAS), the UN General Assembly, and the UNHCR have endorsed the Declaration.

To sum up, people who flee “serious rights deprivations” and not persecution face a much more inconsistent response. The fragile and failed States represent a growing international challenge. The threats that people face in these States due to environmental change, food insecurity, or generalised violence, force them to seek their basic rights by crossing international borders. They have been fleeing serious existential threats not due to persecution but for reasons other than persecution. Sometimes they are given the status of refugee, but sometimes they face detention and deportation by the States where they are trying to take asylum. Unfortunately, there are no universally accepted standards on how such people should be protected. It is because of this ambiguity in law that “discretion enables politics to define what happens in practice”. The States follow an arbitrary approach to make a distinction between people fleeing persecution and people fleeing a State’s unwillingness or inability to ensure basic rights.¹⁶ It, however, gives some solace that the scope of the term “refugee” is expanding. The meaning of “refugee” is growing slowly, unevenly, and in ways that leave significant gaps.¹⁷ It is, therefore the duty of international community to address this problem by bringing out a binding instrument.

To sum up, it can be stated that the scope of the term “refugee” is expanding. The meaning of “refugee” is growing slowly, unevenly, and in ways that leave significant gaps.¹⁸

19.3 Non-applicability of 1951 Convention on Refugee

The Convention does not, however, apply to all persons who might otherwise satisfy the definition of a refugee. This Convention shall cease to apply to any person who otherwise qualifies as refugee if:

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15. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 179.
 16. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, pp 173, 174.
 17. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 186.
 18. See Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 186.

- (i) he has voluntarily re-availed himself of the protection of the country of his nationality;
- (ii) having lost his nationality, he has voluntarily re-acquired it;
- (iii) he has acquired a new nationality, and enjoys the protection of the country of his new nationality;
- (iv) he has voluntarily re-established himself in the country which he left or outside which he remained owing to fear of persecution;
- (v) he can no longer continue to refuse to avail himself of the protection of the country of his nationality if the circumstances in connection with which he has been recognised as a refugee have ceased to exist; or
- (vi) being a person who has no nationality he is able to return to the country of his former habitual residence if the circumstances in connection with which he has been recognised as a refugee have ceased to exist.¹⁹

In addition to above, the Convention is not to apply to persons who are at present receiving protection or assistance from organs or agencies of the United Nations other than the United Nations High Commissioner for Refugees (UNHCR). When such protection or assistance has ceased for any reason, these persons shall *ipso facto* be entitled to the benefits of this Convention. For example, the Convention was not applicable to the refugees from Palestine who were covered under the auspices of the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA).

A person who is recognised by the competent authorities of the country in which he has taken residence as having the rights and obligations which are attached to the possession of the nationality of that country, is also not to be covered under this Convention.

Finally, the Convention is not to be applicable to any person with respect to whom there are serious reasons for considering that: (i) he has committed a crime against peace, a war crime, or a crime against humanity; (ii) he has committed a serious non-political crime outside the country of refuge prior to his admission to that country as a refugee; (iii) he has been guilty of acts contrary to the purposes and principles of the United Nations.²⁰

19.4 Provisional Measures for National Security

In time of war or other grave and exceptional circumstances, a Contracting State shall be free to take provisionally measures which it considers to be essential to the national security in the case of a particular person, pending a determination of his refugee status.²¹

19.5 Juridical Status

The personal status of a refugee is to be governed by the law of the country of his domicile. If he has no domicile, then it is to be governed by the law of the country of his residence. Rights previously acquired by a refugee and dependent on personal status, particularly rights attaching to marriage, are to be respected by the Contracting States. However, the right in question is one which would have been recognised by the law of that State had he not become a refugee.²²

19. Article 1(C), Convention Relating to the Status of Refugees, 1951.

20. Article 1(D), 1(E), and 1(F), Convention Relating to the Status of Refugees, 1951.

21. Article 9, Convention Relating to the Status of Refugees, 1951.

22. Article 12, Convention Relating to the Status of Refugees, 1951.

19.6 Rights and Duties of Refugees Under 1951 Convention

The 1951 Convention stipulates that, subject to specific exceptions, refugees should not be penalised for their illegal entry or stay. This recognises the fact that the seeking of asylum can require refugees to breach immigration rules.

Every refugee has duties to the country in which he finds himself to conform to its laws and regulations as well as to measures taken for the maintenance of public order.²³ Thus, the Convention imposes a duty on the refugees to live as a law abiding person in the State in which they have taken the refuge and comply with its laws and regulations.

Article 3 of the Convention obligates the Contracting States to apply the provisions of the Convention to refugees without discrimination as to race, religion or country of origin. The Contracting States have to accord the same treatment to refugees that is accorded to their nationals with respect to freedom to practice their religion and freedom as regards the religious education of their children. The Convention is not to impair any rights and benefits which are granted by a Contracting State to refugees apart from this Convention. The Contracting State is to accord the same treatment to refugees as is accorded to aliens generally.²⁴

As regards the acquisition of movable and immovable property and leases, the Contracting States are to accord to a refugee the same treatment as is accorded to aliens generally.²⁵ Where a refugee possesses intellectual property rights, eg in inventions, designs or models, trade marks, trade names, rights in literary, artistic, and scientific works, he is to be accorded in the country in which he has his habitual residence the same protection as is accorded to nationals of that country. In any other Contracting State, he is to be accorded the same protection as is accorded in that territory to nationals of the country in which he has his habitual residence.²⁶

The refugees are to have the most favourable treatment as is accorded to nationals of a foreign country regarding non-political and non-profit-making associations and trade unions in the Contracting State in which they are staying lawfully. A refugee is to have free access to the courts of law on the territory of all Contracting States. A refugee is to enjoy in the Contracting State in which he has his habitual residence the same treatment as a national in matters pertaining to access to the courts, including legal assistance.²⁷

As regards the right to engage in wage earning employment, the Contracting State is to accord to refugees the most favourable treatment as accorded to nationals of a foreign country. If restrictive measures are imposed on aliens or the employment of aliens for the protection of the national labour market, the same shall not be applied to a refugee who was already exempt from them at the date on which that State became a party to the Convention, or who fulfils one of the following conditions:

- (i) he has completed three years' residence in the country;
- (ii) he has a spouse possessing the nationality of the country of residence, provided he has not abandoned his spouse;
- (iii) he has one or more children possessing the nationality of the country of residence.

As regards the right of refugee to practice a liberal profession or to engage on his own account in agriculture, industry, handicrafts and commerce and to establish commercial and industrial

23. Article 2, Convention Relating to the Status of Refugees, 1951.

24. Articles 4, 5, 7, Convention Relating to the Status of Refugees, 1951.

25. Article 13, Convention Relating to the Status of Refugees, 1951.

26. Article 14, Convention Relating to the Status of Refugees, 1951.

27. Articles 15, 16, Convention Relating to the Status of Refugees, 1951.

companies, the Contracting States are to accord to a refugee treatment not less favourable than that accorded to aliens.²⁸

19.7 Welfare Measures for Refugees

Articles 20–24 of the Convention deal with welfare measures which the Contracting States have to adopt with respect to rationing, housing, public education, public relief and labour legislation and social security for the benefit of refugees.

Thus, if a rationing system exists, which applies to the population at large and regulates the general distribution of products in short supply, then that system shall also apply to refugees. In case of housing, the same treatment shall be applicable to refugees as is applicable to aliens.

As regards public education, the refugees are to get the same treatment as is accorded to nationals by the Contracting States with respect to elementary education. However, with respect to education other than the elementary education, the refugees will get the same treatment as is applicable to aliens.

As far as labour legislation and social security is concerned, the refugees are to get national treatment with respect to remuneration, hours of work, overtime arrangements, holidays with pay, restrictions on homework, minimum age of employment, apprenticeship and training, women's work and the work of young persons, and the enjoyment of the benefits of collective bargaining, etc.

Similar to labour legislation, social security scheme in respect of employment injury, occupational diseases, maternity, sickness, disability, old age, death, unemployment, family responsibilities and any other contingency shall also be applicable to refugees as they are applicable to nationals of the Contracting State.

19.8 Administrative Measures for the Benefits of Refugees

Chapter V of the Convention deals with administrative measures which are to be adopted by the Contracting States for the benefits of refugees.²⁹ Where a refugee requires the assistance of authorities of a foreign country for the exercise of his right, it shall be the duty of that Contracting State in which he is residing, to arrange that such assistance. The refugees shall the right to choose their place of residence and to move freely within the territory of those Contracting States in which they are living.

The Contracting States are to issue travel documents to refugees who are lawfully staying in their territory, for the purpose of travel outside their territory unless compelling reasons of national security or public order otherwise require. Where a refugee does not possess a valid travel document, he will be issued identity papers by the Contracting States.

In conformity with its laws and regulations, a Contracting State is to permit refugees to transfer assets which they have brought into its territory, to another country where they have been admitted for the purposes of resettlement.

No penalty is to be imposed on refugees by Contracting States on account of their illegal entry or presence if they have come directly from a territory where their life or freedom was threatened. However, they have to present themselves without delay to the authorities and show good cause for their illegal entry or presence. The movements of such refugees are not to be restricted other than for those purposes for which it is necessary. Such restrictions shall only be applied until their status in the country is regularised or they obtain admission into another

28. Articles 17–19, Convention Relating to the Status of Refugees, 1951.

29. Articles 25–34, Convention Relating to the Status of Refugees, 1951.

country. The Contracting States are obligated to allow such refugees a reasonable period and all the necessary facilities to obtain admission into another country.

Ordinarily, the Contracting States shall not expel a refugee who is staying there in a lawful manner. However, they can do so on grounds of national security or public order. The expulsion of such a refugee is to take place only in pursuance of a decision reached in accordance with due process of law. Except where compelling reasons of national security otherwise require, the refugee shall be allowed to submit evidence to clear himself, and to appeal to and be represented for the purpose before competent authority. The Contracting States is to allow such a refugee a reasonable period within which he has to seek legal admission into another country.

19.9 Principle of Non-refoulement

According to principle of non-refoulement, a refugee shall not be expelled or return forcibly. The term “non-refoulement” has its roots in the French *refouler*, which means to drive back or repel. Refoulement is to be distinguished from the process of expulsion and deportation, which refer to the legal means by which a person may be (at times forcibly) removed from a State.³⁰ According to Article 33(1), the Contracting State is not to expel or return (“*refouler*”) a refugee in any manner whatsoever to the frontiers of territories where his life or freedom would be threatened on account of his race, religion, nationality, membership of a particular social group or political opinion. Though the States do not recognise the right of asylum, they have accepted the obligation of non-refoulement under the 1951 Convention.

The principle of non-refoulement is of fairly recent origin. It was not there until early twentieth century. Following the World War I, this principle began to have a hold on the international consciousness. Before the adoption of 1951 Convention, States interpreted this principle narrowly. After the 1951 Convention, there has been an expansion of the doctrine to grant the right of non-refoulement to persons who are at the border of a State as well as those who have crossed the border.³¹

The principle of non-refoulement derives its existence and validity from the twin concepts of “international community” and “common humanity” and must be seen as an integral part of that foundation of freedom, justice and peace in the world, which is human rights.³²

The principle of non-refoulement has also been recognised in other international and regional treaties and instruments, either directly or through interpretation. Article 3(1) of the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, 1984 reads:

No State Party shall expel, return (‘*refouler*’) or extradite a person to another State where there are substantial grounds for believing that he would be in danger of being subjected to torture.

In addition, the principle of non-refoulement has also been recognised in the OAU Convention of 1969;³³ Geneva Convention relative to the Protection of Civilian Persons in Time of War of 1949 (Fourth Geneva Convention);³⁴ European Convention for the Protection of Human Rights and Fundamental Freedoms;³⁵ International Covenant on Civil and Political Rights;³⁶

30. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 177.

31. Goodwin-Gill, Guy, *The Refugee in International Law*, 1998, pp 121–23.

32. BC Nirmal, “Refugees and Human Rights”, *ISIL Year Book of International Humanitarian and Refugee Law*, vol 1, 2001, p 97.

33. Article II, OAU Convention.

34. Article 45, Fourth Geneva Convention Relative to the Protection of Civilian Persons in Time of War, 1949.

35. Article 3, European Convention for the Protection of Human Rights.

36. Article 13, International Covenant on Civil and Political Rights.

American Convention on Human Rights;³⁷ African Charter of Human and Peoples' Rights of 1981;³⁸ Declaration on the Protection of All Persons from Enforced Disappearance;³⁹ Principles on the Effective Prevention and Investigation of Extra-Legal, Arbitrary and Summary Executions;⁴⁰ and Cairo Declaration on the Protection of Refugees and Displaced Persons in the Arab World.⁴¹

The principle of non-refoulement has been regarded as a cornerstone that guides the repatriation of refugees. Though the concept of non-refoulement prevents forcible repatriation of refugees, it has been observed that in practice the countries given temporary asylum to refugees have sent back them at a time when the voluntary nature of their repatriation was, at best, questionable. In 1995, the Zairean government returned about 17,000 refugees to Rwanda. It remains unclear whether the Rwandan refugees returned out of fear of rebel forces within Zaire or whether they simply wished to return home.⁴²

The principle of non-refoulement is not only a conventional law, but has also been accepted as a rule of customary international law. This means that even States that are not party to the 1951 Convention must respect the principle of non-refoulement. Thus, States are under obligation not to violate this principle. In some circumstances, where the violation of this principle has taken place, the States may have recourse to relevant human rights machinery.⁴³

In 2001, States parties issued a Declaration reaffirming their commitment to the 1951 Convention and the 1967 Protocol, and they recognised in particular that the core principle of non-refoulement is embedded in customary international law.

In practice, however, it has been observed that State have violated the principle of non-refoulement. There are reports that refugees in Jordan who were registered with UNHCR were deported. These refugees included women, children, medical workers, and injured people. It was also reported that in October 2014, anywhere from 45%–80% of asylum seekers who reached Jordan's borders were sent back to Syria before they had the opportunity to register with the UNHCR.⁴⁴

The principle of non-refoulement is not an absolute principle. According to Article 33 (2), the benefit of the provision of Article 33(1) may not be claimed by a refugee whom there are reasonable grounds for regarding as a danger to the security of the country in which he is, or who, having been convicted by a final judgment of a particularly serious crime, constitutes a danger to the community of that country.

19.10 Voluntary Repatriation

The most preferred destination of asylum of refugees is a State which is near to their home State. The reason is once the situation in their home State is normalised, they will go back to their State and resume their lives. Under voluntary repatriation, it is the free decision of the refugees to return to their home State after assessing the developments there, the risk factor and the international protection and assistance available to them. Ordinarily, there is a tri-partite

37. Article 22, American Convention on Human Rights.

38. Article 12(3), African Charter of Human and Peoples' Rights.

39. Article 8, Declaration on the Protection of All Persons from Enforced Disappearance.

40. Principle 5, Principles on the Effective Prevention and Investigation of Extra-Legal, Arbitrary and Summary Executions.

41. Article 2, Cairo Declaration on the Protection of Refugees.

42. Leslie E Schafer, "Learning from Rwanda: Addressing the Global Institutional Stalemate in Refugee Crises", *Indiana Journal of Global Legal Studies*, vol 6(1), 1998, 315–339, p 335.

43. UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, p 14; see also Alexandra Francis, *Jordan's Refugee Crisis*, 2015, p 6.

44. Alexandra Francis, *Jordan's Refugee Crisis*, 2015, p 22.

agreement among UNHCR, the State of asylum and the home State. The purpose is that the refugees should return to their home State safely and in a dignified manner, free from the fear of persecution.

In practice, however, this does not happen. Sometimes, the protection and facilities available to refugees in the State of asylum are inadequate. This makes the refugees to take the decision of returning back to their home State. In such a situation, there remains a possibility of their leaving the home State for the second time as the situations there may not have improved much. Sometimes, the lines between what constitutes refoulement or expulsion and the facilitation of voluntary repatriation become blurred. It is a complex process to determine the possibility of returning of refugees to countries of origin. To repatriate people to countries of origin where conflict still rages merely shifts the problem geographically and thus fails as a durable solution. In such a situation, even though the refugees might have returned to their country of origin, they continue to live like unwanted refugees only.⁴⁵ In the interest of refugees, the UNHCR requires a certain level of physical safety and security before it actively promotes voluntary repatriation.

19.11 Naturalisation

The assimilation of refugees into new national communities is one of the solutions to refugees' plight. The Contracting States are obligated as far as possible to facilitate the assimilation and naturalisation of refugees. They are duty bound in particular to make every effort to expedite naturalisation proceedings and to reduce as far as possible the charges and costs of such proceedings.⁴⁶

A number of States, particularly those accustomed to receiving immigrants, allow the naturalisation of recognised refugees as a matter of routine. The other States of asylum have been willing to consider allowing refugees to stay permanently, especially when they contribute to the local economy.⁴⁷

19.12 Burden Sharing

In some situations, the grant of asylum may place unduly heavy burdens on certain States. This may create a serious problem for the host State. It, therefore, becomes necessary that there should be international co-operation in such a situation to assist the host State and take away its extra pressure. The preamble of 1951 Convention also acknowledges the concept of burden sharing:

[T]he grant of asylum may place unduly heavy burdens on certain countries, and that a satisfactory solution of a problem of which the United Nations has recognized the international scope and nature cannot therefore be achieved without international co-operation.

The OAU Convention also lays down a provision in this regard. Article II(4) States that:

where a Member State finds difficulty in continuing to grant asylum to refugees, such Member State may appeal directly to other Member States and through the OAU, and such other Member States shall in the spirit of African solidarity and international cooperation take appropriate measures to lighten the burden of the Member State granting asylum.

In addition to 1951 Convention and OAU Convention, the Addendum of 1987 to the Bangkok Principles Concerning the Treatment of Refugees of 1966 also provides that the principle of

45. Leslie E Schafer, "Learning from Rwanda: Addressing the Global Institutional Stalemate in Refugee Crises", *Indiana Journal of Global Legal Studies*, vol 6(1), 1998, 315–339, pp 326–27, 330.

46. Article 34, 1951 Convention.

47. See also UNHCR AND IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, pp 77–78.

international solidarity and burden-sharing should be seen as applying to all aspects of the refugee situation, including the development and strengthening of standards of treatment of refugees, support to States in protecting and assisting refugees, the provision of durable solution and the support of international bodies with responsibilities for the protection and assistance of refugees.⁴⁸

The UNHCR has recognised the need to promote a more equitable sharing of global refugee burdens. It is extremely important for the international community to ensure that there is no disproportionate burden on host States, which are many a times the developing States.

19.13 Large-scale Asylum-seekers

The term “asylum” has not been defined under international law. Asylum may mean basic protection at least for a temporary period from forcible return (*refoulement*) to the frontiers of territories where the refugee’s life or freedom would be threatened. The possibilities are to be explored of his staying in the host State until a solution outside that State is found.

The 1951 Convention was drafted from the point of view of individual asylum-seeker. It does not quite deal with a situation of mass influx of asylum-seekers which could either preclude formal determination of refugee status or/ and exclude a lasting solution. The fundamental work of UNHCR is on an individual level, refugee by refugee, as dictated by its mandate and the 1951 Convention. This has made collective action in relation to groups of refugees and mass influx situations difficult. However, the asylum-seekers may include those who fall within the broader definition of refugee contained in OAU Convention and the Cartagena Declaration.

When large number of people cross the border at the same time, it becomes extremely difficult for the State of asylum to examine individual asylum requests. However, when the circumstances suggest that the members of the group should be considered individually as refugees, the State of asylum should *prima facie* do so, so that basic protection and assistance should be extended to them, pending arrangements for a durable solution.

A Declaration on Territorial Asylum was adopted by UN General Assembly in 1967. The Declaration reiterates that granting asylum is a peaceful and humanitarian act that cannot be regarded as unfriendly by any other State. The Declaration also States that it is the responsibility of the State of asylum to evaluate a person’s claim for asylum.

The Declaration became necessary in view of Articles 13 and 14 of the Universal Declaration of Human Rights (UDHR) which recognise the right of a person to leave and return to his country and also to have right to seek and enjoy asylum in other countries from persecution. The important provision of this Declaration is that a person who has been persecuted by a country is not to be subjected to such measures which result in his expulsion or compulsory return to that country.⁴⁹

In the context of “protection of asylum-seekers in situations of large-scale influx”, the Executive Committee of the UNHCR adopted Conclusion No. 22 in 1981 which insists on the provision of temporary refugee through the act of admission:

1. In situations of large-scale influx, asylum seekers should be admitted to the State in which they first seek refuge and if that State is unable to admit them on a durable basis, it should always admit them at least on a temporary basis. ... They should

48. Para 3 of the Addendum of 1987 to the Bangkok Principles Concerning the Treatment of Refugees, 1966.

49. See also Sanjay Parikh, “Refugees in the International and National Framework”, *ISIL Year Book of International Humanitarian and Refugee Law*, vol 1, 2001, p 266.

be admitted without any discrimination as to race, religion, political opinion, nationality, country of origin or physical incapacity.

2. In all cases the fundamental principle of non-refoulement including non-rejection at the frontier must be scrupulously observed.⁵⁰

19.14 Extradition of Refugees

The extradition request of a refugee may raise a serious problem. The Executive Committee of the UNHCR considered that “cases in which the extradition of a refugee or of a person who may qualify as a refugee is requested may give rise to special problems”. The Committee while reaffirming the fundamental character of the generally recognised principle of non-refoulement, also recognised the fact that refugees should be protected in regard to extradition to a country where they have well-founded reasons to fear persecution.

The Committee called upon States to ensure that the principle of non-refoulement was duly taken into account in treaties relating to extradition and as appropriate in national legislation on the subject. It also hoped that due regard be had to the principle of non-refoulement in the application of existing treaties relating to extradition. The Committee stressed that protection in regard to extradition applied to persons who fulfilled the criteria of the refugee definition and who were not excluded from refugee status. The Committee, however, also stressed that nothing as aforesaid should be considered as affecting the necessity for States to ensure, on the basis of national legislation and international instruments, punishment for serious offences, such as the unlawful seizure of aircraft, the taking of hostages and murder.⁵¹

19.15 Role of UNHCR

The Statute of the Office of the United Nations High Commissioner for Refugees (UNHCR) was adopted by the General Assembly on 14 December 1950.⁵² The General Assembly called upon the Governments to cooperate with the High Commissioner in the performance of his functions concerning refugees falling under the competence of the Office.

The High Commissioner is elected by the General Assembly on the nomination of the Secretary-General. Originally an Advisory Committee on Refugees was established by the Economic and Social Council in pursuance of paragraph 4 of the Statute and was later reconstituted as the United Nations Refugee Fund (UNREF) Executive Committee. It was subsequently replaced by the Executive Committee of the High Commissioner's Programme in 1958.

In addition to its Head Office which is located in Geneva, UNHCR has offices in around 125 States throughout the world. The work of the High Commissioner is humanitarian and social and of an entirely non-political character.⁵³ Under the 1951 Convention and 1967 Protocol, there is a particular role for UNHCR. States undertake to cooperate with UNHCR in the exercise of its functions, which are set out in its Statute of 1950 along with a range of other General Assembly resolutions, and, in particular, to facilitate this specific duty of supervising the application of these instruments. By its Statute, UNHCR is tasked with, among others, promoting international instruments for the protection of refugees, and supervising their application. The High Commissioner reports annually to the General Assembly.⁵⁴

50. See also *International Refugee Law: A Reader*, BS Chimni (Ed), 2000, p 86.

51. UNHCR, Conclusion No. 17: *Problems of Extradition Affecting Refugees*.

52. The Statute of UNHCR was adopted as Annex to General Assembly Resolution 428 (V) of 14 December 1950.

53. Para 2, Statute of UNHCR, 1950.

54. General Assembly Resolution 58/153 of 24 February 2004.

Acting under the authority of the General Assembly, the UNHCR is to assume the function of providing international protection to refugees who fall within the scope of the Statute. He is also to seek permanent solutions for the problem of refugees by assisting Governments. He is further to facilitate the voluntary repatriation of such refugees, or their assimilation within new national communities, subject to the approval of Governments concerned.⁵⁵

According to paragraph 8 of the Statute, the High Commissioner is to provide for the protection of refugees falling under the competence of his Office in the following manner:

- (i) by promoting the conclusion and ratification of international conventions for the protection of refugees, supervising their application and proposing amendments thereto;
- (ii) by promoting through special agreements with Governments the execution of any measures calculated to improve the situation of refugees and to reduce the number requiring protection;
- (iii) by assisting governmental and private efforts to promote voluntary repatriation or assimilation within new national communities;
- (iv) by promoting the admission of refugees to the territories of States;
- (v) by endeavouring to obtain permission for refugees to transfer their assets and especially those necessary for their resettlement;
- (vi) by obtaining from Governments information concerning the number and conditions of refugees in their territories and the laws and regulations concerning them;
- (vii) by keeping in close touch with the Governments and inter-governmental organisations concerned;
- (viii) by establishing contact in such manner as he may think best with private organisations dealing with refugee questions;
- (ix) by facilitating the co-ordination of the efforts of private organisations concerned with the welfare of refugees.

At the field level, the staff of UNHCR work to protect refugees through a wide variety of activities, including responding to emergencies, relocating refugee camps away from border areas to improve safety; ensuring that refugee women have a say in food distribution and social services; reuniting separated families; providing information to refugees on conditions in their home country so that they can make informed decisions about return; documenting a refugee's need for resettlement to a second country of asylum; visiting detention centres; and giving advice to governments on draft refugee laws, policies and practices.

The responsibilities of UNHCR have been expanded by the General Assembly over the years. Now the responsibilities of UNHCR include protecting various groups of people who are not covered by the 1951 Convention and the 1967 Protocol. Some of these people are known as "mandate" refugees; others are returnees, Stateless persons and, in some situations internally displaced persons.

Thus, persons of concern to UNHCR include refugees under the 1951 Convention; persons fleeing conflict or serious disturbances of the public order (i.e. refugees covered under the OAU Convention and Cartagena Declaration); returnees (former refugees); Stateless persons; and internally displaced persons in some situations.⁵⁶

55. Para 1, Statute of UNHCR, 1950.

56. See UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, pp 21–23.

19.16 Internally Displaced Persons (IDPs)

Internally displaced persons (IDPs) are those who have been displaced from their homes but remain within the territory of their State. They may be uprooted from their place due to internal conflict, violence, civil war or natural or man-made disaster. Since they have not crossed an international border, they are not covered by the 1951 Convention or UNHCR statute.

In 1998, the UN Guiding Principles on Internal Displacement were adopted.⁵⁷ The Principles define IDPs as “persons or group of persons who have been forced or obliged to flee or to leave their homes or places of habitual residence, in particular as a result of or in order to avoid the effects of armed conflict, situations of generalised violence, violations of human rights or natural or human-made disasters, and who have not crossed an internationally recognised State border”.⁵⁸

The Principles recognise State sovereignty but state it in terms of responsibility towards the IDPs. The primary responsibility for the protection of IDPs lies with States. However, where a State fails to fulfil its responsibilities, the Principles allow the international community to step in. The Principles are consistent with human rights and humanitarian law and drawn on relevant parts of refugee law. The Principles address all phases of internal displacement and are intended to provide guidance to States, non-State actors, other authorities and inter-governmental and non-governmental organisations on issues of internal displacement. The UNHCR Executive Committee reiterated the relevance of the Principles and reaffirmed its support for UNHCR’s role with internally displaced persons on the basis of criteria specified by the General Assembly.⁵⁹

In the *Report of the OHCHR Investigation on Sri Lanka (OISL)*,⁶⁰ important observations were made on the administrative detention and deprivation of liberty of IDPs. With respect to administrative detention imposed on internally displaced persons, Principle 12 of the UN Guiding Principles on internal displacement emphasise that internally displaced persons should not be interned or confined to camps other than in exceptional circumstances when it is absolutely necessary and only for the duration required by the circumstances. Depriving IDPs of their liberty on the mere basis of their status as IDPs amounts to arbitrary detention and is prohibited. Moreover, to ensure IDPs’ right to liberty of movement, such persons shall have the right to move freely in and out of camps or other settlements.⁶¹ Displaced persons have a right to voluntary and safe return to their places of habitual residence as soon as the reasons for their displacement cease to exist.⁶²

In April 2009, UNHCR raised concerns about overcrowding and poor conditions in IDP camps and lack of adequate health care in Sri Lanka. The review concluded that UNHCR had a number of serious protection concerns with regard to IDP camps in Vavuniya, Jaffna and Mannar, and made recommendations for immediate action by the Government.⁶³ In 2015, the *Report of the OHCHR Investigation on Sri Lanka (OISL)*,⁶⁴ stated that:

57. E/CN. 4/1998/53/Add. 2.

58. Introduction, para 2, UN Guiding Principles on Internal Displacement, 1998.

59. Conclusion N 87(t) in 1999. See also UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, p 27.

60. A/HRC/30/CRP.2, 16 September 2015.

61. Principle 14.

62. Rule 132, ICRC, Database on Customary International Humanitarian Law.

63. UNHCR, Mid-term Review, 15 April 2009; see also The *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP. 2, 16 September 2015, para 1084.

64. A/HRC/30/CRP. 2, 16 September 2015.

the severe restrictions on freedom of movement of the thousands of IDPs, through deprivation of their liberty, amounts to a separate violation of international human rights law. Moreover, the material conditions in these closed IDP camps amounted to violations of the right to health and to an adequate standard of living, including food, water, housing and sanitation. ... Depending on the circumstances, such conditions may also amount to inhumane and degrading treatment as defined in international human rights law.⁶⁵

It was further stated in the *Report* that “the Government had an obligation to screen IDPs and to separate former LTTE combatants in order to maintain the civilian and humanitarian character of IDP camps, ensure the safety and security of IDPs. It was also a necessary first step to holding those who had violated national and international laws accountable for their actions”.⁶⁶ The *Report* stated that the Government of Sri Lanka failed in performing its obligations.

The Governments are entitled to temporarily deprive IDPs of their liberty and separate out fighters, but the deprivation of liberty must only be for the shortest time possible. Moreover, the deprivation of liberty of IDPs is permissible only if there are serious and legitimate reasons to believe that the IDPs would seriously prejudice the security of the State. Furthermore, for IDPs to continue to be detained, there needs to be a legal basis and charges must be brought against each individual.⁶⁷

The African Union Convention for the Protection and Assistance of Internally Displaced Persons in Africa, popularly known as Kampala Convention was adopted on 22 October 2009. It has entered into force on 6 December 2012. The Convention sets out the obligation of States Parties to protect and assist IDPs “by meeting their basic needs as well as allowing and facilitating rapid and unimpeded access by humanitarian organisations and personnel” and to ensure durable solutions.

19.17 Asylum-Seekers, Migrants, Internally Displaced Persons and Refugees: Distinction

The term “asylum-seeker” has a wider connotation. A person may be termed as asylum-seeker, if he has not yet submitted an application for claiming the refugee status; or where he has submitted the application, is yet to receive a decision on his claim. It is noteworthy that not every asylum-seeker is recognised as a refugee. Until his claim is examined, the principle of non-refoulement shall apply to him and he shall not be returned to his State.

Migrants are people who leave their States by their own will. This may be for economic reasons. According to Article 2(1) of the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, 1990, the term “migrant worker” refers to “a person who is to be engaged, is engaged or has been engaged in a remunerated activity in a State of which he or she is not a national”.⁶⁸

The migrant workers continue to enjoy the protection of their home State, whereas the refugees are forced to leave their States and unlike migrants, they do not enjoy the protection

65. A/HRC/30/CRP. 2, 16 September 2015, para 1173.

66. A/HRC/30/CRP. 2, 16 September 2015, para 1037.

67. A/HRC/30/CRP. 2, 16 September 2015, para 1066.

68. The Migrant Workers Convention, 1990 is quite comprehensive and consists of 93 Articles. The Convention was adopted taking into account the principles embodied in the human rights instruments and the principles and standards set forth in the relevant instruments within the framework of the International Labour Organisation. The Convention deals with a set of human rights of migrant workers and obligates States parties to protect them. The Convention also makes provision for the establishment of the Committee on the Protection of the Rights of All Migrant Workers and Members of their Families (which is a body of independent experts) to monitor its implementation. The Convention came into force on 1 July 2003. The Convention did not receive good response from the States. Only 55 States are parties to this Convention.

of their home States. As migrants are not refugees, they are not entitled to the benefits of international refugee law.

Rajeev Dhavan makes out the difference between “refugees”, “asylum seekers” and “migrants” by stating that “‘refugees’ and ‘asylum seekers’ are externally displaced persons forced out or forced to leave their countries and who cannot return because they have a well-founded fear of persecution. They are not bereft of ideas of social and economic betterment. But, they are distinct from ‘migrants’ voluntarily seeking a better life’”.⁶⁹

As already stated IDPs are those persons who may have been displaced from their homes due to internal conflict, violence, civil war or natural or man-made disaster and remain within their State only.

19.18 Refugee Law and International Humanitarian Law

The refugee law is often linked to international humanitarian law which deals with war or internal armed conflicts. During war or internal armed conflict, the refugees find themselves in the midst of such conflict and flee from there. They become entitled to the protection of international humanitarian law, which provides that victims of armed conflict, whether displaced or not, should be respected, protected against the effect of war, and provided with impartial assistance.

Article 44 of the Fourth Geneva Convention Relative to the Protection of Civilian Persons in Time of War, 1949 deals specifically with refugees. It provides that “in applying the measures of control mentioned in the present Convention, the Detaining Power shall not treat as enemy aliens exclusively on the basis of their nationality *de jure* of an enemy State, refugees who do not, in fact, enjoy the protection of any government”. Thus, according to Article 44, refugees are not to be considered as enemy aliens by the Detaining Power.

In addition to above, the Additional Protocol I of 1977 provides that refugees and Stateless persons are to be protected under the provisions of Parts I and III of the Fourth Geneva Convention.⁷⁰ It is, however, noteworthy that international humanitarian law protects refugees only in situation of war or internal armed conflict. Thus, if a refugee, who was present in the area of armed conflict, flees from there and finds asylum in a State which is not involved in armed conflict, he will no more be protected by international humanitarian law.⁷¹

19.19 Refugee Law and Human Rights Law

Human rights law constitutes the broad framework within which refugee law provisions should be seen. Refugees are entitled to two sets of rights: (i) the rights accorded to them as individuals and guaranteed under international human rights standards and national law; and (ii) specific rights related to their status as refugees. These sets of rights overlap to some extent.⁷² The main aim of both the laws is to protect the life, dignity and liberty of each individual without exception.

Mass violations of human rights is one of the reasons for the people to leave their State and become refugees in other States. The UNHCR has very aptly stated in the following words:

Human rights violations are a major factor in causing the flight of refugees as well as an obstacle to their safety and voluntary return home. Safeguarding human rights in

69. See Arjun Nair, *National Refugee Law for India: Benefits and Roadblocks*, 2007, p 7.

70. Article 73, Additional Protocol I of 1977 of Geneva Conventions of 1949.

71. UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, pp 18–19.

72. UNHCR and IPU, *Refugee Protection: A Guide to International Refugee Law*, 2001, p 18.

countries of origin is therefore critical both for the prevention and for the solution of refugee problems. Respect for human rights is also essential for the protection of refugees in countries of asylum.⁷³

It is, therefore, the violations of human rights in the home State which force the people to cross international borders and seek protection abroad. Consequently, safeguarding human rights in State of origin is extremely important not only for the prevention of refugee problems but also for their solution where the problem had already arisen.

The refugee law, both customary and conventional, provides certain basic rights to refugees which are to be respected by States. These rights of the refugees have already been discussed. Apart from that, the provisions of human rights treaties are also applicable on them.

In addition to the principle of non-refoulement as provided under the 1951 Convention, the human rights law also sets out the obligation not to return someone to danger. The Convention against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment of 2001 provides for protection from refoulement, or forced return, to situations where there is a substantial risk of torture. Unlike the 1951 Convention, where the provision of non-refoulement is conditional as it is linked to a fear of persecution because of a person's race, religion, nationality, membership of a particular social group, or political opinion, the provision of non-refoulement is absolute and without exception under the Convention against Torture.

The Convention on the Rights of Child obligates States Parties to "take appropriate measures to ensure that a child who is seeking refugee status or who is considered a refugee in accordance with applicable international or domestic law and procedures shall, whether unaccompanied or accompanied by his or her parents or by any other person, receive appropriate protection and humanitarian assistance in the enjoyment of applicable rights set forth in the present Convention and in other international human rights or humanitarian instruments to which the said States are Parties".⁷⁴ The Convention is applicable to all children without discrimination, including child refugees and asylum-seekers. It is noteworthy that a large number of States are parties to this Convention.

Under international human rights law, the refugees like other persons are entitled to be treated with humanity and respect for the inherent dignity of the human being. As already stated, refugees are entitled not only to the rights accorded to them as individuals and guaranteed under international human rights standards and national law, but also to specific rights related to their status as refugees. The current trend is towards integration of the human rights law and humanitarian law with refugee law.

It is noteworthy that international human rights law comes to the rescue of those who are victims of mass human rights violations and flee their States but do not fall in the definition of "refugee". The human rights jurisprudence developed at regional and international level by certain courts and committees such as European Court of Human Rights, the UN Committee against Torture, and the UN Human Rights Committee have indicated that "many people who are not recognised as refugees under international refugee law may nevertheless be entitled not to be forcibly returned to their country of origin for reasons relating to human rights".⁷⁵

19.20 Refugee Protection in India

India is neither a party to 1951 Convention nor to 1967 protocol. However, it has been a host State for the refugees from many States, including Sri Lanka, Nepal, China, Burma,

73. See UNHCR, *Human Rights and Refugee Protection, Part I: General Introduction*, 1995, p 4.

74. Article 22, Convention on the Rights of the Child, 1989.

75. Alexander Betts, *Survival Migration Book: Failed Governance and the Crisis of Displacement*, Cornell University Press, 2013, p 180.

Bangladesh, Somalia, Afghanistan, and Bhutan. India is a preferred destination for refugees from this sub-continent due to its geographic location, democratic system of governance, mixed population, religious tolerant society and economic power. The refugees are dealt with on ad hoc basis based on foreign policy of the Government.

In India, the law relating to the treatment of foreigners in India (whether as tourists, refugees, migrants or in any other capacity), is provided in the Registration of Foreigners Act, 1939, the Foreigners Act, 1946, and the Foreigners Order, 1948. A “foreigner” is defined in Article 2 of the Registration of Foreigners Act, 1939 as “a person who is not a citizen of India”. The Foreigners Act of 1946 and the Foreigners Order of 1948 also uses this definition of a “foreigner”. Both these Acts and the Order affirmatively grant the Indian government powers to restrict the movement of foreigners inside India, to mandate medical examinations, to limit employment opportunities, and to control the opportunity to associate, and the ability to *refoule*, or “return,” refugees. However, the Refugee Convention bars all these actions.⁷⁶

Despite the fact that India is not a party to the aforesaid treaties, it continues to receive refugees even though its own population has crossed one billion. Further, it has also allowed UNHCR to function from India. India is a party to various international instruments, including International Covenant on Civil and Political Rights, 1966; International Covenant on Economic, Social and Cultural Rights, 1966; Convention on the Rights of Child, 1989; Convention on the Elimination of All Forms of Racial Discrimination, 1965; Convention on the Elimination of Discrimination against Women, 1979, and Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, 1984. In addition, the provisions of UN Declaration on Territorial Asylum 1967, and Universal Declaration of Human Right 1948 (Article 14) also create obligations for India.

The provisions of these conventions are also related to the protection of refugees. These treaties impose a positive duty on India to provide protection to refugees as long as they fear persecution at the hands of their government. The human rights of refugees are required to be respected.⁷⁷ India has brought its municipal legislations in conformity with the provisions of these conventions and has been giving effect to them.

The National Human Rights Commission (NHRC), which was established under the Protection of Human Rights Act, 1993, has been actively involved in the protection of refugees since inception. At times, it filed petitions before the courts for the protection of the refugees’ rights. The judiciary in India also has played a very active role in the protection of rights of the human beings without making any distinction between the citizens or foreigners, whether they be refugees or otherwise. Article 14 (right to equality before the law and equal protection of the laws) and Article 21 of the Constitution (right to life and personal liberty) are applicable on all. In *National Human Rights Commission v State of Arunachal Pradesh*,⁷⁸ the Supreme Court observed:

We are a country governed by the Rule of Law. Our Constitution confers rights on every human being and certain other rights on citizens. Every person is entitled to equality before the law and equal protection of the laws. So also, no person can be deprived of his life or personal liberty except according to procedure established by law. Thus the State is bound to protect the life and liberty of every human-being, be he a citizen or otherwise.⁷⁹

In *Malavika Karlekar v UOI*,⁸⁰ the Supreme Court stayed the deportation of the Andaman Island Burmese refugees as “their claim for refugee status was pending determination and a

76. See H K Thames, “India’s Failure to Adequately Protect Refugees,” quoted in Arjun Nair, *National Refugee Law for India: Benefits and Roadblocks*, 2007, p 6.

77. Arjun Nair, *National Refugee Law for India: Benefits and Roadblocks*, 2007, p 9.

78. *National Human Rights Commission v State of Arunachal Pradesh*, AIR 1996 SC 1234 : (1996) 1 SCC 742.

79. *National Human Rights Commission v State of Arunachal Pradesh*, (1996) 1 SCC 742, para 20.

80. *Malavika Karlekar v UOI*, Crl. WP No. 243 of 1988, decided on 25 September 1992 (SC).

prima facie case is made out for grant of refugee status". In addition to above, the Supreme Court and high courts have delivered judgments in various cases involving refugee's problems.⁸¹

The Indian stand on not joining the 1951 Convention or the 1967 Protocol is that the definition of refugee is narrow and refers only to the civil and political rights. It fails to recognise the fundamental factors that give rise to refugee movements. Since most refugee movements are directly related to widespread, abject poverty and deprivation around the globe, particularly in the developing world, the same have not been included in the definition of refugee. Further, even without becoming a party to the aforesaid convention and protocol, India had dealt with massive-scale influxes of refugees in an effective and humanitarian manner on *ad hoc* basis, the need to join the convention did not arise as such.

India also has concerns over the potentiality for incursion into State sovereignty posed by the 1951 Convention and the 1967 Protocol, including the supervision of refugee processing by UNHCR. Since it has to protect its porous borders from the threat of terrorists, criminals and other sources, it, therefore, prefers the unilateral control over its refugee policy.

To become a party to the 1951 Convention or 1967 Protocol would mean that India will have to undertake greater obligations to protect the rights of the refugees. This would result into heavy financial burden on the country which is struggling to provide basic amenities to its own population. Further, this is a well-known fact worldwide that India has been facing the problem of infiltration and terrorism since independence. This problem is likely to increase manifold if India becomes a party to the aforesaid Convention or Protocol and it will be very difficult to distinguish between an infiltrator and a genuine refugee in many cases.

Apart from that, the focus in India has always been on local integration as a solution rather than repatriation. This has made India to bear far more than its fair share of the global refugee burden.⁸²

19.21 Some Serious Refugee Crisis in Contemporary Period

The five States, i.e. Syria, Afghanistan, South Sudan, Myanmar and Somalia are responsible for two-thirds of all refugees throughout the world. The major reasons for these refugees fleeing their States are war and ethnic, tribal, and religious violence.⁸³

As far as Rohingya refugees are concerned, they are considered a Stateless ethnic Muslim minority in Myanmar. Since early 1990s when their displacement started in Myanmar and violence took place against them, more than one million Rohingya refugees have fled violence.⁸⁴ The exodus of more than 250,000 Rohingya Muslims took place to Bangladesh between 1991–92 due to discrimination, violence and forced labour practices by the Myanmar authorities. Most of them later went back from Bangladesh to Myanmar, only to return to Bangladesh eventually. Rohingya as were deprived of Myanmar citizenship in 1982 and expelled twice by the government, in 1978 and again during 1991–1992. The 2012 outbreak of communal violence in northern Rakhine troubled very deeply. The deadly violence that erupted between ethnic Arakanese Buddhists and Rohingya Muslims in early June 2012 began

81. See *Gurunathan v Government of India*, WP Nos. 6708 and 7916 of 1992, (Madras High Court) and *AC Mohd. Siddique v Government of India*, (1998) 47 DRJ (DB) 74 in which the Madras High Court expressed its unwillingness to let any Sri Lankan refugees to be forced to return to Sri Lanka against their will.

82. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, pp 192–93.

83. See <https://www.unrefugees.org/refugee-facts/what-is-a-refugee/> (last accessed in January, 2021).

84. See <https://www.unhcr.org/en-in/rohingya-emergency.html> (last accessed in January, 2021).

as sectarian clashes. But when violence resumed in October, it became a coordinated campaign to forcibly relocate or remove the State's Muslims.⁸⁵

Following the aforesaid incidents, on 25 October 2012, the Spokesperson for UN Secretary-General Ban Ki-moon stated that “the widening mistrust between the communities is being exploited by militant and criminal elements to cause large-scale loss of human lives, material destruction, displaced families as well as fear, humiliation and hatred affecting the people from all walks of life”. He further stated that “the vigilante attacks, targeted threats and extremist rhetoric must be stopped. If this is not done, the fabric of social order could be irreparably damaged and the reform and opening up process being currently pursued by the government is likely to be jeopardized”.⁸⁶

Unfortunately, even till date the problem of Rohingya refugees has not been resolved. According to UNHCR, as of 31 July 2019, 742,000 Rohingya refugees have fled to Bangladesh from Myanmar since 25 August 2017 due to large scale violence against them in Myanmar's Rakhine State. These Rohingya refugees walked for days through jungles and mountains, voyaged across the Bay of Bengal facing enormous hardships to reach Bangladesh. The various reasons why their stay in Myanmar became next to impossible included the denial of citizenship rights, denial of freedom of movement, eviction campaigns, excessive taxation, forced labour, expulsion from their lands and property, violence and physical torture.⁸⁷

It is noteworthy that on 11 November 2019, the Gambia filed an Application in the ICJ instituting proceedings against Myanmar concerning alleged violations of the Genocide Convention, 1948. The Court indicated provisional measures on 23 January 2020⁸⁸ that Myanmar shall, in relation to the members of the Rohingya group in its territory, take all measures within its power to prevent the commission of all acts within the scope of Article II of the Genocide Convention. The Court further stated that Myanmar shall also ensure that its military, any irregular armed units, any organisations and persons under its control, direction or influence, do not commit genocide or conspiracy to commit genocide. The more about the case has been discussed in the Chapter “International Criminal Law”.

To sum up, the practice shows that refugees are viewed as a burden on the host States in most of the cases. By adopting constructive approach and appropriate measures, the refugees may be turned into human resource and agents of development. They may ultimately contribute to the development of economic growth of that region. For this purpose, “the initiative should go beyond the humanitarian relief phase and move towards improving quality of life and fostering a community spirit of self-reliance and cooperation, to prepare them for durable solutions”.⁸⁹

Apart from that, it is the collective responsibility of international community, represented by the Security Council, the international humanitarian organisations, and the neighbouring countries to make every effort to bring peace and stability to the disturbed areas. It is only the peaceful environment that will create the conditions for voluntary and sustainable returns of refugees to reintegrate with the local community in their region.⁹⁰

85. See <https://www.hrw.org/report/2013/04/22/all-you-can-do-pray/crimes-against-humanity-and-ethnic-cleansing-rohingya-muslims> (last accessed in January, 2021).

86. <https://www.un.org/sg/en/content/sg/statement/2012-10-25/statement-attributable-spokesperson-secretary-general-fresh-outbreak> (last accessed in January, 2021).

87. CR Abrar, *Multilevel Approaches to Human Security and Conflict Management: The Rohingya Case*, 2013, pp 2–3.

88. *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (The Gambia v Myanmar)*, Provisional Measures, Order of 23 January 2020.

89. Abdullah Yassen, *Durable Solutions for Syrian Refugees in the Kurdistan Region of Iraq*, 2019, p 20.

90. Abdullah Yassen, *Durable Solutions for Syrian Refugees in the Kurdistan Region of Iraq*, 2019, p 21.

CHAPTER 20

PROTECTION OF HUMAN RIGHTS

SYNOPSIS

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“Injustice anywhere is a threat to justice everywhere”

Martin Luther King Jr.

Human rights may be defined as those fundamental and inalienable rights which are essential to live as a human being. In other words, human rights are inherent to all human beings without any distinction whatsoever. “Human rights and fundamental freedoms are the birthright of all human beings; their protection and promotion is the first responsibility of Governments”.¹

Being inherent rights, the States do not grant these rights to the human beings. It only recognises these rights and protects them.

Kelsen writes that human rights “are of legal importance only if the corresponding legal obligations — obligations of other individuals and especially obligations of the State — are established by State legislation or international agreements”.² The Vienna Declaration and Programme of Action on Human Rights 1993 States:

All human rights are universal, indivisible and interdependent and interrelated. The international community must treat human rights globally in a fair and equal manner, on the same footing, and with the same emphasis. While the significance of national and regional particularities and various historical, cultural and religious backgrounds must be borne in mind, it is the duty of States, regardless of their political, economic and cultural systems, to promote and protect all human rights and fundamental freedoms.³

20.1 Three Generation Human Rights

Human rights have been classified into three categories: first generation human rights; second generation human rights; and third generation human rights. Civil and political rights are known as first generation human rights. These rights have been derived from the natural rights philosophy⁴ and have traditionally been given priority by Western States.

1. See *Vienna Declaration and Programme of Action* Adopted by the World Conference on Human Rights in Vienna on 25 June 1993.
2. Hans Kelsen, *The Law of the United Nations*, 1950, p 39.
3. *Supra* note 1; (1994) 1-1 IHRR 240.
4. For example, natural rights philosophy of Locke, Rousseau and others.

Economic, social and cultural rights fall into the category of second generation human rights. These rights have attained recognition in the 20th century with the advent of socialism.⁵ The instruments on civil and political rights require instant respect for the rights enumerated therein, whereas the instruments on economic, social and cultural rights require the States to take appropriate measures in order to achieve a progressive realisation of these rights.⁶ The first generation human rights and second generation human rights have been discussed in detail later in this chapter.

The third generation human rights are comparatively new and supported predominantly by developing States. These rights are collective rights, group rights or solidarity rights and emerged only in 1970s. These rights, include right to development, right to environment, right to peace, right to self-determination, etc. Article 1(1) of the Declaration on the Right to Development 1986 States:

The right to development is an inalienable human right by virtue of which every human person and all peoples are entitled to participate in, contribute to and enjoy economic, social, cultural and political development, in which all human rights and fundamental freedoms can be fully realised.

These rights have a direct effect on the quality of individuals' lives. It has been argued that it is not possible to categorise these as human rights as they cannot be implemented by a court and also because the specific corresponding legal duties are unclear.⁷ Sieghart States that "apart from being new, what these rights have in common is that it is sometimes difficult to see how they can be vested in, or exercised by, individuals. According to the classical theory, only the rights of human individuals can be 'human' rights".⁸

This chapter will primarily deal with international human rights law. International human rights law deals with "the protection of individuals and groups against violations of their internationally guaranteed rights, and with the promotion of these rights".⁹

At international level, the emergence of institutions with some semblance of human rights could be witnessed after the World War-I. However, World War-II can be considered as a real cause for the beginning of the recognition of human rights at the global level. The devastation caused by the War and the violation of human rights at mass level forced the international community to think of an international order which not only gives respect to human rights but also promotes and protects them at the world level. This, however was not an easy task as the human rights were considered as a matter falling within the domestic jurisdiction of the States which had different political, economic and social systems as well as diverse cultures. Having an unanimity on the meaning and scope of human rights was the biggest challenge.¹⁰

20.2 Human Rights Under UN Charter

The recognition of human rights at international level got momentum only after the adoption of UN Charter in 1945. Prior to 1945, there were a couple of treaties which dealt with specific issues, such as Slavery Convention of 1926; and International Convention for the Suppression

5. D J Harris, *Cases and Materials on International Law*, 2004, p 655.

6. See also Louise Doswald-Beck and Sylvain Vite, *International Humanitarian Law and Human Rights Law* in MK Balachandran and Rose Varghese, *Introduction to international Humanitarian Law*, 1997, p 126.

7. Louise Doswald-Beck and Sylvain Vite, *International Humanitarian Law and Human Rights Law* in MK Balachandran and Rose Varghese, *Introduction to international Humanitarian Law*, 1997, p 128; see also D J Harris, *Cases and Materials on International Law*, 2004, p 656.

8. Sieghart, *The Lawful Rights of Mankind*, 1986, p 161.

9. T Buergenthal, *International Human Rights in a Nutshell*, (2002), p 1.

10. Siddhartha Misra, "Transition from Human Rights Commission to Human Rights Council: Whether the Successor Benefits its Predecessor?" in VK Ahuja, *Human Rights: Contemporary Issues*, 2018, pp 619–20.

of Traffic in Women and Children of 1921. There was no treaty of universal application which dealt with the protection of human rights in broader context.

In the post-1945 era, the UN Charter was followed by the Universal Declaration of Human Rights 1948 and a series of multilateral treaties concluded through the United Nations which have been discussed later in this chapter. The developments in the area of human rights at regional level also resulted in the adoption of European Convention on Human Rights 1950, the European Social Charter 1961, and the Revised European Social Charter 1966, the American Convention on Human Rights 1969 and the African Charter on Human Rights and Peoples' Rights 1981.

The UN Charter in its preamble reaffirms "faith in fundamental human rights, in the dignity and worth of the human person, in the equal rights of men and women and of nations large and small". One of the purposes of the UN Charter is "to achieve international co-operation in ... promoting and encouraging respect for human rights and for fundamental freedoms for all without distinction as to race, sex, language, or religion".¹¹

The Charter also puts responsibility on General Assembly to initiate studies and make recommendations for the purpose of promoting international co-operation in the economic, social, cultural, educational, and health fields, and assisting in the realisation of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion.¹²

Apart from that, Articles 55 and 56 of Chapter IX which deals with international economic and social cooperation emphasise the need for the promotion of economic rights and social policies that address discriminatory practices based on gender, race, language or religion. The Economic and Social Council is obligated to set up commissions in economic and social fields and for the promotion of human rights.¹³

Chapters XII and XIII of the Charter dealing with international trusteeship system and the Trusteeship Council, outline various procedural provisions associated with the establishment of a "trusteeship system" aimed at promoting civil and political rights and economic rights, together with calling for enhanced cooperation in dealing with issues pertaining to international peace and security.¹⁴

Although the UN Charter does not authorise "the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any State",¹⁵ the practice that has emerged over the years has established that human rights issues are not solely confined to the domestic jurisdiction of a State.

20.3 International Human Rights Instruments

A series of international human rights instruments dealing with various aspects of human rights was adopted at UN level starting with Universal Declaration of Human Rights in 1948. A brief discussion has been made with respect to these instruments below.

20.3.1 Universal Declaration of Human Rights

The Universal Declaration of Human Rights, 1948 (UDHR) is one of the most important instruments on international human rights. The preamble of UDHR emphasises that

11. Article 1(3), UN Charter.

12. Article 13(1)(b), UN Charter.

13. Article 68, UN Charter.

14. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 60.

15. Article 2(7), UN Charter.

“recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world”. The UDHR specifically lists various civil, political, economic, social, and cultural rights to be respected by all members of the United Nations. Being a Declaration, it is not binding on States as such. It was adopted without a dissenting vote at the UN General Assembly. Many of its provisions were incorporated in International Covenant on Civil and Political Rights, 1966 (ICCPR); and International Covenant on Economic, Social and Cultural Rights, 1966 (ICESCR). As the provisions of the UDHR are cited as evidence of well accepted international norms, they are also being considered as a part of customary international law.¹⁶

The UDHR left a marked influence upon the Constitutions of many States and upon the formulation of subsequent human rights treaties and resolutions.¹⁷ India’s progressive Constitution, drafted from 1948 to 1950 under the influence of the US Bill of Rights and the Universal Declaration of Human Rights, guarantees a panoply of justiciable “Fundamental Rights” protecting equality before law, life, liberty, speech, assembly, association, religion, conscience and more.¹⁸

The courts in India have been referring to UDHR while deciding cases. In *Chairman, Rly Board v Chandrima Das*,¹⁹ the Supreme Court held:

The International Covenants and Declarations as adopted by the United Nations have to be respected by all signatory States and the meaning given to the ... words in those Declarations and Covenants have to be such as would help in effective implementation of those rights. The applicability of the Universal Declaration of Human Rights and the principles thereof may have to be read, if need be, into the domestic jurisprudence.

The Court observed that since right to “life” is recognised as a basic human right in the Universal Declaration of Human Rights, 1948, it has to have the same meaning and interpretation as has been placed on that word by the Court in its various decisions relating to Article 21 of the Constitution. The meaning of the word “life” cannot be narrowed down. According to the tenor of the language used in Article 21 of the Constitution, it will be available not only to every citizen of this country, but also to a “person” who may not be a citizen of the country.

In *DK Basu v State of West Bengal*,²⁰ the Supreme Court stated that “custodial violence” and abuse of police power is not only peculiar to this country but also widespread. It has been the concern of international community because the problem is universal and the challenge is almost global. The Universal Declaration of Human Rights in 1948, which marked the emergence of a worldwide trend of protection and guarantee of certain basic human rights, stipulates in Article 5 that “no one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment”. Despite the pious declaration, the crime continues unabated, though every civilized nation shows its concern and takes steps for its eradication.

The aforesaid three international instruments, i.e. UDHR, ICCPR and ICESCR form the bedrock of international human rights law. These instruments are collectively known as the “International Bill of Rights”.

16. South Asia Human Rights Documentation Centre (SAHRDC), *Human Rights and Humanitarian Law: Developments in Indian and International Law*, 2008, p 44.

17. Malcolm N Shaw, *International Law*, 2008, p 279.

18. Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 227–94 at p 244.

19. *Chairman, Rly Board v Chandrima Das*, (2000) 2 SCC 465.

20. *DK Basu v State of West Bengal*, AIR 1997 SC 610.

20.3.2 UNESCO Convention Against Discrimination in Education, 1960

The Convention against Discrimination in Education was adopted by UNESCO on 14 December 1960. The Convention recalls the UDHR principle of non-discrimination and the right to education of every person. The Convention seeks to prevent and eliminate discrimination²¹ and promote the “equality of opportunity in education”.²²

The Convention defines “discrimination” to include “any distinction, exclusion, limitation or preference” which is based on birth, sex, religion, race, language, colour, national origin or social origin, political or other opinion or economic condition and in education matters, it has either the effect or the purpose of “nullifying” or “impairing equality of treatment”.²³ The Convention provides inclusive definition of discrimination, which means that discrimination of other types may also be covered in the definition. The Convention explained the term “education” to denote education of every type and every level. It includes three things — (i) “access to education”, (ii) the “standard and quality of education”, and (iii) the “conditions under which it is given”.²⁴ India is not a party to the Convention, but it does not mean that India allows any sort of discrimination in education. In fact, being party to several human rights instruments, India follows the policy of non-discrimination in education. Not only that it also follows the policy of equality of opportunity for all in the matter of education.

20.3.3 International Covenant on Civil and Political Rights

The International Covenant on Civil and Political Rights (ICCPR) was adopted in 1966. It entered into force on 23 March 1976. It contains right of self-determination; right to life; right to liberty and security; freedom from torture or cruel, inhuman or degrading treatment or punishment; freedom from slavery and servitude; right to liberty of movement; right to fair trial; freedom of thought, conscience, and religion; freedom from arbitrary or unlawful interference with privacy, family, home, or correspondence; right to recognition as a person before the law; right of peaceful assembly; right to freedom of association and expression; right to equality before the law and equal protection of the law, right to marry and found a family. These rights have been discussed below.

20.3.3.1 Right of Self-determination

The Covenant recognises the right of self-determination of all peoples. By virtue of this right they freely determine their political status and freely pursue their economic, social and cultural development.²⁵ In *Advisory Opinion on Western Sahara* case,²⁶ the ICJ made the following observations:

The principle of self-determination as a right of peoples, and its application for the purpose of bringing all colonial situations to a speedy end, were enunciated in the Declaration on the Granting of Independence to Colonial Countries and Peoples, General Assembly resolution 1514 (XV). ... [T]he application of the right of self-determination requires a free and genuine expression of the will of the peoples concerned.²⁷

India promoted a restrictive view of the ICCPR and ICESCR's right of self-determination. It expressed that view in a formal reservation when it acceded to these two covenants

21. Article 3, UNESCO Convention, 1960.

22. Article 4, UNESCO Convention, 1960.

23. Article 1, UNESCO Convention, 1960.

24. Article 1, UNESCO Convention, 1960.

25. Article 1, ICCPR.

26. *Western Sahara*, (1975) ICJ Rep 12.

27. *Western Sahara*, (1975) ICJ Rep 12, para 55.

in 1979. Fortifying itself against separatist claims, India declared that the words “the right of self-determination” apply only to the peoples under foreign domination and that these words do not apply to sovereign independent States or to a section of the people or nation which is the essence of national integrity. This prompted formal objections from France, Holland, and West Germany that the right of self-determination applied to all peoples, not just those under foreign domination.²⁸ According to Hurst Hannum, “secession is not presently recognized as a right under international law, nor does international law prohibit secession”.²⁹

The Supreme Court of Canada in *Reference re Secession of Quebec* case³⁰ observed that:

the international law right to self-determination only generates, at best, a right to external self-determination in situations of former colonies; where a people is oppressed, as for example under foreign military occupation; or where a definable group is denied meaningful access to government to pursue their political, economic, social and cultural development. In all three situations, the people in question are entitled to a right to external self-determination because they have been denied the ability to exert internally their right to self-determination.

In *East Timor* case,³¹ the International Court of Justice (ICJ) agreed with the assertion of Portugal that the right of peoples to self-determination, as it evolved from the UN Charter and from United Nations practice, has an *erga omnes* (towards all) character. The principle of self-determination of peoples has been recognised by the UN Charter and in the jurisprudence of the ICJ.³² It is one of the essential principles of contemporary international law.

On the issue of the right of Palestinian peoples to self-determination, the ICJ in Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,³³ observed that the existence of a “Palestinian people” was no longer in issue. Such existence has been recognised by Israel. The Israeli-Palestinian Interim Agreement on the West Bank and Gaza Strip of 28 September 1995 refers a number of times to the Palestinian people and its legitimate rights. Those rights included the right of self-determination.³⁴ In 2010, the ICJ ruled in advisory opinion that Kosovo’s unilateral declaration of independence had not violated international law.³⁵

The principle of self-determination, thus, applies beyond the colonial context, within the territorial framework of independent States. However, it cannot be utilised as a legal tool for the dismantling of sovereign States.³⁶

20.3.3.2 Non-discrimination

According to Article 2(1), the rights enshrined in the Covenant are to be recognised by the State Parties without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status. The obligations of

28. Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 227–94, at p 264.

29. Hurst Hannum, “Rethinking Self-Determination”, *Virginia Journal of International Law*, vol 34, 2011, p 42.

30. *Reference re Secession of Quebec*, (1998) 2 SCR 217, para 138.

31. *Portugal v Australia*, (1995) ICJ Rep 90, para 29.

32. See *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276 (1970)*, Advisory Opinion, (1971) ICJ Rep 16 pp 31–32, paras 52–53; *Western Sahara*, Advisory Opinion, (1975) ICJ Rep 12 pp 31–33, paras 54–59.

33. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

34. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 118.

35. Gary J Basst, “The Indian Way of Humanitarian Intervention”, *The Yale Journal of International Law*, vol 40, 2015, pp 227–94, p 269.

36. Declaration on the Principles of International Law Concerning Friendly Relations, 1970; and Vienna Declaration on Human Rights, 1993. See also Malcolm N Shaw, *International Law*, 2008, p 291.

State Party to respect and to ensure these rights extend to all individuals within its territory and subject to its jurisdiction. This provision is to be construed as covering both individuals present within a State's territory and those outside that territory but subject to that State's jurisdiction. In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,³⁷ the ICJ observed that:

while the jurisdiction of States is primarily territorial, it may sometimes be exercised outside the national territory. Considering the object and purpose of the International Covenant on Civil and Political Rights, it would seem natural that, even when such is the case, States parties to the Covenant should be bound to comply with its provisions. The constant practice of the Human Rights Committee is consistent with this. Thus, the Committee has found the Covenant applicable where the State exercises its jurisdiction on foreign territory.³⁸

About this basic obligation of States Parties, the General Comment No. 31 of the Human Rights Committee provides that "article 2, paragraph 1, obligation to respect and ensure the rights recognized by the Covenant has immediate effect for all States parties". It was further stated that the legal obligation under Article 2(1) "is both negative and positive in nature. States Parties must refrain from violation of the rights recognized by the Covenant, and any restrictions on any of those rights must be permissible under the relevant provisions of the Covenant. Where such restrictions are made, States must demonstrate their necessity and only take such measures as a proportionate to the pursuance of legitimate aims in order to ensure continuous and effective protection of Covenant rights. In no case may the restrictions be applied or invoked in a manner that would impair the essence of a Covenant right".

The State Parties are required to protect these rights and provide for remedies for the violation of the same by adopting laws in their jurisdiction. The civil and political rights of men and women shall be equal without any discrimination under the Covenant.³⁹

20.3.3.3 Derogation of Obligations During Public Emergency

In time of public emergency which threatens the life of the nation, the States Parties are allowed by Article 4 to take measures derogating from their obligations under the present Covenant to the extent strictly required by the exigencies of the situation. Such measures, however, shall not be inconsistent with their other obligations under international law and shall not involve discrimination solely on the ground of race, colour, sex, language, religion or social origin. No derogation is allowed from certain articles of the Covenant.⁴⁰

20.3.3.4 Core Human Rights

Article 6(1) recognises the inherent right to life of every human being. This right is to be protected by law. No one is to be arbitrarily deprived of his life. In *Guerrero v Colombia*,⁴¹ the Human Rights Committee observed:

[T]he right enshrined in [Article 6] ... is the supreme right of the human being. It follows that the deprivation of life by the authorities of the State is a matter of the utmost gravity. This follows from the article as a whole and in particular is the reason why paragraph 2 of the article lays down that the death penalty may be imposed only for the most serious crimes. The requirements that the right shall be protected by law and that no one shall

37. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

38. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 109.

39. Article 3, ICCPR.

40. These are Articles 6, 7, 8 (1) and (2), 11, 15, 16 and 18, ICCPR.

41. *Guerrero v Colombia*, Human Rights Committee, (1982) 1 Selected Decisions HRC 112.

be arbitrarily deprived of his life mean that the law must strictly control and limit the circumstances in which a person may be deprived of his life by the authorities of a State.⁴²

Regarding the right to life of the “disappeared persons”, the Human Rights Committee in its General Comment No. 6 stated that:

States parties should also take specific and effective measures to prevent the disappearance of individuals, something which unfortunately has become all too frequent and leads too often to arbitrary deprivation of life. Furthermore, States should establish effective facilities and procedures to investigate thoroughly cases of missing and disappeared persons in circumstances which may involve a violation of the right to life.⁴³

As far as death penalty is concerned, Article 6(2) provides that it may be imposed only for the *most serious crimes*⁴⁴ in accordance with the law in force at the time of the commission of the crime. It should not be contrary to the provisions of the Covenant and the Convention on the Prevention and Punishment of the Crime of Genocide. The death penalty can only be carried out pursuant to a final judgment rendered by a competent court. Anyone sentenced to death has the right to seek pardon or commutation of the sentence. Amnesty, pardon or commutation of the sentence of death may be granted in all cases. Sentence of death is not to be imposed on persons below 18 years of age and pregnant women.⁴⁵ Article 6(6) expresses clearly a strong presumption in favour of the abolition of the death penalty by stating that “nothing in this article shall be invoked to delay or to prevent the abolition of capital punishment by any State Party to the present Covenant”.

Article 6, though allows the imposition of death penalty, is drafted with a lot of limitations and restrictions. For example, death penalty is allowed only in cases of “most serious crimes”. It can be imposed only “in accordance with the law in force at the time of the commission of the crime”. This means that if a crime was not punishable by death penalty at the time of its commission, but later made so, the accused shall not be awarded death penalty. In other words, the implementation of an *ex post facto* law which provides for the imposition of death penalty on accused is not allowed. Further, the death penalty can only be carried out pursuant to a final judgment rendered by a competent court. This means that the convicted person has the right to go in appeal against his conviction and exhaust all the legal remedies. The convicted person also has the right to seek pardon or commutation of the sentence. He may be granted amnesty, pardon or commutation of the sentence of death. This right is ordinarily provided in the Constitution of States. Lastly, as per Article 6, persons below 18 years of age and pregnant women are exempted from death penalty.

The aforesaid limitations in Article 6 have also been adopted by some regional human rights instruments. Some States, particularly European States, have abolished death penalty. In India, death penalty is awarded in “rarest of the rare” cases.

In 1993, on the issue of death penalty, the Human Rights Committee in *Kindler v Canada*,⁴⁶ took the view that it does not consider that the deportation of a person from a country which

42. *Guerrero v Colombia*, Human Rights Committee, (1982) 1 Selected Decisions HRC 112, para 13.1.

43. General Comment No. 6 (1982), (1994) 1-2 IHRR 4.

44. The expression “most serious crimes” must be read restrictively to mean that the death penalty should be a quite exceptional measures. General Comment No. 6 (1982), (1994) 1-2 IHRR 4. The Human Rights Committee has confirmed that the following are not “most serious crimes”, and cannot therefore attract the death penalty: treason, piracy, robbery, traffic in toxic or dangerous wastes, abetting suicide, drug-related offences, property offences, multiple evasion of military service, apostasy, committing a third homosexual act, embezzlement by officials, theft by force, abduction not resulting in death, crimes of an economic nature, adultery, corruption, and crimes that do not result in the loss of life. See *The International Covenant on Civil and Political Rights*, Joseph, Schult and Castan(Eds), 2004, p 167.

45. Article 6(3)–(5), ICCPR.

46. *Kindler v Canada*, (1993) 1-2 IHRR 98.

has abolished the death penalty to a country where he/she is under sentence of death amounts *per se* to a violation of Article 6. However, in *Judge v Canada*,⁴⁷ the Committee stated that it was “mindful of the fact that the above-mentioned jurisprudence was established some 10 years ago, and that since that time there has been a broadening international consensus in favour of abolition of the death penalty, and in States which have retained the death penalty, a broadening consensus not to carry it out”.⁴⁸ The Committee further stated that for countries that have abolished the death penalty, there is an obligation not to expose a person to the real risk of its application. Thus, they may not remove, either by deportation or extradition, individuals from their jurisdiction if it may be reasonably anticipated that they will be sentenced to death, without ensuring that the death sentence would not be carried out. It would appear logical, therefore to interpret the rule in Article 6(1) in a wide sense, whereas Article 6(2) which addresses the death penalty, should be interpreted narrowly.⁴⁹

Article 7 provides that no one is to be subjected to torture or to cruel, inhuman or degrading treatment or punishment. In particular, no one is to be subjected to medical or scientific experimentation without his free consent. International law contains an absolute and peremptory prohibition of torture and other cruel, inhuman or degrading treatment or punishment, as set out *inter alia* in the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT) and the International Covenant on Civil and Political Rights (ICCPR). The right to be free from torture cannot be limited or derogated from under any circumstances.⁵⁰ The Human Rights Committee made the following General Comment on Article 7:

The aim of the provisions of Article 7 of the International Covenant on Civil and Political Rights is to protect both the dignity and the physical and mental integrity of the individual. It is the duty of the State party to afford everyone protection through legislative and other measures as may be necessary against the acts prohibited by Article 7, whether inflicted by people acting in their official capacity, outside their official capacity or in a private capacity.⁵¹

The Committee further stated that the prohibition in Article 7 is complemented by the positive requirements of Article 10(1), which stipulates that “All persons deprived of their liberty shall be treated with humanity and with respect for the inherent dignity of the human person”. Even in situations of public emergency such as those referred to in Article 4, no derogation from the provision of Article 7 is allowed. The prohibition in Article 7 relates not only to acts that cause physical pain but also to acts that cause mental suffering to the victim. The death penalty must be carried out in such a way as to cause the least possible physical and mental suffering.⁵²

In *Vuolanne v Finland*,⁵³ the Committee observed that “the assessment of what constitutes inhuman or degrading treatment falling within the meaning of Article 7 depends on all the circumstances of the case, such as the duration and manner of the treatment, its physical or mental effects as well as the sex, age and state of health of the victim”. In *Higginson v Jamaica*,⁵⁴ the Committee stated that “it is the consistent opinion of the Committee that corporal

47. *Judge v Canada*, (2004) 11 IHRR 125.

48. *Judge v Canada*, (2004) 11 IHRR 125, para 10.3.

49. *Judge v Canada*, (2004) 11 IHRR 125, paras 10.4–10.5.

50. Article 4(2), ICCPR, Article 2(2) Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment. See *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 204.

51. Human Rights Committee, General Comment No. 20 on Article 7 ICCPR: Freedom from Torture, etc., 47 UN GAOR, Supp 40 (A/47/40) Annex VI, para 2; (1994) 1-2 IHRR 26.

52. 47 UN GAOR, Supp. 40 (A/47/40) Annex VI, paras 2, 3, 5, 7.

53. *Vuolanne v Finland*, HRC Report, UN GAOR, 44th Session Supp 40, p 249 (29 September 1989).

54. *Higginson v Jamaica*, (2002) 9 IHRR 959.

punishment constitutes cruel, inhuman and degrading treatment or punishment contrary to Article 7 of the Covenant. The Committee finds that the imposition or the execution of a sentence of whipping with the tamarind switch [six strokes] constitutes a violation of the author's rights under Article 7".

In *NG v Canada*,⁵⁵ the Human Rights Committee observed that "in determining whether, in a particular case, the imposition of capital punishment constitutes a violation of Article 7, the Committee will have regard to the relevant personal factors regarding the author, the specific conditions of detention on death row, and whether the proposed method of execution is particularly abhorrent". The Committee further stated that whereas Article 6(2) allowed for the imposition of the death penalty under certain limited circumstances, any method of execution provided for by law must be designed in such a way as to avoid conflict with Article 7.⁵⁶ In its General Comment 20[44] on Article 7, the Committee stated that when imposing capital punishment, the execution of the sentence "must be carried out in such a way as to cause the least possible physical and mental suffering".⁵⁷

The question whether detention for a long period of time on death row amounts to a breach of Article 7 of the Covenant came before the Human Rights Committee in *Barrett and Sutcliffe v Jamaica*.⁵⁸ The Committee reiterated its views that:

prolonged judicial proceedings do not *per se* constitute cruel, inhuman and degrading treatment, even if they may be a source of mental strain and tension for detained persons. This also applies to appeal and review proceedings in cases involving capital punishment, although an assessment of the particular circumstances of each case would be called for. In States whose judicial system provides for a review of criminal convictions and sentences, an element of delay between the lawful imposition of a sentence of death and the exhaustion of available remedies is inherent in the review of the sentence.

No one is to be held in slavery. Slavery and the slave-trade in all their forms are prohibited. Further, no one is to be held in servitude. No one is to be required to perform forced or compulsory labour. The term "forced or compulsory labour" does not include: (i) any work or service normally required of a person who is under detention in consequence of a lawful order of a court, or of a person during conditional release from such detention; (ii) any service of a military character and, in countries where conscientious objection is recognised, any national service required by law of conscientious objectors; (iii) any service exacted in cases of emergency or calamity threatening the life or well-being of the community; and (iv) any work or service which forms part of normal civil obligations.⁵⁹

According to Article 9, everyone has the right to liberty and security of person. No one is to be subjected to arbitrary⁶⁰ arrest or detention. No one is to be deprived of his liberty except on such grounds and in accordance with such procedure as are established by law. The Human Rights Committee has observed that "remand in custody pursuant to lawful arrest must not only be lawful but reasonable in all the circumstances. Remand in custody must further be necessary in all the circumstances, for example to prevent flight, interference with evidence or the recurrence of crime".⁶¹

55. *NG v Canada*, (1994) 1-2 IHRR 161, para 16.1.

56. *NG v Canada*, (1994) 1-2 IHRR 161.

57. CCPR/C/21 Add 3, para 6.

58. *Barrett and Sutcliffe v Jamaica*, HRC Report, GAOR, 47th Session Supp 40, p 246 at 250 (9 October 1992).

59. Article 8, ICCPR.

60. The Human Rights Committee interpreted "arbitrary" broadly to include "inappropriateness, injustice, lack of predictability and due process of law". See *Mukong v Cameroon*, (1995) 2 IHRR 131, para 9.8; see also *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1032.

61. *Mukong v Cameroon*, (1995) 2 IHRR 131.

Anyone who is arrested is to be informed of the reasons for his arrest at the time of arrest. He is to be promptly informed of any charges against him. Anyone arrested or detained on a criminal charge is to be brought promptly before a judge or other officer authorized by law to exercise judicial power. He shall be entitled to trial within a reasonable time or to release.⁶² It shall not be the general rule that persons awaiting trial shall be detained in custody. The release may be subject to guarantees to appear for trial, at any other stage of the judicial proceedings, and for execution of the judgment.

An individual who is deprived of his liberty by arrest or detention shall be entitled to take proceedings before a court. The court may decide without delay on the lawfulness of his detention and order his release if the detention is not lawful.⁶³

In *Report of the OHCHR Investigation on Sri Lanka (OISL)*,⁶⁴ it was stated that in addition to detention for the purpose of holding a person for criminal trial or pursuant to conviction by a court, authorities may impose administrative detention, not in contemplation of prosecution on a criminal charge. In this respect, the Human Rights Committee noted that administrative detention presents severe risks of arbitrary deprivation of liberty and would only be justified under the most exceptional circumstances, towards a person posing a “present, direct and imperative threat”.⁶⁵ In such cases the burden of proof lies on the authorities to show that the individual poses such a threat and that the situation cannot effectively be addressed by alternative measures. Persons deprived of their liberty must be released as soon as the reasons for the deprivation of their liberty cease to exist.⁶⁶

According to Article 9(5), anyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation. In *Nilabati Behera v State of Orissa*,⁶⁷ the Supreme Court was of the opinion that Article 9(5) indicated that an enforceable right to compensation was not alien to the concept of enforcement of a guaranteed right. In *DK Basu v State of West Bengal*,⁶⁸ the Supreme Court rejected the reservation made by the Government of India to the International Covenant on Civil and Political Rights, 1966. The Court held:

Article 9(5) of the International Covenant on Civil and Political Rights, 1966 (ICCPR) provides that “anyone who has been the victim of unlawful arrest or detention shall have enforceable right to compensation”. Of course, the Government of India at the time of its ratification (of ICCPR) in 1979 had made a specific reservation to the effect that the Indian Legal system does not recognise a right to compensation for victims of unlawful arrest or detention That reservation, however, has now lost its relevance in view of the law laid down by this Court in a number of cases awarding compensation for the infringement of the fundamental right to life of a citizen.

According to Article 10, all persons deprived of their liberty are to be treated with humanity and with respect for the inherent dignity of the human person.⁶⁹ Accused persons are to be

62. In *Kone v Senegal*, (1995) 2 IHRR 279, a delay of four years and four months in holding trial was not considered reasonable as there were no special circumstances. Similarly, a period of 30 months between arrest and the beginning of the trial was considered a breach of Article 9(3) in *Douglas v Jamaica*, (1997) 4 IHRR 387; see also *Shalto v Trinidad*, (1996) 2 IHRR 568.

63. In *Carballal v Uruguay*, (1981) 1 Selected Decisions HRC 63, pp 64–65, the Committee found various breaches of Article 9.

64. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, paras 1033, 1035.

65. Human Rights Committee, General Comment 35, para 15.

66. Human Rights Committee, General Comment 35, *Database on Customary International Humanitarian Law*, Rule 128.

67. *Nilabati Behera v State of Orissa*, AIR 1993 SC 1960.

68. *DK Basu v State of West Bengal*, AIR 1997 SC 610.

69. In *Estrella v Uruguay*, (1983) 2 Selected Decisions HRC 93, the Human Rights Committee found the defendant liable for detaining the accused under inhuman prison conditions.

segregated from convicted persons. They shall be subject to separate treatment appropriate to their status as unconvicted persons. Accused juvenile persons are to be separated from adults and brought as speedily as possible for adjudication.

The penitentiary system is to comprise treatment of prisoners the essential aim of which shall be their reformation and social rehabilitation. Juvenile offenders are to be segregated from adults and be accorded treatment appropriate to their age and legal status.

As to the conditions of detention in general, the Committee in *Mukong v Cameroon*,⁷⁰ observed that:

certain minimum standards regarding the conditions of detention must be observed regardless of a State party's level of development. These include, in accordance with Rules 10, 12, 17, 19 and 20 of the UN Standard Minimum Rules for the Treatment of Prisoners", minimum floor space and cubic content of air for each prisoner, adequate sanitary facilities, clothing which shall be in no manner degrading or humiliating, provision of a separate bed, and provision of food of nutritional value adequate for health and strength.

Article 11 of the Covenant obligates States Parties to not to imprison an individual who is unable to fulfill a contractual obligation. In *Xavier v Canara Bank Ltd*,⁷¹ the issue was whether the personal freedom of the judgment-debtors can be held in ransom until repayment of the debt? The court observed:

[I]f he once had the means but now has not, or if he has money now on which there are other pressing claims, it is violative of the spirit of Article 11 [ICCPR] to arrest and confine him in jail so as to coerce him into payment.⁷²

According to Article 12, everyone who is present within the territory of a State in a lawful manner, shall have the right to liberty of movement and freedom to choose his residence within that territory. Everyone shall be free to leave any country, including his own. These rights shall be subject to restrictions as provided by law which are necessary to protect national security, public order, public health or morals or the rights and freedoms of others. These restrictions should be consistent with the other rights recognised in the present Covenant. No one is to be arbitrarily deprived of the right to enter his own country.

In General Comment No. 27 on Freedom of Movement (Article 12), the Human Rights Committee stated that "liberty of movement is an indispensable condition for the free development of a person. It interacts with several other rights enshrined in the Covenant, as is often shown in the Committee's practice in considering reports from States parties and communications from individuals".⁷³ Thus, any measures limiting the right to freedom of movement are to be governed by the principle of necessity and the need for consistency with other guaranteed human rights. Any restrictions not compliant with the conditions set out above amount to arbitrary interference with the right to freedom of movement.

In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,⁷⁴ the ICJ observed that:

the construction of the wall and its associated regime impede the liberty of movement of the inhabitants of the Occupied Palestinian Territory (with the exception of Israeli citizens and those assimilated thereto) as guaranteed under Article 12, paragraph 1 of the International Covenant on Civil and Political Rights.⁷⁵

70. *Mukong v Cameroon*, (1995) 2 IHRR 131.

71. *Xavier v Canara Bank Ltd*, (1969) Ker LT 927.

72. See also *Jolly George Varghese v Bank of Cochin*, (1980) 2 SCC 360.

73. CCPR/C/21/Rev1/Add9, 1999, para 1.

74. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

75. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 134.

Article 14 States that all persons are equal before the courts and tribunals. In the determination of any criminal charge against him, or of his rights and obligations in a suit, everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law. Everyone charged with a criminal offence is to be presumed innocent until proved guilty according to law.

The UN Human Rights Committee has insisted that the presumption of innocence imposes a duty on all public authorities to “refrain from prejudging the outcome of a trial”.⁷⁶ In *Barberà, Messegue and Jabardo v Spain*,⁷⁷ the European Court of Human Rights made the following observations:

It requires, *inter alia*, that when carrying out their duties, the members of a court should not start with the preconceived idea that the accused has committed the offence charged; the burden of proof is on the prosecution, and any doubt should benefit the accused. It also follows that it is for the prosecution to inform the accused of the case that will be made against him, so that he may prepare and present his defence accordingly, and to adduce evidence sufficient to convict him.

In *Grigin v Russia*,⁷⁸ the Human Rights Committee observed that with regard to the allegation of a violation of the presumption of innocence, including public statements made by high ranking law enforcement officials portraying the author as guilty which were given wide media coverage, the Supreme Court referred to the issue, but failed to specifically deal with it when it heard the author’s appeal.

In the determination of any criminal charge against him, everyone is entitled to the following minimum guarantees: (a) to be informed promptly and in detail in a language which he understands of the nature and cause of the charge against him; (b) to have adequate time⁷⁹ and facilities for the preparation of his defence and to communicate with counsel of his own choosing; (c) to be tried without undue delay; (d) to be tried in his presence, and to defend himself in person or through legal assistance of his own choosing; (e) to examine, or have examined, the witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him; (f) to have the free assistance of an interpreter if he cannot understand or speak the language used in court; and (g) not to be compelled to testify against himself or to confess guilt.

Everyone convicted of a crime shall have the right to get his conviction and sentence reviewed by a higher tribunal according to law. When a person has by a final decision been convicted of a criminal offence and subsequently his conviction has been reversed or he has been pardoned on the ground that a new or newly discovered fact shows conclusively that there has been a miscarriage of justice, the person who has suffered punishment as a result of such conviction is to be compensated according to law. However, he may not be compensated if it is proved that the non-disclosure of the unknown fact in time is wholly or partly attributable to him.

No one is to be tried or punished again for an offence for which he has already been finally convicted or acquitted in accordance with the law and penal procedure of the country concerned.

No one is to be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence, under national or international law, at the time when it

76. See General Comment of Human Rights Committee on Article 14 of the International Covenant on Civil and Political Rights, “General Comment 13/21”; UN Doc A/39/40, pp 143–7.

77. *Barberà, Messegue and Jabardo v Spain*, Series A No 146, 6 December 1988, para 77.

78. *Grigin v Russia*, (2001) 8 IHRR 41.

79. What is “adequate time” depends on the circumstances of each case, but the facilities must include access to documents and other evidence which the accused requires to prepare his case. See General Comment of HRC on Article 14, (1994) 1-2 IHRR, 12.

was committed. Similarly, a heavier penalty than the one that was applicable at the time when the criminal offence was committed, is not to be imposed. If, subsequent to the commission of the offence, provision is made by law for the imposition of the lighter penalty, the offender shall benefit thereby. This is a general principle of criminal law which may be found in the national laws of States.⁸⁰

Article 17 lays down provision with respect to protection of privacy of the person. It states that no one is to be subjected to arbitrary or unlawful interference with his privacy, family, or correspondence, nor to unlawful attacks on his honour and reputation. In *Toonen v Australia*,⁸¹ the Human Rights Committee stated that “in as much as Article 17 is concerned, it is undisputed that adult consensual sexual activity in private is covered by the concept of privacy”.⁸² The Committee further stated that it “cannot accept either that for the purposes of Article 17 of the Covenant, moral issues are exclusively a matter of domestic concern, as this would open the door to withdrawing from the Committee’s scrutiny a potentially large number of statutes interfering with privacy”.⁸³

Article 18 deals with the right to freedom of thought, conscience and religion of everyone. This includes the freedom to have or to adopt a religion or belief of his choice, and not to be coerced to adopt a religion or belief not of his choice. This right, however, is subject only to such limitations as are prescribed by law and are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others.

The right to hold opinions without interference is contained in Article 19. Everyone shall have the right to freedom of expression, which is to include freedom to seek, receive and impart information and ideas of all kinds. This may be subject to certain restrictions as are provided by law and are necessary: (a) for respect of the rights or reputations of others; (b) for the protection of national security or of public order, or of public health or morals. In *Faurisson v France*,⁸⁴ the Human Rights Committee stated that any restriction on the right of freedom of expression must cumulatively meet the following conditions: it must be provided by law, it must address one of the aims set out in Article 19(3)(a) and (b), and must be necessary to achieve a legitimate purpose.

The Covenant obligates States Parties to recognise the right of peaceful assembly. Everyone shall have the right to freedom of association with others, including the right to form and join trade unions for the protection of his interests. These rights are, however subject to certain restrictions.⁸⁵

The right of men and women of marriageable age to marry and to found a family is to be recognised by the State Parties. No marriage is to be entered into without the free and full consent of the intending spouses.⁸⁶

According to Article 25, every citizen is to have the right and the opportunity to vote and to be elected at genuine periodic elections which shall be by universal and equal suffrage and shall be held by secret ballot, guaranteeing the free expression of the will of the electors;

According to Article 26, all persons are equal before the law and are entitled without any discrimination to the equal protection of the law. The law is to prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground

80. Article 15, ICCPR.

81. *Toonen v Australia*, (1994) 1-3 IHRR 97.

82. *Toonen v Australia*, (1994) 1-3 IHRR 97, para 8.2.

83. *Toonen v Australia*, (1994) 1-3 IHRR 97, para 8.6.

84. *Faurisson v France*, (1996) 4 IHRR 444, para 9.4. See also *Mukong v Cameroon*, (1995) 2 IHRR 131.

85. Articles 21–22, ICCPR.

86. Article 23, ICCPR.

such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.

In *Broeks v Netherlands*,⁸⁷ the State party contended that there was a considerable overlapping of the provisions of Article 26 of ICCPR with the provisions of Article 2 of ICESCR. The Human Rights Committee observed that the ICCPR would still apply even if a particular subject-matter is referred to or covered in other international instruments. The Committee further observed that Article 2 of ICESCR did not detract from the full application of Article 26 of the ICCPR.

The minorities rights have been recognized in Article 27. It provides that in those States in which ethnic, religious or linguistic minorities exist, persons belonging to such minorities shall not be denied the right, in community with the other members of their group, to enjoy their own culture, to profess and practise their own religion, or to use their own language. Article 27 confers rights on persons belonging to minorities which *exist* in a State party. They need not be permanent residents. Thus, migrant workers or even visitors in a State party constituting such minorities are entitled not to be denied the exercise of those rights. The existence of an ethnic, religious or linguistic minority in a given State party does not depend upon a decision by that State party but requires to be established by objective criteria.⁸⁸

20.3.3.5 Human Rights Committee

The Covenant provides for the establishment of Human Rights Committee under Article 28. The Committee is composed of nationals of the States Parties who are persons of high moral character and recognised competence in the field of human rights. In the election of the Committee, consideration is to be given to equitable geographical distribution of membership and to the representation of the different forms of civilization and of the principal legal systems. The members of the Committee are elected for a term of four years. They are eligible for re-election if renominated.

20.3.3.6 Reporting Mechanism

Article 40 lays down reporting procedure for States Parties. The States Parties are to submit reports on the measures they have adopted which give effect to the rights recognised here in and on the progress made in the enjoyment of those rights: (a) within one year of the entry into force of the present Covenant for the States Parties concerned; (b) thereafter whenever the Committee so requests.

All reports are to be submitted to the Secretary-General of the United Nations, who shall transmit them to the Committee for consideration. Reports shall indicate the factors and difficulties, if any, affecting the implementation of the present Covenant.

After consultation with the Committee, the Secretary-General of the United Nations may transmit to the specialised agencies concerned copies of such parts of the reports as may fall within their field of competence.

The Committee is to study the reports submitted by the States Parties to the present Covenant. It shall transmit its reports, and such general comments as it may consider appropriate, to the States Parties. The Committee may also transmit to the Economic and Social Council these comments along with the copies of the reports it has received from States Parties. The States Parties may submit observations on these comments to the Committee.

87. *Broeks v Netherlands*, (1987) 2 Selected Decisions HRC 196.

88. See General Comment No 23 of Human Rights Committee, (1994) 1-3 IHRR 1.

20.3.3.7 Acceptance of Competence of the Committee to Receive Communications

Under Article 41 a State Party may recognise competence of the Committee to receive and consider communications. A State Party may at any time declare that it recognises the competence of the Committee to receive and consider communications to the effect that *a State Party claims that another State Party is not fulfilling its obligations under the present Covenant*. Communications may be received and considered only if submitted by a State Party which has made a declaration recognising in regard to itself the competence of the Committee. No communication shall be received by the Committee if it concerns a State Party which has not made such a declaration. Article 41 also lays down the procedure to deal with communications so received.

20.3.3.8 Procedure to deal with Communication

If a State Party considers that another State Party is not giving effect to the provisions of the present Covenant, it may, by written communication, bring the matter to the attention of that State Party. Within three months after the receipt of the communication the receiving State shall afford that State an explanation, or any other statement in writing clarifying the matter which should include reference to domestic procedures and remedies taken, pending, or available in the matter.

If the matter is not adjusted to the satisfaction of both States Parties concerned within six months after the receipt by the receiving State of the initial communication, either State shall have the right to refer the matter to the Committee, by notice given to the Committee and to the other State.

The Committee is to deal with a matter referred to it only after it has ascertained that all available domestic remedies have been invoked and exhausted in the matter. This is, however, not be the rule where the application of the remedies is unreasonably prolonged. The reason for this rule is that States should be permitted to solve their own internal problems in accordance with their own constitutional procedures before accepted international mechanisms is invoked against them.

The communications are to be examined by the Committee in the closed meetings. The Committee is to make available its good offices to the States Parties concerned with a view to a friendly solution of the matter on the basis of respect for human rights and fundamental freedoms.

The Committee may call upon the States Parties concerned to supply any relevant information. The States Parties concerned shall have the right to be represented when the matter is being considered in the Committee and to make submissions orally and/or in writing.

The Committee is to submit a report within twelve months after the date of receipt of notice. If a solution is reached, the Committee shall confine its report to a brief statement of the facts and of the solution reached. If a solution is not reached, the Committee is to confine its report to a brief statement of the facts. The written submissions and record of the oral submissions made by the States Parties concerned shall be attached to the report. The report shall be communicated to the States Parties concerned.

If the aforesaid matter is not resolved to the satisfaction of the States Parties concerned, the Committee may, with their prior consent, appoint an *ad hoc* Conciliation Commission. The good office of the Commission is to be made available to the States Parties concerned with a view to an amicable solution of the matter.

The Commission shall consist of five persons acceptable to the States Parties concerned. The members of the Commission shall serve in their personal capacity. They shall not be

nationals of the States Parties concerned, or of a State not Party to the Covenant, or of a State Party which has not made a declaration under Article 41.

The information received and collated by the Committee is to be made available to the Commission and the Commission may call upon the States Parties concerned to supply any other relevant information. When the Commission has fully considered the matter, but in any event not later than twelve months after having been seized of the matter, it shall submit to the Chairman of the Committee a report for communication to the States Parties concerned.

If the Commission is unable to complete its consideration of the matter within 12 months, it shall confine its report to a brief statement of the status of its consideration of the matter. If an amicable solution to the matter on the basis of respect for human rights is reached, the Commission shall confine its report to a brief statement of the facts and of the solution reached.

If a solution is not reached, the Commission's report is to embody its findings on all questions of fact relevant to the issues between the States Parties concerned, and its views on the possibilities of an amicable solution of the matter. This report is also to contain the written submissions and a record of the oral submissions made by the States Parties concerned.

If the Commission's report is submitted, the States Parties concerned shall notify the Chairman of the Committee, within three months of the receipt of the report, whether or not they accept the contents of the report of the Commission.⁸⁹

The Committee is to submit an annual report on its activities to the General Assembly of the United Nations, through the Economic and Social Council.⁹⁰

20.3.3.9 Individual's Petition to Human Rights Committee

The Optional Protocol to the International Covenant on Civil and Political Rights was adopted on 16 December 1966. It entered into force on 23 March 1976.⁹¹ The Optional Protocol was adopted in order to achieve the purposes of the ICCPR and the implementation of its provisions by enabling the Human Rights Committee to receive and consider communications from individuals claiming to be victims of violations of their rights.

20.3.3.10 Communication Before the Committee

According to Article 1 of the Optional protocol, a State Party to the ICCPR that becomes a Party to the Protocol recognises the competence of the Committee to receive and consider communications from individuals subject to its jurisdiction who claim to be victims of a violation by that State Party of any of the rights set forth in the Covenant. No communication is to be received by the Committee if it concerns a State Party to the Covenant which is not a Party to the Protocol.

The meaning of the term *victim* as referred in Article 1, was stated by the Committee in *Aumeeruddy-Cziffra v Mauritius*⁹²:

[A] person can only claim to be a victim ... if he or she is actually affected. ... no individual can in the abstract, by way of an *actio popularis*, challenge a law or practice claimed to be contrary to the Covenant. If the law or practice has not already been concretely applied to

89. Article 42, ICCPR.

90. Article 45, ICCPR.

91. The Optional Protocol to ICCPR was adopted by General Assembly Resolution 2200A (XXI) of 16 December 1966.

92. *Aumeeruddy-Cziffra v Mauritius*, (1981) 1 Selected Decisions HRC 67.

the detriment of that individual, it must in any event be applicable in such a way that the alleged victim's risk of being affected is more than a theoretical possibility.

Individuals who claim that any of their rights enumerated in the Covenant have been violated and who have exhausted all available domestic remedies may submit a written communication to the Committee for consideration. It is, therefore, mandatory that the individual must have exhausted all the domestic remedies before submitting the communication to the Committee. The communication should not be anonymous otherwise it shall be considered inadmissible by the Committee. In addition, the Committee shall reject the communication as inadmissible if it considers it to be an abuse of the right of submission of such communications or to be incompatible with the provisions of the Covenant.⁹³

According to Article 4, where the Committee considers the communication admissible, it shall bring it to the attention of the concerned State Party which is alleged to be violating any provision of the ICCPR. Within six months, the receiving State shall submit to the Committee written explanations or statements clarifying the matter and the remedy, if any, that may have been taken by that State.

Referring to Article 4, the Committee in *Bleier v Uruguay*⁹⁴ stated that:

it is implicit in Article 4(2) of the Optional Protocol that the State Party has the duty to investigate in good faith all allegations of violation of the Covenant made against it and its authorities, especially when such allegations are corroborated by evidence submitted by the author of the communication, and to furnish to the Committee the information available to it.

According to Article 5, the Committee shall consider communications received in the light of all written information made available to it by the individual and by the State Party concerned. The Committee is not to consider any communication from an individual unless it has ascertained that — (i) the same matter is not being examined under another procedure of international investigation or settlement and (ii) the individual has exhausted all available domestic remedies. This, however, is not to be the rule where the application of the remedies is unreasonably prolonged. The communications are to be examined by the Committee in the closed meetings. The Committee shall forward its *views* to the State Party concerned and to the individual.

Article 5, therefore, avoids the overlapping between the Optional Protocol and petition systems under other human rights instruments. Thus, if an application is pending under the European Convention on Human Rights or before the Inter-American Commission on Human Rights, the Committee shall not consider such application. There is no time limit on the bringing of a claim under the Protocol.

As the Committee is required to formulate its *views* on the communication, it strives to reach its decisions by consensus without resorting to voting. However, members of the Committee can append their individual opinions to the Committee's decisions of a final nature.⁹⁵ Though the Committee views are not legally binding, nevertheless, the defendant States ordinarily take them positively and act upon it.

The Committee is to include a summary of its activities under the Protocol in its annual report under Article 45 of the ICCPR.⁹⁶

93. Articles 2–3, Optional Protocol to ICCPR.

94. *Bleier v Uruguay*, (1982) 1 Selected Decisions HRC 109, p 112.

95. HRC Report, GAOR, 44th Session Supp 40 (1989), p 14.

96. Article 6, Optional Protocol to ICCPR.

20.3.3.11 Nature of the Committee

The Human Rights Committee is neither a court nor a body with a quasi-judicial mandate, like the organs created under the European Convention on Human Rights. The Committee, however, applies the provisions of the Covenant and of the Optional Protocol in a judicial spirit. Its decisions on the merits of a communication are non-binding recommendations. The Optional Protocol does not provide explicitly for friendly settlement between the parties. Unlike, European Court of Human Rights, the Committee has no power to hand down binding decisions. State Parties to the Optional Protocol endeavour to observe the Committee's views, but in case of non-compliance the Optional Protocol does not provide for an enforcement mechanism or for sanctions.⁹⁷

20.3.3.12 Abolition of the Death Penalty

The Second Optional Protocol to the ICCPR aiming at the abolition of the death penalty was adopted on 15 December 1989.⁹⁸ The States Parties to the Second Protocol believed that abolition of the death penalty contributed to the enhancement of human dignity and progressive development of human rights. Article 6 of the ICCPR also refers to the abolition of the death penalty in terms that strongly suggest that abolition is desirable.

Article 1 of the Second Protocol States that “no one within the jurisdiction of a State Party to the present Protocol shall be executed”. Further, “each State Party shall take all necessary measures to abolish the death penalty within its jurisdiction”.

No reservation is admissible to the Second Protocol, except for a reservation made at the time of ratification or accession that provides for the application of the death penalty in time of war pursuant to a conviction for a most serious crime of a military nature committed during wartime.⁹⁹

20.3.4 International Covenant on Economic, Social and Cultural Rights

The International Covenant on Economic, Social and Cultural Rights (ICESCR) was adopted on 16 December 1966 and entered into force on 3 January 1976.¹⁰⁰

20.3.4.1 Economic, Social and Cultural Rights

The International Covenant on Economic, Social and Cultural Rights contains right of self-determination; right to work; right to enjoy just and favourable conditions of work; right to form trade unions; right to social security; right to an adequate standard of living, including adequate food, clothing and housing, and to continuous improvement of living conditions; right to enjoyment of the highest attainable standard of physical and mental health; right to education; right to take part in cultural life; right to enjoy the benefits of scientific progress and its applications. These rights have been discussed below.

The ICESCR recognises the right of all peoples of self-determination. They have to freely determine their political status and freely pursue their economic, social and cultural development. All peoples may, for their own ends, freely dispose of their natural wealth and resources. No person is to be deprived of its own means of subsistence.¹⁰¹

97. (1990) 2 Selected Decisions HRC 1–2.

98. The Second Optional Protocol to ICCPR was adopted by General Assembly resolution 44/128 of 15 December 1989.

99. Article 2, Second Optional Protocol to ICCPR.

100. The ICESCR was adopted by General Assembly resolution 2200A (XXI) of 16 December 1966.

101. Article 1, ICESCR.

The State Parties to take steps, individually and through international assistance and co-operation, to the maximum of its available resources, with a view to achieving progressively the full realisation of the rights recognised in the present Covenant by all appropriate means, including particularly the adoption of legislative measures.

The rights in the ICESCR are to be exercised without discrimination of any kind as to race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status. The States Parties have to guarantee this. With due regard to human rights and their national economy, the developing countries may determine to what extent they would guarantee the economic rights to non-nationals.¹⁰²

The States Parties are to ensure the equal right of men and women to the enjoyment of all economic, social and cultural rights.¹⁰³ Article 4 enables the State to put the rights mentioned in the Covenant to “such limitations as are determined by law only in so far as this may be compatible with the nature of these rights and solely for the purpose of promoting the general welfare in a democratic society”.

In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,¹⁰⁴ the ICJ observed that:

the restrictions on the enjoyment by the Palestinians living in the territory occupied by Israel of their economic, social and cultural rights, resulting from Israel’s construction of the wall, fail to meet a condition laid down by Article 4 of the International Covenant on Economic, Social and Cultural Rights, that is to say that their implementation must be solely for the purpose of promoting the general welfare in a democratic society.¹⁰⁵

The States Parties are to recognise and safeguard the right to work, which includes the right of everyone to the opportunity to gain his living by work which he freely chooses or accepts.¹⁰⁶

Article 7 recognises the right of everyone to the enjoyment of just and favourable conditions of work. This will ensure remuneration which provides with — (i) fair wages and equal remuneration for work of equal value without distinction of any kind. The women are to get conditions of work not inferior to those enjoyed by men, with equal pay for equal work; and (ii) a decent living for themselves and their families.

In India, the Supreme Court in *Apparel Export Promotion Council v AK Chopra*,¹⁰⁷ stated that Article 7 recognised the right of woman to fair conditions of work and reflected that women should not be subjected to sexual harassment at the place of work which might vitiate working environment.

Everyone is to be provided with safe and healthy working conditions; equal opportunity for promotion in the employment to an appropriate higher level, subject to no considerations other than those of seniority and competence; and rest, leisure and reasonable limitation of working hours and periodic holidays with pay, as well as remuneration for public holidays.¹⁰⁸

Article 8 recognises the rights of people to form trade unions. The State Parties are to ensure the right of everyone to form trade unions and to join them for the promotion and protection of his economic and social interests. No restrictions are to be placed on the exercise of this right other than those prescribed by law and which are necessary in a democratic society in the

102. Article 2, ICESCR.

103. Article 3, ICESCR.

104. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

105. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 136.

106. Article 6, ICESCR.

107. *Apparel Export Promotion Council v AK Chopra*, AIR 1999 SC 625.

108. Article 7, ICESCR.

interests of national security or public order or for the protection of the rights and freedoms of others. The trade unions are to function freely subject to aforesaid limitations. The right to strike in conformity with the laws of the particular country shall also be available. The right of everyone to social security, including social insurance has also been recognised.¹⁰⁹

According to Article 10, the widest possible protection and assistance is to be accorded by State Parties to the family, which is the natural and fundamental group unit of society. Marriage must be entered into with the free consent of the intending spouses. Special protection is to be accorded to mothers during a reasonable period before and after childbirth. During such period working mothers are to be accorded paid leave or leave with adequate social security benefits. Children and young persons are to be protected from economic and social exploitation. States are to set minimum age limits for the employment of child labour. They are not to be employed harmful or dangerous work.

The States Parties are to recognise the right of everyone to an adequate standard of living for himself and his family, including adequate food, clothing and housing, and to the continuous improvement of living conditions. Everyone has the fundamental right to be free from hunger. In this regard, the States Parties are to take the measures to improve methods of production, conservation and distribution of food by making full use of technical and scientific knowledge, by disseminating knowledge of the principles of nutrition and by developing or reforming agrarian systems in such a way as to achieve the most efficient development and utilisation of natural resources. (Article 11)

The States Parties under Article 12 recognise the right of everyone to the enjoyment of the highest attainable standard of physical and mental health. They will take the steps necessary for: (i) the provision for the reduction of the stillbirth-rate and of infant mortality and for the healthy development of the child; (ii) the improvement of all aspects of environmental and industrial hygiene; (iii) the prevention, treatment and control of epidemic, endemic, occupational and other diseases; (iv) the creation of conditions which would assure to all medical service and medical attention in the event of sickness.

Duty-bearers under human rights law have a core obligation to ensure the satisfaction at least to a minimum essential level of these rights, including by providing essential foodstuffs, essential primary health care, basic shelter and housing, as well as the most basic forms of education.¹¹⁰

The *Report of the OHCHR Investigation on Sri Lanka (OISL)* adopted on 16 September 2015 stated:

In addition to the obligation to fulfil economic, social and cultural rights, the State must avoid any acts or omission, which would negatively impact its obligation to respect and protect these rights. This failure may impact not only on the enjoyment of the right to an adequate standard of living and to the enjoyment of the highest attainable standard of physical and mental health, guaranteed in Articles 11 and 12 ICESCR, but may also interfere with a number of other rights, including, in most extreme cases, the right to life.¹¹¹

The right of everyone to education is recognised in Article 13. The States Parties agree that education is to be directed to the full development of the human personality and the sense of its dignity. The primary education is to be compulsory and available free to all. Further, secondary education in its different forms, including technical and vocational secondary education,

109. Article 9, ICESCR.

110. CESCR, General Comment No 12, para 6; General Comment No 14 (2000) on the right to the highest attainable standard of health (Article 12), para 47; and General Comment No 15 (2003) on the right to water (Articles 11 and 12), para 40.

111. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1171.

is to be made generally available and accessible to all by every appropriate means, and in particular by the progressive introduction of free education. Higher education is to be made equally accessible to all, on the basis of capacity. Fundamental education is to be encouraged or intensified as far as possible for those persons who have not received or completed the whole period of their primary education.

The individuals and bodies shall have the liberty to establish and direct educational institutions, subject to the requirement that the education given in such institutions shall conform to such minimum standards as may be laid down by the State.

In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,¹¹² the ICJ observed that the construction of the wall and its associated regime “impede the exercise by the persons concerned of the right to work, to health, to education and to an adequate standard of living as proclaimed in the International Covenant on Economic, Social and Cultural Rights”.¹¹³

Article 15 obligates the States Parties to recognise the right of everyone - (i) to take part in cultural life; (ii) to enjoy the benefits of scientific progress and its applications; (iii) to benefit from the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.

The steps to be taken by the States Parties to achieve the full realisation of this right are to include those necessary for the conservation, the development and the diffusion of science and culture. They will respect the freedom indispensable for scientific research and creative activity. They also recognise the benefits to be derived from the encouragement and development of international contacts and co-operation in the scientific and cultural fields.

20.3.4.2 Reporting Mechanism

Article 16 obligates the States Parties to submit reports on the measures which they have adopted and the progress made in achieving the observance of the rights so recognised. All reports are to be submitted to the Secretary-General of the United Nations, who shall transmit copies to the Economic and Social Council for consideration.

The Secretary-General of the United Nations shall also transmit copies of the reports or any relevant parts thereof to the specialised agencies, in so far as these reports, or parts thereof, relate to any matters which fall within the responsibilities of the said agencies in accordance with their constitutional instruments.

The States Parties are to furnish their reports in stages, in accordance with a programme to be established by the Economic and Social Council within one year of the entry into force of the present Covenant after consultation with the States Parties and the specialised agencies concerned. Reports may indicate factors and difficulties affecting the degree of fulfilment of obligations under the Covenant.

Where relevant information has previously been furnished to the United Nations or to any specialised agency by any State Party, it will not be necessary to reproduce that information, but a precise reference to the information so furnished will suffice.¹¹⁴

Pursuant to its responsibilities under the Charter of the United Nations in the field of human rights and fundamental freedoms, the Economic and Social Council may make

112. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

113. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 134.

114. Article 17, ICESCR.

arrangements with the specialised agencies in respect of their reporting to it on the progress made in achieving the observance of the provisions of the Covenant falling within the scope of their activities. These reports may include particulars of decisions and recommendations on such implementation adopted by their competent organs.¹¹⁵

As per Article 19, the Economic and Social Council may transmit the reports concerning human rights submitted by States and the specialised agencies to the Commission on Human Rights (now Human Rights Council) for study and general recommendation or, as appropriate, for information.

The States Parties and the specialised agencies concerned may submit comments to the Economic and Social Council on any general recommendation under Article 19 or reference to such general recommendation in any report of the Commission on Human Rights (now Human Rights Council) or any documentation referred to therein.¹¹⁶

According to Article 21, the Economic and Social Council may submit from time to time to the General Assembly reports with recommendations of a general nature and a summary of the information received from the States Parties and the specialised agencies on the measures taken and the progress made in achieving general observance of the rights.

20.3.4.3 *Individual's Petition to Committee*

The Optional Protocol to the International Covenant on Economic, Social and Cultural Rights was adopted on December 10, 2008.¹¹⁷ A State Party to ICESCR that becomes a Party to this Optional Protocol recognises the competence of the Committee to receive and consider communications, which may be submitted by or on behalf of individuals or groups of individuals, under the jurisdiction of a State Party, claiming to be victims of a violation of any of the economic, social and cultural rights by that State Party. Where a communication is submitted on behalf of individuals or groups of individuals, this shall be with their consent unless the author can justify acting on their behalf without such consent.

The Committee is not to receive any communications if it concerns a State Party to the Covenant which is not a Party to the Optional Protocol.¹¹⁸

The Committee is not to consider a communication unless it has ascertained that all available domestic remedies have been exhausted. This, however, is not to be the rule where the application of such remedies is unreasonably prolonged.

A communication is to be declared as inadmissible by the Committee in the following cases:

1. If it is not submitted within one year after the exhaustion of domestic remedies, except in cases where the author can demonstrate that it had not been possible to submit the communication within that time limit.
2. If the facts that are the subject of the communication occurred prior to the entry into force of the Optional Protocol for the State Party concerned unless those facts continued after that date.
3. If the same matter has already been examined by the Committee or has been or is being examined under another procedure of international investigation or settlement.
4. If it is incompatible with the provisions of the Covenant.

115. Article 18, ICESCR.

116. Article 20, ICESCR.

117. The Optional Protocol was adopted by General Assembly resolution A/RES/63/117 on 10 December 2008.

118. Articles 1–2, Optional Protocol to ICESCR.

5. If it is manifestly ill-founded, not sufficiently substantiated or exclusively based on reports disseminated by mass media.
6. If it is an abuse of the right to submit a communication.
7. If it is anonymous or not in writing.¹¹⁹

The Committee may decline to consider a communication where it does not reveal that the author has suffered a clear disadvantage, unless the Committee considers that the communication raises a serious issue of general importance.¹²⁰

Article 5 enables the Committee to request the State Party concerned to take necessary interim measures on a communication during its pendency for the determination on the merits. Interim measures may be required in exceptional circumstances to avoid possible irreparable damage to the victim or victims of the alleged violations. However, this does not imply a determination on admissibility or on the merits of the communication.

The Committee is to bring any communication submitted to it confidentially to the attention of the State Party concerned. Within six months, the receiving State Party shall submit to the Committee written explanations or statements clarifying the matter and the remedy, if any, that may have been provided by that State Party.

The Committee is to make available its good offices to the parties concerned with a view to reaching a friendly settlement of the matter on the basis of the respect for the obligations set forth in the Covenant. An agreement on a friendly settlement closes consideration of the communication.¹²¹

The Committee shall examine the communications received in the light of all documentation submitted to it, provided that this documentation is transmitted to the parties concerned. The communication is to be examined by the Committee in the closed meetings. When examining a communication, the Committee may consult, as appropriate, relevant documentation emanating from other United Nations bodies, specialised agencies, funds, programmes and mechanisms, and other international organisations, including from regional human rights systems, and any observations or comments by the State Party concerned. When examining communications, the Committee shall consider the reasonableness of the steps taken by the State Party. In doing so, the Committee shall bear in mind that the State Party may adopt a range of possible policy measures for the implementation of the rights set forth in the ICESCR.¹²²

After examining a communication, the Committee shall transmit its views on the communication, together with its recommendations, if any, to the parties concerned. The State Party shall give due consideration to the views of the Committee, together with its recommendations. Within six months, it shall submit to the Committee a written response, including information on any action taken in the light of the views and recommendations of the Committee. The Committee may invite the State Party to submit further information about any measures the State Party has taken in response to its views or recommendations.¹²³

20.3.4.4 *Inter-State Communications*

Article 10 lays down the procedure for the inter-State communications. A State Party to the Optional Protocol may at any time declare that it recognises the competence of the Committee to receive and consider communications to the effect that a State Party claims that another State

119. Article 3, Optional Protocol to ICESCR.

120. Article 4, Optional Protocol to ICESCR.

121. Articles 6–7, Optional Protocol to ICESCR.

122. Article 8, Optional Protocol to ICESCR.

123. Article 9, Optional Protocol to ICESCR.

Party is not fulfilling its obligations under the ICESCR. Communications may be received and considered only if submitted by a State Party that has made a declaration recognising in regard to itself the competence of the Committee.

The Committee is not to receive a communication if it concerns a State Party which has not made such a declaration. Communications received are to be dealt with in accordance with the following procedure.

If a State Party to the Optional Protocol considers that another State Party is not fulfilling its obligations under the Covenant, it may bring the matter to the attention of that State Party by written communication. The State Party may also inform the Committee of the matter. Within three months after the receipt of the communication, the receiving State shall afford the State that sent the communication an explanation, or any other statement in writing clarifying the matter. This should include reference to domestic procedures and remedies taken, pending or available in the matter.

If the matter is not settled to the satisfaction of both States Parties concerned within six months after the receipt by the receiving State of the initial communication, either State shall have the right to refer the matter to the Committee.

The Committee shall deal with a matter referred to it only after it has ascertained that all available domestic remedies have been invoked and exhausted in the matter. This, however, is not to be the rule where the application of the remedies is unreasonably prolonged.

The Committee is to make available its good offices to the States Parties concerned with a view to a friendly solution of the matter. The communications are to be examined by the Committee in the closed meetings.

In any matter referred to it, the Committee may call upon the States Parties concerned to supply any relevant information. The States Parties concerned shall have the right to be represented when the matter is being considered by the Committee and to make submissions orally and/or in writing.

The Committee shall, with all due expediency after the date of receipt of notice, submit a report. If a solution is reached, the Committee shall confine its report to a brief statement of the facts and of the solution reached. However, if a solution is not reached, the Committee shall, in its report, set forth the relevant facts concerning the issue between the States Parties concerned. The written submissions and record of the oral submissions made by the States Parties concerned shall be attached to the report. The Committee may also communicate only to the States Parties concerned any views that it may consider relevant to the issue between them. In every matter, the report is to be communicated to the States Parties concerned.

20.3.4.5 Inquiry Procedure

A State Party to the Optional Protocol may at any time declare that it recognises the competence of the Committee provided for under Article 11. If the Committee receives reliable information indicating grave or systematic violations by a State Party of any of the economic, social and cultural rights set forth in the Covenant, the Committee shall invite that State Party to cooperate in the examination of the information and to this end to submit observations with regard to the information concerned.

Taking into account any observations that may have been submitted by the State Party concerned as well as any other reliable information available to it, the Committee may designate one or more of its members to conduct an inquiry and to report urgently to the Committee. Where warranted and with the consent of the State Party, the inquiry may include a visit to its territory. Such an inquiry is to be conducted confidentially and the cooperation of the State Party is to be sought at all stages of the proceedings.

After examining the findings of such an inquiry, the Committee is to transmit these findings to the State Party concerned together with any comments and recommendations. Within six months of receiving the findings, comments and recommendations transmitted by the Committee, the State Party concerned shall submit its observations to the Committee.

After such proceedings have been completed with regard to an inquiry, the Committee may, after consultations with the State Party concerned, decide to include a summary account of the results of the proceedings in its annual report.

20.3.4.6 Follow-up to the Inquiry Procedure

According to Article 12, the Committee may invite the State Party concerned to include in its report details of any measures taken in response to an inquiry conducted. The Committee may, if necessary, after the end of six months, invite the State Party concerned to inform it of the measures taken in response to such an inquiry.

Article 13 lays down the provisions for the protection of individuals who made the communications to the Committee. It obligates a State Party to take all appropriate measures to ensure that individuals under its jurisdiction are not subjected to any form of ill-treatment or intimidation as a consequence of communicating with the Committee.

20.3.5 Convention on the Elimination of Racial Discrimination

The International Convention on the Elimination of All Forms of Racial Discrimination was adopted on 21 December 1965. It entered into force on 4 January 1969.¹²⁴

Prior to the adoption of Convention, the United Nations Declaration on the Elimination of All Forms of Racial Discrimination was adopted on 1963.¹²⁵ It was observed that the practice of racial discrimination was in evidence in some areas of the world. The governmental policies were based on racial superiority or hatred, such as policies of apartheid, segregation or separation. The Declaration solemnly affirms the necessity of speedily eliminating racial discrimination throughout the world in all its forms and manifestations.

Any doctrine of superiority based on racial differentiation is scientifically false, morally condemnable, socially unjust and dangerous. There is no justification for racial discrimination in theory or in practice anywhere in the world. The discrimination between human beings on the grounds of race, colour or ethnic origin is an obstacle to friendly and peaceful relations among nations. It is capable of disturbing peace and security among peoples and the harmony of persons living side by side even within one and the same State. The existence of racial barriers is repugnant to the ideals of any human society.

The objective of the Convention is to adopt all necessary measures for speedily eliminating racial discrimination in all its forms and manifestations, and to prevent and combat racist doctrines and practices in order to promote understanding between races and to build an international community free from all forms of racial segregation and racial discrimination.¹²⁶

20.3.5.1 Racial Discrimination

The term “racial discrimination” is defined to mean “any distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin which has the purpose or effect of nullifying or impairing the recognition, enjoyment or exercise, on an equal footing,

124. The Convention was adopted by General Assembly resolution 2106 (XX) of 21 December 1965.

125. The Declaration was adopted on 20 November 1963 by General Assembly resolution 1904 (XVIII).

126. Preamble, Convention on the Elimination of Racial Discrimination.

of human rights and fundamental freedoms in the political, economic, social, cultural or any other field of public life".¹²⁷

Any distinctions, exclusions, restrictions or preferences made by a State Party between citizens and non-citizens shall not be in the purview of this Convention. Further, the Convention is not to be interpreted as affecting in any way the legal provisions of States Parties concerning nationality, citizenship or naturalisation, provided that such provisions do not discriminate against any particular nationality.

20.3.5.2 Elimination of Racial Discrimination

The Convention obligates States parties to pursue by all appropriate means and without delay a policy of eliminating racial discrimination in all its forms. For this purpose — (i) they are not to engage in any act or practice of racial discrimination against persons, groups of persons or institutions and to ensure that all public authorities and public institutions, national and local, shall act in conformity with this obligation; (ii) they are not to sponsor, defend or support racial discrimination by any persons or organisations; (iii) they are to take effective measures to review governmental, national and local policies, and to amend, rescind or nullify any laws and regulations which have the effect of creating or perpetuating racial discrimination wherever it exists; (iv) they are to prohibit and bring to an end racial discrimination by any persons, group or organisation; (v) they are to encourage, where appropriate, integrationist multiracial organisations and movements and other means of eliminating barriers between races, and to discourage anything which tends to strengthen racial division.¹²⁸

Racial segregation and apartheid are to be prevented, prohibited and eradicated. The organisations which are based on ideas or theories of superiority of one race or group of persons of one colour or ethnic origin, or which attempt to justify or promote racial hatred and discrimination in any form are to be condemned and such discrimination is to be eradicated.¹²⁹ States Parties are to ensure that everyone enjoys his civil, political, economic, social and cultural rights without any racial discrimination.¹³⁰

States Parties are to assure to everyone effective protection and remedies against any acts of racial discrimination, as well as the right to seek just and adequate reparation or satisfaction for any damage suffered as a result of such discrimination.¹³¹

20.3.5.3 Committee on the Elimination of Racial Discrimination

A Committee on the Elimination of Racial Discrimination is established under Article 8 of the Convention. States Parties are to submit to the Secretary-General of the United Nations, for consideration by the Committee, a report on the legislative, judicial, administrative or other measures which they have adopted and which give effect to the provisions of this Convention. Such report is to be submitted within one year after the entry into force of the Convention for the State concerned; and thereafter every two years and whenever the Committee so requests. The Committee may request further information from the States Parties. The Committee shall report annually to the General Assembly of the United Nations on its activities and may make suggestions and general recommendations based on the examination of the reports and information received from the States Parties.¹³²

127. Article 1(1), Convention on the Elimination of Racial Discrimination.

128. Article 2, Convention on the Elimination of Racial Discrimination.

129. Articles 3–4, Convention on the Elimination of Racial Discrimination.

130. Article 5, Convention on the Elimination of Racial Discrimination.

131. Article 6, Convention on the Elimination of Racial Discrimination.

132. Article 9, Convention on the Elimination of Racial Discrimination.

The Convention has an inter-State communication procedure. In addition, it also gives right to individual to file petition to the Committee, provided that the State Party concerned has recognised the competence of the Committee to receive and consider communications from individuals or groups of individuals within its jurisdiction claiming to be victims of a violation of any of the rights set forth in this Convention.¹³³

20.3.6 Convention on the Elimination of All Forms of Discrimination Against Women

The Convention on the Elimination of All Forms of Discrimination against Women was adopted on 18 December 1979. It entered into force in 1981. It guarantees the right to all women to be free from discrimination. It also sets out obligations for States parties to ensure legal and practical enjoyment of that right.

In 1946, a body known as the United Nations Commission on the Status of Women was established to monitor the situation of women and to promote women's rights. It worked for more than three decades which ultimately resulted into the adoption of the Convention. Its work was instrumental in highlighting all the areas in which women were denied equality with men. Its efforts for the advancement of women have resulted in several declarations and conventions. The Convention is the central and most comprehensive document amongst all of them.

The genesis of Convention is to be found in the goals of the United Nations — to reaffirm faith in fundamental human rights, in the dignity and worth of the human person, and in the equal rights of men and women. Prior to the adoption of Convention, the Universal Declaration of Human Rights (UDHR) affirmed the principle of the inadmissibility of discrimination and proclaimed that all human beings were born free and equal in dignity and rights and that everyone was entitled to all the rights and freedoms set forth therein, without distinction of any kind, including distinction based on sex. Further, the International Covenants on Human Rights have obligated the States Parties to ensure that men and women enjoy all economic, social, cultural, civil and political rights without any distinction. Further, the international conventions, resolutions, declarations and recommendations adopted by the United Nations and the specialised agencies put emphasis on promoting equality of rights of men and women.

Despite these various instruments, however, extensive discrimination against women continues to exist. Discrimination against women violates the principles of equality of rights and respect for human dignity. It is an obstacle to the participation of women, on equal terms with men, in the political, social, economic and cultural life of their countries. The Convention establishes not only an international bill of rights for women, but also sets an agenda for action by countries to guarantee the enjoyment of those rights.

20.3.6.1 Meaning of “discrimination against women”

Article 1 of the Convention defines the term “discrimination against women” to mean “any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field”. Thus, according to the aforesaid definition, discrimination has many effects. These effects should be taken into account when examining the extent to which there is gender discrimination in a society. Because of a law or practice, discrimination against women may be direct or indirect. It may be in both the sectors — public and private. Discrimination on the basis of gender is a factor

133. Articles 11–14, Convention on the Elimination of Racial Discrimination.

that often intersects with other forms of discrimination, including race, ethnicity, religion, social origin, etc. Women are often discriminated against on a number of bases, with very dire consequences for their enjoyment of human rights.¹³⁴

20.3.6.2 Elimination of Discrimination Against Women

With a view to eliminate all forms of discrimination, the States Parties agreed to — (i) embody the principle of the equality of men and women in their national constitutions or other appropriate legislation; (ii) adopt appropriate legislative and other measures, including sanctions where appropriate, prohibiting all discrimination against women; (iii) establish legal protection of the rights of women on an equal basis with men; (iv) refrain from engaging in any act or practice of discrimination against women; (v) take all appropriate measures to eliminate discrimination against women by any person, organisation or enterprise; (vi) take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices which constitute discrimination against women; (vii) repeal all national penal provisions which constitute discrimination against women.¹³⁵

Article 3 gives positive affirmation to the principle of equality by obligating States parties to take “all appropriate measures, including legislation, to ensure the full development and advancement of women, for the purpose of guaranteeing them the exercise and enjoyment of human rights and fundamental freedoms on a basis of equality with men”. States Parties are obligated to take all appropriate measures to suppress all forms of traffic in women and exploitation of prostitution of women.¹³⁶

In 1952, the Convention on the Political Rights of Women was adopted. The provisions of 1952 Convention have been restated in Article 7 of the present Convention, whereby women are guaranteed the rights to vote, to hold public office and to exercise public functions. This includes equal rights for women to represent their countries at the international level.¹³⁷

In 1957, the Convention on the Nationality of Married Women was adopted. That 1957 Convention has been integrated under Article 9 of the present Convention which provides for the statehood of women, irrespective of their marital status. Article 9 obligates States Parties to grant women equal rights with men to acquire, change or retain their nationality. The States have to ensure that neither marriage to an alien nor change of nationality by the husband during marriage shall automatically change the nationality of the wife, render her Stateless or force upon her the nationality of the husband. Further, the women are to granted equal rights with men with respect to the nationality of their children.

Article 10 affirms woman’s rights to non-discrimination in education. States Parties are required to take all appropriate measures to eliminate discrimination against women in order to ensure to them equal rights with men in the field of education.

Article 11 affirms women’s rights to non-discrimination in employment. Appropriate measures are to be taken by States Parties to eliminate discrimination against women in the field of employment. These measures include the right to the same employment opportunities; the right to free choice of profession and employment, the right to promotion, job security and other benefits; the right to equal remuneration; the right to social security; the right to protection of health and to safety in working conditions. Appropriate measures are also to be

134. Jeremy Sarkin, “How to Better Infuse Gender into the Human Rights Council’s Universal Periodic Review Process?”, *Jindal Global Law Review*, vol 2(1), September 2010, pp 175–93 at p 181.

135. Article 2, CEDAW.

136. Article 6, CEDAW.

137. Article 8, CEDAW.

taken to prevent discrimination against women on the grounds of marriage or maternity and to ensure their effective right to work.

Appropriate measures are to be taken by States Parties to eliminate discrimination against women in the field of health care in order to ensure access to health care services, including those related to family planning.¹³⁸ Similarly discrimination is to be eliminated against women in the areas of economic and social life.¹³⁹ Special emphasis is made with regard to situation of rural women, whose particular struggles and vital economic contributions, as noted in Article 14, warrant more attention in policy planning.

The women are to be accorded equality with men before the law. Women to have equal rights to conclude contracts and to administer property in the State Parties. All contracts and all other private instruments of any kind with a legal effect which is directed at restricting the legal capacity of women shall be deemed null and void.¹⁴⁰

Discrimination against women is to be eliminated by States Parties in all matters relating to marriage and family relations, particularly with respect to the right to enter into marriage; the right freely to choose a spouse; the rights and responsibilities during marriage and at its dissolution; the right to parenthood, personal rights and command over property.¹⁴¹

20.3.6.3 Committee on the Elimination of Discrimination Against Women

The implementation of the Convention is monitored by Committee. The Committee is established under the Convention and is composed of 23 experts of high moral standing and competence in the field. These experts are nominated by their Governments and elected by the States parties as individuals.¹⁴²

At least every four years, the States parties have to submit a national report to the Committee, indicating the legislative, judicial, administrative or other measures they have adopted to give effect to the provisions of the Convention. The reports may indicate factors and difficulties affecting the degree of fulfilment of obligations under the Convention. During its annual session, the Committee members discuss these reports with the Government representatives and explore with them areas for further action by the specific country. The Committee also makes general recommendations to the States parties on matters concerning the elimination of discrimination against women.¹⁴³

The Committee is to report annually to the General Assembly of the United Nations, through the Economic and Social Council, on its activities. It may make suggestions and general recommendations based on the examination of reports and information received from the States Parties. Such suggestions and general recommendations are to be included in the report of the Committee together with comments, if any, from States Parties. The Secretary-General of the United Nations shall transmit the reports of the Committee to the Commission on the Status of Women for its information.¹⁴⁴

To sum up, the Convention is a comprehensive document and aims to eliminate all forms of discrimination against women in the exercise of both their civil and political rights as well as their economic, social and cultural rights. The States Parties are under an obligation to eliminate the aforesaid discrimination by adopting appropriate measures.

138. Article 12, CEDAW.

139. Article 13, CEDAW.

140. Article 15, CEDAW.

141. Article 16, CEDAW.

142. Article 17, CEDAW.

143. Articles 18, 20, CEDAW.

144. Article 21, CEDAW.

20.3.6.4 *Optional Protocol to CEDAW*

The Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women was adopted on 6 October 1999. It entered into force on 22 December 2000. The Optional Protocol complements the Convention. The Optional Protocol contains complaint mechanism. A State that has become a party to the Optional Protocol recognise the competence of the Committee on the Elimination of Discrimination against Women to receive and consider communications from persons within their jurisdiction alleging violations of their right under the Convention.¹⁴⁵

Individuals and groups of individuals from States Parties to the Convention and its Optional Protocol may submit individual complaints to the Committee. Communications may also be submitted on behalf of individuals or groups of individuals with their written consent.¹⁴⁶ The individual must claim to be a victim of a violation of a right enshrined in the Convention.

The complaint must concern a State party to the Convention and the Optional Protocol. A complaint made against a State which is not a party to the Optional Protocol is not to be entertained. The complaint is required to be in writing in any of the six official UN languages (English, French, Spanish, Chinese, Arabic and Russian). Anonymous communications are not to be made as the same are inadmissible.¹⁴⁷ The complainant may however request that identifying information should be concealed in the Committee's final decision.

The relevant facts, including any supporting documentation are to be provided along with the complaint to the Committee. The complaint should indicate what provisions of the Convention have been violated by the State party. The complaint should also indicate whether this matter is or has been before any other procedure of international investigation or settlement. The complaint must contain information about steps taken to *exhaust domestic remedies* at the national level.¹⁴⁸ Before taking final decision, the Committee may contact State Party with an urgent request to take steps to protect the alleged victim(s) from irreparable harm.¹⁴⁹

If the Committee decides to register a case, it will transmit the complaint to the State party which has six months to respond on both its admissibility and merits. The State party's response will then be transmitted to the complainant. The complainant will be given an opportunity to comment, within a time frame fixed by the Committee. The Committee may request the State party or the complainant to submit additional written explanations or statements relevant to the issues of admissibility or merits and, if it does so, will give the other party an opportunity to comment within a fixed time frame.

The case is closed where the Committee decides the communication to be inadmissible. If it decides that the communication is admissible, the Committee will move on to the merits stage and issues its views and recommendations on the merits. Within a given period of time, the State is required to submit a written response indicating any action taken on the recommendations by the Committee. The Optional Protocol also has an investigation procedure and a follow-up procedure under Articles 8 and 9 respectively.

20.3.7 *Convention Against Torture*

The Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment was adopted on December 10, 1984.¹⁵⁰ It entered into force on 26 June 1987.

145. Article 1, Optional Protocol to CEDAW.

146. Article 2, Optional Protocol to CEDAW.

147. Article 3, Optional Protocol to CEDAW.

148. Article 4, Optional Protocol to CEDAW.

149. Article 5, Optional Protocol to CEDAW.

150. The Convention against Torture was adopted by General Assembly resolution 39/46 of 10 December 1984.

Prior to the adoption of this Convention, the concern against torture, cruel, inhuman or degrading treatment was addressed by incorporation of provisions in the Universal Declaration of Human Rights¹⁵¹ and the International Covenant on Civil and Political Rights,¹⁵² which provided that no one was to be subjected to torture or to cruel, inhuman or degrading treatment or punishment. On 9 December 1975, the General Assembly adopted a Declaration on the Protection of All Persons from Being Subjected to Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment. The adoption of this Convention was a step further to make the struggle against torture and other cruel, inhuman or degrading treatment or punishment throughout the world, more effective.

The Convention defines the term “torture” to mean:

any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession, punishing him for an act he or a third person has committed or is suspected of having committed, or intimidating or coercing him or a third person, or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity.¹⁵³

The definition of torture excludes pain or suffering arising only from, inherent in or incidental to lawful sanctions.

All States Parties are obligated to take effective legislative, administrative, judicial or other measures to prevent acts of torture in any territory under its jurisdiction. No exceptional circumstances whatsoever may be invoked as a justification of torture, whether it is a state of war or a threat of war, internal political instability or any other public emergency. Further, an order from a superior officer or a public authority may not be invoked as a justification of torture (Article 2). All acts of torture are to be made offences by States Parties under their criminal law.¹⁵⁴ Prompt and impartial investigation is to be initiated wherever there is reasonable ground to believe that an act of torture has been committed.¹⁵⁵

Article 3 obligates States Parties to adopt the principle of non-refoulement. It provides that no State Party shall expel, return or extradite a person to another State where there are substantial grounds for believing that he would be in danger of being subjected to torture. The principle of non-refoulement has been discussed in detail in Chapter on Protection of Refugees.

An accused, who has committed the offence of torture, shall be taken into custody or his presence will be ensured by the State Party within whose territory he is found. Such an accused shall either be extradited to the State of his nationality or prosecuted by the competent authorities of the State in which he is present.¹⁵⁶

The States Parties are to include education and information regarding the prohibition against torture in the training of law enforcement personnel, civil or military, medical personnel, public officials and other persons who may be involved in the custody, interrogation or treatment of any individual subjected to any form of arrest, detention or imprisonment. Each State Party shall keep under systematic review interrogation rules, instructions, methods

151. Article 5, UDHR.

152. Article 7, ICCPR.

153. Article 1, Convention against Torture.

154. Article 4, Convention against Torture.

155. Article 12, Convention against Torture.

156. Articles 6–7, Convention against Torture.

and practices as well as arrangements for the custody and treatment of persons subjected to any form of arrest, detention or imprisonment with a view to preventing any cases of torture.¹⁵⁷

An individual, who alleges that he has been subjected to torture in the territory of a State Party, has the right to complain to, and to have his case promptly and impartially examined by its competent authorities. Steps are to be taken to ensure that the complainant and witnesses are protected against all ill-treatment or intimidation as a consequence of his complaint or any evidence given. The victim of torture is to obtain redress and has an enforceable right to fair and adequate compensation, including the means for as full rehabilitation as possible. In the event of the death of the victim as a result of an act of torture, his dependants shall be entitled to compensation. (Articles 13–14)

A Committee against Torture is established in accordance with the provisions of Article 17. The States Parties are required to submit to the Committee, through the Secretary-General of the United Nations, reports on the measures they have taken to give effect to their undertakings under this Convention, within one year after the entry into force of the Convention for the State Party concerned. Thereafter the States Parties shall submit supplementary reports every four years on any new measures taken and such other reports as the Committee may request. Each report is to be considered by the Committee which may make such general comments on the report as it may consider appropriate and shall forward these to the State Party concerned. That State Party may respond to the Committee with any observations it chooses.¹⁵⁸

If the Committee receives reliable information that torture is being systematically practised in the territory of a State Party, the Committee shall invite that State Party to co-operate in the examination of the information and to this end to submit observations with regard to the information concerned. The Committee may also designate one or more of its members to make a confidential inquiry and to report to the Committee urgently on the situation. In agreement with that State Party, such an inquiry may include a visit to its territory. (Article 20)

After examining the findings of its member(s), the Committee shall transmit these findings to the State Party concerned together with any comments or suggestions which seem appropriate in view of the situation. All the proceedings of the Committee shall be confidential.

The Convention has an inter-State communication procedure. In addition, it also gives right to individual to file petition to the Committee, provided that the State Party concerned has recognised the competence of the Committee to receive and consider communications from individuals or groups of individuals within its jurisdiction claiming to be victims of a violation of the provisions of the Convention.¹⁵⁹

20.3.7.1 Optional Protocol to the Convention against Torture

The Optional Protocol to the Convention against Torture was adopted on 18 December 2002.¹⁶⁰ The international community realised that further measures were necessary to achieve the purposes of the Convention against Torture and to strengthen the protection of persons deprived of their liberty against torture and other cruel, inhuman or degrading treatment or punishment. The World Conference on Human Rights firmly declared that efforts to eradicate torture should first and foremost be concentrated on its prevention. It called for the adoption of an Optional Protocol to the Convention, which was intended to establish a preventive system of regular visits to places of detention.

157. Articles 10–11, Convention against Torture.

158. Article 19, Convention against Torture.

159. Articles 21–22, Convention against Torture.

160. The Optional Protocol against Torture was adopted by General Assembly resolution A/RES/57/199.

The objective of the Optional Protocol is to establish a system of regular visits undertaken by independent international and national bodies to places where people are deprived of their liberty, in order to prevent torture and other cruel, inhuman or degrading treatment or punishment.¹⁶¹

Article 2 of the Optional Protocol provides for the establishment of a Sub-committee on Prevention of Torture of the Committee against Torture which is to be guided by the principles of confidentiality, impartiality, non-selectivity, universality and objectivity.

According to Article 3, each State Party is to set up, designate or maintain at the domestic level one or several visiting bodies for the prevention of torture and other cruel, inhuman or degrading treatment or punishment (hereinafter referred to as the national preventive mechanism).

Article 4 obligates each State Party to allow visits by the mechanisms referred to in Articles 2 and 3 above to any place under its jurisdiction and control where persons are or may be deprived of their liberty, either by virtue of an order given by a public authority or at its instigation or with its consent or acquiescence. These visits are to be undertaken with a view to strengthening the protection of these persons against torture and other cruel, inhuman or degrading treatment or punishment.

Article 11 lays down mandate of the Sub-committee on Prevention. The Sub-committee on Prevention is to visit the places referred to in Article 4 and make recommendations to States Parties concerning the protection of persons deprived of their liberty against torture and other cruel, inhuman or degrading treatment or punishment.

In regard to the national preventive mechanisms, the Sub-committee on Prevention is to — (i) advise and assist States Parties in their establishment, when necessary; (ii) maintain direct, and if necessary confidential, contact with the national preventive mechanisms and offer them training and technical assistance with a view to strengthening their capacities; (iii) advise and assist them in the evaluation of the needs and the means necessary to strengthen the protection of persons deprived of their liberty against torture and other cruel, inhuman or degrading treatment or punishment; (iv) make recommendations and observations to the States Parties with a view to strengthening the capacity and the mandate of the national preventive mechanisms for the prevention of torture and other cruel, inhuman or degrading treatment or punishment.

For the prevention of torture in general, the Sub-committee on Prevention is to co-operate, with the relevant United Nations organs and mechanisms as well as with the international, regional and national institutions or organisations working towards the strengthening of the protection of all persons against torture and other cruel, inhuman or degrading treatment or punishment.

20.3.8 Convention on the Rights of the Child

The Convention on the Rights of the Child was adopted on 20 November 1989. It entered into force on 2 September 1990.¹⁶² The need to extend particular care to the child has been stated in the Geneva Declaration of the Rights of the Child of 1924 and in the Declaration of the Rights of the Child adopted by the General Assembly on 20 November 1959. It has also been recognised in the Universal Declaration of Human Rights; International Covenant on Civil and Political Rights;¹⁶³ International Covenant on Economic, Social and Cultural

161. Article 1, Optional Protocol to Convention against Torture.

162. The Convention was adopted by General Assembly resolution 44/25 of 20 November 1989.

163. See Articles 23 and 24, ICCPR.

Rights;¹⁶⁴ and in the statutes and relevant instruments of specialised agencies and international organisations concerned with the welfare of children. The Declaration of the Rights of the Child indicated that “the child, by reason of his physical and mental immaturity, needs special safeguards and care, including appropriate legal protection, before as well as after birth”.

The provisions have also been made for the betterment of the children in Declaration on Social and Legal Principles relating to the Protection and Welfare of Children, with Special Reference to Foster Placement and Adoption Nationally and Internationally; the United Nations Standard Minimum Rules for the Administration of Juvenile Justice (The Beijing Rules); and the Declaration on the Protection of Women and Children in Emergency and Armed Conflict.¹⁶⁵

The Convention on the Rights of the Child is a binding instrument. The “child” is defined to mean “every human being below the age of eighteen years unless under the law applicable to the child, majority is attained earlier”.¹⁶⁶

The inherent right to life of children is recognised under the Convention.¹⁶⁷ According to Article 2, the rights set forth in the Convention shall be available to each child within the *jurisdiction* of a State Party without discrimination of any kind. In Advisory Opinion on *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*,¹⁶⁸ the ICJ stated that as Article 2 refers to the term “within the *jurisdiction* of a State Party”, the Convention was applicable within the Occupied Palestinian Territory.¹⁶⁹

The best interests of the child shall be a primary consideration in all actions concerning children.¹⁷⁰ The child is to be registered immediately after birth.¹⁷¹ A child normally is not to be separated from his or her parents against their will.¹⁷² The right of child of family reunification is to be dealt with by States Parties in a positive, humane and expeditious manner.¹⁷³ The child has the right to freedom of expression subject to certain restrictions; freedom of thought, conscience and religion and freedom of association and to freedom of peaceful assembly.¹⁷⁴ No child is to be subjected to arbitrary or unlawful interference with his or her privacy, family, home or correspondence, nor to unlawful attacks on his or her honour and reputation.¹⁷⁵ Parents or, as the case may be, legal guardians, have the primary responsibility for the upbringing and development of the child. The best interests of the child will be their basic concern.¹⁷⁶ The child is to be protected from all forms of physical or mental violence, injury or abuse, neglect or negligent treatment, maltreatment or exploitation, including sexual abuse, while in the care of parents or legal guardians (Article 19). The adoption of the child is to be permitted only by competent authorities after ensuring his best interests.¹⁷⁷

A child who is seeking refugee status or who is considered a refugee, is to receive appropriate protection and humanitarian assistance in the enjoyment of applicable rights (Article 22). A mentally or physically disabled child is to enjoy a full and decent life, in conditions which

164. See Article 10, ICESCR.

165. Preamble, CRC.

166. Article 1, CRC.

167. Article 6, CRC.

168. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136.

169. *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, (2004) ICJ Rep 136, para 113.

170. Article 3, CRC.

171. Article 7, CRC.

172. Article 9, CRC.

173. Article 10, CRC.

174. Articles 13–15, CRC.

175. Article 16, CRC.

176. Article 18, CRC.

177. Article 21, CRC.

ensure dignity, promote self-reliance and facilitate the child's active participation in the community (Article 23). States Parties are to ensure that no child is deprived of his or her right of access to such health care services.¹⁷⁸ States Parties are to recognise for every child the right to benefit from social security, including social insurance.¹⁷⁹ The right of every child to a standard of living adequate for the child's physical, mental, spiritual, moral and social development is also recognised.¹⁸⁰ States Parties are to recognise the right of the child to education. The primary education is to be made compulsory and free to all.¹⁸¹ The education of the child is to be directed to the development of the child's personality, talents and mental and physical abilities to their fullest potential. A child is to enjoy his or her own culture, to profess and practise his or her own religion, or to use his or her own language (Article 30). States Parties are to protect children from the illicit use of narcotic drugs and psychotropic substances.¹⁸²

States Parties are to protect the children from all forms of sexual exploitation and sexual abuse. They are to take all appropriate national, bilateral and multilateral measures to prevent — (i) the inducement or coercion of a child to engage in any unlawful sexual activity; (ii) the exploitative use of children in prostitution or other unlawful sexual practices; and (iii) the exploitative use of children in pornographic performances and materials (Article 34). The abduction of, the sale of or traffic in children for any purpose or in any form is to be prevented.¹⁸³

The Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography, which was adopted in 2000, supplements the Convention by requiring States Parties to end the sexual exploitation and abuse of children and also protect them from being sold for non-sexual purposes — such as other forms of forced labour, illegal adoption and organ donation.

Article 1 of the Protocol, obligates the States Parties to prohibit the sale of children,¹⁸⁴ child prostitution¹⁸⁵ and child pornography.¹⁸⁶ The offering, delivering or accepting a child for the purposes of sexual exploitation of the child, transfer of organs of the child for profit, or engagement of the child in forced labour; offering, obtaining, procuring or providing a child for child prostitution; producing, distributing, disseminating, importing, exporting, offering, selling or possessing child pornography, are to be made offences by the States Parties in their national laws.¹⁸⁷

The Protocol also protects the rights and interests of child victims. States Parties are required to provide legal and other support services to child victims. Children must also be supported with necessary medical, psychological, logistical and financial support to add their rehabilitation and reintegration.

No child is to be subjected to torture or other cruel, inhuman or degrading treatment or punishment. Neither capital punishment nor life imprisonment without possibility of release

178. Article 24, CRC.

179. Article 26, CRC.

180. Article 27, CRC.

181. Article 28, CRC.

182. Article 33, CRC.

183. Article 35, CRC.

184. Article 2(a) of the Second Optional Protocol defines the term "Sale of children" to mean "any act or transaction whereby a child is transferred by any person or group of persons to another for remuneration or any other consideration".

185. Article 2(b) defines the term "Child prostitution" to mean "the use of a child in sexual activities for remuneration or any other form of consideration".

186. Article 2(c) defines the term "Child pornography" to mean "any representation, by whatever means, of a child engaged in real or simulated explicit sexual activities or any representation of the sexual parts of a child for primarily sexual purposes".

187. Article 3, Second Optional Protocol to CRC.

is to be imposed for offences committed by persons below 18 years of age. No child is to be deprived of his or her liberty unlawfully or arbitrarily. The arrest, detention or imprisonment of a child is to be used only as a measure of last resort and for the shortest appropriate period of time.¹⁸⁸

States Parties are to ensure that persons below the age of 15 years do not take a direct part in hostilities. In accordance with their obligations under international humanitarian law to protect the civilian population in armed conflicts, States Parties are to take all feasible measures to ensure protection and care of children who are affected by an armed conflict.¹⁸⁹

In December 1995, in the 26th International Conference of the Red Cross and Red Crescent it was recommended, *inter alia*, that parties to conflict take every feasible step to ensure that children under the age of 18 years do not take part in hostilities. In June 1999, International Labour Organization Convention No. 182 on the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour was adopted unanimously. The Convention prohibits, *inter alia*, forced or compulsory recruitment of children for use in armed conflict.¹⁹⁰

The Optional Protocol to the Convention on the Rights of the Child on the Involvement of Children in Armed Conflict was adopted on 25 May 2000. It entered into force on 12 February 2002. The Optional Protocol requires States Parties to take all feasible measures to ensure that members of their armed forces who are below the age of 18 years do not take a direct part in the hostilities. Further, persons below the age of 18 years are not compulsorily recruited into their armed forces.¹⁹¹

States Parties that permit voluntary recruitment into their national armed forces under the age of 18 shall maintain safeguards to ensure, as a minimum, that — (i) such recruitment is genuinely voluntary; (ii) such recruitment is done with the informed consent of the person's parents or legal guardians; (iii) such persons are fully informed of the duties involved in such military service; and (iv) such persons provide reliable proof of age prior to acceptance into national military service.¹⁹²

20.3.8.1 *Committee on the Rights of the Child*

A Committee on the Rights of the Child is to be established for the purpose of examining the progress made by States Parties in achieving the realisation of the obligations undertaken in the present Convention.¹⁹³ States Parties are to submit to the Committee reports on the measures they have adopted which give effect to the rights recognised herein and on the progress made on the enjoyment of those rights — (a) within two years of the entry into force of the Convention for the State Party concerned; and (b) every five years thereafter.

Reports shall indicate factors and difficulties, if any, affecting the degree of fulfillment of the obligations. Reports shall also contain sufficient information to provide the Committee with a comprehensive understanding of the implementation of the Convention in the country concerned. The Committee may request further information relevant to the implementation of the Convention from States Parties. The Committee is to submit reports on its activities to the General Assembly, through the Economic and Social Council, every two years.¹⁹⁴

188. Article 37, CRC.

189. Article 38, CRC.

190. See Preamble, Optional Protocol to CRC.

191. Articles 1–2, Optional Protocol to CRC.

192. Article 3, Optional Protocol to CRC.

193. Article 43, CRC.

194. Article 44, CRC.

20.3.8.2 Filing of communication to the Committee on Rights of Child

The Third Protocol to the CRC on a Communication Procedure was adopted by General Assembly on 19 December 2011 which entered into force in April 2014.¹⁹⁵ The Protocol sets out an international complaints procedure for child rights violations. The children from States Parties to the Third Optional Protocol are allowed to bring complaints about violations of their rights directly to the Committee on the Rights of the Child if they have not found a solution at national level.

Before the adoption of Third Optional Protocol, the Convention on the Rights of Child was the only core international human rights treaty that did not have a communications procedure. This Protocol allows the Committee on the Rights of the Child to hear complaints that a child's rights have been violated. Now, the children from States that are parties to the Protocol can use this mechanism to seek justice if the national legal system has not been able to provide a remedy for the violation.

The Committee is able to hear complaints from children, groups of children or their representatives for the violation of rights set forth in the Convention, First Optional Protocol, or the Second Optional Protocol, against a State that is party to this Protocol.¹⁹⁶ The Committee is also able to launch investigations into grave or systematic violations of children's rights.¹⁹⁷ Under the Protocol, the States are able to bring complaints against each other, if they have accepted this procedure.¹⁹⁸

The Committee is to consider the communications under Article 10. The follow up provision is made under Article 11. The Protocol also provides for the follow-up to the inquiry of grave or systematic violations of rights of children.¹⁹⁹

20.3.9 Convention on the Rights of Persons with Disabilities

The Convention on the Rights of Persons with Disabilities and the Optional Protocol were adopted on 13 December 2006. The preamble of the Convention recognises the fact that disability is an evolving concept and that disability results from the interaction between persons with impairments and attitudinal and environmental barriers that hinders their full and effective participation in society on an equal basis with others.

The purpose of the Convention is “to promote, protect and ensure the full and equal enjoyment of all human rights and fundamental freedoms by all persons with disabilities, and to promote respect for their inherent dignity”. The term “persons with disabilities” include those who have long-term physical, mental, intellectual or sensory impairments which in interaction with various barriers may hinder their full and effective participation in society on an equal basis with others.²⁰⁰ The principles of the Convention includes respect for inherent dignity; non-discrimination; full and effective participation and inclusion in society; equality of opportunity; and accessibility.²⁰¹

States Parties are to ensure and promote the full realisation of all human rights and fundamental freedoms for all persons with disabilities without discrimination. For this purpose

195. The Third Optional Protocol to the CRC was adopted by General Assembly resolution 66/138 of 19 December 2011.

196. Article 5, Third Optional Protocol to CRC.

197. Article 13, Third Optional Protocol to CRC.

198. Article 12, Third Optional Protocol to CRC.

199. Article 14, Third Optional Protocol to CRC.

200. Article 1, Convention on Disability.

201. Article 3, Convention on Disability.

they have to — adopt all appropriate legislative, administrative and other measures for the implementation of the rights; take all appropriate measures to modify or abolish existing laws, regulations, customs and practices that constitute discrimination; protect and promote human rights of persons with disabilities in all policies and programmes; ensure that public authorities and institutions act in conformity with the present Convention; take all appropriate measures to eliminate discrimination on the basis of disability by any person, organisation or private enterprise; undertake or promote research and development of universally designed goods, services, equipment and facilities which should meet the specific needs of a person with disabilities; undertake or promote research and development of, and to promote the availability and use of new technologies, mobility aids, devices and assistive technologies, suitable for persons with disabilities at an affordable cost; provide accessible information to persons with disabilities about mobility aids, devices and assistive technologies, as well as other forms of assistance, support services and facilities; promote the training of professionals and staff working with persons with disabilities in the rights recognised in this Convention.²⁰²

The persons with disability of States Parties to the Convention have the right relating to *inter alia* — equality and non-discrimination; access to the physical environment, to transportation, to information and communications, and to other facilities and services open or provided to the public; right to life; equal recognition before the law; access to justice; liberty and security of the person; freedom from torture or cruel, inhuman or degrading treatment or punishment; freedom from exploitation, violence and abuse; respect for his or her physical and mental integrity; liberty of movement and nationality; living in the community; personal mobility; freedom of expression and opinion, and access to information; respect for privacy; marriage, family, parenthood and relationships; education; health; habilitation and rehabilitation; work and employment; adequate standard of living and social protection; participation in political and public life; participation in cultural life, recreation, leisure and sport.

20.3.9.1 Committee on the Rights of Persons with Disabilities

A Committee on the Rights of Persons with Disabilities is established under the Convention.²⁰³ Each State Party is required to submit to the Committee a comprehensive report on measures taken to give effect to its obligations and on the progress made in that regard, within two years after the entry into force of the present Convention for the State Party concerned. Thereafter, States Parties shall submit subsequent reports at least every four years and further whenever the Committee so requests.²⁰⁴

20.3.9.2 Right to file Communications to the Committee

Under Optional Protocol, the Committee is empowered to receive and consider communications from or on behalf of individuals or groups of individuals of a State Party to the Protocol who claim to be victims of a violation of their rights by that State Party. Only those communications are to be entertained by the Committee which concern the State Parties to the Protocol.²⁰⁵ A communication is to be considered inadmissible if—it is anonymous; it constitutes an abuse of the right of submission of such communications or if it is incompatible with the provisions of the Convention; it has already been examined by the Committee or has been or is being examined under another procedure of international investigation or settlement; it is filed without exhausting all available domestic remedies;²⁰⁶ it is manifestly ill-founded or not

202. Article 4, Convention on Disability.

203. Article 34, Convention on Disability.

204. Article 35, Convention on Disability.

205. Article 1, Optional Protocol to Convention on Disability.

206. This shall not be the rule where the application of the remedies is unreasonably prolonged or unlikely to bring effective relief.

sufficiently substantiated; or the facts that are the subject of the communication occurred prior to the entry into force of the present Protocol for the State Party concerned unless those facts continued after that date.²⁰⁷

The Committee is to bring any communications submitted to it confidentially to the attention of the State Party. Within six months, the receiving State is to submit written explanations or statements clarifying the matter and the remedy, if any, that may have been taken by that State, to the Committee.²⁰⁸ The Committee may ask the State Party concerned to take interim measures.²⁰⁹ After examining a communication, the Committee is to forward its suggestions and recommendations, if any, to the State Party concerned and to the petitioner.²¹⁰ The Committee may conduct an inquiry where it receives reliable information indicating grave or systematic violations by a State Party of rights set forth in the Convention.²¹¹

20.3.10 International Convention for the Protection of All Persons from Enforced Disappearance

Prior to the adoption of International Convention for the Protection of All Persons from Enforced Disappearance on 20 December 2006,²¹² the General Assembly adopted a Declaration on the Protection of All Persons from Enforced Disappearance on 18 December 1992.²¹³ The Convention entered into force on 23 December 2010.

The Convention obligates States parties that no one is to be subjected to enforced disappearance. No exceptional circumstances whatsoever, whether a state of war or a threat of war, internal political instability or any other public emergency, may be invoked as a justification for enforced disappearance.²¹⁴ The term “enforced disappearance” is considered to be “the arrest, detention, abduction or any other form of deprivation of liberty by agents of the State or by persons or groups of persons acting with the authorisation, support or acquiescence of the State, followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, which place such a person outside the protection of the law”.²¹⁵

In the *Report of the OHCHR Investigation on Sri Lanka (OISL)*,²¹⁶ it was stated that “enforced disappearances constitute a unique and integrated series of acts that represent the continuing violation of various rights so long as the fate and whereabouts of the victims remain unaccounted for”.²¹⁷ Enforced disappearance potentially encompasses multiple violations of human rights, *inter alia*, the right to recognition as a person before the law, the right not to be subjected to torture and other cruel, inhuman or degrading treatment or punishment, the right to liberty and security of the person and freedom from arbitrary detention including the right to be brought promptly before a judge or other official for review of the lawfulness of detention, the right to respect privacy, family, home and correspondence, as well as, in some cases, even the right to life or the State’s failure to protect the right to life.²¹⁸

207. Article 2, Optional Protocol to Convention on Disability.

208. Article 3, Optional Protocol to Convention on Disability.

209. Article 4, Optional Protocol to Convention on Disability.

210. Article 5, Optional Protocol to Convention on Disability.

211. Article 6, Optional Protocol to Convention on Disability.

212. It was adopted by General Assembly resolution A/RES/61/177 of 20 December 2006.

213. The Declaration was adopted by General Assembly resolution 47/133 of 18 December 1992.

214. Article 1, Convention for Protection from Enforced Disappearance.

215. Article 2, Convention for Protection from Enforced Disappearance.

216. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015.

217. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1126.

218. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 207.

Enforced disappearance is to be made an offence by States Parties in their criminal law. It is the duty of each State Party to take appropriate measures to investigate acts of enforced disappearance committed by persons or groups of persons acting without the authorisation, support or acquiescence of the State. Any such responsible persons are to be brought to justice. The widespread or systematic practice of enforced disappearance constitutes a crime against humanity and is to attract the consequences provided for under international law.²¹⁹

Each State Party is to ensure in its legal system that the victims of enforced disappearance have the right to obtain reparation and prompt, fair and adequate compensation. The right to obtain reparation covers material and moral damages and, where appropriate, other forms of reparation such as — (i) restitution; (ii) rehabilitation; (iii) satisfaction, including restoration of dignity and reputation; (iv) guarantees of non-repetition.²²⁰

20.3.10.1 Committee on Enforced Disappearances

A Committee on Enforced Disappearances is established under the Convention.²²¹ Each State Party is required to submit to the Committee a report on measures taken to give effect to its obligations and on the progress made in that regard, within two years after the entry into force of the present Convention for the State Party concerned.²²²

20.3.10.2 Right to file Communications to the Committee

The Committee is empowered to receive and consider communications from or on behalf of individuals of a State Party who claim to be victims of a violation of their rights by that State Party. Only those communications are to be entertained by the Committee which concern the State Parties. A communication is to be considered inadmissible if — it is anonymous; it constitutes an abuse of the right of submission of such communications or if it is incompatible with the provisions of the Convention; it is being examined under another procedure of international investigation or settlement; it is filed without exhausting all available domestic remedies;²²³ or it is in respect of enforced disappearances which took place prior to the entry into force of this Convention.²²⁴

The Committee is to transmit any communications submitted to it to the State Party concerned. The receiving State is to provide observations and comments within a time limit set by the Committee. The Committee may ask the State Party concerned to take interim measures. The Committee is to hold closed meetings when examining communications. It shall inform the author of a communication of the responses provided by the State Party. When the Committee decides to finalise the procedure, it shall communicate its views to the State Party and to the author of the communication.²²⁵

20.3.10.3 Inter-State Communications

Article 32 lays down the procedure for the inter-State communications. A State Party may at any time declare that it recognises the competence of the Committee to receive and consider communications to the effect that a State Party claims that another State Party is not fulfilling its obligations under the Convention. Communications may be received and considered only

219. Articles 3–5, Convention for Protection from Enforced Disappearance.

220. Article 24, Convention for Protection from Enforced Disappearance.

221. Article 26, Convention for Protection from Enforced Disappearance.

222. Article 29, Convention for Protection from Enforced Disappearance.

223. Article 31, Convention for Protection from Enforced Disappearance.

224. Article 35, Convention for Protection from Enforced Disappearance.

225. Article 31, Convention for Protection from Enforced Disappearance.

if submitted by a State Party that has made a declaration recognising in regard to itself the competence of the Committee.

If the Committee receives reliable information indicating that a State Party is seriously violating the provisions of the Convention, it may, after consultation with the State Party concerned, request one or more of its members to undertake a visit and report back to it without delay.²²⁶ Where the Committee receives reliable information indicating widespread or systematic practice of enforced disappearance in the territory of a State Party, it may bring the matter to the attention of the General Assembly of the United Nations.²²⁷

In the *Report of the OHCHR Investigation on Sri Lanka (OISL)*,²²⁸ it was stated that “Sri Lanka has one of the highest rates of reported cases of enforced disappearances worldwide, many of which date back decades to earlier periods of conflict and insurgency”.²²⁹

20.3.11 International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families

The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families was adopted by the General Assembly on 18 December 1990.²³⁰ Despite the fact that a number of instruments on migrant workers²³¹ were already adopted within the framework of the International Labour Organisation, a need was felt to bring about the international protection of the rights of all migrant workers and members of their families, reaffirming and establishing basic norms in a comprehensive convention which could be applied universally. Consequently, this Convention was adopted to lay down rights of the migrant workers in a comprehensive manner.

“Migrant worker” is “a person who is to be engaged, is engaged or has been engaged in a remunerated activity in a State of which he or she is not a national”.²³² The Convention is applicable, except as provided in Article 3, to all migrant workers and members of their families without distinction of any kind such as sex, race, colour, language, religion or conviction, political or other opinion, national, ethnic or social origin, nationality, age, economic position, property, marital status, birth or other status.²³³ The Convention provides human rights of all migrant workers and members of their families in detail.

A Committee on the Protection of the Rights of All Migrant Workers and Members of Their Families has been constituted to review the application of this Convention.²³⁴ The Committee is empowered to receive and consider communications from or on behalf of individuals of a State Party who claim to be victims of a violation of their individual rights by that State Party. Only those communications are to be entertained by the Committee which concern the State Parties. A communication is to be considered inadmissible if — it is anonymous; it constitutes an abuse of the right of submission of such communications or if

226. Article 33, Convention for Protection from Enforced Disappearance.

227. Article 34, Convention for Protection from Enforced Disappearance.

228. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015.

229. *Report of the OHCHR Investigation on Sri Lanka (OISL)*, A/HRC/30/CRP.2, 16 September 2015, para 1124.

230. The Convention was adopted by General Assembly resolution 45/158 of 18 December 1990.

231. Such as the Convention concerning Migration for Employment (No. 97), the Convention concerning Migrations in Abusive Conditions and the Promotion of Equality of Opportunity and Treatment of Migrant Workers (No. 143), the Recommendation concerning Migration for Employment (No. 86), the Recommendation concerning Migrant Workers (No. 151), the Convention concerning Forced or Compulsory Labour (No. 29) and the Convention concerning Abolition of Forced Labour (No. 105).

232. Article 2, Convention on Protection of Migrant Workers.

233. Article 1, Convention on Protection of Migrant Workers.

234. Article 72, Convention on Protection of Migrant Workers.

it is incompatible with the provisions of the Convention; it is being examined under another procedure of international investigation or settlement; or it is filed without exhausting all available domestic remedies.²³⁵

The Committee is to transmit any communications submitted to it to the State Party concerned. Within six months, the receiving State is to provide written explanations or statements clarifying the matter and the remedy, if any, that may have been taken by that State. The Committee is to hold closed meetings when examining communications. It shall forward its views to the State Party concerned and to the individual.

Article 76 lays down the procedure for the inter-State communications. A State Party may at any time declare that it recognises the competence of the Committee to receive and consider communications to the effect that a State Party claims that another State Party is not fulfilling its obligations under the Convention. Communications may be received and considered only if submitted by a State Party that has made a declaration recognising in regard to itself the competence of the Committee.

20.3.12 Marrakesh Treaty to Facilitate Access to Published Works for Visually Impaired

The Marrakesh Treaty to Facilitate Access to Published Works for Persons who are Blind, Visually Impaired or Otherwise Print Disabled was adopted on 27 June 2013 by World Intellectual Property Organization (WIPO) recalling “the principles of non-discrimination, equal opportunity, accessibility and full and effective participation and inclusion in society, proclaimed in the Universal Declaration of Human Rights and the United Nations Convention on the Rights of Persons with Disabilities”.²³⁶

The right to education is a human right. It is a well-known fact that access to knowledge opens the door to a good education, successful employment and a fruitful and independent personal life. Of the estimated six million children around the globe with a visual impairment, some 4.4 million of them live in under-resourced settings and do not receive an education.²³⁷ This means that visually impaired people are deprived of the right of education.

The Marrakesh Treaty aims at improving access for the blind, visually impaired and print disabled to publish works in the formats such as Braille, large print text and audio books. The Treaty obligates the Contracting Parties to provide provisions in their national copyright laws to facilitate the availability of works in accessible format copies for beneficiary persons by imposing limitations or exceptions on the copyright owner with respect to the right of reproduction, the right of distribution, and the right of making the work available to the public.

The Treaty also obligates Contracting Parties to exchange the accessible format copies cross border for the benefits of beneficiary persons. The Treaty also obligates Contracting Parties to enable the beneficiary persons or authorised entity to import an accessible format copy for the benefits of beneficiary persons without the authorisation of the right holder.

By ratifying on 24 June 2014, India became the first State to ratify the Marrakesh Treaty. India's permanent representative to the United Nations said “India supports the Marrakesh treaty for its human rights and social development dimension”.²³⁸

235. Article 77, Convention on Protection of Migrant Workers.

236. See Preamble of the Marrakesh Treaty.

237. Catherine Jewell, “Removing Barriers to Literacy: How the Marrakesh VIP Treaty can Change Lives”, *WIPO Magazine*, February 2015, No 1, pp 16–20 at p 19.

238. Catherine Jewell, “Accessible Books Consortium: Breaking Down Barriers to Accessibility”, *WIPO Magazine*, August 2014, No 4, pp 19–24 at p 24.

20.3.13 ILO Violence and Harassment Convention

The Violence and Harassment Convention was adopted by International Labour Organisation on 21 June 2019. The Convention recognises “the right of everyone to a world of work free from violence and harassment” which also includes gender-based violence and harassment. It also recognises that violence and harassment in the world of work can result in human rights violation and pose a threat to the right of equal opportunity. The Convention recalls the responsibility of members to “promote a general environment of zero tolerance to violence and harassment”.²³⁹

The term “violence and harassment” in the world of work is defined in the Convention to refer to “a range of unacceptable behaviours and practices, or threats thereof, whether a single occurrence or repeated, that aim at, result in, or are likely to result in physical, psychological, sexual or economic harm, and includes “gender-based violence and harassment.”^{240,241}

Article 2 of the Convention obligates members to protect workers and other persons in the world of work. These workers and others may include employees and “persons working irrespective of their contractual status, persons in training, including interns and apprentices, workers whose employment has been terminated, volunteers, jobseekers and job applicants, and individuals exercising the authority, duties or responsibilities of an employer”. The Convention is applicable in urban as well as rural areas to private and public sector and in the formal and informal economy.

The aforesaid provision is drafted in the most comprehensive manner. It not only seeks to protect workers alone but also other persons in the world of work, such as persons in training, internship and apprentices, former workers, volunteers, job seekers and job applicants. In many industries, job seekers are the most vulnerable persons. The Convention takes care that no body is subjected to harassment including sexual harassment.

The Convention is applicable to violence and harassment in the world of work occurring in the course of work, linked with the work or arising out of work—(i) in the workplace; (ii) in places where the worker takes a rest break or a meal, or uses sanitary, washing and changing facilities; (iii) during work-related trips, travel, training, events or social activities; (iv) through work-related communications, including those enabled by information and communication technologies; (v) in employer-provided accommodation; and (vi) when commuting to and from work.²⁴² The scope of the Convention has been widened by incorporating a foresaid places in the world of work.

The Convention obligates members to adopt “an inclusive, integrated and gender-responsive approach for the prevention and elimination of violence and harassment in the world of work”.²⁴³ Members are also obligated to ensure the right to equality and non-discrimination in employment and occupation, including for women and persons belonging to vulnerable groups.²⁴⁴

The Convention also lays down comprehensive provisions regarding enforcement and remedies²⁴⁵ as well as for guidance, training and awareness-raising.²⁴⁶ The ILO Convention is

239. See Preamble, Violence and Harassment Convention, 2019.

240. Article 1(1)(b) of the Convention defines the term “gender-based violence and harassment” to mean “violence and harassment directed at persons because of their sex or gender, or affecting persons of a particular sex or gender disproportionately, and includes sexual harassment”.

241. Article 1(1)(a), Violence and Harassment Convention, 2019.

242. Article 3, Violence and Harassment Convention, 2019.

243. Article 4, Violence and Harassment Convention, 2019.

244. Article 6, Violence and Harassment Convention, 2019.

245. Article 10, Violence and Harassment Convention, 2019.

246. Article 11, Violence and Harassment Convention, 2019.

one of the most important instruments on human rights which ensures the world of work free from violence and harassment.

20.4 Commission on Human Rights and Human Rights Council

The Commission on Human Rights was established as a subsidiary organ of Economic and Social Council (ECOSOC) in 1946. It was established with extensive terms of reference, including making studies, preparing recommendations and drafting international instruments on human rights. Originally, there were 43 representatives of Member States of the United Nations selected by ECOSOC. In 1990, this number was raised to 53. The Commission existed till 2006. Despite good work in the field of standard-setting and in drawing attention to abuses of human rights, the Commission began to attract an increasing level of criticism mainly concerning political selectivity and the failure to review objectively the situation in particular States. Powerful States were successful in manipulating the things and avoiding their scrutiny which meant that they could not be held responsible. Developing States were also disappointed by being targeted at the Commission. Transparency was completely missing and evil practices being adopted by some States could easily be witnessed. There were lot of diplomatic games and the politics played by members at the Commission that had ultimately dented its image. The United Nations Secretary General convened the High Level Panel on Threats, Challenge and Change, which concluded in its Report of 2004 that “in recent years, the Commission’s capacity to perform these tasks has been undermined by eroding credibility and professionalism”.²⁴⁷ On 15 March 2006, the Human Rights Council was created.²⁴⁸ It replaced the Commission on Human Rights.

The Human Rights Council is an inter-governmental body. It was established as a subsidiary organ of the General Assembly. It consists of 47 UN Member States which are elected by the UN General Assembly. It is responsible for strengthening the promotion and protection of human rights worldwide. It is also responsible for addressing situations of human rights violations and making recommendations on them. Unlike its predecessor Commission which used to report to Economic and Social Council, the Human Rights Council reports to General Assembly. The Council has the ability to discuss all thematic human rights issues and situations that require its attention. The Council adopted its “institution-building package” to guide its work and set up its procedures and mechanisms. This included the Universal Periodic Review mechanism which serves to assess the human rights situations in all UN Member States, the Advisory Committee which serves as the Council’s “think tank” providing it with expertise and advice on thematic human rights issues, and the complaint procedure which allows individuals and organisations to bring human rights violations to the attention of the Council.²⁴⁹ The impact of the functioning of the Human Rights Council was such that many States with poor human rights records started mending their ways and took initiatives to enforce and wherever necessary make new domestic laws for the protection and enforcement of human rights. The Council was successful in sending a message to errant States that they were no more immune and would have to fall in line so far as protection of human rights in their jurisdiction was concerned. Unlike Commission, the Council is a strong body having the potential of achieving the objective of human rights promotion and protection worldwide. Taking clue from its predecessor Commission, the Council must ensure that it considers all the States at par and does not show any bias towards any State. The Council needs to ensure that its integrity remains beyond doubt and transparency is reflected in its actions. The former UN Secretary-General Ban Ki-moon has rightly stated that “all victims of human rights

247. See Malcolm N Shaw, *International Law*, 2008, p 306.

248. Human Rights Council was created by General Assembly resolution 60/251 of 15 March 2006.

249. See www.ohchr.org (last accessed in January, 2021).

abuses should be able to look to the Human Rights Council as a forum and a springboard for action”.²⁵⁰

20.5 Regional Human Rights Law

20.5.1 European Convention on Human Rights

The Convention for the Protection of Human Rights and Fundamental Freedoms was adopted at Rome in 1950. The rights and freedoms as defined in Articles 2–18 of the Convention are to be secured to everyone by the High Contracting Parties within their jurisdiction.²⁵¹

20.5.1.1 Rights and Freedoms

Everyone’s right to life is to be protected by law. No one is to be deprived of his life save in the execution of a sentence of a court. The use of force is allowed (i) in defence of any person from unlawful violence; (ii) in order to effect a lawful arrest or to prevent the escape of a person lawfully detained; or (iii) in action lawfully taken for the purpose of quelling a riot or insurrection.²⁵²

According to Article 3, no one shall be subjected to torture or to inhuman or degrading treatment or punishment. In *Tyrer v UK*,²⁵³ the European Court of Human Rights held three strokes of the birch as a penalty for assault as inhuman and degrading punishment in breach of Article 3 of the European Convention. In *Ireland v UK*,²⁵⁴ the court found that the five interrogation techniques used by the forces of UK in Northern Ireland amounted to a practice of inhuman and degrading treatment. In *Soering* case,²⁵⁵ the European court held that the extradition of a German national Soering from UK to United States would constitute a breach of Article 3, as the applicant could be sentenced to death on a charge of murder and subjected to the death row phenomenon.

Article 4 prohibits slavery and forced labour. Article 5 secures to everyone the right to liberty and security of person. However, a person can be arrested or detained in accordance with a procedure prescribed by the law. An arrested person shall be informed promptly of the reasons for his arrest and of any charge against him in a language which he understands. The due process of law shall follow thereafter. Everyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation.

In a civil or criminal case, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal. Everyone charged with a criminal offence is to be presumed innocent until proved guilty according to law. The fundamental principles of criminal law shall be applicable to such person.²⁵⁶ No one is to be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence under national or international law at the time when it was committed.²⁵⁷

Everyone has the right to respect for his private and family life, his home and his correspondence. There may be interference by a public authority with the exercise of this

250. Statement made by UN Secretary-General at Opening of the 4th Human Rights Council Session on 12 March 2007. Available at www.ohchr.org (last accessed in January, 2021).

251. Article 1, European Convention on Human Rights.

252. Article 2, European Convention on Human Rights.

253. *Tyrer v UK*, (1978) ECtHR RepSeries A 26.

254. *Ireland v UK*, (1978) ECtHRSeries A vol 25.

255. *Soering*, (1989) ECtHR Series A vol 161.

256. Article 6, European Convention on Human Rights.

257. Article 7, European Convention on Human Rights.

right in accordance with the law.²⁵⁸ The right to freedom of thought, conscience and religion subject to limitations prescribed by law, is also secured to everyone by Article 9. The right to freedom of expression;²⁵⁹ freedom of peaceful assembly and freedom of association;²⁶⁰ and right to marry;²⁶¹ are also secured to everyone. These rights remain subject to lawful limitations.

The enjoyment of the rights and freedoms is to be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status. Everyone shall have an effective remedy for the violation of his rights and freedoms.²⁶²

In time of war or other public emergency threatening the life of the nation, Article 15 allows High Contracting Parties to take measures derogating from its obligations under this Convention to the extent strictly required by the exigencies of the situation, provided that such measures are not inconsistent with its other obligations under international law.

20.5.1.2 European Court of Human Rights

The European Court of Human Rights has been set up to ensure the observance of the engagements undertaken by the High Contracting Parties in the Convention and the Protocols thereto. The court functions on a permanent basis.²⁶³ The number of judges in the court shall be equal to that of the High Contracting Parties. The judges are elected for a term of nine years by the Parliamentary Assembly with respect to each High Contracting Party by a majority of votes cast from a list of three candidates nominated by the High Contracting Party.²⁶⁴

To consider cases brought before it, the court shall sit in a single-judge formation, in committees of three judges, in Chambers of seven judges and in a Grand Chamber of seventeen judges. The court's Chambers shall set up committees for a fixed period of time.

When sitting as a single judge, a judge is not to examine any application against the High Contracting Party in respect of which that judge has been elected. However, there shall sit as an *ex officio* member of the Chamber and the Grand Chamber the judge elected in respect of the High Contracting Party concerned. If there is none or if that judge is unable to sit, a person chosen by the President of the court from a list submitted by that Party shall sit in the capacity of judge.

The Grand Chamber is to include the President of the court, the Vice-Presidents, the Presidents of the Chambers and other judges chosen in accordance with the rules of the court. When a case is referred to the Grand Chamber, no judge from the Chamber which rendered the judgment shall sit in the Grand Chamber, with the exception of the President of the Chamber and the judge who sat in respect of the High Contracting Party concerned.²⁶⁵

20.5.1.2.1 Jurisdiction of the Court

The jurisdiction of the court is extended to inter-State cases; individual applications; issues relating to binding force and execution of judgments; and advisory opinion. In the event of dispute as to whether the court has jurisdiction, the court shall decide the matter (Article 32).

258. Article 8, European Convention on Human Rights.

259. Article 10, European Convention on Human Rights.

260. Article 11, European Convention on Human Rights.

261. Article 12, European Convention on Human Rights.

262. Articles 14, 13, European Convention on Human Rights.

263. Article 19, European Convention on Human Rights.

264. Articles 20–24, European Convention on Human Rights.

265. Article 26, European Convention on Human Rights.

Any High Contracting Party may refer to the court any alleged breach of the provisions of the Convention and the protocols thereto by another High Contracting Party (Article 33). The court may also receive applications from any person, non-governmental organisation or group of individuals claiming to be the victim of a violation of the rights by one of the High Contracting Parties. The High Contracting Parties are to ensure that the effective exercise of this right is not to be hindered in any way (Article 34).

The court is to deal with the matter only after all domestic remedies have been exhausted and the matter is brought before the court within a period of six months from the date of final decision. The individual's application is not to be entertained by the court if it is anonymous; or is substantially the same as has already been examined by the court or has already been submitted to another procedure of international investigation or settlement. The application is to be declared as inadmissible if it is incompatible with the provisions of the Convention or the Protocols thereto, manifestly ill-founded, or an abuse of the right of individual application; or the applicant has not suffered a significant disadvantage, unless respect for human rights requires an examination of the application on the merits (Article 35).

The Convention makes a provision for the third party intervention under Article 36. In all cases before a Chamber or the Grand Chamber, a High Contracting Party one of whose nationals is an applicant shall have the right to submit written comments and to take part in hearings. Further, the President of the court may, in the interest of the proper administration of justice, invite any High Contracting Party which is not a party to the proceedings or any person concerned who is not the applicant to submit written comments or take part in hearings (Article 36).

The court shall examine the case and may also undertake an investigation, if necessary. A friendly settlement of the matter may also be found if the parties are interested (Articles 38, 39). Within a period of three months from the date of the judgment of the Chamber, any party to the case may request that the case be referred to the Grand Chamber. If the Chamber accepts the request, the Grand Chamber shall decide the case.²⁶⁶ The judgment of the Grand Chamber shall be final and binding. The execution of a final judgment is to be supervised by the Committee of Ministers. If the execution of a final judgment is hindered by a problem of interpretation of the judgment, the Committee may refer the matter to the court for a ruling.²⁶⁷

The court may, at the request of the Committee of Ministers, give advisory opinions on legal questions concerning the interpretation of the Convention and the protocols thereto. Before delivering advisory opinion, the court is to decide whether a request for an advisory opinion submitted by the Committee of Ministers is within its competence (Articles 47, 48).

20.5.2 American Convention of Human Rights

The American Convention of Human Rights also known as Pact of San Jose was adopted on 22 November 1969. It came into force on 18 July 1978. The Convention provides for civil and political rights, which include right to juridical personality (Article 3); right to life (Article 4); right to humane treatment (freedom from torture or to cruel, inhuman, or degrading punishment or treatment) (Article 5); freedom from slavery or servitude (Article 6); right to personal liberty and security (Article 7); right to a fair trial (Article 8); freedom from *ex post facto* laws (Article 9); right to compensation in case of miscarriage of justice (Article 10); right to privacy (Article 11); freedom of conscience and religion (Article 12); freedom of thought and expression (Article 13); right of peaceful assembly (Article 15); freedom of

266. Article 43, European Convention on Human Rights.

267. Article 46, European Convention on Human Rights.

association (Article 16); rights of the family (Article 17); right to nationality (Article 20); right to property (Article 21); freedom of movement and residence (Article 22); right to participate in Government (Article 23); right to equal protection of law (Article 24); and right to judicial protection (Article 25).

In *The Mayagna (Sumo) Awas Tingni Community v Nicaragua*,²⁶⁸ the Inter-American Court of Human Rights while discussing the issue of the rights of indigenous peoples to ancestral lands and resources, emphasised the communitarian tradition regarding a communal form of collective property of the land and consequential close ties of indigenous people with that land. The court noted that the customary law of such people had especially to be taken into account so that possession of the land should suffice for indigenous communities lacking real title.²⁶⁹

In another case *Sawhoyamaza Indigenous Community v Paraguay*,²⁷⁰ the Inter-American Court of Human Rights emphasised that the close ties of members of the indigenous communities with their traditional lands and the natural resources associated with their culture had to be secured under Article 21 of the Convention concerning the right to use and enjoyment of property.

In addition to the civil and political rights, the Convention also provides for economic, social and cultural rights. The States Parties are to adopt measures, especially those of an economic and technical nature, with a view to achieving progressively the full realisation of the rights implicit in the economic, social, educational, scientific, and cultural standards set forth in the Charter of the Organization of American States.²⁷¹

States Parties are allowed to derogate from their obligations under the Convention in time of war, public danger, or other emergency that threatens the independence or security of a State Party.²⁷²

20.5.2.1 Inter-American Commission on Human Rights

The Convention provides for the establishment of Inter-American Commission on Human Rights, and the Inter-American Court of Human Rights (Article 33). The main function of the Commission is to promote respect for and defense of human rights. In the exercise of its mandate, the Commission has the following functions and powers:

- (i) to develop an awareness of human rights among the peoples of America;
- (ii) to make recommendations to the governments of the Member States for the adoption of progressive measures in favor of human rights within the framework of their domestic law and constitutional provisions;
- (iii) to prepare such studies or reports as it considers advisable in the performance of its duties;
- (iv) to request the governments of the Member States to supply it with information on the measures adopted by them in matters of human rights;
- (v) to respond to inquiries made by the Member States on matters related to human rights and within the limits of its possibilities, to provide those States with the advisory services they request;

268. *The Mayagna (Sumo) Awas Tingni Community v Nicaragua*, (2001) IACHR Series C No 79.

269. *The Mayagna (Sumo) Awas Tingni Community v Nicaragua*, (2001) IACHR Series C No 79, paras 149, 151.

270. *Sawhoyamaza Indigenous Community v Paraguay*, (2006) IACHR Series C No 146.

271. Article 26, American Convention on Human Rights.

272. Article 27, American Convention on Human Rights.

- (vi) to take action on petitions and other communications; and
- (vii) to submit an annual report to the General Assembly of the Organisation of American States.

Any person or group of persons, or any non-governmental entity may lodge petitions with the Commission or complaints of violation of this Convention by a State Party (Article 44). The Convention also provides for inter-State communication procedure under Article 45. A petition or communication is to be admitted by the Commission only when it has been filed within six months of exhausting the domestic remedies and it is not pending in another international proceeding for settlement. The petition contains the name, nationality, profession, domicile, and signature of the person or persons or of the legal representative of the entity lodging the petition (Article 46). Once admitted, the Commission will continue with the petition or communication as per the procedure laid down in the Convention. The Commission is to appear in all the cases before the court.

20.5.2.2 *Inter-American Court of Human Rights*

Only the States Parties and the Commission have the right to submit a case to the court. The jurisdiction of the court comprises all cases concerning the interpretation and application of the provisions of the Convention. A State Party may declare that it recognises as binding the jurisdiction of the court on all matters relating to the interpretation or application of this Convention. Such declaration may be made unconditionally, on the condition of reciprocity, for a specified period, or for specific cases (Articles 61, 62). This means that the court does not exercise compulsory jurisdiction on States Parties.

The judgment of the court shall be final and not subject to appeal. In case of disagreement as to the meaning or scope of the judgment, the court shall interpret it at the request of any of the parties, provided the request is made within ninety days from the date of notification of the judgment.²⁷³

20.5.3 *African Charter on Human and Peoples' Rights*

The African Charter on Human and Peoples' Rights was adopted by the African States members of the Organization of African Unity (OAU) on 27 June 1981 at Nairobi, Kenya.²⁷⁴ It entered into force on 21 October 1986.

The individual has the right *inter alia*, to equal protection of the law (Article 3); right to life (Article 4); right to dignity, i.e. freedom from slavery, slave trade, torture, cruel, inhuman or degrading punishment and treatment (Article 5); right to liberty and to the security of his person (Article 6); right to have his cause heard (Article 7); freedom of conscience and practice of religion (Article 8); right to receive information and disseminate his opinions (Article 9); right to free association (Article 10); right to assemble (Article 11); right to freedom of movement and residence (Article 12); right to participate freely in the government (Article 13); right to property (Article 14); right to work (Article 15); right to health (Article 16); right to education, and to take part in the cultural life of his community (Article 17); right to family (Article 18); right to existence and self-determination (Article 20); and right to economic, social and cultural development (Article 22). The Convention also lays down duties for the individuals under Articles 27–29.

273. Article 67, American Convention on Human Rights.

274. OAU Doc. CAB/LEG/67/3 rev 5 (1981), reprinted 21 ILM 58 (1982).

20.5.3.1 African Commission on Human and Peoples' Rights

An African Commission on Human and Peoples' Rights is established within OAU to promote human and peoples' rights and to ensure their protection in Africa.²⁷⁵ The functions of the Commission are to promote Human and Peoples' Rights and in particular to collect documents, undertake studies and researches on African problems in the field of human and peoples' rights, organise seminars, symposia and conferences, disseminate information, encourage national and local institutions concerned with human and peoples' rights, and should the case arise, give its views or make recommendations to Governments.

The Commission is to formulate and lay down, principles and rules aimed at solving legal problems relating to human and peoples' rights and fundamental freedoms upon which African Governments may base their legislations. It is to co-operate with other African and international institutions concerned with the promotion and protection of human and peoples' rights. Further, it is to ensure the protection of human and peoples' rights. It shall also interpret all the provisions of the present Charter at the request of a State party, an institution of the OAU or an African Organization recognised by the OAU.²⁷⁶ The Commission may resort to any appropriate method of investigation (Article 46).

20.5.3.2 Communication from States

If a State party has good reasons to believe that another State party has violated the provisions of the Charter, it may draw the attention of that State by written communication to the matter. This communication shall also be addressed to the Secretary General of the OAU and to the Chairman of the Commission. Within three months of the receipt of the communication, the receiving State shall give written detailed explanation or statement to the enquiring State. If the issue is not settled to the satisfaction of the two States through bilateral negotiation or by any other peaceful procedure, either State shall have the right to submit the matter to the Commission. Further, if a State Party considers that another State Party has violated the provisions of the Charter, it may refer the matter directly to the Commission (Articles 47–49).

After having obtained from the States concerned and from other sources all the information and after having tried all appropriate means to reach an amicable solution based on the respect of Human and Peoples' Rights, the Commission shall prepare a report stating the facts and its findings. The report shall be sent to the States concerned and communicated to the Assembly of Heads of State and Government. While transmitting its report, the Commission may make to the Assembly of Heads of State and Government such recommendations as it deems useful (Articles 52–53).

20.5.3.3 Communications Relating to Human and Peoples' Rights

Communications relating to human and peoples' rights received by the Commission, are to be considered if they — indicate their authors; are compatible with the Charter of the OAU or with the present Charter; are not written in disparaging or insulting language directed against the State concerned and its institutions or to the OAU; are not based exclusively on news discriminated through the mass media; are sent after exhausting local remedies, if any, unless it is obvious that this procedure is unduly prolonged; are submitted within a reasonable period from the time local remedies are exhausted or from the date the Commission is seized of the matter; and do not deal with cases which have been settled by these States involved.²⁷⁷

275. Article 30, African Charter on Human Rights.

276. Article 45, African Charter on Human Rights.

277. Article 56, African Charter on Human Rights.

Prior to any substantive consideration, all communications shall be brought to the knowledge of the State concerned. After deliberations of the Commission, if it appears that one or more communications apparently relate to special cases which reveal the existence of a series of serious or massive violations of human and peoples' rights, the Commission shall draw the attention of the Assembly of Heads of State and Government to these cases and undertake an in-depth study of these cases and make a factual report, accompanied by its findings and recommendations (Articles 57, 58).

Each State party is to submit a report on the legislative or other measures taken to implement the provisions of the Charter every two years from the date of coming into force of the Charter.²⁷⁸

20.5.4 Arab Charter on Human Rights

The Arab Charter on Human Rights was initially adopted by the League of Arab States on 15 September, 1994. The Charter proclaimed essentially the same rights as those embodied in the other international and regional human rights instruments. However, the main weakness with the 1994 Charter was the lack of any human rights enforcement mechanism, particularly in comparison to the mechanisms within the European and American Conventions on Human Rights, and the African Charter on Human and Peoples' Rights.²⁷⁹

Following criticism of the 1994 Charter, the revised Arab Charter on Human Rights was subsequently adopted in May 2004 which entered into force March 15, 2008. The Charter affirms the principles of the Charter of the United Nations, the Universal Declaration of Human Rights and the provisions of the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights, and the Cairo Declaration on Human Rights in Islam.

The Charter places human rights at the centre of the key national concerns of Arab States. It establishes the principle that all human rights are universal, indivisible, interdependent and interrelated (Article 1). The Charter provides a number of civil, political, economic, social and cultural rights. A decent life has been ensured to persons with mental or physical disabilities (Article 40). The equality between men and women in the Arab World is confirmed in the revised version of the Charter (Article 3).

An Arab Human Rights Committee has been established under the Charter.²⁸⁰ The States Parties are to submit reports to the Secretary-General of the League of Arab States on the measures they have taken to give effect to the provisions of this Charter. The Secretary-General shall transmit these reports to the Committee for its consideration. Each State Party is to submit an initial report to the Committee within one year from the date on which the Charter enters into force and a periodic report every three years thereafter. The Committee may request the States parties to supply it with additional information relating to the implementation of the Charter. The Committee shall consider the reports submitted by the States parties. The Committee is to discuss the report, comment thereon and make the necessary recommendations in accordance with the aims of the Charter. The Committee is to submit an annual report containing its comments and recommendations to the Council of the League, through the intermediary of the Secretary-General.²⁸¹

278. Article 62, African Charter on Human Rights.

279. See also Mohammed Amin Al-Midani and Mathilde Cabanettes (translated), "Arab Charter on Human Rights 2004", *Boston University International Law Journal*, vol 24, 2006, pp 147–64 at p 148.

280. Article 45, Arab Charter on Human Rights.

281. Article 48, Arab Charter on Human Rights.

The main criticism of the 1994 version of the Charter remained unresolved in the revised version also, as there is no effective enforcement mechanism. The expert Committee remains the only system of monitoring State compliance. The Committee receives periodic reports from States parties, but there is no mechanism for petitions for violations of the Charter from a State party or an individual to this Committee. Nor does the Charter provide for the establishment of Arab Court on Human Rights.²⁸²

To conclude this chapter, it shall be appropriate to refer to the words of former UN Secretary-General Kofi Annan, “although basic human rights principles enjoy universal agreement, the gap between rhetoric and reality is wide indeed. Put simply, the challenge is to close that gap. The daily litany of human suffering and inhumanity is all too familiar, with human rights denied and violated in many and varied ways”.²⁸³

282. See also Mohammed Amin Al-Midani and Mathilde Cabanettes (translated), “Arab Charter on Human Rights 2004”, *Boston University International Law Journal*, vol 24, 2006, pp 147–64 at p 149.

283. See General Assembly Report on *In Larger Freedom: Towards Development, Security and Human Rights for All*, (A/59/2005/Add 3, 26 May 2005).

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